



DR. BABASAHEB AMBEDKAR

WRITINGS AND SPEECHES

Vol. - 5

- What it is to be an Untouchable.
- Social, Political, Religious Essays on Untouchables and Untouchability.

DR. AMBEDKAR FOUNDATION

MINISTRY OF SOCIAL JUSTICE AND EMPOWERMENT
GOVERNMENT OF INDIA



Babasaheb Dr. B.R. Ambedkar
(14th April 1891 - 6th December 1956)

DR. BABASAHEB AMBEDKAR
WRITINGS AND SPEECHES

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MESSAGE

Babasaheb Dr. B.R.Ambedkar, the first Law Minister of Independent India and the Chief Architect of the Indian Constitution, is also remembered and admired as a nationalist, statesman, sociologist, philosopher, anthropologist, historian, economist, jurist, a prolific writer and a powerful orator.

To celebrate Birth Centenary of Babasaheb Dr. B.R.Ambedkar in a befitting manner, a National Centenary Celebrations Committee was constituted during the year 1990-91 with the then Hon'ble Prime Minister as its Chairman. Dr. Ambedkar Foundation was established by the Government of India under the aegis of the then Ministry of Welfare (now Ministry of Social Justice & Empowerment) with the objective to promote Babasaheb's ideals and also to administer some of the schemes which emanated from the Centenary Celebrations.

During these Celebrations, the Ministries and Departments of Government of India and State and Union Territory Governments had organized number of Programmes and had announced various Schemes. The Government of Maharashtra had also organized number of Programmes/Schemes and gave fillip to its project on compilation of Dr. Ambedkar Works viz. 'Dr. Babasaheb Ambedkar Writings and Speeches'. Dr. Ambedkar Foundation was also entrusted with the project of translation and publication of Dr. Ambedkar's Works by Government of Maharashtra, into Hindi and various regional languages. The Foundation also brought English versions of CWBA Volumes and keeping in view the demand for these Volumes (English), they have now been re-printed.

Dr. Ambedkar's writings are relevant today also as they were at the time these were penned. I am sure, the readers would be enriched by his thoughts. The Foundation would be thankful for any inputs or suggestions about these Volumes.

(Dr. Thaawarchand Gehlot)

PREFACE

It is a matter of great happiness that Dr. Ambedkar Foundation, on demand of the readers, is getting the Collected Works of Babasaheb Ambedkar (CWBA) English Volumes on venerable Dr. Ambedkar's contributions re-printing for wider circulation. Dr. Ambedkar not only dedicated his life for ameliorating the conditions of deprived sections of the society but also his views on inclusiveness and *Samajik Samrasta* continue inspiring national endeavour.

Dr. Ambedkar Foundation is deeply indebted to Smt. Rashmi Chowdhary, the then Member Secretary and Joint Secretary in the Ministry of Social Justice and Empowerment for her personal efforts, constant monitoring for setting the stage and giving a shape of this re-printing version of publication, under the guidance of the Chairman, Dr. Ambedkar Foundation and the Hon'ble Minister for Social Justice & Empowerment, Government of India.

It is hoped that the Volumes on Dr. B.R. Ambedkar's contributions will continue to be a source of inspirations for the readers.



(Debendra Prasad Majhi)

Director

Dr. Ambedkar Foundation

New Delhi

No one can hope to make any effective mark upon his time and bring the aid that is worth bringing to great principles and struggling causes if he is not strong in his love and his hatred. I hate injustice, tyranny, pompousness and humbug, and my hatred embraces all those who are guilty of them. I want to tell my critics that I regard my feelings of hatred as a real force. They are only the reflex of the love I bear for the causes I believe in.

—*Dr. B. R. Ambedkar*
in his Preface to
'Ranade, Gandhi and Jinnah

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BOOK 1

Untouchables or The Children of India's Ghetto

This is a 208-page MS (Second copy) under the title "Untouchables or The Children of India's Ghetto". The whole MS forms an independent book by itself. It has a 'Table of Contents' divided into 4 parts, which are further sub-divided into 14 chapters. Slight modifications had to be made in the arrangement of the chapters to bring them in conformity with that of 'Table of Contents'. Except few corrections in the titles of the chapters, the text is untouched by the author.—Ed.

PART I

What it is to be an Untouchable

CHAPTER 1

UNTOUCHABILITY—ITS SOURCE

It is usual to hear all those who feel moved by the deplorable condition of the Untouchables unburden themselves by uttering the cry “We must do something for the Untouchables”. One seldom hears any of the persons interested in the problem saying ‘Let us do something to change the Touchable Hindu’. It is invariably assumed that the object to be reclaimed is the Untouchables. If there is to be a Mission, it must be to the Untouchables and if the Untouchables can be cured, untouchability will vanish. Nothing requires to be done to the Touchable. He is sound in mind, manners and morals. He is whole, there is nothing wrong with him. Is this assumption correct? Whether correct or not, the Hindus like to cling to it. The assumption has the supreme merit of satisfying themselves that they are not responsible for the problem of the Untouchables.

How natural is such an attitude is illustrated by the attitude of the Gentile towards the Jews. Like the Hindus the Gentiles also do not admit that the Jewish problem is in essence a Gentile problem. The observations of Louis Goulding on the subject are therefore very illuminating. In order to show how the Jewish problem is in its essence a Gentile problem, he says:

“I beg leave to give a very homely instance of the sense in which I consider the Jewish Problem in essence a Gentile Problem. A close acquaintance of mine is a certain Irish terrier of mixed pedigree, the dog Paddy, who is to my friend John Smith as the apple of both his eyes. Paddy dislikes Scotch terriers; it is enough for one to pass within twenty yards of Paddy to deafen the neighbourhood with challenges and insults. It is a practice which John Smith deplotes, which, therefore, he does his best to check—all the more as the objects of Paddy’s detestation are often inoffensive creatures, who seldom speak first. Despite all his affection for Paddy, he considers, as I do, that Paddy’s unmannerly behaviour is due to some measure of original sin in Paddy. It has not yet been suggested to us that what is here involved is a Scotch Terrier Problem and that when Paddy attacks a neighbour who is peacefully engaged in inspecting

the evening smells it is the neighbour who should be arraigned for inciting to attack by the fact of his existence.”

There is here a complete analogy between the Jewish Problem and the problem of the Untouchables. What Paddy is to the Scotch Terrier, the Gentile is to the Jews, and the Hindu is to the Untouchables. But there is one aspect in which the Jewish Problem stands in contrast to the Gentile Problem. The Jews and the Gentiles are separated by an antagonism of the creeds. The Jewish creed is opposed to that of the Gentile creed. The Hindus and the Untouchables are not separated by any such antagonism. They have a common creed and observe the same cults.

The second explanation is that the Jews wish to remain separate from the Gentiles. While the first explanation is chauvinistic the second seems to be founded on historical truth. Many attempts have been made in the past by the Gentiles to assimilate the Jews. But the Jews have always resisted them. Two instances of this may be referred.

The first instance relates to the Napoleonic regime. After the National Assembly of France had agreed to the declaration of the ‘Rights of man’ to the Jews, the Jewish question was again reopened by the guild merchants and religious reactionaries of Alsace. Napoleon resolved to submit the question to the consideration of the Jews themselves. He convened an Assembly of Jewish Notables of France, Germany and Italy in order to ascertain whether the principles of Judaism were compatible with the requirements of citizenship as he wished to fuse the Jewish element with the dominant population. The Assembly consisting of 111 deputies, met in the Town Hall of Paris on the 25th of July 1806, and was required to frame replies to twelve questions relating mainly to the possibility of Jewish patriotism, the permissibility of inter-marriage between Jew and Non-Jew, and the legality of usury. So pleased was Napoleon with the pronouncements of the Assembly that he summoned a Sanhedrin after the model of the ancient council of Jerusalem to convert them into the decree of a Legislative body. The Sanhedrin, comprising of 71 deputies from France, Germany, Holland and Italy met under the presidency of Rabbi Sinzheim, of Strassburg on 9th February 1807, and adopted a sort of Charter which exhorted the Jews to look upon France as their fatherland, to regard its citizens as their brethren, and to speak its language, and which also pressed toleration of marriages between Jews and Christians while declaring that they could not be sanctioned by the synagogue. It will be noted that the Jews refused to sanction intermarriages between Jews and non-Jews. They only agreed to tolerate them.

The second instance relates to what happened when the Batavian Republic was established in 1795. The more energetic members of the Jewish community pressed for a removal of the many disabilities under which they laboured. But the demand for the fuller rights of citizenship made by the progressive Jews was at first, strangely enough, opposed by the leaders of the Amsterdam community, who feared that civil equality would militate against the conservation of Judaism and declared that their co-religionists renounced their rights of citizenship in obedience to the dictates of their faith. This shows that the Jews preferred to live as strangers rather than as members of the community.

Whatever the value of their explanations the Gentiles have at least realized that there rests upon them a responsibility to show cause for their unnatural attitude towards the Jews. The Hindu has never realised this responsibility of justifying his treatment of the Untouchables. The responsibility of the Hindus is much greater because there is no plausible explanation he can offer in justification of untouchability. He cannot say that the Untouchable is a leper or a mortal wretch who must be shunned. He cannot say that between him and the Untouchables, there is a gulf due to religious antagonism which is not possible to bridge. Nor can he plead that it is the Untouchable who does not wish to assimilate with the Hindus.

But that is not the case with the Untouchables. They too are in a different sense an eternal people who are separate from the rest. But this separateness, their segregation is not the result of their wish. They are punished not because they do not want to mix. They are punished because they want to be one with the Hindus. In other words, though the problem of the Jews and of the Untouchables is similar in nature—inasmuch as the problem is created by others—it is essentially different. The Jew's case is one of the voluntary isolation. The case of the Untouchables is that of compulsory segregation. Untouchability is an infliction and not a choice.

CHAPTER 2

UNTOUCHABLES—THEIR NUMBERS

Before one tries to know what it is to be an Untouchable one would like to know what is the total population of the Untouchables of India. For this one must go to the Census Report.

The first general census of India was taken in the year 1881. Beyond listing the different castes and creeds and adding up their numbers so as to arrive at the total figure of the population of India the Census of 1881 did nothing. It made no attempt to classify the different Hindu castes either into higher and lower or touchable and untouchable. The second general census of India was taken in the year 1891. It was at this census that an attempt to classify the population on the basis of caste and race and grade was made by the Census Commissioner for the first time. But it was only an attempt.

The third general census of India was taken in 1901. At this census a new principle of classification was adopted namely "Classification by Social precedence as recognised by native public opinion". To this serious opposition was raised by high caste Hindus to the enumeration by caste in the Census Report. They insisted on the omission of the question regarding caste.

This objection did not have any effect on the Census Commissioner. In the opinion of the Census Commissioner enumeration by caste was important and necessary. It was argued by the Census Commissioner that "whatever view may be taken of the advantages or disadvantages of caste as a social institution, it is impossible to conceive of any useful discussion of the population questions in India in which caste would not be an important element. Caste is still 'the foundation of the Indian social fabric' and the record of caste is still 'the best guide to the changes in the various social strata in the Indian Society'. Every Hindu (using the term in its most elastic sense) is born into a caste and his caste determines his religious, social, economic and domestic life from the cradle to the grave. In western countries the major factors which determine the different strata of society viz. wealth, education and vocation are fluid and catholic and tend to modify the rigidity of birth and hereditary position. In India spiritual and social community

and traditional occupation override all other factors. Thus where in censuses of western countries an economic or occupational grouping of the population affords a basis for the combination of demographic statistics, the corresponding basis in the case of the Indian population is the distinction of religion and caste. Whatever view may be taken of caste as a national and social institution it is useless to ignore it, and so long as caste continues to be used as one of the distinguishing features of an individual's official and social identity it cannot be claimed that a decennial enumeration helps to perpetuate an undesirable institution.

This Census of 1901 did not result in fixing the total population of the Untouchables at any exact figure. This was due to two reasons. In the first place no exact tests were applied to determine who is an Untouchable. Secondly a class of the population which was economically and educationally backward but not Untouchable was mixed up with those who were actually Untouchables.

The Census of 1911 went a step further and actually laid down ten tests to mark off the Untouchables from those who were Touchables. Under these, tests the Census Superintendents made a separate enumeration of castes and tribes who (1) denied the supremacy of the Brahmins; (2) did not receive the Mantra from Brahmana or other recognized Hindu Guru; (3) denied the authority of the Vedas; (4) did not worship the great Hindu Gods; (5) were not served by good Brahmanas; (6) have no Brahmin priests at all; (7) have no access to the interior of the ordinary Hindu temple; (8) cause pollution; (9) bury their dead and (10) eat beef and do not reverence the cow.

The separation of the Untouchables from the Hindus was insisted upon by the Muslims in a memorial to the Government dated 27th January 1910 in which they claimed that their representation in the political bodies of the country should be in proportion to the population of Touchable Hindus and not Hindus as a whole because they contended that the Untouchables were not Hindus.

Be that as it may the Census of 1911 marks the beginning of the ascertainment of the population of the Untouchables. Efforts in the same direction were continued at the Census of 1921 and 1931.

As a result of these efforts the Simon Commission which came to India in 1930 was able to state with some degree of surety that total population of Untouchables in British India was 44.5 millions.

Suddenly, however, in 1932 when the Lothian Committee came to India to investigate the question of franchise for the reformed Legislatures and began its investigation, the Hindus adopted a challenging mood and refused to accept the figure given by the Simon Committee as a true figure of the Untouchables of India. In some

provinces the Hindus went to the length of denying that there were any Untouchables at all. This is due to the fact that the Hindus had by now realized the danger of admitting the existence of the Untouchables. For it meant that a part of the representation enjoyed by the Hindus will have to be given up by them to the Untouchables.

The Census of 1941 must be left out of consideration. It was taken during the war and it was a sort of a rough measure.

The latest Census is that of 1951. The following figures are taken from the statement issued by the Census Commissioner. The Census Commissioner gives the population of the Scheduled Castes in India as 513 lakhs.

The total population of India, as shown by the 1951 census is 3,567 lakhs, excluding 1.35 lakhs, the enumeration records in whose case were destroyed by fire in the Census Tabulation Office at Jullundur.

Out of the total population of 3,567 lakhs, 2,949 lakhs live in rural areas and 618 lakhs in the urban areas. The Scheduled Castes in rural areas total 462 lakhs and in urban areas their figures are 51 lakhs.

Non-agricultural classes for the whole population total 1,076 lakhs, the Scheduled Castes 132 lakhs.

Cultivators of land, wholly or mainly owned, and their dependents total 1,674 lakhs for the whole population, 174 lakhs for the Scheduled Castes.

Cultivators of land, wholly or mainly unowned and their dependants are 316 lakhs for the whole of India, 56 lakhs for the Scheduled Castes.

Cultivating labourers and their dependants are 448 lakhs for the whole of India, 148 lakhs for the Scheduled Castes.

Figures for non-agricultural classes are as follows :

Production other than Cultivation: Total 377 lakhs, Scheduled Castes 53 lakhs.

Commerce: Total 213 lakhs, Scheduled Castes 9 lakhs.

Transport: Total 56 lakhs. Scheduled Castes 6 lakhs.

Other services and miscellaneous sources: Total 430 lakhs, Scheduled Castes 64 lakhs.

Out of a total Scheduled Caste population of over 513 lakhs, 114 lakhs live in North India (Uttar Pradesh); 128 lakhs in East India (Bihar, Orissa, West Bengal, Assam, Manipur and Tripura); 110 lakhs in South India (Madras, Mysore, Travancore-Cochin and Coorg); 31 lakhs in West India (Bombay, Saurashtra and Kutch); 76 lakhs in Central India (Madhya Pradesh, Madhya Bharat, Hyderabad, Bhopal and Vindhya Pradesh); and 52 lakhs in North-West India (Rajasthan, Punjab, Patiala and East Punjab States Union, Ajmer, Delhi, Bilaspur and Himachal Pradesh).

CHAPTER 3

SLAVES AND UNTOUCHABLES

Far from being ashamed of untouchability, the Hindus try to defend it. The line of their defence is that the Hindus have never upheld slavery as other nations have done and that in any case, untouchability is not worse than slavery. This argument was used by no less a person than the late Lala Lajpat Rai in his book called 'Unhappy India'. It would have been unnecessary to waste one's time in refuting this countercharge had it not been that on account of its plausibility the world at large not having witnessed anything worse than slavery is likely to believe that untouchability cannot be worse than slavery.

The first reply to the counter-charge is that it is quite untrue that slavery was not recognised by the Hindus. Slavery is a very ancient institution of the Hindus. It is recognised by Manu, the Hindu lawgiver and has been elaborated and systematized by the other Smriti writers who followed Manu. Slavery among the Hindus was never merely ancient institution which functioned only in some hoary past. It was an institution which continued throughout Indian history down to the year 1843 and if it had not been abolished by the British Government by law in that year, it might have continued even today.

As to the relative merits of slavery and untouchability, the best way to meet the counter-charge is to compare and contrast untouchability with slavery as it existed in ancient Rome and in modern America.

What was the *de facto* condition of the slaves in the Roman Empire? The best description I know of is to be found in Mr. Barrow's *Slavery in the Roman Empire*. Says¹ Mr. Barrow:

"Hitherto, it is the repulsive side of household slavery that has been sketched. There is also another aspect. The literature reveals the vast household as normal. It is, of course, the exception. Large slave staffs undoubtedly existed, and they are generally to be found in Rome. In Italy and the Provinces there was less need of display; many of the staff of the Villa were engaged in productive work connected with land and its produce. The old-fashioned relationship

¹ Slavery in the Roman Empire, pp. 47-49.

between foreman and slave remained there; the slave was often a fellow worker. The kindness of Pliny towards his staff is well-known. It is in no spirit of self-righteousness, and in no wish to appear in a favourable light in the eyes of the future generations which he hoped would read his letters that he tells of his distress at the illness and death of his slaves. The household (or Pliny) is the slaves' republic. Pliny's account of his treatment of his slaves is sometimes regarded as so much in advance of general or even occasional practice as to be valueless as evidence. There is no reason for this attitude.

From reasons both of display and genuine literary interest, the rich families attached to their households, slaves trained in literature and art. Clavisices Sabinus is said by Seneca to have had eleven slaves taught to recite Homer, Hesiod, and nine lyric poets by heart. 'Book cases would be cheaper', said a rude friend. 'No, what the household knows the master knows' was the answer. But, apart from such abuses, educated slaves must have been a necessity in the absence of printing;... The busy lawyer, the dilettante poet, the philosopher and educated gentlemen of literary tastes and need of copyists and readers and secretaries. Such men were naturally linguistic also; a *librarius* who dies at the age of twenty boasts that he was 'litteratus Graecis Latinis'. *Amanuenses* were common enough; librarians are to be found in public and private libraries.... Shorthand writing was in common use under the Empire, and slave *Notarii* were regularly employed. Many freemen, rhetoricians and grammarians are collected by Suetonius in a special treatise. Verrius Flaccus was tutor to Augustus's grandsons, and at death was publicly honoured by a statue. Scribonius Aphrodisius was the slave and disciple of Orbilius and was afterwards freed by Scribonia. Hyginus was librarian of the Palatine Library, in which office he was followed by Julius Modestus, his own freeman. We hear of freemen historians of a slave philosopher who was encouraged to argue with his master, friends of slaves and freed architects. Freemen as doctors occur frequently in the inscriptions, some of them specialists, they had been trained in big households as slaves, as is shown by one or two examples; after Manumission they rose to eminence and became notorious for their high fees."

The tastes of some section of society demanded that dancers, singers, musicians, mountebanks, variety artists, athletic trainers and messieurs should be forthcoming. All these are to be found in slavery, often trained by teachers who had acquired some reputation¹.

¹ Slavery in the Roman Empire, p. 63.

The age of Augustus was the beginning of a period of commercial and industrial expansion....slaves had indeed been employed (in arts and crafts) before, but the sudden growth of trade.... their employment in numbers that would otherwise have been unnecessary. Romans engaged more freely and more openly in various forms of commercial and industrial venture. Yet, even so, the agent became more important, for commercial activities became more widespread; and such agents were almost necessarily slaves.... (this is so) because the bonds of slavery (are elastic). (They could be) so relaxed as to offer an incentive to the slave to work by the prospect of wealth and freedom, and so tightened as to provide a guarantee to the master against loss from the misconduct of his slave. In business contracts between slave and master or third person seem to have been common, and the work thus done, and no doubt, the profits were considerable.... Renting of land to the slave has already been noticed.... and in industry much the same system was used in various forms; the master might lease a bank, or a business of the use of a ship, the terms being a fixed return or the slave being paid on a commission basis¹.

The earnings of the slave became in law his peculium was saved it might be used to a variety of purpose. No doubt in many cases this fund was expended in providing food or pleasure. But peculium must not be regarded merely as petty savings, casually earned and idly spent. The slave who made his master's business yield profits, to his own profit too, very often, had a keen sense of the best use to make up his own money. Often he reinvested it in his master's business or in enterprises entirely unrelated to it. He could enter into business relations with his master, from whom he came to be regarded as entirely distinct, or he could make contracts with a third person. He could even have procurators to manage his own property and interests. And so with the peculium may be found not only land, houses, shops, but rights and claims.

The activities of slaves in commerce are innumerable; numbers of them are shopkeepers selling every variety of food, bread, meat, salt, fish, wine, vegetables, beans, lupine-seed, honey, curd, ham, ducks and fresh fish; others deal in clothing—sandals, shoes, gowns and mantles. In Rome, they plied their trade in the neighbourhood of the Circus Maximus, or the Porticus Trigemini; or the Esquiline Market, or the Great Market (on the Aventine Hill) or the Subura²....

¹ Slavery in the Roman Empire, pp. 101-102.

² *Ibid.*, p. 105.

The extent to which slave secretaries and agents acted for their masters is shown very clearly in the receipts found in the house of Caecilius Jucundus at Pompei¹.

That the State should possess slaves is not surprising; war, after all, was the affair of the State and the captive might well be State-property. What is surprising is the remarkable use made of public slaves under the Empire and the extraordinary social position occupied by them....

“‘Public slave’ came to mean before the Empire a slave of the State employed in its many offices, and the term implied a given occupation and often social position. The work of slaves of the State, slaves of the townships, and slaves of Caesar comprises much of what would now fall to parts of the higher and the whole of the lower branches of the civil services and of the servants of Municipal Corporations, working both with head and hands.... In the subordinate levels (of the Treasury) there worked numbers of clerks and financial officers, all freedmen and slaves. The business dealt with must have been of vast range.... The Mint.... the immediate head was a knight, in charge of the minting processes.... a freedman was placed; under him served freedmen and slaves.... From one branch of State service, at any rate, slaves were rigorously excluded, except on one or two occasions of exceptional stress. They were not allowed to fight in the Army because not thought worthy of honour. Doubtless other motives were present also; it would be dangerous experiment to train too many slaves systematically in the use of Arms. If, however, slaves served rarely in the fighting line, they are regularly to be found in great numbers behind it employed as servants, and in the commissariat and transport. In the fleet slaves were common enough².”

II

Let us turn to the *de facto* position of the Negro in the United States during the period in which he was slave in the eye of the law. Here are some facts³ which shed a good deal of light on his position:

“Lafayette himself had observed that white and black seamen and soldiers had fought and messed together in the Revolution without bitter difference. Down in Granville County, North Carolina, a full blooded Negro, John Chavis, educated in Princeton University, was conducting a private school for white students and was a licentiate

¹ Slavery in the Roman Empire, p. 106.

² *Ibid.*, pp. 130-147.

³ Charles C. Johnson's 'The Negro in American Civilization'.

under the local Presbytery, preaching to white congregations in the State. One of his pupils became Governor of North Carolina, another the State's most prominent Whig senator. Two of his pupils were sons of the Chief Justice of North Carolina. The father of the founder of the greatest military Academy of the State attended his school and boarded in his home Slave labour was used for all kinds of work and the more intelligent of the Negro slaves were trained as artisans to be used and leased. Slave artisans would bring twice as much as an ordinary field hand in the market. Master craftsmen owned their staff. Some masters, as the system became more involved, hired slaves to their slave artisans. Many slave artisans purchased their freedom by the savings allowed them above the normal labour expected."

"The advertisements for runaways and sales are an index to this skill. They received the same or better wages than the poor white labourer and with the influence of the master got the best jobs. The Contractors for masons' and carpenters' work in Athens, Georgia in 1838 were petitioned to stop showing preference to Negro labourers. "The white man is the only real, legal, moral, and civil proprietor of this country and state. The right of his proprietorship reached from the date of the studies of those whitemen, Copernicus and Galileo, who indicated the sphericity of the earth; which sphericity hinted to another white man, Columbus, the possibility by a westerly course of sailing, of finding land. Hence by whitemen alone was this continent discovered, the whitemen alone, aye, those to whom you decline to give money for bread or clothes for their famishing families, in the logical manner of withholding work from them defending Negroes too in the bargain." In Atlanta in 1858 a petition signed by 2 white mechanics and labourers sought protection against the black slave artisans of masters who resided in other sections. The very next year sundry white citizens were aggrieved that the City Council tolerated a Negro dentist to remain and operate in their midst. 'In justice to ourselves and the community it ought to be abated. We, the residents of Atlanta, appeal to you for justice'. A Census of free Negroes in Richmond County, Georgia, in 1819 showed carpenters, barbers, boatcorkers, saddlers, spinners, millwrights, holsters, weavers, harness makers, sawmill attendants and steamboat pilots. A Negro shoe-maker made by hand the boots in which President Munrow was inaugurated. Harriet Martineau marvelled at the slave workmanship in the delicately tiled floors of Thomas Jefferson's home at Monticello. There still stands in the big house of the old plantation, heavy marks of the hands of these

Negro craftsmen, strong mansions built of timber hewn from the original oak and pinned together by wooden pins. Negro women skilled in spinning and weaving worked in the mills. Buckingham in 1839 found them in Athens, Georgia, working alongside with white girls without apparent repugnance or objection. Negro craftsmen in the South, slave and free fared better than their brothers in the North. In 1856 in Philadelphia, of 1637 Negro craftsmen recorded, less than two-thirds could use their trades; 'because of hostile prejudice'. The Irish who were pouring into America from the very beginning of the nineteenth century were being used in the North on approximately the same motives of preference which governed Negro slavery. 'An Irish Catholic, it was argued in their favour, seldom attempts to rise to a higher condition than that in which he is placed, while the Negro often makes the attempt with success. Had not the old Puritan Oliver Cromwell, while the traffic in black slaves was on, sold all the Irish not killed in the Drogheda Massacre, into Barbados? Free and fugitive Negroes in New York and Pennsylvania were in constant conflict with this group and the bitter hostility showed itself most violently in the draft riots of the New York. These Hibernians controlled the hod carrying and the common labour jobs, opposing every approach of the Negro as a menace to their slight hold upon America and upon a means of livelihood."

III

Such was the *de facto* condition of the Roman slave and the American Negro slave. Is there anything in the condition of the Untouchables of India which is comparable with the condition of the Roman slave and the American Negro slave? It would not be unfair to take the same period of time for comparing the condition of the Untouchables with that of the slaves under the Roman Empire. But I am prepared to allow the comparison of the condition of the slaves in the Roman Empire to be made with the condition of the Untouchables of the present day. It is a comparison between the worst of one side and the best of the other, for the present times are supposed to be the golden age for the Untouchables. How does the *de facto* condition of the Untouchables compare with the *de facto* condition of the slaves? How many Untouchables are engaged as the slaves in Rome were, in professions such as those of Librarians, Amanuenses, Shorthandwriters? How many Untouchables are engaged, as the slaves in Rome were, in such intellectual occupations as those of rhetoricians,

grammarians, philosophers, tutors, doctors and artists? How many Untouchables are engaged, as the slaves in Rome? Can any Hindu dare to give an affirmative answer to anyone of these queries? The Untouchables are completely shut out from any of these avenues in which the slaves found so large a place. This proves how futile is the line of defence adopted by the Hindus to justify untouchability. The pity of the matter is that most people condemn slavery simply because they hold that for one man or class to have by law the power of life and death over another is wrong. They forget that there can be cruel oppression, tyranny, and persecution, with the train of misery, disappointment and desperation even when there is no slavery. Those who will take note of the facts stated above relating to the *de facto* condition of the slaves will admit that it is idle to condemn slavery lightly or hurriedly on the mere *de jure* conception of it. What the law permits is not always evidence of the practices prevalent in society. Many a slave would readily have admitted that they owed everything to slavery, and many did so whether they would have admitted it or not.

Slavery, it must be admitted, is not a free social order. But can untouchability be described as a free social order? The Hindus who came forward to defend untouchability no doubt claim that it is. They, however, forget that there are differences between untouchability and slavery which makes untouchability a worse type of an unfree social order. Slavery was never obligatory. But untouchability is obligatory. A person is *permitted* to hold another as his slave. There is no compulsion on him if he does not want to. But an Untouchable has no option. Once he is born an Untouchable, he is subject to all the disabilities of an Untouchable. The law of slavery permitted emancipation. Once a slave always a slave was not the fate of the slave. In untouchability there is no escape. Once an Untouchable always an Untouchable. The other difference is that untouchability is an indirect and therefore the worst form of slavery. A deprivation of a man's freedom by an open and direct way is a preferable form of enslavement. It makes the slave conscious of his enslavement and to become conscious of slavery is the first and most important step in the battle for freedom. But if a man is deprived of his liberty indirectly he has no consciousness of his enslavement. Untouchability is an indirect form of slavery. To tell an Untouchable 'you are free, you are a citizen, you have all the rights of a citizen', and to tighten the rope in such a way as to leave him no opportunity to realize the ideal is a cruel deception. It is enslavement without making the Untouchables conscious of their enslavement. It is slavery though it is untouchability. It is real though it is indirect. It is enduring because it is unconscious. Of the two orders, untouchability is beyond doubt the worse.

Neither slavery nor untouchability is a free social order. But if a distinction is to be made—and there is no doubt that there is distinction between the two—the test is whether education, virtue, happiness, culture, and wealth is possible within slavery or within untouchability. Judged by this test it is beyond controversy that slavery is hundred times better than untouchability. In slavery there is room for education, virtue, happiness, culture, or wealth. In untouchability there is none. Untouchability has none of the advantages of an unfree social order such as slavery. It has all the disadvantages of a free social order. In an unfree social order such as slavery there is the advantage of apprenticeship in a business, craft or art or what Prof. Mures calls ‘an initiation into a higher culture’. Neither the crushing of untouchability nor the refusal of personal growth was necessary inherent in slavery, especially slavery as it existed in Roman Empire. It is therefore overhasty to say that slavery is better than untouchability.

This training, this initiation of culture was undoubtedly a great benefit to the slave. Equally it involved considerable cost to the master to train his slave, to initiate him into culture. ‘There can have been little supply of slaves educated or trained before enslavement. The alternative was to train them when young slaves in domestic work or in skilled craft, as was indeed done to some extent before the Empire, by Cato, the Elder, for example. The training was done by his owner and his existing staff.... indeed the household of the rich contained special pedagogue for this purpose. Such training took many forms, industry, trade, arts and letters’.

The reason why the master took so much trouble to train the slave and to initiate him in the higher forms of labour and culture was undoubtedly the motive of gain. A skilled slave as an item was more valuable than an unskilled slave. If sold, he would fetch better price, if hired out he would bring in more wages. It was therefore an investment to the owner to train his slave.

In an unfree social order, such as slavery, the duty to maintain the slave in life and the body falls upon the master. The slave was relieved of all responsibility in respect of his food, his clothes and his shelter. All this, the master was bound to provide. This was, of course, no burden because the slave earned more than his keep. But a security for boarding and lodging is not always possible for every freeman as all wage-earners now know to their cost. Work is not always available even to those who are ready to toil and a workman cannot escape the rule according to which he gets no bread if he finds no work. This rule—no work no bread—has no applicability to the slave. It is the

duty of the master to find bread and also to find work. If the master fails to find work, the slave does not forfeit his right to bread. The ebbs and tides of business, the booms and depressions are vicissitudes through which all free wage-earners have to go. But they do not affect the slave. They may affect his master. But the slave is free from them. He gets his bread, perhaps the same bread, but bread whether it is boom or whether it is depression.

In an unfree social order, such as slavery, the master is bound to take great care of the health and well-being of the slave. The slave was property of the master. But this very disadvantage gave the slave an advantage over a freeman. Being property and therefore valuable, the master for sheer self-interest took great care of the health and well-being of the slave. In Rome, the slaves were never employed on marshy and malarial land. On such a land only freemen were employed. Cato advises Roman farmers never to employ slaves on marshy and malarial land. This seems strange. But a little examination will show that this was quite natural. Slave was valuable property and as such a prudent man who knows his interest will not expose his valuable possession to the ravages of malaria. The same care need not be taken in the case of freeman because he is not valuable property. This consideration resulted into the great advantage of the slave. He was cared for as no one was.

Untouchability has none of the three advantages of the unfree social order mentioned above. The Untouchable has no entry in the higher arts of civilization and no way open to a life of culture. He must only sweep. He must do nothing else. Untouchability carries no security as to livelihood. None from the Hindus is responsible for the feeding, housing and clothing of the Untouchable. The health of the Untouchable is the care of nobody. Indeed, the death of an Untouchable is regarded as a good riddance. There is a Hindu proverb which says 'The Untouchable is dead and the fear of pollution has vanished'.

On the other hand, untouchability has all the disadvantages of a free social order. In a free social order the responsibility for survival in the struggle for existence lies on the individual. This responsibility is one of the greatest disadvantages of a free social order. Whether an individual is able to carry out this responsibility depends upon fair start, equal opportunity and square deal. The Untouchable, while he is a free individual, had neither fair start, nor equal opportunity nor square deal. From this point of view, untouchability is not only worse than slavery but is positively cruel as compared to slavery. In slavery, the master has the obligation to find work for the slave. In a system of

free labour workers have to compete with workers for obtaining work. In this scramble for work what chances has the Untouchable for a fair deal? To put it shortly, in this competition with the scales always weighing against him by reason of his social stigma he is the last to be employed and the first to be fired. Untouchability is cruelty as compared to slavery because it throws upon the Untouchables the responsibility for maintaining himself without opening to him fully all the ways of earning a living.

To sum up, the Untouchables unlike the slaves are owned by the Hindus for purposes which further their interests and are disowned by them, when owning them places them under burden. The Untouchables can claim none of the advantages of an unfree social order and are left to bear all the disadvantages of a free social order.

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CHAPTER 4

THE INDIAN GHETTO—THE CENTRE OF UNTOUCHABILITY— Outside the Fold

What is the position of the Untouchables under the Hindu social order? To give a true idea of their position is the main purpose of this chapter. But it is not easy to strike upon the best means of conveying a realistic and concrete picture of the way the Untouchables live or rather are made to live under the Hindu social order to one who has no conception of it. One way is to draw a model plant so to say of the Hindu social order and show the place given to the Untouchables therein. For this it is necessary to go to a Hindu village. Nothing can serve our purpose better. The Hindu village is a working plant of the Hindu social order. One can see there the Hindu social order in operation in full swing. The average Hindu is always in ecstasy whenever he speaks of the Indian village. He regards it as an ideal form of social organization to which he believes there is no parallel anywhere in the world. It is claimed to be a special contribution to the theory of social organization for which India may well be proud of.

How fanatic are the Hindus in their belief in the Indian village as an ideal piece of social organisation may be seen from the angry speeches made by the Hindu members of the Indian Constituent Assembly in support of the contention that the Indian Constitution should recognize the Indian village as its base of the constitutional pyramid of autonomous administrative units with its own legislature, executive and judiciary. From the point of view of the Untouchables, there could not have been a greater calamity. Thank God the Constituent Assembly did not adopt it. Nevertheless the Hindus persist in their belief that the Indian village is an ideal form of social organization. This belief of the Hindus is not ancestral belief, nor does it come from the ancient past. It is borrowed from Sir Charles Metcalfe—a civil servant of the East India Company. Metcalfe, who was a revenue officer, in one of his Revenue Papers described the Indian village in the following terms¹:

“The village communities are little republics, having nearly everything they want within themselves and almost independent of

¹ Quoted by Baden Powell in his “Land System of British India”—Vol. I.

any foreign relations. They seem to last when nothing else lasts. Dynasty after dynasty tumbles down, revolution succeeds to revolution; Hindu, Pathan, Moghul, Maratha, Sikh, English, all are masters in turn, but the village communities remain the same. In times of trouble they arm and fortify themselves. An hostile army passes through the country, the village communities collect their cattle within their walls and let the enemy pass unprovoked. If plunder and devastation be directed against themselves, and the forces employed be irresistible, they flee to friendly villages at a distance; but when the storm has passed over, they return and resume their occupations. If a country remains for a series of years the scene of continued pillage and massacre so that the villages cannot be inhabited, the scattered villagers nevertheless return whenever the power of peaceable possession revives. A generation may pass away, but the succeeding generation will return. The sons will take the place of their fathers; the same site for the village, the same position for their houses, the same lands will be reoccupied by the descendants of those who were driven out when the village was repopulated; and it is not a trifling matter that will drive them out, for they will often maintain their post through times of disturbances and convulsion, and acquire strength sufficient to resist pillage and oppression with success. This union of the village communities, each one forming a little state in itself, has, I conceive, contributed more than any other cause to the preservation of the people of India, through all the revolutions and changes which they have referred, and is in a high degree conducive to their happiness and to the enjoyment of a great portion of freedom and independence."

Having read this description of an Indian village given by a high-placed member of the governing class, the Hindus felt flattered and adopted his view as a welcome compliment. In adopting this view of the Indian village, the Hindus have not done any justice to their intelligence or their understanding. They have merely exhibited the weakness common to all subject people. Since many foreigners are led to accept this idealistic view of the Indian village, it would be better to present a realistic picture of the Society as one finds it in an Indian village.

The Indian village is not a single social unit. It consists of castes. But for our purposes, it is enough to say—

- I. The population in the village is divided into two sections—(i) Touchables and (ii) Untouchables.
- II. The Touchables form the major community and the Untouchables a minor community.

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- III. The Touchables live inside the village and the Untouchables live outside the village in separate quarters.
 - IV. Economically, the Touchables form a strong and powerful community, while the Untouchables are a poor and a dependent community.
 - V. Socially, the Touchables occupy the position of a ruling race, while the Untouchables occupy the position of a subject race of hereditary bondsmen.

What are the terms of associated life on which the Touchables and Untouchables live in an Indian village? In every village the Touchables have a code which the Untouchables are required to follow. This code lays down the acts of omissions and commissions which the Touchables treat as offences. The following is the list of such offences:

- 1. The Untouchables must live in separate quarters away from the habitation of the Hindus. It is an offence for the Untouchables to break or evade the rule of segregation.
- 2. The quarters of the Untouchables must be located towards the South, since the South is the most inauspicious of the four directions. A breach of this rule shall be deemed to be an offence.
- 3. The Untouchable must observe the rule of distance pollution or shadow of pollution as the case may be. It is an offence to break the rule.
- 4. It is an offence for a member of the Untouchable community to acquire wealth, such as land or cattle.
- 5. It is an offence for a member of the Untouchable community to build a house with tiled roof.
- 6. It is an offence for a member of an Untouchable community to put on a clean dress, wear shoes, put on a watch or gold ornaments.
- 7. It is an offence for a member of the Untouchable community to give high sounding names to their children. Their names be such as to indicate contempt.
- 8. It is an offence for a member of the Untouchable community to sit on a chair in the presence of a Hindu.
- 9. It is an offence for a member of the Untouchable community to ride on a horse or a palanquin through the village.
- 10. It is an offence for a member of the Untouchable community to take a procession of Untouchables through the village.
- 11. It is an offence for a member of the Untouchable community not to salute a Hindu.
- 12. It is an offence for a member of the Untouchable community to speak a cultured language.

13. It is an offence for a member of the Untouchable community, if he happens to come into the village on a sacred day which the Hindus treat as the day of fast and at or about the time of the breaking of fast; to go about speaking, on the ground that their breath is held to foul the air and the food of the Hindus.

14. It is an offence for an Untouchable to wear the outward marks of a Touchable and pass himself as a Touchable.

15. An Untouchable must conform to the status of an inferior and he must wear the marks of his inferiority for the public to know and identify him such as—

- (a) having a contemptible name.
- (b) not wearing clean clothes.
- (c) not having tiled roof.
- (d) not wearing silver and gold ornaments.

A contravention of any of these rules is an offence.

Next come the duties which the Code requires members of the Untouchable community to perform for the Touchables. Under this head the following may be mentioned:

1. A member of an Untouchable community must carry a message of any event in the house of a Hindu such as death or marriage to his relatives living in other villages no matter how distant these villages may be.
2. An Untouchable must work at the house of a Hindu when a marriage is taking place, such as breaking fuel, and going on errands.
3. An Untouchable must accompany a Hindu girl when she is going from her parent's house to her husband's village no matter how distant it is.
4. When the whole village community is engaged in celebrating a general festivity such as Holi or Dasara, the Untouchables must perform all menial acts which are preliminary to the main observance.
5. On certain festivities, the Untouchables must submit their women to members of the village community to be made the subject of indecent fun.

These duties have to be performed without remuneration.

To realise the significance of these duties, it is important to note why they have come into being. Every Hindu in the village regards himself as a superior person above the Untouchables. As an overlord, he feels it absolutely essential to maintain his prestige. This prestige he cannot maintain unless he has at his command a retinue to dance attendance on him. It is in the Untouchable that he finds a ready retinue which is

at his command and for which he does not have to pay. The Untouchables by reason of their helplessness cannot refuse to perform these duties and the Hindu villager does not hesitate to exact them since they are so essential to the maintenance of his prestige.

These offences are not to be found in the Penal Code, enacted by the British Government. Nonetheless so far as the Untouchables are concerned, they are real. A breach of any of them involves sure punishment for the Untouchables. How they are enforced will be clear from Chapter 5 & 6.

Another important thing to note is that the punishment for these offences is always collective. The whole community of Untouchables is liable for punishment though the offence may have been committed by an individual.

How do the Untouchables live? How do they earn their living? Without a knowledge of the ways of earning a livelihood which are open to the Untouchables it would not be possible to have a clear idea of their place in the Hindu Society.

In an agricultural country, agriculture can be the main source of living. But this source of earning a living is generally not open to the Untouchables. This is so for a variety of reasons. In the first place purchase of land is beyond their means. Secondly even if an Untouchable has the money to purchase land he has no opportunity to do so. In most parts the Hindus would resent an Untouchable coming forward to purchase land and thereby trying to become the equal of the Touchable class of Hindus. Such an act of daring on the part of an Untouchable would not only be frowned upon but might easily invite punishment. In some parts they are disabled by law from purchasing land. For instance in the Province of Punjab there is a law called the Land Alienation Act. This law specifies the communities which can purchase land and the Untouchables are excluded from the list. The result is that in most part the Untouchables are forced to be landless labourers. As labourers they cannot demand reasonable wages. They have to work for the Hindu farmer for such wages as their masters choose to give. On this issue the Hindu farmers can combine to keep the wages to the lowest level possible for it is to their interests to do so. On the other hand the Untouchables have no holding power. They must earn or starve. Nor have they any bargaining power. They must submit to the rate fixed or suffer violence.

The wages paid to the Untouchables are either paid in cash or in corn. In parts of the Uttar Pradesh the corn given to the Untouchables as their wages is called "Gobaraha". "Gobaraha" means privy corn or corn contained in the dung of an animal. In the month of March or

April when the crop is fully grown, reaped and dried, it is spread on the threshing floor. Bullocks are made to tread over the corn in order to take the corn out of husk by the pressure of their hooves. While treading over the corn, the bullocks swallow up the corn as well as the straw. As their intake is excessive they find it difficult to digest the corn. Next day, the same corn comes out of their stomach along with their dung. The dung is strained and the corn is separated and given to the Untouchable workmen as their wages which they convert into flour and make into bread.

When the agricultural season is over the Untouchables have no employment and no means of earning a living. In such seasons they subsist by cutting grass and firewood from the jungle and sell it in a nearby town. Even when it is open it depends upon the forest guard. Only if he is bribed he will let them take some grass and firewood from the Government forest. When it is brought to the town they have always to face a buyer's market. The Hindus who are the main body of buyers will always conspire to beat down the wages. Having no power to hold out, the Untouchables have to sell their stuff for whatever is offered to them. Often times they have to walk 10 miles each way from the village to the town and back to sell their stuff.

There is no trade in which they are engaged themselves as a means of earning a livelihood. They have not the capital for it and even if they had, no one would buy from them.

All these sources of earning are obviously precarious and fleeting. There is no security. There is only one secure source of livelihood open to the Untouchables in some parts of the country known to me. It is the right to beg food from the Hindu farmers of the village. Every village has its machinery of administration. The Untouchables of the village are hereditary menials employed in the village administration. As part of their remuneration the whole body of Untouchables get a small parcel of land assigned in the ancient past which is fixed and is never increased and which the Untouchables prefer to leave uncultivated because of its excessive fragmentations. Coupled with this is given to them the right to beg for food.

Shocking as it may seem, this has become a customary right of the Untouchables and even Government takes into account the value of the food obtained by the Untouchables by begging in fixing the remuneration of an Untouchable if he were to be employed in Government job.

This right to beg for food from the Touchables is now the principal means of livelihood for 60 millions of Untouchables in India. If anyone were to move in a village after the usual dinner time, he will meet with

a swarm of Untouchables moving about the village begging for food and uttering the formula.

This statutory beggary as a means of livelihood for the Untouchables has been reduced to a system. The Untouchable families are attached to different Touchable families in the village as did the serfs and villeins to the Lords of the Manors in Medieval Europe. The Untouchable families attached to the Touchable families are at the command of the latter. This relationship has become so personal that one always hears a Touchable speaking of an Untouchable as 'my man' as though he was his slave. This relationship has helped to systematize this matter of begging food by the Untouchables from the Touchable households.

This is the Village Republic of which the Hindus are so proud. What is the position of the Untouchables in this Republic? They are not merely the last but are also the least. He is stamped as an inferior and is held down to that status by all ways and means which a majority can command. This inferiority is the destiny not merely of an individual but of the whole class. All Untouchables are inferior to all Touchables irrespective of age or qualification. A Touchable youth is above an aged Untouchable and an educated Untouchable must rank below an illiterate Touchable.

The established order is the law made by the Touchables. The Untouchables have nothing to do with it except to obey it and respect it.

The Untouchables have no rights against the Touchables. For them there is no equal right, no justice by which that which is due to the Untouchables is allowed to them. Nothing is due to them except what the Touchables are prepared to grant. The Untouchables must not insist on rights. They should pray for mercy and favour and rest content with what is offered.

This established order is a hereditary order both in status as well as in function. Once a Touchable, always a Touchable. Once an Untouchable, always an Untouchable. Once a Brahmin, always a Brahmin. Once a sweeper, always a sweeper. Under it, those who are born high, remain high; those who are born low, remain low. In other words, the established order is based on an inexorable law of karma or destiny which is fixed once for all and can never be changed. This destiny has no relation to the merits of the individuals living under it. An Untouchable however superior he may be mentally and morally, is below a Touchable in rank, no matter how inferior he may be mentally or morally. A Touchable however poor he may be, must always take rank above an Untouchable, however rich he may be.

Such is the picture of the inside life in an Indian village. In this Republic, there is no place for democracy. There is no room for equality. There is no room for liberty and there is no room for fraternity. The Indian village is the very negation of a Republic. If it is a republic, it is a republic of the Touchables, by the Touchables and for the Touchables. The republic is an Empire of the Hindus over the Untouchables. It is a kind of colonialism of the Hindus designed to exploit the Untouchables. The Untouchables have no rights. They are there only to wait, serve and submit. They are there to do or to die. They have no rights because they are outside the village republic and because they are outside the so-called republic, they are outside the Hindu fold. This is a vicious circle. But this is a fact which cannot be gainsaid.

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CHAPTER 5

UNFIT FOR HUMAN ASSOCIATION

The Untouchables as explained in the last Chapter are outside the Hindu fold. The question however remains: How far removed are they from the Hindus? What respect, what consideration do the Hindus show to them as human beings if not as Hindus? Without an answer to these questions, one cannot get a complete picture of the life of the Untouchables. The answer is there for anyone who cares to note it. The only difficulty is how to present it. There are two ways of presenting it. Either in the form of a statement or by citation of cases. I will adopt the latter. I do not wish to weary the reader with many cases. I will cite only a few which are quite telling.

The first case is from the State of Madras.

In the year 1909 an appeal was filed in the Madras High Court by Mr. Venkata Subba Reddy and others all of whom were Hindus against their conviction by the Magistrate under section 339, Indian Penal Code, for causing obstruction to the complainant and his party who were also caste Hindus. The judgment¹ of the Madras High Court which gives the facts of the case and illustrates the position of the Untouchables vis-a-vis the Hindus in a very striking manner. The judgment is therefore worth quoting. It is as follows:

“The Appellants (Venkata Subba Reddy and others) have been convicted of wrongful restraint for having caused certain Pariahs² to stand in the public street in the vicinity of a temple with the object of preventing the complainant from conducting a procession from the temple through the street. It is found that the complainant, deterred by fear of the pollution which he would have suffered had he passed near the *Pariahs*, did not conduct the procession, and that the accused maliciously caused the *Pariahs* to take up their positions in the street with the sole object of deterring the complainant from going where he had a right to go.

We do not think that the accused have committed the offence of wrongful restraint; in our opinion this act did not amount to

¹ It is reported in 11 Criminal Law Journal, p. 263.

² The Pariahs are an Untouchable community in Madras.

an obstruction within the meaning of section 339. The Pariahs were no obstruction; in fact there was nothing to prevent the complainant from taking his procession past them and they had a right to be where they were; and it is not suggested that their presence was intended to cause fear of physical injury or any fear that anything would happen to the complainant except the pollution of the procession by their presence.

It was not the presence of the *Pariahs* but the complainant's own disinclination to go near them which prevented him from going where he would; it was his own choice which kept him from leaving the temple as Mr. Kuppaswami Aiyer put it, it was with his own consent that he remained there and there was no fear of injury within the meaning of the Penal Code which would prevent that consent from being a free consent. If it were otherwise, it would follow that a person in the position of the complainant would be justified in complaining of wrongful restraint against any *Pariah*, who having been lawfully in the public street on his own business, refused to move when directed to remove himself to a distance, knowing that if he remained, the complainant would be deterred by fear of pollution from passing near him.

It is clear that there would be no wrongful restraint in such a case and we think, it makes no difference that the *Pariahs* were posted by the accused¹.

We therefore set aside the conviction and sentence and direct refund of the fines if paid."

The case is very illuminating. There were in this case two parties. Venkata Subba Reddy was the leader of one party. Both parties were caste Hindus. The quarrel between the parties was over the right to take out a procession. Venkata Subba Reddy wanted to stop his opponents from taking out a procession and did not know how best to do it. It struck him that the effective way would be to get a few Untouchables and ask them to stand on the road and hold fast to it. The trick succeeded and his opponents could not dare to go in the procession for fear of being polluted. The fact that the Madras High Court gave a judgment to the effect that making the *Pariahs* stand on the road does not constitute obstruction in the legal sense of the term is another matter. The fact remains that the mere presence of the *Pariahs* was enough to drive the Hindus away. What does this mean? It means that the Hindus have an absolute feeling of revulsion towards the Untouchables.

¹ The trial Magistrate had held that the posting of the Pariahs was enough to cause obstruction and had held the accused guilty.

The next case is equally illuminating. It is a case of an Untouchable school teacher in a village in Kathiavar and is reported in the following letter which appeared in the '*Young India*' a journal published by Mr. Gandhi in its issue of 12th December 1929. It expresses the difficulties he had expressed in persuading a Hindu doctor to attend to his wife who had just delivered and how the wife and child died for want of medical attention. The letter says:

"On the 5th of this month a child was born to me. On the 7th, she fell ill and suffered from loose stools. Her vitality seemed to ebb away and her chest became inflamed. Her breathing became difficult and there was acute pain in the ribs. I went to call doctor—but he said he would not go to the house of a Harijan nor was he prepared to examine the child. Then I went to Nagarseth and Garasia Darbar and pleaded them to help me. The Nagarseth stood surety to the doctor for my paying his fee of two rupees. Then the doctor came but on condition that he would examine them only outside the Harijan colony. I took my wife out of the colony along with her newly born child. Then the doctor gave his thermometer to a Muslim, he gave it to me and I gave it to my wife and then returned it by the same process after it had been applied. It was about eight o'clock in the evening and the doctor on looking at the thermometer in the light of a lamp said that the patient was suffering from pneumonia. Then the doctor went away and sent the medicine. I brought some linseed from the bazaar and used it on the patient. The doctor refused to see her later, although I gave the two rupees fee. The disease is dangerous and God alone will help us.

The lamp of my life has died out. She passed away at about two o'clock this afternoon."

The name of the Untouchable school teacher is not given. So also the name of the doctor is not mentioned. This was at the request of the Untouchable teacher who feared reprisals. The facts are indisputable.

No explanation is necessary. The doctor, who in spite of being educated refused to apply the thermometer and treat an ailing woman in a critical condition. As a result of his refusal to treat her, the woman died. He felt no qualms of conscience in setting aside the code of conduct which is binding on his profession. The Hindu would prefer to be inhuman rather than touch an Untouchable.

The third case is taken from '*Prakash*' of 23rd August 1932:

"In the village of Jagwal, tahsil Jafarwal on the 6th August, a calf fell into a well. Rammahashaya, a Dom¹ by caste was standing nearby. He at once jumped into the well and caught the calf in his arms. On three or four men coming to help, the calf was safely

¹ Dom is an Untouchable community of U.P. and Bihar.

rescued from the well. The Hindus of the village, however, raised a hue and cry that their well had been defiled and victimised the poor man. Fortunately, a barrister had come to the scene. He soundly rebuked the men who were tormenting Sadhuram and thus brought them to their senses. Thus, the man's life was saved otherwise no one knows what might have happened."

What is important: saving of the calf by the Untouchable and his polluting the well or the death of the calf and saving the well from being polluted by the Untouchable? From the point of view of the Hindus, it would be better if the calf had died than an Untouchable even for the purpose of saving the calf should have polluted the well.

Another case of similar sort is reported in the '*Bombay Samachar*' of 19th December 1936:

"In Kaladi, a village of Calicut, the child of a young woman fell into a well. The woman raised an alarm but none present dared to go down the well. A stranger who was passing by jumped into the well and rescued the child. Later, when the people asked the benefactor who he was, he said, he was an Untouchable. Thereupon instead of being thankful, the man was fully abused and assaulted as he had polluted the well."

How unclean and unfit for association an Untouchable is to a Hindu be evident from the following incident reported in the '*Adi Hindu*' of Lucknow for July 1937: It says:

"An employee of the Madras Holmes Company, who claimed to be one of the high caste persons, passed away recently. When at the cremation ground his pyre was set fire to, his friends and kinsmen threw rice on it. Among these friends unfortunately there was an Untouchable, an Adi-Dravida of Madras. He also joined in the throwing of the rice. At this, the high caste Hindus rebuked him for defiling the pyre. This led on to a heated argument and the upshot was that two men were stabbed in the stomach, one of them died at once upon reaching the hospital and the condition of the other one is said to be critical."

There is one other incident more telling than this. On the 6th of March 1938, a meeting of the Bhangis was held at Kasarwadi (behind Woollen Mills) Dadar, Bombay, under the Chairmanship of Mr. Indulal Yadnik. In this meeting, one Bhangi boy narrated his experience in the following terms:

"I passed the Vernacular Final Examination in 1933. I have studied English up to the 4th Standard. I applied to the Schools Committee of the Bombay Municipality for employment as a teacher but I failed as there was no vacancy. Then, I applied to the

Backward Classes Officer, Ahmedabad, for the job of a Talati (village Patwari) and I succeeded. On 19th February 1936, I was appointed a Talati in the office of the Mamlatdar of the Borsad Taluka in the Kheda District

Although my family originally came from Gujarat, I had never been in Gujarat before. This was my first occasion to go there. Similarly, I did not know that untouchability would be observed in Government offices. Besides in my application the fact of my being a Harijan was mentioned and so I expected that my colleagues in the office would know before hand who I was That being so, I was surprised to find the attitude of the clerk of the Mamlatdar's office when I presented myself to take charge of the post of the Talati.

The Karkun contemptuously asked, "Who are you?" I replied, "Sir, I am a Harijan"; He said, 'Go away, stand at a distance. How dare you stand so near me. You are in office, if you were outside I would have given you six kicks, what audacity to come here for service!" Thereafter, he asked me to drop on the ground my certificate and the order of appointment as a Talati. He then picked them up. While I was working in the Mamlatdar's office at Borsad I experienced great difficulty in the matter of getting water for drinking. In the verandah of the office there were kept cans containing drinking water. There was a waterman incharge of these water cans. His duty was to pour out water to clerks in office whenever they needed it. In the absence of the waterman they could themselves take water out of the cans and drink it. That was impossible in my case. I could not touch the cans for my touch would pollute the water, I had therefore to depend upon the mercy of the waterman. For my use there was kept a small rusty pot. No one would touch it or wash it except myself. It was in this pot that the waterman would dole out water to me. But I could get water only if the waterman was present. This waterman did not like the idea of supplying me with water. Seeing that I was coming for water he would manage to slip away with the result that I had to go without water and the days on which I had no water to drink were by no means few.

I had the same difficulties regarding my residence. I was a stranger in Borsad. No caste Hindu would rent a house to me. The Untouchables of Borsad were not ready to give me lodgings for the fear of displeasing the Hindus who did not like my attempt to live as a clerk, a station above me. Far greater difficulties were with regard to food. There was no place or person from where I could get my meals. I used to buy 'Bhajhas' morning and evening, eat them in

some solitary place outside the village and come and sleep at night, on the pavement of the verandahs of the Mamlatdar's office. In this way, I passed four days. All this became unbearable to me. Then I went to live at Jentral, my ancestral village. It was six miles from Borsad. Every day I had to walk eleven miles. This I did for a month and a half.

Thereafter the Mamlatdar sent me to a Talati to learn the work. This Talati was in charge of three villages, Jentral, Khapur and Saijpur. Jentral was his headquarters. I was in Jentral with this Talati for two months. He taught me nothing and I never once entered the village office. The headman of the village was particularly hostile. Once he had said 'you fellow, your father, your brother are sweepers who sweep the village office and you want to sit in the office as our equal? Take care, better give up this job.'

One day the Talati called me to Saijpur to prepare the population table of the village. From Jentral I went to Saijpur. I found the Headman and the Talati in the village office doing some work. I went, stood near the door of the office and wished them 'good morning' but they took no notice of me. I stood outside for about 15 minutes. I was already tired of life and felt enraged at being thus ignored and insulted. I sat down on a chair that was lying there. Seeing me seated on the chair the Headman and the Talati quietly went away without saying anything to me. A short while after, people began to come and soon a large crowd gathered round me. This crowd was led by the Librarian of the village library. I could not understand why an educated person should have led this mob. I subsequently learnt that the chair was his. He started abusing me in the worst terms. Addressing the Ravana (village servant) he said 'who allowed this dirty-dog of a Bhangi to sit on the chair?' The Ravana unseated me and took away the chair from me. I sat on the ground. Thereupon the crowd entered the village office and surrounded me. It was a furious crowd raging with anger, some abusing me, some threatening to cut me to pieces with Dharya (a sharp weapon like the sword). I implored them to excuse me and to have mercy upon me. That did not have any effect upon the crowd. I did not know how to save myself. But an idea came to me of writing to the Mamlatdar about the fate that had befallen me and telling him how to dispose of my body in case I was killed by the crowd. Incidentally, it was my hope that if the crowd came to know that I was practically reporting against them to the Mamlatdar they might hold their hands. I asked the Ravana to give me a piece of

paper which he did. Then with my fountain pen I wrote the following on it in big bold letters so that everybody could read it:

“To

The Mamlatdar, Taluk Borsad.

Sir,

Be pleased to accept the humble salutations of Parmar Kalidas Shivram. This is to humbly inform you that the hand of death is falling upon me today. It would not have been so if I had listened to the words of my parents. Be so good as to inform my parents of my death.”

The Librarian read what I wrote and at once asked me to tear it off, which I did. They showered upon me innumerable insults. ‘You want us to address you as our Talati? You are a Bhangi and you want to enter the office and sit on the chair? I implored for mercy and promised not to repeat this and also promised to give up the job. I was kept there till seven in the evening when the crowd left. Till then the Talati and the Mukhiya had not come. Thereafter I took fifteen days’ leave and returned to my parents in Bombay.”

There is another facet of the social outlook of the Hindus towards the Untouchables which cannot be neglected. This outlook is best illustrated by a study of the following cases. In the ‘*Alfzal*’ of 8th September 1943:

“It was reported from Nasik on 1st September that the Hindus of a village attacked an Achchut family; tied the hands and feet of an elderly woman, placed her on a pile of wood which was subsequently set on fire. All this because they thought she was the cause of the Cholera in the village.”

The ‘*Times of India*’ of August 29, 1946.

“The Harijan quarters of a village in Kaira District are reported to have been raided by Caste Hindus on suspicion that the Harijans were causing the death of cattle by witchcraft.

It is alleged that about 200 villagers armed with sticks raided the Harijan quarters and tying an old woman to a tree, burnt her feet. Another woman is reported to have been belaboured.

The Harijans evacuated the village in panic, but Mr. Chhotabhai Patel, Secretary of the District Harijan Sevak Sangh who was apprized of the incidents has brought back the Harijans to the village and applied to the authorities for their protection.

A similar incident is reported from another village, where Harijans are alleged to have been severely belaboured.”

The matter did not end there. There was a recurrence of violence in which the whole body of Hindus are reported to have taken part in

general assault on the Untouchables. The news appeared in the '*Bharat Jyoti*' of 22nd September 1946 which is reproduced below:

“Five Harijans, including one woman, were injured seriously when a crowd of villagers attacked them with dhahas and lathis in a village in Borsad Taluka in Kaira District according to a report received by the Secretary of the Borsad Taluka Harijan Sevak Sangh. The attack was a sequel to the death of about seven buffaloes which the villagers attributed to black-magic practised by the Harijans.

The injured have been sent to hospital. Police rushed to the spot, and some persons have been arrested.

The villagers, it is learnt, are threatening the Harijans that if they make any complaints to the authorities they would be burnt alive.

Such incidents often occur in Kaira villages, and the District Magistrate of Kaira has instructed all police and other executive officers to take strong measures against such harassment of Harijans.”

The tale told by these cases is clear and simple. No comment is necessary. To the average Hindu, the Untouchable is not fit even for human association. He is the carrier of evil. He is not a human being. He must be shunned.

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PART II

CHAPTER 6

UNTOUCHABILITY AND LAWLESSNESS

There are many people who must be wondering as to how such an established order so full of inequalities could have survived. What are the forces which go to support it? Of the forces which sustain the system the most important is the determination of the Hindus to maintain it at all cost. The Hindus are prepared to use every means to suppress the Untouchables whenever the Untouchables try to upset it even in the slightest degree. The ordinary non-violent Hindu will not hesitate to use the utmost violence against the Untouchables. There is no cruelty which he will not practice against them to sustain the established order. Not many will readily believe this. But this is a fact. For those who have any doubt on the point, I reproduce below some cases of tyrannies and oppressions practised by the Hindus against the Untouchables as have been reported from time to time in the newspapers:

I

The following news item appeared in the “*Tej*” of Delhi in its issue of 4th September 1927:

“The Shiv Temple of Vykam has been desecrated by the Harijans by their coming too near to the temple. Now the Hindus of that area have decided that the ceremony of purifying the temple should be elaborately performed at great expense before the place is fit for worship again.”

The correspondent of ‘*Pratap*’ reports the following incident which appears in its issue of 2nd September 1932:

“Meerut August 1932. On the day of Janmashtami some Harijans tried to gain admittance into Caste Hindu Temple but nothing came except widespread troubles and unrest. This year the local Dalit Association has decided that if the doors of the temples are not opened to them, they will undertake Satyagraha. When the Hindus came to know of this, they started making plans to defeat the moves of the Harijans. At last on the night of Janmashtami, the members

of the Harijan community came in the form of a procession and tried to gain access to the temple Gods. The priests, however, refused them permission to enter and said, "You can have audience of the Gods standing outside on the street." Upon this a great crowd gathered at the place. The priests tried to enter the temple and thus a clash took place between the two parties and blows were freely exchanged."

The Hindus do not allow the Untouchables to enter the Hindu temples. It would be thought that they would allow the Untouchables to have their own temples and install therein the image of God. That is a mistake. The Hindus will not allow even that. It is enough to quote two instances. One is from the '*Pratap*' of 12th February 1923:

"In the District of Agra, a Chamar who had seen a Brahmin worshipping the image of Vishnu in his house, began to do the same himself. When the Brahmin came to know of this he was most indignant and with the help of a number of villagers caught hold of the ill-fated Harijan, gave him a sound beating saying, 'How dare you try to win over the God Vishnu'. Finally, they stuffed his mouth with filth and left him. In sheer desperation the Chamar abandoned the Hindu faith and embraced Islam."

The other is from the '*Hindu*' of 4th July 1939:

"A meeting of the Bellary District Harijan Advisory Board was held on 29th June 1939 at the Collector's Bungalow. Mr. A. D. Crombie, CIE., ICS., President of the Committee and Collector presided.

With regard to the grievances of the Harijans of Narayanadevarakeri including allegations of extraction of forced labour from them and harassment by money-lenders, the Committee decided to call for official report, with a view to taking action, if necessary.

The religious disabilities of the Harijans residing in Kudathini village were brought to the notice of the Committee. It was alleged that though the Harijans constructed a temple in their colony as long as twelve years ago, they could not install the image of God which was also ready in the temple, owing to the objections raised by a section of the Caste Hindus in the place to the Harijans taking out the image in procession in the village before the installation."

II

How any attempt to take water from the Hindu well is dealt with by the Hindus can be seen from the following instances. The first one appeared in the '*Pratap*' of 12th February 1923:

“Mahashaya Chhedi Lalji has reported that a Chamar was going for idol worship, when on the way he felt thirsty. He cast his own iron pail into a well and drew out some water. Upon this he was rebuked by a high caste Hindu and then soundly beaten and locked up in a room. As it happened, I was passing by and when I enquired why this man was being kept under lock and key, the Diwan Saheb replied that this man cast his own pail into our well and wants to profane religion.”

That even the Hindu women will not hesitate to take part in the assaults committed by the Hindus against the Untouchables who dare to take water from the Hindu well is a fact. Compare the following report which appeared in the ‘*Pratap*’ of 26th February 1932:

“On 19th February 1932, a very tragic incident took place in the village of Pul Bajwan. This happened when Mahashaya Ramlal went to fetch some water from a well, the same well at which on 13th January 1932 some Rajputs had belaboured Mahashaya Ramlal and his companion, Pandit Bansilal. At that time, a crowd of Rajput women came up armed with all sorts of bats and sticks and gave such a sound beating to the Mahashaya that it is difficult to describe. All his body was covered with blood by the time the Rajput women had done with him. At this time, he is admitted in the hospital of Phuklian.”

That even the support of an officer of Government in the exercise of their right to take water from the well will not save the Untouchables from assault is clear from the following incident which appeared in the ‘*Milap*’ of 7th June 1924:

“Some days ago, an officer of the Canal Department came to the village of Rahian in Tehsil Sabha and he ordered some Megha Untouchables to help in drawing out water from a well. At first they refused but the officer rebuked them sternly and forced them to draw water. The next day the Hindus gathered at the well and sent for the Megha through a Chowkidar and asked them why they dared to climb up to the well. One Megha replied that they were obliged to do so and it was no fault of theirs. For this cheek he was attacked by the Hindus with sticks and hands and until the time of writing this, he is lying unconscious. Although the doctor has declared that the injuries are minor ones, a report of attempted murder and unlawful assembly has been filed with the Police. This however has been ignored and the indifference of the police has created a feeling of great insecurity among the Megha people. The villagers are persecuting the Meghas very much, even their cattle are not allowed to drink water and all wells and ponds have been closed to them.”

The Untouchables cannot take water from the Hindu well is not all. They must not build a pucca brick well for themselves even though they may have the money to do so. For having a pucca well for themselves means an attempt to raise themselves to the status of the Hindus which is contrary to the Established Order.

The ‘*Milap*’ of 6th June 1934 reports the following incidents:

“Lala Ram Prashadji, Secretary of the Achhut Udharak Committee, Punjab, has written to the following effects:

“During this hot season, complaints are being received from everywhere that the supply of water is becoming a great problem. The Depressed Class people, who have no wells of their own sit near the well with their vessels in their hands. If someone is kind enough to pour out some water, well and good, otherwise they sit helpless. In some places, however, no one is allowed to pour out water to these people even for money and if anyone does so, mortal fights ensue. Not only is the use of the village wells forbidden to them, but they are not even allowed to make wells of their own with their own money.”

To the same effect is the incident reported in the “*Tej*” of 21st April 1924:

“The Chamars of the village, Opad, numbered about 250. About a month and half ago, they gave up drinking water out of the leather bags of the Muslim water carriers (on the suggestions of the Arya Samaj Pandits?) and now they are in great difficulties about their water supply. The Jats of the village not only refuse to let them draw water out of the village wells but do not even let them make wells of their own. The poor Chamars are living on water from ponds and ditches. Yesterday, Dr. Sukhdevji, Secretary of Dalit Sudhar (Harijan Uplift) Committee came to make investigations in Upad and saw everything with his own eyes. He found the condition of the Chamars abject beyond words and their persecution by the Jats a real fact.”

The following is from the ‘*Times of India*’ dated 9th May 1931:

“In the Baroda State the Untouchables are supposed to be better treated than in the adjoining British territory, because the State has made laws recognising the equality of the Antyaja with caste people. And yet in Padras Taluka the other day the standing crop of a poor Antyaja woman was fired and she herself brutally assaulted, because she dared to send her little son to the local primary school. Now comes a tale of woe from Chanasma in Kadi Prant where an artisian well has been sunk and built with the labour of the Antayajas who were promised the use of the well. But when the well was ready for

use they were first flatly told it was not for them, and when they complained to the Punch the latter generously allowed them to lay a pipe 500 feet long at the end of which they could have a tap all for themselves. Now an unexpected owner of the land at the tap had cropped up, so the pipe line was taken somewhere near to the local tank, but this meant pollution of the tank and therefore of the dirty linen washed there. So the tap was accommodated elsewhere. But did this mean the end of the trouble? No, the enraged caste people have cut the pipe line several times and the Antyajias are without water to drink. How very 'adequate' to use Mr. Gandhi's term, must the Untouchables feel the treatment given to them by their coreligionists."

Mr. Sanjana in a letter to the *'Times of India'* of the 7th November 1928 reports what Mr. Thakkar saw in the year 1927 regarding the awful plight of the Untouchables in the matter of water.

"In Balsad Taluk, Mr. Thakkar saw a Bhangi woman waiting near a well for some merciful 'people' to give her some water. She had waited from morning till noon, and none had given her any. But the most exquisite touch of spirituality is revealed in the manner of giving water to the Bhangis; it cannot be poured direct into their pots—any 'people' doing so would get polluted. Says, Mr. Thakkar, 'once our teacher Chunibhai had shown the temerity of pouring water direct from his bucket into a Bhangi's pot and he had received a stern warning in consequence 'Master this sort of thing won't be (tolerated) here'. A small cistern is built below the slope of the well. Anyone who is moved by pity may pour some water in the cistern. A bamboo pipe just out of the cistern, and the Bhangi women must put her pot under the pipe, and it may get filled in an hour or so. For, adds Mr. Thakkar, it is only the unwanted water remaining over in the bucket of the woman drawing it that is as a rule thrown into the cistern, and that too if she takes pity on the waiting Bhangi woman."

III

Under the established order, the Untouchables have no right to education and certainly have no right to be admitted to the village school. Those Untouchables who have dared to make a breach in these rules of the Established Order have been severely punished by the Hindus. The following are only a few of the numerous cases that have happened:

From the '*Arya Gazette*' of Lahore dated 30th June 1921:

"A Mahashaya wrote an article in the paper '*Young India*', in which he reported that in district Surat there is a village called Sisodri. In a very short span of time it has made such progress on the path of nationalism, that it could be held up as a model of non-cooperation. With all this, however, the old contempt for the Harijan remains. The writer says that in the nationalist school of that place, I saw a Dhed caste child sitting all apart in one corner of the class room and proclaiming by his very looks that he was an untouchable. I asked the students why they did not let this boy sit with them and they replied: that this could not be until the Harijan left drinking wine and eating meat. The Harijan boy at once said that he had already given these up. The high caste students could say nothing now."

From the '*Pratap*' of 12th February 1923:

"Mahashaya Santramji has reported :

It happened recently that a Brahmin teacher was appointed by the Government to go and teach in a village school for Chamar boys. When he came there, the Brahmins, Kshatrias and others boycotted the teacher saying, 'You have come here to teach the Chamars and raise them to our level. Have You?'

From the '*Tej*' of 11th April 1924:

"Swami Shradhanandji has written:

There was a nationalist school in Khatsayas which I visited towards the end of November 1921. When I enquired how many Harijan children read there, I was told only three and they too, sit outside the class room in the verandah. In my lecture I objected to this procedure and said that in a nationalist institution, it was only proper that these boys should be allowed to sit inside the class room. The manager of the school acted on my advice. The next day the benches of the school were all deserted and till this day the Grand building of that nationalist school stands locked out and dreary."

From "Milap" dated 18th April 1924:

"Here is an incident from Hoshungabad. The district Council sent a circular letter to the schools that the Harijan children should be educated in the schools. The headmasters began to act on the orders. When one of the schools admitted some Harijan children the Honorary Magistrate took great offence at it and withdrew his children from that school; other guardians also followed suit and all together got a meeting of the school committee convened and resolutions passed in it, that the education of Harijans in the school

is against the Public wishes. They said that after coming into contact with Harijans, the Brahmin children change their Janayu (a religious thread) therefore this school committee could not undertake the education of Harijan children.”

From “*Pratap*” dated 3rd April 1932:

“Ahmedabad, 1st April 1932: A report has been received from the village of Nawagaon, Baroda State, that ever since the Harijan schools were closed down and permission given to the Harijans to enter the ordinary village schools, the villagers have been subjecting the Harijans to endless persecution. It is reported that the thousand stacks of hay belonging to Harijan farmers, were burnt down, Kerosine oil has been sprinkled into the Harijan wells and attempts made to set fire to their houses. A Harijan boy was assaulted on his way to school and a general boycott of the Harijans has been declared.”

The “*Hindustan Times*” in its issue of 26th May 1939 says:

“Several persons are reported to have raided a night school in village Catipore in the district where Kisans and others used to be taught. The teacher was caught hold of by them, and asked to close the school on the ground that the boys of the Untouchables, after acquiring education will begin to assert themselves to treat them on a footing of equality. When the teacher refused to do so he was belaboured and the students were asked to disperse.”

The last instance I would like to refer occurred in the year 1935 in the village of Kavitha in Dholka Taluka of the Ahmedabad District of the Bombay Presidency. The incident occurred on 8th August 1935.

As the Bombay Government had issued orders requiring the admission of the children of the Untouchables in public schools, the Untouchables of village Kavitha thought of taking advantage of the order. What happened to them is reported below:

“On 8-8-1935, the Untouchables of the village Kavitha took four of their children to be admitted in the village school. Many caste Hindus from the village had gathered near the school to witness this. This occasion for admission passed off quietly and nothing untoward happened. From the next day however the caste Hindus of the village withdrew their children from the school as they did not like their children sitting with those of the Untouchables and getting themselves polluted.”

“Some time thereafter an Untouchable from the village was assaulted by a Brahmin on 13th August 1935. The male members of the Untouchables of the village had come to Dholka to file a criminal complaint against the Brahmin in the court of the

Magistrate. Coming to know that the adult members of the Untouchables were absent the Hindus of the village invaded the quarters of the Untouchables. They were armed with sticks, spears and swords. Among the invaders were caste Hindu women. They started attacking the old men and women of the Untouchables. Some of the victims fled into the jungle, some shut themselves up. These invaders directed their vehemence against those Untouchables who were suspected to have taken a lead in the matter of the admission of their children in the village school. They broke open their doors and not finding them in, they broke the tiles and the rafters of the roofs over their houses.

“Terror-stricken these Untouchables men and women who were assaulted and beaten were anxious about the safety of those of their elders who had gone to Dholka and who were expected back that night. The caste Hindus knowing that the leaders of Untouchables who had gone to Dholka would be returning had concealed themselves behind the bushes and shrubs on the way to the village. Having come to know of this, an old Untouchable woman sneaked out of the village in the dark, met the leaders who were returning and informed them that armed gangs of caste Hindus were hiding themselves to waylay them and that therefore they should not come into the village. They refused to listen fearing that the caste Hindus might do greater mischief in their absence. At the same time, they were afraid that if they did enter they might be assaulted. They therefore decided to wait outside the village in the field till after midnight. In the meantime, the gang of caste Hindus who were in ambush waited and waited and finally gave up the game and retired. The leaders of the Untouchables entered the village after about 3 a.m. in the night. If they had come earlier and met the murderous gang they would probably have been done to death. On seeing the harm done to person and property they left the village for Ahmedabad before day break, and informed the Secretary of the Harijan Sevak Sangh, a body organized by Mr. Gandhi to look after the welfare of the Untouchables. But the Secretary was helpless. Not only did the caste Hindus use physical violence, but they conspired to make the life of the Untouchables intolerable. They refused to engage them as labourers; they refused to sell them foodstuffs. They refused to give them facilities for grazing their cattle and they used to commit stray assaults on Untouchable men and women. Not only this, but the caste Hindus in their frenzy poured kerosine oil in the well from which the Untouchables used to get their supply of drinking water. This, they did for days together. The result was that the Untouchables of the

village had no water. When things reached this stage the Untouchables thought of filing criminal complaint before a Magistrate which they did on 17th October, making some of the caste Hindus as the accused."

"The strange part of the case is the part played by Mr. Gandhi and his henchman, Sardar Vallabhbhai Patel. With all the knowledge of tyranny and oppression practised by the caste Hindus of Kavitha against the Untouchables all that Mr. Gandhi felt like doing was to advise the Untouchables to leave the village. He did not even suggest that the miscreants should be hauled up before a court of law. His henchman Mr. Vallabhbhai Patel, played a part which was still more strange. He had gone to Kavitha to persuade the caste Hindus not to molest the Untouchables. But they did not even give him a hearing. Yet this very man was opposed to the Untouchables hauling them up in a court of Law and getting them punished. The Untouchables filed the complaint notwithstanding his opposition. But he ultimately forced them to withdraw the complaint on the caste Hindus making some kind of a show of an understanding not to molest, an undertaking which the Untouchables can never enforce. The result was that the Untouchables suffered and their tyrants escaped with the aid of Mr. Gandhi's friend, Mr. Vallabhbhai Patel.

IV

The Untouchables are claimed by the Hindus as Hindus. But the dead body of an Untouchable cannot be cremated in the Hindu cremation ground.

The "*Free Press*" of 7th June 1946 reports the following:

"Citing a recent criminal case in which two Madura Harijans were sentenced to four months rigorous imprisonment for doing an act which was likely to wound the feelings of others, Mr. A. S. Vaidyanatha Iyer in a communication to the press draws the attention of the public to the 'cruel suffering which the Harijans have to bear by reason of Untouchability.'

Mr. Vaidyanatha Iyer says: 'A Madura Harijan who had lost his eldest child cremated the body in the Madura municipal burning ghat in a shed which is said to be set apart for caste Hindus instead of in the one reserved for Harijans. The Harijan's plea was, he did not know of any such reservation, that it was drizzling and that the former place was better. No caste Hindu raised any objection nor was there any proof that anyone's feelings were wounded. The incident came to the notice of the Madura police who prosecuted the father of the child and another near relation on the ground that such act was likely to wound the feelings of others because the Harijans were Untouchables.

Mr. Iyer adds, "he brought this case to the notice of the Madras Ministry."

The '*Savadhan*' of 22nd April 1945 says:

"On 18th March 1945, a sweeper died in the village Floda, District Muzaffarnagar. The Sweepers of the village took the dead body to the cremation grounds. This enraged the Tyagi Brahmins of the village who abused the sweepers for their audacity in bringing their dead to the caste Hindu grounds. The sweepers protested that they were Hindus and would cremate the dead. But the Brahmins were not at all amenable to reason and told the sweepers that irrespective of their being Hindus and Muslims they must bury their dead and if they failed to do it they (Brahmins) would themselves bury the dead body. When the poor sweepers were thus threatened and were also afraid of being beaten they buried the dead body."

This is not all. There is a further point to be noted. The Touchable Hindus dispose of the dead body by cremating it. Just because it is a presumption on the part of the Untouchables to initiate the ways of the Hindus which are marks of their superior status, the Untouchables must necessarily bury their dead even if they do not wish to do so.

An instance of this compulsory burial was reported in the '*Milap*' of 6th June 1924:

"The chief cause of the awakening among the Untouchables is the tyranny of the Hindus. I was not aware of this but the reports that I have received from various workers has caused me much pain. From one place I am informed that the Untouchables of that place are not allowed to even burn their dead. This, however it seems has created a new spirit among the sweepers of the place. They have started burying their dead with the head downwards probably to distinguish themselves from others who bury the corpse in a lying position. The Sweepers think that if they also act in imitation of others, it is derogatory."

V

The wearing of the sacred thread is evidence of noble birth. The Untouchables with the idea of ennobling themselves thought of wearing the sacred thread. The atrocities committed by the caste Hindus on the Untouchables of the village Ringwari in Garhwal District in U. P. are reported in the '*National Herald*' of 6th June:

"After leading a fugitive life for well nigh two months as a result of persecution at the hands of the caste Hindus, ten families consisting of 33 Harijans have now been able to return to their homes in village Ringwari of Chandkot with the help of the district

authorities of Garhwal. These Harijans, it may be recalled, had taken full advantage of the social movement started for their uplift by Mahatma Gandhi and the late Swami Shradhanand. They had taken the sacred thread and made it a part of their duty to perform 'Sandhya'. But this was resented very much by the caste Hindus of Garhwal as according to them it amounted to a virtual invasion of their 'right and privileges'. The resentment found expression in a number of assaults on Harijans and persistent social persecution. They were asked to desist from using 'polies' and 'palkies' in their marriage procession and four of them were compelled at one place to kill a buffalo and eat its flesh. At Ringwari these atrocities reached a climax, when all the water springs, grazing grounds and other public places were closed to the Harijans who refused to submit to the caste Hindus. In consequence the abovementioned ten families had to leave their villages at dead of night, in order to avoid further persecution."

Other instances of similar sort are given below:

1. "Some Arya Samajists managed to raise the caste of some Untouchables and gave them the sign of the caste, namely, the religious thread worn round the neck. But the mass of the Sanatanists could not bear even this because their religion does not allow the Untouchables to wear the thread. This is why thread-wearing Untouchables are daily persecuted by the high caste Hindus."

2. "Bhagat Harichand of Moila, District Mirpur, Jammu State was purified by the Arya Samajists and given the thread to wear. The Hindu Jats of the place began to victimize him and ask him to put off the thread. Harichand however remained steadfast on his religion. At last one day when the Bhagat Harichand had finished the Gaitri Path, he was caught hold of by the Hindu Jats and severely beaten and his thread broken. The cause of their incensement was this that wheareas before the Shudh, Shudha Meghs had addressed the Jats as 'Gharib Nawaz' (the benefactors of the poor), now they only use 'Namastey'."

From the *Arya Gazette* dated 14th September 1929:

"The Hindu Rajputs of the village Ramani, near the town Berhampur, Distt. Gurdaspur, called the Untouchables of their villages from their homes and ordered them to put off the holy thread at once and swear never to put it on again otherwise their lives were in danger. Upon this Untouchables calmly replied 'Maharaj why are you angry with us. Your own brothers, the Arya Samajists have very kindly put these threads round our necks and

have ordered us to always protect them for they are the true symbols of the Hindu faith. If you take objection to them, you can tear them off our bodies with your own hands'. Upon this the Rajputs fell upon the poor men with their lathis and kept on thrashing them for a long time. The Untouchables put up with this persecution with great fortitude and refused to resist or protest. But their torments took no pity on their helpless condition and three or four Rajputs actually tore the holy thread off the body of a Harijan named Gori Ram and bruised his body with a hoe in mock imitation of the sign of the thread."

From the 'Milap' dated 12th October 1929:

"The Rajputs of the village Bahmani have from time past launched a programme against the Untouchables. There is a case going on in the court about the breaking of a holy thread and there is another case too, about an Untouchable woman who was going on to the field to cut the harvest on 7th October 1929 when a Rajput severely thrashed her and caused serious bruises. The woman was brought home on a bed."

VI

What happens to an Untouchable if he remains seated on a cot in the presence of a Hindu can be seen from the following incident reported in '*Jivan*' of July 1938:

"Nanda Ram and Mangali Prasad of village Pachhahera, Police Post Margaon, Tehsil and District Sitapur, invited their friends and relatives for a communal feast. When the guests were sitting on cots and smoking, Thakkur Sooraj Baksh Singh and Harpal Singh, Zamindars of the village, came there, sent for Nanda Ram and Mangali Prasad and asked who the people sitting and smoking were and why they were sitting on cots. Mangali Prasad said that they were his friends and relatives and asked if only Thakkurs could sit on cots. Enraged by this, the Thakkurs beat both the brothers and their men beat the guests severely as a result of which one man and one woman became senseless and others sustained serious injuries."

VII

The Untouchables are Hindus. They are also citizens with the same civic rights. But the Untouchables cannot claim the right of the citizenship if it conflicts with any rules of the Established Order.

For instance, no Untouchable can claim lodging in an inn even though it be public. In '*Jivan*' of August 1938, is reported the experience of an Untouchable named Kannhaiya Lal Jatav of Fetegarh:

“When I went to stay in Dharmashala near Allahabad Junction on 15th August 1938 at 10 p.m. there was no difficulty and I laid down on a cot after paying an advance of Re. 1. But at 11 p.m. when the lodgers went to the Manager of the Dharmashala to note down their addresses, and while noting down my address I put down my caste as Jatav, the Manager got wild and said that the Dharmashala was not meant for the stay of low caste people and asked me to get out at once. I pointed out to him that according to the rules of the Dharmashala, it was meant for Hindus only and there was no ban on Untouchables and asked if I was not a Hindu that he was asking me to leave. I also pleaded that being resident of Farrukabad and not acquainted with anyone in Allahabad there was no place where I could go at 11 p.m. On this, the Manager got furious and repeating the couplet from Ramayan (Shudras illiterate, cattle and women all these deserve to be beaten) said that in spite of being a low-caste he dared to talk about rules and law and will not get out unless he is beaten. Then suddenly he got my bedding etc., threw out of the Dharmashala and all of them were ready to beat me. In the face of such odds, I at once left the Dharmashala and lay down on a plank of wood in front of a shop facing the Dharmashala and had to pay annas 2 as rent to the shopkeeper for a night. I therefore appeal to my Scheduled Caste brethren to hold meetings everywhere and request Government to construct separate Dharmashalas for our people in every town or to get all the existing Dharmashalas opened for us.”

VIII

Under the Established Order, the work of lifting and removing dead cattle as well as doing the scavenger's work is beneath the dignity of the Hindus. It must be done by the Untouchables. The Untouchables have also begun to think that it is derogatory to their status and are refusing to do it. The Untouchables, however, are forced by the Hindus to do it against their will. The '*jivan*' of June 1938 reports:

“One day, in May 1938, Bhajju Ram Jatav of village Bipoli, Police post Barla, District Aligarh was sitting in his house at about 11 a.m. when some Brahmins namely Prithik, Hodal, Sita Ram, Devi and Chuni, all of whom had lathis came and tried to force him to lift dead cattle; and when he refused saying that he was not used to that work and asked them to go to some one who does that sort of work, he was mercilessly belaboured with lathis.”

The same journal in its issue of October 1938 gives the following news item:

“On 24th October 1938, some cattle of a Brahmin of village Lodhari, Tehsil Sadabad, District Muttra, died. The Scheduled Caste people of the village who were asked to lift it refused to do so. This enraged the caste Hindus so much that they have asked the Scheduled Caste people not to go to their fields for ablutions nor to allow their cattle to graze in their (caste Hindus) fields.”

IX

The Untouchables must not wear decent and clean clothes and they must not wear gold or silver ornaments. If the Untouchables defy these rules, the Hindus will not hesitate to bring them to book. The Untouchables have been trying to defy these rules, with what consequences will be seen from the following incidents which have been reported in the newspapers:

“Until 1922, the Untouchable caste of Dalai in Berar District of Bundi, were forbidden to eat wheat. In February 1922, a Chamar woman was put on the Rock in Sakatgarh, Jaipur, simply because she was wearing silver ornaments on her feet. The reason given was this that only men of the high castes were allowed to wear silver or to eat wheat. The low caste people should not dare to aspire to these things. So far we had been thinking that such antiquated ideas were supposed to have had probably died out by this time.”

The ‘*Times of India*’ in its issue of 4th January 1928 reports the tyranny and oppression practised upon the Balais who form an Untouchable community in Central India for their daringness to wear clean clothes and golden ornaments. Says the ‘*Times*’:

“In May (1927) high caste Hindus viz., Kalotas Rajputs and Brahmins including the Patils and Patwaris of villages Kanaria, Bicholee Hafsi, Bicholi Mardana and of about 15 other villages in the Indore district informed the Balais of their respective villages that if they wished to live among them, they must conform to the following rules:

1. Balais must not wear gold lace bordered pugrees;
2. They must not wear dhoties with coloured or fancy borders;
3. They must convey intimation of the death of any Hindu to relatives of the deceased—no matter how far away these relatives may be living;
4. In all Hindu marriages, the Balais must play music before the processions, and during the marriages;
5. The Balai women must not wear fancy gowns for jackets;

6. Balai women must attend all cases of confinement of Hindu women;
7. The Balais must render services without demanding remuneration, and must accept whatever a Hindu is pleased to give;
8. If the Balais do not agree to abide by these terms, they must clear out of the villages.

The Balais refused to comply; and the Hindu element proceeded against them. Balais were not allowed to get water from the village wells; they were not allowed to let their cattle to graze. Balais were prohibited from passing through land owned by a Hindu; so that if the field of a Balai was surrounded by fields owned by Hindus, the Balai could have no access to his own field. The Hindus also let their cattle graze down the fields of Balais.

The Balais submitted petitions to the Darbar of Indore against these persecutions, but as they could get no timely relief, and the oppression continued, hundreds of Balais with their wives and children, were obliged to abandon their homes in which their ancestors lived for generations, and to migrate to adjoining states, viz. to villages in Dhar, Dewas, Bagli, Bhopal, Gwalipr and other states.

Only a few days ago the Hindus of Reoti village barely 8 miles to the North of Indore city ordered the Balais to sign a stamped agreement in accordance with the rules framed against the Balais by the Hindus of other villages. The Balais refused to comply. It is alleged that some of them were beaten by the Hindus; and one Balai was fastened to a post, and was told that he would be let go, on agreeing to sign the agreement. He signed the agreement, and was released”.

The next is from the ‘*Arya Gazette*’ dated 21st January 1928:

“Up till now the tales of woe that were usually related of the persecution of the Harijans were mostly from the Madras province, but now thanks to the treatment of the Maharana of the Simla Hills, one has not to go so far to search for these stories. In the Simla district, there dwells a caste called ‘*Collie*’ whose members are very handsome and hard working. The Hindus of that area consider them to be Untouchables although they do not engage in any such work which should render them objectionable in the eyes of the Hindu religion. The members of this caste are not only powerful and well-built but intelligent also. Almost all the songs that the dwellers of the Simla Hills sing are composed by the ‘*Collies*’. These people labour all day long and venerate the Brahmins excessively but still they cannot so much as pass near the house of a Brahmin. Their children cannot read in schools and

‘Pathashalas’ (religious monastic schools). Their women folk cannot wear gold ornaments. It has even been reported that some Collies have gone to the Punjab and earned some money with which they have bought gold rings and ear-rings. When however they have brought these back to their homes, they have been cast into the jail and not freed until the ornaments had passed into the pockets of the State Officers.”

The following letter appeared in the *‘Pratap’* of 23rd June 1926:

“Swami Ramanandji Sanyasi writes:

On the 23rd of March 1926, in the evening a Chamar came to me who had recently managed to escape from the clutches of the Jats. He related to me a moving tale of the sufferings that his caste had to put up with in the village of Kheri near Faridabad in the District of Gurgaon. On the morning of 24th March I reached Faridabad in the District of Gurgaon, so as to investigate the state of affairs myself. The result of my enquiries is briefly as follows:

“On the 5th of March the marriage took place of the daughter of a Chamar called Gorkhi. The financial condition of the Chamar was comparatively good and he entertained his guests in the same way as people of the high castes do. Moreover, before handing away his daughter, he gave her three gold ornaments. This news spread amongst the Jats and was widely discussed. It was decided finally that the high castes had been insulted by the fact that the lower castes have started vieing with them. Till the 20th of March nothing untoward happened but on the morning of the 21st the Jats called a meeting of the Panchayat (village council) to consider the matter. Just at that moment a party of the Chamars of which the greater portion was composed of boys, girls and women was setting out for Faridabad on its daily duty. The party had just gone out of the village as far as the Dharmashala when the Jats attacked it. All the men of the party were belaboured and the women were thrashed with shoes. The backs of some were broken and of some the arms. Not only this, even their implements were robbed. A Muslim happened to pass along that way and the Jats took hold of him also and robbed him of his big gold ear-rings as well as of twenty-eight rupees. On the 22nd of March some groups of the Jats went into the fields of the Chamar and played havoc with them. The crop thus destroyed was estimated at about a thousand rupees. At that time, Nanwa, the son of Kori, was working in the fields. The Jats gave him also a thorough beating. On the 22nd of March again a party of the Jats sallied forth armed with flaming torches dipped in Kerosene oil, with the intention of setting fire to the houses of the Chamars

but later came away. On the 23rd of March at midnight a house was set on fire belonging to the grandfather of that married girl who has been mentioned above. The house is now a heap of ashes. It contained sixteen skins ready to be made into shoes and worth 90 rupees. They also got burnt up together with the other household goods. The general situation now is that the Jats have surrounded the town and no Chamar is allowed to go out. The Baniyas also, out of fear of the Jats, have refused to sell anything to the Chamars. For three days the Chamars as well as their cattle have been starving."

The following is a more recent occurrence. It has happened in Malabar. The facts of the case are revealed by the following resolution passed at the first Chirakal Taluka Harijan Conference held at Cherukunn in Malabar on 5th June 1945 with Shri K. Kannan, M.L.A., presiding:

"This Conference invites the urgent attention of the Government and the public to the increasing cases of inhuman oppressions of the Scheduled Castes of Malabar by Hindus, Muslims and Christians, particularly to the severest type of oppression now going on, almost with impunity, in the Nattika Firka, Ponnani Taluk, where something like a regular Harijan hunting is taking place every day as a result of the Harijans trying to wear gold ornaments and use clean clothes and umbrellas. In addition to numerous cases of assaults a Harijan marriage party was way-laid and assaulted and the shirts of men and the sarees of women removed by force and a Harijan student mercilessly beaten in Vadanpilly on 27th May 1945. This Conference while congratulating the progressive Thiya youths of the place under the enlightened leadership of Messrs. C. S. Gopalan, M. S. Sankaranarayan and P. C. Ramakrishna Vydier for their magnificent efforts to help the Harijans, most emphatically protests against the callous indifference of the local authorities, particularly of the Police Department in that the ill-treated Harijans did not get any timely protection from them.

This conference desires to state that almost in all cases of the above-said oppressions, the aggrieved Harijans have received neither protection nor justice from the police. There are instances where poor Harijans were even beaten by the Police for their coming forward to give evidence in such cases. In so far as these events have reduced the Harijans of Malabar to a very miserable plight and the situation, if left alone, is likely to develop into a crisis endangering the lives of all progressive Harijans who are trying to break the shackles of caste and economic exploitation of the vested interests in Malbar. This Conference most earnestly appeals to the

Government of India, the Hon'ble Dr. B. R. Ambedkar and all the enlightened people in the country to see that the Harijans are allowed to live in this land as free citizens of a democratic country unmolested by any people and promptly protected by the administration whenever they are oppressed by others."

X

The Untouchables must not eat rich food even if they can afford it. It is an offence for the Untouchables to live above their station in life. The '*Pratap*' of 26th February 1928. relates the following occurrence:

"In the State of Jodhpur at a place Chandayal, you will still see men who do not think that the Harijans have even the right to eat Halva. One of the Untouchable castes is that of Sargaroes. Sometime back on the occasion of the Marriage ceremony of two or three girls, Halva was prepared for the members of the marriage party. For this purpose, maida (white flour) was brought from the Thakur Sahib. At mealtime, the marriage party came for meals but just at that time the Kanwar Sahib of Chandawala sent orders to the Saragaroes that they could not eat Halva. Some cringing sycophants negotiated a compromise in this way that the Kanwar Sahib be presented with Rs. 200 and then permission will be given to eat Halva. At this the Sargaroes got infuriated and refused to pay the money."

XI

To lead a marriage procession through the main streets of the village is the right of every caste Hindu. It is also in evidence that the community which enjoys this right is accepted as a respectable community. The Untouchables have no such right. But they have been seeking to establish such a right by taking their marriage procession through the main streets of the village with the object of establishing their social status. The following incidents show how the Hindus have dealt with this claim.

From the '*Adi-Hindu*' dated July 1927:

"Bangalore, 27th May 1927: Seven Brahmins were sentenced to pay a fine of hundred rupees each, by the First Class Magistrate. These men had wantonly attacked a procession of the well-known Pariah Untouchable caste when it was passing along the Mallkot Road where only Brahmins live."

From the '*Pratap*' dated 25th October 1931:

"In the village of Hargaon, district Garhwal when the high caste Hindus heard that a marriage party of the Untouchables was coming and the bridegroom was sitting in a palanquin they sallied forth in great numbers and surrounded the party and gave it a severe beating. In intense cold they held up the marriage party and kept it without food for 24 hours. The members of the party were inhumanly treated and were only rescued from this difficult situation by the coming of the Police."

From the '*Satya Samwad*' Lahore dated 3rd November 1931:

"A marriage party was passing near Delhi, carrying the bridegroom in a palanquin. The high caste Hindus took offence at this for they thought it to be an insult to them. They held up the party for two days and gave it nothing either to eat or drink. At last the police came and chased away these tyrants and rescued the marriage party."

The '*Jivan*', a Hindu journal for June 1938 reports:

1. "In village Sevra, the Golas (Purva Thakurs) who boast of being Congressites, have so mercilessly beaten with spears and lathis the unarmed Jatavs of that village that five of them were lying wounded in the hospital with arms and ribs broken. Bansi has sustained fracture of the skull bone and is still unconscious in the hospital. All this happened because when a marriage party came to the village the bridegroom was wearing a glittering crown (Pukka Mohar) which offended the Thakurs, who wanted to attack the marriage party; but desisted because of the party's superior strength and were therefore content with only insulting the marriage party within the Zamindari at that time."

2. "In village Dorra, Tehsil Fatechand, District Agra, a marriage party came to the house of Moti Ram Jatav from village Rampur. The bridegroom was wearing a glittering crown and the party also brought a band music and fireworks. The Caste Hindus objected to the party proceeding with the music band playing and displaying fireworks. Moti Ram protested against this and said that they were also as good human beings as any others. On this, the caste Hindus caught hold of Moti Ram and gave him a severe beating and also attacked the marriage party. A sum of Rs. 15-1-0 tied in Moti Ram's turban was also removed."

3. "While a marriage party was on its way to the house of Prem Singh and Girvar Singh, Jatavs of village Khurva, Police post

Sakini, District Aligarh, it was prevented by the caste Hindus from proceeding further unless the music band stopped playing, and the procession was threatened to be killed and looted if the music was not stopped. Caste Hindus were also enraged for refusal by the Jatavs to do 'Begar' and for the audacity to have music band playing with a marriage party. On the marriage party's refusal to stop music, the caste Hindus were so much enraged that they threw brick-bats and stones at the party."

The '*Hindustan Times*' of the 24th of March 1945 reports the following incident relating to the same subject:

"A Shilpakar marriage party of the village of Dhanuri in Lands down sub-division carrying the bridegroom in a 'palki' was proceeding to the bride's house in the village of Mall Dhangu. A man introducing himself as an agent of the Patwari of Mall Dhangu advised the party to go through an out of the way route to avoid 'disturbance by caste Hindus.

The party, accordingly, took a forest path and when they were at a lonely spot a whistle brought out about 200 caste Hindus who, it is alleged, attacked the party and carried away the 'palki'.

The Shilpakar party reached the bride's house two days later and the marriage was, it is reported, performed in the presence of the Sub-divisional Magistrate and a police party brought by him.

The Patwari has been suspended in this connection."

The *Civil and Military Gazette of Lahore* in its issue of 24th June 1945 reports:

"A party of Rajputs, armed with axes, lathis and daggers, attacked yesterday Harijans of a village in Gwalior State, killing one and inflicting serious injuries on four.

The Rajputs and the Harijans of the village were on hostile terms for some time past ever since the Harijans took out a procession to celebrate the birth of an heir apparent to the Gwalior Darbar. The Rajputs strongly protested against it, as according to them, Harijans were not entitled to the privileges of such celebrations.

Last month, a proclamation was issued by the Maharaja giving equal rights to the Harijans."

Here are a few cases to show how the Hindus treat with violence any attempt on the part of the Untouchables to imitate the ways and manners of the Hindus and to have a little pride in themselves. The following is from the '*Bombay Samachar*' of 4th November 1936:

"At Uttapalam (in Malabar) an Ezhava by caste named Sivaraman, aged 17, went to the shop of a caste Hindu to buy salt and asked in the Malayalam language for 'uppu'. In Malabar,

according to custom, caste Hindus alone can use the word 'uppu' for salt; being only a Harijan he ought to have used the word 'pulichatan'. Consequently, the high caste grocer was very angry and is alleged to have thrashed Sivaraman so severely that the latter died."

The following instances are collected from the '*Samata*':

(1) "At Kathi (District Poona) the people have begun to persecute the Untouchables because the latter have begun saying 'Ram, Ram and Namaskar'. Be it known to the unintimated that these are salutations which only the higher castes have the right to employ; the Mahars, etc. must say 'Johar' or 'Paya Lagu' (I touch your feet) to the people.

(2) The Untouchables of Tanoo (District Poona) tried to behave 'like Touchable Hindu people'; the result of this impudent encroachment is that many of them have had to leave the village and some have migrated to Bavda.

(3) At Valapur (District of Sholapur) the Mahars are persecuted because they have dared to refuse to address Touchables as 'Saheb' and to say 'Paya Lagu' ('I touch your feet') in salutation.

(4) At Jambad (District Sholapur) the Untouchables refused to make 'Nautch' and 'Tamasha' for the diversion of their Touchable lords. Therefore these Untouchables were thrashed, their huts were burnt down or pulled down, and they were driven out of the village, limits.

(5) At Bavda (District Poona) some Untouchables exhorted their fellow-outcastes to give up eating the leavings of higher caste people, dead animals, etc., and to refuse to do the dirty work of the people. The elders of the village have told these Mahars with new fanglad notions that it is their 'Dharma' to eat what they have always been eating and do what they have been doing. Those Mahars who do not follow their ancient and eternal 'Dharma' have been thrashed by the people and threatened with expulsion from the village."

XII

The Hindu treats the Untouchables as being born to serve the Hindu community. It being his duty to serve, the Untouchables cannot refuse to serve the Hindu whenever the latter call upon to do so. The Hindus of the village hold the belief that they can commandeer the labour of the Untouchables. The system is known as '*Begar*', or forced labour. A few instances will show that dire consequences follow from the refusal of the Untouchables to submit to the system.

The '*Jivan*' of December 1938 reports the following incidents:

"On 29th November 1938, the Jatavs of village Kohana, district Muttra were seriously tortured by the Jats and Brahmins for refusing Begar.

The Thakkurs and the Brahmins of this village used to extract Begar from the Jatavs and to harass them. The latter decided not to do Begar and do only that work for which wages were paid. Recently, a bullock died in the village and the Thakkurs and other caste Hindus tried to force the Jatavs to lift it, but they said that they could do that only if they were paid. This enraged the caste Hindus so much that they asked a sweeper to fill the Jatavs' well with excreta and make them not to go to their fields for ablutions and decided to tease them in every way. When the Jatavs prevented the Sweeper from putting excreta in their well, he called the Jats, Thakkurs and Brahmins who were all ready for an attack. They attacked the Jatavs with lathis and seriously belaboured them and also set fire to their houses as a result of which six houses were burnt to ashes and 18 Jatavs were wounded seriously and a lot of their household property was taken away by the rowdies."

"The same *Journal* in its issue of February 1939 reports:

"The Jats of village Abhaipura, tehsil Kirvali, district Agra, are used to extract Begar (Forced labour) from the poor Scheduled Caste people and beat them on demanding wages. Some three months back Sukhi Jat forced Sukh Ram, Ghanshyam and Humka, Jatavs to do work for them and did not pay any wages. These persons are so much fed up with such high-handedness that they have left the villages and lived with their relatives in other villages, while their utensils and other household goods have been taken away by the Jats and concealed in some barn."

The '*Savadhan*' in its issue of 3rd June 1945 reports the following incident:

"Mehraji Kori, a Scheduled Caste woman has filed a complaint in the court of Mr. Mahboob Alam, City Magistrate under Sections 376, 341 and 354-A against Brahma Singh, Suleman and Aftab, constables of Jubi Police post. It is alleged that at about 10-30 p.m. on 2nd May 1945 these three constables, Sumar, Kahar, Kallu Bibis son and some others came and searched her house and then took her to the police station and kept her there for the whole night. In the early hours of the morning these constables took her to a small room bolted it and then all three of them violated her modesty one by one. Then she was removed to another small room where charcoal and pieces of paper were filled in her private part and they

put their private organs in her mouth. Her clothes were torn and saturated with blood. The following day her mother was forced to do begar work for the whole day and then both of them were left off at 10 p.m.

Murala, wife of Maharaji's husband's younger brother has also filed a similar complaint. She has alleged that the same constables took her to the police post the same night and returned her to her house. On the way she was caught by Madari Teli, near Kumar Tola, to the ruins of a house and her modesty violated. Messrs. Munna Lal, Bhushan and Ram Bharose, advocates are appearing for the complainant."

In the '*Hindustan Times*' of 15th April 1945 Occurs the following news item:

"For refusal to do forced labour, it is alleged, a large number of Harijans in the village of Dukheri in Ambala District were recently assaulted by a party of Rajputs. A man and a woman, both Harijans, were killed. It is also alleged that a large number of houses belonging to Harijans were set on fire. Telegrams have been sent to the Commissioner and the Deputy Inspector General of Police to inquire into the matter."

From these instances, it will be clear to anyone that the Hindus do not hesitate to use violence to hold down the Untouchables and maintain the established order and even to commit murder.

Mr. Lajpat Rai in his book 'Unhappy India' in which he tried to reply to and refute the charges levelled by Miss Mayo in her 'Mother India' gives a lengthy and lucid description of the lynchings of the Negroes in the United States and the atrocities committed upon them by the members of the Ku Klux Klan and asks:

"What however is very relevant to her to ask is: is the unjustifiable and cruel attitude of the Brahmins towards the *Pariah* more unjustifiable and more cruel than that of the Klansmen of America towards the Negroes?"

"What are the caste cruelties of India put by the side of what the whiteman has done to the non-white people?"

Lala Lajpatrai, if he had cared to investigate could have found that the cruelties and atrocities practised by the Hindus against the Untouchables were no less than those practised by the Americans upon the Negroes. If these atrocities are not so well known to the world as are those practised upon the Negro, it is not because they do not exist. They are not known because there is no Hindu who will not do his best to conceal truth in order to hide his shame.

Some might think that this description of the Established Order and the rules made thereunder are matters of ancient past. This is a complete mistake. The Established Order subsists even today and the rules are as operative today as they were when they were made. This will be evident from the two following statements on the condition of the Untouchables which have appeared in the '*Hindustan Times*'. The first appeared in the issue of 8th March 1945. The first one is written by one Kesarilalji Bordia, Headmaster of a school called Vidya Bhuwan in Udaipur. It reads as follows:

"Many are the disabilities under which the Harijans in Mewar live. They cannot enter temples, nor can they draw water from public wells. They cannot join the caste Hindus in festivals and processions. They have to take out their Rath Yatra or Doll procession through a different route and on a different day. And they cannot ride through the village.

Even silver ornaments, let alone gold ones on their person are resented by the caste Hindus. The result is, they have to content themselves with tin and brass articles. Age-old usage prevents them from using butter or gur in wedding feasts.

In Schools and other public places, Harijan boys cannot sit with the children of caste Hindus. They are asked to absent themselves on the inspection day in order to save the Inspector from embarrassment.

A memorandum has been submitted to the State Government. If the Government chooses to declare in unequivocal terms the disapproval of these disabilities, the hands of non-official bodies which are fighting untouchability will be strengthened."

The second is in the form of a statement issued by the President of the *Harijan Sevak Sangh* and refers to the condition of the Untouchables in the State of Mewar. It reads as under:

"The Mewar Harijan Sevak Sangh has sent a Memorandum to the Mewar Government drawing their attention to the various disabilities of Harijans in the State and their consequent hardships. The Memorandum brings out how civil liberties of Harijans are curtailed in several ways by the orthodoxy and prejudices of caste Hindus.

I enumerate below some of the unjust practices which still persist in the State and for the rectification of which the State has taken no effective measures. They are as follows:

1. Harijans have no liberty in the selection of clothes to wear. The form of dress must follow the age-long pattern; personal tastes and desires have no place in the choice of the dress.

2. At wedding feasts they have no choice in the selection of food materials. Even on payment they cannot use costly articles.
3. They cannot ride the village on a horse.
4. They are not allowed accommodation in public vehicles.
5. On religious festivals they cannot take out procession of their idols except through specified routes.
6. They have no access to wells and temples.”

The writer adds:

“Three years ago in company with Thakkur Bapa, I travelled all over the State and placed before the Government and public my impressions of the conditions obtaining there and pleaded for reform. On perusal of the abovementioned memorandum and other reports sent to me, I find that the past few years have hardly brought any change and conditions are more or less static.

It is heart-breaking to find that passage of time cuts no ice with us. The result is that there is hardly any change in our age-long practices and prejudices. This perversity which blinds us to the tyranny and injustices of our ways also makes us impervious to the incalculable harm we have already suffered as a result of it. Even if the ignorant prejudice of the common man is unshaken the enlightened Governments of the twentieth century ought to be more alive to their responsibilities.”

The dates of these communications are important. They are of the year 1945. None can say that this Hindu Established Order is a thing of the ancient past. The fact that these latest accounts refer to the Indian States should not be understood to mean that the established Order has vanished from British India. The chapters to follow will present enough evidence to show that the same Established Order is very much alive in British India.

In the ‘*Times of India*’ of 31st August 1950 occurs the following news item:

“The following facts of a case revealed in the hearing of an appeal in the Allahabad High Court, are illustrative of the socio-economic conditions of lower castes in the rural areas:

Chiranji, a dhobi of the village of Sarras in the District of Etah, went out as a military employee in the last war and remained out of his village for four or five years. When he was discharged, he returned to his home. He stopped washing clothes and used to go about in the village in his military uniform. This coupled with the fact that he refused to wash clothes even for the men of the Raja of Sarras the sole zamindar in the village, was resented by the villagers.

On December 31, 1947, when the dhobi was washing his clothes, four villagers, including the Raja's servants, approached him and asked him to wash their clothes which he refused. The villagers took Chiranji to the Raja's house and gave him a beating. His mother and mother's sister went there to intercede on his behalf but they too were assaulted.

The attackers then went away leaving Chiranji in the custody of one Ram Singh; finding him alone, Chiranji was alleged to have slapped him and run away. Ram Singh and other servants of the Raja chased him to his house where he had taken shelter. The villagers insisted upon his opening the door but when there was no response, his house was set on fire. A number of other huts were also reduced to ashes.

The dhobi lodged a complaint with the Police who disbelieved his story and wanted to prosecute him for a false report. He then filed a complaint in a Magistrate's Court. The accused were convicted and sentenced to three years' imprisonment each. The High Court upheld the sentences imposed by the Magistrate.

The following news item has appeared in the *'Indian News Chronicle'* dated 31st August 1950.

Inhuman Treatment towards Harijans in Pepsu: Depressed Classes League's Memorandum to Government.

Patiala, August 1950: "The unprovoked thrashing of the Backward Class people, inhuman insults heaped upon their women folk, indiscriminate ejection of the Harijans from the lands, the virtual confinement of the Harijans and their cattle in their mud houses for days together without any fault is a long tale of suffering whose echoes are rising in proportion to the diminishing echoes of crime in general," says a memorandum presented by the PEPSU Provincial Depressed Classes League to the State Government.

"While crime in PEPSU is on the decrease due to the vigorous efforts of the police," the memorandum adds, "it is a pity that the sector of the Backward Class should be deprived of the protection from the un-social elements". The Backward Classes economically handicapped as they are, find it very difficult to ventilate their day-to-day grievances to the authorities concerned who could immediately come to their rescue, and are perforce, compelled to submit to their lot, to the encouragement of the aggressor, and thus the wail of disgust against the present state of affairs grows still louder which in its turn is made stock of by the interested parties."

The Provincial Depressed Classes League further quoted an instance to show how much inhuman treatment was being meted out

to Harijans in PEPSU. Chand Singh a Harijan of village Katu, district Bernala, was made to go round the village on the back of donkey with face blackened for the fault of having drunk water at the well of a high caste zamindar. " In the changed atmosphere of free India, the members of the Scheduled Castes in the PEPSU are daily finding themselves put in a tight corner as a result of the unprecedented repression let loose upon them by the members of high castes."

The Provincial Depressed Classes League has further suggested formation of district and central special commissions in the State with wide powers to deal with the complaints on Harijans on the spot and afford them other facilities.

Concluding, the League has urged upon the State Government that pending an all-India enactment in this connection, it may, temporarily be provided that the Harijans have equal rights in the village common, to ease the situation from further deterioration.

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CHAPTER 7

WHY LAWLESSNESS IS LAWFUL?

The foregoing discussion must have made clear two things which must be borne in mind. One is the sharp division between the touchables and untouchables, the other is the deep antagonism between the two.

Every village has two parts, the quarters of the touchables and the quarters of the untouchables. Geographically the two are separate. There is always appreciable distance between the two. At any rate there is no contiguity or proximity between them. The untouchables quarters have a distinct name such as Maharwada, Mangwada, Chamrotti, Khatkana, etc. *De jure* for the purposes of Revenue Administration or Postal Communication, the quarters of the untouchables are included in the village. But *de-facto* it is separate from the village. When the Hindu resident of a village speaks of the village he means to include in it only the caste Hindu residents and the locality occupied by them. Similarly when the untouchable speaks of the village he means to exclude from it the untouchables and the quarters they occupy. Thus in every village the touchables and untouchables form two separate groups. There is nothing common between them. They do not constitute a folk. This is the first thing which must be noted.

The second thing to note with regard to this division of the village into two groups is that these groups are real corporations which no one included within them can escape. As has been well said the American or European belongs to groups of various kinds, but he “joins” most of them. He of course is born into a family, but he does not stay in it all his life unless he pleases. He may choose his own occupation, residence, wife, political party, and is responsible generally speaking for no one’s acts but his own. He is an “individual” in

This essay has been received from Shri S. S. Rege. It is included here as the title is identical with the earlier chapter and also seems to be continuation of the discussion in the said chapter.—Ed.

a much fuller sense because all his relationships are settled by himself for himself. The touchables or untouchables are in no sense individuals because all or nearly all of his relationship are fixed when he is born in a certain group. His occupation, his dwelling, his gods and his politics are all determined for him by the group to which he belongs. When the touchables and untouchables meet they meet not as man to man, individual to individual but as members of groups or as nationals of two different States.

This fact has an important effect upon the mutual relationship between the touchables and untouchables in a village. The relationship resembles the relationship between different clans in primitive society. In primitive society the member of the clan has a claim, but the stranger has no standing. He may be treated kindly, as a guest, but he cannot demand "justice" at the hands of any clan but his own. The dealing of clan with clan is a matter of war or negotiation, not of law; and the clanless man is an 'outlaw', in fact as well as in name and lawlessness against the strangers is therefore lawful. The untouchable not being a member of the group of touchables is a stranger. He is not a kindred. He is an outlaw. He cannot claim justice. He cannot claim rights which the touchable is bound to respect.

The third thing to note is that the relationship between the two, the touchables and the untouchables, has been fixed. It has become a matter of status. This status has unmistakably given the untouchables a position of inferiority vis-a-vis the touchables. This inferiority is embodied in a Code of Social conduct to which the untouchables must conform. What kind of a code it is, has already been stated. The untouchable is not willing to conform to that Code. He is not prepared to render unto Ceasar what belongs to Ceasar. The untouchable wants to have his relationship with the touchables by contract. The touchable wants the untouchables to live in accordance with the rules of status and not rise above it. Thus the two halves of the village, the touchables and the untouchables are now struggling for resettling what the touchable thinks is settled for ever. The conflict is centered round one question—What is to be the basis of this relationship? Shall it be contract or shall it be status?

This raises some very interesting questions. How did the untouchables come to have the status of the lowliest and the low? Why has the Hindu cultivated this hostility and contempt for the untouchables? Why does the Hindu indulge in lawlessness in suppressing the untouchables as though such lawlessness is lawful?

To give an adequate answer to these questions one has to go to the law of the Hindus. Without a working knowledge of the rules of the

Hindu Law, it would be impossible to give any satisfactory answer to this question. For our purpose, it is not necessary to cover the whole field of Hindu Law in all its branches. It is enough to know that branch of the Hindu law which may be called the law of persons—or to put it in non-technical language—that part of the Hindu law which deals with differences of right, duty or capacity which result from differences of status.

It is therefore proposed to give a catalogue of the rules of the Hindu Law which relate to the law of persons. These rules are collected from the Law Books of Manu, Yajnavalkya, Narada, Vishnu, Katyayana etc. who are some of the principal law givers recognised by the Hindus as persons having authority to lay down the law. A mere reproduction of the rules however interesting cannot be helpful in enabling a person who goes through them to have an idea of the basic conceptions which underlie the Hindu Law of Persons. For that purpose mere reproduction of the rules will not do. Some order is evidently necessary. What is therefore done is to group these rules under certain heads. The whole thing is cast in the form of a digest divided into sections, each section being an assembly of rules dealing with one definite matter.

DIFFERENT CLASSES : THEIR ORIGIN AND THEIR DUTIES

1. This (Universe) existed in the shape of Darkness, unperceived destitute of distinctive marks, untenable by reasoning, unknowable, wholly immersed, as it were in a deep sleep.”
2. Then the divine self existent (Svayambhu, himself) indiscernible (but) making (all) this, the great elements and the rest, discernible, appeared with irresistible (creative) power, dispelling the darkness.
3. But for the sake of the prosperity of the worlds, he caused the Brahmana, the Kshatriya, the Vaishya, and the Shudra to proceed from his mouth, his arms, his thighs and his feet.
4. But in order to protect this Universe He, the most resplendant one, assigned separate (duties and) occupations to those who sprang from his mouth, arms, thighs and feet.
5. To the Brahmans he assigned teaching and studying (the veda), sacrificing (performing sacrificial ceremonies) for their own benefit and for others, giving and accepting (of alms).
6. The Kshatriya he commanded to protect the people, to bestow gifts, to offer sacrifices, to study (the Veda), and to abstain from attaching himself to sensual pleasures.

(I) Manu 1.5; (2) *Ibid.*, 1.6; (3) *Ibid.*, 1.31; (4) *Ibid.*, 87; (5) *Ibid.*, 1.88; (6) *Ibid.*, 1.89.

7. The Vaishya to tend cattle, to bestow gifts, to offer sacrifices, to study (the Veda), to trade, to lend money and to cultivate the land.
8. One occupation only the lord prescribed to the Shudra, to serve meekly even these (other) three castes.
9. A student, an apprentice, a hired servant, and fourthly, an official: these must be regarded as labourers. Slaves are those who are born in the house and the rest.
10. The Sages have distinguished five sorts of attendants according to law. Among these are four sorts of labourers (mentioned above). The slaves (are the fifth category, of which there are) fifteen species.
11. One born at (his master's) house; one purchased; one received (by gift); one obtained by inheritance; one maintained during a general famine; one pledged by his rightful owner.
12. One released from a heavy debt; one made captive in a fight; one won through a wager; one who has come forward declaring 'I am thine' an apostate from asceticism; one enslaved for a stipulated period.
13. One who has become a slave in order to get a maintenance; one enslaved on account of his connection with a female slave; and oneself sold. These are fifteen classes of slaves as declared in law.
14. Among these the four named first cannot be released from bondage, except by the favour of their owners. Their bondage is hereditary.
15. The Sages have declared that the state of dependence is common to all these; but that their respective position and an income depends on their particular caste & occupation.

EQUALITY BEFORE LAW

1. When two persons abuse each other, their punishment shall be equal if they are equals in caste; if one is inferior to the other, his punishment shall be double; for a superior, half (of the ordinary punishment) is ordained.
2. When persons equal in caste and qualities abuse one another, the punishment ordained for them in the system of law is thirteen Panas and a half.
3. For a Brahman abusing a Kshatriya, the fine shall be half a hundred (Fifty Panas); for abusing a Vaishya, half of fifty (twenty-five Panas); for abusing a Shudra, twelve & a half.

(7) *Manu* 1.90; (8) *Ibid.*, 1.91; (9) *Narad* V. 3; (10) *Ibid.*, V.2; (11) *Ibid.*, V.26; (12) *Ibid.*, V.27; (13) *Ibid.*, V.28; (14) *Ibid.*, V. 29; (15) *Ibid.* V. 4.

(1) *Brihaspati* XX.5; (2) *Ibid.*, XX.6; (3) *Ibid.*, XX.7.

4. This punishment has been declared for (abusing) a virtuous Shudra who has committed no wrong; no offence is imputable to a Brahman for abusing (a Shudra) devoid of virtue.
5. A Vaishya shall be fined a hundred (Panas) for reviling a Kshatriya, a Kshatriya reviling a Vaishya shall have to pay half of that amount as a fine.
6. In the case of a Kshatriya reviling a Shudra, the fine shall be twenty Panas; in the case of a Vaishya, the double amount is declared to be the proper fine by persons learned in law.
7. A Shudra shall be compelled to pay the first fine for abusing a Vaishya; the middling fine (for abusing) a Kshatriya; the highest fine (for abusing) a Brahman.
8. A Kshatriya having defamed a Brahmana shall be fined one hundred (panas); a Vaishya one hundred and fifty or two hundred; a Shudra shall suffer corporal punishment.
9. A Brahmana shall be fined fifty (panas) for defaming a Kshatriya; in (the case of) a Vaishya the fine shall be twenty-five panas; in (the case of) a Shudra twelve.
10. A once born man (a Shudra), who insults a twice born man with gross invective, shall have his tongue cut out; for he is of low origin.
11. If he mentions the names and castes (Jati) of the (twice-born) with contumely an iron nail, ten fingers long, shall be thrust red hot into his mouth.
12. If he arrogantly teaches Brahmans their duty, the King shall cause hot oil to be poured into his mouth and into his ears.
13. For mutual abuse by a Brahmana and a Kshatriya a fine must be imposed by a discerning (King), on the Brahmana the lowest amercement, but on the Kshatriya the middle most.
14. With whatever limb a man of a low caste does hurt to (a man of three) highest (castes) even that limb shall be cut off; that is the teaching of Manu.
15. He (low caste man) who raises his hand or a stick, shall have his hand cut off; he who in anger kicks with his foot, shall have his foot cut off.
16. A low caste man who tries to place himself on the same seat with a man of a high caste, shall be branded on his hip and be banished, or (the King) shall cause his buttock to be gashed.

(4) Brahaspati XX.8: (5) *Ibid.*, XX.9: (6) *Ibid.*, XX. 10: (7) *Ibid.*, XX.11: (8) Manu VIII.267: (9) *Ibid.* 268: (10) *Ibid.*, VIII.270: (II) *Ibid.*, VIII.271: (12) *Ibid.*, VIII.272: (13) *Ibid.*, VIII.276: (14) *Ibid.*, VIII.279: (15) *Ibid.*, VIII.280: (16) *Ibid.*, VIII.281.

17. If out of arrogance he spits (on a superior) the King shall cause both his lips to be cut off, if he urinates (on him), the penis; if he breaks wind (against him) the anus.
18. If he lays hold of the hair (of a superior), let the (King) unhesitatingly cut off his hands, likewise (if he takes him by the feet) the beard, the neck or the scrotum.

STATUS, DIGNITY AND POSITION OF EACH CLASS

1. Man is stated to be purer above the navel (than below); hence the self existent (Swayambhu) has declared the purest (part) of him to be his mouth.
2. As the Brahmana sprang from the mouth, as he was the first-born and as he possesses the Veda, he is by right the lord of his whole creation.
3. For the self existent (Swayambhu) having performed austerities, produced him first from his own mouth, in order that the offerings might be conveyed to the gods and manes and that this universe might be preserved.
4. What created being can surpass him, through whose mouth the gods continually consume the sacrificial viands and the manes the offerings of the dead.
5. Of created beings the most excellent are said to be those who are animated; of the animated, those who subsist by intelligence; of the intelligent mankind, and of men the Brahmanas.
6. A Brahmana coming into existence is born as the highest on earth, the lord of all created things.
7. Whatever exists in the world is the property of the Brahmana; on account of the excellence of his origin the Brahmana is indeed, entitled to all.
8. A Brahmana be he ignorant or learned is a great divinity, just as the fire, whether carried forth (for the performance of a burnt oblation) or not carried forth, is a great divinity.
9. Thus though Brahmans employ themselves in all (sorts of) mean occupations, they must be honoured in every way; for (each of) them is a great divinity.
10. But let (the father perform or) cause to be performed the Namadheya (the right of naming the child) on the tenth or twelfth (day after birth), or on a lucky lunar day, in a lucky Muhurta, under an auspicious constellation.

(17) Manu V111.282: (18) *Ibid.*, VIII.283.

(1) Manu 1.92: (2) *Ibid.*, 1.93: (3) *Ibid.*, 1.94: (4) *Ibid.*, 1.95: (5) *Ibid.*, 1.96: (6) *Ibid.*, 1.99: (7) *Ibid.*, 1.100: (8) *Ibid.*, IX.317: (9) *Ibid.*, IX.319: (10) *Ibid.* 11.30.

11. Let (the first part of) a Brahman's name (denote something) auspicious, a Kshatriya's be connected with power, and a Vaishya's with wealth, but a Shudra's (express something) contemptible.
12. (The second part of) a Brahmana's (name) shall be (a word) implying happiness, of a Kshatriya's (a word) implying protection, of a Vaishya's (a term) expressive of thriving and of a Shudra's (an expression) denoting service.
13. Let him (a Brahmana) not dwell in a country where the rulers are Shudras, nor in one which is surrounded by unrighteous men, nor in one which has become subject to heretics, nor in one swarming with men of the lowest castes.
14. When the King cannot himself decide the causes (of litigants) then he should appoint thereto a Brahmana learned in the various Shastras.
15. Where a Brahmana (endowed with the qualities enumerated) cannot be had (the King) should appoint a Kshatriya or a Vaishya, proficient in the Sacred law, but the (the King) should carefully avoid a Shudra as a Judge.
16. Whatever is done by others (as Judges) than these must be regarded as done wrongly, even if they be officers (of the King) and even if by chance the decision is according to the Sacred texts.
17. A Brahmana who subsists only by the name of his caste (Jati), or one who merely calls himself a Brahmana (though his origin be uncertain), may, at the King's pleasure interpret the law to him, but never a Shudra.
18. The Kingdom of that Monarch, who looks on while a Shudra settles the law, will sink (low), like a cow in a morass.
19. A Brahmana who knows the law need not bring any (offence) to the notice of the King, by his own power alone he can punish those men who injure him.
20. His own power is greater than the power of the King; the Brahmana therefore, may punish his foes by his own power alone.
21. The Brahmana is declared (to be) the creator (of the world), the punisher, the teacher, (and hence) a benefactor (of all created beings); to him let no man say anything unpropitious, nor use any harsh words.

INTER-RELATIONSHIP BETWEEN THE CLASSES

I

1. In the inverse order of the four castes slavery is not ordained.

(11) Manu 11.31; (12) *Ibid.*, 11.32; (13) *Ibid.*, IV.61; (14) Katyayana 63; (15) *Ibid.*, 67; (16) *Ibid.*, 68; (17) Manu VII.20; (18) *Ibid.*, VIII.21; (19) *Ibid.*, XI.31; (20) *Ibid.*, XI.32; (21) *Ibid.*, XI.35.

(1) Narada V.39.

2. Members of three Varnas can become slaves but a Brahman can never become a slave. Slavery in the case of the (three) Varnas viz., Kshatriyas, Vaishyas and Shudras is in their direct order and not in their inverse order. A Shudra could be the slave of any master of the four castes, a Vaishya of any master of the first three castes but not of a Shudra Master, a Kshatriya could be the slave of a Brahman or Kshatriya Master but not of a Vaishya or Shudra Master.
3. Even one of the same caste (i.e. a Brahman) should not make a Brahmana work as a Slave A man who is Kshatriya, Vaishya or Shudra may occasionally do the work of slave for a man of the same caste (as his own) but a Brahman should never be made to do the work of a slave.

II

4. For the first marriage of twice born men (wives) of equal caste are recommended; but for those who through desire proceed (to marry again) the following females (chosen) according to the (direct) order (of the castes), are most approved.
5. It is declared that a Shudra woman alone (can be) the wife of a Shudra, she and one of his own caste (the wives) of a Vaishya, those two and one of his own caste (the wives) of a Kshatriya, those three and one of his own caste (the wives) of a Brahmana.
6. If twice born men wed women of their own and of other (lower castes), the seniority, honour and habitation of those (wives) must be (settled) according to the order of the castes (Varna).
7. Among all (twice born men) the wife of equal caste alone, not a wife of a different caste by any means, shall personally attend her husband and assist him in his daily sacred rights.
8. A Shudra who has inter-course with a woman of a twice born caste, guarded or unguarded (shall be punished in the following manner); if she was unguarded, he loses the part (offending) and all his property; if she was guarded, everything (even his life).
9. (For inter-course with a guarded Brahmani) a Vaishya shall forfeit all his property after imprisonment for a year; a Kshatriya shall be fined one thousand (panas) and be shaved with the urine (of an ass).
10. If a Vaishya or a Kshatriya has connexion with an unguarded Brahmani, let him fine the Vaishya five hundred (panas) and the Kshatriya one thousand.

(2) Katyayana 715-716: (3) *Ibid.*, 717-718: (4) Manu 111.12: (5) *Ibid.*, 111.13: (6) *Ibid.*, IX.85: (7) *Ibid.*, IX.86: (8) *Ibid.*, VIII.374: (9) *Ibid.*, VIII.375: (10) *Ibid.*, VIII.376.

11. If a Vaishya approaches a guarded female of the Kshatriya caste, or a Kshatriya a (guarded) Vaishya woman, they both deserve the same punishment as in the case of an unguarded Brahmana female.
12. A Brahmana shall be compelled to pay a fine of one thousand (panas) if he has inter-course with guarded (females of) those two (castes); for (offending with) a (guarded) Shudra female a fine of one thousand (panas shall be inflicted) on a Kshatriya or a Vaishya.
13. For (intercourse with) an unguarded Kshatriya (female) a fine of five hundred (panas shall fall) on a Vaishya; but (for the same offence) a Kshatriya shall be shaved with the urine (of a donkey) or (pay) the same fine.
14. A Brahmana who approaches unguarded females (of the) Kshatriya or Vaishya (castes), or a Shudra female, shall be fined five hundred (panas); but (for intercourse with) a female (of the) lowest (castes), one thousand.

III

15. But let (a house holder) offer, in accordance with the rule, to a guest who has come (of his own accord) a seat and water, as well as food, garnished (with seasoning) according to his ability.
16. But a Kshatriya (who comes) to the house of a Brahman is not called a guest (atithi), nor a Vaishya, nor a Shudra, nor a personal friend, nor a relative, nor the teacher.
17. But if a Kshatriya comes to the house of a Brahman in the manner of a guest, (the householder) may feed him according to his desire, after the Brahmans have eaten.
18. Even a Vaishya and a Shudra who have approached his house in the manner of guests, he may allow to eat with his servants, showing (thereby) his compassionate disposition.

DUTIES—PRIVILEGES—IMMUNITIES—DISABILITIES

(I)

1. Brahmans who are intent on the means (of gaining union with) Brahman and firm in (discharging) their duties, shall live by duly performing the following six acts, (which are enumerated) in their (proper) order.

(11) Manu VIII.382: (12) *Ibid.*, VIII.383: (13) *Ibid.*, VIII.384: (14) *Ibid.*, VIII.385: (15) *Ibid.*, 111.99: (16) *Ibid.*, III.110: (17) *Ibid.*, III.111: (18) *Ibid.*, 111.112.

(1) Manu X.74.

2. Teaching, studying, sacrificing for himself, sacrificing for others, making gifts and receiving them are the six acts (prescribed) for a Brahmana.
3. But among the six acts (ordained) for him three are his means of subsistence, (viz.) sacrificing for others, teaching and accepting gifts from pure men.
4. (Passing) from the Brahman to the Kshatriya, three acts (incumbent on the former) are forbidden (viz.,) teaching, sacrificing for others, and thereby, the acceptance of gifts.
5. The same are likewise forbidden to a Vaishya that is a settled rule; for Manu, the lord of creatures (Prajapati), has not prescribed them for (men of) those two (castes).
6. To carry arms for striking and for throwing (is prescribed) for Kshatriyas as a means of subsistence; to trade, (to rear) cattle, and agriculture for Vaishyas; but their duties are liberality, the study of the Veda and the performance of sacrifices.
7. Among the several occupations the most commendable are, teaching the Veda for a Brahmana, protecting the people for a Kshatriya and trade for a Vaishya.
8. The service of Brahmanas alone is declared (to be) an excellent occupation for a Shudra; for whatever else besides this he may perform will bear him no fruit.

(II)

9. But a Brahmana unable to subsist by his peculiar occupations just mentioned, may live according to the law applicable to the Kshatriyas; for the latter is next to him in rank.
10. If it be asked "How shall it be, if he cannot maintain himself by either (of these occupations? the answer is) he may adopt a Vaishya's mode of life, employing himself in agriculture, and rearing cattle.
11. A Kshatriya who has fallen into distress may subsist by these means (open to the Vaishya).
12. A Vaishya who is unable to subsist by his own duties, may even maintain himself by a Shudra's mode of life, avoiding (however) acts forbidden (to him), and he should give it up, when he is able to do so.
13. But a Shudra being unable to find service with the twice-born and threatened with the loss of his sons and wife (through hunger), may maintain himself by handicrafts.

(2) Manu X.75; (3) *Ibid.*, X.76; (4) *Ibid.*, X.77; (5) *Ibid.*, X.78; (6) *Ibid.*, X.79; (7) *Ibid.*, X.80; (8) *Ibid.*, X.123; (9) *Ibid.*, X.81; (10) *Ibid.* X.82; (11) *Ibid.*, X.95; (12) *Ibid.*, X.98; (13) *Ibid.*, X.99.

(III)

14. A Kshatriya must never arrogantly adopt the mode of life (prescribed for his) betters (that is for the Brahmanas).
15. (The King) should order a Vaishya to trade, to lend money, to cultivate the land, to lend cattle and the Shudra to serve the twice born castes.
16. (The King) should carefully compel Vaishyas and Shudras to perform the work (prescribed) for them; for if these two (castes) swerved from their duties, they would throw this (whole) world into confusion.

(IV)

1. A blind man, an idiot, (a cripple) who moves with the help of a board, a man full seventy years old, and he who confers benefits on Srotriyas, shall not be compelled by any (king) to pay a tax.
2. Though dying (with want) a King must not levy a tax on Srotriyas, and no Srotriya residing in his kingdom must perish from hunger.
3. Let the King make the common inhabitants of his realm who live by traffic, pay annually some trifle, which is called a tax.
4. Mechanics and artisans, as well as Shudras who subsist by manual labour, he (the king) may cause to work (for himself) one (day) in each month.
5. Tonsure (of the head) is ordained for a Brahmana (instead of capital punishment); but men of other castes shall suffer capital punishment.
6. Let him (the King) never slay a Brahmana though he have committed all (possible) crimes; let him banish such an (offender) leaving all his property (to him) and (his body) unhurt.
7. No greater crime is known on the earth than slaying a Brahmana: a King, therefore, must not even conceive in his mind the thought of killing a Brahmana.
8. When a learned Brahmana has found treasure deposited in former (times), he may take even the whole (of it); for he is master for everything.
9. When the King finds treasure of old concealed in the ground, let him give one half to the Brahmanas and place the (other) half in his treasury.

(14) Manu X.95; (15) *Ibid.*, VIII.410; (16) *Ibid.*, V111.418.

(1) Manu VIII.394; (2) *Ibid.*, VII.133; (3) *Ibid.*, VII. 137; (4) *Ibid.*, VII.138; (5) *Ibid.*, VIII.379; (6) *Ibid.*, VIII.380; (7) *Ibid.*, VIII.381; (8) *Ibid.*, VIII.37; (9) *Ibid.*, VIII.38.

MODE OF LIFE

1. (A Shudra who is) pure, the servant of his betters, gentle in his speech, and free from pride, and always seeks a refuge with Brahmanas, attains (in the next life) a higher caste.
2. But let a Shudra serve Brahmanas, either for the sake of heaven, or with a view to both (this life and the next); for he who is called the servant of a Brahmana thereby gains all his ends.
3. If a Shudra (unable to subsist by serving Brahmanas) seeks a livelihood, he may serve Kshatriyas, or he may also seek to maintain himself by attending on a wealthy Vaishya.
4. They must allot to him out of their own family (property) a suitable maintenance, after considering his ability, his industry, and the number of those whom he is bound to support.
5. The remnants of their food must be given to him, as well as, their old clothes, the refuse of their grain and their old household furniture.
6. No collection of wealth must be made by a Shudra, even though he be able (to do it); for a Shudra who has acquired wealth, gives pain to the Brahmana.
7. Shudras who live according to the law, shall each month shave (their heads); their mode of purification (shall be) the same as that of Vaishyas and their food the fragments of an Aryan's meal. As has been said the society for which the ancient law givers laid down their ordinances consisted of two parts—one part consisted of those who were comprised *within* the system of Chaturvarna. The other part consisted of those who were without the pale of Chaturvarna. They are spoken of in Manu as Bahyas i.e. outside the pale of Chaturvarna. They are spoken of as low castes. The origin of these low castes is a subject with which I am not concerned for the moment. It is enough to say that according to these ancient law givers of Hindus these low castes are the result of the progeny of intermarriages between those four classes—the Brahmanas-Kshatriyas-Vaishyas-Shudras—who are included within the system of Chaturvarna. How far this is true will be examined at another time. We are primarily concerned with social relationship and not with origin. So far the ordinances relating to those who were within the Chaturvarna have been given. It now remains to give the ordinances which relate to those who were outside the Chaturvarna or who were called the low castes. The ordinances which regulate the life of the low castes are strange to say very few. Few though they be they give them such a short shrift that one does not find any necessity for more detailed code of ordinances. They are as follows :

(1) Manu IX.335; (2) *Ibid.*, X.122; (3) *Ibid.*, X.121; (4) *Ibid.*, X.124; (5) *Ibid.*, X.125; (6) *Ibid.*, X.129; (7) *Ibid.*, V.140.

1. All those tribes in this world, which are excluded from (the community of) those born from the mouth, the arms, the thighs, and the feet (of Brahman), are called Dasyus, whether they speak the language of the Mlenchhas (barbarians) or that of the Aryans.
2. Near well-known trees and burial ground, on mountains and in groves, let these (tribes) dwell, known (by certain marks), and subsisting by their peculiar occupations.
3. But the dwelling of the Chandalas and Shwapakas shall be outside the village, they must be made Apapatras and their wealth (shall be) dogs and donkeys.
4. Their dress (shall be) the garments of the dead, (they shall eat) their food from broken dishes, black iron (shall be) their ornaments, they must always wander from place to place.
5. A man who fulfils a religious duty, shall not seek intercourse with them; their transactions (shall be) among themselves, and their marriages with their equals.
6. Their food shall be given to them by others (than an Aryan giver) in a broken dish; at night they shall not walk about in villages and in towns.
7. By day they must go about for the purpose of their work, distinguished by marks at the King's command, and they shall carry out the corpses (of persons) who have no relatives, that is a settled rule.
8. By the King's order they shall always execute the Criminals in accordance with the law, and they shall take for themselves the clothes, the beds and the ornaments of (such) criminals.
9. He who has had connection with a woman of one of the lowest castes shall be put to death.
10. If one who (being a member of the Chandala or some other low caste) must not be touched, intentionally defiles by his touch one who (as a member of a twice born caste) may be touched (by other twice born persons only) he shall be put to death.

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(1) Manu X.45 (2) *Ibid.*, X.50; (3) *Ibid.*, X.51; (4) *Ibid.*, X.52; (5) *Ibid.*, X.53; (6) *Ibid.*, X.54; (7) *Ibid.*, X.55. (8) *Ibid.*, X.56; (9) Vishnu V.43; (10) Vishnu V.104.

PART III

Roots of the Problem

CHAPTER 8

PARALLEL CASES

I. Slavery in Rome. II. Villeinage in England. III. Jews and Servility. IV. Negroes and slavery.

Social inequality is not confined to Hindus only. It prevailed in other countries also and was responsible for dividing society into higher and lower, free and unfree, respectable and despised. It would be interesting to compare the condition and status of the untouchables in India with the condition and status of the unfree and the despised classes in other countries ancient and modern. For an intelligent understanding of the differences and similarities it is essential to have some idea of the history of such parallel cases before any comparison can be instituted. It is not possible to give a survey of all such classes in all parts of the world. Nor is it necessary. A few typical cases can only be taken as illustrations.

In studying the relationship between the Hindus and the Untouchables three questions at once come to one's mind. Why has untouchability not vanished? Why does the Hindu regard lawlessness against the Untouchables as legitimate and lawful? Why does the Hindu feel no qualms of conscience in his dealings with the Untouchables?

I

Classes which like the Untouchables were lowly and despised have at one time existed in other societies also. For instance, they existed in once ancient Rome. The population of ancient Rome fell into five classes: (1) Patricians, (2) Plebians, (3) Clients, (4) Slaves and (5) Freemen.

The Patricians were the ruling class. They were the civics in every sense. The rest were all servile in status. The Plebs and the Clients were

destroyed by war. Those of the new comers who invoked the protection of the heads of Patrician families of repute and were ready to become their vassals were known as clients. Those who were too independent to brook submission to a private patron put themselves under the direct protection of the sovereign and became royal tenants and were known as Plebians. The Plebians had the right to hold property both movable and immovable to transfer it by quirtian modes of conveyance, and to have the protection for it of the tribunals. But the Plebian had no share in the Government of the City. He was a half-fledged citizen—*civies sine suffragio*. The Plebs were denied any participation in the religion of the city and as men to whom the suspicia were incompetent, any intermarriage between the Patrician and the Plebian was out of question. The client had to look to his Patrician patron for support and maintenance. The Patrician patron had to provide all that was necessary for his sustenance and that of his wife and children. This relation was a hereditary one, a client passed on from father to son. The client had not only to depend upon his Patrician patron for his maintenance but he had also to depend upon him for his legal protection. Not being a civic, a client had no right of suit and his Patrician patron had to assist his client in his redress for him for his injuries and represent him before the tribunals when he became involved in litigation.

As to the slaves there were millions of them. A single rich landholder might own hundreds and even thousands, and it was a poor man that did not have several at least. They were just things to be owned. They were not persons in the eye of the law and had therefore no rights. They received kind treatment from a few humane masters. But generally they were treated with the greatest cruelty. "If a slave coughs or sneezes during a meal, if he lets a key fall noisy to the floor, we fall into a great rage..... often we strike too hard and shatter a limb or break a tooth," said Seneca. One rich Roman used to punish his slaves for carelessness by casting them into a fish pond as food for lamprays. The slaves who displeased their masters were ordinarily sent to an underground prison. During the day, they had to work loaded with heavy iron chains. Many were branded with red hot iron. The mill where the slaves had to work is thus described by a Roman author; 'Gods! what poor shrunken up men? With white skins striped with blows of the whip..... They were only the shreds of tunis; bent forward, head shaved, the feet held in a chain, the body deformed by the heat of the fire, the eyelids eaten away by the fumes, everything covered with grain dust'.¹

¹ Seignbbos—History of Ancient Civilization.

English society also had at one time its servile classes. One has only to turn to the Domesday Book to see what the state of English Society was at the time of the Norman conquest.

The Domesday Book which is a social survey of the land in England and its various kinds of tenants made by William the Conqueror immediately after his conquest in 1086 shows the following classes in which the population was divided:

1. Gentry & Clergy	} made up of	{ Tenants in Chief 1,400 Under tenants 7,900 }	9,300
2. Freeholders Yeomen	} made up of	{ Freemen 12,000 Socmen 32,000 }	44,000
3. Half-free or Unfree	} made up of	{ Villeins 169,000 Cottars and Borders 90,000 }	259,000
4. Slaves			25,000

Out of a total of 3,37,000 souls as many as 2,84,000 were either unfree or slaves.

These are examples of servility in which race or religion played no part. But examples of servility by reason of race or religion are not wanting in history. The principal one is that of the Jews. On account of the belief that the Jews were responsible for the death of Christ, the Jews have been subjected to persecution. During the Middle ages in almost all the European towns, the Jews were compelled to reside within a restricted quarter in a separate part of the town, and this Jewish quarter came to be known as the 'Ghetto'. A Council held in Coyanza in Australia in 1050 enacted 'that no Christian shall reside in the same house with Jews, nor partake of the food; whoever transgresses this decree shall perform penances for seven days, or, refusing to do it, if a person of rank, he shall be excommunicated for a year; if of an inferior degree, he shall receive 100 lashes.' The Council of Falencia in 1388 enacted that "Christians must not dwell within the quarters assigned to the Jews and Moors, and those that resided within them were to remove therefrom within two months after the publication of this decree in the Cathedral and if they did not, were to be compelled by Ecclesiastical censure." In the Middle ages the Jews were obliged to have communal baths. No Jewish community could be

destitute of such baths because the State often forbade the Jews to bathe in the rivers which the Christians used. In the fourteenth Century the Jews of Augers were readmitted to the town on several onerous conditions, one being that they would not bathe in the river Maine. The State also levied certain taxes upon the Jews. They were of three kinds—poll taxes, and particular fines and dues for individual transactions and privileges. The age at which Jews or Jewesses became liable to the poll tax varied considerably but the age was very young, and in Spain, as in England in 1273, every Jew above the age of ten was rateable. The billeting of soldiers on Jews in times of peace was a frequent species of exaction. So many were the vexatious dues exacted from the Jews everywhere throughout the Middle ages that it would be impossible to enumerate them all. To crown all this Pope Innocent III decided in 1215 that thenceforward the Jews must be marked off from the Christians by a badge prominently fastened to their outermost garment. Clear and emphatic in its demand that the Jews must wear badges, the Laternan council nevertheless avoided details. It left the definition of the size, colour, and character of the degrading mark to the taste of local Governors and States. Each Governor and State devised a badge of its own pattern. On account of the extraordinary number of modification, size and shape the badge sometimes became obsolete and the Jews managed to evade it. As the badge was often hidden, in 1525 Pope Clement VII changed it for a yellow hat or bonnet.

A consideration of the position of the Untouchables reminds one of the position of the Catholics in England. The Catholics were subjected to many disabilities. The catalogue of their disabilities is given below¹:

- “1. That of Catholic marriages or of marriages Catholics celebrated by Catholic priests being deemed invalid by the existing laws, so that if one of the parties quit the other *quicumque de causa* (from any reason whatsoever), the deserted party receives no relief from the parish, nor redress from the law of his or her country. The priest, also it is said, may be transported, or put in prison and condemned to transportation for having married the parties.
2. That of foundations or of moneys appropriated for the maintenance of priests, or to support the Catholic worship, being deemed by the existing laws to be appropriated to *superstitious purposes* and as such are liable to confiscation; and when alienated or seized upon by malevolent person cannot be recovered by law; Instances of such alienations and seizures might be adduced.
3. That of Catholics serving in His Majesty's Army and Navy being withheld from attending Divine Service according to the rite

- of their own religion on Sundays and festivals, and of their being compelled to go to Protestant Churches on those days against their will—an evil which leads brave and loyal subjects to complain and be discontented at a time when every heart and hand should be united to oppose the enemy; and the United Kingdom should be as one man.
4. By the 13th Charles II. commonly called the Corporation Act, their whole body is excluded from offices in cities and corporations.
 5. By the 25th Charles II, commonly called the Test Act, their whole body is excluded from civil and military offices.
 6. By the 7th and 8th William III, c. 27 Roman Catholics are liable to be prevented from voting at elections.
 7. By the 30th Charles II, s. 2. c. 1, Roman Catholic peers are prevented from filling their hereditary seats in Parliament.
 8. By the same statute Roman Catholics are prevented from sitting in the House of Commons.
 9. By several statutes Roman Catholics are disabled from presenting to advowsons, a legal incident of property which the law allows even to the Jew.
 10. Though a considerable proportion of His Majesty's fleets and armies was Catholic, not only is no provision made for their religious comforts etc., but by the articles of war they are liable to the very heaviest pains and penalties for refusing to join in those acts of conformity to the religious rites of the Established Church. By the articles of war, section 1, a soldier absenting himself from Divine service and sermon is liable, for the first offence, to forfeit one Shilling, and for the second and every other offence, to forfeit one Shilling and to be put in irons. By the same articles section 2, article 5, 'if he shall disobey any lawful command of his superior (and of course if he shall disobey any lawful command of his superior to attend Divine Service and Sermon) he shall suffer death or such punishment as by general court martial shall be awarded.
 11. In common with the rest of his Majesty's subjects the Roman Catholics contribute to the support of the Established Religion; they have also to support their own religious functionaries; and thus have a double religious establishment to defray. Of course, however, they do not complain; but they think it a serious grievance that their own religious endowments are not legalized like those of the Protestant Dissenters.
 12. In hospitals, workhouses, and other public institutions the attendance of the ministers of their own communion is sometime denied to the poor of the Roman Catholic religion, and the children

of the Roman Catholic poor are sometimes forced into Protestant schools under the eyes of their parents.”

Like Catholics, the Untouchables also suffer from certain disabilities.

II

[The following essay has been received from Shri S. S. Rege. As it deals with ‘Negroes & Slavery’ (One of the subjects of the scheme of this Chapter) which has not been dealt with in the above discussion, it has been included here—Ed.]

Providence it seems has inexorably doomed the continent of Africa to be only a nursery of slaves for the free and civilized peoples of Asia and Europe. The Negro was imported as a slave by the Arabs into Asia long before he was introduced as a slave by the Europeans into America. Although this is so, Negro slavery in America and in the English Colonies has had a sorrowful history which has made people forget the importation of the Negro as a slave in Asia—and quite naturally—because Negro slavery in America as carried on by the Europeans was a most revolting thing. It began in the first decade of the 16th Century and lasted till the middle of the 19th Century.

In the half century after Columbus first landed in the Bahama Island in 1492, the Spaniards conquered and partly occupied a huge area stretching from Mexico through Peru to Uruguay and including all the larger west Indian Islands, while in 1531 the Portuguese began the colonization of Brazil. At once the new comers, the Portuguese and the Spaniards, set themselves to exploit the great natural wealth of their acquisitions, to work the gold and silver mines on the main land and to lay out plantations of tobacco indigo and sugar in the rich soil of the island. But they were soon confronted by the difficulty of procuring the requisite supply of labour. A great deal of it was needed, and the cost of white men’s wages and the heat of the tropical sun made it virtually impossible for the Europeans to provide it for themselves. The only labour supply of a non-European character available on the spot consisted of the native Indians. The Portuguese and the Spaniards had massacred many Indians during the conquest. Many had fled to the mountains and forest from the scourge of the invaders. Those that were available were made slaves and made to work in the mines. Under the lash of the Portuguese and the Spaniards and the relentless labour that was exacted from them in the mines and in the fields the Indians sickened and died.

The conquistadors—as the Spanish pioneers in South America were called—under the leadership of Nicholas de Ovando who followed promptly the trail of Columbus, brought with them a young priest

Bartholomew de Las Casas who was well known for his piety. Las Casas was charged by the Court of Spain to deal lovingly with the Indians in the hope of bringing them to a knowledge of the sacred Christian faith. Las Casas was the first Bishop of Mexico. In performing the duty with which he was charged Las Casas while in Haiti witnessed the cruelties that were practised by the conquistadors upon the Indians and engaged himself passionately to the end of his life in preserving the pitiable remnants of the Caribbeans as the Indians of Haiti were called, from the inevitable destruction at the hands of their masters. The Caribbeans were a gentle, unoffending and hospitable race. They numbered no less than 1,000,000 persons when Columbus found them, formed into kingdoms and ruled peacefully by their caciques. Under the systematic cruelty of these Spanish adventurers who came after Columbus their numbers were reduced to a bare 60,000. It is recorded that entire villages committed suicide inviting others to join them as the only way of escaping this scourge and this tyranny. Las Casas was a spectator to many of these scenes of self immolations. He protested in righteous anger. But his protests went in vain and were bound to go in vain. The clearing of the forest, the tilling of the soil and the working of the mines had to go on. Without this the kingdom given by God could not become the Paradise of man. Las Casas realized this. But he was also overwhelmed with grief at the thought of what the Indians would have to go through if this plan was to be realized. His benevolent instincts led him to petition the King of Spain to allow the free importation of Negroes. The Spanish Government in 1511 decreed that a large number of Negroes should be transported to the New World. In pursuance of this there came ships laden with African Negroes as cargo to make the New World a Paradise for man. For a few years both worked under the Conquistadors, Indians as well as Negroes. The sturdiness of the Negroes as compared with the Indians was soon proved. One of the Conquistadors has testified that when he prepared his timbers for the four brigautines that pass through the Isthmus from the Atlantic to the waters which flowed into the Pacific, he had used several hundred Indians and thirty Negroes, and, in the execution of this task, he found that 500 Indians perished and the thirty Negroes survived. The Negroes not only survived but prospered so much that it came to be a common opinion "that unless a Negro should happen to be hanged he would never die; for as yet, none had been known to perish from infirmity". The Negro by his own conduct and character gave evidence that he was a more efficient tool than the Indian. The result was that the Indian was let go and the Negro was preferred for the labour, the former because God made him less sturdy

and the latter because God made him more sturdy. The result was that the Indian escaped slavery and the Negro took over the destiny which was intended by the Conquistadors to apply to him—a destiny to which he was invited by the pious and benevolent priest Las Casas and for which the Negro showed his own credentials of fitness.

Having found that “one Negro does more work than four Indians” there was opened at once a regular market for trading in Negroes. The market which was opened by the Portuguese on the West Coast of Africa began immediately to show its profits and quite naturally because the exploitation of the untold wealth of the New World was impossible without Negro labour. People became so engrossed in this new business in human beings that the search for a new route to the East, which began it all, was abandoned.

There was a keen competition between the various nations of Europe for a share in this new line in commerce. A papal Bull of demarcation had created for Spain and Portugal a monopoly on the wealth flowing in from the New World. The English and the Dutch feared there was danger to all Europe in this monopoly of American resources and were determined not to allow it.

The English took a good hand in securing this trade for the benefit of their nation. The first deal took place in 1553 when 24 Negroes were brought from the Coast of Africa and quietly sold in the English market. The most intrepid, and who later became the most heartless of man stealers known to history was John Hawkins. Under Elizabeth he sailed forth in the good ship *Jesus* to get Negroes from Africa whom he sold into the Spanish Colonies. Bent on breaking the monopoly of Spain Sir Francis Drake followed Hawkins. International disputes over the pirating of these adventures arose which culminated in the clash and destruction of the Spanish Armada. It is interesting to bear in mind that in these disputes each nation shamelessly asserted that these acts of piracy committed by their subjects in stealing Negro slaves were “no private but public actions” supported by the respective states.

As though the irony involved in using the Ship *Jesus* for carrying the Negroes for enslavement was not enough there occurred another event which also was full of irony. It was the simultaneous landing of the Pilgrim Fathers on Plymouth Rock in the *Mayflower*, and the landing of twenty Negroes at Jamestown in Virginia from a barnacled and sea worn brig which sailed up the James river and brought them for the use of the gentlemen adventurers of the first successful English Colony of Virginia in America.

Thus were introduced into America the Negroes and the Pilgrim Fathers who stepped into it almost at the same time, the Pilgrim Fathers for preserving their liberty and the Negro for losing his freedom. For a long time the Negro formed a dominant element in the population of the American Colonies so far as numbers were considered. In a real sense America including its islands was settled chiefly from Africa and by Negroes. Before 1800 the number of Negroes brought in America was more than twenty times that of all Europeans combined. This was inevitable. The population of Europe was small, reduced further by its long wars and just emerging itself from a backward culture. For a long time the status of the imported Negro was undefined. The twenty Negroes brought by the Dutch and who landed in Jamestown were not immediately stamped in the Colony as slaves. They were accepted on much the same basis as the indentured servants. It has been found that in the muster rolls of the Colony of Virginia in 1624 and 1625 there were recorded 23 Negroes all of whom were listed as 'servants' as were the whites of the same class. It is also recorded that thirty-four years after the arrival of the twenty Negroes one of them Anthony Johnson got a judgment from the Court sustaining his claim to perpetual service of John Caster, another Negro. The status of slavery was not crystalized for fifty years and steps by which it became crystalized were very gradual.

To begin with there was the law of servitude which applied to all servants whether they were Negroes or whites. In course of time a distinction came to be made in the treatment of the Negroes and white servants due to the fear of an alien and pagan people which as they became traditional and gained the sanction of custom, gradually modified the status of the African and transformed Negro servitude into Negro slavery. The slavery of the Negro in the American Colonies grew by the gradual addition of incidents modifying the law and custom of servitude. In this transition from servitude to slavery there are two principal steps. The first step in the transition was taken when the custom of holding Negroes "servants for life" was recognized. As has been observed, the distinguishing mark of the state of slavery is not the loss of liberty, political and civil but the perpetuity and absolute character of that loss, whether voluntary or involuntary in origin. It differs then from other forms of servitude limited in place or time, such as medieval vassalage, villeinage, modern serfdom, and technical servitude, in degree rather than in kind. The efforts of the planters to lengthen the terms of the service of their servants which failed with the white servants succeeded with the black. Public opinion supported the change because the blacks were regarded as dangerous if left

uncontrolled. The second step by which Negro servitude was converted into Negro slavery was taken when the condition and status of the mother was extended to and continued in her offspring. The transmission from mother to child of the conditions of slavery for life grew naturally out of the fact that the master necessarily controlled the child, controlling the mother. It was evident that parents, under an obligation of life service, could make no valid provision for the support of their offspring and that a just title to the service of the child might rest on the master's maintenance. This change which had undoubtedly been effected in custom long before it was formally sanctioned by law was recognized by statute in the different states of America between 1662 and 1741.

This is how the Negro who was originally only a servant became a slave. It is to be noted that slavery in Africa the home of the Negro is a native institution and is very ancient. The most common ways of becoming a slave were: (1) By being born a slave, (2) by being sold into slavery for debt, (3) by becoming a slave through capture in war and (4) by kidnapping individuals and selling them into slavery due to revenge or greed and gain. The Negro was really familiar with the slave system and tasted the pleasures of a slave owner. One therefore may not feel the same sympathy with the Negro when he was made to give up the status of a master and made to occupy the position of a slave. But looked at even as a case of retribution well deserved, his condition as a slave in the New World to which he was transplanted, cannot fail to excite a righteous indignation for the miseries to which he was subjected by his new and alien masters.

How great were the miseries of the Negro in the New World when he became subject to the system of slavery, it is not possible for the inhabitants of Europe or Asia to imagine. They may be described under three heads. The miseries of his capture, the miseries of travel and the miseries of his toil. First as to the ways of capturing Negroes for enslavement. In the early days Negroes could be rounded up by sudden landings on the coast; but in time the Negroes learned to watch for the coming of the ships and take refuge in the bush; and, though adventurous traders sometimes penetrated inland themselves, their usual custom was to do business with professional native or half-caste dealers who took the cheap goods they had bought from Europe—cloth, beads, hardware, muskets and powder, spirit—and bartered them for slaves with chiefs up-country. There is nothing to show that the chiefs, of the stronger tribes at any rate, resisted or wanted to resist the fascination of these wares, especially the guns and drink. Enslavement within a tribe, it was observed, became the penalty for

less and less serious offences; and inter-tribal warfare with slaves for its motive as well as the kidnapping of women and children in peacetime became a more or less constant feature of African life, spreading steadily into the interior of the continent with the steady infiltration of the trade.

Secondly as to the mode of transporting the Negro to America. Having bought his slaves, the dealer marshalled them, men, women and children, in a caravan for the march, sometimes a very long march to the coast. Usually fetters were put on them to prevent escape and often they were locked in the "slave stick"—a long pole with a crutch at the end for fastening round the neck. They carried on their heads the loads of foodstuffs and other baggage required for the journey or the ivory or other native produce which the dealer might have bought. The rigours of the march were often too much for the weaker members of the party. Slaves who fell sick were killed or left to die. The more frequented slavetracks were strewn with human bones. Arrived at the coast, they were stowed on board the slave ships, which were specially fitted for their transport. The hold was divided horizontally by decks about three feet apart with a gangway down the middle. On these shelves the slaves were laid, handcuffed in pairs, men and women in separate holds. Since the bigger the cargo, the bigger the profit, they were some times packed so tightly that they could scarcely turn round. In a ship of 150 tons as many as 600 slaves were carried. The direct voyage to Brazil was fairly short, but the so-called "Middle Passage" to the West Indies—the main centre of distribution—might be protracted for several weeks by adverse or dropping winds. If it was calm enough, the slaves were brought up on deck and urged or forced to dance for exercise. In rough weather conditions of the slaves in the hold may be imagined. Disease of course, was rife on board. Though instruments were provided for forcibly feeding those who refused to eat, it was reckoned in the latter eighteenth century that on the average at least one-sixth of a cargo died on the voyage. As the end of the voyage approached, the slaves were examined and prepared for sale. Wounds, caused by storm or ill usage, were doctored up and as far as possible concealed. But the agents at the ports often complained that the "parcels of Negroes" landed were "bad" or "mean" or "much abused". Finally, on ship board or in the public slave market, the slaves were put up for sale by "scramble" or auction. The price of a healthy man rose as high as £ 60 during the eighteenth century. The sick and injured were lumped with feeble women and children and sold off cheap as "refuse". Even when at last they reached the plantations, the slaves had to face one more ideal before they settled down to

endure what was left to them of life. The first months of employment were known as the period of “seasoning” and during it no less on an average of one third of the novices failed to adjust themselves in body or spirit to the new conditions of climate or food or labour and died. Taking all the deaths together—in the slave-catching wars or raids, on the march to the sea, during the “Middle Passage” and in “seasoning”—it has been moderately reckoned that for every African Negro who became “seasoned” at least one other Negro was killed.

Thirdly as to the actual conditions of life which a “seasoned” Negro slave had to undergo. The Negro slavery gave the Master two rights which were indisputably established, the right to own and the right to punish. The right to own was given a wide meaning. By virtue of it the Master had not merely a right to the services of the Negro as a servant, but he had also the right to sell those services, to transmit by inheritance and to alienate them in any way he liked. The effect of this conception of the right was “to completely confound and identify the person of the slave with the thing owned.” The conception of the slave as property made the Negro liable to be seized in payment of his master’s debts. Even after such slaves had been emancipated they were still liable to seizure for the payment of debts contracted prior to their emancipation. The conception of a slave as property rather than as person added further disability to the legal or civil status. He could neither own nor enjoy property in his own right. This was unlike the Roman Law which did allow the slaves to own property which was called *peculium*. It was a limited right but it was still an important right because it shows that the Roman Law did recognize that a slave though property was also a person. Not being a person a Negro as a slave could neither engage in trade nor marry. The right of the Master to punish a slave was also given a very cruel interpretation in its application to the Negro. In a case which arose in the state of North Carolina Court in 1829 the Chief Justice in acquitting the Master who was indicted for beating his slave observed:

“It was a mistake to say that the relations of Master and slave were like those of parent and child. The object of the parent in training his son was to render him fit to live the life of a free man, and, as a means to that end, he gave him moral and intellectual instruction. With the case of the slave it was very different. There could be no sense in addressing moral considerations to a slave. The end of slavery is the profit of the Master, his security and public safety; the subject, one doomed in his own person and his posterity to live without knowledge and without capacity to make anything his own, and to toil that neither may reap the fruits. What moral

consideration shall be addressed to such a being to convince him, that it is impossible, but that the most stupid must feel and know can never be true—that he is thus to labour on a principle of natural duty, or for the sake of his own personal happiness? Such services can only be expected from one who has no will of his own, who surrenders his will in implicit obedience to that of another. Such obedience is the consequence only of uncontrolled authority over the body. There is nothing else which can operate to produce the effect. The power of the Master must be absolute to render the submission of the slave perfect.”

The result of such an interpretation of the Master’s right to punish was that for a long time in the U.S.A. if a Negro slave chanced to die as a consequence of “ a lawful correction” it was regarded by law as a lamentable and accidental homicide. How mercilessly this right to punish was exercised by the masters will be realized by a perusal of the extracts from letters written by a resident in Antigna in 1787. Says the writer—

“The Negroes are turned out at sunrise, and employed in gangs from twenty to sixty or upwards, under the inspection of white overseers, generally poor scotch lads, who by their assiduity and industry frequently become masters of the plantations, to which they make out as indentured servants. Subordinate to these overseers are drivers, who are mostly black or mulatto fellows of the worst dispositions; these men are furnished with whips, while on duty, which they are obliged on pain of severe punishment to have with them, and are authorized to flog wherever they see the least relaxation from labour; nor is it a consideration with them, whether it proceeds from idleness, or inability, paying at the same time, little or no regard to age or sex. At twelve they are turned in (that is leave off work) to get what they can to refresh nature with; at half past one the bell rings, when they turn out and resume their labour until sunset.....

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“The punishments inflicted on slaves in this island, are various and tormenting..... Among which is the thumbcrew, a barbarious invention to fasten the thumbs together, which appears to cause excruciating pain. The “iron necklace” is a ring, locked and rivetted about the neck; to these, collars are frequently added..... which prevent the wearers from laying down their heads with any degree of comfort. The “boots” are strong iron rings, full four

inches in circumference; closed just above the ankles; to these some owners prefix chain, which the miserable sufferers, if able to work, must manage as well as they can, and it is not unfrequent to see in the streets of this town, at midday, Negroes chained together by these necklaces, as well as the boots. ... The 'spurs' are rings of iron, similar to the boots, to which are added spikes from three to four inches long, placed horizontally. A chain fastened about the body with a pedlock is another mode of tormenting this oppressed race of being."

It would be a great mistake of judging a whole class of slave owners by the vice of individuals. Often enough, the attitude of slaves to their Masters was quite friendly and equally often the attitude of the Masters to their slaves was kindly. None the less the system was a system founded on a purely economic basis making it inevitable that human being be created as mere tools to be used without being influenced by any considerations of humanity.

It is unnecessary to adduce any more cases to illustrate the fact that the lowly, unfree and unprivileged classes have existed in the past in countries other than India. What is of importance is that these unfree, unprivileged classes have disappeared as a separate class and have become part and parcel of the great Society. The question is: Why has untouchability not disappeared ?

There are various reasons. They are discussed in the following Chapters.

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CHAPTER 9

HINDUS AND WANT OF PUBLIC CONSCIENCE

The cases in which the Hindus have indulged in violence against the Untouchables are cases of fight for equal freedom to all. If the Untouchables want to go in procession, they have no objection to the Hindus doing the same. If the Untouchables want to wear gold and silver ornaments, they do not object to the Hindus having the same right. If the Untouchables want to send their children to schools, they are not against the children of the Hindus having full freedom for education. If the Untouchables wish to draw water from the well, they have no objection to the Hindus exercising their right to take water. One can go on *ad infinitum*. But it is unnecessary. The point is easy and simple to grasp. It is that whatever freedom the Untouchables claim is not exclusive to them and is not inconsistent with the right of the Hindus to equal freedom. Why then does the Hindus use violence to put down such innocent and perfectly lawful acts? Why does he regard his lawlessness as lawful? Who cannot see that the acts and omissions, of the Hindus in his dealings with the Untouchables cannot be called by any other name except that of social wrongs. The acts and omissions are not mere inequities; they are not mere indignities. They are gross instances of man's inhumanity to man. For a doctor not to treat a patient because the patient is an Untouchable, for a body of Hindu villages to burn the houses of the Untouchables, to throw human excreta in their well if these are not acts of inhumanity, I wonder what can be? The question is why has the Hindu no conscience?

There is only one answer to these questions. The class composition in other countries were based on economic and social considerations. Slavery and serfdom had no foundation in religion. Untouchability though it can give and does economic advantages to the Hindus, is primarily based on religion. There is nothing sacrosanct in economic and social interests. They yield to time and circumstances. This is the broad explanation why slavery and serfdom have vanished and why untouchability has not. The same is the answer to the two other

questions. If the Hindu observes untouchability it is because his religion enjoins him to do so. If he is ruthless and lawless in putting down the Untouchables rising against his Established Order, it is because his religion not only tells him that the Established Order is divine and therefore sacrosanct but also imposes upon him a duty to see that this Established Order is maintained by all means possible. If he does not listen to the call of humanity, it is because his religion does not enjoin him to regard the Untouchables as human beings. If he does not feel any qualms of conscience in assaulting, looting, burning and other acts of atrocities against the Untouchables, it is because his religion tells him that nothing is sin which is done in defence of the social order.

Many Hindus would regard this as a travesty of their religion. The best way to meet the charge is to quote Chapter and verse from Manu who is the architect of Hindu Society. Let anyone, who denies what I have said, read the following Commands of Manu regarding untouchability. Untouchables and the duties of the Hindus in regard to them :

- “1. All those tribes in this world, which are excluded from (the community of) those born from the mouth, the arms, the thighs, and the feet (of Brahman), are called Dasyus, whether they speak the language of the Mlenchhas (barbarians) or that of the Aryans.
2. Near well known trees and burial ground, on mountains and in groves, let these (tribes) dwell, known (by certain marks), and subsisting by their peculiar occupations.
3. But the dwellings of the Chandalas and Shwapakas shall be outside the village, they must be made Apatras and their wealth (shall be) dogs and donkeys.
4. Their dress (shall be) the garments of the dead, (they shall eat) their food from broken dishes, black iron (shall be) their ornaments, they must always wander from place to place.
5. A man who fulfils a religious duty, shall not seek intercourse with them ; their transactions (shall be) among themselves, and their marriages with their equals.
6. Their food shall be given to them by others (than an Aryan giver) in a broken dish; at night they shall not walk about in villages and in towns.
7. By day they must go about for the purpose of their work, distinguished by marks at the king's command, and they shall carry out the corpses (of persons) who have no relatives, that is a settled rule.

(1) Manu X. 45: (2) *Ibid.* X. 50: (3) *Ibid.* X. 51: (4) *Ibid.* X. 52: (5) *Ibid.* X. 53: (6) Manu X. 54: (7) *Ibid.* X. 65.

8. By the king's order, they shall always execute the criminals in accordance with the law, and they shall take for themselves the clothes, the beds and the ornaments of (such) criminals.
9. He who has had connection with a woman of one of the lowest castes shall be put to death.
10. If one who (being a member of the Chandalas, or some other low caste) must not be touched, intentionally defiles by his touch one who (as a member of a twice born caste) may be touched (by the other twice born persons only) he shall be put to death."

Can anybody, who reads these Commandments of Manu deny that it is Hindu religion which is responsible for the perpetuation of untouchability and for the lawlessness and want of conscience on the part of the Hindus towards the Untouchables? Indeed, if the acts of omission and commission which have been detailed in the earlier Chapters of this book were correlated to these ten Commandments, it will be found that the Hindus in committing these acts are merely following the Commandments of Manu. If the Hindu will not touch an Untouchable and regards it as an offence if an Untouchable touches him, it is because of the Commandments Nos. 5 and 10. If the Hindus insist upon the segregation of the Untouchables, it is because of Commandment No. 3. If the Hindu will not allow the Untouchable to wear clean clothes, gold ornaments, he is only following Commandment No. 8. If the Hindu will not tolerate an Untouchable acquiring property and wealth, he is only following Commandment No. 3.

It is really unnecessary to labour the matter further. It is incontrovertible that the main cause which is responsible for the fate of the Untouchables is the Hindu religion and its teachings. A comparison between Paganism and Christianity in relation to slavery and Hinduism in relation to untouchability reveals how different has been the influence of the two religions on human institutions, how elevating has been the influence of the former and how degrading that of the latter. Those who are fond of comparing slavery with Untouchability do not realize that they are facing a paradox. Legally the slave was not a freeman. Yet, socially he had all the freedom necessary for the growth of his personality. Legally the Untouchable is a freeman. Yet, socially he has no freedom for the growth of his personality.

This is indeed a very glaring paradox. What is the explanation of this paradox? There is only one explanation of this paradox. It is that while religion was on the side of the slave, religion has been against

the Untouchables. The Roman Law declared that the slave was not a person. But the religion of Rome refused to accept that principle, at any rate, refused to extend that principle to social field. It treated him as a human being fit for comradeship. The Hindu Law declared that the Untouchable was not a person. Contrary to Paganism, the Hindu religion not only accepted the principle but extended it to the social field. As the Hindu Law did not regard the Untouchable a person, Hinduism refused to regard him as a human being fit for comradeship.

That the Roman religion saved the slave from the social degradation consequent upon his legal degradation is beyond question. It saved him from such degradation in three different ways. One way by which the Roman religion saved the slave was to keep the most sacred place open for the slave to occupy. As has been observed:

“.....Roman religion was never hostile to the slave. It did not close the temple doors against him; it did not banish him from its festivals. If slaves were excluded from certain ceremonies the same may be said of freemen and women—men being excluded from the rites of Bona Dea, Vesta and Ceres, women from those of Hercules at the Ara Maxima. In the days when the old Roman divinities counted for something, the slave came to be informally included in the family, and could consider himself under the protection of the Gods of the household..... Augustus ordered that freed women should be eligible as priestesses of Vesta. The law insisted that a slave's grave should be regarded as sacred and for his soul Roman Mythology provided no special heaven and no particular hell. Even Juvenal agrees that the slave's soul and body, is made of the same stuff as his master.”

The second way in which the Roman religion helped the slave was equivalent to lodging a complaint before the City Prefect whose duty it became to hear cases of wrong done to slaves by their masters. This was a secular remedy. But the Roman religion had provided another and a better remedy. According to it, the slave was entitled to throw himself before the altar and demand that he should be sold to a kinder master.

The third way in which the Roman religion saved the slave by preventing the Roman Law from destroying the sanctity of his personality as a human being. It did not make him unfit for human association and comradeship. For the Roman slave this was the greatest saving grace. Suppose Roman society had an objection to buy vegetables, milk, butter or take water or wine from the hands of the slave; suppose Roman society had an objection to allow slaves to touch them, to enter their houses, travel with them in cars, etc., would

it have been possible for the master to train his slave to raise him from semi-barbarism to a cultured state? Obviously not; it is because the slave was not held to be an Untouchable that the master could train him and raise him. We again come back therefore to the same conclusion, namely, that what has saved the slave is that his personality was recognised by society and what has ruined the Untouchable is that Hindu society did not recognize his personality, treated him as one whose personality was unclean which rendered him as unfit for human association and common dealing.

There was no gulf, social or religious, which separated the slave from the rest of the society. In outward appearance he did not differ from the freeman; neither colour nor clothing revealed his condition; he witnessed the same games as the freeman; he shared in the life of the Municipal towns and got employed in the State service, engaged himself in trade and commerce as all freemen did. Often apparent equality in outward things counts far more to the individual than actual identity of rights before the law. Between the slave and the freed there seems often to have been little social barrier. Marriage between the slave and freed and even freed and slave was very common. The slave status carried no stigma on the man in the slave. He was Touchable and even respectable. All this was due to the attitude of the Roman religion towards the slave.

There is no space to describe at length the attitude of Christianity to slavery. But it was different from Paganism. It is not known to many that during the period of slavery in America, Christian priests were not prepared to convert Negro slaves to Christianity because of their view that it would degrade Christianity if the convert remained a slave. In their opinion, one Christian could not hold another Christian as a slave. He was bound to offer him fellowship.

To sum up, Law and Religion are two forces which govern the conduct of men. At times, they act as handmaids to each other. At other times, they act as check and counter-check. Of the two forces, Law is personal while religion is impersonal. Law being personal it is capable of being unjust and inequitous. But religion being impersonal, it can be impartial. If religion remains impartial, it is capable of defeating the inequity committed by law. This is exactly what happened in Rome in regard to the slave. That is why religion is believed to ennoble man and not to degrade him. Hinduism is an exception. It has made the Untouchable sub-human. It has made the Hindu inhuman. There is no escape to either from the established order of the sub-human and the inhuman.

CHAPTER 10

HINDUS AND THEIR WANT OF SOCIAL CONSCIENCE

I

Everyone who feels moved by the deplorable condition of the Untouchables begins by saying: "We must do something for the Untouchables". One seldom hears any of the persons interested in the problem saying: "Let us do something to change the Hindu." It is invariably assumed that the object to be reclaimed is the Untouchables as though untouchability was due to his depravity and that he alone is responsible for his condition. If there is to be a Mission, it must be to the Untouchables. Nothing requires to be done to the Hindu. He is sound in mind, manners and morals. He is whole, there is nothing wrong with him. He is not the Sinner.

What is the real state of affairs? This argument that there is nothing wrong with the Hindus and that the Untouchable is responsible for whatever wrong he suffers is very much the argument that is used by the Christians for defending themselves against the inhuman treatment accorded by them to the Jews. A very crushing reply has been given by Mr. Louis Goulding to the Christians on behalf of the suffering Jews. In discussing the source of the Jewish Problem Mr. Louis Goulding says:

"I beg leave to give a very homely instance of the sense in which I consider the Jewish Problem in essence a Gentile Problem. A close acquaintance of mine is a certain Irish Terrier of mixed pedigree, the dog Paddy, who is to my friend John Smith as the apple of both his eyes. Paddy dislikes Scotch terriers; it is enough for one to pass within twenty yards of Paddy to deafen the neighbourhood with challenges and insults. It is a practice which John Smith deplotes, which, therefore, he does his best to check—all the more as the object of Paddy's detestation are often inoffensive creatures, who seldom speak first. Despite all his affection for Paddy, he considers, as I do, that Paddy's unmannerly behaviour is due to some measure

of original sin in Paddy. It has not yet been suggested to us that what is here involved is a Scotch Terrier Problem and that when Paddy attacks a neighbour who is peacefully engaged in inspecting the evening smells it is the neighbour who should be arraigned for inciting to attack by the fact of his existence."

If we equate Paddy to the Hindu and Scotch Terrior to the Untouchable the argument of Goulding will apply to the Hindus no less than it does to the Christians. If for the reasons given by Mr. Goulding the Jewish Problem is in reality a Christian Problem then the Problem of the Untouchables is primarily a Hindu Problem.

Are the Hindus conscious, do they recognise that the Untouchables are a problem to them? Are they worried about it? Is it weighing on their minds? Certain obvious tests may be applied in order to ascertain the truth. One test is the volume of literature on the subject. One can take the volume of literature issued on the Negroes of America as a standard measure. One is amazed at the huge amount of printed material that exists in the United States on the subject of the Negroes. It is said that a really complete bibliography on the Negro Problem would run up to several hundred thousand titles. The literature is really immeasurable. This proves as nothing else can, how much it is a problem to the Whites. It has disturbed through several generations all classes of people in America, the religious moralists, the political philosophers, the Statesmen, the philanthropists, the social scientists, the politicians, the businessmen and the plain ordinary citizen as well.

What is the amount of literature on the Untouchables that exists in India? Not more than half a dozen pamphlets!

Another test would be the test of social behaviour. I give below two cases reported in the papers. One is from the '*Pratap*' of 5th March 1926. It gives the following news:

"On the 23rd of February at about 11 o'clock in the day, a group of about 12 or 13 were digging earth in Begumganj, Lucknow when the quarry collapsed and they were all buried under heaps of earth. One boy and six women were rescued after the earth had been removed out of whom only one woman turned out to be alive, who belonged to Mirpur. She had received grievous injuries and her condition was very critical. The Hindu inhabitants of Begumganj however refused to give a bed to lay that woman on. At last a Muslim offered a bed; now there was no Hindu prepared to help to carry the poor woman as far as her house. At last, a sweeper was called and he undertook to carry the woman to her home as she lay on the bed."

The best illustration of the absence of conscience in the Hindu towards the Untouchables is to be found in the following incident which is reported by the Correspondent of the '*Sangram*' and published in its issue of 10th July 1946. The correspondent says:

"A woman died on the 8th of July 1946 in the Anath Ashram (Beggars Home) called Azil situated in a village called Mhapse (in Goa) and maintained by Christians. The woman was believed to be a Hindu. She was alone and had no relations. Seeing that there was no one to dispose of the dead body and to perform funeral rites, the Hindus of the village came together and raised a subscription for the purpose. They brought the dead body out of the Beggars' Home. Just about that time some Untouchables, who knew the woman came there and recognized the dead body. The moment the Hindus came to know that the woman belonged to the Untouchables the Hindus who had gathered there deserted the dead body and started walking away. The Untouchables who had come requested the Hindus to give them the amount they had collected for buying the coffin and the shroud. The Hindus refused to part with the money saying that the money was collected from the subscribers on the representation that the deceased woman was a Hindu woman. As she is not a Hindu but an Untouchable, they can't spend the money on her funeral. The Untouchables had to do their best to dispose of their dead body. The Untouchables had good evidence of the love and affection the Hindus bear towards them. The following is from the '*Milap*' of 2nd October 1925. Its correspondent reports:

"News has been received from Ruddurprayag that one evening in the first week of September a Harijan came to the Dharmashala (or monastery) of Ruddurprayag. When he learnt that a tiger came there every night, he requested the pastor of the Dharmashala to let him lie hidden in some corner of the Dharmashala for the night, so that he may remain safe from the tiger. The callous pastor, however, paid no heed to the request and closed the gates of the Dharmashala. The ill-starred Harijan laid himself down outside in one corner, full of apprehensions of the tiger. Towards the end of the night the tiger came and attacked the Harijan. As the man was quite strong and healthy and despair made him fearless, he caught hold of the tiger's neck and shouted 'I have grabbed the tiger. Come and kill him'. But the high caste pastor did not open the door, nor did he offer any sort of help, so that very soon the grip of the Harijan loosened and the tiger also ran away. At present the man is lying wounded in Shrinagar (Garhwal) where he is getting himself treated. His condition is said to be critical."

The heartlessness disclosed by these instances shows that the Hindu does not bother about what he does to the Untouchables or about what happens to the Untouchables.

A third test would be the test of service and sacrifice for the uplift of the Untouchables. Here again, one may adopt the service and sacrifice of the Americans for raising the Negroes as our standard measure. Here are some figures.

Consider the bequests¹ made by the Whites for the benefit of the Negro education.

Testator	Amount (in Dollars)	Testator	Amount (in Dollars)
Kane	50,000	Mason	1,00,000
Harton	5,000	Naunbert	40,000
Troughton	1,60,600	Harrison	2,30,000
Ottinger	500	Munger	75,000
Gambrille	35,000	Corliss	45,000
Jarepki	1,000	Rosenbanin	1,000
Strock	500	Burton	1,000
Kidder	5,000	Conroy	1,00,000
Clodin	10,000	Kent	10,000
Wood	500	Duke	1,40,000
Harkness	12,50,000	Marciliat	5,000
Beatie	2,90,000	Masey	25,000
Marquant	5,000	Nicholas	20,000
Newton	5,000	Garretson	15,00,000
Hummington	25,000	Hatcher	20,000
Phelps-Stokes	2,80,000	Wright	10,000
Butler	30,000		

These figures relate to the period before 1930. They do not take account of residuary bequests.

Compare the Educational funds² that exist for the advancement of education among the Negroes. They are:

- (i) The Avery Fund.
- (ii) The Vilas Bequest.
- (iii) The African Fund.
- (iv) The Buckingham Fund.
- (v) The George Washington Educational Fund.

(1) This Table is prepared from the list given in the 'Negro Year Book' 1931-32, p. 202.

(2) *Ibid.*, pp. 213-18.

- (vi) The Miner Fund.
- (vi) The Steward Missionary Foundation.
- (viii) The Daniel Hand Fund.
- (ix) The John Slater Fund.
- (x) The Phelps-Stokes Fund.

In addition to this, there are general Funds such as the Carnegie Corporation Julius Rosenwald Fund and the Rockefeller Foundation which also help the Negroes. The amounts distributed by these funds is not known. But they must be amounting to millions.

Compare the amount spent by Religious organizations on the education of the Negroes. Here are some interesting¹ figures.

	Annual Expenditure (In Dollars)	Permanent fund for Negro Education (In Dollars)	Value of school plants, etc. (In Dollars)
American Baptist Home Mission Board	116,247	1,597,700	3,594,251
American Church Institute for Negroes (Episcopal)	185,100	450,000	3,000,000
American Missionary Association	368,057	3,228,421	3,200,000
Church of Christ (Disciples)	91,072		500,000
United Christian Missionary Society			
Lutheran Evangelical Synodical Conference of North America Board Colored Mission	74,900		175,000
Methodist Episcopal Church Board of Education.	259,264	1,962,729	5,000,000
Institutions for Negroes			
Methodist Episcopal Church Woman's Home Missionary Society of	104,975		360,000
Presbyterian Church in the U.S.A. Division of Missions for Colored People	405,327	1,994,032	3,560,000
United Presbyterian Church Board of of Mission for Freeman	98,000	645,000	1,000,000

It is estimated that the total amount spent for the religious and philanthropic organizations between 1865 and 1930 comes to 135,000,000 dollars on the advancement of the Negroes. Of this amount, 85,000,000 dollars have been contributed by the Whites.

What is the measure of service and sacrifice of the Hindus for the elevation of the Untouchables. The only organization the Hindus can

¹ This Table is prepared from the list given in the 'Negro Year Book' 1931-32. p. 213.

boast of is the Harijan Sevak Sangh¹. Its capital fund does not probably go beyond 10 lakhs. Its annual expenditure does not go beyond a few thousand rupees on petty and insignificant and insubstantial purposes. The Fund is not a welfare fund. It is essentially a Political Fund intended to make the Untouchables vote with the Hindus.

Why is this difference? Why do the Americans exert so much in service and sacrifice for the elevation of the Negroes and why have the Hindus cared to do nothing for the elevation of the Untouchables? The answer is that the Americans have a social conscience while the Hindus have none. It is not that the Hindus have no sense of right and wrong, good and bad, moral and immoral. What is wrong with the Hindu is that his sense of moral obligation towards others is restricted to a limited class of people, namely, the members of his caste. As Mr. H. J. Paton says²:

“Clearly a man may be a good member of a limited society without being a morally good man. There seem indeed to be already shadows or anticipations of moral excellence even in the man who carries out coherently an individual policy of life; and we begin to find something which we may almost mistake for virtue itself, when we consider the man who is a loyal member of any society, even of a gang of thieves. Yet although there must be honour among thieves, a thief is not therefore an honourable man. The morally good man seems to be the man who is good as a member not of a limited society but of an unlimited society—of a society of societies whose purpose includes all purposes, and beyond which there is no other society to be a source of conflicting claims of duties.”

The Untouchable does not belong to the society of the Hindus and the Hindu does not feel that he and the Untouchables belong to one society. This is the reason why the conduct of the Hindu is marked by a moralistic unconcernedness.

Not having conscience, the Hindu has no such thing in him as righteous indignation against the inequities and injustices from which the Untouchable has been suffering. He sees no wrong in these inequities and injustices and refuses to budge. By his absence of conscience the Hindu is a great obstacle in the path of the removal of untouchability.

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¹ For details see my Book “What Congress and Gandhi have done to the Untouchables.”

² The “Good Will” by H. J. Paton. p. 281.

CHAPTER 11

THE HINDU AND HIS BELIEF IN CASTE

Among the Hindu social reformers there is a moderate section. This section holds that untouchability is separate from the caste system. Following this ideology they hold that it is possible to remove untouchability without attacking the caste system. The religious minded Hindu is as opposed to the removal of untouchability as he is to the removal of the caste system. He is as opposed to dealing with social reform in two stages as he is in dealing with it in one stage. But the politically-minded Hindu is tremendously fond of the idea. That is obviously for two reasons. In the first place, it gives the Hindu the chance of showing himself in international world as a better specimen of democracy than he really is. Secondly, by leaving caste alone there is no risk of the caste Hindus forsaking the Congress.

Those who propose to deal with untouchability without damaging the caste system, rest their case on verse 4 of Chapter X of the Manu Smriti. In the verse, Manu says that there are only four varnas and that there is no fifth varna. This verse is interpreted to mean that the untouchables are included in the fourth varna, that they are part of the Shudras and as there is no objection to touching the Shudras there could be no objection to touching the Untouchables. However pleasing this construction may be to the politically minded Hindu, it does accord with the intention of what Manu wanted to convey. The verse is open to another construction. It may mean that Manu was not prepared to enlarge the Chaturvarnya and make it a Panchavarnya by recognising these communities which were outside the four varnas as constituting the fifth varna. In saying that there is no fifth varna what he means to suggest is that he did not want to incorporate those outside the four varnas into the Hindu society by making the Hindu society consist of five varnas instead of four. That he wanted to convey the latter intention is abundantly clear by speaking of a category of people as Bahyas¹ or Varna Bahyas which means those outside the varna system. If Manu wanted to include all persons within the four varnas there was no reason for speaking of some people as varna Bahyas. Indeed, he recognises two sub-divisions within the class of Varna Bahyas. He calls them Hinas² and Antayavasins³. Given these

¹ Manu X. 28. ² Manu X. 31. ³ Manu X. 39.

facts, it is obvious that the construction sought to be placed in the verse in the Manu Smriti will not deceive the orthodox Hindu into accepting that the maintenance of untouchability is contrary to the Manu Smriti and that its abolition is not therefore contrary to the tenets of the Hindu religion.

The argument based on the interpretation of Manu's text is too intellectual for the ordinary uneducated Hindu. He knows only two things. One thing he knows is that there are three barriers in the matter of social intercourse which he must observe. They are (1) prohibition against inter-dining, (2) prohibition against inter-marriage, while in untouchability there is third barrier added and (3) prohibition against physically touching certain class of people. The first two barriers make up the caste. The third forms untouchability. The caste Hindu does not bother about the number of barriers. He is particular about the observance of the barrier. When he is asked not to observe, he turns round and asks why not? His argument is that, if I am free to observe the first two barriers, what is wrong if I observe the third? Psychologically, caste and untouchability are one integral system based on one and the same principle. If the caste Hindus observe untouchability it is because they believe in caste.

Looked at from this point of view, the idea of hoping to remove untouchability without destroying the caste system is an utter futility. The underlying idea that caste and untouchability are two different things is founded on a fallacy. The two are one and are inseparable. Untouchability is only an extension of the caste system. There can be no severance between the two. The two stand together and will fall together.

There is another reason why untouchability cannot disappear by a stratagem, legal or rational. As has already been pointed out, the Hindu social order is based on the principle of graded inequality. It may not be an exaggeration to say that not many people understand the significance of this principle. The social system based on inequality stands on a different footing from a social system based on graded inequality. The former is a weak system which is not capable of self-preservation. The latter on the other hand, is capable of self-preservation. In a social system based on inequality, the low orders can combine to overthrow the system. None of them have any interest to preserve it. In a social system based on graded inequality the possibility of a general common attack by the aggrieved parties is nonexistent. In a system of graded inequality, the aggrieved parties are not on a common level. This can happen only when they are only high and low. In the system of graded inequality there are the highest (the Brahmins). Below the highest are the higher (the Kshatriyas). Below the higher are those who are high (Vaishya). Below the high are the low (Shudra) and below the low are those who are lower (the

Untouchables). All have a grievance against the highest and would like to bring about their down fall. But they will not combine. The higher is anxious to get rid of the highest but does not wish to combine with the high, the low and the lower lest they should reach his level and be his equal. The high wants to over-throw the higher who is above him but does not want to join hands with the low and the lower, lest they should rise to his status and become equal to him in rank. The low is anxious to pull down the highest, the higher and the high but he would not make a common cause with the lower for fear of the lower gaining a higher status and becoming his equal. In the system of graded inequality there is no such class as completely unprivileged class except the one which is at the base of the social pyramid. The privileges of the rest are graded. Even the low is a privileged class as compared with the lower. Each class being privileged, every class is interested in maintaining the social system.

Untouchability may be a misfortune to the Untouchables. But there is no doubt that it is a good fortune to the Hindus. It gives them a class which they can look down upon. The Hindus do not want a system in which nobody will be anybody. They also do not want a system in which everybody may be somebody. They want a system in which they will be somebodies and others will be nobodies. The Untouchables are nobodies. This makes the Hindus some bodies. The system of untouchability sustains the natural pride of the Hindus and make them feel as well as look big. This is an additional reason why the Hindus are not likely to give up untouchability particularly those large majority who are small men.

Untouchability will vanish only when the whole of the Hindu Social Order, particularly the caste system will be dissolved. Is this possible? Every institution is sustained by some sort of a sanction. There are three kinds of sanction which supply life-force to an institution. They are legal, social and religious. The vitality of the institution depends upon the nature of the sanction. What is the nature of the sanction behind the caste system? Unfortunatley, the sanction behind the caste system is the religious sanction, for, the caste as a new form of the Varna system derives its sanction from the Vedas which form the sacred book of the Hindu religion and which are infallible. I say unfortunately because anything which has a religious sanction becomes by virtue of it sacred and eternal. To the Hindu, caste is sacred and caste is eternal. If caste cannot vanish what hope is there for untouchability to disappear?

PART IV

What the Untouchables have to face

CHAPTER 12

ANTAGONISM OF THE ADMINISTRATION

Section 2 of the Indian Penal Code reads as follows:

“ Every person shall be liable to punishment under this Code and not otherwise for every act or omission contrary to the provisions thereof, of which he shall be guilty within British India.”

The Law Commissioners who prepared the draft Penal Code in their address to the Secretary of State thought it necessary to draw pointed attention to the words ‘Every Person’. In the course of their observation, they said:

“Your Lordship in Council will see that we have not proposed to except from the operation of this Code any of the ancient sovereign houses of India residing within the Company’s territories. Whether any such exception ought to be made is a question which, without a more accurate knowledge that we possess of existing treaties, of the sense in which those treaties have been understood, of the history of negotiations, of the temper and of the power of particular families, and of the feeling of the body of the people towards those families, we could not venture to decide. We will only beg permission most respectfully to observe that every such exception is an evil; that is an evil that any man should be above the law; that it is still greater evil that the public should be taught to regard as a high and enviable distinction the privilege of being above the law; that the longer such privileges are suffered to last, the more difficult it is to take them away; that there can scarcely even be a fairer opportunity for taking them away than at the time when the Government promulgates a new Code binding alike on persons of different races and religions; and that we greatly doubt whether any consideration, except that of public faith solemnly pledged, deserves to be weighed against the advantages of equal justice.”

It might have been thought that this principle of equal justice would strike a death blow to the Established Order. As a matter of fact, far from suffering any damage the Established Order has continued to

operate in spite of it. It might be asked why the principle of equal justice has failed to have its effect. The answer to this is simple. To enunciate the principle of justice is one thing. To make it effective is another thing. Whether the principle of equal justice is effective or not must necessarily depend upon the nature and character of the civil services who must be left to administer the principle. If the civil service is by reason of its class bias the friend of the Established Order and the enemy of the new Order, the new Order can never come into being. That a civil service in tune with the new order was essential for the success of the new order was recognized by Karl Marx in 1871 in the formation of the Paris Commune and adopted by Lenin in the constitution of Soviet Communism. Unfortunately, the British Government never cared about the personnel of the Civil Service. Indeed it opened the gates of the administration to those classes who believed in the old Established Order of the Hindus in which the principle of equality had no place. As a result of this fact, India has been ruled by the British but administered by the Hindus. A few statistics of the composition of the Civil Service will fully demonstrate this fact.

From the capital of India down to the village the whole administration is rigged by the Hindus. The Hindus are like the omnipotent almighty pervading all over the administration in all its branches having its authority in all its nooks and corners. There is no loophole for anyone opposed to the old order to escape. No matter what the Department, whether it is Revenue, Police or Justice it is manned by the Hindu. If the Established Order has continued to exist, it is because of the unfailing support it received from the Hindu officials of the State. The Hindu officials are not merely administering the affairs on their merit. They are administering them with an eye to the parties. Their principle is not equal justice to all. Their motto is justice consistent with the Established Order. This is inevitable. For they carry over into administration the attitude towards different classes in society under the Established Order. This is well illustrated by the attitude of the State officials towards the Untouchables in the field of administration.

As every Untouchable will be able to testify, if an Untouchable goes to a police officer with a complaint against the caste Hindu, instead of receiving any protection he will receive plenty of abuses. Either he will be driven away without his complaint being recorded or if it is recorded, it would be recorded quite falsely to provide a way of escape to the Touchable aggressors. If he prosecutes his offenders before a Magistrate the fate of his proceedings could be foretold. The

Untouchables will never be able to get Hindus as witnesses because of the conspiracy of the villagers not to support the case of the Untouchables, however just it may be. If he brings witnesses from the Untouchables, the Magistrate will not accept their testimony because he can easily say that they are interested and not independent witnesses, or, if they are independent witnesses the Magistrate has an easy way of acquitting the accused by simply saying that the Untouchables compliment did not strike him as a truthful witness. He can do this fearlessly knowing full well that the higher tribunal will not reverse his finding because of the well-established rule which says that an appellate court should not disturb the finding of the trial Magistrate based upon the testimony of witness whose demeanour he had no opportunity to observe:

That such a discrimination is practised has now been admitted even by Congressmen. The annual Report of the Tamil Nad Harijan Sevak Sangh for the year ending September 30, 1937 says¹:

“The political consciousness of the Harijans having been roused by the rights in the remotest villages where it is only the policeman that reign, it is not always possible for the Harijan to do this, for the assertion of his rights means a clash between him and the castemen, in which it is always the latter that have the upper hand. The natural consequences of this scuffle is a complaint either to the police or the Magistrate. The latter course is beyond the means of a Harijan while the former resort is worse than useless. The complaints are in many cases not inquired into at all, while in others a verdict favourable to the castemen is entered. Our complaints to the Police also meet with similar fate. The trouble seems to us to be that there is no change in the mentality of the lower policeman. Either he is unaware of the rights of the Harijans of which he is supposed to be the guardian or he is influenced by caste men. Or, it may also be that he is absolutely indifferent. In other cases, corruption is responsible for his taking the side of the richer caste men.”

This shows how the Hindu official is anti-Untouchable and pro-Hindu. Whenever he has any authority or discretion, it is always exercised to the prejudice of the Untouchables.

The police and the Magistrate are sometimes corrupt. If they were only corrupt, things would not perhaps be so bad because an officer who is corrupt is open to purchase by either party. But the misfortune is that the Police and Magistrates are often more partial than corrupt. It is this partiality to the Hindus and his antipathy to the Untouchables

¹ See 'Hindu' of March 7. 1938.

which results in the denial of protection and justice to the Untouchables. There is no cure for this partiality to the one and antipathy to the other, because it is founded in the social and religious repugnance which is inborn in every Hindu. The Police and the Magistrates by reason of their motives, interest and their breeding, do not sympathise with the living force operating among the Untouchables. They are not charged with the wants, the pains, the cravings and the desires which actuate the Untouchables. Consequently, they are openly hostile and inimical to their aspirations, do not help them to advance, disfavour their cause and snap at everything that smacks of pride and self respect. On the other hand, they share the feelings of the Hindus, sympathise with them in the attempt to maintain their power, authority, prestige and their dignity over the Untouchables. In any conflict between the two, they act as the agents of the Hindus in suppressing this revolt of the Untouchables and participate quite openly and shamefacedly in the nefarious attempt of all Hindus to do everything possible by all means, fair or foul, to teach the Untouchables a lesson and hold them down in their own places.

The worst of it is that all this injustice and persecution can be perpetrated within the limits of the law. A Hindu may well say that he will not employ an Untouchable, that he will not sell him anything, that he will evict him from his land, that he will not allow him to take his cattle across his field without offending the law in the slightest degree. In doing so, he is only expressing his right. The law does not care with what motive he does it. The law does not see what injury it causes to the Untouchable. The police may misuse his power and his authority. He may deliberately falsify the record by taking down something which has not been stated or by taking down some thing which is quite different from what has been stated. He may disclose evidence to the side in which he is interested. He may refuse to arrest. He may do a hundred and one things to spoil the case. All this he can do without the slightest fear of being caught. The loopholes of law are many, and he knows them well. The Magistrate has vested in him an enormous amount of discretion. He is free to use it. The decision of a case depends upon the witnesses who can give evidence. But the decision of the case depends upon whether the witnesses are reliable or not. It is open to the Magistrate to believe one side and disbelieve the other side. He may be quite arbitrary in believing one side, but it is his discretion, and no one can interfere with it. There are innumerable cases in which this discretion has been exercised by the Magistrates to the prejudice of the Untouchables. However truthful the witnesses of

the Untouchables the Magistrates take a common line by saying 'I disbelieve the witnesses', and nobody has questioned that discretion. What sentence to inflict is also a matter of discretion with the Magistrate. There are sentences which are non-appealable. An appeal is a way of getting redress. But this way may be blocked by a Magistrate by refusing to give an appealable sentence.

If the Hindu society plays its part in maintaining the Established Order, so does the Hindu officials of the State. The two have made the Established Order impregnable.

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CHAPTER 13

PROBLEM OF DISCRIMINATION

To the Untouchables the problem of discrimination in order of seriousness is only next to the problem of recovering their manhood. The discrimination against the Untouchables is practised by the Hindus on a scale, the extent of which it is impossible for an outsider to imagine. There is no field of life in which the Untouchables and the Hindus come into competition and in which the former is not subjected to discrimination. It is also of the most virulent type.

In the matter of social relationship, it takes the form of barriers against dancing, bathing, eating, drinking, wrestling, worshipping. It puts a ban on all common cycles of participation.

In the use of public facilities, the spirit of discrimination manifests itself in the exclusion of Untouchables from schools, wells, temples and means of conveyance. Public administration is most deeply drenched by the spirit of discrimination against the Untouchables. It has affected Law Courts, Government Departments, Co-operative Banks, particularly the Police. Discrimination against Untouchables in the matter of securing land, credit, jobs exist in the most rampant form. It is in service that discrimination shows itself most strongly. Though there are no regulations, there are well-recognized rules which govern the entry and promotion of the Untouchables in the matter of service. Most often an Untouchable will not get an entry. Whole departments are closed to them. The weaving side of the Textile Mills—the whole of Army—is closed to the Untouchables. If he did, there is a well-set limit beyond which the Untouchable may not rise, no matter what his efficiency or length of service. The principle in general is maintained that the Untouchables shall not be placed in administrative authority over the Hindus. The consequence is that unless some entire branch of service is turned over the Untouchables, there are very few posts of consequence which the Untouchables are allowed to fill. To put it concretely, the only field of service in which there is no discrimination against the Untouchables is scavenging. There is no need for discrimination in this field because the whole of it is made over to the Untouchables and there is no competition from the Hindus. Even here

discrimination steps in the matter of higher posts. All unclean work is done by the Untouchables. But all supervisory posts which carry higher salary and which do not involve contact with filth are all filled by Hindus. In this situation rights of citizenship cannot mean the rights of the Untouchables. Government of the people and for the people cannot mean Government for the Untouchables; equal opportunity for all cannot mean equal opportunity for the Untouchables; equal rights for all cannot mean equal rights for the Untouchables. All over the country in every nook and corner the Untouchable faces handicaps, suffers discriminations, is meted injustices to the Untouchables, the most unprivileged people in India. The extent to which this is true is known only to the Untouchables who labour under the disadvantages. This discrimination is the strongest barrier against the Untouchables. It prevents them from rising out of it. It has made the life of the Untouchables one of the constant fear of one thing or another, of unemployment, assault, persecution, etc. It is a life of insecurity.

There is another form of discrimination which though subtle is nonetheless real. Under it a systematic attempt will be made to lower the dignity and status of a meritorious Untouchable. A Hindu leader would be described merely as a great Indian leader. No one would describe him as the leader of Kashmiri Brahmin even though he be one. If a leader who happens to be an Untouchable is to be referred to he will be described as so and so, the leader of the Untouchables. A Hindu doctor would be described as a great Indian doctor. No one would describe him as a Iyengar even though he be one. If a doctor happens to be an Untouchable doctor, he would be referred to as so and so, the Untouchable doctor. A Hindu singer would be described as a great Indian singer. If the same person happens to be an Untouchable he would be described as an Untouchable singer. A Hindu wrestler would be described as a great Indian Gymnast. If he happens to be an Untouchable he would be described as an Untouchable gymnast.

This type of discrimination has its origin in the Hindu view that the Untouchables are an inferior people and however qualified, their great men are only great among the Untouchables. They can never be greater nor even equal to the great men among the Hindus. This type of discrimination, though social in character, is no less galling than economic discrimination.

Discrimination is merely another name for absence of freedom. For as Mr. Tawney says¹: "There is no such thing as freedom

¹ We mean freedom in what labour can do? pp. 83-85.

in the market, divorced from the realities of a specific time and place. Whatever else it may or may not imply, it involves the power of choice between alternatives—a choice which is real, not merely nominal, between alternatives which exist in fact, not only on paper. It means, in short, the ability to do—or refrain from doing definite things, at a definite moment, in definite circumstances, or it means nothing at all. Because a man is most a man when he thinks, wills and acts, freedom deserves the outline things which poets have said about it; but, as a part of the prose of every day life, it is quite practical and realistic. Every individual possesses certain requirements—ranging from the material necessities of existence to the need to express himself in speech and writing, to share in the conduct of affairs of common interests, and to worship God in his own way or to refrain from worshipping Him—the satisfaction of which it is necessary to his welfare. Reduced to its barest essential, his freedom consists in the opportunity secured by him, within the limits set by nature and the enjoyment of similar opportunities by his fellows, to take the action needed to order to ensure that these requirements are satisfied.”

It is not my intention to add yet another catalogue of essential rights to the liberties of such lists which already exist; but these are two observations which apply to all of them. In the first place, if the rights are to be an effective guarantee of freedom, they must not be merely formed, like the right of all who can afford it to dine at the Ritz. They must be such that, whenever the occasion arises to exercise them, they can in fact be exercised. The rights to vote and to combine, if not wholly valueless, are obviously attenuated, when the use of the former means eviction and of the latter the sack; the right to the free choice of an occupation, if the expenses of entering a profession are prohibitive; the right to justice, if no poor man can pay for it; the right to life, liberty, and the pursuit of happiness, if the environment is such as to ensure that a considerable proportion of those born will die within twelve months, and that the happiness—investments of the remainder are a gambling stock. In the second place, the rights which are essential to freedom must be such as to secure the liberties of all, not merely of a minority. Some sage has remarked that marriage would not be regarded as a national institution if, while 5 per cent of the population were polygamous, the majority passed their lives unsolved and unencumbered by husbands or wives. The same is true of freedom. A society in which some groups can do much what they please, while others can do little of what they ought, may have virtues of its own; but freedom is not one of them. It is free in so far, and only in so far,

as all the elements composing it are able in fact, and not merely in theory, to make the most of their powers, to grow to their full stature, to do what they conceive to be their duty, and—since liberty should not be too austere—to have their fling when they feel like it. In so far as the opportunity to lead a life worthy of human beings is restricted to a minority, what is commonly described as freedom would more properly be called privilege.

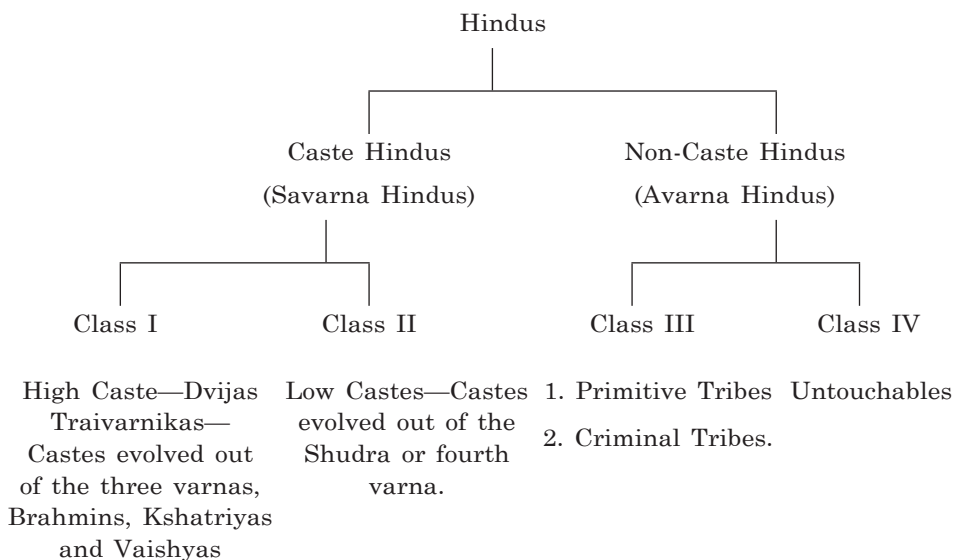
The discriminations against the Untouchables are merely the reflections of that deep and strong Hindu sentiment which is carried over in law and administration which justifies the making of distinctions between Hindus and Untouchables to the disadvantage of the Untouchables. Those discriminations have their roots in fear of the Hindus that in a free field, the Untouchables may rise above the prescribed station in life and become a menace to the Hindu Social Order the cardinal principle of which is the maintenance of Hindu superiority and Hindu domination over the Untouchables. So long as the Hindu Social Order lasts, discriminations against the Untouchables continue to exist.

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CHAPTER 14

PROBLEM OF ISOLATION

Why has the movement of the Untouchables not succeeded? Have they no allies? If there are allies why do they not help and co-operate with the Untouchables? This is a very pertinent question and it is necessary that it should be properly understood. For answering this question, it is essential to have a very clear idea of the Hindu social organisation and the classes of which it is composed. The structure of Hindu society is a very complicated one and it would be difficult for one, whose life has not been woven into it, to know the pattern. Perhaps, a diagrammatic presentation may be helpful. I give below one which, in my judgment, facilitate the understanding of the social structure of the Hindus:



The diagram shows that although there are innumerable castes among the Hindus, they can all be grouped under four classes. Of these four, Class I forms the *Herenfolk* or the Ruling Class, Classes III and IV form the subject people.

Let us now consider which of these classes can be the natural ally of the Untouchables.

Those in Class I form the privileged classes of the Hindu society. The Hindu social order was created by them. They alone benefit by it while the aim of these in Class I is to save it. Neither by community of interest nor by reason of ideological affinity can the two friends and allies disagree.

What about the Criminal and Primitive Tribes? They have the strongest ground for over-throwing the Hindu Social Order.

What about the Shudras?

The laws of the Hindu Social Order are as repulsive to Class II, the Shudras as they are to Class IV, the Untouchables. It is interesting to know the status of the Shudras in the Hindu society as prescribed by Manu the Law-giver and the Architect of Hindu society. For an easy understanding of the subject, the rules regarding the status of the Shudras are set out below under separate heads:

Manu asks the householders of the Brahmins, Kshatriyas and Vaishyas:

IV. 61 "Let him not dwell in a country where the rulers are Shudras."

A Shudra is not to be deemed to be a respectable person. For Manu enacts that :

XI. 24. "A Brahmin shall never beg from a Shudra, property for (performing) a sacrifice i.e., for religious purposes."

All marriages with the Shudra were proscribed. Marriage with a woman belonging to any of three other classes was forbidden. A Shudra was not to have a connection with a woman of the higher classes and an act of adultery committed by a Shudra with her was considered by Manu to be an offence involving capital punishment.

VIII. 374. "A Shudra who has an intercourse with a woman of the higher caste guarded or unguarded shall be punished in the following manner; if she was unguarded, he loses the offending part; if she was guarded then he should be put to death and his property confiscated."

VIII. 20. A Brahmana who is only a Brahman by decent i.e., one who has neither studied nor performed any other act required by the Vedas may, at the king's pleasure, interpret the law to him i.e., act as the judge, but never a Shudra (however learned he may be).

VIII. 21. The Kingdom of that monarch, who looks on while a Shudra settles the law, will sink low like a cow in the morass.

VIII. 272. If a Shudra arrogantly presumes to preach religion to Brahmins, the king shall have poured burning oil in his mouth and ears.

In the matter of acquiring learning and knowledge Manu ordains as follows:

III. 156. He who instructs Shudra pupils and he whose teacher is a Shudra shall become disqualified for being invited to a Shradha.

IV. 99. He must never read the Vedas in the presence of the Shudras.

Manu's successors went much beyond him in the cruelty of their punishment of the Shudra for studying the Veda. For instance, Katyayana lays down that if a Shudra overheard the Veda or ventured to utter a word of the Veda, the King shall cut his tongue in twain and pour hot molten lead in his ears.

As to property by the Shudra, Manu enjoins as follows:

X. 129. No superfluous collection of wealth must be made by a Shudra, even though he has power to make it, since a servile man, who has amassed riches, becomes proud, and, by his insolence or neglect, gives pain to Brahmins.

VIII. 417. A Brahman may seize without hesitation, if he be in distress for his subsistence, the goods of his Shudra. The Shudra can have only one occupation. This is one of the inexorable laws of Manu. Says Manu:

I. 91. One occupation only, the Lord prescribed to the Shudra, to serve meekly these other three castes (namely Brahmin, Kshatriya and Vaishya).

X. 121. If a Shudra, (unable to subsist by serving Brahmana), seeks a livelihood, he may also seek to maintain himself by attending on a wealthy Vaishya.

X. 122. But let a (Shudra) serve Brahmins, either for the sake of heaven, or with a view to both (this life and the next) for he who is called the servant of a Brahman thereby gains all his ends.

X. 123. The service of Brahmins alone is declared (to be) an excellent occupation for a Shudra for whatever else besides this he may perform will bear him no fruit.

Service by Shudra is not left by Manu to be regulated as a free contract. If the Shudra refused to serve, there is a provision for conscription which runs as follows:

VIII. 413. A Brahmana may compel a Shudra, whether bought or unbought, to do servile work for he is created by the creator to be the slave of a Brahmana.

X. 124. They must allot to him out of their own family (property) a suitable maintenance, after considering his ability, his industry, and the number of those whom he is bound to support.

X. 125. The remnants of their food must be given to him as well as their old household furniture.

A Shudra is required by Manu to be servile in his speech and manner towards the other classes.

VIII. 270. A Shudra who insults a twice born man with gross invectives shall have his tongue cut out; for he is of low origin.

VIII. 271. If he mentions the names and castes of the (twice born) with contumely, an iron nail, ten fingers long, shall be thrust red hot into his mouth.

Manu is not satisfied with this. He wants this servile status of the Shudra to be expressed in the names and surnames of persons belonging to that community. Manu says:

II. 31. Let the first part of a Brahman's name denote something auspicious, a Kshatriya's be connected with power, and a Vaishya's with wealth but a Shudra's express something contemptible.

II. 32. The second part of a Brahmin's name shall be a word implying happiness, of a Kshatriya's (a word) implying protection, of a Vaishya's a term expressive of thriving and of a Shudra's an expression denoting service."

It is obvious that these three classes are naturally allies. There is every ground for them to combine for the destruction of the Hindu Social Order. But they have not. It is not that no attempt has been made to unite them. The non-Brahmin Party which held the field between 1919-1935 was an attempt to unite them into one political organization to destroy the dominance of the Brahmins who are the architects of the Hindu Social Order and being the chief beneficiaries of it are its strongest supporters.

This was not the only attempt to bring about solidarity among the three classes. Another attempt is being made by the labour leaders particularly the Communists. They preached that there is an identity of interest of the working class, no matter to what community they belong. There must be developed in them class consciousness and class unity. Once united they could employ the terrifying power of their numbers to break down the economic order and once the economic order falls to the ground the social order of the Hindus is bound to go to pieces. What has been the result? The result is that the solidarity has failed to come. The Shudras and the Criminal and Primitive Tribes are more hostile to the Untouchables than they are to the Brahmins. Indeed it is the Shudras who act as the police force of the Brahmins for repelling the attack of the Untouchables on the Hindu social order. This is a strange phenomenon. But it is a fact. The atrocities that are committed upon the Untouchables, if they commit any breach of the

rules and regulations of the established order and of which description has been given in earlier chapters are all the doings of the Shudras.

The reasons for this want of solidarity is not far to seek. It is to be found in the system of graded inequality whereby the Brahmin is above everybody, the Shudra is below the Brahmin and above the Untouchable. If the Hindu social order was based on inequality, it would have been over-thrown long ago. But it is based on graded inequality so that the Shudra while he is anxious to pull down the Brahmin, he is not prepared to see the Untouchable raised to his level. He prefers to suffer the indignities heaped upon him by the Brahmins to join the Untouchables for a general levelling down of the social order. The result is that, there is nobody to join the Untouchable in his struggle. He is completely isolated. Not only is he isolated he is opposed by the very classes who ought to be his natural allies. This isolation is one more obstacle in the removal of untouchability.

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¹APPENDICES TO BOOK 1

APPENDIX I

²MATTERS MADE WORSE BY UNTOUCHABILITY

A correspondent from Jaipur reports the following incident which occurred in June 1953:

“Jaipur, June 25: The guinea worm, called *nahru* or *bala* by people here, is a disease prevalent in the State which keeps the patient suffering for months, sometimes for a year or two. Many lose the use of a limb as a result of this disease.

The disease spreads through the medium of drinking water. The only preventive steps doctors advice is that water should be drunk after boiling and filtering.

The disease frequently occurs as the rains set in, which is also the time for sowing with the result that at a time when he should be preparing to earn his living a villager is confined to bed.

On investigation in the village of Kopra near Banswara it was found that in 57 families there were 125 sufferers from guinea worm. There were six members in a Harijan family, five of whom had guinea worm. They had only a few bits of dry meat to eat.

Often the trouble is thrust on these people by society. A pond from which Harijans drink water was so dirty that it must have been a nursery for the guinea worm. When showed to the Collector of Banswara he was shocked and ordered the pond closed immediately.

Nearby, was a pucca well from which water could be taken by entering into it. Hindu were entreated to permit Harijans, to take water from this well but they would not agree. The Collector asked them if they would drink the water from the pond, if told to. They admitted that the water was unfit for human use, yet they would not allow Harijans use of the pucca well.

Conditions are bad and Harijans are the worst sufferers. The law has made untouchability a crime. The Harijan Sevak Sangh has long been working for its oblition, but it cannot be said that the hearts and minds of caste Hindus in the countryside have undergone a change. The State Governments have not been able to do much in this connexion.

‘All Press news-reports printed in Appendices to the Book I, have been found at the end of M.S. of this book.—E.d.

² It approved in the Statesman of June 27, 1953.

APPENDIX II

From 'Sunday Times', March 9, 1952

WHERE WEARING A SHIRT IS AN OFFENCE

Woes of Harijans in S. India

A Social Worker's Experience

(By Swami Anand Thirth, Regional Officer,
All India Harijan Sevak Sangh)

It is sad to notice that the various civil disabilities of Harijans still continue to exist in our villages in spite of the Civil Disabilities Removal Act which came into force about five years ago. It is now 9 months since the All India Harijan Sevak Sangh started its intensive work for the removal of social disabilities of Harijans in Melur Taluk in Mathurai district. Several disabilities of Harijans regarding tea shops, barber saloons, wells, tanks, chavadies, etc., have been brought to light during this period. In some places it is the Village Munsifs who were expected to give wide publicity to the Act and enforce it, that are very reactionary forces standing in the way of the poor Harijans exercising their elementary rights. A few instances are cited below to show how deep-rooted is the prejudice against the Harijans in our society.

In Parli near Natham, a Harijan youth who refused to take tea in a cocoanut shell and desired to be served in the glass tumbler was kicked and shoed on the head by a caste Hindu who was subsequently convicted and fined only Rs. 10 by the Sub-Magistrate, Melur. At Melavalvoo, when I went to a tea shop with two Harijan boys, a group of people threatened to assault me and drove away the boys. A glass tumbler was wantonly broken by the tea shopkeeper and they all demanded that I must pay for it on penalty of being thrashed. I, however, took shelter in an Elementary School nearby and the crowd disappeared only on the intervention of the President of the Panchayat Board.

At Kelavalvoo, the Harijans take water from a dirty pond in which men bathe and cattle are washed. The Harijans were encouraged to go to the public Oorani (protected water tank), but they were abused and threatened by the caste Hindus so that they dare not take water from the Oorani. There is a Police Station at Kelavalvoo, but the police here are indifferent towards the disabilities of the Harijans. In Attukulam the caste Hindus put night-soil in the public well because they could not physically obstruct the Harijans who took water from it under our directions. In Ettimangalam, the caste Hindus destroyed the paddy

seedlings raised by some Harijans in Government poromboke and because the Harijans had got into the chavadi during a public meeting held in the village. No action was taken by the police on the complaint given by the poor Harijans.

In Tiruvadur when we directed Harijans to take water from the Oorani, a caste Hindu youth assaulted a pregnant Harijan woman and broke her pot as well. The caste Hindu was charged by the police and convicted by the Sub-Magistrate to pay a fine of only Rs. 15 and thereafter the Harijans are freely taking water from this Oorani. In Kottagudi, a village barber, who refused hair-cut to a Harijan boy was charged by the police and convicted by the Sub-Magistrate. But thereafter, the Harijans were summoned by the caste Hindus to the chavadi and warned that in case they sought the service of this barber, a collective fine would be imposed on them.

In Kidaripatti, the Harijans are not allowed to take the corpse through the public foot path and they are also not permitted to ride on cycle through the village streets. A case regarding the alleged obstruction of a Harijan from riding on cycle is pending trial in the Sub-Magistrate's Court, Melur. In Nundikovilpatti, only three furlongs from the Taluk Office, Melur, the Harijans were taking drinking water from a dirty channel because they had no access to the Oorani. Two complaints were given to the police regarding this and now the caste Hindus dare not obstruct the Harijans. In Thekkitheru, when the Harijans sat on the Manthai chavadi during a public meeting held at the chavadi, pebbles were thrown at them till they quitted the place out of fear.

In Navinipatti about two miles from Melur, the village Munsif himself is alleged to have taken objection to the Harijans wearing-decent dress on Pongal festival day and made two Harijan youths to remove their shirts and upper cloth. The youths were made to do Kumbidal (full prostration on the ground) and go away in loin-cloth only.

The most painful oppression has been in Mankulam, about ten miles from Mathurai city, where the village Munsif took a hostile attitude. Two Harijan youths went to tea shop and as they were denied admission, they complained to the police. For this, one of them was tied to a pillar and mercilessly beaten by a caste Hindu boy under instructions from the elders. Another Harijan was assaulted with a knife by a servant of the village Munsif. The Harijans were socially boycotted and denied labour because they took water from the public Oorani. The shopkeepers refused to sell provisions to them and they were put to starvation for two days. The situation improved only after the intervention of the Revenue Divisional Officer.

Recently, two Harijans and myself were brutally attacked by a band of caste Hindus and beaten with firewood cudgels for having bathed in the tank and gone into a coffee club in front of the chavadi. We were admitted and treated in the Government Hospital in Mathurai. I sustained a fracture in the right foot due to which I cannot use the right leg and walk. Sixteen persons including the village Munsif have been charged by the police for rioting. Some Congress-men are, however, trying for a compromise because some of their relations are involved in this. These friends are also known to have approached the authorities in this connection. Mahatmaji had desired us to consider the Harijans as blood brothers, but alas ! blood is thicker than water.

One feels so dejected and disheartened at the attitude of the caste Hindus towards the Harijans in spite of the great sacrifices of Mahatmaji, who won Swaraj for us and desired us to concede freedom to these down-trodden people as well. The Revenue and police authorities can do a lot to remove the disabilities of the Harijans. Mahatmaji's son Manilal is offering satyagraha in South Africa for the civil disabilities of Indians. But we are denying similar liberties to the Harijans whom Mahatmaji owned as his kith and kin. Let the caste Hindus and Congressmen who adore Mahatmaji remember that his spirit will not rest in peace till the curse of untouchability is wiped out, root and branch, from the nook and corner of our land. The Government must realise the deed for greater efforts to remove this bane from our society.

APPENDIX III

LYNCH LAW AGAINST HARIJANS

(Painful and shameful atrocities in Thumbapatti)

Stop the Chavadi Courts in our Villages

The Chavadi Courts:

It is a well known fact that though the Harijans are denied entry in the public chavadies in the villages in Tamilnad, they are tried by the caste Hindus at these chavadies and victimised to such an extent that they always live in fear of the caste Hindus. One of the reasons why the Harijans in the villages do not respond to our movement of the removal of their civil disabilities is their constant fear of this victimisation by the caste Hindus under the leadership of the village Periambalagar, the chief of the caste Hindus. In several places, the villagers run these chavadi courts under the colour of holding Panchayats. The poor Harijans are summoned to the chavadi and tried like slaves. If any of them go against the order of the Periambalagar then the Lynch Law is put into operations and they are subjected to

merciless beating and torture with a view to strike terror in them and to demonstrate the absolute power of the Periambalagar. The victimisation of the Harijans at the chavadi takes place in various forms according to the circumstances and the whims of the Periambalagar and his council—public whipping, imposition of heavy fines and confiscation of their properties on failure to pay the same, foisting of false cases, economic boycott by denying labour and with holding wages, social ostracism by prohibiting their taking part in social functions and religious ceremonies, denial of water by preventing access to tanks and wells, denial of foodstuffs by banning sale of articles to them in the village-shops etc. etc. The liberation of the Harijans is possible only if the Government takes strong measure against the villagers for holding these illegal and unlawful courts in the name of the village panchayat. No civilised Government can tolerate the persecution of a backward and minority community by the villages in the various manners mentioned above.

Atrocities in Thumbapatti:

The following account of the trial of Harijans at Thumbapatti on 1st August 1953 would make any heart bleed. This village is 22 miles from Madurai and it is the native place of Shri P. Kakkan, M. P., one of the prominent Harijan Leaders of Tamilnad. It is learnt that all the adults in the Harijan cherri were summoned to the mandai (common place) in front of the chavadi. The caste Hindus did obeisance to the Periambalagar and his council, in the usual manner, by doing full prostration, their belly touching the ground to pick up the dust. About a dozen Harijan youths were then picked out for trial on the charge they were suspected of the various petty thefts occurring in the village. It is however learnt that youths who were a bit assertive and not usually submissive to the caste Hindus had been singled out for punishment. They were given blows with sticks and were asked to admit having committed the thefts. The other Harijans were questioned and under fear of victimisation they are said to have thrown all the thefts on the accused. Judgement was passed that the youths were guilty and some of them were handcuffed for being duly punished. It is learnt that one of them however remonstrated and tried to escape on some plea. This disrespect to the chavadi court was immediately resented by the villagers and it is learnt that the Periambalagar promulgated the chavadi ordinance that the Harijan youths be severely dealt with. The Lynch law was put into operation and a most merciless attack was made on the Harijan youths. All those who had some grudge or prejudice against the Harijans got the opportunity to wreak vengeance on them with impunity. The Harijan youth who had tried to escape was dragged by his legs over the rough and stony ground. The others were beaten with sticks and tied to the trees and again beaten so mercilessly till their bones were almost

broken. There they were made to stand, tied to the trees for about eight hours, as the pitiable objects of public scorn. The Harijans in general appear to have been warned that they should not co-operate with the Harijan workers.

False Case Foisted:

What the villagers did thereafter is still more shameful. It is the usual practice to foist cases on the Harijans and to get the police to take immediate action. When it was discovered that the Harijans had sustained serious injuries, the villagers realised that they would get into trouble. It is learnt that Shri Poosari Kakkan, the Eighty-years old father of Shri P. Kakkan, M.P., who is working as the village Thotti, was therefore asked to give a false complaint that some articles in the Harijan temple were found missing since the previous evening and a report was sent to the Police by the village Munsif, that these articles were recovered from the Harijan youths. Shri Poosari Kakkan, and his relation, another village Thotti named Etti Kakkan, are said to have brought these articles and given to the village Munsif. Immediately on receipt of the report the Police came, arrested the Harijan youths on a charge of theft and sent them to the Hospital as they were found wounded. We do not propose to publicly criticise the action of the Police. Enough to say, the atrocities on the Harijans by the villagers, did not catch the official eye of the Police!

The Truth Known:

The villagers were good enough to send a mass petition supporting their action to Shri A. Vaidyanatha Iyer, President, Tamilnad Harijan Sevak Sangh. It was forwarded to me for enquiry and report. A small committee consisting of the President of Melur Taluk Congress Committee, the Secretary of Melur Taluk Harijan Sevak Sangh, the Secretary of the Seva Samaj, Melur and myself accordingly enquired into the matter and found that the villagers had made a merciless attack on the Harijan youths and kept them tied to the trees for about eight hours till the arrival of the Police. The complaint given by Shri Poosari Kakkan and the Periambalagar were examined by Shri Vaidyanath Iyer and they admitted to him that the complaint given to the Police was a false and concocted one. The Periambalagar also expressed regret for the wrongs done to the Harijans. Meanwhile the police also investigated into the complaint given by Shri Poosari Kakkan and referred the case as 'undetectable'. No case was however taken against the villagers. It appears the bones of the Harijans youths had not actually broken. The marks of beatings with sticks and of the rope-tie were visible on their bodies for several days. Two of them were kept at the hospital for two days and their legs were X-rayed to make sure if their bones were broken. They were sent out with plaster bandages on their legs. They were not able to walk properly for a fortnight.

Two enquiries conducted:

An enquiry was conducted by the Dy. Welfare Officer, Madurai under orders from the Dy. Collector and another enquiry was recently conducted by the Revenue Divisional Officer, Madurai under orders from the Government. The result is yet to be known.

Civil Disabilities in Thumbapatti:

There was terrible opposition from the villagers of Thumbapatti when the Harijans took water from the public Oorani in 1948. Till then the Harijans were taking water from a dirty pond where cattle are washed and men bathe. Some Harijan youths were severely beaten and an attempt was made to set fire to Harijan houses. The village Munsif and others are said to have been warned by the authorities in this connection. One case, where a Harijan was denied coffee in the glass tumbler in a tea shop in Thumbapatti, was reported to the Police on 19th August 1953 and the tea shopkeeper was convicted and sentenced to pay a fine of Rs. 10 by the Sub-Magistrate. The village barber declares that he is willing to serve Harijans. Yet the Harijans do not go to him probably because of the secret warning given to them by the caste Hindus. Some Harijans had gone to the barber on 1st July 1953 and there is reason to believe that the trial of the Harijan youths on 1st August 1953 was an arrangement made to strike terror in the Harijans.

Our general experience:

It is our general experience that when the Harijans make bold to assert their elementary rights, the villagers summon them to the chavadi and persecute them in one form or other. Such happenings took place in Mangulam. Kuruvankulam, Adanoor, Pathiattamgudi and Karugakottai. The higher officials of the Police were good enough to visit these places. In some places, the Harijans were summoned to the chavadi and warned as at Kottagudi, Kidaripatti and Pullipatti. The subordinate Police officials usually support the caste Hindus and thus the latter get the freedom to apply their Lynch law and bring the Harijans to a sense of their social servility.

Can we tolerate this:

The question before us is whether we can tolerate this kind of public lynching and humiliation of the Harijans in these days when we had revolted against the atrocities of the Dyers at Jallianwalla bagh. In Jallianwalla, the atrocities were committed by foreign bureaucrats on men and women who had assembled in a gathering. Here similar atrocities were committed by our villagers on a few Harijan youths who were tried at the chavadi with a view to strike terror in the Harijans in general.

What the Government must do:

Village Panchayats consisting of elected members including Harijans, have been formed by the Government in the villages. One wonders why the caste Hindus should be allowed to run their chavadi courts in parallel to these Government recognised Panchayats. These chavadi courts are a menace to the social, economic and political progress of the poor backward class communities in the villages. There can be no salvation or freedom to the Harijans in the villages unless these chavadi courts are banned by the Government. All our efforts for the removal of the civil disabilities of Harijans will go in vain till the chavadi courts are prohibited from dealing with the Harijans. Before spending 3 lakhs of rupees for the eradication of untouchability, the Government must take necessary measures to stop the victimisation of the Harijans at the chavadi and enable them to raise their heads as human beings. Untouchability in public places has become a thing of the past in Kerala because of the non-existence of these chavadi courts in that part of the country.

An Appeal:

It was Mahatma Gandhi who made us realise the great injustice we do to poor Harijans in the villages by treating them as low castes and slaves. But for him the Harijans in the various parts of the country would have gone out of the Hindu fold because of the unbearable sufferings under the caste Hindus. It is now 21 years since Mahatma Gandhi observed the Epic Fast at Poona to create public opinion in favour of the Harijans. No doubt there has been a great awakening during the last decades and there is now general sympathy towards the Harijan movement. The Government is pledged to the removal of all the social and civil disabilities of Harijans and it is giving full cooperation to all peaceful and legitimate efforts to improve the status of the Harijans. But we have to admit that there is still, lot of prejudice towards the Harijans in the villages. We appeal to all public workers to bring about a change of heart of the caste Hindus in the villages so that the Harijans are no longer treated as a separate Untouchable class. We appeal to all leaders to work for the eradication of untouchability and to see that the Harijans are treated as part and parcel of the Hindu society.

Southern Range,
Head Office: Melur.

Swami Anand Tirth, M.A.,
Regional Officer,
All India Harijan Sevak Sangh.

BOOK II

SOCIAL

Besides the consolidated scheme on “Untouchables or children of India’s Ghetto” included in Book 1 in this Volume, there are several other essays by Dr. Ambedkar which deal with the subject of ‘Untouchables and Untouchability’. These essays are divided into three categories viz., Social, Political and Religious. In Book II, five essays have been included under “Social”.

CHAPTER 15

CIVILIZATION OR FELONY

I. Another cross section view of India's population. II. Sunken classes seen through it: (a) Primitive Tribes, (b) Criminal Tribes and (c) Untouchables. III. Effect of Hindu Civilization on the condition of these classes. IV. Difference in the problems of these classes.

The population of India is generally classified on a linguistic or on religious basis. These are the only two ways of classifying the people of India which have been persistently in vogue for a long time. The effect is that outsiders get the impression that, what is of interest and importance to know about the peoples of India is the religions they profess or the languages they speak. Limited by this interest, they remain content with a knowledge they get about the religions and languages that are prevalent in India. All that the outsider cares to hold in his head is that, in India there are people who are either Hindus or Mahomedans, if he is interested in religion or that there are people in India some of whom speak Marathi, some speak Gujarathi, some Bengali and some Tamil, etc.

Of the two ways of classifying people of India the religious classification is the one which is more impressive and arresting for the foreigner. He is more interested in the religions than in the languages. But even he is not aware of all the religious communities in India. He knows only of Hindus and Mahomedans. He sometimes hears of the Sikhs, very seldom of Christians although they are a growing community and never of the Buddhists who are of course non-existent so far as India of today is concerned¹.

The impression of the foreigner is that there are only Hindus and Musalmans in India and that there are none others worth bothering about. That this should be his impression is quite natural. The air is filled with the din and noise of the Hindu-Moslem conflict. How grave

¹There is a very feeble attempt at revival carried on by the Maha Bodhi Society of Calcutta. (This and other information is taken from Census of India, 1931, Vol. 1 Part. 3)

the conflict is, can be seen from the number of Hindu-Moslem riots that have taken place in recent years and the casualties and deaths that resulted from them.

But this struggle is a struggle for establishing an empire. There are Hindus who are agitating for establishing in India a Hindu Raj with Mahomedans as subject only. There are Mahomedans who are dreaming of Pan Islamism and of making India a part of a Muslim Empire with a choice for the Hindus between the sword and the Koran. In between these two extremists, there are sober persons who are for a state in which both Hindus and Muslims can live as equal partners. Whether the extremists will succeed or the moderates will succeed time alone can show. In the meantime the extremes in both the ; camps are making headlines by their blood baths. But, be that as it may, I venture to think that there are many who will not feel much interest in this struggle between the Hindus and the Mahomedans. ; After all it is a struggle for mastery for dominance. It is a struggle for liberation. It is a struggle for establishing an empire of one over the other. They will be more interested in the struggles of the down trodden, of those who are fighting to obtain the title deeds to respectable humanity. In describing the old quarrel between the Whigs and Tories in England, Francis Place in describing the political policy of the Whigs said, they were out to crush the king on the one hand and the people on the other hand and establish the aristocracy of the governing class. Those Hindus and Musalmans who are now fighting have the same policy in Indian politics. They want to establish their classes from them as the governing body. The masses whether of the Hindus or of the Musalmans are merely used for establishing the ascendancy of the classes. This struggle that is going on is really a struggle of the classes. It is not a struggle of the masses.

Those who are interested in the struggle of the masses must learn to look at the population of India from another point of view. They must cease to look at it purely from the point of view of religion. They must look at the population of India from the social and economic point of view. This does not mean that one need not care to know how religion has affected the economic and social life of the people of India. Indeed no study of the Indian people, be they Hindus or Musalmans, can give an adequate picture of their life if religion is kept out of consideration. Because religion is supreme in India as was the Roman Catholic Church in the Middle Ages in Europe. Bryce¹ has described the dominance of the Church over the lives of the people in terms that are worth recording "A life in the Church, for the Church, through the

¹Holy Roman Empire. P. 367.

Church; a life which she blessed in mass at morning and sent to peaceful rest by the vesper hymn; a life which she supported by the constantly recurring stimulus of the sacraments, relieving it by confession, purifying it by penance, admonishing it by the presentation of visible objects for contemplation and worship, this was the life which many of the Middle Ages conceived of as the rightful life of the man; it was the actual life of many, the ideal of all”.

The dominance of religion on the life of the people of India today is no whit less than the dominance of the Church over the lives of the people in the Middle Ages. It would therefore be a mistake to leave religion out of consideration. But it is equally true to say that a purely religious point of view would give only a superficial picture. What is important to know is how the masses and the classes in India live? What are the social and economic terms of their associated life? To what extent are these influenced by religion? The answer to this question is given by the condition in which we find certain classes who fall within the Hindu fold.

II

It is a pity that Prof. Max Muller did not visit India. On seeing the contrast between theory and practice he might have explained the contrast. For the present the contrast remains a riddle.

This is so in spite of the doctrine of Bramha, asserted by the Brahmins to be residing and pervading every human being. If there is Bramha in a Brahmin so also it is in a Primitive man, in a Criminal Tribes man and so also in an Untouchable? How are these two facts to be reconciled—the theory of Bramha and as against it the existence of the Primitive Tribes, the Criminal Tribes and the Untouchables?

This sunken humanity falls into three distinct categories. One such category is comprised of people who are called Primitive Tribes. Communities listed as Criminal classes form a second and separate category and the third category is the one which covers what are called the Untouchables.

The total population of persons who fall into these three categories is by no means small. The population of the Primitive Tribes in India according to the Census of 1931 comes in round figures to 25 millions. The total population of the Criminal classes now listed as Criminal is somewhere about 4½ millions. The total population of the Untouchables according to the Census of 1931 is 50 millions in India as a whole. The total of these classes comes to 79½ millions. And the question is what is the position of these 79½ million souls?

First as to the Primitive Tribes. In what state of civilization are they?

The name Primitive Tribes is expressive of the present state of people who are called by that name. They live in small scattered huts in forests. They live on wild fruits, nuts and roots. Fishing and hunting are also resorted to for the purpose of securing food. Agriculture plays a very small part in their social economy. Food supplies being extremely precarious they lead a life of semi-starvation from which there is no escape. As to clothes they economize them to a vanishing point. They move almost in a state of complete nakedness. There is a tribe which is known as “Bonda Porajas” which means “naked Porajas”. Of these people it is said that, the women wear a very narrow strip which serves as a petticoat almost identical with what is worn by the Momjak Nagas in Assam, the ends hardly meeting at the top on the left thigh. These petticoats are woven at home out of the fibre of a forest tree. Girls wear a fillet of beads and of palmyra leaf and an enormous quantity of beads and neck ornaments extremely like those worn by many Komjak women. Otherwise the women wear nothing. The women shave their heads entirely Of the Chenchus, a tribe residing near Farhabad in the Nizam’s Dominions it is said that “their houses are conical, rather slight in structure made of bamboos sloping to the central point and covered with a thinnish layer of thatch..... They have very little indeed in the way of material effects, the scanty clothes they wear, consisting of a langoti and a cloth in the case of men and a short bodice and a petticoat in the case of women, being practically all, besides a few cooking pots and a basket or two which perhaps sometimes contains grain. They keep cattle and goats and in this particular village do a little cultivation, elsewhere subsisting on honey and forest produce which they sell”. Regarding the Morias another Primitive Tribe, it is stated the men generally wear a single cloth round the waist with a flap coming down in the front. They also have a necklace of beads and when they dance, put cock’s plums and peacock’s feathers in their turbans. Many girls are profusely tattooed, especially on their faces, and some of them on their legs as well. The type of tattooing is said to be according to the taste of the individual and it is done with thorns and needles. In their hair, many of them stick the feathers of jungle cocks and their heads are also adorned with combs of wood and tin and brass.

These Primitive Tribes have no prohibition against eating anything, even worms and insects and in fact there is very little meat that they will not eat, whether the animal has died a natural death or has been killed four days or more before by a tiger.

The religion of these Primitive Tribes is the worship of demons of all denominations and dead ancestors of all antiquity. Witchcraft, sorcery, animal and human sacrifice make up their religion. Without education, with no idea of Science or of the knowledge of the working of nature, steeped in ignorance and superstition, these Primitive Tribes have been living on the outskirts and in close conformity with civilization in a savage stage which has been their lot for ages. Instead of marching along, they are where they have been all along doing nothing but marking time.

The Criminal Classes at one time included such well organized confederacies of Professional Criminals as the Pindharies and the Thugs.

The Pindharies were a predatory body of armed gangsters. Their organization was an open military organization of freebooters who could muster 20,000 fine horse and even more. They were under the command of brigand chiefs. Chitu, one of the most powerful commanders had under his single command 10,000 horse, including 5,000 good cavalry, besides infantry and guns. The Pindharies had no military projects for employing their loose hands of irregular soldiery, which developed into bodies of professional plunderers. The Pindharies aimed at no conquests. Their object was to secure booty and cash for themselves. General loot and rapine was their occupation. They recognized no rulers. They were subject of none. They rendered loyalty to none. They respected none and plundered all high and low rich and poor without fear or compunction.

The Thugs¹ were a well organized body of professional assassins, who in gangs of from 10 to 200 travelled in various guises throughout India, worked themselves into the confidence of Wayfarers of the wealthier class and, when a favourable opportunity occurred, strangled them by throwing a handkerchief or noose round their necks and then plundered and buried them. All this was done according to certain ancient and rigidly prescribed forms and after the performance of special religious rites, in which was the consecration of the pickaxe and the sacrifice of sugar. They were staunch worshippers of Kali, the Hindu Goddess of destruction. Assassination for gain was with them a religious duty, and was considered a holy and honourable profession. They had in fact no idea of doing wrong, and their moral feelings did not come into play. The will of the goddess by whose command and in whose honour they followed their calling was revealed to them through a very complicated system of omens. In obedience to these, they often travelled hundreds of miles in company with, or in the wake of their

¹ Encyclopaedia Britannica. 11th Ed.. Vol. XXVI. p. 896.

intended victims before a safe opportunity presented itself for executing their design; and when the deed was done, rites were performed in honour of that tutelary deity, and a goodly portion of the spoil was set apart for her. The Thugs had also a jargon of their own, as well as certain signs by which its members recognized each other in the remotest part of India. Even those, who from age or infirmities could no longer take an active part in the operations used to aid the cause as watchmen, spies or dressers of food. It was owing to their thorough organization, the secrecy and security with which they went to work, but chiefly to the religious garb in which they shrouded their murders, that they could continue for centuries to practise their craft. The extraordinary fact was that Thuggee was regarded as a regular profession by the Indian Rulers both Hindu and Mahomedans. The Thugs paid taxes to the State and the State left them unmolested.

It was not until the British became rulers of the country that any attempt was made to suppress the Thugs. By 1835, 382 Thugs were hanged and 986 were transported or imprisoned for life. Even as late as 1879 the number of registered Thugs was 344 and the Thuggee and the Dacoity department of the Government of India continued to exist until 1904 when its place was taken by the Central Criminal Intelligence Department.

While these open and professional criminals have been suppressed and are no more to exact their toll and disturb the peace, there are still in India communities whose occupation is crime and who are listed by Government as Criminal Tribes.

The Criminal Tribes live in the plains in close proximity, if not in the midst of, civilized life. Because they subsist by organized robbery and dacoity, they are for this reason proscribed by the Government of India as Criminal Tribes. Hollius in his "Criminal Tribes of the United Provinces" gives an account of their activities. They live entirely by crime. A few may be ostensibly engaged in agriculture but this is only to cover up their real activities. Their nefarious practices found most scope in dacoity or robbery by violence, but being a community organized for crime nothing came amiss to them. On deciding to commit a dacoity in any particular locality, spies would be sent out to select a suitable victim, study the general habits of the villagers and the distance from any effective aid, and enumerate the number of men and firearms. The raid usually took place at midnight. Acting on the information given by the spies, men would be posted at various points in the village and by firing off their guns, attract attention from the main gang which would attack the particular house or houses previously appointed. The gang would usually consist of 30 to 40 men.

It is essential to emphasize the great part played by crime in the general life of these peoples. A boy is initiated into crime as soon as he is able to walk and talk. No doubt the motive is practical to a great extent in so far as it is always better to risk a child in petty theft, who if he were caught, would probably be cuffed, while an adult would immediately be arrested. An important part is also played by women, who, although they do riot participate in the actual raids, have many heavy responsibilities. Besides disposing of most of the stolen property, they are also expert shoplifters.

Like the Criminal Tribes the Untouchables also live in the midst of civilized Hindu Society and possess a degree of culture and morality which completely separate them from the Primitive Tribes and the Criminal Tribes. The Untouchables have the culture¹ of the Hindu Community. They observe the religious rites of the Hindu Community. They recognize the sacred as well as the secular laws of the Hindus. They celebrate the Hindu festivities. But they derive no benefit from this. On the contrary they are segregated and shunned because their physical contact is held by the Hindus to cause pollution. There is therefore an interdict on all social intercourse with them except for unavoidable purposes. They live on the outskirts of a village and not in the midst of it. Every village has its Untouchable quarters, they are attached to the village but are not a part of the village. Segregated from the rest of the Hindu population they are bound down to a code of behaviour which is appropriate to a servile state. According to this code, an Untouchable may not do anything which raise him above his appointed station in life. He should not dress in style superior to that of his status, nor should the untouchable woman adorn herself with ornaments after the fashion of the higher class Hindu women. He should not have a house better or bigger than the houses of the rest of the Hindus in the village. In any case he must not have a tiled roof over his house. An Untouchable must not sit in the presence of a Hindu and must always salute him first. An Untouchable must not wear clean clothes, must not use brass or copper pots and must not wear gold or silver ornaments. When some one dies in the family of a Hindu, an Untouchable must go miles to convey the message of the death to the relatives of the family, no matter how far away they might be living, because a Hindu in a village feels disgraced in the eyes of his relatives if he has to communicate such messages by postal communication. An Untouchable must accompany the women folk of the Hindus on their journey from their homes to their parents and *vice versa*. Their dignity requires that they should have a retinue and the Untouchable is the only available class from which such a retinue can

be drawn without any cost. At every ceremony at the house of a Hindu, the Untouchables must come and do menial work. An Untouchable must not own and cultivate land and lead an independent life. For his livelihood he must depend upon stale remnants of food left over by the Hindu households and upon meat of cattle that die in the village. These remnants of food he must collect from door to door. For he must go on his begging round every evening. Similarly an Untouchable must carry the dead animals out of the village. Indeed he alone must carry them because no Hindu will agree to do scavenging. An Untouchable should not take to such services as would give him authority and power over caste Hindus. He must be humble and must not ask for more than his lot under this code. It is true that some of the Untouchables have risen above the low status prescribed by this customary code of conduct and have acquired high place, but the majority of them are still socially in the most servile position and ~ economically in abject poverty.

Such is the condition of the 79½ millions of people. The problem of these deadened, if not dead, souls is no small problem. The total population of these three classes comes to over 60% of the population of the United States but exceeds the population of the whites in the British Empire by 9½ millions. It also exceeds the population of Japan by 9½ millions. It exceeds the population of Italy by 37 millions. It exceeds the population of Germany by 13½ millions and of France by 37½ millions. It is ten times the population of Belgium and twenty times the population of Denmark. What a colossal total of sunken humanity?

III

The saddening and if, one may say, annoying part of the story is that the state of these unfortunate human beings should be what it is although they are surrounded and fed by a high civilization. But it must strike any impartial observer that there must be something very radically wrong with a civilization which has failed to elevate to their manhood 79½ millions of human beings.

Civilization as comprising and accumulated store of knowledge of man and nature, of arts and crafts, an ethical code regulating the conduct of man towards his fellows, a social code laying down the forms and conventions to be observed by individuals, a civil code prescribing the rights and duties of the rulers and the ruled and a religious creed relating the natural to the supernatural—is a rare prize. It has not been the good fortune of all races to develop it in all its fullness. Many have stood where they were at the start. Many took one or two steps and have been at a halt. Others have only revolved round and round. The primitive races of Australia and Polynesia, when they

were first discovered a few generations ago, were found to have developed articulate speech and to know how to make fire. They had not advanced beyond the middle stage of savagery. The Alliapascous, a Primitive Tribe of the Hudson Bay Territory and the Indians of the valley of Columbia had not gone beyond the stage of the Bow and the Arrow. They knew nothing of pottery, domestication of animals or of the smelting of iron. The civilization of Egypt, Babylonia, Assyria and even of Rome and Greece had only been a revolving civilization. Their progress and achievements are only the elaboration of the details of methods and intentions handed down by man when he was in a Barbaric state. They added nothing revolutionary to the sum total of civilization to which they were heirs. They merely did better what used to be done crudely by their predecessors. Nor have the stages of advancement followed in quick succession. That man was for long ages a savage before he made sufficient progress to be called a Barbarian admits of no doubt. Equally little in doubt is it that other long ages of Barbarism have preceded the final ascent to the lowest stage of civilization. The precise period of time covered by these successive 'ages' is of course only conjectural; but something like one hundred thousand years may perhaps be taken as a safe minimum estimate.

Civilization is indeed no easy gain. But civilization is a very vital thing, not for one generation but also for the next. The civilization of one generation, when inherited becomes the equipment of the next. This social heritage is absolutely essential for each generation. All progress will die out if this social heritage is destroyed. As has been well put, "If the earth were struck by one of Mr. Wells' comets, and if in consequence every human being now alive were to lose all the knowledge and habits which he had acquired from preceding generations (though retaining unchanged all his own powers of invention and memory, and habituation) nine-tenths of the inhabitants would be dead in a month and 99 per cent of the remaining tenth would be dead in six months. They would have no language to express their thoughts but vague reverie. They would not read notices or drive motor cars or horses. They would wander about, led by the inarticulate cries of a few naturally dominant individuals, drowning themselves, as thirst came on, in hundreds at the riverside landing places. Men could not invent in time to preserve their lives, methods of growing food or taming animals or making fire or clothing themselves. Life would have to be begun over again from the primitive stage. Like the primitive races a generation which has lost its social heritage would have to begin life on wild fruits and worms until they had accumulated a new social heritage. After some thousands of generations they would

probably possess some thing which would be recognized as language, and perhaps some art of taming animals and cultivating land. They might or might not have created what we should call a religion or a few of our simpler mechanical inventions and political expedients. They might or might not have such general ideas as law, liberty, justice. This is the difference which social heritage makes and the difference is no doubt vast.

It is true that civilization is not the privilege of all and even to those who are fortunate to have it, it is a matter of slow growth marked by long and monotonous halts. But it is also true that to those who are possessed of civilization, their civilization may be a hindrance rather than a help. It might have gone on a wrong track, it might have based itself on false values and false premises. Such a civilization might easily cause stagnation of the Community and the stunting of the individual. It would be better to be without civilization than to be burdened and enshakled by such a civilization.

It is the boast of every patriotic Hindu that the Hindu or the Vedic Civilization is the oldest in the world. One often hears with firesome repetitions a Hindu stating with a certain degree of malicious pride that India had reached a very high degree of civilization when other people were leading a primitive life and moving naked. One also hears a Hindu say that his civilization has inherent strength because it has survived while all other ancient civilization such as Egypt, Babylon, Judea, Rome and Greece have vanished. Such a view however legitimate misses the main point. The main point is not whether the civilization is ancient and whether it has survived.¹ The main point is what are the merits of a civilization? What is its worth, if it has survived, on what plain? In other words the principal question is, is this Hindu civilization, the social heritage a burden or a benefit? What does it offer by way of growth and expansion to classes and to individuals?

What is the contribution of Hindu Civilization to the knowledge of man and nature? Many patriotic Hindus like to believe that the knowledge of man and nature began with the Hindus. Granting that it is so it certainly did not advance beyond the most rudimentary stage. Can any Hindu doubt that the Hindu Philology, right or wrong, has remained where Panini and Katyayana left it? Can he deny that Philosophy right or wrong has remained where Kapila and Gautama left it? Can he doubt that literature remained where Vyasa and Valmiki left it. In Metaphysics the Hindus are said to have reached the

¹ See my 'Annihilation of Caste'

stage of perfection. This is what Prof. Har Dayal has to say of Hindu Metaphysics¹ —

“Metaphysics has been the curse of India. It has blighted her history and compassed her ruin. It has converted her great men into miserable quibblers, and led them into useless channels of inquiry and effort. It has been the dangerous will-o’-the-wisp of Indian intellect during many centuries. It has elevated sophistry to the rank of an Art, and substituted vain fancies for a knowledge. It has condemned Indians intellect to run in the same old roove for hundreds of years. It has blinded her seers and led them to mistake phantoms for realities Arrogant, pretentious, verbose and purblind, it has taken its cackling for an oracle and its fantastic word towers for solid piles of thought masonry.....”

“.....The Upanishads claim to expound ‘that by knowing which every thing is known’. This mediaeval quest for ‘the absolute’ is the basis of all the superior metaphysics of India. The treatises are full of absurd conceits, quaint fancies, and chaotic speculations. And we have not yet learned that they are worthless. “Samadhi” or trance is regarded as the acme of spiritual progress ! How strange it is that a capacity for swooning away should be considered the mark of wisdom ! It is very easy to lose consciousness if one has strong emotions and a feeble intellect. That is why ladies faint so often on the slightest provocation. But in India Samadhi is the eighth stage of Yoga, which only ‘*paramahans*’ can reach. These be thy Gods, O, Israel! To look upon an abnormal psychological condition produced by artificial means as the sign of enlightenment was a folly reserved for Indian Philosophers.”

In the domain of science, Arts and crafts the contribution of the Hindu Civilization is of the most primitive character. Except in some spheres such as weaving, spinning, etc., the Hindu Civilization has not evolved any technical equipment which can aid man in his struggle against nature to make a bare living that can be said to be higher than that of the brute. It is because of the complete absence of scientific and technical equipment and with all the transcendental nonsense that is being perpetrated that famines are desolating the land in all ages. Ignorance, superstition and disease which affect the mind, malaria and plague diseases which affect the body, have hung like a pall over the country throughout the ages.

In the field of Religion and Ethics the Hindus have made their greatest efforts. Of their contributions, these are the most elaborately developed. They are undoubtedly the most vital to man for the simple reason that they help to install in man the springs of thought and

¹ Modern Review. July 1912.

action. They are responsible for the outlook which man has on life. They are responsible for the attitude one holds towards his fellow man. They prescribe principles which govern conduct, mould character and implant in man that mysterious thing called conscience which acts as his sentinel and prevents him from going wrong.

It is when one comes to examine this Hindu Civilization in the matter of its religious content, the way of life it prescribes, that one begins to doubt whether this Hindu Civilization is at all an advantage to the generations who are fated to inherit it. What does this civilization offer to the 25 millions of Primitive Tribes who are living on its frontiers ? What does it offer to the 5 millions of Criminal Tribes who are living in the midst of that civilization? What does it offer to the 50 millions of Untouchables who are not only living in the midst of that civilization but are required to sustain it ? What would the Primitive Tribes say of a civilization which has made no effort to adopt them in its fold ? What would the Criminal Tribes say of a civilization which has driven them to take to criminal ways for earning their livelihood ? Would it be unjust if they said that this is not Civilization, this is infamy ?

As to the Untouchables, theirs has been a fate of degradation and destitution in the past and for whom under the Hindu Civilization there seems to be no escape in the future. Even Indians do not seem to realize the extent of degradation and destitution that is involved in this system of Untouchability. The observations of the Committee appointed by the Government of Bombay to inquire into the grievances of the Depressed Classes and Aboriginal Tribes in 1928 are very pertinent. It said.

“There is nothing strange in the idea that an unclean person or thing causes repulsion which underlies the idea of pollution. But what is regrettable about it as applied to the (UNTOUCHABLES), is its irrationality. It stamps an individual as untouchable by the mere accident of his birth. A person born Untouchable, remains Untouchable however superior he may be in personal cleanliness to the so-called touchable, and there is no way open to him by which he can escape his fate. What is surprising in all this is that an Orthodox Hindu, notwithstanding the differences between his religious notions and mode of living and outlook in life and those of the Mahomedans, Parsis and Christians treat them as touchables. This has resulted in further aggravating the position of the (Untouchables). For this unjust discrimination on the part of the Orthodox Hindus, in some cases being influenced by the Orthodox Hindus especially in villages, even the Mahomedans, Parsis and

Christians observe untouchability towards the (Untouchables) though their religions teach contrariwise. What we are concerned most to point out are the evils attributable to it in so far as Untouchability includes isolation and inferiority. But there are evils specifically attributable to untouchability as such. Pressed to its logical limit, in an Orthodox Hindu Society it would prevent the (Untouchables) from obtaining entry into a public school though it is maintained at the expense of the state, it would prevent them from entering the public services though they may be qualified for it, except for the services customarily allotted to them. It would also prevent them from taking water from the public watering places maintained out of public funds. Looked at from this point of view untouchability is not merely a social problem. It is a problem of the highest political importance and affects the fundamental question of the civic rights of the subjects of the state.”

This states the hardships only of the Untouchables. But untouchables are not the only people who are subjected to this life of ignominy. There are classes who are placed in a worse position. Untouchables are those who cause pollution only by a physical touch. There are people who cause pollution if they come within a certain distance. They are known as unapproachables. Again there are people who are in a worse position than the unapproachables. They cause pollution if they come within sight. They are known as unseeable. It is said of the Nayadis¹—a people who fall into the category of the unapproachables, “that they are the lowest caste among the Hindus—the dogeaters. They are the most persistent in their clamour for charity, and will follow at a respectful distance, for miles together any person walking, driving or boating. If any thing is given to them, it must be laid down, and after the person offering it has proceeded a sufficient distance, the recipient comes timidly forward, and removes it.” Of the same people Mr. Thurston says “The subject (i.e. the Nayadis) whom I examined and measured at Shoranur, though living only about three miles off had, by reason of the pollution which they traditionally carry with them to avoid walking over the long bridge which spans the river, and follow a circuitous route of many miles”.

In the Tinnevalley District of the Madras Presidency, there is a class of unseeables called Purada Vannas. Of them it is said, “that they are not allowed to come out during day time because their sight is enough to cause pollution. These unfortunate people are ‘compelled’ to follow the nocturnal habits, leaving their dens after dark and scuttling home at the false dawn like the badger, hyaena, aordvark.”

¹ Malabar Manual.

What must be the hardships of the unapproachables and unseeables ? How must they be passing their lives ? If their sight or their approach even is not tolerated, what work can they obtain ? What else can they do except to beg and live on dog's meat ? Surely no civilization can be guilty of greater cruelty ! It is indeed a great mercy that the population of the unapproachables and of the unseeables is so small. But are 50 millions of Untouchables entitled to any civilization ?

An Untouchable cannot escape his fate for he cannot pass off as a Touchable. In the village where he resides he is of course known and there is no room for impersonation while he is there. If he leaves his village and comes to a town there is a chance for him to pass off as Touchable. But he knows what would be his fate if he were discovered.

The following incident which was reported in the papers will give some idea of the risk involved in any attempt to impersonate:

** Orthodoxy Run Mad.

Alleged Barbarious Treatment of "Untouchables": Crime of being Mahars.

Mr. Keshavji Ranchhodji Vaghela from Ahmedabad has informed Dr. B. R. Ambedkar, President, Bahishkrit Hitkarani Sabha as follows:

One Bapoorao Laxman and his brother Kaurao have been residents of Ahmedabad during the last six years. They used to mix with some people from the Deccan belonging to Maratha caste. Kaurao's two sons, viz, Damoo and Laxman, used to take part in the Bhajan parties of the Marathas. The latter, however, recently came to know that the brothers Damoo and Laxman were Mahars by caste and in order to ascertain this, two Mahars employed in the parcel train between Surat and Ahmedabad were specially called to identify Damoo and Laxman. After it was ascertained that Damoo and Laxman were Mahars they were called at a Bhajan party at Kalupur, Bhandari Pole, at midnight on the 11th instant. Asked as to what caste they belonged to, Damoo and Laxman replied that they were Somavanshis. This reply enraged the Marathas, who freely abused them for having defiled their persons and places. The Mahar brothers were assaulted by the Marathas. One of the brothers had a gold ring on his person. It was forcibly taken away from him and sold for Rs. 11. Out of this amount Rs. 6 was paid to the Mahar who had been called from Surat to identify the brothers. Damoo and Laxman entreated and Marathas were requested to allow them to return to their homes, but the latter refused to do so unless a fine of Rs. 500 was paid. On the Mahar brothers

** Bombay Chronicle 25th Feb. 1938.

pleading their inability to pay such a heavy sum, one of the Marathas suggested that the Mahar brothers should be fined only Rs. 125. But then one of the Marathas opposed the proposal for fine saying that they should not be satisfied with fine, but should punish the Mahars severely for their crime of concealing their caste. Having decided upon the course, the Mahar brothers were detained and at about 9 o'clock in the morning they were subjected to barbarous indignities, their moustaches in the left side and eyebrows on the right side were shaved, their bodies besmeared with soot mixed in oil and also with dirt, garlands made of old shoes were put around their necks, and one of them was asked to hold a broom in his hand and the other to hold a placard on which it was written that the punishment was meted out to the culprits for venturing to touch high caste people. The Mahar brothers were taken in procession consisting of about 75 people, a drum being beaten in the front.

A complaint has been lodged with the Police by the said two Mahar brothers. The accused in their statement have admitted that Damoo and Laxman were treated in the alleged manner, but pleaded that the complainants had willingly agreed to undergo the punishment. Obviously Damoo and Laxman were helpless when they were abused, assaulted and threatened with severe punishment and actually subjected to barbarous indignities. This case has created a great sensation among the people belonging to the so called Untouchables castes, and efforts are being made to give proper legal aid to the complainants. But the rules of this Hindu Civilization are so meticulous in regard to untouchability as to leave no possibility for an Untouchable to pose as a Touchable. Consequently there exist rules in certain areas where Untouchables are required to bear a black thread so as to be easily identifiable and to proclaim by word of mouth that he is an Untouchable to prevent a Touchable touching him in ignorance and thereby getting himself polluted. In the town of Dwarka (in the Bombay Presidency) which is famous as being the shrine of the great Hindu God Krishna it is a rule that every Untouchable while walking in the streets has to clap his hands and say "Post, Post" so as to proclaim the fact that he is an Untouchable and let the Touchables beware of him. The following is recorded of the Cherumans of the Madras Presidency:

"Very low is indeed the social position of these miserable beings. When a Cheruman meets a person of superior caste he must stand at a distance of thirty feet. If he comes within this prohibited distance, his approach is to cause pollution, which is removed only by bathing in water. A Cheruman cannot approach a Brahmin village or

temple or tank. If he does so, purification becomes necessary. Even while using the public road, if he sees his lord and master, he has to leave the ordinary way and walk, it may be in the mud, to avoid his displeasure by accidentally polluting him. To avoid polluting the passerby, he repeats the unpleasant sound, "O, Oh, O"—In some places i.e. Palghat, one may see a Cheruman with a dirty piece of cloth spread on the road side, and yelling in a shrill voice, "Ambrane, Ambrane, give me some pice and throw them on the cloth". His position is intolerable in the Native States of Cochin and Travancore, where the Brahman influence is in the ascendent, while in the Palghat Taluka the Cherumans cannot, even to this day enter the bazaar. In Malabar it is stated that ** "The man of high caste shouts occasionally as he goes along, so that the low caste man can go off the road, and allow him to pass unpolluted. And those of the lowest castes shout, as they go, to give notice of their Pollution bearing presence, and learning the command of the man of high caste, move away from the road. It is common to see people of inferior caste travelling parallel to the road, but not daring to go along it".

What a degradation for these unfortunate souls who have been turned by this Hindu Civilization into social lepers! To be called an Untouchable is enough of a misfortune. But to require an Untouchable to proclaim by his own mouth his shame that he is an Untouchable is a cruelty to which in my opinion there is no parallel. What would an Untouchable say of this Hindu Civilization? Would it be wrong if he said that it is felony and not civilization?

That the condition of the Primitive Tribes, of the Criminal Tribes and of the Untouchables is the result of fundamental doctrines of Hindu Civilization there can be no manner of doubt.

Why have there been no missions to bring these Primitive Tribes into the Hindu fold?

Why has crime become an occupation for certain tribes? Why have certain classes been treated as unfit for human association, as Untouchables?

The answer to each of these questions will have reference to some basic principle of the Hindu Civilization.

To the first question the answer is that the caste system prevents the Hindu Religion from becoming a missionary religion and caste is a fundamental part of the Hindu Civilization. To the second question the answer is that the system of Chaturvarna limits the opportunities which a person can have for earning an honourable living. All learned are the preserve of the Brahmins; all warlike services are the monopoly

**Thurston—Tribes and castes of Southern India, Vol. 5, p. 196.

of the Kshatriya class; trade is open only to Vaishya, services to the Shudras. Those outside, there being nothing honourable left, have been driven to dishonourable and criminal ways of earning a livelihood. This is the result of Chaturvarna and Chaturvarna is again a fundamental part of Hindu Civilization.

To the third question the answer is that untouchability is part of the Hindu law as contained in the Smritis which are again a fundamental part of the Hindu Civilization.

IV

It is true that as for the past the state of degradation has been the common fate of all the three categories of these 79½ millions of India's population. But it cannot be said that their future destiny will also be common to them. That is because although their condition is apparently similar, their position is essentially different.

The first thing to note is that the Primitive Tribes and the Criminal Tribes are not afflicted by this system of untouchability. To a Hindu they do not cause pollution. Indeed these Primitive and Criminal Tribes observe untouchability towards the Untouchables. The situation is full of humour when one sees members of these Primitive and Criminal Tribes feeling that they would be polluted if they would touch an Untouchable. They are poor, filthy, superstitious, ignorant, far more than the Untouchables yet they pride themselves as socially superior to the Untouchables. This of course is the result of the contagion which they have from the Hindus. But the point to note is that the Hindu does not treat them as Untouchable. That is an advantage which they have over the Untouchables and which makes their future assured. If the Primitive Tribes have no opportunities for advancement it is because they choose to live in isolation. But once they come out of their forest recesses and take part in civilization, there is nothing that will stand in their way. Similarly the Criminal Tribes have their future assured. Government have established settlements where these Criminal Tribes are kept and taught useful trades. There is no doubt that in a very short time they will be completely weaned from their vicious habits.

The case of the Untouchables stands on quite a different footing altogether. Their disabilities are imposed upon them. Their isolation is really segregation which is enforced upon them. The problem of the Untouchables is different from the problem of the Primitive Tribes because in their case the evils of segregation are aggravated by the fact of untouchability and the result is that while in the case of the

Primitive Tribes the problem is due to geographical isolation combined with lack of desire to avail themselves of the opportunities for betterment, in the case of the Untouchables the problem is due to positive denial of opportunities.

There does not seem to be much hope for the emancipation of the Untouchables, at any rate their emancipation is far more problematical and distant than the emancipation of the Primitive Tribes. The problem of the slaves was one of denial of political or economic rights. If the problem of the Untouchables was one of denial of political and economic rights it could be solved by legal and constitutional methods. The denial of political and economic rights is the result of the social psychology of the Hindus. The problem for the Untouchables arises directly out of the social behaviour of the Hindus. Untouchability will vanish only when Hindus will change their mentality. The problem is how to make the Hindus unlearn their way of life. It is no small matter to make a whole nation give up its accustomed way of life. Besides the way of life the Hindus are accustomed to, is a way which is sanctified by their religion, at any rate they believe it to be so. To change their way of life is almost to change their religion.

How can this happen ? Only when it is realised that what is tragedy for the Untouchables is the crime of the Hindus. How long shall the Untouchables have to wait for this revolution in the religious psychology of the Hindus? Let those who have a gift for prophecy answer. In the meantime it would be desirable to describe their condition and to state the problems which they and their friends have to face.

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CHAPTER 16

THE HOUSE THE HINDUS HAVE BUILT

1

Is there any thing peculiar in the social organization of the Hindus? An unsophisticated Hindu who is unaware of investigations conducted by scholars will say that there is nothing peculiar, abnormal or unnatural in the organization of the society to which he belongs. This is quite natural. People who live their lives in isolation are seldom conscious of the peculiarities of their ways and manners. People have gone on from generation to generation without stopping to give themselves a name. But how does the social organization of the Hindu strike the outsiders, non-Hindus? Did it appear to them as normal and natural?

Megasthenese who came to India as the ambassador of the Greek King Seleukos Nicator to the Court of Chandragupta Maurya some time about the year 305 B.C. did feel that the social organization of the Hindus was of a very strange sort. Otherwise he would not have taken such particular care to describe the peculiar features of the Hindu social organization. He has recorded :

“The population of India is divided into seven parts. The philosophers are first in rank, but form the smallest class in point of number. Their services are employed privately by persons who wish to offer sacrifices or perform other sacred rites, and also publicly by the kings at what is called the Great Synod, wherein at the beginning of the new year all the philosophers are gathered together before the King at the gates, when any philosopher who may have committed any useful suggestion to writing, or observed any means for improving the crops and the cattle, or for promoting the public interests, declares it publicly. If any one is detected giving false information thrice, the law condemns him to be silent for the rest of his life, but he who gives sound advice is exempted from paying any taxes or contributions.

“The second caste consists of the husbandmen, who form the bulk of the population, and are in disposition most mild and gentle. They are exempted from military service, and cultivate their lands undisturbed by fear. They never go to town, either to take part in its tumults, or for any other purpose. It therefore not unfrequently happens that at the same time, and in the same part of the country, men may be seen drawn up in array of battle, and fighting at risk of their lives, while other men close at hand are ploughing and digging in perfect security, having these soldiers to protect them. The whole of the land is the property of the King, and the husbandmen till it on condition of receiving one-fourth of the produce.

“The third caste consists of herdsmen and hunters, who alone are allowed to hunt, and to keep cattle, and to sell draught animals or let them out on hire. In return for clearing the land of wild beasts and fowls which devour the seeds sown in the fields, they receive an allowance of grain from the king. They lead a wandering life and live under tents.

“The fourth class, after herdsmen and hunters, consists of those who work at trades, of those who vend wares, and of those who are employed in bodily labour. Some of these pay tribute, and render to the State certain prescribed services. But the armour-makers and shipbuilders receive wages and their victuals from the king, for whom alone they work. The general in command of the army supplies the soldiers with weapons, and the admiral of the fleet lets out ships on hire for the transport both of passengers and merchandise.

“The fifth class consists of fighting men, who when not engaged in active service, pass their time in idleness and drinking. They are maintained at the King’s expense, and hence they are always ready, when occasion calls, to take the field, for they carry nothing of their own with them but their own bodies.

“The sixth class consists of the overseers, to whom is assigned the duty of watching all that goes on, and making reports secretly to the King. Some are entrusted with the inspection of the city, and others with that of the army. The former employ as their coadjutors the courtezans of the city, and the latter the courtezans of the camp. The ablest and most trustworthy men are appointed to fill these offices.

“The seventh class consists of the councillors and assessors of the king. To them belong the highest posts of government, the tribunals of justice, and the general administration of public affairs. No one is allowed to marry out of his own caste, or to exchange one

profession or trade for another, or to follow more than one business. An exception is made in favour of the philosopher, who for his virtue is allowed this privilege."

Alberuni who wrote an account of his travels in India some time about 1030 A.D. must have been struck by the peculiarity of the Hindu Social Organization. For he too has not omitted to make a note of it. He observed:

"The Hindus call their castes varna, i.e. colours, and from a genealogical point of view they call them jataka, i.e. births. These castes are from the very beginning only four.

- I. The highest caste are the Brahmana, of whom the books of the Hindus tell that they were created from the head of Brahman. And a Brahman is only another name for the force called nature, and the head is the highest part of the animal body, the Brahmana are the choice part of the whole genus. Therefore the Hindus consider them as the very best mankind.
- II. The next caste are the Kshatriya, who were created, as they say, from the shoulders and hands of Brahman. Their degree is not much below that of the Brahmana.
- III. After them follow the Vaisya, who were created from the thigh of Brahman.
- IV. The Sudra, who were created from his feet.

"Between the latter two classes there is no very great distance. Much, however, as these classes differ from each other, they live together in the same towns and villages, mixed together in the same houses and lodgings.

"After the Sudra follow the people called Antyaja, who render various kinds of services, who are not reckoned amongst any caste, but only as members of a certain craft or profession. There are eight classes of them who freely intermarry with each other, except the fuller, shoemaker and weaver, for no others would condescend to have anything to do with them. These eight guilds are the fuller, shoemaker, juggler, the basket and shield maker, the sailor, fisherman, the hunter of wild animals and of birds, and the weaver. The four castes do not live together with them in one and the same place. These guilds live near the villages and towns of the four castes, but outside them.

"The people called Hadi, Doma (Domba), Candala and Badhatau (sic) are not reckoned amongst any caste or guild. They are occupied with dirty work, like the cleansing of the villages and other services. They are considered as one sole class, and distinguished only by their occupations. In fact, they are considered like illegitimate

children; for according to general opinion they descend from a Sudra father and a Brahmani mother as the children of fornication; therefore they are degraded outcaste.

“The Hindus give to every single man of the four castes characteristic names, according to their occupations and modes of life, e.g. the Brahman is in general called by this name as long as he does his work staying at home. When he is busy with the service of one fire, he is called Ishtin; if he serves three fires, he is called Agnihotrin; if he besides offers an offering to the fire, he is called Dikshita. And as it is with the Brahmana, so is it also with the other castes. Of the classes beneath the castes, the Hadi are the best spoken of, because they keep themselves free from everything unclean. Next follow the Doma, who play on the lute and sing. The still lower classes practise as a trade killing and the inflicting of judicial punishments. The worst of all are the Badhatau, who not only devour the flesh of dead animals, but even of dogs and other beasts.

“Each of the four castes, when eating together, must form a group of themselves, one group not being allowed to comprise two men of different castes. If, further, in the group of the Brahmana there are two men who live at enmity with each other, and the seat of the one is by the side of the other, they make a barrier between the two seats by placing a board between them, or by spreading a piece of dress, or in some other way; and if there is only a line drawn between them, they are considered as separated. Since it is forbidden to eat the remains of a meal, every single man must have his own food for himself; for if any one of the party who are eating should take of the food from one and the same plate, that-which remains in the plate becomes, after the first eater has taken part, to him who wants to take as the second, the remains of the meal, and such is forbidden.”

Alberuni did not merely content himself with recording what struck him as peculiar in the Hindu Social organization. He went on to say:

“Among the Hindus institutions of this kind abound. We Muslims, of course, stand entirely on the other side of the question, considering all men as equal, except in piety; and this is the greatest obstacle which prevents any approach or understanding between Hindus and Muslims.”

Duarte Barbosa who was Portuguese official in the service of the Portuguese Government in India from 1500 to 1517 has left a record of his impressions of Hindu Society. This is what struck him:

“And before this kingdom of Guzerate fell into the hands of the Moors, a certain race of Heathen whom the Moors called Resbutos

dwelt therein, who in those days were the knights and wardens of the land, and made war wheresoever it was needful. These men kill and eat sheep and fish and all other kinds of food; in the mountains there are yet many of them, where they have great villages and obey not the king of Guzerate, but rather wage daily war against him: who, do what he may, is yet not able to prevail against them, nor will do so, for they are very fine horsemen, and good archers, and have besides divers other weapons to defend themselves withal against the Moors, on whom they make war without ceasing; yet have they no king nor lord over them.

“And in this kingdom there is another sort of Heathen whom they call Baneanes, who are great merchants and traders. They dwell among the Moors with whom they carry on all their trade. This people eat neither flesh nor fish, nor anything subject to death; they slay nothing, nor are they willing even to see the slaughter of any animal; and thus they maintain their idolatry and hold it so firmly that it is a terrible thing. For often it is so that the Moors take to them live insects or small birds, and make as though to kill them in their presence, and the Baneanes buy these and ransom them, paying much more than they are worth, so that they may save their lives and let them go. And if the King or a Governor of the land has any man condemned to death, for any crime which he has committed, they gather themselves together and buy him from justice, if they are willing to sell him, that he may not die. And divers Moorish mendicants as well, when they wish to obtain alms from this people, take great stones wherewith they beat upon their shoulders and bellies as though they would slay themselves before them, to hinder which they give them great alms that they may depart in peace. Others carry knives with which they slash their arms and legs, and to these too they give large alms that they may not kill themselves. Others go to their doors seeking to kill rats and snakes for them, and to them also they give much money that they may not do so. Thus they are much esteemed by the Moors !

“When these Baneanes meet with a swarm of ants on the road they shrink back and seek for some way to pass without crushing them. And in their houses they sup by daylight, for neither by night nor by day will they light a lamp, by reason of certain little flies which perish in the flame thereof; and if there is any great need of a light by night they have a lantern of varnished paper or cloth, so that no living thing may find its way in, and die in the flame. And if these men breed many lice they kill them not, but when they trouble them too much they send for certain men, also Heathen, who live

among them and whom they hold to be men of a holy life; they are like hermits living with great abstinence through devotion to their gods. These men louse them, and as many lice as they catch they place on their own heads and breed them on their own flesh, by which they say they do great service to their Idol. Thus one and all they maintain with great self-restraint their law of not killing. On the other hand they are great usurers, falsifiers of weights and measures and many other goods and of coins; and great liars. These heathen are tawny men, tall and well looking, gaily attired, delicate and moderate in their food. Their diet is of milk, butter, sugar and rice, and many conserves of divers sorts. They make much use of dishes of fruit and vegetables and pot herbs in their food. Wheresoever they dwell they have orchards and fruit gardens and many water tanks wherein they bathe twice a day, both men and women; and they say when they have finished bathing that they are clear of as many sins as they have committed up to that hour. These Baneanes grow very long hair, as women do with us, and wear it twisted up on the head and made into a knot, and over it a turban, that they may keep it always held together; and in their hair they put flowers and other sweet scented things.

“They use to annoint themselves with white sandalwood mixed with saffron and other scents. They are very amorous people. They are clad in long cotton and silken shirts and are shod with pointed shoes of richly wrought cordwain; some of them wear short coats of silk and brocade. They carry no arms except certain very small knives ornamented with gold and silver, and this for two reasons: First, because they are men who make but little use of weapons; and secondly, because the Moors defend them.

“Bramenes. And there is here another class of Heathen whom they call Bramenes, who are priests among them and persons who manage and rule their houses of prayers and idol-worship, which are of great size and have great revenues; and many of them also are maintained by alms. In these houses are great numbers of wooden Idols, and others of stone and copper and in these houses or monasteries they celebrate great ceremonies in honour of these idols, entertaining them with great store of candles and oil lamps, and with bells after our fashion. These Bramenes and Heathen have in their creed many resemblances to the Holy Trinity, and hold in great honour the relation of the Triune Three, and always make their prayers to God, whom they confess and adore as the true God, Creator and maker of all things, who is three persons and one God and they say that there are many other gods who are rulers under

him, in whom also they believe. These Bramenes and heathen wheresoever they find our churches enter them and make prayers and adorations to our Images, always asking for Santa Maria, like men who have some knowledge and understanding of these matters; and they honour the Church as is our manner, saying that between them and us there is little difference. These men never eat anything subject to death, nor do they slay anything. Bathing they hold to be a great ceremony and they say that by it they are saved.

“There is also in this same Kingdom of Calicut a caste of people called Bramenes who are priests among them (as are the clergy among us) of whom I have spoken in another place.

“These all speak the same tongue, nor can any be a Bramene except he be the son of a Bramene. When they are seven years of age they put over their shoulder a strip of two fingers in breadth of untanned skin with the hair on it of a certain wild beast which they call Cryvamergam, which resembles a wild ass. Then for seven years he must not eat betel for which time he continues to wear this strap. When he is fourteen years old they make him a Bramene, and taking off their leather strap they invest him with the cord of three strands which he wears for the rest of his life as a token that he is a Bramene. And this they do with great ceremonial and rejoicings, as we do here for a cleric when he sings his first mass. Thereafter he may eat betel, but not flesh or fish. They have great honour among the Indians, and as I have already said, they suffer death for no cause whatsoever, their own headman gives them a mild chastisement. They marry once only in our manner, and only the eldest son marries, he is treated like the head of an entailed estate. The other brothers remain single all their lives. These Bramenes keep their wives well guarded, and greatly honoured, so that no other men may sleep with them; if any of them die, they do not marry again, but if a woman wrongs her husband she is slain by poison. The brothers who remain bachelors sleep with the Nayre women, they hold it to be a great honour, and as they are Bramenes no woman refuses herself to them, yet they may not sleep with any woman older than themselves. They dwell in their own houses and cities, and serve as clergy in the houses of worship, whither they go to pray at certain hours of the day, performing their rituals and idolatries.

“Some of these Bramenes serve the Kings in every manner except in arms. No man may prepare any food for the King except a Bramene or his own kin; they also serve as couriers to other countries with letters, money or merchandise, passing wherever they

wish to go in safety, and none does them any ill, even when the Kings are at war. These Bramenes are learned in their idolatry, and possess many books thereof. The Kings hold them in high esteem.

“I have already spoken many times of the Nayres, and yet I have not hitherto told you what manner of men they are. You are to know that in this land of Malbar there is another caste of people, called Nayres, and among them are noble men who have no other duty than to serve in war, and they always carry their arms whithersoever they go, some swords and shields, others bows and arrows, and yet others spears. They all live with the King, and the other great Lords; nevertheless all receive stipends from the King or from the great Lords with whom they dwell. None may become a Nayre, save only he who is of Nayre lineage. They are very free from stain in their nobility. They will not touch any one of low caste, nor eat, nor drink save in the house of a Nayre.

“These men are not married, their nephews (sisters’ sons) are their heirs. The Nayre women of good birth are very independent, and dispose of themselves as they please with Bramenes and Nayres, but they do not sleep with men of caste lower than their own under pain of death. When they reach the age of twelve years their mothers hold a great ceremony. When a mother perceives that her daughter has attained that age, she asks her kinsfolk and friends to make ready to honour her daughter, then she asks of the kindred and especially of one particular kinsman or great friend to marry her daughter; this he willingly promises and then he has a small jewel made, which would contain a half ducat of gold, long like a ribbon, with a hole through the middle which comes out on the other side, string on thread of white silk. The mother then on a fixed day is present with her daughter gaily decked with many rich jewels, making great rejoicings with music and singing, and a great assembly of people. Then the Kinsman or friend comes bringing that jewel, and going through certain forms, throws it over the girl’s neck. She wears it as a token all the rest of her life, and may then dispose of herself as she will. The man departs without sleeping with her inasmuch as he is her kinsman; if he is not, he may sleep with her, but is not obliged to do so. Thenceforward the mother goes about searching and asking some young man to take her daughter’s virginity; they must be Nayres and they regard it among themselves as a disgrace and a foul thing to take a woman’s virginity. And when any one has once slept with her, she is fit for association with men. Then the mother again goes about enquiring among other young Nayres if they wish to support her daughter, and take her as

a Mistress so that three or four Nayres agree with her to keep her, and sleep with her, each paying her so much a day; the more lovers she has the greater is her honour. Each one of them passes a day with her from midday on one day, till midday on the next day and so they continue living quietly without any disturbance nor quarrels among them. If any of them wishes to leave her, he leaves her, and takes another, and she also if she is weary of a man, she tells him to go, and he does so, or makes terms with her. Any children they may have stay with the mother who has to bring them up, for they hold them not to be the children of any man, even if they bear his likeness, and they do not consider them their children, nor are they heirs to their estates, for as I have already stated their heirs are their nephews, sons of their sisters, (which rule whosoever will consider inwardly in his mind will find that it was established with a greater and deeper meaning than the common folk think) for they say that the Kings of the Nayres instituted it in order that the Nayres should not be held back from their service by the burden and labour of rearing children.

“In this Kingdom of Malabar there is also another caste of people whom they call Biabares, Indian Merchants, natives of the land. They were there ere foreign nations had sailed to India. They deal in goods of every kind both in the seaports and inland, wheresoever their trade is of most profit. They gather to themselves all the pepper and ginger from the Nayres and husbandmen, and oftentimes they buy the new crops beforehand in exchange for cotton clothes and other goods which they keep at the seaports. Afterwards they sell them again and gain much money thereby. Their privileges are such that the King of the country in which they dwell cannot execute them by legal process.

“There is in this land yet another caste of folk known as Cuiavem. They do not differ from the Nayres, yet by reason of a fault which they committed, they remain separate from them. Their business is to make pottery and bricks for roofing the houses of the Kings and idols, which are roofed with bricks instead of tiles; only these, for as I have already said, other houses are thatched with branches. They have their own sort of idolatry, and their separate idols.

“There is another Heathen caste which they call Mainatos, whose occupation is to wash clothes for the Kings, Bramenes and Nayres. By this they live, and may not take up any other.

“There is another lower caste than these which they call Caletis, who are weavers who have no other way of earning save by weaving

of cotton and silk cloths, but they are low caste folk and have but little money, so that they clothe the lower races. They are apart by themselves and have their own idolatry.

“Besides the castes mentioned above, there are eleven others lower than they within whom the others do not associate, nor do they touch them under pain of death; and there are great distinctions between one and another of them, preserving them from mixture with one another. The purest of all these low, simple folk they call Tuias. Their work is mainly that of tending the palm-groves, and gathering the fruit thereof, and carrying it away for wages on their backs, for there are no beasts of burden in the land.

“There is another caste still lower than these whom they call Manen (Mancu in the printed text) who neither associate with others nor touch them, nor do the others touch them. They are washermen for the common people, and makers of sleeping mats, from which occupations all but they are barred; their sons must perforce follow the same trade; they have their own separate idolatry.

“There is another caste in this land still lower whom they call Canaquis. Their trade is making buckles and umbrellas. They learn letters for purposes of astronomy, they are great astrologers, and foretell with great truth things that are to come; there are some lords who maintain them for this cause.

“There is also another lower caste, also Heathens, called Ageres. They are masons, carpenters, smiths, metal workers and some are goldsmiths, all of whom are of a common descent, and a separate caste, and have their idols apart from other folk. They marry, and their sons inherit their property, and learn their fathers’ trade.

“There is another caste still lower in this country called Mogerres, they are almost the same as the Tuias, but they do not touch one another. They work as carriers of things belonging to the Royal State when it moves from one place to another, but there are very few of them in this land; they are a separate caste; they have no marriage law; the most of them gain their living on the sea, they are sailors, and some of them fishers; they have no idols. They are as well slaves of the Nayres.

“There is another caste yet lower whom they call Monquer, fishers who have no other work than fishing, yet some sail in the Moors’ ships and in those of other heathens, and they are very expert seamen. This race is very rude. They are shameless thieves; they marry and their sons succeed them, their women are of loose character, they sleep with any one-soever, and it is held no evil. They have thier own idolatry.

“In this land of Malabar there is another caste of Heathen even lower than these, whom they call Betunes. Their business is salt making and rice growing, they have no other livelihood.

“They dwell in houses standing by themselves in the fields away from the roads, whither the gentlefolk do not walk. They have their own idolatry. They are slaves of the Kings and Nayres and pass their lives in poverty. The Nayres make them walk far away from them and speak to them from afar off. They hold no intercourse with any other caste.

“There is another caste of Heathen, even lower and ruder, whom they call Paneens, who are great sorcerers, and live by no other means.

“There is another caste lower and ruder than they, named Revoleens, a very poor folk, who live by carrying firewood and grass to the towns, they may touch none, nor may any touch them under pain of death. They go naked, covering only their private parts with scant and filthy rags, the more part of them indeed with leaves of certain trees. Their women wear many brass rings in their ears; and on their necks, arms and legs necklaces and bracelets of heads.

“And there is yet another caste of Heathens lower than these whom they call Poleas, who among all the rest are held to be accursed and excommunicate; they dwell in the fields and open campaigns in secret lurking places, whither folk of good caste never go save by mischance, and live in huts very strait and mean. They are tillers of rice with buffaloes and oxen. They never speak to the Nayres save from off, shouting so that they may hear them, and when they go along the roads they utter loud cries, that they may be let past, and whosoever hears them leaves the road, and stands in the wood till they have passed by: and if any one, whether man or woman, touches them his kinsfolk slay them forthwith, and in vengeance therefore they slay Poleas until they are weary without suffering any punishment.

“Yet another caste there is even lower and baser called Pareens, who dwell in the most desert places away from all other castes. They have no intercourse with any person nor any one with them they are held to be worse than devils, and to be damned. Even to see them is to be unclean and out-caste. They eat yams and other roots of wild plants. They cover their middles with leaves, they also eat the flesh of wild beasts.

“With these end the distinctions between the castes of the Heathen, which are eighteen in all, each one separate and unable to

touch others or marry with them; and besides these eighteen castes of the Heathen who are natives of Malabar, which I have now related to you, there are others of outlandish folk, merchants and traders in the land, where they possess houses and estates, living like the natives, yet with customs of their own.”

These foreigners were not able to give a full and detailed picture of caste. This is understandable. For to every foreigner the private life of the Hindu is veiled and it is not possible for him to penetrate it. The social organism of India, the play of its motive forces, is moreover, regulated infinitely more by custom, varying according to locality and baffling in its complexity, than by any legal formula which can be picked out of a legal text book. But there is no doubt that caste did appear to the foreigners as the most singular and therefore the most distinguishing feature of Hindu Society. Otherwise they would not have noted its existence in the record they made of what they observed when they came to India.

Caste therefore is something special in the Hindu Social organization and marks off the Hindus from other peoples. Caste has been a growing institution. It has never been the same at all time. The shape and form of caste as it existed when Magasthenes wrote his account was very different from what the shape and form it has taken when Alberuni came and the appearance it gave to the Portuguese was different from what it was in the time of Alberuni. But to understand caste one must have more exact idea of its nature than these foreigners are able to give.

To follow the discussion of the subject of caste it is necessary to familiarize the readers with some basic conceptions which underlie the Hindu Social organization. The basic conception of social organization which prevails among the Hindus starts with the rise of our classes or varnas into which Hindu society is believed to have become divided. These four classes were named: (1) Brahmins, the priestly and the educated class, (2) The Kshatriyas, the Military Class, (3) The Vaishyas, the trading class and, (4) The Shudras, the servant class. For a time these were merely classes. After a time what were only Classes (Varnas) became Castes (Jatis) and the four castes became four thousand. In this way the modern Caste System was only the evolution of the ancient Varna System.

No doubt the caste system is an evolution of the Varna System. But one can get no idea of the caste system by a study of the Varna System. Caste must be studied apart from Varna.

An old agnostic is said to have summed up his philosophy in the following words:

“The only thing I know is that I know nothing; and I am not quite sure that I know that”

Sir Denzil Ibbetson undertaking to write about caste in the Punjab said that the words of these agnostic about his philosophy expressed very exactly his own feelings regarding caste. It is no doubt true that owing to local circumstances there does appear a certain diversity about caste matters and that it is very difficult to make any statement regarding any one of the castes absolutely true as it may be as regards one locality which will not be contradicted with equal truth as regards the same caste in some other area.

Although this may be true yet it cannot be difficult to separate the essential and fundamental features of caste from its non-essential superficial features. For easy approach to this to ascertain by asking what are the matters for which a person is liable to be excluded from caste. Mr. Bhattacharya has stated the following as causes for expulsion from caste: (1) Embracing Christianity or Islam, (2) Going to Europe or America, (3) Marrying a widow, (4) Publicly throwing the sacred thread, (5) Publicly eating beef, pork or fowl, (6) Publicly eating *Kaccha* food prepared by a Mahomedan, Christian or low caste Hindu, (7) Officiating at the house of a very low caste Sudra, (8) By a female going away from home for immoral purposes and (9) By a widow becoming pregnant. This list is not exhaustive and omits the two most important causes which entail expulsion from caste. They are (10) intermarrying outside caste, (11) Interdining with persons of another caste, (12) Change of occupation. The second defect in the statement of Mr. Bhattacharya is that it does not make any distinction between essentials and (un)*essentials. Of course when a person is expelled from his caste the penalty is uniform. His friends, relatives, and fellow men refuse to partake of his hospitality. He is not invited to entertainments in their houses. He cannot obtain brides or bridegrooms for his children. Even his married daughters cannot visit him without running the risk of being excluded from caste. His priest, his barber and washerman refuse to serve him. His fellow castemen sever their connection with him so completely that they refuse to assist him even at the funeral of a member of his household. In some cases the man excluded from caste is debarred access to public temples and to the cremation or burial ground.

* The original word in the MS was ‘essentials’. The editors felt it to be ‘unessentials’ and therefore corrected it accordingly. — Ed.

These reasons for expulsion from caste indirectly show the rules and regulations of the caste. But all regulations are not fundamental. There are many which are unessential. Caste can exist even without them. The essential and unessential can be distinguished by asking another question. When can a Hindu who has lost caste regain his caste. The Hindus have a system of *Prayaschitas* which are penances and which a man who has been expelled from caste must perform before he can be admitted to caste fellowship. With regard to these *Prayaschitas* or Penances certain points must be remembered. In the first place there are caste offences for which there is no *Prayaschita*. In the second place the *Prayaschitas* vary according to the offence. In some cases the *Prayaschita* involves a very small penalty. In other cases the penalty involved is a very severe one.

The existing of a *Prayaschita* and its absence have a significance which must be clearly understood. The absence of *Prayaschita* does not mean that any one may commit the offence with impunity. On the contrary it means that the offence is of an immeasurable magnitude and the offender once expelled is beyond reclamation. There is no reentry for him in the caste from which he is expelled. The existence of a *Prayaschita* means that the offence is compoundable. The offender can take the prescribed *Prayaschita* and obtain admission in the caste from which he is expelled.

There are two offences for which there is no penance. These are (1) change from Hindu Religion to another religion, (2) Marriage with a person of another caste or another religion. It is obvious if a man loses, caste for these offences he loses it permanently.

Of the other offences the *Prayaschitas* prescribed are of the severest kind are two: (1) Interdining with a person of another caste or a non-Hindu and (2) Taking to occupations which is not the occupation of the caste. In the case of the other offences the penalty is a light one almost nominal.

The surest clue to find out what are the fundamental rules of caste and what caste consists in is furnished by the rules regarding *Prayaschitas*. Those for the infringement of which there is no *Prayaschita* constitute the very soul of caste and those for the infringement of which the *Prayaschita* is of the severest kind make up the body of caste. It may therefore be said without any hesitation that there are four fundamental rules of caste. A caste may be defined as a social group having (a) belief in Hindu Religion and bound by certain regulations as to, (b) marriage, (c) food and (d) occupation. To this one more characteristic may be added namely a social group having a common name by which it is recognized.

In the matter of marriage the regulation lays down that the caste must be endogamous. There can be no intermarriage between members of different castes. This is the first and the most fundamental idea on which the whole fabric of the caste is built up.

In the matter of food the rule is that a person cannot take food from and dine with any person who does not belong to his caste. This means that only those who can intermarry can also interdine. Those who cannot intermarry cannot interdine. In other words caste is an endogamous unit and also a communal unit.

In the matter of occupation the regulation is that a person must follow the occupation which is the traditional occupation of his caste and if the caste has no occupation then he should follow the occupation of his father.

In the matter of status of a person it is fixed and is hereditary. It is fixed because a person's status is determined by the status of the caste to which he belongs. It is hereditary because a Hindu is stamped with the caste to which his parents belonged, a Hindu cannot change his status because he cannot change his caste. A Hindu is born in a caste and he dies a member of the caste in which he is born. A Hindu may lose his status if he loses caste. But he cannot acquire a new or a better or different status.

What is the significance of a common name for a caste? The significance of this will be clear if we ask two questions which are very relevant and a correct answer to each is necessary for a complete idea of this institution of caste. Social groups are either organized or unorganized. When the membership of the group and the process of joining and leaving the groups, are the subject of definite social regulations and involve certain duties and privileges in relation to other members of the group then the group is an organized group. A group is a voluntary group in which members enter with a full knowledge of what they are doing and the aims which the association is designed to fulfil. On the other hand there are groups of which an individual person becomes a member without any act of volition, and becomes subject to social regulation and traditions over which he has no control of any kind.

Now it is hardly necessary to say that caste is a highly organized social grouping. It is not a loose or a floating body. Similarly it is not necessary to say that caste is an involuntary grouping. A Hindu is born in a caste and he dies as a member of that caste. There is no Hindu without caste, cannot escape caste and being bounded by caste from birth to death he becomes subject to social regulations and traditions of the caste over which he has no control.

The significance of a separate name for a caste lies in this — namely it makes caste an organized and an involuntary grouping. A separate and a distinctive name for a caste makes caste asking to a corporation with a perpetual existence and a seal of separate entity. The significance of separate names for separate castes has not been sufficiently realized by writers on caste. In doing that they have lost sight of a most distinctive feature of caste social groups there are and there are bound to be in every society. Many social groups in many countries can be equated to various castes in India and may be regarded as their equivalent. Potters, Washermen, Intellectuals as social groups are every where. But in other countries they have remained as unorganized and voluntary groups while in India they have become organized and involuntary i.e. they have become castes is because in other countries the social groups were not given name while in India they did. It is the name which the caste bears which gives it fixity and continuity and individuality. It is the name which defines who are its members and in most cases a person born in a caste carries the name of the caste as a part of his surname. Again it is the name which makes it easy for the caste to enforce its rules and regulations. It makes it easy in two ways. In the first place, the name of the caste forming a surname of the individual prevents the offender in passing off as a person belonging to another caste and thus escape the jurisdiction of the caste. Secondly, it helps to identify the offending individual and the caste to whose jurisdiction he is subject so that he is easily handed up and punished for any breach of the caste rules.

This is what caste means. Now as to the caste system. This involves the study of the mutual relations between different castes. Looked at as a collection of caste the caste system presents several features which at once strike the observer. In the first place there is no inter-connection between the various castes which form a system. Each caste is separate and distinct. It is independent and sovereign in the disposal of its internal affairs and the endorcement of caste Regulations. The castes touch but they do not interpenetrate. The second feature relates to the order in which one caste stands in relation to the other castes in the system. That order is vertical and not horizontal.

In other words castes are not equal in status. Their order is based on inequality. One caste is higher or lower in relation to another. Castes form an hierarchy in which one caste is at the top and is the highest, another at the bottom and it is the lowest and in between there are castes every one of which is at once above some caste and below some caste. The caste system is a system of gradation in which every caste

except the highest and the lowest has a priority and precedence over some other caste.

How is this precedence or this superiority determined? This order of superiority and inferiority or this insubordination is determined by Rules (1) which are connected with religious rites and (2) which are connected with commensality.

Religion as a basis of Rules of precedence manifests itself in three ways. Firstly through religious ceremonies, secondly through incantations that accompany the religious ceremonies and thirdly through the position of the priest.

Beginning with the ceremonies as a source of rules of precedence it should be noted that the Hindu Scriptures prescribe sixteen religious ceremonies. Although those are Hindu ceremonies every Hindu Caste cannot by right claim to perform all the sixteen ceremonies. Few can claim the right to perform all. Some are allowed to perform certain ceremonies, some are not allowed to perform certain of the ceremonies. For instance take the ceremony of Upanayan, wearing the sacred thread. Some castes can't. Precedence follows this distinction in the matters of right to perform the ceremonies. A caste which can claim to perform all the ceremonies is higher in status than the caste which has a right to perform a few.

Turning to the Mantras it is another source for rules of precedence. According to the Hindu Religion the same ceremony can be performed in three different ways: (1) Vedokta, (2) Shastrokta and (3) Puranokta. In the Vedokta form the ceremony is performed with Mantras (incantations) from the Vedas. In the Shastrokta form the ceremony is performed with Mantras (incantations) from the Shastras. In the Puranokta form the ceremony is performed with Mantras (incantations) from the Puranas. Hindu Religious Scriptures fall into three distinct categories: (1) The Vedas which are four, (2) The Shastras which are six and (3) The Puranas which are eighteen. Although they are all respected as scriptures they do not all have the same sanctity. The Vedas have the highest sanctity. The Shastras stand next in order of sanctity and the Puranas have the lowest sanctity. The way the Mantras give rise to social precedence will be obvious if it is borne in mind that not every caste is entitled to have the ceremony performed in the Vedokta form. Three castes may well claim the right to the performance of one of the sixteen ceremonies. But it will be that one of it is entitled to perform it in the Vedokta form, another in the Shastrokta form and the third only in the Puranokta form. Precedence goes with the kind of Mantra that a caste is entitled to use in the performance of a religious ceremony. A caste which is entitled to use

Vedic Mantra is superior to a caste which is entitled to use Shastrik Mantra and a caste which is entitled to use Shastrik Mantras is higher than a caste which is entitled to use only Puranokta Mantras.

Taking the priest as third source of precedence connected with Religion Hinduism requires the instrumentality of a priest for the derivation of the full benefit from the performance of a religious ceremony. The priest appointed by the scriptures is the Brahmin. A Brahmin therefore is indispensable. But the scriptures do not require that a Brahmin shall accept the invitation of any and every Hindu irrespective of his caste to officiate at a religious ceremony. The invitation of which caste he will accept and of which he will refuse is a matter left to the wishes of the Brahmin. By long and well established custom it is now settled at which caste he will officiate and at which caste he will not. This fact has become the basis of precedence as between castes. The caste at which a Brahmin will officiate is held as superior to a caste at whose religious functions a Brahmin will not officiate.

The second source for rules of precedence is commensality. It will be noticed that rules of marriage have not given rise to rules of precedence as rules of commensality have. The reason lies in the distinction between the rules prohibiting intermarriage and interdining. That difference is obvious. The prohibition on intermarriage is such that it can not only be respected but it can be carried out quite strictly. But the prohibition of interdining creates difficulties. It cannot be carried out quite strictly in all places and under all circumstances. Man migrates and must migrate from place to place. In every place he happens to go he may not find his castemen. He may find himself landed in the midst of strangers. Marriage is not a matter of urgency but food is. He can wait for getting himself married till he returns to the society of his castemen. But he cannot wait for his food. He must find it from somewhere and from someone. Question arises from which caste he can take food if he has to. The rule is that he will take food from a caste above his but will not take food from a caste which is below his. There is no way of finding how it came to be decided that a Hindu can take food from one caste and not from another. By long series of precedent every Hindu knows from what caste he can take food and from what caste he cannot. This is determined chiefly by the rule followed by the Brahmin. A caste is higher or lower according as the Brahmin takes from it food or not. In this connection the Brahmin has a very elaborate set of rules in the matter of food and water. (1) He will take only water from some and not from others. (2) A Brahmin will not take food cooked in water by any caste. (3) He will take only

food cooked in oil from some castes. Again he has as a set of rules in the matter of the vessel, in which he will accept food and water. He will take food or water in an earthen vessel from some caste, only in metallic vessel from some and only in glass vessel from others. This goes to determine the level of the caste. If he takes food cooked in oil from a caste its status is higher than the caste from which he will not. If he takes water from a caste it is higher than the caste from which he will not. If he takes water in a metallic vessel that caste is higher than the caste from which he will take water in an earthen vessel and the caste from which he will take water in an earthen vessel is higher than the caste from which he will take water in a glass vessel. Glass is a substance which is called *Nirlep* (which conserves no stain) therefore a Brahmin can take water in it even from the lowest. But other metals do conserve stains. Contaminating character of the stain depends upon the status of the person who has used it. That status depends upon the Brahmin's will to accept water in that vessel.

These are some of the factors which determine the place and status of a caste in this Hindu hierarchial system of castes.

Such is caste and such is caste system. Question is, is this enough to know the Hindu Social Organization. For a static conception of the Hindu Social Organization an idea of the caste and the caste system is enough. One need not trouble to remember more than the facts that the Hindus are divided into castes and that the castes form a system in which all hang on a thread which runs through the system in such a way that while encircling and separating one caste from another it holds them all as though as it was a string of tennis balls hanging one above the other. But this will not be enough to understand caste as a dynamic phenomenon. To follow the workings of caste in action it is necessary to note one other feature of caste besides the caste system, namely class-caste system.

The relationship between the ideas of caste and class has been a matter of lively controversy. Some say that caste is analogous to class. Others hold that the idea of caste is analogous to class and that there is no difference between the two. Others hold that the idea of caste is fundamentally opposed to that of class. This is an aspect of the subject of caste about which more will be said hereafter. For the present it is necessary to emphasize one feature of the caste system which has not been referred to hereinbefore. It is this. Although caste is different from and opposed to the notion of class yet the caste-system as distinguished from caste—recognizes a class system which is somewhat different from the graded status referred to above. Just as the Hindus are divided into so many castes, castes are divided into different classes

of castes. The Hindu is caste conscious. He is also class conscious. Whether he is caste conscious or class conscious depends upon the caste with which he comes in conflict. If the caste with which he comes in conflict is a caste within the class to which he belongs he is caste conscious. If the caste is outside the class to which he belongs he is class conscious. Any one who needs any evidence on this point may study the Non-Brahmin Movement in the Madras and Bombay Presidency. Such a study will leave no doubt that to a Hindu caste periphery is as real as class periphery and caste consciousness is as real as class consciousness.

Caste, it is said, is an evolution of the Varna System. I will show later on that this is nonsense. Caste is a perversion of Varna, at any rate it is an evolution in the opposite direction. But while Caste has completely perverted the Varna System it has borrowed the class system from the Varna System. Indeed the Class-Caste System follows closely the class cleavages of the Varna System.

Looking at the caste system from this point of view one comes across several lines of class cleavage which run through this pyramid of castes dividing the pyramid into blocks of castes. The first line of cleavage follows the line of division noticeable in the ancient Chaturvarna system. The old system of Chaturvarna made a distinction between the first three Varnas, the Brahmins, Kshatriyas, Vaishyas, and the forth Varna namely the Shudras. The three former were classes as the Regenerate classes. The Shudra was held as the unregenerate class: This distinction was based upon the fact that the former were entitled to wear the sacred thread and study the Vedas. The Shudra was entitled to neither and that is why he was regarded as the unregenerate class. This line of cleavage is still in existence and forms the basis of the present day class division separating the castes which have grown out of the vast class of Shudras from those which have grown out of the three classes of Brahmins, the Kashatriyas and Vaishyas. This line of class cleavage is the one which is expressed by the terms High Castes and Low Castes and which are short forms for High Class Castes and Low Class Castes.

Next after this line of cleavage there runs through the pyramid a second line of class cleavage. It runs just below the Low Class Castes. It sets above all the castes born out of the four Varnas i.e. The High Castes as well as the Low Castes above the remaining Castes which I will merely describe as the 'rest', This line of class cleavage is again a real one and follows the well defined distinction which was a fundamental principle of the Chaturvarna System. The Chaturvarna System as is pointed out made a distinction between the four Varnas

putting the three Varnas above the fourth. But it also made an equally clear distinction between those within the Chaturvarna and those outside the Chaturvarna. It had a terminology to express this distinction. Those within the Chaturvarna—high or low, Brahmins or Shudras were called *Savarna* i.e. those with the stamp of the Varna. Those outside the Chaturvarna were called *Avarna* i.e. those without the stamp of Varna. All the Castes which have evolved out of the four Varnas are called *Savarna Hindus*—which is rendered in English by the term caste Hindus. The ‘rest’ are the *Avarnas* who in present parlance spoken of by Europeans as Non-Caste Hindus i.e. those who are outside the 4 original castes or Varnas.

Much that is written about the Caste System has reference mostly to the Caste-System, among the *Savarna Hindus*. Very little is known about the *Avarna Hindus*. Who are these *Avarna Hindus*, what is their position in Hindu Society, how are they related to the *Savarna Hindus*, are questions to which no attention has so far been paid. I am sure that without considering these questions no one can get a true picture of the social structure the Hindus have built. To leave out the Class cleavage between the *Savarna Hindus* and the *Avarna Hindus* is to relate Grimm’s Fairy Tale which leaves out the witches, the goblins and the ogres.

The *Avarna Hindus* comprise three divisions (1) Primitive Castes, (2) Criminal Castes and (3) The Untouchable Castes. The total population of persons comprising these three classes is by no means small. The population of the Primitive Tribes in India according to the Census of 1931 is stated to be about 25 millions. The total population of persons listed as Criminal is somewhere about 4½ millions. The total population of Untouchables in 1931 was about 50 millions. The grand total of these three comes to 79½ millions.

What is the relation of the *Savarna Castes* to the *Avarna Castes*? The cleavage between the *Savarna Castes* and the *Avarna Castes* is not uniform in its consequences with the result that the position created is not easy to grasp. The line of the cleavage running between the *Savarna Castes* and the *Avarna Castes* produces a relationship between the *Savarna Castes* and the two *Avarna Castes*—the Primitive and the Criminal Castes which is different from the relationship which it produces between the *Savarna Castes* and the last of the *Avarna Castes* namely the Untouchables. This line of cleavage between the *Savarna Castes* and the first two of the *Avarna Castes* is a cleavage between kindred and friends. It does not make intercourse on respectful terms between the two impossible. The cleavage between the *Savarna Castes* and the Untouchables is of a different kind. It is

a cleavage between two non-kindred and hostile groups. There is no possibility of friendly intercourse on respectable terms.

What is the significance of this line of cleavage? On what is it based? Although the cleavage is definite the basis of it has not been defined. But it seems that the basis of cleavage is the same as that which exists between the Dwijas and the Shudras. Like the Shudras the Avarna Castes are composed of unregenerate people. They are not twice born and have no right to wear the sacred thread. This also brings out two facts which otherwise are lost sight of. The first fact is that the difference between the Shudra Castes of the Savarna division of castes and the Primitive and the Criminal Castes of the Avarna division is very thin. Both are touchables and both are unregenerate. The difference is one of cultural development. But although the cultural difference between the two sections is great—as great as there is between a highly cultured and the unmitigated barbarian—from the point of view of the orthodox Hindu, the difference between them is one of degree. It is to mark this difference in culture that the Hindus invented a new terminology which recognized two classes of Shudras, (1) Sat-Shudras and (2) Shudras. Calling the old body of Shudras as Sat Shudras or cultured Shudras and using the term Shudras to those comprizing the Primitive Castes who had come within the pale of Hindu Civilization. The new terminology did not mean any difference in the rights and duties of Shudras. The distinction pointed out those Shudras who were fit for associated life with the Dwijas and those who were less fitted for it.

What is the relation of Avarna Castes to one another? Do they exist as mere collection of castes or have they any class cleavages? They are certainly mere collection of Castes. There are certainly lines of class cleavages running through this block of Avarna Castes. Whether there is a line of class cleavage running between the Primitive Castes and the Criminal Castes may be a matter of some doubt. Perhaps the line is faint. But there is no doubt that there is a very definite a very broad and a very emphatic line of cleavage between the Primitive Castes and the Criminal Castes and the Untouchables. The former two have a very clear notion that they are the higher classes and the Untouchables are the lower classes within this block of Avarna Castes.

The discussion carried on so far reveals three characteristic features of Hindu Social Organization: (1) Caste, (2) A hierarchial System of Castes and (3) A Class System cutting into the Caste System. Undoubtedly the structure is a very complicated one and it is perhaps difficult for one who has not been woven into it to form a true mental picture of the same. Perhaps a diagramatic presentation may be

helpful. I give below one such representation which in my judgment is calculated to give the idea of this social structure of the Hindus.

A Caste Hindus Savarna Castes	C Caste Hindus Savarna Castes	E Non-Caste Hindus Avarna Castes	G Non-caste Hindus
Class I	Class II	Class III	Class IV
High Castes	Low Caste	Primitive Castes	Untouchables
Dwijas—Castes evolved out of the three Varnas, Brahmins, Kshatriyas and Vaishas.	Shudras— Castes evolved out of the 4th Varna namely Shudras.	Criminal Castes	
B	D	F	H

This diagram is left blank in the MS.—Ed.

This diagram presents a Class-Caste-System of the Hindus and is so drawn as to give a true and a complete picture of their social

organization. This diagram brings out several of its important features. It shows that there are two divisions of Hindus (I) Savarna Hindus and (II) Avarna Hindus. It shows that within the first division there are two classes of Castes (I) Dwijas and (2) Shudras and within the second division there are two Classes of castes (1) Primitive and Criminal Castes and (2) The Untouchable Castes. The next thing to note is that each caste is enclosed and separated from the rest—a fact which is not shown in the diagram—each of the four classes of Castes is grouped together and placed within a class enclosure. This enclosure segregates a class of a Caste and marks it off from another class. A class of Castes is not as organized as a Caste is. But a feeling of Class is there. The third thing to note is the nature of partitions used for the enclosures. They are of various strengths, some are permanent, some are temporary. The partition between the Dwijas Castes and the Shudras Castes is not a partition at all. It is only a curtain. It is not a partition at all. It is intended to keep them aloof. It is not intended to cut them as under. The line of cleavage between the Shudra Castes and the first two of the Avarna Castes is a regular partition. But it is both thin and small. It can be jumped over. The partition separates but does not cause severance. But the partition between these three classes and the Untouchables is a real and irremovable partition. It is a barbed wire fence and its intention is to mark a severance. To express the same thing in a different way the first three enclosures are so placed that they are one within the other. The first partition between the Dwijas and the Shudra Castes may be removed the two become the occupants of one enclosure instead of two separate enclosures. Similarly the second partition may be removed in which case the Castes which are Dwija, Shudra, Primitive and Criminal form one whole—if not a single whole—occupying one single enclosure. But the third partition can never be removed. Because all three Classes of Castes are united on one issue namely that they shall not be *one* (*This space is left blank in the typed copy of MS. The word 'one' is introduced by us.*—Ed.) with the Untouchables as one united body of people. There is a bar sinister, which serves the Untouchables from the rest and compells them to be apart and outside.

The diagram shows the different Classes of Castes one above the other. This is done to mark the hierarchy which is an important feature of the Caste System. I have described the two classes of the Savarna Castes as High Class Castes and Low Class Castes. But I have not described the other two classes of Avarna Castes as lower Class Castes and lowest Class Castes. In a sense this would have been correct. In general social esteem they are no doubt lower and lowest in

status. But in another sense this would not be appropriate. The terminology of high, low, lower and lowest assumes that they are parts of one whole. But are the Avarna Castes and the Savarna Castes parts of one whole? They were not. The Primitive and the Criminal Castes were not in contemplation when the plan of the Varna System, the parent of the present caste system, was laid. Consequently nothing is said about their status and position in the rules of the Varna System. But that is not the case with the Untouchables. They were within the contemplation of the Varna System and the Rule of the Varna System with regard to the Untouchables is very clear and very definite. The rule as laid down by Manu the Hindu Law giver is that there are only four Varnas and that there is not to be a fifth Varna. The reformers who are friends of Mr. Gandhi in his campaign for removal of Untouchability are endeavouring to give a new meaning to the statement of Manu. They say that Manu has been misunderstood. According to Manu there is no fifth Varna and therefore he intended to include the Untouchables into the 4th Varna namely the Shudras. But this is an obvious perversion. What Manu meant was there were originally four Varnas and four they must remain. He was not going to admit the Untouchables into the House the ancient Hindus had built by enlarging the Varna System to consist of five Varnas. That is what he meant when he said that there is not to be a fifth Varna. That he wanted the Untouchables to remain out of the Hindu social structure is clear from the name by which he describes the Untouchables. He speaks of them as Varna—Bahyas (those outside the Varna System). That is the difference between the Primitive and Criminal Castes and the Untouchables. There being no positive injunction against their admission in Hindu Society they may in course of time become members of it. At present they are linked to Hindu Society and hereafter they may become integrated into it and become part of it. But the case of the Untouchables is different. There is positive injunction against their incorporation in Hindu Society. There is no room for reform. They must remain separate and segregated without being a part of the Hindu Society. The Untouchables are not a part of the Hindu Society. And if they are a part they are a part but not of the whole. The idea showing the connection between the Hindus and the Untouchables was accurately expressed by Amapure Shastri the leader of the orthodox Hindus at a Conference held in Bombay. He said that the Untouchables were related to the Hindus as a man is to his shoe. A man wears a shoe. In that sense it is attached to man and may be said to be a part of the man. But it is not part of the whole for two things that can be attached and detached can't be said to form parts of one whole. The analogy though is none the less accurate.

CHAPTER 17

THE ROCK ON WHICH IT IS BUILT

Hindu Society is a house of Castes. Hindus are not a people. They are the aggregates of groups of people formed into castes. This is its peculiarity. This is what has struck the stream of foreigners who have visited India in the course of history. Notwithstanding this there are however people who endeavour to say that there is nothing peculiar about caste. For instance Prof. Baines remarks:

“There is little in the system which is not to be found, or which has not at some time or other existed, in other countries, even of the West, though it has there been long ago worn away by other influences. The crystalization of certain bodies into definite orders or classes, for instance, is a common, almost a universal, trait and among them the tendency to become hereditary and as exclusive or aspiring as circumstances allow may almost be called natural”.

The argument may be strengthened by reference to the social organization of Primitive peoples. In Primitive Society man is never found alone.

The commonest and therefore the most natural condition of men is to live in groups. This social grouping has taken many forms in the course of history. The family is one such social group which is universal and which has survived. The group larger than the immediate family was the clan. In its lowest terms, the clan (which also called kin, sept or sib) was supposed to be a group of individuals related to one another either through the mother or through the father. Far distant cousins might be considered in the relationship, and were regarded as members of the group. Again, the relationship may be purely fictitious, but from the social point of view this was as real a bond as that made by common blood. The next larger division than the clan is a social grouping of the clans. When the clans are organized into two groups each group is called a moiety. When it is organized in more than two groups each is called a phratry. This dual system was not by any means world-wide in distribution and the functions which the phratry or the moiety was intended to perform are not quite definitely known. But there is no doubt that each moiety and phratry was a social grouping

in which there was a feeling of brotherhood between the members of clans associated together. The tribal groups come next. There were wide differences in the nature, character and structure of tribes. Tribes may be made up of village communities with no divisions into clans or moieties. They may have clans and no moieties, or moieties and no clans; or they may have both moieties and clans. Tribal consciousness was sometimes strong or some time weak. Although in the formation of tribal groups there was neither a definite rule nor a single line of evolution, there were certain common features present namely a common dialect, common customs, a more or less definite territory and some form of Government to which the whole tribe was present. Larger than the tribe was the confederacy or union of Tribes. But this was very uncommon. A loose and informal alliance to meet some specific danger may bring about a union of tribes. It is very seldom that a definite compact is found among the primitive peoples. The famous Iroquois confederacy is one of the exceptions.

These are social groups based either upon the idea of kindred or on that of locality. There were groups among primitive peoples, where the cleavage is along other lines. These other lines of grouping took as its basis sex, age or some other criteria. As a form of social grouping there is nothing new or nothing peculiar in this institution of caste. A caste is like a clan and like the clan it is only a form of social grouping.

The analogy between caste and clan may be admitted although it must be strongly insisted that as to meaning and purpose, caste is antagonistic to clan. There is no clan system comparable to the caste system. There is no gradation of clans as there is no Class-Clan System to match the Class-Caste System. Indeed the clan organization of the Primitive people is a complete antithesis of the caste organization of the Hindus. I admit the analogy only to drive my point. To my mind the question whether the institution of caste is natural or unnatural, peculiar or common is no doubt an interesting and instructive. But it is not as important as the question I want to raise. That question is why has caste endured, remained in tact when similar social groupings which were existing in other countries have vanished with the growth of civilization.

The Romans had a Social organization very similar to the Hindus.

When all similar institutions have vanished why has caste alone endured? Why do people obey its rules, what is the sanction for Caste?

Obedience by men to rules of society is everywhere secured by means of four sanctions. They are (1) the natural, (2) popular, (3) legal and (4) religious. Which of these supports the caste system? But before going into that question it would be desirable to describe the manner each of these sanctions operates.

The natural sanction operates through habit. When a person is habituated to act in a certain way nothing is required to force him to act in that way. He becomes an automation and the regularity of the act is guaranteed as a matter of routine.

Popular sanction works through public opinion. It was the sense of approbation and disapprobation prevalent in Society in relation to certain ways and practices. A certain way becomes folkway and Acts in conformity with an established folkway, receives approbation and an Act contrary to it is regarded with disapprobation.

There is nothing special either in the natural sanction or popular sanction. They are to be found everywhere and behind everything that is social in its import. Their native force is precarious and wherever it possesses more than its ordinary efficacy it is only when they are derived from either of the other two sanctions. Legal sanction and Religious sanction are the only two sanctions which are capable of sustaining any given institution.

There is no doubt that caste had the sanction of Hindu Law. Every Hindu Law Book has recognized Caste as a legal institution—a breach of which was an offence and entailing punishment. The Law Book of Manu called Manav Dharma Shashtra is the oldest and the most authoritative Law Book of the Hindus. It would be enough to quote from it texts showing that Caste was recognized by Law.

Manu, the Hindu Law giver gives legal recognition to the institution of the four Varnas. To lay down the law of the four Varnas seems to be the principal object of Manu's code. This is clear from the opening verses of the Code. They state that:

I.1. The great sages approached Manu, who was seated with a collected mind, and, having duly worshipped him, spoke as follows:

I.2. "Deign, divine one, to declare to us precisely and in due order the sacred laws of each of the (four chief) castes (varna) and of the intermediate ones."

Not only he gives it his legal sanction, he makes it incumbent upon the King to uphold the institution:

VII.35. The king has been created (to be) the protector of the castes (varna) and orders, who, all according to their rank, discharge their several duties."

VIII.24. All castes (varna) would be corrupted (by intermixture), all barriers would be broken through, and all men would rage (against each other) in consequence of mistakes with respect to punishment."

Manu makes breach of Caste a sin and prescribes three different punishments to one who has become a Patit by loss of caste.

The first punishment is punishment after death. Manu says:

“XII.60. He who has associated with outcasts, he who has approached the wives of other men, and he who has stolen the property of a Brahmana becomes Brahmarakshasa.”.

In this life the punishment which a Patit has to undergo was twofold. One was excommunication. The nature and character of excommunication prescribed by Manu has been prescribed by him in the following terms:

“XI. 181. He who associates with an outcast, himself becomes an outcast after a year, not by sacrificing for him, teaching him, or forming a matrimonial alliance with him, but by using the same carriage or seat, or by eating with him.

“XI.182. He who associates with any one of those outcasts, must perform, in order to atone for (such) intercourse, the penance prescribed for that (sinner).

“XI.183. The Sapindas and Samanodakas of an outcast must offer (a libation of) water (to him, as if he were dead), outside (the village), on an inauspicious day, in the evening and in the presence of the relatives, officiating priests, and teachers.

“XI.184. A female slave shall upset with her foot a pot filled with water, as if it were for a dead person; (his Sapindas) as well as the Samanodakas shall be impure for a day and a night.

“XI.185. But thenceforward it shall be forbidden to converse with him, to sit with him, to give him a share of the inheritance, and to hold with him such intercourse as is usual among men.”. The other was disinheritance.

“IX.201. Eunuchs and outcasts, (persons) born blind or deaf, the insane, idiots and the dumb, as well as those deficient in any organ (of action or sensation), receive no share.”.

“XI.186. And (if he be the eldest) his right of primogeniture shall be withheld and the additional share, due to the eldest son, and in his stead a younger brother, excelling in virtue, shall obtain the share of the eldest.”.

The only way to avoid these two punishments of excommunication and disinheritance was to do penance in the prescribed form. Penance was the only remedy. Says Manu:

“XI.187. But when he has performed his penance, they shall bathe with him in a holy pool and throw down a new pot, filled with water.

“XI.188. But he shall throw that pot into water, enter his house and perform, as before, all the duties incumbent on a relative”.

There was a distinction between a male Path and a female Patit. Neither was exempt. The Rule applies to both, for Manu says:

“XI.189. Let him follow the same rule in the case of female outcast; but clothes, food, and drink shall be given to them, and they shall live close to the (family) house.”.

There can be no doubt that the legal sanction was powerful sanction.

The punishment prescribed by law for breach of Caste was two-fold. It involved excommunication and loss of right to inherit. How formidable these punishments were has been well described by Sir Thomas Strange in his treatise on Hindu Law. Referring to the subject he says:

“It remains to consider one case, that may be said to be, with reference to personal delinquency, *instar omnium*—occurring in every enumeration on the subject as a cause of exclusion, namely: degradation, or the case of the outcaste. Accompanied with certain ceremonies, its effect is, to exclude him from all social intercourse, to suspend in him every civil function, to disqualify him for all the offices, and all the charities of life;—he is to be deserted by his connexions, who are from the moment of the sentence attaching upon him, to desist from speaking to him, from sitting in his company, from delivering to him any inherited, or other property, and from every civil or usual attention, as inviting him on the first day of the year, or the like, so that a man under these circumstances, might as well be dead; which, indeed, the Hindu Law considers him to be, directing libations to be offered to Manes, as though he were naturally so. This system of privations, mortifying as it must be, was enforced under the ancient law, by denouncing a similar fate to any one, by whose means they were endeavoured to be eluded; but this severity was moderated at the beginning of the present age, in which it is said “the sinner alone bears his guilt”, the law deeming so seriously of non-intercourse, that if one who ought to associate at meals with another, refuses to do so, without sufficient cause, he is punishable. And, in the Bombay reports, there is an instance of an action of damages, for a malicious expulsion from caste. The analogy between degradation by the Hindu law, and excommunication, as it prevailed formerly among us, holds, not merely in the general nature and effect of the proceeding, but in the peculiar circumstance of the one and the other being two-fold. As, with us, there was the less, and the greater excommunication, so, of offences considered with reference to their occasioning exclusion from inheritance among the Hindus, they may also be regarded in a two-fold point of view. This we learn from a case that was before

the Sudder Dewanny Adawlut of Bengal, in 1814, in which the official Pundits, having been referred to, distinguished between “those which involve partial and temporary degradation, and those which are followed by loss of caste”,—observing that “in the former state, that of partial degradation, when the offence which occasions it is expiated, the impediment to succession is removed; but in the latter, where the degradation is complete, although the sinfulness of the offence may be removed by expiatory penance, yet the impediment to succession still remains, because a person finally excluded from his tribe must ever continue to be an outcaste.” In the case alluded to, the party in question having been guilty of a series of profligate and abandoned conduct, having been shamefully addicted to spirituous liquors, having been in the habit of associating and eating with persons of the lowest description, and most infamous character; having wantonly attacked and wounded several people at different times; having openly cohabited with a woman of the Mahomedan persuasion; and having set fire to the dwelling house of his adoptive mother, whom he had more than once attempted to destroy by other means”, the Pundits declared that “of all the offences proved to have been committed by Sheannauth, one only, namely, that of cohabiting with a Mahomedan woman, was of such a nature, as to subject him to the penalty of expulsion from his tribe irrevocably,” and of this opinion was the Court. The power to degrade is, in the first instance, with the Castes themselves, assembled for the purpose, from whose sentence, if not acquiesced in, there lay an appeal to the King’s Courts. In the case that has been cited, the question arose incidentally, upon a claim of inheritance, and that case shews that the power amounts to a species of Censorship, applicable to the morals of the people, in instances to which the law, strictly speaking, would not perhaps otherwise extend. The sentences can be inflicted only for offences committed by the delinquent in his existing state; and, where the offence is of an inferior nature, to justify it, it must have been repeated. What distinguishes degradation from other causes of exclusion is, that it extends its effects to the son, who is involved in his father’s forfeiture, if born subsequent to the act occasioning it. Born before, he is entitled to inherit, and takes, as though his father were dead. Whereas, in every other instance of exclusion, the son, if not actually in the same predicament with his father, succeeds, maintaining him; the same right extending as far as the great grandson. And, with regard to the father, or delinquent himself, where the exclusion from inheriting is not for natural

defects, the cause must have arisen, previous to the division, or descent of the property; if it do not occur till after, the succession is not divested by it. Hence, adultery in the wife during coverture, bars her right of inheritance; divesting it also, after it has vested; the Hindu widow resembling, in this respect, the condition of ours in most instances of copyhold dower, and holding it, like her, *Dum casta fuerit* only; according to an opinion of great respectability, that for loss of caste, unexpiated by penance, and unredeemed by atonement, it is forfeited. In general, the law of disqualification applies alike to both sexes.

“It appearing, then, that the incapacity to inherit, except in the instance of the outcaste, is personal merely; that one excluded may be said, in every case, to be entitled to be maintained; and that, in most, it is in his power, at any time, to restore himself to his rights;—whatever may be thought of the wisdom of some of these provisions, it cannot be said that they are universally destitute of justice, or, in any instance, totally devoid of humanity. Nor, in comparing this part of the law with our own, ought we to forget, that the latter has made none, for preventing the absolute disinheriting of children by will.

“It will appear, in a subsequent chapter, that, on entry into either of the two religious orders, the DEVOTEE (like the professed monk with us before the Reformation) becomes *Civiliter mortuus*; and the next heir succeeds, as though he were naturally deceased, AND, as the devotee himself, abdicating secular concerns, is incapacitated from inheriting, so is the religious PRETENDER, and the eventual Apostate. Under the former term may be included Hypocrites and Impostors, used synonymously for those who, usurping sacred marks, practise austerities with an interested design.

The remaining cause of exclusion to be noticed, is, an Incompetent marriage; that is, where the husband and wife are descended from the same Stock. Such a marriage being incongruous, the issue of it cannot inherit, excepting among Shudras. And the consequence is the same, where the marriage has not been according to the order of Class.

“The heir, or heirs, under no disability, having succeeded to the inheritance, it is next to be seen, to what Charge this is liable.”

Has Caste also a religious sanction? The Vedas recognize Caste.

The Rig Vedas recognized Caste and also explains its origin in the following passage:

- “1. Purusha has a thousand heads, a thousand eyes, a thousand feet. On every side enveloping the earth, he overpassed (it) by a space of ten fingers.

2. Purusha himself is this whole (universe), whatever has been and whatever shall be. He is also the lord of immortality, since (or, when) by food he expands.
3. Such is his greatness, and Purusha is superior to this. All existences are a quarter of him; and three fourths of him are that which is immortal sky.
4. With three quarters Purusha mounted upwards. A quarter of him was again produced here. He was then diffused everywhere over things which eat and things which do not eat.
5. From him was born Viraj, and from Viraj, Purusha. When born, he extended beyond the earth, both behind and before.
6. When the gods performed a sacrifice with Purusha as the oblation, the spring was its butter, the summer its fuel, and autumn its (accompanying) offering.
7. This victim, Purusha, born in the beginning, they immolated on the sacrificial grass. With him the gods, the Sadhyas, and the rishis sacrificed.
8. From that universal sacrifice were provided curds and butter. It formed those aerial (creatures) and animals both wild and tame.
9. From that universal sacrifice sprang the *rich* and *saman verses*, the *metres*, and *yajush*.
10. From it sprang horses, and all animals with two rows of teeth; kine sprang from it; from it goats and sheep.
11. When (the gods) divided Purusha, into how many parts did they cut him up? What was his mouth? What arms (had he)? What (two objects) are said (to have been) his thighs and feet?
12. The Brahman was his mouth; the Rajanya was his arms; the being (called) the Vaishya, he was his thighs, the Shudra sprang from his feet.
13. The moon sprang from his soul (manas), the sun from his eye, Indra and Agni from his mouth, and Vayu from his breath.
14. From his navel arose the air, from his head the sky, from his feet the earth, from his ear the (four) quarters; in this manner (the gods) formed the worlds.
15. When the gods, performing sacrifice, bound Purusha as a victim, there were seven sticks (stuck up) for it (around the fire), and thrice seven pieces of fuel were made.
16. With sacrifice the gods performed the sacrifice. These were the earliest rites. These great powers have sought the sky, where are the former Sadhyas, gods."

The Brahmanas also recognize Caste. In the Satapatha-Brahmanas Caste is mentioned in the following terms:

- “23. Brahma (here, according to the commentator, existing in the form of Agni, and representing the Brahman caste was formerly this (universe), one only. Being one, it did not develope. It energetically created an excellent form, the Kshattrra, viz., those among the gods, who are powers (Kshattrani), Indra, Varuna, Soma, Rudra, Parjanya, Yama, Mrityu, Isana. Hence nothing is superior to the Kshattrra. Therefore the Brahman sits below the Kshattriya at the rajasuya-sacrifice; he confers that glory on the Kshattrra (the royal power). This, the Brahma, is the source of Kshattrra. Hence, although the king attains supremacy, he at the end resorts to the Brahman as his source. Whoever destroys him (the Brahman) destroys his own source. He becomes most miserable, as one who has injured a superior.
24. He did not develope. He created the Vis.—viz., those classes of gods who are designated by troops, Vasus, Rudras, Adityas, Visvedevas, Maruts.
25. He did not develope. He created the Shudra Class, Pushan. This earth is Pushan; for she nourishes all that exists.
26. He did not develope. He energetically created an excellent form, Justice (Dharma). This is the ruler (kshattrra) of the ruler (kshattrra), namely Justice. Hence nothing is superior to justice. Therefore the weaker seeks (to overcome) the stronger by justice, as by a king. This justice is truth. In consequence they say of a man who speaks truth, ‘he speaks justice’; or of man who is uttering justice, ‘he speaks truth’. For this is both of these.
27. This is the Brahma, Kshattrra, Vis and Sudra. Through Agni it became Brahma among the gods, the Brahman among men, through the (divine) Kshattriya a (human) Kshattriya, through the (divine), Vaishya a (human) Vaisya, through the (divine) Sudra a (human) Sudra. Wherefore it is in Agni among the gods and in a Brahman among men, that they seek after an abode.”

Taittiriya Brahmana, i. 2, 6, 7.—*daivyo vai varno brahmanh assuryyo sudrah*. “The Brahman caste is sprung from the gods; the Sudra from the Asuras.”

It must be admitted that the legal and the religious sanction were both powerful engines to keep caste going. But there is no doubt that the religious sanction was the primary sanction and caste has been maintained solely by the force of Religious Sanction. This is clear from two circumstances. That the legal sanction was very seldom invoked will have to be admitted. That means that the maintenance of caste

was secured by other means. Secondly this legal sanction was in use only till 1850. It was lifted or rather done away with by the Caste Disabilities Removal Act passed in that year by the British Government. Although the legal sanction is withdrawn, caste has gone on without abatement. That could not have happened if caste had not in the Religious Sanction another and more powerful sanction independent of the legal sanction.

That the Religious Sanction is the highest sanction which an institution or a belief can have to support and sustain it, is beyond question. Its power is boundless in its measure and tremendous in its curb. But it is very seldom understood how and whence this Religious Sanction gets this high-grade horse-power. To appreciate this it is necessary to note that the source of authority behind the Religious Sanction is two-fold.

In the first place what is Religious is also Social. To quote Prof. Durkheim.¹

“The really religious beliefs are always common to a determined group, which makes profession of adhering to them and of practising the rites connected with them. They are not merely received individually by all the members of this group; they are something belonging to the group, and they make its unity. The individuals which compose it feel themselves united to each other by the simple fact that they have a common faith.”

In the second place what is Religious is Sacral. To quote Durkheim again:²

“All known religious beliefs whether simple or complex, present one common characteristic; they presuppose a classification of all the things, real and ideal, of which men think, into two classes or opposed groups, generally designated by two distinct terms which are translated well enough by the words *profane and sacred*..... In all the history of human thought there exist no other example of two categories of things so profoundly differentiated or so radically opposed to one another. The traditional opposition of good and bad is nothing besides this; for the good and the bad are only two opposed species of the same class, namely morals, just as sickness and health are two different aspects of the same order of facts, life, while the Sacred and the profane have always and everywhere been conceived by the human mind as two distinct classes, as two worlds between there is nothing in common..... Religious beliefs are the representations which express the nature of sacred things and the

¹ Elementary Forms of Religious Life. pp. 37-40.

² *Ibid.*, p. 43.

relations which they sustain, either with each other or with profane things (while) rites are the rules of conduct which prescribe how a man should comfort himself in the presence of these Sacred objects.”

From this it will be clear that the Social, Religious and Sacral beliefs are closely knit. Religious is social though all that is social is not religious. Sacral is social though all that is social is not sacral. On the other hand the religious is both social and sacral.

One source of authority behind the religious sanction comes from the fact, that is, religion is social and the religious beliefs are social beliefs. Religious beliefs are enforced on the individual by the group in the same manner and for the same reasons which leads it to enforce its other non-religious and purely social beliefs. The object is to maintain the integrity of the group and as the integrity of the group is more closely bound up with its religious beliefs, the strictness and severity with which a group punishes the breach of a religious belief is usually greater than the degree of strictness and severity it employs for the chastisement of a person guilty of a breach of a non-religious belief. Social force has an imperative authority before which the individual is often powerless. In the matter of a religious belief the imperative authority of the social force is tempered as steel is by the feeling that it is a breach of a graver kind and gives religious sanction a far greater force than a purely social sanction has.

The Sacral source of the authority behind religious sanction comes primarily from the individual and only secondarily from the group. That is the noteworthy peculiarity of the social source of religious sanction. It prepares the individual to uphold the religious beliefs. It dispenses with the necessity of the group using its social group. That is why the sacral source of its authority makes religious sanction of such high order as to supersede all other sanctions indeed to dispense with them. That is why the Religious Sanction alone becomes sufficient to maintain the integrity of religious beliefs which even time and circumstances have proved powerless to affect. The way this happens is easy to follow. The Sacred inspires in the individual the sentiment of reverence and deference which he certainly has not for the profane. To use the language of Durkheim,

“The simple defence inspired by men with high social functions is not different in nature from religious respect (for the sacred). It is expressed by the same movements: a man keeps at a distance from high personage; he approaches him only with precautions; in conversing with him, he used other gestures and language than that used with ordinary mortals.”

The Sacred creates the sentiment of Reverence. It also creates the sentiment that it is inviolate. When a belief becomes consecrated as a Sacred thing, it is forbidden to touch it, to deny it or to contest it. There is a prohibition of criticism of the Sacred. The Sacred is 'untouchable and above discussion'. When an individual is saturated with these sentiments, when these sentiments become a part of his being, he himself becomes an upholder and protector of what he is taught to regard as something sacred.

This is exactly what the Hindus have done in the matter of Caste. They have given caste a place in the Vedas. Caste has thereby become sacred because the Vedas are Sacred. It would be wrong to say that the Vedas are sacred because they are religious. The position is that they are religious because they are sacred.

It might appear that the Hindus have no name for the Veda directly expressing the feeling of sacredness which the Hindu entertains towards the Vedas. Veda simply means knowledge. That may be so. But there can be no doubt that they regard the Vedas as sacred. Indeed the term they apply to Vedas expresses a far greater degree of reverence than the word sacred does. They call the Vedas *Shruti*—which means the word of God heard by (i.e. revealed to) man. In the primitive religion the Sacred is what man has made. In the Hindu religion the Sacred is what God has appointed it to be.

The Hindus regard the Vedas as the Sacred Book of their religion. They put the Vedas in a class by themselves. The Hindus hold¹ that there are cycles of creations called *Kalpas*. At the end of every cycle there is a deluge and a new cycle of creation begins. At the end of a *Kalpa*, the Vedas are destroyed in the deluge. At the beginning of every *Kalpa* they are revealed by God. Accordingly the *Vedas* were destroyed in the deluge at the end of the last *Kalpa* and that the beginning of the present *Kalpa* commencing with the *Krita Yuga*, they were revealed by God to the *Rishis*. The Vedas are regarded by the Hindus as *Nitya* (eternal) *Anadi* (beginningless) and *Apaurusheya* (not made by man). In short the Vedas are the words of God and constitute God's ordinances to man.

Even if the Vedas were not called *Shruti* they would have had the imperativeness of the 'Sacred'. Religions have been variously classified by Prof. Max Muller.² Natural as against Revealed is one way of classifying them. Individual as against National is another way. The third way of classifying them is to call them Atheistic, Deistic, Dualistic, Polytheistic, Monotheistic, Henotheistic and Animistic. True

¹ M. Krishnamachariar—Classical Sanskrit Literature. Introduction, pp. vii-viii and p. 836.

² Introduction to the Science of Religion.

and False is also another way of classifying Religions. Bookless Religions and Religions with books are two classes into which Religion could be grouped. This probably does not exhaust the ways of classifying Religions. For there remains one more distinction to be made, namely Religions which have founders and religions which have no founders.

These distinctions have social significance except two. They are the distinctions between Natural and Revealed and that between Bookless Religion and Book Religion. They differ in their function although that difference is not often noted.

The Book religion has a definite advantage over a Bookless religion. A Book religion is a Religion with a written constitution. A Bookless Religion is a Religion without a written constitution. A book religion creates the impression that it is true which a bookless religion cannot. By comparison with a book religion, a bookless religion wears the inferiority complex of being false. In the language of Max Muller Religions with books are alone “considered as real religions, and though they may contain false doctrines, they are looked upon as a kind of aristocracy to whom much may be forgiven, while the vulgar crowd of bookless or illiterate religions are altogether out of Court ”.¹ It is easy to understand the superiority accorded to a religion with a book over a bookless religion. When ‘black on white’ has become synonymous with true, it may seem very natural that a religion which is written, which is something black on white is not false. The Book serves as the voucher for truth. A religion without a book has no voucher.

The social significance of a religion with a book lies in the fact that it controls the mind of the people by giving them the impression that the religion contained in the book is true. It gives Religion authority over people and induces willing obedience in them.

But however a Religion may appear to be true by reason of the fact that it is a book religion, such appearance cannot save Religion from going under, if beliefs and rites empirically erroneous have crept into it. Man may go wrong in theory but his practical instincts will seldom allow him to go after a wrong theory for a long time. Unless therefore the religious beliefs of a social group are true, practically Religion must in the long run give way.

Herein comes the social significance of the distinction between Natural Religion and Revealed Religion. A Revealed Religion has superiority over Natural Religion. Natural Religion is used by several writers to certain historical forms of religion. Something which has grown along with the growth of people—as a result of the interaction

¹ Natural Religion, p. 549.

between the needs of the peoples and the environment in which they are placed. A natural religion is made by man. Its sanction is the sense of truth and the voice of conscience that is to be found in man. A Revealed Religion does not rest on the authority of man. It is not man-made, it is God-made. Its sanction is God who is absolute truth and absolute good. The function of Revealed Religion is to make religion sacred therefore inviolate and immune from criticism.

The Vedas have the characteristics of both. They have the advantage which a Religion with a book has over the Bookless Religion. They have the advantage which a Revealed Religion has over Natural Religion.

This discussion is intended to enforce the conclusion that Caste being preached by the Vedas, it automatically gets the authority of the written book and the sanctity of the divine word. As a scheme propounded by the Veda it is doubly protected. Every one must accept Caste because it is divine truth and no body must attack it as an error without being guilty of sacrilege because it is sacred.

This is the Hindu view of Caste and the average Hindu is not impressed by the modern explanation of it by Risley with his racial theory, by Senart with his occupational theory, by Nesfield with his functional theory. He knows and he believes that Caste must have been created by God, because it is mentioned in the Vedas which is *Shruti* or the word of God. It is therefore eternal and true.

That Caste is divine, that caste is sacred and that caste must therefore remain eternal has been the line of defence adopted by the Brahmins whenever they have been called out to defend 'Caste' against the criticism of its opponents. This view of Caste comes out in its luminous colours in the controversy that once raged on the subject of Caste between Brahmins on the one hand and Buddha and his followers, on the other i.e.:

"If the belief was once established, that not only the simple effusions of the Rishis, but the pointed doctrines of the Brahmanas also, emanated from a divine source, and could not therefore be attacked by human reasoning, it is clear that every opposition to the privileges which the Brahmans claimed for themselves, on the sacred authority of the Veda, became heresy; and where the doctrines of the Brahmans were the religion of the people, or rather of the king, such opposition was amenable to the hierarchical laws of the state. The Brahmans themselves cared much more to see the divine authority of the Sruti as such implicitly acknowledged, than to maintain the doctrines of the Rishis in their original simplicity and purity. In philosophical discussions, they allowed the greatest

¹ *Soure of the following quotations upto page 167 is not mentioned in the M.S.—Ed.*

possible freedom; and, although at first three philosophical systems only were admitted as orthodox (the two Mimansas and the Nyaya), their number was soon raised to six, so as to include the Vaiseshika, Sankhya, and Yoga-schools. The most conflicting views on points of vital importance were tolerated as long as their advocates succeeded, no matter by what means, in bringing their doctrines into harmony with passages of the Veda, strained and twisted in every possible sense. If it was only admitted that besides the perception of the senses and the induction of reason, revelation also, as contained in the Veda, furnished a true basis for human knowledge, all other points seemed to be of minor importance. Philosophical minds were allowed to exhaust all possible views on the relation between the real and transcendental world, the Creator and the created, the divine and the human nature. It was not from such lucubrations that danger was likely to accrue to the caste of the Brahmans. Nor was the heresy of Buddha Sakya Muni found so much in his philosophical doctrines, many of which may be traced in the orthodox atheism of Kapila. His real crime lay in his opposition to the exclusive privileges and abuses of the Brahmans. These abuses were sanctioned by the divine authority of the Veda, and particularly of the Brahmans. In attacking the abuses, Buddha attacked the divine authority on which they were founded, and the argument was short: he is a heretic; anathema etc.

“Buddha was Kshatriya. He was of principal origin, and belonged to the nobility of the land. He was not the first of his caste who opposed the ambition of the Brahmans. Several centuries before Buddha, Visvamitra, who, like Buddha, was a member of the royal caste, had to struggle against the exclusiveness of the priests. At that early time, however, the position of the Brahmans was not yet impregnable; and Visvamitra, although a Kshatriya, succeeded in gaining for himself and his family the rights for which he struggled, and which the Brahmans had previously withheld from all but their own caste. King Janaka of Videha again, whose story is given in the Brahmanas, refused to submit to the hierarchical pretensions of the Brahmans, and asserted his right of performing sacrifices without the intercession of priests. However great the difference may have been between the personal character of these two men and of Buddha, the first principle of their opposition was the same. All three were equally struggling against the over-weening pretensions of a selfish priesthood.

“But while Visvamitra contented himself with maintaining the rights of his tribe or family, and became reconciled as soon as he

was allowed to share in the profits of the priestly power, while King Janaka expressed himself satisfied with the homage paid to him by Yajnavalkya and other Brahmans, while, in short, successive reformers as they appeared were either defeated or gained over to the cause of the Brahmans,—the seeds of discontent were growing up in the minds of the people. There is a dark chapter in the history of India, the reported destruction of all the Kshatriyas by Parsurama. It marks the beginning of the hierarchical supremacy of the Brahmans. Though the Brahmans seem never to have aspired to the royal power, their caste, as far as we know the history and traditions of India, has always been in reality the ruling caste. Their ministry was courted as the only means of winning divine favour, their doctrines were admitted as infallible, their gods were worshipped as the only true gods, and their voice was powerful enough to stamp the simple strains of the Rishis, and the absurd lucubrations of the authors of the Brahmans, with a divine authority. After this last step, however, the triumph of Brahmanism was preparing its fall. In India, less than in any other country, would people submit to a monopoly of truth; and the same millions who were patiently bearing the yoke of a political despotism threw off the fetters of an intellectual tyranny. In order to overthrow one of the oldest religions of the world, it was sufficient that one man should challenge the authority of the Brahmans, the gods of the earth (Bhudeva), and preach among the scorned and degraded creatures of God the simple truth that salvation was possible without the mediation of priests, and without a belief in books to which these very priests had given the title of revelation. This man was BUDDHA, a SAKYA MUNI. Now if we inquire how Buddha's doctrines were met by the Brahmans, it is true that here and there in their philosophical works, they have endeavoured to overthrow some of his metaphysical axioms by an appeal to reason. An attempt of this kind we have, for instance, in Vachaspati Misra's commentary on the Vedanta Sutras. In commenting on the tenets of Buddha, that "ideas like those of being, and not being, &c, do not admit of discussion", Vachaspati observes that the very fact of speaking of these ideas, includes the possibility of their conception; nay, that to affirm they do not admit of reasoning, involves an actual reasoning on them, and proves that the mind can conceive the idea of being as different from that of not-being.

"Such, however, were not the usual weapons with which Brahmanism fought against Buddhism. The principal objection has always been, that Buddha's teaching could not be true, because it

did not derive its sanction from Sruti or revelation. The Brahmins, as a caste, would readily have allowed being and not being, and the whole of Buddha's philosophy, as they did the Sankhya philosophy, which on the most important points is in open opposition to the Vedanta. But while Kapila, the founder of the Sankhya school, conformed to the Brahmanic test by openly proclaiming the authority of revelation as paramount to reasoning and experience, Buddha would not submit to this, either for his philosophical (abhidharma), or for his much more important moral and religious doctrines (vinaya). No doubt it would have been easy for him to show how some of his doctrines harmonised with passages of the Veda, as in the Veda all possible shades of the human mind have found their natural reflection. If he had done so only for some of his precepts, such, for instance, as, "Thou shall not murder", "Thou shall not drink", "Thou shall eat standing", the Brahmins would readily have passed over other doctrines, even such as came into practice after Buddha's death, like "Who longs for heaven, shall worship the holy sepulchre", "He shall pull out his hair", &c. As he refused to do so, the line of argument taken by the Brahmins was simply confined to an appeal to revelation, in disproof of the possibility of the truth of Buddha's doctrines.

"There must be something very tempting in this line of argument, for we see that in later times the Buddhists also endeavoured to claim the same divine character for their sacred writings which the Brahmins had established for the Veda. A curious instance of this is given in the following discussion, from Kumarila's *Tantra-varttika*. Here the opponent (*purva-paksha*) observes, that the same arguments which prove that the Veda is not the work of human authors, apply with equal force to Sakya's teaching. His authority, he says, cannot be questioned, because his precepts are clear and intelligible; and as Sakya is not the inventor, but only the teacher of these precepts, and no name of an author is given for Sakya's doctrines, the frailties inherent in human authors affect them as little as the Veda. Everything, in fact, he concludes, which has been brought forward by the Mimamsakas to prove the authority of the Veda, proves in the same way the authority of Buddha's doctrine. Upon this, the orthodox Kumarila grows very wroth, and says: "These Sakyas, Vaiseshikas, and other heretics who have been frightened out of their wits by the faithful Mimamsakas, prattle away with our own words as if trying in lay hold of a shadow. They say that their sacred works are eternal; but they are of empty minds, and only out of hatred they wish to deny that the Veda is the most

ancient book. And these would-be logicians declare even, that some of their precepts (which they have stolen from us,) like that of universal benevolence, are not derived from the Veda, because most of Buddha's other sayings are altogether against the Veda. Wishing, therefore, to keep true on this point also, and seeing that no merely human precept could have any authority on moral and supernatural subjects, they try to veil their difficulty by aping our own argument for the eternal existence of the Veda. They know that the Mimansakas have proved that no sayings of men can have any authority on supernatural subjects; they know also that the authority of the Veda cannot be controverted, because they can bring forward nothing against the proofs adduced for its divine origin, by which all supposition of a human source have been removed. Therefore, their hearts being gnawed by their own words, which are like the smattering of children, and having themselves nothing to answer, because the deception of their illogical arguments has been destroyed, they begin to speak like a foolish suitor who came to ask for a bride, saying, 'My family is as good as your family'. In the same manner they now maintain the eternal existence of their books, aping the speeches of others. And if they are challenged and told that this is our argument, they brawl, and say that we, the Mimansakas have heard and stolen it from them. For a man who has lost all scheme, who can talk away without any sense, and tries to cheat his opponent, will never get tired, and will never be put down!" Towards the end of this harangue, Kumarila adds, what is more to the point, that the Buddhas, who ascribe to everything a merely temporary existence, have no business to talk of an eternal revelation."

From the foregoing discussion it will be seen that Caste is born in religion which has consecrated it and made it Sacred so that it can be rightly and truly said that Religion is the Rock on which the Hindus have built their social structure.

Does this not show that Caste is a very peculiar institution not to be compared with other forms of social grouping? I venture to say that any one who maintains that there is nothing strange in caste simply does not know what Caste is. I repeat that Caste is Sacred, which is its distinguishing feature. Caste is Sacred, which is what makes it abiding.

Prof. Max Muller makes some very instructive observations on the effects of Religion with Sacred books on the progress of Society. Says Max Muller:

"History, however, teaches us another lesson, namely that codes of law are apt to become a kind of fetish, requiring an implicit and

unquestioning submission, that their historical or natural origin is often completely forgotten, and that the old ideas of what is right and just are almost absorbed, nay, almost annihilated, in the one idea of what is written and legal.

“The study of Eastern religions teaches us the same lesson. Sacred books often become a kind of fetish, requiring an implicit and unquestioning faith; their historical or natural origin is often completely forgotten, and the old ideas of what is true and divine are almost absorbed in the one idea of what is written and orthodox.

“And there is a third lesson which history teaches us. The sense of responsibility of every citizen for the law under which he lives is in great danger of becoming deadened, when law becomes a profession and is administered with mechanical exactness rather than with a strong human perception of what is right and what is wrong. Nor can it be denied that the responsibility of every believer for the religion under which he lives is in the same danger of becoming deadened, when religion becomes a profession, and is administered with ceremonial exactness rather than with a strong human perception of what is true and what is false.

“My object, however, is not to show the dangers which arise from sacred books, but rather to protest against the prejudice which prevails so widely against religions which have no sacred books.

“There is great difference between book-religions and bookless religions, and the difference offers, from an historical point of view, a very true ground of division. But because the book-religions, have certain advantages, we must not imagine that the bookless religions are mere outcasts. They have their disadvantages, no doubt; but they have a few advantages also.

“A Blackfoot Indian, when arguing with a Christian missionary, described the difference between his own religion and that of the white man in the following words:

‘There were two religions given by the Great Spirit, one in a book for the guidance of the white men who, by following its teachings, will reach the white man’s heaven; the other is in the hands of the Indians, in the sky, rocks, rivers, and mountains. And the red men who listen to God in nature will hear his voice, and find at last the heaven beyond.’

“Now that religion which is in the head and in the heart, and in the sky, the rocks, the rivers and the mountains is what we call Natural Religion. It has its roots in nature, in human nature, and in that external nature which to us is at the same time the veil and the

revelation of the Divine. It is free, it grows with the growth of the human mind, and adapts itself to the requirements of every age. It does not say, 'Thou shalt', but rather, 'I will'. These natural or bookless religions are not entirely without settled doctrines and established customs. They generally have some kind of priesthood to exercise authority in matters of faith, morality, and ceremonial. But there is nothing hard and unchangeable in them, nothing to fetter permanently the growth of thought. Errors when discovered, can be surrendered, a new truth, if clearly seen and vigorously defended, can be accepted. If, however, there is once a book, something black on white, the temptation is great, is almost irresistible, to invest it with a more than human authority in order to appeal to it as infallible, and as beyond the reach of human reasoning. We can well understand what the ancient poets of the Veda meant by calling their hymns God-given, or by speaking of them as what they had seen or heard, not what they had elaborated themselves. But a new generation gave a new meaning to these expressions, and ended by representing every thought and word and letter of the Veda as 'God-given,' or revealed. This was the death-blow given to the Vedic religion, for whatever cannot grow and change must die. From this danger the bookless religion are exempt."

Similar observations are made by Sir William Muir. Speaking of Islam he has given powerful expression to the dangers arising from Sacred Codes of Religion. Sir William Muir says:

"From the stiff and rigid shroud in which it is thus swathed, the religion of Mahomed cannot emerge. It has no plastic power beyond that exercised in its earliest days. Hardened now and inelastic, it can neither adapt itself, nor yet shape its votaries, nor even suffer them to shape themselves, to the varying circumstances, the wants and developments of mankind" . (Quoted by E de Bunsen in an article in the Asiatic Quarterly Review, April, 1889, Mahomed's Place in the Church, p. 287.)

Every one who is interested in the progress of humanity cannot fail to echo these sentiments regarding the social consequences of Sacred Codes of Religion. But it seems to me that a further distinction is possible within the Class of Religion with Sacred Codes. It is a pity that Prof. Max Muller did not pursue the matter further. But it is worth pursuing because it discloses a difference which is very real which marks off the Hindus as a people with a Sacred Code of Religion from other people also possessing a Sacred Code of Religion. The difference will be clear if one begins to examine the different religions to find out what are the objects which religions have sought to consecrate.

Such an examination will show that there are instances where Society has consecrated inanimate things and inculcated on the minds of its members the religious belief that they are sacred. There are cases where stones, rivers, trees are made gods and goddesses. There are instances where Society has consecrated living things and inculcated on the minds of its members the religious belief that they are sacred. There are cases of animals which have become clan totems. There are instances where Society has consecrated human beings and inculcated the religious beliefs that they are sacred. But there are no instances where a particular Social Order has been consecrated by Religion and made Sacred. The primitive world had its clan order and its tribal order. But the clan or the tribal order was only a social order and was never consecrated by religion and made sacred and inviolate. The ancient world countries like Egypt, Persia, Rome, Greece etc., each had its social order in which some were free and some were slaves, some were citizens, some were aliens, some of one race, some of another. This class order again was only a social order and was never consecrated by religion and made sacred and inviolate. The modern world has its order, in some it is Democracy, in some Fascism, in some Nazism and in some Bolshevism. But here again the order is only Social order. It is not consecrated by religion and made sacred and inviolate.

Nowhere has Society consecrated its occupations, the ways of getting a living. Economic activity has always remained outside the sanctity of religion. Hunting society was not without religion. But hunting as an occupation was not consecrated by religion and made sacred. Pastoral Society was not without religion. But pasturage was not consecrated by religion and made sacred. Farming as an occupation did not become consecrated by religion and made sacred. Feudalism with its gradations, with its Lords, vassals and serfs was a purely social in character. There was nothing sacred about it.

The Hindus are the only people in the world whose Social order—the relation of man to man is consecrated by religion and made sacred eternal and inviolate. The Hindus are the only people in the world whose economic order—the relation of workman to workman—is consecrated by religion and made sacred, eternal and inviolate.

It is not therefore enough to say that the Hindus are a people with a sacred code of Religion. So are the Zoroastrians, Israelites, Christians and Muslims. All these have sacred codes. They consecrate beliefs and rites and make them sacred. They do not prescribe, nor do they consecrate a particular form of social structure—the relationship between man and man in a concrete form—and make it sacred

inviolable. The Hindus are singular in this respect. This is what has given caste its abiding strength to defy the ravages of time and the onslaughts of time.

There is one other respect in which Hindus differ from other folk possessing codified religions similar to that of the Hindus. The Hindu Code of Religion is a revelation from God. That is why the Vedas are called Shruti (what is heard). So are the Codes of Religions accepted by the Zoroastrians, Jews, Christians and Muslims. Ask to whom this God's word sent to the Zoroastrian, Jews, Christians, and Muslims was revealed, who heard this word of God ? The Zoroastrian will say that the word of God contained in their Religious Code was heard by Zoroaster. The Jews will say it was heard by Moses, Christians will say it was heard by Jesus and Muslims will say it was heard by Muhammad. Now ask the Hindu who heard the word of God contained in the Vedas, to whom was it revealed. The Hindu has no answer. He cannot name the person who heard this word of God. Now the Mantras contained in the Vedas have their authors mentioned in the Vedas themselves. But the Hindus will not say that these are the persons who heard the word of God which is contained in the Vedas. This difference goes a great way to protect the sacred character of the Vedas. For the Bible as a Sacred Book can be attacked by attacking the character of Moses or Jesus. Similarly the Koran as a Sacred Book can be attacked by attacking the character of Mahomed. But the Veda cannot be attacked by attacking the character of the messenger or the founder. For the simple reason that there is none.

As I have said Religion is the Rock on which the Hindus have built their house. It will now be seen that it is not an ordinary sort of hard Rock. It is granite.



CHAPTER 18

TOUCHABLES V/S UNTOUCHABLES

I

A relationship of touchables against untouchables may cause surprise. Such a surprise will not be altogether without reason. The touchables are not one uniform body of people. They are themselves divided into innumerable castes. Each Hindu is conscious of the caste to which he belongs. Given this heterogeneity it does seem that to include all the touchable castes into one group and put them as forming a block against the untouchables is to create a division which can have no meaning. But although this division of touchables against untouchables may require explanation, the division so far as modern India is concerned is real and substantial.

The explanation of how the touchables have now become one block and are conscious of their being different from the untouchables means nothing but recounting the mutual relationship of the four Varnas.

At the outset it must be borne in mind that those who like Mr. Gandhi accept the Chaturvarna as an ideal form of society, either do not know the history of the mutual relations of the four Varnas or are cherishing an illusion or conjuring up a vision for purposes which they are out to serve. For, the fact is that the four Varnas never formed a society based on loving brotherhood or on economic organization based on cooperative effort. The four Varnas were animated by nothing but a spirit of animosity towards one another. There would not be the slightest exaggeration to say that the social history of the Hindus is a history not merely of class struggle but class war fought with such bitterness that even the Marxist will find it difficult to cite parallel cases to match.

It seems that the first class-struggle took place between the Brahmins, Kshatriyas and Vaishyas on the one hand and the Shudras on the other.

In Katyayana's Srauta Sutras, it is said, that "men with the exception of those whose members are defective, who have not read the Veda, eunuchs, and Shudras, have a right to sacrifice. It is Brahmanas,

Rajanyas and Vaishyas (only who) according to the Veda (possess this privilege)".

We are told by Manu that (*Quotation not given in the MS.*).*

Manu also says that (*Quotation not given in the MS.*).

Compare with this the following instances and statements relating to the status of the Shudra occurring in the Vedic literature of a period earlier than Manu and even earlier than Katyayana.

Prof. Max Muller calls attention to two instances showing that Shudras were admitted to great sacrifices such as "*gavedhukacharu*". One is that of Rathakara and the other of Nishadasthapati, both Shudras.

It might however be supposed that this was a concession made to the exceptional men from the Shudras. That it was not a mere concession but a right enjoyed by the Shudras is beyond question. In the Satapatha Brahmana which is a part of the Veda, the formula for the Brahmin Priest to call the sacrificer to come and make the oblation is given. He is asked to say *ehi*, come, in the case of a Brahman; *Agahi* 'come hither', in the case of a Vaishya; *Adrava*, 'hasten hither' in the case of a Kshatriya and *Adhava*, 'run hither' in the case of a Shudra.

This passage is of very great importance. It shows that the Shudra had at one time the right to sacrifice. Otherwise a form of address for a Shudra sacrificer could not have found a place in the Vedic precept. If the Shudra had a right to sacrifice, they also must have had a right to study the Vedas.

For, according to Katyayana, only those who had the right to read the Vedas were entitled to perform the sacrifice. That the Shudras were at one time entitled to read the Vedas is a fact which is well supported by tradition which is referred to in the Shanti Parva of the Mahabharat, where the sage Bhrigu answers the question "How is Varna to be determined?" in the following terms:

"There is no difference of castes; this world, having been at first created by Brahma entirely Brahmanic, became (afterwards) separated into castes in consequence of works. 6940. Those Brahmans (lit. twice born men), who were fond of sensual pleasure, fiery, irascible, prone to violence, who had forsaken their duty, and were red-limbed, fell into the condition of Kshatriyas. Those Brahmans, who derived their livelihood from kine, who were yellow, who subsisted by agriculture, and who neglected to practise their duties, entered into the state of Vaisyas. Those Brahmans, who were addicted to mischief and falsehood, who were covetous, who lived

* Attention of the reader is however, drawn to Chapter 16 of Vol. 3 of the present series which deals with Laws of Manu relating to the degradation of the Shudras and which seems relevant at this place.—Ed.

by all kinds of works, who were black and had fallen from purity, sank into the condition of Sudras. Being separated from each other by these (works, the Brahmins became divided into different castes. Duty and the rites of sacrifice have not been always forbidden to (any of) them. Such are four classes for whom the Brahmanic Sarasvati was at first designed by Brahma, but who through their cupidity fell into ignorance.”

Interpreting the word “Brahmanic Sarasvati” the Commentator says:

“Sarasvati, consisting of the Veda, was formerly designed by Brahma for all the four castes; but the Shudras having through cupidity fallen into ‘ignorance i.e. of darkness,’ lost their right to the Veda.”

After the Shudra was reduced came the turn of the Vaishya.

The bitterest class war took place between the Brahmins and the Kashatriyas. The classical literature of the Hindus abounds in reference to class wars between these two Varnas.

First was the conflict between the Brahmins and King Vena.

“There was formerly a Prajapati (lord of creatures), a protector of righteousness, called Anga, of the race of Atri, and resembling him in power. His son was the Prajapati Vena, who was but indifferently skilled in duty, and was born of Sunitha, the daughter of Mritya. This son of the daughter of Kala (death), owing to the taint derived from his maternal grandfather, threw his duties behind his back and lived in covetousness under the unfluence of desire. This king established an irreligious system of conduct; transsgresing the ordinances of the Veda, he was devoted to lawlessness. In his reign men lived without study of the sacred books and without the vashatkara, and the gods had no Soma-libations to drink at sacrifices. ‘I’, he declared, ‘am the object, and the performer of sacrifice, and the sacrifice itself, it is to me that sacrifice should be presented, and oblations offered.’ This transgressor of the rules of duty, who arrogated to himself what was not his due, was then addressed by all the great rishis, headed by Marichi: ‘We are about to consecrate ourselves for a ceremony which shall last for many years, practice not unrighteousness, o Vena; this is not the eternal rule of duty. Thou art in very deed a Prajapati of Atri’s race, and thou hast engaged to protect thy subjects.’ The foolish Vena, ignorant of what was right, laughingly answered those great rishis who had so addressed him: ‘Who but myself is the ordainer of duty? or whom ought I to obey? Who on earth equals me in sacred

knowledge, in prowess, in austere fervour, in truth? Ye who are deluded and senseless know not that I am the source of all beings and duties. Hesitate not to believe that I, if I willed, could burn up the earth, or deluge it with water, or close up heaven and earth'. When owing to his delusion and arrogance Vena could not be governed, then the mighty rishis becoming incensed, seized the vigorous and struggling king, and rubbed his left thigh. From this thigh, so rubbed, was produced a black man, very short in stature, who, being alarmed, stood with joined hands. Seeing that he was agitated, Atri said to him 'Sit down' (nishida). He became the founder of the race of the Nishadas, and also progenitor of the Dhivaras (fisherman), who sprang from the corruption of Vena. So too were produced from him the other inhabitants of the Vindhya range, the Tukharas and Tumburas, who are prone to lawlessness. Then the mighty sages, excited and incensed, again rubbed the right hand of Vena, as men do the Arani wood, and from it arose Pritha, respondent in body, glowing like the manifested Agni."

"The son of Vena (Prithu) then, with joined hands, addressed the great rishis: 'A very slender understanding for perceiving the principles of duty has been given to me by nature; tell me truly how I must employ it. Doubt not that I shall perform whatever you shall declare to me as my duty, and its object.' Then those gods and great rishis said to him: 'Whatever duty is enjoined perform it, without hesitation, disregarding what thou mayest like or dislike, looking on all creatures with an equal eye, putting far from the lust, anger, cupidity, and pride. Restrain by the strength of thine arm all those men who swerve from righteousness, having a constant regard to duty. And in thought, act, and word take upon thyself, and continually renew, the engagement to protect the terrestrial Brahman (Veda or Brahmans?)..... And promise that thou wilt exempt the Brahmans from punishment, and preserve society from the confusion of Castes'. The son of Vena then replied to the gods, headed by the rishis: 'The great Brahmans, the chief of men, shall be revered by me'. 'So be it,' rejoined those declares of the Veda. Sukra, the depository of divine knowledge, became his purohita; the Balakhilyas and Sarasvetyas his ministers; and the venerable Garga, the great rishi, his astrologer."

The second conflict took place between the Brahmins and the Kshatriya king Pururavas. A brief reference to it occurs in the Adiparva of the Mahabharat.

“Subsequently the wise Pururavas was born of 11, who, as we have heard, was both his father and his mother. Ruling over thirteen islands of the ocean, and surrounded by being who were all superhuman, himself a man of great renown, Pururavas, intoxicated by his prowess, engaged in a conflict with the Brahmans, and robbed them of their jewels, although they loudly remonstrated. Sanatkumara came from Brahma’s heaven, and addressed to him an admonition, which, however, he did not regard. Being then straightway cursed by the incensed rishis, he perished, this covetous monarch, who, through pride of power, had lost his understanding. This glorious being (virat), accompanied by Urvasi, brought down for the performance of sacred rites the fires which existed in the heaven of the Gandharvas, properly distributed into three.”

A third collision is reported to have occurred between the Brahmins and King Nahusha. The story is given in great details in the Udyogaparva of the Mahabharata. It is there recorded:

“After his slaughter of the demon Vrittra, Indra became alarmed at the idea of having taken the life of a Brahmin (for Vrittra was regarded as such), and hid himself in waters. In consequence of the disappearance of the king of gods, all affairs, celestial as well as terrestrial, fell into confusion. The rishis and gods then applied to Nahusha to be their king. After at first excusing himself on the plea of want of power, Nahusha at length, in compliance with their solicitations, accepted the high function. Up to the period of his elevation he had led a virtuous life, but he now became addicted to amusement and sensual pleasure; and even aspired to the possession of Indrani, Indra’s wife, whom he had happened to see. The queen resorted to the Angiras Vrihaspati, the preceptor of the gods, who engaged to protect her. Nahusha was greatly incensed on hearing of this interference; but the gods endeavoured to pacify him, and pointed out the immorality of—appropriating another person’s wife. Nahusha, however, would listen to no remonstrance, and insisted that in his adulterous designs he was no worse than Indra himself; 373. The renowned Ahalya, a rishi’s wife, was formerly corrupted by Indra in her husband’s lifetime; Why was he not prevented by you? 374. And many barbarous acts, and unrighteous deeds, and frauds, were perpetrated of old by Indra; Why was he not prevented by you? The gods, urged by Nahusha, then went to bring Indrani; but Vrihaspati would not give her up. At his recommendation, however, she solicited Nahusha for some delay, till she should

ascertain what had become of her husband. This request was granted. The gods next applied to Vishnu on behalf of Indra; and Vishnu promised that if Indra would sacrifice to him, he should be purged from his guilt, and recover his dominion, while Nahusha would be destroyed. Indra sacrificed accordingly; and the result is thus told; "Having divided the guilt of Brahmanicide among trees, rivers, mountains, the earth, women, and the elements, Vasava (Indra), lord of the gods, became freed from suffering and sin, and self-governed." Nahusha was by this means, shaken from his place. But (unless this is said by way of prelepsis, or there is some confusion in the narrative) he must have speedily regained his position, as we are told that Indra was again ruined, and became invisible. Indrani now went in search of her husband; and by the help of Upasruti (the goddess of night and revealer of secrets) discovered him existing in a very subtle form in the stem of a lotus growing in a lake situated in a continent within an ocean north of the Himalaya. She made known to him the wicked intention of Nahusha, and entreated him to exert his power, rescue her from danger, and resume his dominion. Indra declined any immediate interposition on the plea of Nahusha's superior strength; but suggested to his wife a device by which the usurper might be hurled from his position. She was recommended to say to Nahusha that "if he would visit her on a celestial vehicle borne by rishis, she would with pleasure submit herself to him". The question of the gods accordingly went to Nahusha, by whom she was graciously received, and made this proposal: "I desire for thee, king of the gods, a vehicle hitherto unknown, such as neither Vishnu, nor Rudra, nor the asuras, nor the rakshases employ. Let the eminent rishis, all united, bear thee, lord, in a car: this idea pleases me". Nahusha receives favourably this appeal to his vanity, and in the course of his reply thus gives utterance to his self-congratulation: "He is a personage of no mean prowess who makes the munis his bearers. I am a fervid devotee of great might, lord of the past, the future and the present. If I were angry the world would no longer stand; on me everything depends.... Wherefore, O goddess, I shall, without doubt, carry out what you propose. The seven rishis, and all the Brahman-rishis, shall carry me. Behold beautiful goddess, my majesty, and my prosperity.." The narrative goes on: "Accordingly this wicked being, irreligious, violent, intoxicated by the force of conceit, and arbitrary in his conduct, attached to his car the rishis, who submitted to his commands, and compelled them to bear him". Indrani then again resorts to Vrihaspati, who assures her that

vengeance will soon overtake Nahusha for his presumption; and promises that he will himself perform a sacrifice with a view to the destruction of the oppressor, and the discovery of Indra's lurking place. Agni is then sent to discover and bring Indra to Vrihaspati; and the latter, on Indra's arrival, informs him of all that had occurred during his absence. While Indra with Kuvera, Yama, Soma, and Varuna, was devising means for the destruction of Nahusha, the sage Agastya came up, congratulated Indra on the fall of his rival, and proceeded to relate how it had occurred: Wearied with carrying the sinner Nahusha, the eminent divine rishis, and the spotless brahman-rishis asked that divine personage Nahusha (to solve) a difficulty; 'Dost thou, a Vasava, most excellent of conquerors, regard as authoritative or not those Brahmana texts which are recited at the immolation of kine?' 'No', replied Nahusha, whose understanding was enveloped in darkness. The rishis rejoined: 'Engaged in unrighteousness, thou attainest not unto righteousness: these texts, which were formerly uttered by great rishis, are regarded by us as authoritative.' The (proceeds Agastya) disputing with the munis, Nahusha, impelled by unrighteousness, touched me on the head with his foot. In consequence of this the king's glory was smitten and his prosperity departed. When he had instantly become agitated and oppressed with fear, I said to him, 'Since thou, O fool, contemnest that sacred text, always held in honour, which has been composed by former sages, and employed by brahman-rishis, and hast touched my head with thy foot, and employest the Brahma—like and irresistible rishis as bearers to carry thee,—therefore, shorn of thy lustre and all thy merit exhausted, sink down, sinner, degraded from heaven to earth. For then thousand years thou shalt crawl in the form of a huge serpent. When that period is completed, thou shalt again ascend to heaven'. So fell that wicked wretch from the sovereignty of the gods."

Next there is reference to the conflict between King Nimi and the Brahmins. The Vishnu Puran relates the story as follows:

"Nimi had requested the Brahman-rishi Vashishtha to officiate at a sacrifice, which was to last a thousand years, Vashishtha in reply pleaded a pre-engagement to Indra for five hundred years, but promised to return at the end of that period. The king made no remark, and Vashishtha went away, supposing that he had assented to this arrangement. On his return, however, the priest discovered that Nimi had retained Gautama (who was, equally with Vashishtha a Brahman-rishi) and others to perform the sacrifice; and being

incensed at the neglect to give him notice of what was intended, he cursed the king, who was then asleep, to lose his corporeal form. When Nimi awoke and learnt that he had been cursed without any previous warning, he retorted, by uttering a similar curse on Vashishtha, and then died. "In consequence of this curse" (proceeds Vishnu Purana, iv. 5, 6) "the vigour of Vashishtha entered into the vigour of Mitra and Varuna. Vashishtha, however, received from them another body when their seed had fallen from them at the sight of Urvashi". Nimi's body was emblamed. At the close of the sacrifice which he had begun, the gods were willing, on the intercession of the priests, to restore him to life, but he declined the offer, and was placed by the deities, according to his desire, in the eyes of all living creatures. It is in consequence of this fact that they are always opening the shutting (Nimishas means "the twinkling of the eye")".

Manu mentions another conflict between the Brahmins and King Sumukha. But of this no details are available.

These are instances of conflict between the Brahmins and the Kshatriya Kings. From this it must not be supposed that the Brahmins and the Kshatriyas as two classes did not clash. That there were clashes between these two classes as distinguished from conflicts with kings is abundantly proved by material the historic value of which cannot be doubted. Reference may be made to three events.

First is the contest between the Vishvamitra the Kshatriya and Vashishtha the Brahmin. The issue between the two was whether a Kshatriya can claim Brahminhood.

The story is told in Ramayana and is as follows :

"There was formerly, we are told, a king called Kusa, son of Prajapati, who had a son called Kushanabha, who was father of Gadhi, the father of Vishvamitra. The latter ruled the earth for many thousand years. On one occasion, when he was making a circuit of the earth, he came to Vashistha's hermitage, the pleasant abode of many saints, sages, and holy devotees, where, after at first declining he allowed himself to be hospitably entertained with his followers by the son of Brahma. Vishvamitra, however, coveting the wondrous cow, which had supplied all the dainties of the feast, first of all asked that she should be given to him in exchange for a hundred thousand common cows, adding that "she was a gem, that gems were the property of the king, and that, therefore, the cow was his by right". On this price being refused the king advances immensely in his offers, but all without effect. He then proceeds—very ungratefully and tyrannically, it must be allowed—to have the

cow removed by force, but she breaks away from his attendants, and rushes back to her master, complaining that he was deserting her. He replies that he was not deserting her, but that the king was much more powerful than he. She answers, "Men do not ascribe strength to a Kshatriya: the Brahmins are stronger. The Strength of Brahmins is divine, and superior to that of Kshatriya. Thy strength is immeasurable. Vishvamitra, though of great vigour, is not more powerful than thou. Thy energy is invincible. Commission me, who have been acquired by thy Brahmanical power, and I will destroy the pride, and force, and attempt of this wicked prince". She accordingly by her bellowing creates hundreds of Pahalvas, who destroy the entire host of Vishvamitra, but are slain by him in their turn. Sakas and Yavans, of great power and valour, and well armed, were then produced, who consumed the king's soldiers, but were routed by him. The cow then calls into existence by her bellowing, and from different parts of her body, other warriors of various tribes, who again destroyed Vishvamitra's entire army, foot soldiers, elephants, horses, chariots, and all. A hundred of the monarch's sons, armed with various weapons, then rushed in great fury on Vashishtha, but were all reduced to ashes in a moment by the blast of that sage's mouth. Vishvamitra, being thus utterly vanquished and humbled, appointed one of his son to be regent, and travelled to the Himalaya, where he betook himself to austerities, and thereby obtained a vision of Mahadeva, who at his desire revealed to him the science of arms in all its branches, and gave him celestial weapons with which, elated and full of pride, he consumed the hermitage of Vashishtha, and put its inhabitants to flight. Vashishtha then threatens Vishvamitra and uplifts his Brahmanical mace. Vishvamitra too, raises his fiery weapon and calls out to his adversary to stand. Vashishtha bids him to show his strength, and boasts that he will soon humble his pride. He asks: "What comparison is there between a Kshatriya's might, and the great might of a Brahman? Behold, thou contemptible Kshatriya, my divine Brahmanical power. The dreadful fiery weapon uplifted by the son of Gadhi was then quenched by the rod of the Brahman, as fire is by water." Many and various other celestial missiles, as the nooses of Brahma, Kala (time), and Varuna, the discus of Vishnu, and the trident of Siva, were hurled by Vishvamitra at his antagonist, but the son of Brahma swallowed them up in his all-devouring mace. Finally, to the intense consternation of all the gods, the warrior shot off the terrific weapon of Brahma (brahmastra); but this was equally ineffectual against the Brahmanical sage.

Vashishtha had now assumed a direful appearance: "Jets of fire mingled with smoke darted from the pores of his body; the Brahmanical mace blazed in his hand like a smokeless mundane conflagration, or a second sceptre of Yama." Being appeased, however by the munis, who proclaimed his superiority to his rival, the sage stayed his vengeance; and Vishvamitra exclaimed with a groan: "Shame on a Kshatriya's strength: the strength of a Brahman's might alone is strength: by the single Brahmanical mace all my weapons have been destroyed." No alternative now remains, to the humiliated monarch, but either to acquiesce in this helpless inferiority, or to work out his own elevation to the Brahmanical order. He embraces the latter alternative: "Having pondered well this defeat, I shall betake myself, with composed senses and mind, to strenuous austere fervour, which shall exalt me to the rank of a Brahman". Intensely vexed and mortified, groaning and full of hatred against his enemy, he travelled with his queen to the south, and carried his resolution into effect; and we are first of all told that three sons Havishyanda, Madhusyanda, and Dridhanetra were born to him. At the end of a thousands years Brahma appeared, and announced that he had conquered the heaven of royal sages (rajarshis); and, in consequence of his austere fervour, he was recognised as having attained that rank. Vishvamitra, however, was ashamed, grieved, and incensed at the offer of so very inadequate a reward, and exclaimed; "I have practised intense austerity, and the gods and rishis regard me only as a rajarshi. Austerities, it appears, are altogether fruitless". Notwithstanding this disappointment, he had ascended one grade, and forthwith recommenced his work of mortification.

"At this point of time his austerities were interrupted by the following occurrences: King Trisanku, one of Ikshvaku's descendants, had conceived the design of celebrating a sacrifice by virtue of which he should ascend bodily to heaven. As Vashishtha, on being summoned, declared that the thing was impossible (asakyam), Trisanku travelled to the south, where the sage's hundred sons were engaged in austerities, and applied to them to do what their father had declined. Though he addressed them with the greatest reverence and humility, and added that "the Ikshvaku regarded their family-priests as their highest resource in difficulties, and that, after their father, he himself looked to them as his tutelary deities" he received from the haughty priests the following rebuke for his presumption: "Asakyam" "Fool, thou hast been refused by thy truth speaking preceptor. How is it that, disregarding his

authority, thou hast resorted to another school (sakha). The family priest is the highest oracle of all the Ikshvakus; and the command of that veracious personages cannot be transgressed. Vashishtha, the. divine rishi, has declared that 'the thing cannot be'; and how can we undertake thy sacrifice? Thou art foolish king; return to thy capital. The divine (Vashishtha) is competent to act as priest of the three worlds; how can we shew him disrespect? " Trisanku then gave them to understand, that as his preceptor and "his preceptor's sons had declined compliance with his requests, he should think of some other expedient." In consequence of his venturing to express this presumptuous intention, they condemned him by their imprecation to become a Chandala. As this curse soon took effect, and the unhappy king's form was changed into that of a degraded outcast, he resorted to Vishvamitra (who, as we have seen, was also dwelling at this period in the south), enlarging on his own virtues and piety, and bewailing his fate. Vishvamitra commiserated his condition, and promised to sacrifice on his behalf, and exalt him to heaven in the same Chandala-form to which he had been condemned by his preceptor's curse. "Heaven is now as good as in thy possession, since thou hast resorted to the son of Kusika". He then directed that preparations should be made for the sacrifice, and that all the rishis, including the family of Vashishtha, should be invited to the ceremony. The disciples of Vishvamitra, who had conveyed his message, reported the result on their return in these words: "Having heard your message, all the Brahmans are assembling in all the countries, and have arrived, excepting Mahodaya (Vashishtha). Hear what dreadful words those hundred Vashishthas, their voices quivering with rage, have uttered: 'How can the gods and rishis consume the oblation at the sacrifice of that man, especially if he be a Chandala, for whom a Kshatriya is officiating priest? How can illustrious Brahmans ascend to heaven, after eating the food of a Chandala, and being entertained by Vishvamitra?' "These ruthless words all Vashisthas, together with Mahodaya, uttered, their eyes inflamed with anger. Vishvamitra, who was greatly incensed on receiving this message, by a curse doomed the sons of Vashishtha to be reduced to ashes, and reborn as degraded outcasts (mritapah) for seven hundred births, and Mahodaya to become a Nishada. Knowing that this curse had taken effect, Vishvamitra thereafter eulogizing Trisanku, proposed to the assembled rishis that the sacrifice should be celebrated. To this they assented, being actuated by fear of the terrible sage's wrath. Vishvamitra himself officiated at the sacrifice as yajakas; and the other rishis as priests (ritvijah) with

other functions performed all the ceremonies. Vishvamitra next invited the gods to partake of the oblations: "When, however, the deities did not come to receive their portions, Vishvamitra became full of wrath, and raising aloft the sacrificial ladle, thus addressed Trisanku: 'Behold, O monarch, the power of austere fervour acquired by my own efforts. I myself, by my own energy, will conduct thee to heaven. Ascend to that celestial region which is so arduous to attain in an earthly body. I have surely earned some reward of my austerity'." Trisanku ascended instantly to heaven in the sight of munis. Indra, however, ordered him to be gone, as person who, having incurred the curse of his spiritual preceptors, was unfit for the abode of the celestials;—and to fall down headlong to earth. He accordingly began to descend, invoking loudly, as he fell, the help of his spiritual patron. Vishvamitra, greatly incensed, called out to him to stop: "Then by the power of his divine knowledge and austere fervour created, like another Prajapati, other Seven Rishis (a constellation so called) in the southern part of the sky. Having proceeded to this quarter of the heavens, the renowned sage, in the midst of the rishis, formed another garland of stars, being overcome with fury. Exclaiming, 'I will create another Indra, or the world shall have no Indra at all,' he began, in his rage, to call gods also into being. The rishis, gods (Suras), and Asuras now became seriously alarmed and said to Vishvamitra, in a conciliatory tone, that Trisanku, "as he had been cursed by his preceptors, should not be admitted bodily into heaven, until he had undergone some lustration". The sage replied that he had given a promise to Trisanku, and appealed to the gods to permit his protege to remain bodily in heaven, and the newly created stars to retain their places in perpetuity. The gods agreed that "these numerous stars should remain, but beyond the Sun's path, and that Trisanku, like an immortal, with his head downwards should shine among them, and be followed by them," adding "that his object would be thus attained, and his renown secured, and he would be like a dweller in heaven". Thus was this great dispute adjusted by a compromise, which Vishvamitra accepted.

"This story of Trisanku, it will have been observed, differs materially from the one quoted above from the Harivamsa; but brings out more distinctly the character of the conflict between Vashishtha and Vishvamitra.

"When all the gods and rishis had departed at the conclusion of the sacrifice, Vishvamitra said to his attendant devotees; "This has been a great interruption (to our austerities) which has occurred in

the southern region: we must proceed in another direction to continue our penances". He accordingly went to a forest in the west, and began his austerities anew. Here the narrative is again interrupted by the introduction of another story, that of king Ambarisha, king of Ayodhya, who was, according to the Ramayana, the twentyeighth in descent from Ikshvaku, and the twentysecond from Trisanku. Vishvamitra is nevertheless represented as flourishing contemporaneously with both of these princes. The story relates that Ambarisha was engaged in performing a sacrifice, when Indra carried away the victim. The priest said that this ill-omened event had occurred owing to the king's bad administration; and would call for a great expiation, unless a human victim could be produced. After a long search the royal rishi (Ambarisha) came upon the Brahman-rishi Richika, a descendant of Bhrigu, and asked him to sell one of his sons for a victim, at the price of a hundred thousand cows. Richika answered that he would not sell his eldest son; and his wife added that she would not sell the youngest: "eldest sons," she observed, "being generally the favourites of their fathers, and youngest sons of their mothers". The second son, Sunassepa, then said that in that case he regarded himself as the one who was to be sold, and desired the king to remove him. The hundred thousand cows, with the millions of gold-pieces and heaps of jewels, were paid down, and Sunassepa carried away. As they were passing through Puskara Sunassepa beheld his maternal uncle Vishvamitra who was engaged in austerities there with other rishis, threw himself into his arms, and implored his assistance, urging his orphan, friendless, and helpless state, as claims on the sage's benevolence. Vishvamitra soothed him; and pressed his own sons to offer themselves as victims in the room of Sunassepa. This proposition met with no favour from Madhushyanda and the other sons of the royal hermit, who answered with haughtiness and derision: "How is it that thou sacrificest thine own sons, and seekest to rescue those of others ? We look upon this as wrong, and like the eating of one's own flesh". The sage was exceedingly wroth at this disregard of his injunction, and doomed his sons to be born in the most degraded classes, like Vasishtha's sons, and to eat dog's flesh, for a thousand years. He then said to Sunassepa: "When thou art bound with hallowed cords, decked with a red garland, and annointed with unguents, and fastened to the sacrificial post of Vishnu, then address thyself to Agni, and sing these two divine verses (gathas), at the sacrifice of Ambarisha; then shall thou attain the fulfilment (of thy desire)".

Being furnished with the two gathas, Sunassepa proposed at once to king Ambarisha that they should set out for their destination. When bound at the stake to be immolated, dressed in a red garment, "he celebrated the two gods, Indra and his younger brother (Vishnu), with the excellent verses. The thousand-eyed (Indra) was pleased with the secret hymn, and bestowed long life on Sunassepa". King Ambarisha also received great benefits from this sacrifice. Visvamitra meanwhile proceeded with his austerities, which he prolonged for a thousand years.

"At the end of this time the gods came to allot his reward; and Brahma announced that he had attained the rank of a rishi, thus apparently advancing an additional step. Dissatisfied, as it would seem, with this, the sage commenced his task of penance anew. After a length of time he beheld the nymph (Apsara) Menka, who had come to bathe in the lake of Pushkara. She flashed on his view, unequalled in her radiant beauty, like lightning in a cloud. He was smitten by her charms, invited her to be his companion in his hermitage, and for ten years remained a slave to her witchery, to the great prejudice of his austerities. At length he became ashamed of this ignoble subjection, and full of indignation at what he believed to be a device of the gods to disturb his devotion; and, dismissing the nymph with gentle accents, he departed for the northern mountains, where he practised severe austerities for a thousand years on the banks of the Kausiki river. The gods became alarmed at the progress he was making, and decided that he should be dignified with the appellation of great rishi (maharshi); and Brahma, giving effect to the general opinion of the deities, announced that he had conferred that rank upon him. Joining his hands and bowing his head, Visvamitra replied that he should consider himself to have indeed completely subdued his senses, if the incomparable title of Brahman-rishi were conferred upon him. Brahma informed him in answer, that he had not yet acquired the power of perfectly controlling his senses; but should make further efforts with that view. The sage then began to put himself through a yet more rigorous course of austerities, standing with his arms erect, without support, feeding on air, in summer exposed to five fires (i.e. one on each of four sides, and the sun overhead), in the rainy season remaining unsheltered from the wet, and in winter lying on a watery couch night and day. This he continued for a thousand years. At last Indra and the other deities became greatly distressed at the idea of the merit he was storing up, and the power which he was thereby acquiring; and the chief of the celestials desired the nymph Rambha

to go and bewitch him by her blandishments. She expressed great reluctance to expose herself to the wrath of the formidable muni, but obeyed the repeated injunction of Indra, who promised that he and Kandarpa (the god of love) should stand by her, and assumed her most attractive aspect with the view of overcoming the sage's impassability. He, however, suspected this design, and becoming greatly incensed, he dommed the nymph by a curse to be turned into stone and to continue in that state for a thousand years. The curse took effect, and Kandarpa and Indra slunk away. In this way, though he resisted the allurements of sensual love, he lost the whole fruit of his austerities by yielding to anger; and had to begin his work over again. He resolved to check his irascibility, to remain silent, not even to breathe for hundreds of years; to dry up his body; and to fast and stop his breath till he had obtained the coveted character of a Brahman. He then left the Himalaya and travelled to the east, where he underwent a dreadful exercise, unequalled in the whole history of austerities, maintaining silence, according to a vow, for a thousand years. At the end of this time he had attained to perfection, and although thwarted by many obstacles, he remained unmoved by anger. On the expiration of this course of austerity, he prepared some food to eat; which Indra, coming in the form of a Brahman, begged that he would give him. Visvamitra did so, and though he had none left for himself, and was obliged to remain fasting, he said nothing to the Brahman, on account of his vow of silence. As he continued to suspend his breath, smoke issued from his head, to the great consternation and distress of the three worlds. The gods, rishis, etc., then addressed Brahma: "The great muni Visvamitra has been allured and provoked in various ways, but still advances in his sanctity. If his wish is not conceded, he will destroy the three worlds by the force of his austerity. All the regions of the universe are confounded, no light anywhere shines; all the oceans are tossed, and the mountains crumble, the earth quakes, and the wind blows confusedly. We cannot, O Brahma, guarantee that mankind shall not become atheistic..... Before the great and glorious sage of fiery form resolves to destroy (everything) let him be propitiated." The gods, headed by Brahma, then addressed Visvamitra: "Hail Brahman rishi, we are gratified by thy austerities; O Kausika, thou hast, through their intesity, attained to Brahmanhood. I, O Brahman, associated with the Maruts, confer on thee long life. May every blessing attend thee; depart wherever thou wilt.' The sage, delighted, made his obeisance to the gods, and said: 'If I have obtained Brahmanhood, and long life, then let the mystic

monosyllable (omkara) and the sacrificial formula (vashatkara) and the Vedas recognise me in that capacity. And let Vasishtha, the son of Brahma, the most eminent of those who are skilled in the Kshattria-veda, and the Brahma-veda (the knowledge of the Kshatriya and the Brahmanical disciplines), address me similarly.'..... Accordingly Vasishtha, being propitiated by the gods, became reconciled to Visvamitra, and recognised his claim to all the prerogatives of a Brahman rishi..... Visvamitra, too, having attained the Brahmanical rank, paid all honour to Vasishtha."

The second event has reference to the slaughter of the Brahmins by, the Kshatriyas. It is related in the Adiparva of the Mahabharat from which the following account is taken:

There was a king named Kritvirya, by whose liberality the Bhrigus, learned in the Vedas, who officiated as his priests, had been greatly enriched with corn and money. After he had gone to heaven, his descendants were in want of money, and came to beg for a supply from the Bhrigus, of whose wealth they were aware. Some of the latter hid their money under ground, others bestowed it on Brahmins, being afraid of the Kshatriyas, while others again gave these last what they wanted. It happened, however, that a Kshatriya, while digging the ground, discovered some money buried in the house of a Bhrigu. The Kshatriyas then assembled and saw this treasure, and, being incensed, slew in consequence all the Bhrigus, whom they regarded with contempt, down to the children in the womb. The widows, however, fled to the Himalaya mountains. One of them concealed her unborn child in her thigh. The Kshatriyas, hearing of its existence from a Brahmani informant, sought to kill it; but it issued forth from its mother's thigh with lustre, and blinded the persecutors. After wandering about bewildered among the mountains for a time, they humbly supplicated the mother of the child for the restoration of their sight; but she referred them to her wonderful infant Aurva into whom the whole Veda, with its veda Vyas had entered, as the person who (in requisition of the slaughter of his relatives) had robbed them of their eyesight, and who alone could restore it. They accordingly had recourse to him, and their eyesight was restored. Aurva, however, meditated the destruction of all living creatures, in revenge for the slaughter of the Bhrigus, and entered on a course of austerities which alarmed both gods, asuras, and men; but his progenitors (Pitris) themselves appeared, and sought to turn him from his purpose by saying that they had no desire to be revenged on the Kshatriyas: "It was not from weakness that the devout Bhrigus overlooked the massacre perpetrated by the

murderous Kshatriyas. When we became distressed by old age, we ourselves desired to be slaughtered by them. The money which was buried by some one in a Bhṛigu's house was placed there for the purpose of exciting hatred, by those who wished to provoke the Kshatriyas. For what had me, who were desiring heaven, to do with money?" They added that they hit upon this device because they did not wish to be guilty of suicide, and concluded by calling upon Aurva to restrain his wrath; and abstain from the sin he was meditating: "Destroy not the Kshatriyas, O son, nor the seven worlds. Suppress thy kindled anger which nullifies the power of austere-fervour." Aurva, however, replies that he cannot allow his threat to remain unexecuted. His anger, unless wreaked upon some other object, will, he says, consume himself. And he argues on grounds of justice, expediency, and duty, against the clemency which his progenitors recommend. He is, however, persuaded by the Pitris to throw the fire of his anger into the sea, where they say it will find exercise in assailing the watery element, and in this way his threat will be fulfilled."

The third event has reference to the slaughter of the Kshatriyas by the Brahmins. This story is told in several places in the Mahabharata.

"The magnificent and mighty Kartavirya, possessing a thousand arms, was lord of this whole world, living in Mahishmati. This Haihaya of unquestioned valour ruled over the whole sea-girt earth, with its oceans and continents". He obtained boons from the muni Dattatreya, a thousand arms whenever he should go into battle power to make the conquest of the whole earth, a disposition to rule it with justice and the promise of instruction from the virtuous in the event of his going astray. "Then ascending his chariot glorious as the resplendent sun, he exclaimed in the intoxication of his prowess, 'Who is like me in fortitude, courage, fame, heroism, energy, and vigour?' At the end of this speech a bodiless voice in the sky addressed him: 'Thou knowest not, O fool, that a Brahman is better than a Kshatriya. It is with the help of the Brahman that the Kshatriya rules his subjects.' Arjuna answers: 'If I am pleased, I can create, or, if displeased, annihilate, living beings; and no Brahman is superior to me in act, thought or word. The first proposition is that the Brahmins are superior; the second that the Kshatriyas are superior; both of these thou hast stated with their grounds, but there is a difference between them (in point of force). The Brahmins are dependent on the Kshatriyas and not the Kshatriyas are beaten up by the Brahmins, who wait upon them, and only make the Vedas a pretence. Justice, the protection of the

people, has its seat in the Kshatriyas. From them the Brahmans derived their livelihood; how then can the latter be superior? I always keep in subjection to myself those Brahmans, the chief of all beings, who subsist on alms, and who have a high opinion of themselves. For truth was spoken by that female the Gayatri in the sky. I shall subdue all those unruly Brahmans clad in hides. No one in the three worlds, god or man, can hurl me from my royal authority; wherefore I am superior to any Brahman. Now shall I turn the world in which Brahmans have the upper hand into a place where Kshatriyas shall have the upper hand; for no one dares to encounter my force in battle.' Hearing this speech of Arjuna, the female roving in the night became alarmed. Then Vayu hovering in the air, said to Arjuna: 'Abandon this sinful disposition, and do obeisance to the Brahmans. If thou shalt do them wrong, thy kingdom shall be convulsed. They will subdue thee: those powerful men will humble thee, and expel thee from thy country.' The king asks him, 'Who art thou?' Vayu replies, 'I am Vayu, the messenger of the gods, and tell thee what is for thy benefit.' Arjuna rejoins, 'Oh, thou displayest today a great warmth of devotion to the Brahmans. But say that a Brahman is like (any other) earth-born creature.'

This king came into conflict with Parasuram the son of a Brahman sage Jamadagni. The history of this conflict is as follows :

"There lived a king of Kanyakubja, called Gadhi, who had a daughter named Satyavati. The marriage of this princess to the rishi Richika, and the birth of Jamadagni, are then told in nearly the same way as above narrated. Jamadagni and Satyavati had five sons, the youngest of whom was the redoubtable Parasuram. By his father's command he kills his mother (who, by the indulgence of impure desire, had fallen from her previous sanctity), after the four elder sons had refused this matricidal offence, and had in consequence been deprived of reason by their father's curse. At Parasuram's desire, however, his mother is restored by his father to life, and his brothers to reason; and he himself is absolved from all the guilt of murder; and obtains the boon of invincibility and long life from his father. His history now begins to be connected with that of king Arjuna (or Kartavirya). The latter had come to Jamadagni's hermitage, and had been respectfully received by his wife; but he had requited this honour by carrying away by force the calf of the sage's sacrificial cow, and breaking down his lofty trees. On being informed of this violence, Parasurama was filled with indignation, attacked Arjuna. cut off his thousand arms, and slew

him. Arjuna's sons, in return, slew the peaceful sage Jamadagni, in the absence of Parasurama."

"Rama, after performing, on his return, his father's funeral obsequies, vowed to destroy the whole Kshatriya race; and executed his threat by killing first Arjuna's sons and their followers. Twentyone times did he sweep away all the Kshatriyas from the earth, and formed five lakes of blood in Samantapanchaka; in which he satiated the manes of the Bhrgus, and beheld face to face (his grand-father), Richika, who addressed himself to Rama. The latter gratified Indra by offering to him a grand sacrifice, and gave the earth to the officiating priests. He bestowed also a golden altar, ten fathoms long and nine high, on the mighty Kasyapa. This, by his permission, the Brahmans divided among themselves, deriving thence the name of Khandavavanas. Having given away the earth to Kasyapa, Parasurama himself dwells on the mountain Mahendra. Thus did enmity arise between him and Kshatriyas, and thus was the earth conquered by Rama of boundless might."

The Kshatriyas who were slain by Parasuram are described in the Dronaparvan of the Mahabharat as of various provinces, viz., Kasmiras, Darads, Kuntis, Kshudrakas, Malavas, Angas, Vangas, Kalingas, Videhas, Tamraliptakas, Marttikavatas, Sivis and other Rajanyas.

The means by which the Kshattriya race was restored is also told as part of this story of annihilation of the Kshatriyas by the Brahmins. It is said:

"Having one and twenty times swept away all the Kshatriyas from the earth, the son of Jamadagni engaged in austerities on Mahendra the most excellent of mountains. After he had cleared the world of Kshatriyas, their widows came to the Brahmans, praying for offspring. The religious Brahmans, free from any impulse of lust, cohabited at the proper seasons with these women, who in consequence became pregnant, and brought forth valiant Kshatriya boys and girls, to continue the Kshatriya stock. Thus was the Kshatriya race virtuously begotten by Brahmans on Kshatriya women, and became multiplied and long-lived. Thence there arose four castes inferior to the Brahmans."

CHAPTER 19

THE CURSE OF CASTE

As I have said in the first Essay¹ there cannot be a caste in the single number. Caste can exist only in the plural number. Caste to be real can exist only by disintegrating a group. The genius of caste is to divide and to disintegrate. It is also the curse of caste. Few, however, realize how great is this curse of caste. It is therefore necessary to illustrate the vastness of this curse by reference to the disintegration brought about by caste. It is impossible to deal with each caste to show the evolution of its disintegration. One must content himself with presenting the caste history of one caste. I take the case of the Brahmins who have been the originators and upholders of caste to show how they themselves have been overwhelmed by what I call the curse of caste. The Brahmins of India are divided into two distinct fraternities. One fraternity is called the Dravidas and the other fraternity is called the Gaudas.

It must not, however, be supposed that the Dravidas and Gaudas are single homogeneous unit. They are divided and sub-divided in units so numerous that it is difficult to imagine their numbers unless one has actual lists of their sub-divisions before his eye. In the following pages an attempt is made to give the list of castes and sub-castes into which each sub-division of the fraternity is divided.

I

THE DRAVIDA BRAHMINS

The fraternity of Dravidas consists of five sub-divisions who are collectively styled the Panch Dravidas. The five sub-divisions are called:

- (1) The Maharashtrians
- (2) The Andhras
- (3) The Dravidians (proper)
- (4) The Karnatakas
- (5) The Gurjaras

¹ This has a reference to 'The Castes in India'. published in Vol. I of this series.—Ed.

We may next proceed to note the castes and sub-castes into which each of these sub-divisions of the Panch Dravidas have disintegrated.

I. THE MAHARASHTRA BRAHMINS

The Maharashtra Brahmins have among them the following castes and sub-castes:

- (1) The Deshasthas, (2) The Konkanasthas, (3) The Karhadas,
- (4) The Kanvas, (5) The Madhyandinas, (6) The Padhyas,
- (7) The Devarukhas, (8) The Palashas, (9) The Kirvantas, (10) The Tirgulas,
- (11) The Javalas, (12) The Abhiras, (13) The Savashas,
- (14) Kastas, (15) The Kunda Golakas, (16) The Randa Golakas,
- (17) The Brahmana-Jais, (18) The Soparas, (19) The Khistis,
- (20) The Huseinis, (21) The Kalankis, (22) The Maitrayaniyas,
- (23) The Varadis-Madhyandin-Yajur-Vedi, (24) The Varadis-Madhyandin-Rig Vedi, (25) The Jhade.

The Shenvis are further divided into nine sub-castes called—

- | | | |
|--------------------|------------------|--------------------|
| (26) Narvankar, | (27) Keloskar, | (28) Bardeshkar, |
| (29) Kudaldeshkar, | (30) Pednekar, | (31) Bhalavelekar, |
| (32) Kushasthali, | (33) Khadape and | (34) Khajule. |

2. THE ANDHRA BRAHMINS

The following is the list of castes and sub-castes which make up the Andhra Brahmins—

- (1) The Varnasalus, (2) The Kamarukubi, (3) The Karanakamulu,
- (4) The Madhyandians, (5) The Tailangas, (6) The Murakanadus,
- (7) The Aradhyas, (8) The Yajnavalkyas, (9) The Kasaranadu,
- (10) The Velandus, (11) The Venginadus, (12) The Vedinadus,
- (13) The Samavedis, (14) The Ramanujis, (15) The Madhavacharis,
- (16) The Niyogis.

3. THE TAMIL BRAHMINS

They consist of the following castes—

- (1) The Rig-Vedis, (2) The Krishna Yajur-Vedis, (3) The Shukla Yajur-Vedis—Madhyandinas, (4) The Shukla Yajur-Vedis-Kanvas,
- (5) The Sama Vedis, (6) The Atharva, (9) The Vaishnavas,
- (10) The Vira Vaishnavas, (11) The Shri-Vaishnavas, (12) The Bhagvatas, (13) The Shaktas.

4. THE KARNATIK BRAHMINS

They include the following castes—

- (1) The Rig Vedis, (2) The Krishna Yajur-Vedis, (3) The Shukla Yajur-Vedis Madhyandinas, (4) The Shukla Yajur-Vedis Kanvas, (5) The Sama Vedis, (6) The Kume Brahmins and (7) The Nagara Brahmins.

5. THE GURJARA BRAHMINS

The list of castes which compose the Gurjara Brahmins is as follows:

- I. The Andichya Brahmins. They are divided into the following sub-castes:

- (1) Siddhpura Andichya, (2) Sihor Andichya, (3) Tolkiya Andichya, (4) Kunbigor, (5) Inochigor, (6) Darjigor, (7) Grandhrapagor, (8) Koligor, (9) Marwadi Andichya, (10) Kachhi Andichya, (11) Vagdiya Andichya.

- II. The Nagar Brahmins. The following are the sub-castes of the Nagar Brahmins:

- (12) The Vadanagar Brahmins, (13) The Vishalnagar Brahmins, (14) The Sathodra Brahmins, (15) The Prashnoras, (16) The Krishnoras, (17) The Chitrodas, (18) The Baradas.

There are also three other divisions among the Nagar Brahmins.

They are called—

- (19) Gujarathi Nagars, (20) Sorathi Nagars and (21) Nagars of other Towns.

- III. The Girnar Brahmins. They are divided among the following castes:

- (22) The Junagadhya Girnars, (23) The Chorvada Girnars, (24) The Ajakiyas.

- IV. The Mevadas Brahmins. They are distributed among the following castes:

- (25) The Bhata Mevadas, (26) The Trivadi Mevadas, (27) The Charosi Mevadas.

- V. The Deshavala Brahmins. They have one sub-caste which is called:

- (46) The Deshavala Brahman Surati.

- VI. The Rayakavala Brahmins. They are divided into two sub-castes :

- (47) The Navas (new ones) and (48) The Mothas (old ones).

VII. The Khedvala Brahmins. They are divided into five sub-castes :

(49) The Khedvala Bajas, (50) The Khedvala Bhitaras, (51) The Khedva Bajas, (52) The Khedva Bhitaras.

VIII. The Modha Brahmins. They are divided into eleven sub-castes :

(53) The Trivedi Modhas, (54) The Chaturvedi Modhas, (55) The Agihans Modhas, (56) The Tripal Modhas, (57) The Khijadiya Sanvana Modhas, (58) The Ekadashdhra Modhas, (59) The Tandulotha Modhas, (60) The Utanjaliya Modhas, (61) The Jethimal Modhas, (62) The Chaturvedi Dhinoja Modhas, (63) The Dhinoja Modhas.

IX. The Shrimali Brahmins. The Shrimali Brahmins are divided into the following castes:

(64) The Marwadi Shrimali, (65) The Mevadi Shrimali, (66) The Kachhi Shrimali, (67) The Kathiavadi Shrimali, (68) The Gujarathi Shrimali.

The Gujarathi Shrimali are further sub-divided into—

(69) Ahamadabadi Shrimali, (70) Surati Shrimali, (71) Ghoghari Shrimali and (72) The Khambhati Shrimali. The Khambhati Shrimali are again sub-divided into—

(73) Yajurvedi Khambhati Shrimali, (74) Samavedi Khambhati Shrimali.

X. The Chovisha Brahmins. They are divided into two sub-castes :

(75) Mota (Great ones), (76) Lahana (small ones).

XI. The Sarasvata Brahmins. They are divided into two sub-castes :

(77) Sorathiya Sarasvata, (78) Sindhava Sarasvata.

XII. The following is the list of castes of Gujaratha Brahmins which have not developed sub-castes:

(79) The Sachora Brahmins, (80) The Udambara Brahmins, (81) The Narsipara Brahmins, (82) The Valadra Brahmins, (83) The Pangora Brahmins, (84) The Nandodra Brahmins, (85) The Vayada Brahmins, (86) The Tamil (or Dradvida) Brahmins, (87) The Rodhavalu Brahmins, (88) The Padmivala Brahmins, (89) The Gomativala Brahmins, (90) The Itavala Brahmins, (91) The Medhatavala Brahmins, (92) The Gayavala Brahmins, (93) The Agastyavala Brahmins, (94) The Pretavala Brahmins, (95) The Unevala Brahmins, (96) The Rajavala Brahmins, (97) The Kanojiya Brahmins, (98) The Sarvariya Brahmins, (99) The Kanoliya Brahmins, (100) The Kharkheliya

Brahmins, (101) The Parvaliaya Brahmins, (102) The Sorathiya Brahmins, (103) The Tangamadiya Brahmins, (104) The Sanodiya Brahmins, (105) The Motala Brahmins, (106) The Jhalora Brahmins, (107) The Rayapula Brahmins, (108) The Kapila Brahmins, (109) The Akshayamangala Brahmins, (110) The Gugli Brahmins, (111) The Napala Brahmins, (112) The Anavala Brahmins, (113) The Valmika Brahmins, (114) The Kalinga Brahmins, (115) The Tailinga Brahmins, (116) The Bhargava Brahmins, (117) The Malavi, (118) The Banduan Brahmins, (119) The Bharathana Brahmins, (120) The Pushkarana Brahmins, (121) The Khadayata Brahmins, (122) The Maru Brahmins, (123) The Dahima Brahmins, (124) The Chovisa Brahmins, (125) The Jambu Brahmins, (126) The Maratha Brahmins, (127) The Dadhicha Brahmins, (128) The Lalata Brahmins, (129) The Valuta Brahmins, (130) The Borshidha Brahmins, (131) The Golavala Brahmins, (132) The Prayagvala Brahmins, (133) The Nayakvala Brahmins, (134) The Utkala Brahmins, (135) The Pallivala Brahmins, (136) The Mathura Brahmins, (137) The Maithila Brahmins, (138) The Kulabha Brahmins, (139) The Bedua Brahmins, (140) The Ravavala Brahmins, (141) The Dashahara Brahmins, (142) The Karnatika Brahmins, (143) The Talajiya Brahmins, (144) The Parashariya Brahmins, (145) The Abhira Brahmins, (146) The Kundu Brahmins, (147) The Hirayajiya Brahmins, (148) The Mastava Brahmins, (149) The Sthitisha Brahmins, (150) The Predatvala Brahmins, (151) The Rampura Brahmins, (152) The Jila Brahmins, (153) The Tilotya Brahmins, (154) The Durmala Brahmins, (155) The Kodva Brahmins, (156) The Hanushuna Brahmins, (157) The Shevada Brahmins, (158) The Titraga Brahmins, (159) The Basuladas Brahmins, (160) The Magmarya Brahmins, (161) The Rayathala Brahmins, (162) The Chapila Brahmins, (163) The Baradas Brahmins, (164) The Bhukaniya Brahmins, (165) The Garoda Brahmins, (166) The Taporana Brahmins.

II

THE GAUDA BRAHMINS

Like the Dravida Brahmins the Gauda Brahmins also consist of a fraternity of five different groups of Brahmins. These five groups are known as:

- (1) The Sarasvata Brahmins, (2) The Kanyakubja Brahmins, (3) The Gauda Brahmins, (4) The Utkala Brahmins, (5) The Maithila Brahmins.

An inquiry into the internal structure of each of these five groups of Panch Gaudas reveals the same condition as is found in the case of the five groups which form the fraternity of Panch Dravidas. The only question is whether the internal divisions and sub-divisions are fewer or larger than are found among the Panch Dravidas. For this purpose it is better to take each group separately.

THE SARASVATA BRAHMINS

The Sarasvata Brahmins fall into three territorial sections:

- (1) The Sarasvatas of the Punjab, (2) The Sarasvatas of Kashmir and (3) The Sarasvatas of Sindh.

1. THE SARASVATAS OF PUNJAB

There are three sub-sections of the Sarasvatas of the Punjab:

- (A) Sarasvatas of the districts of Lahore, Amritsar, Batala, Gurdaspur, Jalandar, Multan, Jhang and Shahpur.

They are again divided into High Caste and Low Caste.

HIGH CASTES

- (1) Navale, (2) Chuni, (3) Ravade, (4) Sarvaliye, (5) Pandit, (6) Tikhe, (7) Jhingan, (8) Kumadiye, (9) Jetle, (10) Mohle or Mole, (11) Tikhe-A'nde, (12) Jhingan-Pingan, (13) jetli-Petli, (14) Kumadiye-Lumadiye, (15) Mohle-Bohle, (16) Bage, (17) Kapuriye, (18) Bhaturiye, (19) Maliye, (20) Kaliye, (21) Sanda, (22) Pathak, (23) Kural, (24) Bharadwaji, (25) Joshi, (26) Shori, (27) Tiwadi, (28) Marud, (29) Datta, (30) Mujhal, (31) Chhibar, (32) Bali, (33) Mohana, (34) Lava, (35) Vaidya, (36) Prabhakar, (37) Shame-Potre, (38) Bhoja-Potre, (39) Singhe-Potre, (40) Vatte-Potre, (41) Dhannan-Potre, (42) Dravade, (43) Gaindhar, (44) Takht Laladi, (45) Shama Dasi, (46) Setpal (or Shetpal), (47) Pushrat, (48) Bharadvaji, (49) Katpale, (50) Ghotke, (51) Pukarne.

LOWER CLASSES

- (52) Diddi, (53) Shridhara, (54) Vinayaka, (55) Majju, (56) Khindariye, (57) Harad, (58) Prabhakar, (59) Vasudeva,

(60) Parashara, (61) Mohana, (62) Panjan, (63) Tivara, (64) Kapala, (65) Bharkhari, (66) Sodhi, (67) Kaijar, (68) Sangad, (69) Bharadvaji, (70) Nage, (71) Makavar, (72) Vashishtha, (73) Dangaval, (74) Jalap, (75) Tripane, (76) Bharathe, (77) Bansale, (78) Gangahar, (79) Jotashi, (80) Rikhi (or Rishi), (81) Mandar, (82) Brahmi, (83) Tejpal, (84) Pal, (85) Rupal, (86) Lakhanpal, (87) Ratanpal, (88) Shetpal, (89) Bhinde, (90) Dhami, (91) Chanan, (92) Randeha, (93) Bhuta, (94) Rati, (95) Kundi, (96) Hasadhir, (97) Punj, (98) Sandhi, (99) Bahoye, (100) Virad, (101) Kaland, (102) Suran, (103) Sudan, (104) Ojhe, (105) Bramha-Sukul, (106) Hariye, (107) Gajesu, (108) Bhanot, (109) Tinuni, (110) Jalli, (111) Tole, (112) Jalap, (113) Chitchot, (114) Padhe or Pandhe, (115) Marud, (116) Laladiye, (117) Tote, (118) Kusarit, (119) Ramtal, (120) Kapale, (121) Masodare, (122) Ratniye, (123) Chandan, (124) Churavan, (125) Mandahar, (126) Madhare, (127) Lakarphar, (128) Kund, (129) Kardam, (130) Dhande, (131) Sahajpal, (132) Pabhi, (133) Rati, (134) Jaitke, (135) Daidriye, (136) Bhatare, (137) Kali, (138) Jalpot, (139) Maitra, (140) Sankhatre, (141) Ludra, (142) Vyasa, (143) Paltu, (144) Kirar, (145) Puje, (146) Isar, (147) Latta, (148) Dhami, (149) Kalhan, (150) Madarkhamb, (151) Bedesar, (152) Salvahan, (153) Dhande, (154) Marud, (155) Bature, (156) Joti, (157) Soyari, (158) Tejpal, (159) Kuralpal, (160) Kates, (161) Jalap, (162) Tinmani, (163) Tanganivate, (164) Jalpot, (165) Pattu, (166) Jasrava, (167) Jayachand, (168) Sanwal, (169) Agnihotri, (170) Agraphakka, (171) Ruthade, (172) Bhaji, (173) Kuchhi, (174) Saili, (175) Bhambi, (176) Medu, (177) Mehad, (178) Yamye, (179) Sangar, (180) Sang, (181) Nehar, (182) Chakpaliye, (183) Bijraye, (184) Narad, (185) Kutwal, (186) Kotpal, (187) Nabh, (188) Nad, (189) Parenje, (190) Kheti, (191) A'ri, (192) Chavhe, (193) Bibde, (194) Bandu, (195) Machhu, (196) Sundar, (197) Karadage, (198) Chhibbe, (199) Sadhi, (200) Tallan, (201) Karddam, (202) Jhaman, (203) Rangade, (204) Bhog, (205) Pande, (206) Gande, (207) Pante, (208) Gandhe, (209) Dhinde, (210) Tagale, (211) Dagale, (212) Lahad, (213) Tad, (214) Kayi, (215) Ludh, (216) Gandar, (217) Mahe, (218) Saili, (219) Bhagi, (220) Pande, (221) Pipar, (222) Jathee.

(B) Sarasvata Brahamins of Kangada and the adjacent Hill Country. These too are divided into High Class and Low Class.

HIGH CASTES

(1) Osdi, (2) Pandit Kashmiri, (3) Sotri, (4) Vedve, (5) Naga, (6) Dikshit, (7) Misri Kashmiri, (8) Madihatu, (9) Panchkarn, (10) Raine, (11) Kurudu, (12) A'Chariye.

LOWER CLASSES

(13) Chithu, (14) Panyalu, (15) Dumbu, (16) Dehaidu, (17) Rukhe, (18) Pambar, (19) Gutre, (20) Dyabhudu, (21) Maite, (22) Prot (Purohita) Jadtotrotiye, (23) Visht Prot, (24) Padhe Saroj, (25) Padhe Khajure, (26) Padhe Mahite, (27) Khajure, (28) Chhutwan, (29) Bhanwal, (30) Rambe, (31) Mangrudiye, (32) Khurvadh, (33) Galvadh, (34) Dangmar, (35) Chalivale.

(C) Sarasvata Brahmins of Dattarpur, Hoshyarpur and the adjacent Country.

These are also divided into High Class and Low Class.

I. HIGH CASTES

(1) Dogre, (2) Sarmayi, (3) Dube, (4) Lakhanapal, (5) Padhe Dholbalvaiya, (6) Padhe Ghohasniye, (7) Padhe Dadiye, (8) Padhe Khindadiya, (9) Khajurive.

II. LOWER CLASSES

(10) Kapahatiye, (11) Bharadhiyal, (12) Chaprohiye, (13) Makade, (14) Kutallidiye, (15) Sarad, (16) Dagadu, (17) Vantade, (18) Muchle, (19) Sammol, (20) Dhose, (21) Bhatol, (22) Rajohad, (23) Thanik, (24) Panyal, (25) Chibbe, (26) Madote, (27) Misar, (28) Chhakotar, (29) Jalreiye, (30) Lahad, (31) Sel, (32) Bhasul, (33) Pandit, (34) Changhial, (35) Lath, (36) Sand, (37) Lai, (38) Gadottare, (39) Chirbol, (40) Badhle, (41) Shridhar, (42) Patdu, (43) Juwal, (44) Maite, (45) Kakliye, (46) Tak, (47) Jhol, (48) Bhadoe, (49) Tandik, (50) Jhummutiyar, (51) A'l, (52) Mirat, (53) Mukati, (54) Dalchallie, (55) Bhatohaye, (56) Tyahaye, (57) Bhatare.

2. THE SARASVATAS OF KASHMIR

There are two sub-sections of the Sarasvatas of Kashmir.

(A) Sarasvata Brahmanas of Jammu, Jasrota and the neighbouring Hill Country.

They are divided into three classes, High, Middle and Low.

I. HIGH CASTES

(1) Amgotre, (2) Thappe, (3) Dube, (4) Sapoliye Padhe, (5) Badiyal, (6) Kesar, (7) Nadh, (8) Khajure Prahot, (9) Jamval Pandit, (10) Vaidya, (11) Lava, (12) Chibar, (13) aliye, (14) Mohan, (15) Bambhaval.

II. MIDDLE CASTES

(16) Raine, (17) Satotre, (18) Katotre, (19) Lalotre, (20) Bhangotre, (21) Samnotre, (22) Kashmiri Pandit, (23) Pandhotre, (24) Vilhanoch, (25) Badu, (26) Kernaye Pandit, (27) Danal Padhe, (28) Mahite, (29) Sudhraliye, (30) Bhatiad, (31) Puroch, (32) Adhotre, (33) Mishra, (34) Parashara, (35) Bavagotre, (36) Mansotre, (37) Sudathiye.

III. LOWER CLASSES

(38) Sudan, (39) Sukhe, (40) Bhure, (41) Chandan, (42) Jalotre, (43) Nabhotre, (44) Khadotre, (45) Sagdol, (46) Bhuriye, (47) Baganachhal, (48) Rajuliye, (49) Sangde, (50) Munde, (51) Surnachal, (52) Ladhanjan, (53) Jakhotre, (54) Lakhanpal, (55) Gauda Purohita, (56) Shashgotre, (57) Khanotre, (58) Garoch, (59) Marotre, (60) Upadhe, (61) Khindhahiye Padhe, (62) Kalandari, (63) Jarad, (64) Udihal, (65) Ghode, (66) Basnotre, (67) Barat, (68) Chargat, (69) Lavanthe, (70) Bharangol, (71) Jaranghal, (72) Guhaliye, (73) Dhariancha, (74) Pindhad, (75) Rajuniye, (76) Badakulive, (77) Sirkhandiye, (78) Kirpad, (79) Balli, (80) Salurn, (81) Ratanpal, (82) Banotre, (83) Yantradhari, (84) Dadorich, (85) Bhaloch, (86) Chhachhiale, (87) Jhangotre, (88) Magdol, (89) Phaunphan, (90) Saroch, (91) Gudde, (92) Kirle, (93) Mansotre, (94) Thammotre, (95) Thanmath, (96) Bramiye, (97) Kundan, (98) Gokuliye Gosain, (99) Chakotre, (100) Rod, (101) Bargotre, (102) Kavde, (103) Magdiyaliye, (104) Mathar, (105) Mahijiye, (106) Thakure Purohita, (107) Galhal, (108) Cham, (109) Rod, (110) Labhotre, (111) Redathiye, (112) Patal, (113) Kamaniye, (114) Gandhargal, (115) Prithvipal, (116) Madhotre, (117) Kambo, (118) Sarmayi, (119) Bachhal, (120) Makhotre, (121) Jad, (122) Batialiye, (123) Kudidab, (124) Jambe, (125) Karanathiye, (126) Suthade,

(127) Sigad, (128) Garadiye, (129) Machhar, (130) Baghotre, (131) Sainhasan, (132) Utriyal, (133) Suhandiye, (134) Jhindhad, (135) Battal, (136) Bhainkhare, (137) Bisgotre, (138) Jhalu, (139) Dabb, (140) Bhuta, (141) Kathialu, (142) Paladhu, (143) Paladhu, (144) Jakhotre, (145) Pange, (146) Solhe, (147) Suguniye, (148) Sanhoch, (149) Duhal, (150) Bando, (151) Kanungo, (152) Jhavdu, (153) Jhaphadu, (154) Kaliye, (155) Khaphankho.

(B) THE SARASVATAS OF KASHMIR¹

The following is a list of Kashmiri Brahmins.

(1) Kaul, (2) Rajdan, (3) Guriti, (4) Jitish, (5) Dar, (6) Trakari, (7) Mujhi, (8) Munshi, (9) Butal, (10) Javi, (11) Bajai, (12) Rei, (13) Hundo, (14) Dipti, (15) Chhichvali, (16) Rugi, (17) Kail, (18) Sum, (19) Hanji, (20) Hastivali, (21) Mutu, (22) Tikku, (23) Gais, (24) Gadi, (25) Brari, (26) Ganj, (27) Vangan, (28) Vagana, (29) Bhut, (30) Bhairava, (31) Madan, (32) Dina, (33) Shargal, (34) Hakchar, (35) Hak, (36) Kukar, (37) Chhatari, (38) Saunpuri, (39) Matti, (40) Khush, (41) Shakdar, (42) Vaishnava, (43) Kotar, (44) Kak, (45) Kachari, (46) Tote, (47) Saraph, (48) Gurah, (49) Thanthar, (50) Khar, (51) Thaur, (52) Teng, (53) Saiyad, (54) Trupuraya, (55) Muthi, (56) Saphai, (57) Bhan, (58) Vanya, (59) Garial, (60) Thapal, (61) Nauri, (62) Masaldan, (63) Mushran, (64) Turki, (65) Photedar, (66) Kharu, (67) Karbangi, (68) Bhath, (69) Kichilu, (70) Chhan, (71) Mukdam, (72) Khapari, (73) Bulaki, (74) Kar, (75) Jelali, (76) Saphayu, (77) Batphali, (78) Hukhi, (79) Kukpari, (80) Kali, (81) Jari, (82) Ganj, (83) Kim, (84) Mundi, (85) Jangal, (86) Jati, (87) Rakhyas, (88) Bakayi, (89) Geri, (90) Gari, (91) Kali, (92) Panji, (93) Bangi, (94) Sahib, (95) Belab, (96) Rayi, (97) Galikarap, (98) Chan, (99) Kababi, (100) Yachh, (101) Jalpuri, (102) Navashahari, (103) Kisi, (104) Dhusi, (105) Gamkhar, (106) Tholal, (107) Pista, (108) Badam, (109) Trachhal, (110) Nadir, (111) Lidarigari, (112) Pyal, (113) Kabi, (114) Chhatari, (115) Vanti, (116) Vatlilu, (117) Khari, (118) Vas, (119) i ati, (120) Sabanj, (121) Dandi, (122) Raval, (123) Misari, (124) Sibbi, (125) Singari, (126) Mirje,

¹ There is a difference of opinion about the Kashmir Brahmins being Sarasvatas. Some say they are. Others say they are not.

(127) Mail (128) Variki, (129) Jan, (130) Lutari, (131) Parim, (132) Hali, (133) Nakaib, (134) Main, (135) Ambaradar, (136) Ukhal, (137) Kanth, (138) Bali, (139) Jangali, (140) Duli, (141) Parava, (142) Harkar, (143) Gagar, (144) Pandit, (145) Jari, (146) Langi, (147) Mukki, (148) Bihi, (149) Padaur, (150) Pade, (151) Jand, (152) Teng, (153) Tund, (154) Drabi, (155) Dral, (156) Phambbi, (157) Sajavul, (158) Bakhshi, (159) Ugra, (160) Nichvi, (161) Pathan, (162) Vichari, (163) Unth, (164) Kuchari, (165) Shal, (166) Babi, (167) Makhani, (168) Labari, (169) Khanya, (170) Khanyakati, (171) Shah, (172) Pir, (173) Khurdi, (174) Khunki, (175) Kalposh, (176) Pishan, (177) Bishan, (178) Bui, (179) Choki, (180) Chak, (181) Rai, (182) Priti, (183) Pati, (184) Kichili, (185) Kahi, (186) Jiji, (187) Kilmak, (188) Salman, (189) Kadalbaju, (190) Kandahari, (191) Bali, (192) Manati, (193) Bankhan, (194) Hakim, (195) Garib, (196) Mandal, (197) Manjaha, (198) Shair, (199) Nun, (200) Teli, (201) Khalasi, (202) Chandra, (203) Gadir, (204) Jarabi, (205) Sihari, (206) Kalvit, (207) Nagari, (208) Mungvuch, (209) Khaibari, (210) Kulli, (211) Kabi, (212) Khosa, (213) Durani, (214) Tuli, (215) Garib, (216) Gadi, (217) Jati, (218) Rakhsas, (219) Harkar, (220) Grad, (221) Vagari, etc. etc.

3. THE SARASVATAS OF SINDH

The Sarasvatas of Sindh are sub-divided as follows:

(1) Shikarpuris, (2) Barovis, (3) Ravanjahis, (4) Shetpalas and (5) Kuvachandas, (6) Pokharana.

II. THE KANYAKUBJA BRAHMINS

The Kanuakubjas take their name from the town Kanoj which was the capital of the Empire of....They are also called Kanoujas. There are two denominations of the Kanyakubja Brahamins. One is called the *Sarvariya*s and the other is called the *Kanyakubja*s. The *Sarvariya*s got their name from the ancient river Saryu to the east of which they are principally found. They are a provincial offset from the Kanaujas, with whom they do not now intermarry. The sub-divisions among the *Sarvariya*s are generally the same as those found among the Kanaujas. It is therefore enough to detail the sub-divisions among the Kanaujas.

There are ten divisions of the Kanyakubja Brahmins:

(1) The Mishra, (2) The Shuklas, (3) The Tivaris, (4) The Dubes, (5) The Pathaks. (6) The Pande, (7) The Upadhya, (8) The Chaubes, (9) The Dikshitas, (10) The Vajapeyis.

Each of these sub-divisions has many sub-divisions. They are mentioned below:

1. THE MISHRAS

The Mishras consist of the following sections:

- (1) The Madhbani, (2) The Champaran, (3) The Patlal or Patlayala, (4) The Ratanvala, (5) The Bandol, (6) The Matol or Matevala, (7) The Katariya of the same Veda, (8) The Nagariya of the Vatsa Gotra, (9) The Payasi of the Vatsa Gotra, (10) The Gana, (11) The Teunta or the Tevanta, (12) The Marjani, (13) The Gurha, (14) The Markara, (15) The Jignya, (16) The Parayana, (17) The Pepara, (18) The Aterva or A tharva, (19) The Hathepara, (20) The Suganti, (21) The Kheta, (22) The Grambasi, (23) The Birha, (24) The Kausi, (25) The Kevati, (26) The Raisi, (27) The Bhahajiya, (28) The Belva, (29) The Ustraina, (30) The Kodiya, (31) The Tavakpuri, (32) The Jimalpuri, (33) The Shringarpuri, (34) The Sitapuri, (35) The Putavha, (36) The Sirajpuri, (37) The Bhampuri, (38) The Terka, (39) The Dudhagaumi, (40) The Ratnapuri, (41) The Sunhanla.

2. THE SHUKLAS

The Shuklas consist of the following sections:

- (1) The Khakhayijkhor named from two villages, (2) The Mamkhor named from two villages, (3) The Tipthi, (4) The Bhedi, (5) The Bakaruva, (6) The Kanjahi, (7) The Khandail, (8) The Bela, (9) The Change the Avasthi, (10) The Tevarasi Parbhakar, (11) The Mehuliyar, (12) The Kharbahiya, (13) The Chanda, (14) The Grga, (15) The Gautami, (16) The Parasa, (17) The Tara, (18) The Barikhpuri, (19) The Karyava, (20) The Ajmadgadhyia, (21) The Pichaura, (22) The Masauvas, (23) The Sonthianva, (24) The Aukin, (25) The Bir, (26) The Gopinath.

3. THE TIVARIS

The Tivaris consist of the following sections:

- (1) The Lonakhar, (2) The Lonapar, (3) The Munjauna, (4) The Mangraich, (5) The Jhunadiya, (6) The Sohgaura, (7) The Tara, (8) The Gorakhpuriya, (9) The Daurava, (10) Pendi, (11) The Sirjam, (12) The Dhatura, (13) The Panauli, (14) The Nadauli or Tандаuli, (15) The Burhiyabari, (16) The Gurauli, (17) The Jogiya,

(18) The Dikshita, (19) The Sonaura, (20) The Agori, (21) The Bhargava, (22) The Bakiya. (23) The Kukurgariya, (24) The Dama, (25) The Gopala, (26) The Govardhana, (27) The Tuke, (28) The Chattu, (29) The Shivali, (30) The Shakharaj, (31) The Umari, (32) The Manoha, (33) The Shivarajpur, (34) The Mandhna, (35) The Sape, (36) The Mandan Tirvedi, (37) The Lahari Tirvedi, (38) The Jethi Tirvedi.

4. THE DUBES

The Dube's consist of the following sections:

(1) The Kanchani, (2) The Singhva, (3) The Belava, (4) The Parava, (5) The Karaiya, (6) The Bargainya, (7) The Panchani, (8) The Lathiahi, (9) The Gurdvan, (10) The Methiber, (11) The Barhampuriya, (12) The Singilava, (13) The Kuchala, (14) The Munjalva, (15) The Paliya, (16) The Dhegava, (17) The Sisra, (18) The Sinani, (19) The Kudavarye, (20) The Kataiya, (21) The Panva.

5. THE PATHAKS

The following are the sections composing of the Pathakas:

(1) The Sonaura, (2) The Ambatara, (3) The Patakhavaliya, (4) The Dhigavach, (5) The Bhadari.

6. THE PANDES

The Pande's are divided into the following sections:

(1) The Tirphala or Triphala, (2) The Jorava, (3) The Matainya, (4) The Toraya, (5) The Nakchauri, (6) The Parsiha, (7) The Sahankol, (8) The Barhadiya, (9) The Gegas, (10) The Khoriya, (11) The Pichaura, (12) The Pichaura Payasi, (13) The Jutiya or Jatya, (14) The Itar or Intar, (15) The Beshtaul or Beshtavala, (16) The Charpand, (17) The Sila, (18) The Adhurj, (19) The Madariya, (20) The Majgaum, (21) The Dilipapar, (22) The Payhatya, (23) The Nagav, (24) The Talava, (25) The Jambu.

7. THE UPADHYAS

There are five sections among the Upadhyas:

(1) The Harainya or Hiranya, (2) The Devarainya, (3) The Khoriya, (4) The Jaithiya, (5) The Dahendra, (6) The Gorat, (7) The Ranisarap, (8) The Nizamabad, (9) The Dudholiya, (10) The Basgava.

8. THE CHAUBES

The principal sub-divisions of the Chaube's are:

- (1) The Nayapuras, (2) The Rargadis, (3) The Chaukhar, (4) The Katayas, (5) The Rampuras, (6) The Paliyas, (7) The Hardaspuras, (8) The Tibaiyas, (9) The Jamaduvras, (10) The Gargeya.

9. THE DIKSHITAS

The Dikshitas have the following sub-divisions:

- (1) The Devagaum, (2) The Kakari, (3) The Nevarshiya, (4) The Anter, (5) The Sukanta, (6) The Chaudhari, (7) The Jujatvatiyas.

10. THE VAJAPEYIS

The Vajapeyi's consist of the following sub-divisions:

- (1) The Unche, or the High, (2) The Niche or the Low.

Besides the divisions and sub-divisions of the Kanyakubjas mentioned above there are Kanyakubjas who are regarded as inferior and therefore isolated from the main divisions and sub-divisions. Among them are the following:

- (1) The Samdariya, (2) The Tirguvati, (3) The Bhaurha, (4) The Kabisa, (5) The Kevati, (6) The Chandravala, (7) The Kusumbhiya, (8) The Bisohya, (9) The Kanhali, (10) The Khajuvai, (11) The Kisirman, (12) The Paihtiya, (13) The Masonad, (14) The Bijara, (15) The Ansnaura.

III. THE GAUDA BRAHMINS

The Gauda Brahmins derive their name from the Province and (now ruined) city of Gauda, for long the capital of Bihar and Bengal (the seat of the *Angas* and *Vangas* or *Bangas*). The sub-divisions among the Gauda Brahmins are very considerable in number. The most conspicuous of them are the following:

- (1) The Gaudas or Kevala Gaudas, (2) Adi-Gaudas, (3) Shuklavala Adi-Gaudas, (4) Ojhas, (5) Sanadhya Gauda, (6) Chingalas, (7) Khandevalas, (8) Daymias, (9) Shri-Gaudas, (10) Tamboli Gaudas, (11) Adi-Shri Gaudas, (12) Gurjar Gaudas, (13) Tek Bara Gaudas, (14) Chamar Gaudas, (15) Hariyana Gaudas, (16) Kirtanya Gaudas, (17) Sukul Gaudas.

IV. THE UTKAL BRAHMINS

Utkal is the ancient name of Orissa and Utkal Brahmins means Brahmins of Orissa. They are divided into:

- (1) The Shashani Brahmins, (2) The Shrotriya Brahmins, (3) The Panda Brahmins, (4) The Ghatiya Brahmins, (5) The Mahasthana Brahmins, (6) The Kalinga Brahmins.

The *Shashani* Brahmins have the following sub-divisions.

- (1) The Savanta, (2) The Mishra, (3) The Nanda, (4) The Pate, (5) The Kara, (6) The Acharya, (7) The Satapasti, (8) The Bedi, (9) The Senapati, (10) The Parnagrahi, (11) The Nishank, (12) The Rainipati.

The *Shrotriya Brahmins* have the four following sub-divisions:

- (1) Shrotriyas, (2) Sonarbani, (3) Teli, (4) Agrabaksha.

V. THE MAITHILYA BRAHMINS

The Maithilya Brahmins derive their designation from Mithila, an ancient division of India and which includes a great portion of the modern districts of Tirhut, Saran, Purnea and also parts of the adjacent tracts of Nepal.

The following are the sub-divisions of the Maithilya Brahmins:

- (1) The Ojhas, (2) The Thakurs, (3) The Mishras, (4) The Puras, (5) The Shrotriyas, (6) The Bhuiharas.

Of these the Mishras have the following sub-sections:

- (1) The Chandharis, (2) The Rayas, (3) The Parihastas, (4) The Khanas, (5) The Kumaras.

III

OTHER BRAHMINS

The Panch Dravidas is a generic name for Brahmins living below the Vindhya and the Panch Gaudas is a generic name for Brahmins living above the Vindhya. In other words, Panch Gauda is a name for Northern Brahmins and Panch Dravidas, a name for Southern Brahmins. What is, however, to be noted is that the five divisions of Brahmins composing the Northern Fraternity and Southern Fraternity of Brahmins do not exhaust all the divisions of Brahmins living in Northern or Southern India. To complete the subject it is necessary not only to refer to them but also to record their sub-divisions.

OTHER BRAHMINS OF SOUTH INDIA

In this category fall the following:

- (1) The Konkani Brahmins¹, (2) The Hubu², (3) The Gaukarna³, (4) The Havika⁴, (5) The Tulva⁵, (6) The Amma Kodaga⁶, (7) The Nambudri⁷.

The Nambudri Brahmins are the principal group of Brahmins living in Malabar. Besides the Nambudris there are also other sections of Brahmins. They are:

- (1) The Pottis, (2) The Muttadus, (3) The Fledus, (4) The Ramnad-writ Parasahas, (5) The Pattaras, (6) The Ambalvasis.

OTHER RAJPUTA BRAHMINS

The Varieties of Rajputa Brahmins not mentioned in the list of Gurjar Brahmins are:

- (1) The Shrimalis Brahmins, (2) The Sachoda Brahmins, (3) The Pallivalar Brahmins, (4) The Nandanas Brahmins, (5) The Pushakars Brahmins, (6) The Pokhar Sevakas Brahmins, (7) The Medatvala, (8) The Parikha Brahmins, (9) The Lavanas Brahmins, (10) The Dakotas Brahmins, (11) The Garudiyas Brahmins, (12) The Acharjas, (13) The Bura Brahmins, (14) The Kapidas, (15) The Dahimas, (16) The Khandelvalas, (17) The Divas, (18) The Sikavadas, (19) The Chamatvalas, (20) The Marus, (21) The Shrivantas, (22) The Abhiras, (23) The Bhartanas, (24) The Sanacadas, (25) The Vagadis, (26) The Mewadas, (27) The Rajgurus, (28) The Bhats, (29) The Charanas.

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¹ The Konkani Brahmins are to be distinguished from the Konkansthas who belong to Maharashtra. The Konkani Brahmins belong to the Portuguese territory of Goa.

² They come from Karwar.

³ They come from. (*Place not mentioned in MS.* — Ed.)

⁴ They are to be found in the vicinity of Tellicheri.

⁵ They are to be found near about Udipi.

⁶ They are to be found in Coorg.

BOOK III

Political

Seven essays on the political issues previously not published have been included under the category 'Political' in this Book.

CHAPTER 20

FROM MILLIONS TO FRACTIONS

I. Population of the Untouchables long unknown. II. The Census of 1911 and the first attempt at separate enumeration. III. Confirmation of the findings of 1911 Census. IV. Lothian Committee and the Hindu cry of “no Untouchables”. V. Reasons for the cry. VI. Attitude of the Backward Classes and the Muslims.

I

What is the total population of the Untouchables of India? This is bound to be the first question that a person who cares to know anything about them is sure to ask. It is now easy to answer this question. For the Census of India taken in 1931 gives it as 50 millions. While it is possible now to give more or less exact figures of the Untouchable population in India it was not possible to do so for a long time.

This was due to various causes. Firstly untouchability is not a legal term. There is no exact legal definition of untouchability whereby it could be possible to define who is an Untouchable and who is not. Untouchability is a social concept which has become embodied in a custom and as custom varies so does untouchability. Consequently there is always some difficulty in the way of ascertaining the population of the Untouchables with mathematical exactitude. Secondly there has always been serious opposition raised by high caste Hindus to the enumeration by caste in the Census Report. They have insisted on the omission of the question regarding caste from the schedules and the suppression of the classification of the population by caste and tribe. A proposal to this effect was made in connection with the 1901 Census mainly on the ground that the distribution of various castes and tribes in the population changed at large intervals and that it was not necessary to obtain figures at each decennial enumeration.

These grounds of objection did not have any effect on the Census Commissioner. In the opinion of the Census Commissioner enumeration by caste was important and necessary. It was argued by the Census Commissioner that,

“Whatever view may be taken of the advantages or disadvantages of caste as a social institution, it is impossible to conceive of any useful discussion of the population questions in India in which caste would not be an important element. Caste is still ‘the foundation of the Indian social fabric,’ and the record of caste is still ‘the best guide to the changes in the various social strata in the Indian Society’. Every Hindu (using the term in its most elastic sense) is born into a caste and his caste determines his religious, social, economic and domestic life from the cradle to the grave. In western countries the major factors which determine the different strata of society, viz, wealth, education and vocation are fluid and catholic and tend to modify the rigidity of birth and hereditary position. In India spiritual and social community and traditional occupation override all other factors. Thus, where in censuses of western countries, an economic or occupational grouping of the population affords a basis for the combination of demographic statistics, the corresponding basis in the case of the Indian population is the distinction of religion and caste. Whatever view may be taken of caste as a national and social institution, it is useless to ignore it, and so long as caste continues to be used as one of the distinguishing features of an individual’s official and social identity, it cannot be claimed that a decennial enumeration helps to perpetuate an undesirable institution.”

The objections to the enumeration by castes in the census were urged with greater force on the occasion of the census of 1911 when the special questionnaire containing ten tests was issued for the purpose of grouping together castes which satisfied those tests. There was no doubt that those tests were such as would mark off the Depressed Classes from the Caste Hindus. It was feared by the Caste Hindus that this circular was the result of the Muslim Memorial to the Secretary of State and its aim was to separate the Depressed Classes from the Hindus and thereby to reduce the strength of the Hindu Community and its importance.

This agitation bore no fruit and the objection of separately enumerating in the Census Report those castes which satisfied those ten tests was carried out. The agitation however did not die out. It again cropped up at the Census of 1920. At this time, effort was made to put forth the objection to the caste return in a formal manner. A resolution was tabled in the Imperial Legislative Council in 1920 attacking the caste inquiry on the grounds (a) that it was undesirable to recognize and perpetuate, by official action, the system of caste differentiation and (b) that in any case the returns were inaccurate and worthless, since the lower castes took the opportunity of passing themselves as belonging to groups of higher status. If this resolution

had been carried, it would not have been possible to know the population of the Untouchables. Fortunately owing to the absence of the mover, the resolution was not discussed and the Census Commissioner of 1921 remained free to carry out his inquiries in the usual manner.

Thirdly no attempt was made for a separate enumeration of the Untouchables by any of the Census Commissioners previous to the year 1911. The first general Census of India was taken in the year 1881. Beyond listing the different castes and creeds and adding up their numbers so as to arrive at the total figure of the population of India, the Census of 1881 did nothing. It made no attempt to classify the different Hindu castes either into higher and lower or Touchable and Untouchable. The second general Census of India was taken in the year 1891. It was at this census that an attempt to classify the population on the basis of caste and race and grade was made by the Census Commissioner for the first time.

The third general Census of India was taken in 1901. At this census a new principle of classification was adopted namely "Classification by Social precedence as recognized by native public opinion." For a society like the Hindu society which does not recognize equality and whose social system is a system of gradation of higher and lower, this principle was the most appropriate one. Nothing can present a more intelligible picture of the social life and grouping of that large proportion of the people of India which is organized admittedly or tacitly on the basis of caste as this principle of social precedence.

II

The first attempt of a definite and deliberate kind to ascertain the population of the Untouchables was made by the Census Commissioner in 1911.

The period immediately preceding the Census of 1911 was a period during which the Morley-Minto Reforms were in incubation. It was a period when the Mahomedans of India had started their agitation for adequate representation in the legislatures by separate electorates. As a part of their propaganda, the Mahomedans waited upon Lord Morley, the then Secretary of State for India in Council, in deputation and presented him a Memorial on the 27th January 1909. In that memorial there occurs the following statement:

(The statement is not recorded in the MS.—Ed.)

Whether there was any connection between what the Muslim deputation had urged in their memorial regarding the Untouchables in 1907 and the idea of the Census Commissioner four years after to make a separate enumeration of the Untouchables, is a matter on which nothing definite can be said. It is possible that what the Census Commissioner proposed to do in 1911 was only a culmination of the

ways adopted by his predecessors in the matter of the demographic study of the population. Be that as it may, there was a great uproar on the part of the Hindus when the Census Commissioner announced his plan of separate enumeration of the Untouchables. It was said that this attempt of the Census Commissioner was the result of a conspiracy between the Musalmans and the British Government to divide and weaken the Hindu Community. It was alleged that what was behind this move was not a genuine desire to know the population of the Untouchables but the desire to break up the solidarity of the Hindu Community by separating the Untouchables from the Touchables. Many protest meetings were held all over the country by the Hindus and condemned in the strongest terms this plan of the Census Commissioner.

The Commissioner of Census however undaunted by this storm of protest decided to carry out his plan. The procedure adopted by him for a separate enumeration of the Untouchables was of course a novel one. The Census Superintendents for different Provinces were instructed by the Census Commissioner to make separate enumeration of castes and tribes classed as Hindus but who did not conform to certain standards or who were subject to certain disabilities.

Under these tests the Census Superintendents made a separate enumeration of castes and tribes who (1) denied the supremacy of the Brahmins, (2) did not receive the Mantra from Brahmana or other recognized Hindu Guru, (3) denied the authority of the Vedas, (4) did not worship the great Hindu Gods, (5) were not served by good Brahmanas, (6) have no Brahman priests at all, (7) have no access to the interior of the ordinary Hindu temple, (8) cause pollution, (9) bury their dead and (10) eat beef and do not revere the cow.

The investigation conducted by the Census Commissioner left no room for guessing. For he found as a fact what the population of the Untouchables was. The table below gives the population of the Untouchables, province by province, as found by the Census Commissioner of 1911.¹

Province		Total population in millions	Population of Depressed Classes in millions	Total Seats	Seats for the Depressed Classes
Madras	..	39.8	6.3	120	2
Bombay	..	19.5	0.6	113	1
Bengal	..	45.0	9.9	127	1
United Provinces	..	47.0	10.1	120	1
Punjab	..	19.5	1.7	85	...
Bihar and Orissa	..	32.4	9.3	100	1
Central Provinces	..	12.0	3.7	72	1
Assam	..	6.0	0.3	54	.. .
		221.2	41.9	791	7

¹ This table is reprinted from 'Dr. Babasaheb Ambedkar Writings & Speeches lot. 2, Education Department, Government of Maharashtra, Bombay, p. 364. It is not recorded in the MS. — Ed.

An outsider might not realize the significance and the bearing of these tests. They might ask what all this got to do with untouchability. But he will realize the significance and the bearing on the question of ascertaining the population of the Untouchables. As has been said there is no legal definition of untouchability and there cannot be any. Untouchability does not express itself through the hair of the head or the colour of the skin. It is not a matter of blood. Untouchability expresses itself in modes of treatment and observance of certain practices. An Untouchable is a person who is treated in a certain way by the Hindus and who follows certain practices which are different from the Hindus. There are definite ways in which the Hindus treat the Untouchables in social matters. They are definite practices which are observed by the Untouchables. That being so the only method of ascertaining who are Untouchables is to adopt their ways and practices as the criteria and find out the communities which are subject to them. There is no other way. If the outsider bears this in mind, he will understand that even though the tests prescribed by the Census Commissioner do not show any colour of untouchability, they are in fact the hall marks of untouchability. That being so, there can be no manner of doubt that the procedure was proper and the tests were correct. Consequently it can be truly said, the results of this investigation were valuable and the figures obtained were accurate as far they can be in a matter of this sort.

III

The findings of the Census Commissioner of 1911 regarding the total population of the Untouchables were confirmed by the Census Commissioner of 1921.

The Census Commissioner of 1921 also made an investigation to ascertain the population of the Untouchables. In this Report Part I para 1931 the Census Commissioner observed:

“It has been usual in recent years to speak of certain section of the community as ‘depressed classes’. So far as I am aware, the term has no final definition nor is it certain exactly whom it covers. In the Quinquennial Review on the Progress of Education from 1912/17 (Chapter XVIII paragraph 505)—the depressed classes are specifically dealt with from the point of view of Educational assistance and progress and in Appendix XIII to that Report a list of the castes and tribes constituting this section of the Community is given. The total population classed according to these lists as

depressed amounted to 31 million persons or 19 per cent of the Hindu and Tribal population of British India. There is undoubtedly some danger in giving offence by making in a public report social distinction which may be deemed invidious; but in view of the lists already prepared and the fact that the "Depressed Classes" have, especially in South India, attained a class consciousness and a class organization, are served by special missions, "raised" by philanthropic societies and officially represented in the Legislative Assemblies, it certainly seems advisable to face the facts and to attempt to obtain some statistical estimate of their numbers. I therefore asked Provincial Superintendents to let me have an estimate based on census figures of the approximate strength of the castes who were usually included in the category of "depressed".

"I received lists of some sort from all provinces and states except the United Provinces, where extreme delicacy of official sentiment shrank from facing the task of attempting even a rough estimate. The figures given are not based on exactly uniform criteria, as a different view is taken of the position of the same groups in different parts of India, and I have had in some cases to modify the estimates on the basis of the figures in the educational report and of information from the 1911 reports and tables. They are also subject to the general defect, which has already been explained, that the total strength of any caste is not recorded. The marginal statement gives however a rough estimate of the *minimum* members which may be considered to form the "depressed classes" of the Hindu community. The total of these provincial figures adds up to about 53 millions. This, however, must be taken as a low and conservative estimate since it does not include (1) the full strength of the castes and tribes concerned and (2) the tribal aborigines more recently absorbed in Hinduism, many of whom are considered impure. We may confidently place the numbers of these depressed classes all of whom are considered impure, at something between 55 and 60 millions in India proper."

Then came the inquiry by the Simon Commission which was appointed by the British Parliament in 1929 to examine the working of the Reforms introduced by the Government of India Act of 1919 and to suggest further reforms.

At the time when the reforms which subsequently became embodied in the Act of 1919 were being discussed, the authors of the Montague-Chelmsford Report clearly recognized the problem of the Untouchables and the authors pledged themselves to make the best arrangement for their representation in the Legislatures. But the

Committee that was appointed under the chairmanship of Lord Southborough to devise the franchise and the electoral system ignored them altogether. The Government of India did not approve of this attitude and made the following comments:

“They (Untouchables) are one fifth of the total population and have not been represented at all in the Morley-Minto Councils. The Committee’s report mentions them (Untouchables) twice, but only to explain that in the absence of satisfactory electorates they have been provided for by nomination. It does not discuss the position of these people, or their capacity for looking after themselves. Nor does it explain the amount of nomination which it suggests for them..... The measure of representation which they propose..... suggested that one fifth of the entire population of British India should be allotted seven seats out of practically eight hundred. It is true that in all the Councils there will be roughly speaking a one-sixth proportion of officials who may be expected to bear in mind the interests of the (Untouchables); but that arrangement is not, in our opinion, what the Report on reforms aims at. The authors stated that the (Untouchables) also should learn lessons of self protection. It is surely fanciful to hope that this result can be expected from including a single member of the community in an assembly where there are sixty or seventy caste Hindus. To make good the principles of the Report we must treat the outcastes more generously”.

The Government recommended that the seats allotted to the Untouchables by the Committee should be doubled. Accordingly in place of seven they were given fourteen seats. It will be seen that the generosity of the Government of India when put into practice did not amount to much. It certainly did not do to the Untouchables the justice that was their due.

Among the problems that were not properly settled in 1919, was the problem of the Untouchables, which was bound to loom large before the Simon Commission. Quite unexpectedly the problem received a special emphasis at the hands of the late Lord Birkenhead who was then the Secretary of State for India. In a speech which he made on ¹..... just before the appointment of the Simon Commission he said — (*Left blank in the MS.*—Ed.).

.....

Naturally the problem became a special task of the Simon Commission. Although the problem as presented was one of providing representation—and in that sense a political problem at the bottom

¹ *Date not cited in the Ms- Ed.*

it was a problem, of ascertaining the population of the untouchables. Because unless the population was ascertained, the extent of representation in the legislature could not be settled.

The Simon Commission had therefore to make a searching inquiry into the population of the untouchables. It called upon the various provincial governments to furnish returns showing the numbers of untouchables residing in their area and it is well known that the provincial governments took special care in preparing these returns. There can therefore be no question regarding the accuracy of the figure of the total population of the untouchables. The *following table*¹ gives the figures for the population of the untouchables as found by the Southborough Committee and by the Simon Commission.

IV

It is thus clear that the population of the Untouchables has been estimated to be somewhere about 50 millions. That this is the population of the Untouchables had been found by the Census Commissioner of 1911 and confirmed by the Census Commissioner of 1921 and by the Simon Commission in 1929. This fact was never challenged by any Hindu during the twenty years it stood on the record. Indeed in so far as the Hindu view could be gauged from the reports of the different Committees appointed by the Provincial and Central Legislatures to cooperate with the Simon Commission, there can be no doubt that they accepted this figure without any demur.

Suddenly however in 1932, when the Lothian Committee came and began its investigation, the Hindus adopted a challenging mood and refused to accept this figure as the correct one. In some provinces the Hindus went to the length of denying that there were any Untouchables there at all. This episode reveals the mentality of the Hindus and as such deserves to be told in some details.

The Lothian Committee was appointed in consequence of the recommendations made by the Franchise Sub-Committee of the Indian Round Table Conference. The Committee toured the whole of India, visited all the Provinces except Central Provinces and Assam. To aid the Committee, there were constituted in each Province by the provincial Government, Provincial Committees comprising, so far as possible, spokesmen of the various schools of thought and of the various political interests existing in each Province. These Provincial Committees were in the main composed of members of the Provincial Councils with non-officials as Chairmen. With a view to concentrating discussion, the Indian Franchise Committee issued a questionnaire

¹ Table not given in the Ms—Ed.

covering the field included in its terms of reference. The procedure laid down by the Franchise Committee was that Provincial Governments should formulate their own views on the points raised in the questionnaire and discuss them with the Committee and that the Provincial Committees who were regarded as the authoritative advisers should independently formulate their views and should at their discretion conduct a preliminary examination of witnesses on the basis of their written statements. The Report of the Indian Franchise Committee was therefore a thorough piece of work based upon detailed investigation.

The letter of instruction sent by the Prime Minister to Lord Lothian as Chairman of the Indian Franchise Committee and which constituted the terms of reference of the Committee contained the following observation :

“It is evident from the discussions which have occurred in various connections in the (Indian Round Table) Conference that the new constitution must make adequate provision for the representation of the depressed classes and that the method of representation by nomination is no longer regarded as appropriate. As you are aware, there is a difference of opinion whether the system of separate electorates should be instituted for the depressed classes and your committee’s investigation should contribute towards the decision of this question by indicating the extent to which the depressed classes would be likely, through such general extension of the Franchise as you may recommend, to secure the right to vote in ordinary electorates. On the other hand, should it be decided eventually to constitute separate electorates for the depressed classes, either generally or in those Provinces in which they form a distinct and separate element in the population, your Committee’s inquiry into the general problem of extending the franchise should place you in possession of facts which would facilitate the devising of a method of separate representation for the depressed classes”.

Accordingly in the questionnaire that was issued by the Indian Franchise Committee there was included the following Question:

“What communities would you include as belonging to Depressed Classes? Would you include classes other than Untouchables, and if so which?”

I was a member of the Indian Franchise Committee. When I became a member of the Committee, I was aware that the principal question on which I should have to give battle with the Caste Hindus was the question of joint versus separate electorates for the Untouchables. I knew, that in the Indian Franchise Committee, the odds would be

heavily against them. I was to be the only representative of the Untouchables in the Committee as against half a dozen of the Caste Hindus. Against such an unequal fight I had prepared myself. Before accepting membership of the Indian Franchise Committee, I had stipulated that the decision of the question whether the Untouchables should have joint or separate electorates should not form part of the terms of reference to the Committee. This was accepted and the question was excluded from the purview of the Indian Franchise Committee. I had therefore no fear of being out voted on this issue in the Committee— a strategy for which the Hindu Members of the Committee did not forgive me. But there arose another problem of which I had not the faintest idea. I mean the problem of numbers. The problem of numbers having been examined between 1911 to 1929 by four different authorities, who found that the population of Untouchables was somewhere about 50 millions, I did not feel that there would be any contest over this issue before the Indian Franchise Committee.

Strange as it may appear the issue of numbers was fought out most bitterly and accrimoniously before the Indian Franchise Committee. Committee after Committee and witness after witness came forward to deny the existence of the Untouchables. It was an astounding phenomenon with which I was confronted. It would be impossible to refer to the statement of individual witnesses who came forward to deny the existence of such a class as the Untouchables. It would be enough if I illustrate my point by referring to the views of the Provincial Franchise Committees and their members relating to the question of the population of the Untouchables.

PUNJAB

Opinion of the Punjab Government.

“The Punjab Government is of opinion that the enfranchisement of the tenant will give the vote to a considerable number of the Depressed Classes and to that extent will give them influence in the election of representatives to the Council.”¹

“As regards the Depressed Classes, the Punjab Government has no reason to depart from the view which it has already expressed in para 25 of the Memorandum containing the opinions of the official members of the Government on the recommendations of the Indian

¹ Memorandum by the Punjab Government to Indian Franchise Committee-I.F.C, Vol. 111. p. (not cited in the Ms)

Statutory Commission, that these classes are not a pressing problem in the Punjab and will get some representation as tenants.”¹

Opinion of the Punjab Provincial Franchise Committee.

“K. B. Din Mahomed and Mr. Hansraj (who represented the Untouchables on the Committee) held that, while there are no depressed classes among the Musalmans, there exist depressed classes among the Hindus and Sikhs Their total number being 1,310,709.

Mr. Hansraj considers this list incomplete.”

“They held that provision should be made for separate representation by treating the depressed classes as a separate community. Mr. Nazir Husain, Rai Bahadur Chaudhri Chhotu Ram, Mr. Own Roberts, K. B. Muhammad Hayat, Mr. Qureshi, Mr. Chatterji, Sardar Bhuta Singh and Pandit Nanak Chand held that it is impossible to say that there are depressed classes in the Punjab in the sense that any person by reason of his religion suffers any diminution of civic rights.....The Chairman, Pandit Nanak Chand and Sardar Bhuta Singh are of opinion that the depressed classes do not exist in the sense in which they exist in Southern India, and that, while there are in the villages certain classes who occupy a very definitely inferior economic and social position, it is not possible to differentiate the Hindu leather worker or Chamar who is claimed as a depressed class from the Musalman leather worker or Mochi who no one alleges belongs to a separate class.”²

It will thus be seen that the Punjab Provincial Government avoided to answer the question. The Punjab Provincial Committee by a majority denied that there existed a class such as depressed or untouchable.

UNITED PROVINCES

Opinion of the Provincial Franchise Committee.

“The United Provinces Franchise Committee is of opinion that only those classes should be called “depressed” which are untouchable. Judged by this test, the problem of untouchability is non-existent in these provinces except in the case of Bhangis, Doms and Dhanuks, whose total population, including those sections which are touchable is only 582,000.”³

Babu Ram Sahai, a member of the United Provinces Provincial Franchise Committee representing the untouchable classes, in his minute of dissent gave the numbers⁴ of the Untouchables in U. P. as

¹ Supplementary Memorandum by the Punjab Government, I.F.C., Vol. III, p. 29.

² Memorandum by the Punjab Provincial Franchise Committee, I.F.C., Vol. III, p. 35.

³ I.F.C. Vol. III, p. 398.

⁴ *Ibid.*, p. 440.

11,435,417. Rai Sahib Babu Ramcharan another member of the United Provinces Provincial Franchise Committee representing the Depressed Classes in his minute of dissent gave the numbers¹ of the Depressed Classes in U.P. as 20 millions.

The Government of the United Provinces reported² that the maximum estimate amounts to 17 million persons; the minimum something less than one million. In its opinion the least number was 6,773,814.

BENGAL

The Bengal Provincial Franchise Committee in its first Report³ said.

“The Committee could come to no decision on this question and resolved to put it back for consideration along with the Central Committee.”

In its final Report the same Committee said—

“According to the criterion laid down viz, untouchability and unapproachability, as these terms are understood in other parts of India, the Committee consider that, except Bhumalis only, there is no such class in Bengal.”⁴

Mr. Mullick who was a representative of the Depressed Classes on the Bengal Provincial Franchise Committee in his minute of dissent gave a list of 86 castes as belonging to the Untouchable Classes.

BIHAR AND ORISSA

The population of the Depressed Classes in Bihar and Orissa according to the Census of 1911 was 9,300,000⁵ and according to the Census of 1921 was 8,000,000⁶.

But the Bihar and Orissa Provincial Franchise Committee in its provincial memorandum⁷ observed—

“It is difficult to give an exhaustive list of the castes or sects who come under the definition of Depressed Classes. The only classes which can be called depressed are *Mushahars*, *Dusadhs*, *Chamars*, *Doms* and *Mehtars*. Their number is not sufficiently large to justify their being grouped in a separate electoral roll. The problem of Depressed Classes is not so acute in Bihar as in Bombay or South India. The Committee considers that there is no need for special representation of the Depressed Classes.”

¹ I.F.C., Vol. III, p. 285.

² *Ibid.*, pp. 297-98.

³ *Ibid.*, p. 189.

⁴ *Ibid.* p. 230.

⁵ Quoted from ‘Dr. Babasaheb Ambedkar Writings & Speeches’. Vol. 2. p. 437—Ed.

⁶ *Ibid.*, p. 431—Ed.

⁷ I.F.C., Vol. III, p. 129.

The same Committee in its final report¹ said :

“The classes which are commonly regarded as Untouchables are Chamar, Busadh, Dom, Halalkhor, Hari, Mochi, Mushahar, Pan Pasi.....The majority of the Committee, however consider that there is no need for special representation as the Depressed Classes as their grievances are not so acute here as in Bombay or South India”.

Why did the Hindus suddenly turn to reduce the population of the Untouchables from millions to fractions? The figure of 50 millions had stood on the record from 1911. It had not been questioned by any one. How is it that in 1932 the Hindus made so determined an effort without any regard to the means to challenge the accuracy of this figure?

The answer is simple. Up to 1932 the Untouchables had no political importance. Although they were outside the pale of Hindu Society which recognizes only four classes namely Brahmins, Kshatriyas, Vaishyas and Shudras, yet for political purposes they were reckoned as part of the Hindu Society. So that for political purposes such as representation in the Legislature etc., the question of the population of the Untouchables was of no consequence. Up to 1932 the political question was one of division of seats in the Legislature between Hindus and Musalmans only and as there was no question of the seats that came to the lot of the Hindus being partitioned between the Touchables and the Untouchables and as the whole share went to the Touchables they did not care to inquire what the population of the Untouchables was. By 1932 the situation had completely altered. The question of partition was no longer a question between Hindus and Musalmans. The Untouchables had begun to claim that there should not only be a partition between the Hindus and Musalmans but that the share allotted to the Hindus should be further partitioned and the share of the Untouchables given to them to be enjoyed by them exclusively. This claim to separation was recognized and the Untouchables were allowed to be represented by members of their own class at the Indian Round Table Conference. Not only was the separate existence of the Untouchables thus recognized but the Minorities Sub-Committee of the Indian Round Table Conference had accepted the principle that under the new Constitution the depressed classes should be given representation in all Legislatures in proportion to their population. It is thus that the population of the Untouchables became a subject of importance. The less the population of the Untouchables the greater the share of the political representation that would go to the Touchable Hindus. This will explain why the Touchables who

¹ I.F.C. Vol. III, p. 188.

before 1932 did not care to quarrel over the question of the population of the Untouchables, after 1932 began denying the very existence of such a class as Untouchables.

The ostensible grounds urged by the Hindus before the Lothian Committee for reducing the population of the Untouchables were two. One was that the figures given by the Census Commissioner were for Depressed Classes and not for Untouchables and that Depressed Classes included other classes besides Untouchables. The second ground urged by them was that, the definition of the word should be uniform throughout all India and should be applied in all Provinces in determining the population of the Untouchables. In other words they objected to a local test of untouchability.

The first contention was absolutely untrue. The term Depressed Classes was used as a synonym for Untouchables and the term Depressed Classes was used instead of the term Untouchables because the latter, it was felt, would give offence to the people meant to be included under the term. That, it was used to denote only the Untouchables and it did not include the Aborigines or the Criminal Tribes was made clear in the debate that took place in the Imperial Legislative Council in 1916 on the Resolution moved by the Honourable Mr. Dadabhoy. The second contention of the caste Hindus was that the test of untouchability should be uniform. The object of putting forth this contention was to reduce the number of Untouchables. It is well known that there are variations in the forms which untouchability assumes in different parts of India. In some parts of India, Untouchables are unseeables i.e. they cause pollution if they come within the sight of a Touchable Hindu. In some parts Untouchables are unapproachables i.e. they cause pollution if they come within a certain distance of a Touchable Hindu. Of these unapproachables there are two classes. There is a class of unapproachables who cannot come within a certain fixed distance of a Touchable Hindu. There is another class of unapproachables who cannot come so near a Hindu as to let his shadow fall upon him. In some parts of India an Untouchable is not an unseeable or unapproachable. It is only his physical contact which causes pollution. In some parts an Untouchable is one who is not allowed to touch water or food. In some parts an Untouchable is one who is not allowed to enter a temple. With these variations it is clear, that if unseeability was taken as the only test of untouchability, then the unapproachables would have to be excluded from the category of Untouchables. If unapproachability was taken as a test, then those whose touch only caused pollution will have to be excluded from the category of

Untouchables. If causing pollution by touch be taken as a test, then those whose disability is that they are not allowed to touch water or food or those whose only disability is that they are not allowed to enter the temple, shall have to be excluded. This is what the Hindus wanted to do. By insisting upon uniform test they wanted to eliminate certain classes from the category of Untouchables and thereby reduce the population of the Untouchables. Obviously their point of view was fallacious. Untouchability is an outward expression of the inner repulsion which a Hindu feels towards a certain person. The form which this repulsion takes is comparatively a matter of small moment. The form merely indicates the degree of repulsion. Wherever there is repulsion there is untouchability. This simple truth the Hindus knew.

But they kept on insisting upon uniformity of test because they wanted somehow to reduce the population of the Untouchables and to appropriate to themselves a larger share of political representation.

VI

This struggle between the Hindus and the Untouchables constituted undoubtedly the main episode. But within this episode there was another which, though of a smaller character, was yet full of significance. It was the struggle between the Backward Classes and the Untouchables. The representatives of the Backward Classes contended that the category known as Depressed Classes should not only include Untouchables in the strict sense of that term but should also include those classes which are economically and educationally backward. The object of those that wanted, that not only the Untouchables but also those who are educationally and economically backward shall also be given separate representation, was a laudable one. In putting forth this contention they were not asking for anything that was new. Under the reformed constitution that came into operation in 1920, the right of the economically and educationally backward communities was recognized in the two provinces of India namely Bombay and Madras. In Bombay the, Marathas and allied castes and in Madras the Non-Brahmins were given separate representation on the only ground that they were economically and educationally backward. It was feared that if special representation was not given to those communities, they would be politically suppressed by the minority of high caste Hindus such as Brahmins and allied castes. There are many communities in other Provinces who are in the same position and who need special political representation to prevent their being suppressed by the higher castes. It was therefore perfectly proper for the representatives of the Backward

Classes from the Hindus to have claimed special representation for themselves.¹ If their point of view had been accepted the total number of Depressed Classes would have swelled to enormous proportions. But they received no support either from the Untouchables or from the high caste Hindus. The Hindus were opposed to the move which was calculated to increase the population of the Depressed Classes. The Untouchables did not want to be included in their category any class of people who were not really Untouchables. The proper course for these backward communities was to have asked to make a division of Touchable Hindus into advanced and backward and to have claimed separate representation for the Backward. In that effort the Untouchables would have supported them. But they did not agree to this and persisted in being included among the Depressed Classes largely because they thought that this was easier way of securing their object. But as the Untouchables opposed this the backward communities turned and joined the Hindus in denying the existence of Untouchables, more vehemently than the Hindus.

In this struggle between the Touchables and Untouchables the latter did not get any support from the Mahomedans. It will be noticed that in the Punjab Provincial Franchise Committee, only one Mahomedan supported the representative of the Untouchables in his assertion that there are in the Punjab communities which are treated as Untouchables. The rest of the Mahomedan members of the Committee did not join. In Bengal the Hindu and the Mahomedan members of the Bengal Provincial Franchise Committee agreed not to express any view on the matter. It is rather strange that the Mahomedans should have kept mum. It was in their interest that the Untouchables should be recognized as a separate political community. This separation between the Touchables and the Untouchables was to their benefit. Why did they not help the Untouchables in this struggle for numbers? There were two reasons why the Mahomedans took this attitude. In the first place the Mahomedans were asking for more than their population ratio of representation. They were asking for what in Indian political parlance is known as weightage. They knew that their weightage must involve a loss to the Hindus and the only question was which section of the Hindus should bear the loss. The Touchable Hindus would not

¹ The necessity for making such provision for the Backward Classes in U. P. from which this demand mainly came was amply demonstrated by what the Government of U. P. said in its Memorandum to the Simon Commission. Regarding the composition of the U. P. Legislature it said — "In the Province as a whole the four leading Hindu Castes, Brahman, Thakur, Vaishya and Kayastha form 21.5 per cent of the total Hindu population, but these four castes have supplied no less than 93 per cent of the Hindu Members of Council. The Jats, with 1.8 per cent of the population, have contributed another 5 per cent to the Hindu Membership; and all the millions included in the multitude of other Hindu Castes, including the real agricultural castes, though they amount to over 76 per cent of the Hindu population have only succeeded in supplying 2 per cent of the representation", p. 560.

mind the weightage if it could be granted without reducing their share. How to do this was the problem and the only way out of it was to reduce the share of the Untouchables. To reduce the share meant to reduce the population. This is one reason why the Mahomedans did not help the Untouchables in this struggle for numbers. The second reason why the Mahomedans did not help the Untouchables was the fear of exposure by the Hindus. Although Islam is the one religion which can transcend race and colour and unite diverse people into a compact brotherhood, yet Islam in India has not succeeded in uprooting caste from among the Indian Musalmans. Caste feeling among the Musalmans is not so verulent as it is among the Hindus. But the fact is that, it exists. That this caste feeling among the Musalmans leads to social gradation, a feature of the Muslim Community in India, has been noticed by all those who have had an occasion to study the subject. The Census Commissioner for Bengal in his report says: (*The quotation is not recorded in the MS.—Ed.*)

These facts are quite well known to the Hindus and they were quite prepared to cite them against the Muslims if the Muslims went too far in helping the Untouchables in this struggle for numbers and thereby bringing about a diminution of the seats for Caste Hindus in the Legislature. The Mahomedans knew their own weak points. They did not wish to give an excuse to the Hindus to rake up the social divisions among the Musalmans and thought that their interest would be best served by their taking a non-partisan attitude.

The Untouchables were thus left to themselves to fight for their numbers. But even they could not be depended upon to muster for the cause. When the Hindus found that they could not succeed in reducing the number of the Untouchables, they tried to mislead the Untouchables. They began telling the Untouchables that Government was making a list of the Untouchable communities and it was wrong to have a community's name entered in such list because it would perpetuate untouchability. Acting on this advice, many communities who were actually an Untouchable community would send a petition stating that it was not classed as Untouchable and should not be listed. Much effort had to be made to induce such communities to withdraw such petitions by informing them that the real purpose was to estimate their numbers in order to fix their seats in the Legislature.

Fortunately for all, this struggle is now over and the controversy is closed and the population of the Untouchables can never be open to dispute. The Untouchables are now statutorily defined. Who are Untouchables is laid down by a schedule to the Government of India Act 1935 which describes them as Scheduled Castes. But the struggle

reveals a trait of Hindu character. If the Untouchables make no noise, the Hindu feels no shame for their condition and is quite indifferent as to their numbers. Whether they are thousands or millions of them, he does not care to bother. But if the Untouchables rise and ask for recognition, he is prepared to deny their existence, repudiate his responsibility and refuse to share his power without feeling any compunction or remorse.

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CHAPTER 21

THE REVOLT OF THE UNTOUCHABLES

The movement of the Untouchables against the injustice of the Hindu Social Order has a long history behind it, especially in Maharashtra. This history falls into two stages. The first stage was marked by petitions and protests. The second stage is marked by open revolt in the form of direct action against the Hindu Established Order. This change of attitude was due to two circumstances. In the first place it was due to the realization that the petitions and protests had failed to move the Hindus. In the second place Governments had declared that all public utilities and public institutions are open to all citizens including the Untouchables. The right to wear any kind of clothes or ornaments are some of the rights which the British Indian Law gives to the Untouchables along with the rest. To these were added the rights to the use of public utilities and institutions, such as wells, schools, buses, trams, Railways, Public offices, etc., were now put beyond the pale of doubt. But owing to the opposition of the Hindus the Untouchables cannot make any use of them. It is to meet the situation, the Untouchables decided to change the methods and to direct action to redress their wrongs. This change took place about 1920.

I

Of such attempts at direct action only few can be mentioned so as to give an idea of the revolt of the Untouchables against the Hindu Social Order. Of the attempts made to vindicate the right to use the public roads, it is enough to mention one, most noteworthy attempt in this behalf was that made by the Untouchables of Travencore State in 1924 to obtain the use of the roads which skirted the temple at Vaikom. These roads were public roads maintained by the State for the use of everybody, but on account of their proximity to the temple building, the Untouchables were not allowed to use certain sections which skirted the temple too closely. Ultimately as a result of Satyagraha, the temple compound was enlarged and the road was realigned so that there the Untouchables even if they used it were no longer within the polluting distance of the temple.

II

Of the attempts made to vindicate the right to take water from the public watering places, it is enough to mention the case of the Chawdar Tank.

This Chawdar Tank is situated in the town of Mahad in the Kolaba District of Bombay Presidency. The tank is a vast expanse of water mainly fed by the rains and a few natural springs. The sides of the tank are embanked. Around the tank there are a narrow strip of land on all sides belonging to private individuals. Beyond this strip of land lies the Municipal road which surrounds the tank and beyond the road are houses owned by the Untouchables. The tank lies in the heart of the Hindu quarters and is surrounded by Hindu residence.

This tank is an old one and no one knows who built it or when it was built. But in 1869 when a Municipality was established by the Government for the town of Mahad, it was handed over to the Municipality by the Government and has since then been treated as a Municipal i.e., public tank.

Mahad is a business centre. It is also the headquarters of a taluk. The Untouchables either for purposes of doing their shopping and also for the purpose of their duty as village servants had to come to Mahad to deliver to the taluka officer either the correspondence sent by village officials or to pay Government revenue collected by village officials. The Chawdar tank was the only public tank from which an outsider could get water. But the Untouchables were not allowed to take water from this tank. The only source of water for the Untouchables was the well in the Untouchables quarters in the town of Mahad. This well was at some distance from the centre of the town. It was quite choked on account of its neglect by the Municipality.

The Untouchables therefore were suffering a great hardship in the matter of water. This continued till matters got going. In 1923 the Legislative Council of Bombay passed a resolution to the effect that the Untouchable classes be allowed to use all public watering places, wells, Dharmashalas which are built and maintained out of public funds, or are administered by bodies appointed by Government or created by Statutes as well as public schools, courts, offices and dispensaries. Government accepted the resolution and issued the following orders:

“In pursuance of the foregoing Council Resolution the Government of Bombay are pleased to direct that all heads of offices should give effect to the resolution so far as it related to the public places, institutions belonging to and maintained by

Government. The Collectors should be requested to advise the local bodies in their jurisdiction to consider the desirability of accepting the recommendations made in the Resolution."

In accordance with this order of the Government, the Collector of Kolaba forwarded a copy thereof to the Mahad Municipality for consideration. The Mahad Municipality passed a resolution on 5th January 1924 to the effect that the Municipality had no objection to allow the Untouchables to use the tank. Soon after this resolution was passed there was held at Mahad, a Conference of Untouchables of the Kolaba District over which I presided. The Conference met for two days, the 18th and 20th March 1927. This was the first Conference of the Untouchables held in the Kolaba District. Over 2,500 Untouchables attended the Conference and there was great enthusiasm. On the first day of the Conference, I delivered my presidential address in which I exhorted them to fight for their rights, give up their dirty and vicious habits and rise to full manhood. Thereafter high caste Hindus who were present and, who held out that they were the friends of the Untouchables, addressed the gathering and told the Untouchables to be bold and exercise the right that is given to them by law. With this, the proceedings of the first day were closed. The subject committee met at night to consider the resolution to be moved in open conference the next day. In the Subject Committee, attention was drawn by some people to the fact that there was great difficulty at Mahad for the Untouchables in the matter of obtaining water for drinking purposes, and that this difficulty was felt particularly by the members of the Reception Committee of the Conference which had to spend Rs. 15 an enormous amount to employ caste Hindus to dole out water in sufficient quantity to satisfy the needs of those who had attended the Conference.

Next day on the 20th, the Conference met about 9 in the morning. The resolutions agreed upon in the Subject Committee were moved and passed by the Conference. It took about three hours in all. In the end one of my co-workers in moving a vote of thanks to the President and others who had helped to make the Conference a success referred to the question of the difficulty in the matter of getting water and exhorted the Untouchables present to go to the tank and exercise their right to take water from Chawdar tank, especially as the Municipality had by resolution declared it open to the Untouchables and that their Hindu friends were ready to help them. The Hindus who had exhorted them to be bold and begin fearlessly to exercise their rights, instantly realised that this was a bombshell and immediately ran away. But the effect upon the Untouchables was very different. They were electrified

by this call to arms. To a man they rose and the body of 2,500 Untouchables led by me and my co-workers marched in a procession through the main streets. The news spread like wild fire while crowds thronged the streets to witness it.

The Hindu inhabitants of the town saw the scene. They were taken by storm. They stood aghast witnessing this scene which they had never seen before. For the moment they seemed to be stunned and paralyzed. The procession in form of fours marched past and went to the Chawdar tank, and the Untouchables for the first time drank the water. Soon the Hindus, realizing what had happened, went into frenzy and committed all sorts of atrocities upon the Untouchables who had dared to pollute the water. These atrocities will be narrated in their proper places.

The assault committed by the Hindus on the Untouchables at Mahad when they entered the Chawdar tank was undoubtedly a challenge to the Untouchables. The Untouchables on the other hand were determined not to be satisfied with merely exercising their right but to see it established. They naturally felt that they must take up the challenge thrown at them by the Hindus. Accordingly a second Conference of the Untouchables was called. The Untouchables were told that they must come fully prepared for all eventualities for Satyagraha (i.e., for civil disobedience and even for going to gaol).

The Hindus, when they came to know of this, applied to the District Magistrate of Kolaba for issuing an order under Section 144 of the Criminal Procedure Code against the Untouchables, prohibiting them from entering the Chawdar Tank and polluting its water. The District Magistrate refused and said that the tank was a public tank open to all citizens and he could not by law prevent the Untouchables from taking water therefrom. He advised them to go to a Court of law and get their right of exclusive user established. The dates fixed for the Conference were 25th, 26th, 27th of December 1927. As these dates drew near, and as they heard that the Untouchables were quite in earnest, and knowing that the District Magistrate had refused to come to their rescue, they did the only thing that was open to them, namely, to get their right to exclude the Untouchables from a public tank established by law. Accordingly, nine Hindus drawn from different castes joined as Plaintiffs in filing on 12th December 1927 a suit No. 405 of 1927 as representatives of the Hindus, in the Court of Sub-Judge of Mahad. I and four others were made defendants as representing the Untouchables. The suit was for obtaining a declaration 'that the said Chawdar tank is of the nature of private property of the Touchable classes only and that the Untouchable classes have no right to go to

that tank nor take water therefrom and also for obtaining a perpetual injunction restraining the defendants from doing any of those acts.' On the same day on which the suit was filed, the plaintiffs applied to the Court for a temporary injunction against the defendants restraining them from going to the tank and taking water therefrom pending the decision of the suit. The judge holding that it was a fit case, granted a temporary injunction against me and the other defendants on the 14th December 1927.

The temporary injunction issued by the Judge was sent to Bombay and was served upon me two or three days before the Conferences actually met. There was no time to have consultation and no time to postpone the Conference either. I decided to leave the matter to the Conference to decide.

The Conference was called with the specific object of establishing the right to take water from the tank which was challenged by the Hindus last time. The District Magistrate had left the way open. But here was a Judge who had issued an order banning such action. Naturally, when the Conference met, the first question it was called on to consider was whether to disobey the order of injunction issued by the Court and enter the tank. The District Magistrate who had been favourable to the Untouchables now took a different view. He explained his view very clearly to the Conference which he came and addressed personally. He said that if the Civil Court had not issued an injunction, he would have helped the Untouchables in their attempt to enter the tank as against the caste Hindus, but that as the Sub-Judge had issued his order, his position had become different. He could not allow the Untouchables to go to the tank because such an act would amount indirectly to help them to break the order of His Majesty's Court with impunity. He therefore felt bound to issue an order prohibiting the Untouchables, should they insist on going to the tank notwithstanding the injunction—not because he wanted to favour the Hindus but because he was bound to maintain the dignity of the Civil Court by seeing to it that its order was respected.

The Conference took what the Collector had said into its consideration and also the reaction of the Hindus to the attempt of the Untouchables going to the tank in defiance of the order of the Court which they had obtained. In the end, the Conference came to the conclusion that it was better and safer for them to follow law and see how far it helped them to secure their rights. It was therefore decided to suspend civil disobedience of the order of the Judge till the final decision of the suit.

The occasion for civil disobedience never came because the Untouchables won the suit and the Hindus lost it. One of the principal reasons which led the Untouchables to follow law and suspend civil disobedience was that they wanted to have a judicial pronouncement on the issue whether the custom of untouchability can be recognized by the Court of law as valid. The rule of law is that a custom to be valid must be immemorial, must be certain and must not be opposed to morality or public policy. The Untouchables' view is that it is a custom which is opposed to morality and public policy. But it is no use unless it is declared to be so by a judicial tribunal. Such a decision declaring the invalidity of the custom of untouchability would be of great value to the Untouchables in their fight for civil rights because it would seem illegal to import untouchability in civic matters. The victory of the Untouchables in the Chawdar tank dispute was very great. But it was disappointing in one way that the Bombay High Court did not decide the issue whether the custom of untouchability was valid or not. They decided the case against the Hindus on the ground that they failed to prove that the custom alleged by them in respect of the tank was not immemorial. They held that the custom itself was not proved. The tank became open to the Untouchables. But the Untouchables cannot be said to have gained their point. The main issue was whether the custom of untouchability was a legal custom. Unfortunately the High Court avoided to give judgment on that issue. The Untouchables had to continue their struggle.

IV

The next item in this history of direct action which is worthy of mention relates to the entry in the famous Hindu Temple at Nasik known as the Kala Ram Temple. These are instances of direct action aimed to achieve specific objects. The movement includes two cases of direct action aimed at the demolition of the Hindu Social Order by applying dynamite to its very foundations. One is the burning of the Manu Smriti and the second is the mass refusal by the Untouchables to lift the dead catties belonging to the Hindus and to skin them.

The Burning of Manu Smriti took place at Mahad on the 20th of December 1927. The function was a part of the campaign for establishing the right to take water from the Chawdar tank. The Burning of the Manu Smriti took place publicly and openly in a Conference of Untouchables. Before burning the Manu Smriti, the Conference passed certain resolutions. As these resolutions form a land

mark in the history of the movement of the Untouchables they are given below:

“Resolution 1.—*Declaration of the rights of a Hindu.*

This conference is firmly of opinion that the present deplorable condition of the Hindu Community is only an illustration of how a community becomes fallen by reason of its tolerating social injustice, following erroneous religious beliefs and supporting economic wrongs. The fall of the Hindu community is due entirely to the fact that the masses have not cared to know what are the birth-rights of a human being and much less have they cared to see that they are recognised and not set at naught the base acts and deeds of selfish people. To know what are these birth-rights of man and to endeavour to see that they are not trampled upon in the struggle between man and man and class and class, are the sacred duties of every person. In order that every Hindu may not know what are in the opinion of the Conference the inalienable birthrights of man, this Conference resolves to issue the following proclamation containing a list thereof—

- (i) All Hindus have the same social status from birth. This equality of social status is an attribute which they retain till death. There may be distinctions and differences between them in point of their functions in society. But that must not cause differences in their social status. This Conference is therefore opposed to any action—whether in the political, economic or social field of life—which would result in producing a difference in social status.
- (ii) The ultimate aim of all political, economic or social changes should be to maintain intact the equal status of all Hindus. That being the view of the Conference, the Conference strongly disapproves of all literature of the Hindus, whether ancient or modern, which supports in any way the pernicious doctrine of inequality underlying the Hindu social system.
- (iii) All power is derived from the people. The privileges claimed by any class or individual have no validity if they are not granted by the people. This Conference therefore repudiates the social and religious privileges enjoyed by some classes of Hindus in as much as they are founded upon the Vedas, Smritis and Puranas and not upon the free consent of the people.
- (iv) Every person is entitled as his birth-right to liberty of action and speech. This liberty could be limited only for the purpose of saving the right of another person to his liberty and for no other purposes. Further this limitation can be imposed only with the sanction of the people and not by any injunction of

the Hindu Shastras. This Conference therefore repudiates all restraints on religious, social and economic freedom imposed upon the thought and action of the Hindus in as much as they are imposed by the Shastras and not by the people.

- (v) Hindus can be deprived of their rights other than their birth-rights only by law. What is not prohibited by law, a Hindu must be free to do and what is not obligatory by law, a Hindu must not be forced to do. For this reason there must be no obstruction to persons using public roads, public wells and tanks, public temples and all other public utilities. Persons, causing obstruction in matters where law has laid down no prohibition, are in the opinion of this Conference enemies of the public.
- (vi) Law is not a command of an individual or a body of individuals. Law is the peoples prescription for change. That being so, law to be respected, must be made with the consent of all and must have equal application to all without any distinction. Social divisions if they are necessary for the ends of society can only be made on the basis of worth and not of birth. This Conference repudiates the Hindu caste-system firstly as being detrimental to society, secondly as being based on birth and thirdly as being without any sanction from the people."

The Second Resolution passed by the Conference was worked as follows:

"Resolution No. 2.—Taking into consideration the fact that the laws which are proclaimed in the name of Manu, the Hindu lawgiver, and which are contained in the Manu Smriti and which are recognised as the Code for the Hindus are insulting to persons of low caste, are calculated to deprive them of the rights of a human being and crush their personality. Comparing them in the light of the rights of men recognised all over the civilized world, this conference is of opinion that this Manu Smriti is not entitled to any respect and is undeserving of being called a sacred book to show its deep and profound contempt for it, the Conference resolves to burn a copy thereof, at the end of the proceedings, as a protest against the system of social inequality it embodies in the guise of religion."

A cursory reading of these resolutions will show the line which the Conference adopted. Although the Conference met to redress a particular wrong, it showed that it was not going to be satisfied with the redress of petty wrongs. The Conference felt that the time had arrived for laying down the goal of the Untouchables. The goal laid down by it was far-reaching. The Conference proclaimed that the Untouchables wanted a complete overhauling of the Hindu social

system. It proclaimed that this reconstruction must not be on the old foundation of Shastras. It proclaimed that whatever character of the new foundations, they must be consonant with justice and equity between Hindu and Hindu and to leave no doubt that in the matter of this reconstruction, they would not consent to the Hindu shastras being drawn upon. The Conference not only repudiated them but actually went to the length of burning them to ashes.

It was an echo of Voltare's denunciation of the Catholic Church of his time. For the first time a cry was raised against the Hindu Social Order "*Ecraze la Infame*". It is also clear that these resolutions were absolutely revolutionary in character.

The rock on which the Hindu Social Order has been built is the Manu Smriti. It is a part of the Hindu Scriptures and is therefore sacred to all Hindus. Being sacred it is infallible. Every Hindu believes in its sanctity and obeys its injunctions. Manu not only upholds caste and untouchability but gives them a legal sanction. The burning of the Manu Smriti was a deed of great daring. It was an attack on the very citadel of Hinduism. The Manu Smriti embodied the spirit of inequality which is at the base of Hindu life and thought just as the Bastille was the embodiment of the spirit of the Ancient regime in France. The burning of the Manu Smriti by the Untouchables at Mahad in 1927 is an event which has the same significance and importance in the history of the emancipation of the Untouchables which the Fall of Bastille had in the liberation of the masses in France and Europe.

The second instance of direct action against the frame of the Hindu Social Order itself is the refusal to skin the dead animals belonging to the Hindus and carrying them.

One often hears the Untouchables being condemned for having brought upon themselves the curse of untouchability. The main ground on which this accusation rests is the adoption by the Untouchables as their occupation, the carrying of the dead animals of the Hindus and skinning them and eating the carrion.

Even so great a friend of the downtrodden as the Abe. Dubois writing about the *Pariahs* of the Madras Presidency said:

"What chiefly disgusts other natives is the revolting nature of the food which the Pariahs eat. Attracted by the smell, they will collect in crowds round any carrion and contend for the spoil with the dogs, jackals, crows and other carnivorous animals. They then divide the semi-putrid flesh and carry it away to their huts, where they devour it, often without rice or anything else to disguise the flavour. That the animal should have died of disease is of no

consequence to them, and they sometimes secretly poison cows or buffaloes so that they may subsequently feast on the foul, putrifying remains. The carcasses of animal's that die in a village belong by right to the *thoti* or scavenger, who sells the flesh at a very low price to the other Pariahs in the neighbourhood. When it is impossible to consume in one day the stock of meat thus obtained, they dry the remainder in the sun, and keep it in their huts until they run short of their food. There are few Pariah houses where one does not see festoons of these horrible fragments hanging up; and though the Pariahs themselves do not seem to be affected by the smell, travellers passing near their village quickly perceive it and can tell at once the caste of the people living there....

Is it to be wondered at, after what has been just stated that other castes should hold this in abhorrence? Can they be blamed for refusing to hold any communication with such savages, or for obliging them to keep themselves aloof and to live in the separate hamlets?”

It is true that this occupation has created a feeling of repugnance against the Untouchables in the mind of the Hindus. But the Abe or those who adopt his reasoning forget to raise two very important questions. First is why do the Untouchables eat carrion? Will the Hindus allow the Untouchables the freedom to give up skinning and carrying their dead animals? The answer to the question why the Untouchables eat carrion has already been given in a previous chapters.

No one would prefer carrion to flesh meat if it is available. If the Untouchables have been living on carrion it is not because they like it. They eat carrion, because there is nothing else on which they can live. This will be clear to anyone who realizes that on account of untouchability they have no way left to earn a living. All professions have been closed to them. There is no land on the produce of which they can live. There is no trade which they can engage in. Their main stay is therefore the food they collect from the villagers and the carrion which is left to them. Without carrion they would literally die of starvation. It is therefore clear that the fault does not lie with the Untouchables. If the Untouchables eat carrion it is because the Hindus have left no honourable way of earning a living open to them.

To the second question the answer is equally clear. If the Untouchables skin and carry the dead animals of the Hindus, it is because the Untouchables have no choice. They are forced to do it. They would be penalized if they refused to do it. The penalty is legal. In some provinces the refusal to do this dirty work is a breach of contract. In other provinces it is a criminal offence involving fines. In

Provinces like Bombay the Untouchables are village servants. In their capacity as village servants they have to serve the Government as well as the Hindu public. In return for this service they are given lands which they cultivate and on the produce of which they maintain themselves. One of the duties of the Untouchables is to skin and carry the dead animals of the Hindus in the villages. If the Untouchables refuse to perform these duties to the Hindu public, the land which they live on is liable to be confiscated. They have to choose between doing the dirty work or facing starvation.

In Provinces like the United Provinces, refusal to do scavenging by sweeper is made an offence. The United Provinces Municipalities Act II of 1916 contains the following provisions:

Section 201(1).—"Should a sweeper who has a customary right to do the house-scavenging of a house of building (hereinafter called the customary sweeper) fail to perform such scavenging in a proper way, the occupier of the house or building or the board may complain to a Magistrate."

(2) "The Magistrate receiving such complaint shall hold an inquiry and should it appear to him that the customary sweeper has failed to perform the house-scavenging of the house or building in a proper way or at a reasonable intervals, he may impose upon such a sweeper a fine which may extend to ten rupees, and upon a second or any later conviction in regard to the same house or building, may also direct, the right of the customary sweeper to do the house scavenging the house or building to be forfeited and thereupon such right shall be forfeited."

Exactly similar provision is to be found in Section 165 of the Punjab Municipalities Act of 1911. The Punjab Act is an advance over the U. P. Act, in as much as it provides for punishment of a sweeper who is not customary sweeper but a contract-sweeper. The Punjab Act adds:

"(3) Should any sweeper (other than a customary sweeper), who is under a contract to do house-scavenging of a house or a building, discontinue to do such house-scavenging without fourteen days' notice to his employer or without reasonable cause, he shall on conviction be punishable with a fine which may extend to Rs. ten."

"227. Every order of forfeiture under Section 165 shall be subject to an appeal to the next superior court, but shall not be otherwise open to appeal."

People may be shocked to read that there exists legal provision which sanctions forced labour. Beyond doubt, this is slavery. The difference between slavery and free labour lies in this. Under slavery

a breach of contract of service is an offence which is punishable with fine or imprisonment. Under free labour a breach of contract of service is only a civil wrong for which the labourer is liable only for damages. Judged in the light of this criterion, scavenging is a legal obligation imposed upon the Untouchables which they cannot escape.

Given these conditions, how can the Untouchables be accused of doing these dirty work voluntarily?

The question whether the Untouchables can be accused of having invited the curse of untouchability upon themselves for doing the dirty work of the Hindus is really beside the point. What is important to note is that the Conference of the Untouchables which met in Mahad resolved that no Untouchable shall skin the dead animals of the Hindus, shall carry it or eat the carrion. The object of these resolutions was two-fold. The one object was to foster among the Untouchables self-respect and self-esteem. This was a minor object. The major object was to strike a blow at the Hindu Social Order. The Hindu Social Order is based upon a division of labour which reserves for the Hindus clean and respectable jobs and assigns to the Untouchables dirty and mean jobs and thereby clothes the Hindus with dignity and heaps ignominy upon the Untouchables. The resolution was a revolt against this part of the Hindu Social Order. It aimed at making the Hindus do their dirty jobs themselves.

This is a brief summery of the history of the revolt of the Untouchables against the established order of the Hindu. It originated in Bombay. But it has spread to all parts of India.

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CHAPTER 22

HELD AT BAY

I. Hindu reaction to the revolt of the untouchables. II. Lawless means for ruthless repression. III. Untouchables, a weak force. IV. Officers who are shameless partisans. V. A weapon which is made blunt.

I

The story of the revolt of the Untouchables tells how the old is ringing out and the new is ringing in. What is the reaction of the Hindus to this revolt? No one who knows anything about it can have any hesitation in answering this question. For it is clear that his attitude is one of opposition. It might be difficult to understand why the Hindus should oppose. But there can be no manner of doubt that he is opposed.

The reasons why the Hindus are opposed to this fight for rights of the untouchables for their rights will not be difficult to understand if certain important features of the relationship that is now subsisting between the Caste Hindus and the Untouchables are borne in mind.

The first and foremost consideration that must never be forgotten is the sharp division between the Touchables and the Untouchables. Every village has two parts, the quarters of the Touchables and quarters of the Untouchables. Geographically the two are separate. There is always an appreciable distance between the two. At any rate there is no contiguity or proximity between them. The Untouchables have a distinct name for their quarters such as Maharwada, Mangwada, Chamrotti, Khaykana, etc. *De Jure* for the purposes of revenue administration or postal communication the quarters of the Untouchables are included in the village. But *de facto* it is separate from the village. When the Hindu resident of a village speaks of the village he means to include in it only the Caste Hindu residents and the locality occupied by them. Similarly when the Untouchable speaks of the village he means to exclude from it the Untouchables and

the quarters they occupy. Thus, in every village the Touchables and Untouchables form two separate groups. There is nothing common between them. They do not constitute a folk. This is the first thing which must be noted.

The second thing to note with regard to this division of the village into two groups is that these groups are real corporations which, no one included within them, can escape. As has been well said the American or European belongs to groups of various kinds, but he "joins" most of them. He of course is born into a family, but he does not stay in it all his life unless he pleases. He may choose his own occupation, residence, wife, political party, and is responsible, generally speaking, for no one's acts but his own. He is an "individual" in a much fuller sense because all his relationships are settled by himself for himself. The Touchables or Untouchables are in no sense individuals because all or nearly all of their relationships are fixed when they are born in a certain group. Their occupation, their dwelling, their gods and their politics are all determined for them by the group to which they belong. When the Touchables and Untouchables meet, they meet not as man to man, individual to individual, but as members of groups or as nationals of two different states.

This fact has an important effect upon the mutual relationship between the Touchables and Untouchables in a village. The relationship resembles the relationship between different clans in primitive society. In primitive society the member of the clan has a claim, but the stranger has no standing. He may be treated kindly, as a guest, but he cannot demand "justice" at the hands of any clan but his own. The dealing of clan with clan is a matter of war or negotiations, not of law; and the clanless man is an outlaw, in fact as well as in name, and lawlessness against the stranger is therefore lawful. The Untouchable, not being a member of the group of Touchables, is a stranger. He is not a kindred. He is an outlaw. He cannot claim justice nor any rights which the Touchable is bound to respect.

The third thing to note is that the relationship between the two, the Touchables and the Untouchables, has been fixed. It has become a matter of status. This status has unmistakably given the Untouchables a position of inferiority *vis-a-vis* the Touchables. This inferiority is embodied in a code of social conduct to which the Untouchables must conform. What kind of code it is, has already been stated. The Untouchable is not willing to conform to that code. He is not prepared to render unto Caesar what is claimed by Caesar. The Untouchable wants to have his relationship with the Touchables by contract. The

Touchable wants the Untouchables to live in accordance with the rules of status and not rise above it. Thus, the two halves of the village, the Touchables and the Untouchables, are now struggling for resettling what the Touchable thinks is settled for ever. The conflict is centered round one question—What is to be the basis of this relationship? Shall it be contract or shall it be status?

That is the question which is agitating the Hindus. The Hindu does not look at the revolt of the Untouchables as an attempt on the part of the latter for social and economic improvement of their people. He looks at it as an attempt directed against him, an attempt to equalize. That is why he is opposed.

II

The opposition of the Hindus is a determined opposition bent on stamping out the revolt at any cost. In this, they are prepared to use any means and to go to any length. This revolt of the Untouchables has been met with equally determined attack on the part of the Hindus. How cruel the Hindus can be in suppressing this revolt of the Untouchables will appear from one or two cases.

On the occasion of the entry of the Untouchables in the Chawdar Tank at Mahad, in the exercise of their right to take water from a public place, the assault made upon the Untouchables who had attended the Conference and taken part in the march upon the Tank has been described in the Bombay Chronicle in the following terms:

“The procession was a most peaceful one and everything passed off quietly. But after about two hours some evil minded leaders of the town raised a false rumour that the depressed classes were planning to enter the temple of Vireshwar, whereupon a large crowd of riffraff had collected all armed with bamboo sticks. The crowd soon became aggressive and the whole town at once became a surging mass of rowdies, who seemed to be out for the blood of the depressed classes.

The depressed classes were busy in taking their meal before dispersing to their village. When a large part of them had left the town, the rowdies entered the kitchen where the depressed classes were taking their food. There would have been a regular battle between the two forces, but the depressed classes were held back by their leaders, and thus a far more serious riot was averted. The rowdies, finding no occasion for provocation, began patrolling the main street and assaulting the members of the depressed classes who, in stray batches, were passing along on their way to their

villages, and committed trespass in the houses of several depressed class people and gravely assaulted them. In all, the number of wounded among the depressed classes is supposed to be as large as 20. In this, the attitude of the Depressed classes was as commendable as the attitude of many of the upper classes was unworthy. The depressed classes assembled vastly outnumbered the upper classes. But as the object of their leaders was to do everything in a non-violent and absolutely constitutional manner, they set their faces against any aggression on the part of the depressed classes. It speaks a great deal in favour of the depressed classes, that, although the provocation given to them was immense, they kept their self control. The Mahad Conference has shown that the upper classes are not willing to allow the depressed classes to enjoy such elementary civic rights as taking water from public water sources.

The most reprehensible part of the conduct of the upper caste Hindus in Mahad and Kolaba district was that, messages were sent immediately to the different villages asking the upper class people there to punish the delegates of the Conference as soon as they returned to their respective villages. In obedience to this mandate, assaults were committed on a number of Mahars returning from the Conference either before or after they reached their villages, where the depressed classes have the disadvantage of being overwhelmingly outnumbered by the upper caste Hindus. The leaders of the Depressed Classes have appealed to the authorities for protection and the District officials, including the District Superintendent of Police are making inquiries on the spot. It must, however be stated that, if the Resident Magistrate had not allowed two precious hours to pass without doing anything, the riot would have probably been averted."

The assault committed on the Untouchables as a result of the Kalaram Temple Satyagraha was no less severe.

The third instance is more recent and occurred in the year 1935 in the village of Kavitha in Dholka Taluka of the Ahmedabad District of the Bombay Presidency.

The Bombay Government having issued orders requiring the admission of the children of the Untouchables in public schools, it is reported that¹:

"On August 8th, 1935, the Untouchables of the village Kavitha took four of their children to be admitted in the village school. Many caste Hindus from the village had gathered near the school to

¹ This account of the incident is a translation of the Statement sent to me by the Secretary of the Nava Yuga Mandal of Dholka.

witness this. This occasion for admission passed off quietly and nothing untoward happened."

The next day however the caste Hindus of the village withdrew their children from the school, as they did not like their children sitting with those of the Untouchables and getting themselves polluted.

Some time thereafter, an Untouchable from the village was assaulted by a Brahmin. On August 12th, the male members of the Untouchables of the village had come to Dholka to file a criminal complaint against the Brahmin in the Court of the Magistrate. Coming to know that the adult members of the Untouchables were absent, the Hindus of the village invaded the quarters of the Untouchables. They were armed with sticks, spears and swords. Among the invaders were caste Hindu women. They started attacking the old men and women of the Untouchables. Some of these victims fled to the jungles, some shut themselves up. These invaders directed their vehemance against those Untouchables who were suspected of having taken a lead in the matter of the admission of their children in the village school. They broke open their doors and not finding them in, they broke the tiles and rafters of the roofs over their houses.

Terror-stricken, these Untouchable men and women who are assaulted and beaten were anxious about the safety of those of their elders who had gone to Dholka and who were expected back that night. The caste Hindus knowing that the leaders of the Untouchables who had gone to Dholka would be returning sometime in the night, went out of the village fully armed to assault them and had concealed themselves behind the bushes and shrubs on the way to the village. Having come to know of this, an old Untouchable woman crept out of the village in the dark, met the leaders who were returning and informed them that armed gangs of caste Hindus were hiding themselves to waylay them and that therefore they should not come into the village. They refused to listen, fearing that the caste Hindus might do greater mischief in their absence. At the same time they were afraid that if they did enter they might be assaulted. They therefore decided to wait outside the village in the fields till after midnight. In the meantime, the gang of caste Hindus who were in ambush waited and waited and finally gave up the game and retired. The leaders of the Untouchables entered the village after about 3 a.m. in the night. If they had come earlier and met the murderous gang they would probably have been done to death. On seeing the harm done to person and property, they left the village for Ahmedabad before day break and informed the Secretary of the Harijan Seva Sangh, a body organized by Gandhi to look after the welfare of the Untouchables. But the

Secretary was helpless. Not only did the caste Hindus use physical violence, but they conspired to make the life of the Untouchables intolerable. They refused to engage them as labourers; they refused to sell them foodstuff. They refused to give them facilities for grazing their cattle and they committed stray assaults on Untouchable men and women. Not only this, but the caste Hindus in their frenzy poured kerosene oil in the well from which the Untouchables had to get their supply of drinking water. This they did for days together. The result was that the Untouchables of the village had no water. When things reached this stage, the Untouchables thought of filing a criminal complaint before a Magistrate which they did on 17th October, making some of the caste Hindus as the accused.

The strange part of the case is the part played by Gandhi and his Lieutenant, Sardar Vallabhbhai Patel. With all the knowledge of tyranny and oppression practised by the caste Hindus of Kavitha against the Untouchables, all that Mr. Gandhi felt like doing, was to advise the Untouchables to leave the village. He did not even suggest that the miscreants should be hauled up before a Court of Law. His henchman, Mr. Vallabhbhai Patel, played a part which was still more strange. He had gone to Kavitha to persuade the caste Hindus not to molest the Untouchables. But they did not even give him a hearing. Yet this very man was opposed to the Untouchables hauling them up in a court of law and getting them punished. The Untouchables filed the complaint notwithstanding his opposition. But he ultimately forced them to withdraw the complaint against the caste Hindus making some kind of a show of an undertaking not to molest, an undertaking which the Untouchables can never enforce. The result was that the Untouchables suffered and their tyrants escaped with the aid of Mr. Gandhi's friend, Mr. Vallabhbhai Patel.

This systematic suppression of the Untouchables is resorted to by the caste Hindus even in small matters such as the wearing of better clothes or the wearing of jewellery. Two such instances may be cited.

III

To whom the victory will go in the end is an interesting speculation, and those who are leading the movement of the Untouchables, are carefully watching the situation. Whatever the ultimate result, one thing is plain, that in this struggle, the odds are heavily against the Untouchables.

In this conflict with the Hindus, the Untouchables are always at bay. As against caste lawlessness, the Untouchables are always helpless. The

question is, why are the Untouchables always beaten, why are they always at bay? The question is an important question and needs to be answered.

The reasons why the Untouchables are at bay in this struggle with the caste Hindus are quite obvious. The first reason is that the two groups are unequally matched so far as numbers are concerned. In no village do the Untouchables constitute a considerable body of people as compared with the Caste Hindus. Most often they are composed of a few families and their number is very small, too small to give them any power to repel an attack of the caste Hindus. Although the Untouchables number 50 millions, which appears in lump to be a formidable figure, in fact they are scattered all over the villages in India so that in each village they form a small minority pitted against a great majority of the caste Hindus. Strategically speaking the forces are so badly distributed that they cannot but be overwhelmed by the caste Hindus.

The Mahomedans in the village of some provinces are in the same position as the Untouchables so far as numbers are concerned. They are also scattered throughout the villages and in some villages the population of the Mahomedans is much smaller than the population of the Untouchables. Yet the Mahomedans are not subjected by the Hindus to the disabilities and the indignities to which the Untouchables are subjected. This is rather strange, because there is as deep an antagonism between the Hindus and the Muslims as there is between the Hindus and the Untouchables. This difference in treatment is due to an advantage which the Muslims have but which the Untouchables do not have.

It was a rule in all ancient societies that a stranger was sacred. His person must be guarded from insult and injury. The Romans had their *dii hospitales* and the duties towards a stranger were even more stringent than those towards a relative. "He who has a spark of caution in him," says Plato "will do his best to pass this life without sinning against the stranger." It is strange that so much sanctity should have been attached to the person of a stranger. There is no doubt that this sanctity of the stranger's person was not due to pure kindness. The whole conduct of group life is opposed to a general spirit of consideration for those who are outside the group. The real reason why the stranger was treated as sacred and his person inviolate was because he belonged to a hostile group, and any injury to him was sure to lead to bloodshed. It was the fear of a blood feud which was the cause of this attitude towards the stranger.

The same thing applies to the Mahomedan in a village. In the eyes of the Hindus he is a stranger. But the Hindus dare not molest him because they know that any injury to him will be avenged by Muslims in a blood feud with the Hindus. The communal riots between the Hindus and Mahomedans are really blood feuds and they are caused by some injury done to a Mahomedan or to some Mahomedan interests. It is this fear of a blood feud which makes the life of a Muslim in a Hindu village safe.

There is nobody to avenge an injury done to an Untouchable. There is no fear of a blood feud. The Hindus therefore can commit any wrong against the Untouchables with impunity. This is because the Mahomedans are a solid mass, held together with a deep consciousness of kind, ready to act as one man to vindicate any wrong to the community or to a member thereof. The Untouchables, on the other hand, are a disunited body, they are infested with the caste system in which they believe as much as does the caste Hindu. This caste system among the Untouchables has given rise to mutual rivalry and jealousy and it has made common action impossible. The Mahomedans have also a caste system among themselves. Like the Untouchables they are also scattered all over the country. But their religion is a strong unifying force which gives them the feeling that, if they are parts, they are parts of one Muslim Community. There is nothing to instil such a feeling among the Untouchables. In the absence of any unifying force, the Untouchables are just fragments with no cement to bind them and their numbers are therefore of no advantage to them.

A large majority of the Untouchables in the villages are either village servants or landless labourers. As village servants, they depend upon the Hindus for their maintenance, and go from door to door every day and collect bread or cooked food from the Hindus in return for certain customary services rendered by them to the Hindus. This is a part of their remuneration. A part also of their remuneration consists in quantities of grain given to them by the Hindus at the harvest time. Whenever there is a disagreement between the Hindus and the Untouchables, the first thing the Hindus do is to stop giving bread, stop the payment of the harvest share and stop employing the Untouchables on any job. The result is that the struggling hoards of the Untouchables are face to face with starvation.

The Untouchables have no way of earning a living open to them in a village. He cannot do any business such as selling milk or vegetables. Because he is an Untouchable no one will buy these things from him. He cannot take to any trade because, all trades being hereditary, no one will accept his service. His economic dependence upon the Hindu

is complete and the Hindu takes a complete advantage of it whenever the Untouchables prove arrogant, or naughty in the eyes of the Touchables.

Not only is the Untouchable dependent upon the Touchable for earning his livelihood but the Untouchable is also dependent upon the Touchables for the purchase of his necessities of life. In a village all shops belong to the Touchables. Trade is, and must necessarily be, in the hands of the Touchables. An Untouchable has to depend upon the Touchable shopkeepers for their shopping. If the Touchable shopkeeper is willing to sell, the Untouchables can obtain the necessities of life. If the shopkeeper refuses to sell, the Untouchable must starve although they might have money to live on. Now whenever any dispute arises between the Touchables and the Untouchables the one thing the Touchables never fail to do is to command the shopkeepers not to sell anything to the Untouchables. The Touchables constitute an organized conspiracy to bring about a cessation of all economic relationship with Untouchables. A war is proclaimed against the Untouchables. The means used for reducing the "enemy" is to send a "punitive expedition" consisting of rascals into the Untouchable quarters who ruthlessly carry on arson of destruction of property and shamelessly commit acts of violence against all including women and children.

The more common and the more effective weapons is the declaration of complete boycott against the offending Untouchables. The horrors of the boycott, which is merely another name for Gandhi's "non-cooperation", can hardly be adequately described. The Committee appointed by the Government of Bombay to inquire into the grievances of the Backward Classes speaks of the social boycott in the following terms:

"Although we have recommended various remedies to secure to the Untouchables their rights to all public utilities we fear that there will be difficulties in the way of their exercising them for a long time to come. The first difficulty is the fear of open violence against them by the orthodox classes. It must be noted that the Untouchables are a small minority in every village, opposed to which is a great majority of the orthodox who are bent on protecting their interests and dignity from any supposed invasion by the Untouchables at any cost. The danger of prosecution by the police has put a limitation upon the use of violence by the orthodox classes and consequently such cases are rare.

The second difficulty arises from the economic position in which the Untouchables are found today. The Untouchables have no

economic independence in most parts of the Presidency. Some cultivate lands of the orthodox classes as their tenants at will. Others live on their earnings as farm labourers employed by the orthodox classes, and the rest subsist on the food or grain given to them by the orthodox classes in lieu of service rendered to them as village servants. We have heard of numerous instances where the orthodox classes have used their economic power as a weapon against those Depressed classes in their villages, when the latter have dared to exercise their rights and have evicted them from their land, and stopped their employment and discontinued their remuneration as village servants. The boycott is often planned on such an extensive scale as to include the prevention of the Untouchables from using the commonly used paths and the stoppage of the sale of the necessities of life by the village bania or shopkeeper. According to the evidence small causes suffice for the proclamation of a social boycott against the Untouchables. Frequently it follows on the exercise by the Untouchables of their right to the use of the common well, but cases have been by no means rare where stringent boycott has been proclaimed simply because an Untouchable man has put on a sacred thread, has bought a piece of land, has put on good clothes or ornaments, or has led a marriage procession with the bride-groom on the horse through the public street.

We do not know of any weapon more effective than this social boycott which could have been invented for the suppression of the Untouchables. The method of open violence pales away before it, for it has the most far reaching and deadening effects. It is the more dangerous because it passes as a lawful method consistent with the theory of freedom of contract. We agree that this tyranny of the majority must be put down with a firm hand if we are to guarantee to the Untouchables the freedom of speech and action necessary for their uplift."

IV

The third circumstance which adds to the helplessness of the Untouchables is the impossibility for the Untouchables to obtain any protection from the police or justice from the courts. The police are drawn from the ranks of the caste Hindus. The Magistracy is drawn from the ranks of the Caste Hindus. The police and the magistracy are the kith and kin of the caste Hindus. They share the sentiments and the prejudices of the caste Hindus against the Untouchables. If an Untouchable goes to a police officer with a complaint against the caste

Hindus instead of receiving any protection he will receive plenty of abuse. Either he will be driven away without his complaint being recorded or, if it is recorded, it would be recorded quite falsely to provide a way of escape to the Touchable aggressors. If he prosecutes his offenders before a Magistrate the fate of his proceedings could be foretold. He will never get Touchable witnesses because of the conspiracy of the villagers. If he brings witnesses from the Untouchables the Magistrate will not accept their testimony because they are interested and not independent witnesses or, if they are independent witnesses, the Magistrate has an easy way of acquitting the accused by simply saying that the complainant Untouchable did not strike him as a truthful witness. He can do this fearlessly because he knows full well that the higher tribunal will not reverse his finding because of the well-established rule which says that an appellate court should not disturb the finding of a Magistrate based upon the testimony of witness whose demeanour he had observed. This fact has now been admitted even by Congress workers among the Untouchables.

The Annual Report of the Tamil Nad Harijan Sevak Sangh for the year ending September 30, 1937, says: "The political consciousness of the Harijan having been roused by the rights, in the remotest villages where it is only the policeman that reigns, it is not always possible for the Harijan to do this, for the assertion of his rights means a clash between him and the castemen, in which it is always the latter that have the upper hand. The natural consequence of this scuffle is a complaint either to the police or the magistrate. The latter course is beyond the means of a Harijan, while the former resort is worse than useless. The complaints are in many cases not inquired into at all, while in others a verdict favourable to the castemen is entered. Our complaints to the police also meet with similar fate. The trouble seems to us to be this: there is no change in the mentality of the lower policemen. Either he is unaware of the rights of the Harijans of which he is supposed to be the guardian, or he is influenced by castemen. Or it may also be that he is absolutely indifferent. In other cases corruption is responsible for this taking the side of the richer castemen". (Hindu, March 7, 1938).

This means that the official is anti-Untouchable and pro-Hindu. Whenever he has any authority or discretion it is always exercised to the prejudice of the Untouchable.

The police and the magistrate are sometimes corrupt. If they were only corrupt, things would not perhaps be so bad because an officer who is corrupt is open to purchase by either party. But the additional

misfortune is that the police and magistrates are often more partial than corrupt. It is this partiality to the Hindus and his antipathy to the Untouchables which results in the denial of protection and justice to the Untouchables. There is no cure to this partiality to the one and antipathy to the other. It is founded in the social and religious repugnance which is inborn in every Hindu. The police and the Magistrate by reason of their motives, interest and their breeding do not sympathize with the living forces operating among the Untouchables. They are not charged with the wants, the pains, the cravings and the desires which actuate the Untouchables. Consequently they are openly hostile and inimical to their aspirations, do not help them to advance, disfavour their cause and snap at everything that smacks of pride and self respect. On the other hand they share the feelings of the Hindus, sympathize with them in the attempt to maintain their power, authority, prestige and their dignity over the Untouchables. In any conflict between the two they act as the agents of the Hindus in suppressing this revolt of the Untouchables and participate quite openly and without shame in the nefarious attempt of all Hindus to do everything possible by all means, fair or foul, to "teach the Untouchables a lesson", and hold them down in their own place.

The worst of it is that all this injustice and persecution can be perpetrated within the limits of the law. A Hindu may well say that he will not employ an Untouchable, that he will not sell him anything, that he will evict him from his land, that he will not allow him to take his cattle across his field, without offending the law in the slightest degree. In doing this he is only exercising his right. The law does not care with what motive he does it. The law does not see what injury it causes to the Untouchable. The police may misuse his power and his authority. He may deliberately falsify the record by taking down something which has not been stated or by taking down something which is quite different from what has been stated. He may disclose evidence to the side in which he is interested. He may refuse to arrest. He may do a hundred and one things to spoil the case. All this he can do without the slightest fear of being brought to book. The loopholes of law are many, and he knows them well. The magistrate has vested in him an enormous amount of discretion. He is free to use it. The decision of a case depends upon the witnesses who can give evidence. But the decision of the case depends upon whether the witnesses are reliable or not. It is open to the magistrate to believe one side and disbelieve the other side. He may be quite arbitrary in believing one side, but it is his discretion, and no one can interfere with it. There are

innumerable cases in which this discretion has been exercised by the Magistrate to the prejudice of the Untouchables. However truthful the witnesses of the Untouchables, the magistrates have taken a common line by saying "I disbelieve the witnesses", and no body has questioned that discretion. What sentence to inflict is also a matter of discretion with the magistrate. There are sentences which are appealable and there are sentences which are non-appealable. An appeal is a way of getting redress. But this way may be blocked by a magistrate by refusing to give an appealable sentence.

Such are the forces which are arrayed against the struggling Untouchables. There is simply no way to overcome them because there is no legal way of punishing a whole society which is organized to set aside the law.

V

One way of lessening these difficulties—they certainly cannot be overcome—was open to the Untouchables. That way lay through politics and through effective use of political power. But in this matter the Untouchables have been foiled.

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CHAPTER 23

THEIR WISHES ARE LAWS UNTO US

I. Adharma for Dharma. II. Manu and Dharma. III. Modern Counterparts. IV. Effect of Dharma on character and outlook.

Any one who reads of the lawlessness of the Hindus in suppressing the movement of the untouchables, I am sure will be shocked. Why does the Hindu indulge in this lawlessness is a question he is sure to ask and none will say that such a question will not be a natural question and in the circumstances of the case a very pertinent question—Why should an untouchable be tyrannized if he wears clean clothes? How can it hurt a Hindu. Why should an untouchable be molested because he wants to put a tiled roof on his house? How can it injure a Hindu? Why should an untouchable be persecuted because he is keen to send his children to school? How does a Hindu suffer thereby? Why should an untouchable be compelled to carry dead animals, eat carrion, and beg his food from door to door? Where is the loss to the Hindu if he gives these things up. Why should a Hindu object if an untouchable desires to change his religion? Why should his conversion annoy and upset a Hindu? Why should a Hindu feel outraged if an untouchable calls himself by a decent, respectable name? How can a good name taken by an untouchable adversely affect the Hindu? Why should the Hindu object if an untouchable builds his house facing the main road? How can he suffer thereby? Why should the Hindu object if the sound made by an untouchable falls upon his ears on certain days? It cannot deafen him. Why should a Hindu feel resentment if an untouchable enters a profession, obtains a position of authority, buys land, enters commerce, becomes economically independent and is counted among the well-to-do? Why should all Hindus whether officials or non-officials make common cause to suppress the untouchables? Why should all castes otherwise quarreling among themselves combine to make, in the name Hinduism, a conspiracy to hold the untouchables at bay?

All this of course sounds like a fiction. But one who has read the tales of Hindu tyranny recounted in the last chapter will know that beneath these questions there is the foundation of facts. The facts, of course, are stranger than fiction. But the strangest thing is that these deeds are done by Hindus who are ordinarily timid even to the point of being called cowards. The Hindus are ordinarily a very soft people. They have none of the turbulence or virulence of the Muslims. But, when so soft a people resort without shame and without remorse to pillage, loot, arson and violence on men, women and children, one is driven to believe that there must be a deeper compelling cause which maddens the Hindus on witnessing this revolt of the untouchables and leads them to resort to such lawlessness.

There must be some explanation for so strange, so inhuman a way of acting. What is it?

If you ask a Hindu, why he behaves in this savage manner, why he feels outraged by the efforts which the untouchables are making for a clean and respectable life, his answer will be a simple one. He will say: "What you call the reform by the untouchables is not a reform. It is an outrage on our Dharma". If you ask him further where this Dharma of his is laid down, his answer will again be a very simple one. He will reply, "Our Dharma is contained in our Shastras". A Hindu in suppressing what, in the view of an unbiased man, is a just revolt of the untouchables against a fundamentally wrong system by violence, pillage, arson, and loot, to a modern man appears to be acting quite irreligiously, or, to use the term familiar to the Hindus, he is practising *Adharma*. But the Hindu will never admit it. The Hindu believes that it is the untouchables who are breaking the *Dharma* and his acts of lawlessness which appear as *Adharma* are guided by his sacred duty to restore Dharma. This is an answer, the truth of which cannot be denied by those who are familiar with the psychology of the Hindus. But this raises a further question: What are these Dharma which the Shastras have prescribed and what rules of social relationship do they ordain?

II

The word *Dharma* is of Sanskrit origin. It is one of those Sanskrit words which defy all attempts at an exact definition. In ancient times the word was used in different senses although analogous in connotation. It would be interesting to see how the word *Dharma* passed through transitions of meaning¹. But this is hardly the place for it. It is sufficient to say that the word *dharma* soon acquired a definite

¹ See P. V. Kane—History of Dharma Shastra, pp. 1-2.

meaning which leaves no doubt as to what it connotes. The word Dharma means the privileges, duties and obligations of a man, his standard of conduct as a member of the Hindu community, as a member of one of the castes, and as a person in a particular stage of life.

The principal sources of Dharma, it is agreed by all Hindus, are the Vedas, the Smritis and customs. Between the Vedas and Smritis, so far as Dharma is concerned, there is however this difference. The rules of Dharma, as we see them in their developed form, have undoubtedly their roots in the Vedas, and it is therefore justifiable to speak of the Vedas as the source of Dharma. But the Vedas do not profess to be formal treatises on *Dharma*. They do not contain positive precepts (*Vidhis*) on matters of Dharma in a connected form. They contain only disconnected statements on certain topics concerned with *Dharma*. On the other hand, Smritis are formal treatises on Dharma. They contain enactments as to the Dharma. They form the law of the Dharma in the real sense of the term. Disputes as to what is Dharma and what is not Dharma (Adharma) can be decided only by reference to the text of the law as given in the Smritis. The Smritis form, therefore, the real source of what the Hindu calls Dharma, and, as they are the authority for deciding which is Dharma and which is not, the Smritis are called Dharmashastras (scriptures) which prescribe the rules of Dharma.

The number of Smritis which have come down from ancient times have been variously estimated. The lowest number is five and the highest a hundred. What is important to bear in mind is that all these Smritis are not equal in authority. Most of them are obscure. Only a few of them were thought to be authoritative enough for writers to write commentaries thereon. If one is to judge of the importance of a Smriti by the test as to whether or not it has become the subject matter of a commentary, then the Smritis which can be called standard and authoritative will be the Manu Smriti, Yajnavalkya Smriti and the Narada Smriti. Of these Smritis the Manu Smriti stands supreme. It is pre-eminently the source of all Dharma.

To understand what is the Dharma for which the Hindu is ready to wage war on the untouchables, one must know the rules contained in the Smritis, particularly those contained in the Manu Smriti. Without some knowledge of these rules, it would not be possible to understand the reaction of the Hindus to the revolt of the untouchables. For our purpose it is not necessary to cover the whole field of Dharma in all its branches as laid down in the Smritis. It is enough to know that branch of the Dharma which in modern parlance is called the law of persons, or to put it in non-technical language, that part of the Dharma which deals with right, duty or capacity as based on status.

I therefore propose to reproduce below such texts from Manu Smriti as are necessary to give a complete idea of the social organization recognized by Manu and the rights and duties prescribed by him for the different classes comprised in his social system.

The social system as laid down by Manu has not been properly understood and it is therefore necessary to utter a word of caution against a possible misunderstanding. It is commonly said and as commonly believed that what Manu does is to prescribe a social system which goes by the name of Chaturvarna—a technical name for a social system in which all persons are divided into four distinct classes. Many are under the impression that this is all that the Dharma as laid down by Manu prescribes. This is a grievous error and if not corrected is sure to lead to a serious misunderstanding of what Manu has in fact prescribed and what is the social system he conceived to be the ideal system.

I think this is an entire misreading of Manu. It will be admitted that the divisions of society into four classes comprised within Chaturvarna is not primary with Manu. In a sense this division is secondary to Manu. To him it is merely an arrangement *inter se* between those who are included in the Chaturvarna. To many, the chief thing is not whether a man is a Brahman, Kshatriya, Vaishya or Shudra. That is a division which has existed before him. Manu added, accentuated and stratified that difference. The division did not originate with him. But what did originate with Manu is a new division between (1) those who are within the pale of Chaturvarna and (2) those who are outside the pale of Chaturvarna. This new social division is original to Manu. This is his addition to the ancient Dharma of the Hindus. This division is fundamental to Manu because he was the first to introduce it and recognize it by the stamp of his authority.

The texts which have a bearing on the subject must therefore be arranged under two heads (1) texts relating to those who are within the Chaturvarna and (2) texts relating to those who are outside the Chaturvarna.

1. *Those within the Pale of the Chaturvarna. Their origin and their duties*

- (1) This (Universe) existed in the shape of Darkness, unperceived, destitute of distinctive marks, untenable by reasoning, unknowable, wholly immersed, as it were in a deep sleep.

(1) Manu I. 5.

- (2) Then the divine self existent (Svayambhu, himself) indiscernible (but) making (all) this, the great elements and the rest discernible, appeared with irresistible (creative) power, dispelling the darkness.
- (3) But for the sake of the prosperity of the worlds, he caused the Brahmana, the Kshatriya, the Vaishya, and the Shudra to proceed from his mouth, his arms, his thighs and his feet.
- (4) But in order to protect this Universe. He, the most resplendant one, assigned separate (duties and) occupations to those who sprang from his mouth, arms, thighs and feet.
- (5) To the Brahmans he assigned teaching and studying (the Vedas), sacrificing (performing sacrificial ceremonies) for their own benefit and for others, giving and accepting (of alms).
- (6) The Kshatriya he commanded to protect the people, to bestow gifts, to offer sacrifices, to study (the Veda), and to abstain from attaching himself to sensual pleasures.
- (7) The Vaishya to tend cattle, to bestow gifts, to offer sacrifices, to study (the Veda), to trade, to lend money and to cultivate the land.
- (8) One occupation only the lord prescribed to the Shudra, to serve meekly even these (other) three castes.
- (9) A student, an apprentice, a hired servant, and fourthly an official; these must be regarded as labourers. Slaves are those who are born in the house and the rest.
- (10) The sages have distinguished five sorts of attendants according to law. Among these are four sorts of labourers (mentioned above). The slaves (are the fifth category, of which they are) fifteen species.
- (11) One born at (his master's) house; one purchased; one received by gift; one obtained by inheritance; one maintained during a general famine; one pledged by his rightful owner.
- (12) One released from a heavy debt; one made captive in a fight; one won through a wager, one who has come forward declaring 'I am thine' an apostate from asceticism; one enslaved for a stipulated period.
- (13) One who has become a slave in order to get a maintenance; one enslaved on account of his connection with a female slave; and one self sold. These are fifteen classes of slaves as declared in law.
- (14) Among these the four named first cannot be released from bondage, except by the favour of their owners. Their bondage is hereditary.
- (15) The sages have declared that the state of dependence is common to all these; but that their respective position and income depends on their particular caste and occupation.

(2) Manu I. 6; (3) *Ibid.*, I. 31; (4) *Ibid.*, I. 87; (5) *Ibid.*, I. 88; (6) *Ibid.*, I. 89; (7) *Ibid.*, I. 90; (8) *Ibid.*, I. 91; (9) Narad V. 3; (10) *Ibid.*, V. 2; (11) *Ibid.*, V. 26; (12) *Ibid.*, V. 27; (13) *Ibid.*, V. 28; (14) *Ibid.*, V. 29; (15) *Ibid.*, V. 4.

2. *Those outside the Pale of Chaturvarna. Their origin and their duties.*

This is what Manu has to say about their origin and their position.

- (1) All those tribes in this world, which are excluded from (the community of) those born from the mouth, the arms, the thighs, and the feet (of Brahman), are called Dasyus, whether they speak the language of the Mlekkhas (barbarians) or that of the Aryans.
- (2) Near well-known trees and burial ground, on mountains and in groves, let these (tribes) dwell, known (by certain marks), and subsisting by their peculiar occupations.
- (3) But the dwellings of the Chandalas and Shwapakas shall be outside the village, they must be made apapatras and their wealth (shall be) dogs and donkeys.
- (4) Their dress (shall be) the garments of the dead, (they shall eat) their food from broken dishes, black iron (shall be) their ornaments, they must always wander from place to place.
- (5) A man who fulfils a religious duty, shall not seek intercourse with them; their transactions (shall be) among themselves and their marriages with their equals.
- (6) Their food shall be given to them by others (than an Aryan giver) in a broken dish; at night they shall not walk about in villages and in towns.
- (7) By day they must go about for the purpose of their work, distinguished by marks at the King's command, and they shall carry out the corpses (of persons) who have no relatives, that is a settled rule.
- (8) By the King's order they shall always execute the Criminals in accordance with the law, and they shall take for themselves the clothes, the beds and the ornaments of (such) criminals.
- (9) He who has had connection with a woman of one of the lowest castes shall be put to death.
- (10) If one who (being a member of the Chandalas or some other low caste) must not be touched, intentionally defiles by his touch one who (as a member of a twice born caste) may be touched (by other twice born persons only) he shall be put to death.

I have already said, that to Manu, this division between those who are within the pale of Chaturvarna and those who are outside of it was a division which was real. It was so real that Manu calls those who were outside the pale of Chaturvarna by the name *Bahayas* which means excluded i.e. excluded from or outside of the system of Chaturvarna. It was a division to which he attached far reaching

(1) Manu X. 45, (2) *Ibid.* X. 50; (3) *Ibid.* X. 51; (4) *Ibid.* X. 52; (5) *Ibid.* X. 53; (6) *Ibid.* X. 54; (7) *Ibid.* X. 55; (8) *Ibid.* X. 56; (9) Vishnu V. 43; (10) *Ibid.* V. 104.

consequences. This division was intended to result in a difference of status and citizenship. It is true that all those who are within the pale of Chaturvarna are not all on the same level. Within the Chaturvarna there are the Brahmins, Kshatriyas, Vaishyas, Shudras and Slaves all unequal in status. Still they are within the Chaturvarna. Those within the Chaturvarna have a status in the eye of the law of Manu and a respect in the eye of the public. Those outside it have no respect in the eye of that society. The difference is also one of citizenship. Those within the Chaturvarna have rights to enjoy and remedies to enforce them. Those outside the Chaturvarna have no rights and no remedies.

This difference between those who are within the Chaturvarna and those outside of it have a kind of resemblance to the difference between *civics* i.e. citizens and *preregenis* or *hostis* i.e. non-citizens in the early Roman Law. The early law of Rome was essentially personal—not territorial. A man enjoyed the benefit of its institutions and of its protection, not because he happened to be within Roman territory, but because he was a citizen—one of those by whom and for whom its law was established. The story of the early *jus gentium* was that a man sojourning within the bounds of a foreign state was at the mercy of the latter and its citizens; that he himself might be dealt with as a slave, all that belonged to him appropriated by the first comer. For he was outside the pale of the law. Under the *jus civile* the private rights which were peculiar to a Roman citizen were summed up in three abstract terms, *Conubium*, *Commercium* and *Actio*. *Conubium* was the capacity to enter into a marriage which would be productive of the *palua potestas* and agnation which in their turn were the foundation of intestate succession, guardianship etc. *Commercium* was the capacity for acquiring or alienating property. *Actio* was the capacity to bring a suit in a Court of law for the vindication, protection, or enforcement of a right either included in or flowing from *connubium* or *commercium*, or directly conferred by *statute*. These three capacities were enjoyed only by the Roman Citizens. A non-citizen was entitled to none of these rights.

III

The division between classes who are within the Chaturvarna and those who are without it though real and fundamental is undoubtedly archaic in its terminology. The system of Chaturvarna is no longer operative as law. It is therefore somewhat academic to speak of classes being within Chaturvarna and without Chaturvarna. The question will be asked, what are the modern counterparts of these ancient classes? The question is perfectly legitimate especially as I have to explain how

the ancient law of Manu is responsible for the present day lawlessness of the Hindus. Although I am using archaic language, two things will show that my thesis is true. The first is that the ancient social divisions of Manu are not without their counterpart in modern times. The modern counterparts of those ancient divisions are Hindus and untouchables. Those whom Manu included within the Chaturvarna correspond to the modern composite class called Hindus. Those whom Manu called Bahayas (outside the Chaturvarna) correspond to the present day untouchables of India. The dividing line between the four classes—Brahman, Kshatriya, Vaishya and Shudra—included within Chaturvarna have in modern times become some what blurred and there has been some degree of amalgamation between them. But the line which Manu drew between those within the Chaturvarna from those outside the Chaturvarna is still clear and is not allowed to be effaced or crossed. That line is the line which at present separates the Hindus from the untouchables. The first thing that is clear is that the ancient divisions have descended to modern times. The only change is the change of names.

The second question is, has the law as laid down by Manu for the Bahayas any counterpart in the present day social relationship between the Hindus and the Untouchables? To those who doubt I ask to take the following case into consideration. The incident has occurred in the Ramnad District of the Madras Presidency.

In December 1930 the Kallar in Ramanad propounded eight prohibitions, the disregard of which led to the use of violence by the Kallar against the untouchables whose huts were fired, whose granaries and property were destroyed, and whose livestock was looted. These eight prohibitions were as follows :—

- “(i) that the Adi-Dravidas shall not wear ornament of gold and silver;
- (ii) that the males should not be allowed to wear their clothes below their knees or above the hips;
- (iii) that their males should not wear coats or shirts or banyans;
- (iv) No Adi-Dravida should be allowed to have his hair cropped.
- (v) that the Adi-Dravidas should not use other than earthenware vessels in their homes;
- (vi) their women shall not be allowed to cover the upper portion of their bodies by clothes or ravukais or thavanies;
- (vii) their women shall not be allowed to use flowers or saffron paste; and
- (viii) the men shall not use umbrellas for protection against sun and rain nor should they wear sandals”.

In June 1931, the eight prohibitions not having been satisfactorily observed by the exterior castes in question, the Kallar met together and framed eleven prohibitions, which went still further than the original eight, and an attempt to enforce these led to more violence. These eleven prohibitions were :—

- “1. The Adi-Dravidas and Devendrakula Vellalars should not wear clothes below their knees.
2. The men and women of the above-said depressed classes should not wear gold jewels.
3. The women should carry water only in mud pots and not in copper or brass vessels. They should use straw only to carry the water pots and no clothes should be used for that purpose.
4. Their children should not read and get themselves literate or educated.
5. The children should be asked only to tend the cattle of the Mirasdars.
6. Their men and women should work as slaves of the Mirasdars, in their respective Pannais.
7. They should not cultivate the land either on waram or lease from the Mirasdars.
8. They must sell away their own lands to Mirasdars of the village at very cheap rates, and if they don't do so, no water will be allowed to them to irrigate their lands. Even if something is grown by the help of rain water, the crops should be robbed away, when they are ripe for harvest.
9. They must work as coolies from 7 a.m. to 6 p.m. under the Mirasdars and their wages shall be for men Rs. 0-4-0 per day and for women Rs. 0-2-0 per day.
10. The abovesaid communities should not use Indian Music (melam etc.,) in their marriages and other celebrations.
11. They must stop their habit of going on a horse in procession before tying the Thali thread in marriage and they must use their house doors as palanquins for the marriage processions, and no vehicle should be used by them for any purpose”.

Compare these prohibitions laid down by the Hindus of Ramnad with the prohibitions contained in the texts of Manu quoted earlier in this chapter against the untouchables.

Is there any difference between the law laid down by Manu for the *Bahayas* and the conditions imposed upon the untouchables by the Kallars in 1931 ? After this evidence, who can doubt that the Hindu in doing what appears to be an Adharma to a non-Hindu is merely asking the untouchables to follow the Dharma as prescribed by Manu.

Take another case. Those of the Balais of the Central India. The Balais are an untouchable community. About the year 1927, the Balais started a campaign of social improvement of their community and had made rules prescribing that the members of their community should not do certain kinds of work which is degrading and should dress in a certain manner. These rules did not in any way affect the interests of the Caste Hindus. But the Caste Hindus took offence at this effort of the Balais to raise themselves above the status prescribed by custom and they decided to deal a deadly blow to what they regarded as the insolence of the Balais. The following is the report which appeared in the papers of how the Caste Hindus dealt with the rebellious Balais.¹

Tyranny of Hindus

Rules for Balais

Mode of Life Laid Down

“Last May (1927) High Caste Hindus, viz, Kalotas, Rajputs and Brahmins, including the patels and putwaris of villages Kanaria, Bicholee Hafsi, Mardana and of about 15 other villages in the Indore District, informed the Balais of their respective villages that if they wished to live among them, they must conform to the following rules :—

(1) Balais must not wear gold lace bordered pugrees; (2) they must not wear dhoties with coloured or fancy borders; (3) they must convey intimation of the death of any Hindu to relatives of the deceased—no matter how far away these relatives might be living; (4) in all Hindu marriages, the Balais must play music before the processions, and during the marriage; (5) the Balai women must not wear gold or silver ornaments; they must not wear fancy gowns, or jackets; (6) Balai women must attend all cases of confinement of Hindu women; (7) the Balais must render services without demanding remuneration, and must accept whatever a Hindu is pleased to give; (8) if the Balais do not agree to abide by these terms, they must clear out of the villages.

BALAI REFUSE COMPLIANCE

“The Balais refused to comply; and the Hindu element proceeded against them. Balais were not allowed to get water from the village wells, they were not allowed to let their cattle graze. Balais were prohibited from passing through land owned by a Hindu; so that if the

¹ The report is taken from the Times of India of 10-2-38 & 1-4-38.

field of a Balai was surrounded by fields owned by Hindus, the Balai could have no access to his own field. The Hindus also led their cattle to graze down the fields of Balais. The Balais submitted petitions to the Darbar against these persecutions; but as they could get no timely relief, and the operation continued, hundreds of Balais, with their wives and children, were obliged to abandon their homes in which their ancestors lived for generations and migrate to adjoining States, viz., to villages in Dhar, Dewas, Bhopal, Gwalior and other States.

COMPULSORY AGREEMENT

“Only a few days ago the Hindus of Reoti village, barely seven miles to north of Indore City, ordered the Balais to sign a stamped agreement in accordance with the rules framed against the Balais by the Hindus of other villages. The Balais refused to comply. It is alleged that some of them were beaten by the Hindus; and one Balai was fastened to a post, and was told that he would be let go on agreeing to sign the agreement. He signed the agreement and was released. Some Balais from this village ran up to the Prime Minister the next day, i.e. on the 20th December, and made a complaint about the ill treatment they received from the Hindu villagers of Reoti. They were sent to the Subha of the district. This officer, with the help of the police, made inquiries at the village, and recommended that action be taken against the Hindus under section 342 and 147 and against the Balais under section 147, Indian Penal Code.

Balais leave villages

Caste Tyranny

Ignorance of law a handicap

“There has been no improvement in the treatment of the Balais by the Hindu residents of certain villages. Balais, it has already been reported, have been ill treated by the higher caste Hindus. From the Dopalpur Pargana alone, Indore District, a large number of Balais have had to leave their homes and find shelter in adjoining States. The villages from which Balais have been forced to clear out are Badoli, Ahirkharal, Piploda, Morkhers, Pamalpur, Karoda, Chatwada, Newri, Pan, Sanauda, Ajnoti, Khatedi and Sanavada. Pamalpur village has been altogether deserted and not a Balai man, woman or child is to be found there. Nanda Balai a resident of one of the above villages, it is alleged, was severely beaten by the Hindus of the village. In one village, the report goes, the Hindus burnt down all the dwellings of the Balais but the offenders have not yet been traced.

“Balais are ignorant village folk, who are ignorant of legal procedure and think that if a petition is sent to the Sirkar all that is required will be done for them. They have not the knowledge; or the means and practices, to pursue a complaint to its end; and, as they, it is said in some cases, failed to attend or produce witnesses in support of their allegations, the magistrate had no alternative but to dismiss their complaint.”

Looked at from the point of view of Dharma and Adharma, can it be doubted that underneath the lawlessness and ruthlessness of the Hindus in suppressing the revolt of the untouchables, they are actuated by what they think a noble purpose of preventing an outrage upon their Dharma ?

IV

It may well be asked how much of this Dharma of Manu now remains ? It must be admitted that as law in the sense of rules which a Court of Judicature is bound to observe in deciding disputes, the Dharma of Manu has ceased to have any operative force-except in matters such as marriage succession etc.—matters which affect only the individual. As Law governing social conduct and civic rights it is inoperative. But if it has gone out as law, it remains as custom.

Custom is no small a thing as compared to Law. It is true that law is enforced by the state through its police power; custom, unless it is valid it is not. But in practice this difference is of no consequence. Custom is enforced by people far more effectively than law is by the state. This is because the compelling force of an organized people is far greater than the compelling force of the state.

Not only has there been no detriment to its enforceability on account of its having ceased to be law in the technical sense but there are circumstances which are sufficient to prevent any loss of efficacy to this Dharma of Manu.

Of these circumstances the first is the force of custom. There exists in every social group certain (*habits**) not only to acting, but of feeling and believing, of valuing, of approving and disapproving which embody the mental habitudes of the group. Every new comer whether he comes in the group by birth or adoption is introduced into this social medium. In every group there goes on the process of persistently forcing these mental habitudes of the group upon the attention of each new member of the group. Thereby the group carries on the socialization of the individual of the shaping of the mental and practical habits of the new comer. Being dependent upon the

* Inserted by Ed.

group he can no more repudiate the mental habitudes of the group than he can the condition and regulation of his physical environment. Indeed, so dependent the individual is on the group that he readily falls in line and allows the current ways of esteeming and behaving prevailing in the community, to become a standing habit of his own mind. This socializing process of the individual by the group has been graphically described by Grote. He says—

“This aggregate of beliefs and predispositions to believe, ethical, Religious, Aesthetical, and Social respecting what is true, or false, probable or improbable, just or unjust, holy or unholy, honourable or base, respectable or contemptible, pure or impure, beautiful or ugly, decent or indecent, obligatory to do, or obligatory to avoid, respecting the status and relations of each individual in the society, respecting even the admissible fashions of amusement and recreation—this is an established fact and condition of things, the real origin of which for the most part unknown, but which each new member of the group is born to and finds subsisting.....It becomes a part of each person’s nature, a standing habit of mind, or fixed set of mental tendencies, according to which particular experience is interpreted and particular persons appreciated..... The community hate, despise or deride any individual member who proclaims his dissent from their social creed..... Their hatred manifests itself in different ways..... At the very best by exclusion from that amount of forbearance, good will and estimation without which the life of an individual becomes insupportable.”¹

But what is it that helps to bring about this result ? Grote has himself answered this question. His answer is that, this is due to— “Nomos (Law and Custom), King of all” (which Herodotus cites from Pindar) exercises plenary power, spiritual and temporal, over individual minds, moulding the emotions as well as the intellect, according to the local type.... and reigning under the appearance of habitual, self suggested tendencies.

What all this comes to is that, when in any community, the ways of acting, feeling, believing, or valuing or of approving and disapproving have become cystalized into customs and traditions, they do not need any sanction of law for their enforcement. The amplitude of plenary powers which the group can always generate by mass action is always ready to see that they are not broken.

The same thing applies to the Dharma laid down by Manu. This Dharma of Manu, by reason of the governing force which it has had for centuries, has become an integral and vital part of the customs and

¹ Grote : Plato and the other Companions of Socrates, Vol. I, p. 249.

traditions of the Hindus. It has become ingrained and has given colour to their life blood. As law it controlled the actions of the Hindus. Though now a custom, it does not do less. It moulds the character and determines the outlook of generation after generation.

The second thing which prevents the Dharma of Manu from fading away is that the law does not prevent its propagation. This is a circumstance which does not seem to be present to the minds of many people. It is said that one of the blessings of the British Rule is that Manu Smriti has ceased to be the law of the land. That the Courts are not required to enforce the provisions contained in Manu Smriti as rules of law is undoubtedly a great blessing—which might not be sufficiently appreciated except by those who were crushed beneath the weight of this “infamous” thing. It is as great a blessing to the untouchables as the Reformation was to the peoples of Europe. At the same time it must be remembered that the Reformation would not have been a permanent gain if it had been followed by what is called the Protestant Revolution. The essential features of the Protestant Revolution as I understand them are: (1) That the state is supreme and the Church is subordinate to the state. (2) The doctrine to be preached must be approved by the state. (3) The clergy shall be servants of the state and shall be liable to punishment not only for offences against the general law of the land but also liable for offences involving moral turpitude and for preaching doctrines not approved of by the state. I am personally a believer in the “Established Church”. It is a system which gives safety and security against wrong and pernicious doctrines preached by any body and every body as doctrines of religion. I know there are people who are opposed to the system of an “Established Church”. But whether the system of an “Established Church” is good or bad, the fact remains that there is no legal prohibition against the propagation of the Dharma laid down by Manu. The courts do not recognize it as law. But the law does not treat it as contrary to law. Indeed every village every day. When Pandits are preaching it to parents and parents preach it to their children, how can Manu Smriti fade away? Its lessons are reinforced every day and no body is allowed to forget that untouchability is a part of their Dharma.

This daily propagation of the Dharma of Manu has infected the minds of all men and women young and old. Nay, it has even infected the minds of the judges. There is a case reported¹ from Calcutta. A certain Dome (untouchable) by name Nobin Dome was prosecuted for theft of a goat. He was found to be not guilty. He filed a complaint for defamation against the complaint. The magistrate dismissed the

¹ 2 W.R. (Cr.) 35. Queen v/s Nobin Dome.

complaint on the ground that as he was low caste man he had no reputation. The High Court had to intervene and direct the Magistrate that he was wrong in his view and that under the Penal Code all persons were equal. But the question remains, how did the Magistrate get the idea that an untouchable had no reputation ? Surely from the teaching of the Manu Smriti.

The Dharma of Manu had never been a mere past. It is as present as though it were enacted today. It bids fair to continue to have its sway in the future. The only question is whether its sway will be for a time or for ever.

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CHAPTER 24

UNDER THE PROVIDENCE OF MR. GANDHI

(I) His work through the Congress

I. A Strange Welcome. II. The Great Repudiation. III. A Charge Sheet. IV. The Basis of the Charge Sheet. V. The Tragedy of Gandhi. VI. His Legacy to India and the Untouchables.

On the 28th December 1931, Mr. Gandhi returned to India from London where he had gone as a delegate to attend the second Session of the Indian Round Table Conference. At the Round Table Conference, Mr. Gandhi had been an utter, ignominious failure both as a personality and as a politician. I know that my opinion will not be accepted by the Hindus. But the unfortunate part is that my opinion in this respect coincides with the opinion of Mr. Gandhi's best friend. I will cite the opinions of two. This is what Mr. Ewer, who was closely associated with Mr. Gandhi during the Round Table Conference, wrote about the role Mr. Gandhi played at the Round Table Conference in London.

"Gandhi in the St. James' Palace has not fulfilled the unwise expectation of those who saw him bestriding the Conference like a colossus

.....He was out of his elements."

* * *

"His first speech, with its sentimental appeal, its over-stressing of humility, its reiteration of single-minded concern for the dumb suffering millions, was a failure. No one questioned its sincerity. But somehow it rang false. It was the right thing, perhaps, but it was in the wrong place. Nor were his later interventions on the whole more successful. A rather querulous complaint that the British Government had not produced a plan for the new Indian Constitution shocked some of Gandhi's colleagues, who had hardly expected to see the representative of the National Congress appealing to British Ministers for guidance and initiative. The protest against the pegging of the rupee to the pound was

astonishingly ineffective. The contributions to the discussions on franchise and kindred matters were of little importance. Behind the scenes he was active enough in the Hindu-Moslem negotiations, but here, too, results were intangible. Not for a moment did Gandhi take the lead or materially influence the course of committee work. He sat there, sometimes speaking, sometimes silent, while the work went on, much as it would have gone on without him.”¹

This is what Bolton has to say about Mr. Gandhi’s achievement at the Round Table Conference.

How did Mr. Gandhi fare as a statesman and a politician?

At the close of the first session of the Round Table Conference there were three questions which had not been settled. The question of minorities, the question of the Federal structure and the question of the status of India in the Empire, were the three outstanding problems which were the subject matter of controversy. Their solution demanded great statesmanship. Many said that these questions were not settled because the wisdom and authority of the Congress was not represented at the Round Table Conference. At the second session, Mr. Gandhi came and made good the deficiency. Did Mr. Gandhi settle any of these unsettled problems? I think it is not unfair to say that Mr. Gandhi created fresh disunity in the Conference. He began the childish game of ridiculing every Indian delegate. He questioned their honesty, he questioned their representative character. He taunted the liberals as arm-chair politicians and as leaders without any followers. To the Muslims he said that he represented the Muslim masses better than they did. He claimed that the Depressed Class delegates did not represent the Depressed Classes and that he did. This was the refrain which he repeated *ad nauseum* at the end of every speech. The non-Congress delegates deserve the thanks of all honest people for their having tolerated this nonsense and arrogance of Mr. Gandhi and collaborated with him to save him and to save the country from his mistake. Apart from this discourtesy to fellow-delegates, did Mr. Gandhi stand up for the cause he came to champion? He did not. His conduct of affairs was ignominious. Instead of standing up and fighting he began to yield on issues on which he ought never to have ceased fire. He yielded to the Princes and agreed that their representatives in the Federal legislature should be nominated by them and not elected, as demanded by their subjects. He yielded to the conservatives and consented to be content with provincial autonomy and not to insist upon central responsibility for which many lakhs of Indians went to gaol. The only people to whom he would not yield

¹ “Gandhi in London” — Asia, February 1932.

were the minorities — the only party to whom he could have yielded with honour to himself and advantage to the country.

Nothing has helped so much to shatter the prestige of Mr. Gandhi as going to the Round Table Conference. The spectacle of Mr. Gandhi at the Round Table Conference must have been painful to many of his friends. He was not fitted to play the role he undertook to play. No country has ever sent a delegate to take part in the framing of the constitution who was so completely unequipped in training and in study. Gandhi went to the Round Table Conference with a song of the saint Narsi Mehta on his tongue. It would have been better for him and better for his country if he had taken in his arm pit a volume on comparative constitutional law. Devoid of any knowledge of the subject he was called upon to deal with, he was quite powerless to destroy the proposals put forth by the British or to meet them with his alternatives. No wonder Mr. Gandhi, taken out of the circle of his devotees and placed among politicians, was at sea. At every turn he bungled and finding that he could not even muddle through, he gave up the game and returned to India.

How was Mr. Gandhi received when he landed on the Indian soil? It may sound strange to outsiders and to those who are not the devotees of Mr. Gandhi but it is a fact that when the *S. S. Pilsner* of the Lloyd Triestino entered the harbour of Bombay at 8 a.m. in the morning of the 28th December 1931 there came to receive him an enthusiastic crowd of men, women and children who had assembled at the Pier in tens of thousands to greet him, to welcome him back and to have his *Durshan*. The following extracts from the *Times of India* and the *Evening News* of Bombay will serve to give a vivid idea of the grandeur of this reception.

“The Pilsner was escorted into the harbour by Desh Sevikas (women volunteers of the Congress) in saffron coloured sarees who went out in launches some distance from the pier.

“The Congress Committee had asked the Bombay Flying Club to fly an Aeroplane or two over the Pilsner and drop garlands as she came along side the pier, but the Flying Club, sanely preferring to keep out of politics, refused to grant the Congress demand.

“The spacious Central Hall at Ballard Pier was decorated with festoons and Congress flags and a large dais was put up at the centre with chairs placed on all sides for representatives of various organizations, local and upcountry, who were given passes for admission.

“Both the approaches to the reception hall from the wharf and from the city were lined by Desh Sevikas waving national flags and the duty of guarding the dais and of regulating and directing the assembly inside the hall was also entrusted to the women volunteers.

“Mr. Gandhi reached the dais escorted by the Congress leaders and received an ovation. Hardly had he stepped on the dais when he began to be flooded with telegraph messages (presumably of welcome) which arrived one after another.

“Standing on the dais he was garlanded in turn by representatives of the public bodies who had assembled and whose names were called out from a long printed list of which copies were previously distributed.

“The proceedings inside the reception hall terminated with the garlanding.

“A procession was then formed in four, in place of the carriage which was intended to be the conveyance for Mr. Gandhi. He was seated in a gaily decorated motor car, with Mr. Vallabhbhai Patel to his left and Mr. Vitthalbhai Patel to his right and Mr. K. F. Nariman, President of the Bombay Provincial Congress Committee, on the front seat.

“Preceded by a pilot car and followed by others containing the Congress Working Committee members, the procession passed through the Ballard Pier Road, Hornby Road and Kalbadevi which had been decorated by the citizens at the instance of the Congress Committee and lined on either side by cheering crowds, five to ten deep till the party reached “*Mani Bhuvan, Gamdevi*”.

At no stage of this welcome did Mr. Gandhi open his lips to acknowledge it. This man of vows was under his Sunday vow of silence which had not run out till then and nor did he think that etiquette, good manners or respect for those who had assembled required that he should terminate his vow earlier.

The official historian of the Congress describes¹ this reception given to Mr. Gandhi in the following terms:

“There were gathered in Bombay representatives of all parts and Provinces in India to accord a fitting welcome to the Tribune of the people. Gandhi greeted the friends that went on board the steamer to welcome him, patting many, thumping a few and pulling the venerable Abbas Tyabji by his beard. There was a formal welcome in one of the Halls of Customs House and then a procession in the streets of Bombay which kings might envy in their own country”.

¹ Pattabhi Sitaramayya — History of the Congress, p. 857.

On reading this account one is reminded of the Irish Sein Fein Delegates who in 1921, just 10 years before, had gone to London at the invitation of Mr. Lloyd George for the settlement of the Irish Home Rule question. As is well known the Irish Delegates secured from the British Cabinet a treaty which was signed on the 8th December 1921. The Treaty was subsequently submitted for approval to the Dail, the Parliament of the Sein Fein Party which met from 14th December 1921 to 7th January 1922. On the 7th January a division was taken. There were 64 votes for ratifying the treaty and 57 against. And what was the reception given to the Irish delegates who secured this treaty? Arthur Griffith — who was the head of the Irish Delegation and Michael Collins who was his most prominent colleague, were both of them shot by the anti-treaty Sein Feiners, the former on the 12th and the latter on the 22nd August 1922. The reason for sending them to such cruel death was that the treaty which they signed did not secure the inclusion of Ulster and a republic for Ireland. It is true the treaty did not grant this. But if it is remembered that negotiations were opened on the express understanding on the part of both sides that these two questions were outside the scope of negotiations it will be granted that if the treaty did not include these it was no fault of the Irish Delegates. The fury and ferocity of the anti treaty Sein Feiners against the Irish Delegates had no moral foundation and the fate that befell Arthur Griffith and Michael Collins can by no stretch of imagination be said to be one which they deserved.

Be that as it may, this welcome to Mr. Gandhi will be regarded as a very strange event. Both went to win Swaraj, Griffith and Collins for Ireland, Gandhi for India, Griffith and Collins succeeded, almost triumphed; Gandhi failed and returned with nothing but defeat and humiliation. Yet Collins and Griffith were shot and Gandhi was given a reception which kings could have envied !! What a glaring and a cruel contrast between the fate that awaited Collins and Griffith and the reception arranged for Gandhi? Are the Indian Patriots different from the Irish Patriots? Did the masses render this welcome out of blind devotion or were they kept in darkness of the failure of Mr. Gandhi by a mercenary Press? This is more than I can answer.¹

II

While this great welcome was being accorded to Mr. Gandhi the Untouchables of Bombay had come to the Pier to repudiate

¹ The official historian of the Congress perhaps realizing that this welcome to Mr. Gandhi on the ground of his political achievement says—(Sitaramayya's statement not given in the Ms. —Ed.).

Mr. Gandhi. Referring to this demonstration, the newspaper reports said:

“Just outside the gate of Ballard Pier, the scene was most exciting. On one side were drawn up Depressed Class volunteers in uniform, weaving black flags to the accompaniment of derisive shouts against Mr. Gandhi and laudatory cries in praise of their leader, while on the other side Congress followers kept up a din of counter shouts.”

This Untouchable demonstration included men and women. The demonstrators numbered thousands, all waving Black Flags as a mark of repudiation of Mr. Gandhi. They were a determined crowd and, despite intimidation by the superior forces of the Congress assembled there to welcome Mr. Gandhi, were bent on showing that they repudiated Mr. Gandhi. This led to a clash and blood was split. There were forty casualties on each side.

For the first time Mr. Gandhi was made aware that there could be black flags even against him. This must have come to him as a shock. When he was asked about it later in the day, he said he was not angry, the Untouchables being the flesh of his flesh and bone of his bone. This is of course the Mahatmaic way of concealing the truth. One would not mind this convenient and conventional lie if there were behind it a realization that the crowd could not always be trusted to be loyal to its hero. Congressmen in India sadly lack the realism of a man like Cromwell. It is related that when Cromwell returned after a great battle, an enormous crowd came out to greet him. A friend sought to impress upon him the immensity of the crowd. But Cromwell dismissed the subject with the laconic remark: “Oh yes, I know many more will come to see me hanged.”!! No Congress leader feels the realism of Cromwell. Either he believes that the day will never come when he will be hanged or he believes that the Indian crowd will never become a thinking crowd. That part of the Indian crowd does think was shown by the representatives of the Untouchables who assembled on the 28th to greet Mr. Gandhi with black flags.

Why did the Untouchables repudiate Mr. Gandhi? The answer to this question will be found in a statement issued by the organizers of these demonstrations which was printed and circulated on that day. The following are extracts from it.

“Our Charge sheet against Gandhiji and Congress”

“Enough of patronising attitude and lip sympathy. We ask for justice and fair play.”

1. In spite of the fact that the removal of untouchability has been included in the constructive programme of the Congress,

practically nothing has so far been done by that body to achieve that object, and in our fights against untouchability at Mahad and Nasik most of the local Congress leaders have been our bitter opponents.

2. The attitude of Gandhiji at the Round Table Conference in London with regard to the demands of the Depressed Classes as put forward by their accredited and trusted leader Dr. Ambedkar, was most unreasonable, obstinate and inexplicable.
3. Gandhiji was prepared to concede on behalf of the Congress the special claims of the Mohamedans and the Sikhs including their demand for separate representation on "historic grounds", but he was not willing even to concede reserved seats in general electorates to the Depressed Classes, although he knew, or should have known, what sort of treatment they would get, should they be thrown upon at the mercy on caste Hindus.

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9. Gandhiji has said in opposing the claims of the Depressed Classes for separate representation that he does not want the Hindu Community to be subjected to vivisection or dissection. But the Congress is now dissecting the community of Untouchables by playing one section against another. Gandhiji and the Congress are not playing the fair game. Open enemies are far better than treacherous friends.

10. Attempts are being made to show that Gandhiji and the Congress alone represent the Depressed Classes by presenting addresses through a handful of hirelings and dupes. Is it not our duty to demonstrate the fact by coming out in thousands and proclaiming the truth? This is our charge sheet against Gandhiji and the Congress.

Let those who are not blind hero worshippers and blind partisans judge and give their verdict.

General Secretary,
Depressed Classes Institute.

III

Is this charge sheet true? Mr. Gandhi is known to the world not merely as the Political leader of India, but also as the Champion of the Untouchables. It is perhaps true that the outside world takes more interest in Mr. Gandhi because he is the champion of the Untouchables than because he is a political leader. For instance the Manchester Guardian very recently devoted an editorial to the work of Mr. Gandhi for the Untouchables.

In the face of this, the charge appears to be quite unfounded. For, has not Mr. Gandhi made the Congress pledge itself to remove

untouchability? The Congress before it came into the hands of Mr. Gandhi had refused to allow any social problem to be placed before it for consideration. A clear cut distinction was made between political and social question, and scrupulous attempt was made to confine the deliberations and activities of the Congress to purely political questions. The old Congress refused to take notice of the Untouchables. It was with great difficulty that the Congress in 1917* for the first time allowed the question of the Untouchables to be placed before it and condescended to pass the following resolution:

“The Congress urges upon the people of India the necessity, justice and righteousness of removing all disabilities imposed by custom upon the Depressed Classes, the disabilities being of a most vexatious and oppresssive character, subjecting those classes to considerable hardship and inconvenience.”¹

The Congress fell onto the hands of Mr. Gandhi in 1920 and the Congress at its ordinary session held at Nagpur passed the following resolution :

INTERCOMMUNAL UNITY

“Finally, in order that the Khilafat and the Punjab wrongs may be redressed and Swarajya established within one year, this Congress urges upon all public bodies, whether affiliated to the Congress or otherwise, to devote their exclusive attention to the promotion of non-violence and non-cooperation with the Government and, inasmuch as the movement of non-cooperation can only succeed by complete co-operation amongst the people themselves, this Congress calls upon public associations to advance Hindu-Muslim unity and the Hindu delegates of this Congress call upon the leading Hindus to settle all disputes between Brahmins and Non-Brahmins, wherever they may be existing, and to make a special effort to rid Hinduism of the reproach of untouchability, and respectfully urges the religious heads to help the growing desire to reform Hinduism in the matter of its treatment of the suppressed classes.”

Again did not Mr. Gandhi make the removal of untouchability a condition precedent for achieving Swaraj? In the *Young India* of December 29, 1920, Mr. Gandhi wrote:

“Non-cooperation against the Government means cooperation among the governed, and if Hindus do not remove the sin of

* Year not mentioned in the Ms.—Ed.

¹ This quotation has been reproduced from page I of ‘What Congress and Gandhi have done to the Untouchables’ by the author. This was not typed in the MS of this essay.—Ed.

untouchability, there will be no Swaraj in one year or one hundred years....”

Writing again on the conditions of Swaraj in the issue of *Young India* for February 23, 1921, he said:

“Swaraj is easy of attainment before October next if certain simple conditions can be fulfilled. I ventured to mention one year in September last because I knew that the conditions were incredibly simple and I felt that the atmosphere in the country was responsive. The past five months experience has confirmed me in the opinion. I am convinced that the country has never been so ready for establishing Swaraj as now.”

“But what is necessary for us as accurately as possible to know the conditions. One supreme indispensable condition is the continuance of non-violence.”

“The next condition is..... establishing a Congress Agency in every village.”

“There are certain things that are applicable to all. The potent thing is Swadeshi. Every home must have the spinning wheel and every village can organize.... and become self supporting.”

“Every man and woman can give some money—be it even a pice—to the Tilak Swaraja Fund. And we need have no anxiety about financing the movement.....”

“We can do nothing without Hindu-Moslem unity and without killing the snake of untouchability.....”

“Have we honest, earnest, industrious, patriotic workers for this very simple programme? If we have, Swaraj will be established in India before next October.”

What more did the Untouchables want? Here is Mr. Gandhi who had held himself out as the friend of the Untouchables. He prides himself on being their servant. He claims and fought for being accepted as their representative. Why should the Untouchables show such a lack of confidence in Mr. Gandhi?

On the basis of words, the charge perhaps appears unfounded. But does it appear equally unfounded if we have regard to deeds? Let me examine Mr. Gandhi's deeds.

The work which is claimed by Mr. Gandhi and his friends to have been done by him and the Congress for the Untouchables falls into two periods, the period which precedes the Poona Pact and the period which follows the Poona Pact. The first period may be called the period of the Bardoli Programme. The second period may be called the period of the Harijan Sevak Sangh.

FIRST PERIOD

I

To begin with the Bardoli Programme period. The Bardoli Programme or what is called the Constructive Programme of the Congress was the direct outcome of the new line of action adopted by the Congress in securing the political demands of the country. At the session of the Congress held at Nagpur in 1920 the Congress declared :

“Whereas the people of India are now determined to establish Swaraj; and

“Whereas all methods adopted by the people of India prior to the last special session of the Indian National Congress have failed to secure due recognition of their rights and liberties;

“Now this Congress while reaffirming the resolution on non-violent non-cooperation passed at the Special Session of the Congress at Calcutta declares that the entire or any part or parts of the scheme of non-violent non-cooperation, with the renunciation of voluntary association with the present Government at one end and the refusal to pay taxes at the other, should be put in force at a time to be determined by either the Indian National Congress or the All India Congress Committee and in the meanwhile to prepare the Country for it”,....

At the session of the Congress held at Ahmedabad in 1921 it was declared that:

“This Congress is further of opinion that Civil Disobedience is the only civilized and effective substitute for an armed rebellion.... and therefore advises all Congress Workers and others.... to organize individual civil disobedience and mass civil disobedience”.....

It is to give effect to this policy of non-cooperation and civil disobedience and to prepare the people to take part in them that the Working Committee of the Congress met at Bardoli in February 1922 and drew up the following programme of action.

“The Working Committee advises all Congress organisations to be engaged in the following activities :

- (1) To enlist at least one crore of members of the Congress.
- (2) To popularise the spinning wheel and to organise the manufacture of hand-spun and handwoven khaddar.
- (3) To organise national schools.
- (4) To organise the Depressed Classes for a better life, to improve their social, mental and moral condition to induce them

to send their children to national schools and to provide for them the ordinary facilities which the other citizens enjoy.

Note : Whilst therefore where the prejudice against the Untouchables is still strong in places, separate schools and separate wells must be maintained out of Congress funds, every effort should be made to draw such children to national schools and to persuade the people to allow the Untouchables to use the common wells.

- (5) To organise the temperance campaign amongst the people addicted to the drink habit by house-to-house visits and to rely more upon appeal to the drinker in his home than upon picketing.
- (6) To organise village and town Panchayats for the private settlement of all disputes, reliance being placed solely upon the force of public opinion and the truthfulness of Panchayat decisions to ensure obedience to them.
- (7) In order to promote and emphasize unity among all classes and races and mutual goodwill, the establishment of which is the aim of the movement of non-cooperation, to organise a social service department that will render help to all, irrespective of differences, in times of illness or accident.
- (8) To continue the Tilak Memorial Swaraj Fund collections and call upon every Congressman or Congress sympathiser to pay at least a one-hundredth part of his annual income for 1921. Every province to send every month twenty-five per cent of its income from the Tilak Memorial Swaraj Fund to the All-India Congress Committee.

The above resolution shall be brought before the forthcoming session of the All-India Congress Committee for revision if necessary."

This programme was placed before the All-India Congress Committee at its meeting at Delhi on 20th February 1922 and was confirmed by the same. The programme is a very extensive programme and I am not concerned with what happened to the whole of it, how it was received and how it was worked out. I am concerned with only one item and that which relates to the Depressed Classes.

After it was confirmed by the All-India Congress Committee, the Working Committee met at Lucknow in June 1922 and passed the following resolution :

"This Committee hereby appoints a committee consisting of Swami Shraddhanandji, Mrs. Sarojini Naidu and Messrs. I. K. Yajnik and G. B. Deshpande to formulate a scheme embodying practical measures to be adopted for bettering the condition of the

so-called Untouchables throughout the country and to place it for consideration before the next meeting of this Committee, the amount to be raised for the scheme to be Rs. 2 lacs for the present.”

This resolution was placed before the All-India Congress Committee at its meeting in Lucknow in June 1922. It accepted the resolution with the amendment that “the amount to be raised for the scheme should be 5 lacs for the present”, instead of 2 lacs as put forth in the resolution of the Working Committee. How did this programme fare, what practical measures did the Committee suggest and how far were these measures given effect to? These questions one must ask in order to assess the work of Mr. Gandhi and the Congress for the Untouchables.

It seems that before the resolution appointing the Committee was adopted by the Working Committee, one of its Members Swami Shradhanand tendered his resignation of the membership of the Committee. For one finds that at the very sitting at which the Working Committee passed this resolution, another resolution to the following effect was passed by the Working Committee :

“Read letter from Swami Shradhanandji, dated 8th June 1922 for an advance for drawing up a scheme for depressed classes work. Resolved that Mr. Gangadharrao B. Deshpande be appointed convener of the sub-committee appointed for the purpose and he be requested to convene a meeting at an early date, and that Swami Shradhanand’s letter be referred to the sub-committee.”

The Working Committee met again in July 1922 in Bombay and passed the following Resolution :

“That the General Secretary be asked to request Swami Shradhanand to reconsider his resignation and withdraw it and a sum of Rs. 500/- be remitted to the Convener, Shri G. B. Deshpande, for the contingent expenses of the Depressed Classes Sub-Committee.”

The year 1922 thus passed away without anything being done to further that item of the Bardoli Programme which related to the Depressed Classes. The year 1923 came on. The Working Committee met at Gaya in January 1923 and passed the following resolution :

“With reference to Swami Shradhanand’s resignation, resolved that the remaining members of the Depressed Classes Sub-Committee do form the Committee and Mr. Yajnik be the convener.”

The All-India Congress Committee met in Feb. 1923 at Bombay and seeing that nothing was done as yet, recorded the following resolution :

“Resolved that the question of the condition of the Untouchables be referred to the Working Committee for necessary action.”

What did the Working Committee do then? It met at Poona on the 17th April 1923 and resolved as follows:

“Resolved that while some improvement has been effected in the treatment of the so-called Untouchables in response to the policy of the Congress this Committee is conscious that much work remains yet to be done in this respect and inasmuch as this question of untouchability concerns the Hindu community particularly, it requests the All-India Hindu Mahasabha also to take up this matter and to make strenuous efforts to remove this evil from amidst the Hindu community.”

Thus came to an end the Constructive Programme undertaken by Mr. Gandhi and the Congress for the Untouchables. The Bardoli programme for the Untouchables was in no sense a revolutionary programme. It did attempt to abolish untouchability. It does not attempt to break up caste. There is no mention of intermarriage or interdinning. It accepts the principle of separate wells and separate schools for Untouchables. It was purely an ameliorative programme. And yet such a harmless programme the Congress failed to carry through.

It must further be remembered that this was a time when the Congress was on the war path. It was determined to fight British Imperialism and was most anxious to draw every community towards itself and make all disaffected towards the British. This was the time when the Congress could have been expected to show to the Untouchables that the Congress stood for them and was prepared to serve them in the same way that it was prepared to serve the Musalmans. There could be no more propitious circumstance which could make the Hindus overcome their antipaty towards the Untouchables and undertake to serve. But even such propitious circumstance did not prove sufficient to energize Congressmen to do this small bit for the Untouchables. How hard must be the anti-social feelings of the Hindus against the Untouchables that even the highest bliss and the greatest stimulant, namely the prospect of winning, Swaraj, were not sufficient to dissolve that spirit. The tragedy and the shamelessness of this failure by the Congress to carry through their programme for the Untouchables is aggravated by the way in which the matter was disposed of.

The work of the amelioration of the Untouchables could not have been left in worse hands. If there is any body which is quite unfit for addressing itself to the problem of the Untouchables, it is the Hindu Mahasabha. It is a militant Hindu organization. Its aim and object is to conserve in every way everything that is Hindu, religious and

culture. It is not a social reform association. It is a purely political organization whose main object and aim is to combat the influence of the Muslims in Indian politics. Just to preserve its political strength it wants to maintain its social solidarity and its way to maintain social solidarity is not to talk about caste or untouchability. How such a body could have been selected by the Congress for carrying on the work of the Untouchables passes my comprehension. This shows that the Congress wanted somehow to get rid of an inconvenient problem and wash its hands of it. The Hindu Mahasabha, of course, did not come forth to undertake the work and the Congress had merely passed a pious resolution recommending the work to them without making any promise for financial provision. So the project came to an inglorious and ignominious end. Yet there will not be wanting thousands of Congressmen who would not be ashamed to boast that the Congress has been fighting for the cause of the Untouchables and what is worse is that there will not be wanting hundreds of foreigners who are ready to believe it under the false propaganda carried on by men like Charles F. Andrews, who is the friend of Mr. Gandhi and who thinks that to popularize Gandhi in the Western World is his real mission in life.¹

It is not enough to know that the effort failed and had to be wound up. It is necessary to inquire why Swami Shradhanand resigned and refused to serve on the proposed Committee. There must be some good reason for it. For the Swami was the most enlightened Arya Samajist and very conscientiously believed in the removal of untouchability. On this point, the correspondence that passed between the Swami and the General Secretary to the All India Congress Committee throws a flood of light on the mentality of the Congressmen and I make no apology for reproducing below the whole of it.

SWAMIJI'S LETTER

The General Secretary,
All-India Congress Committee,
Camp Delhi.

I acknowledge, with thanks, receipt of your letters No. 331 and 332 embodying resolutions of the working committee and of the A.I.C.C. about untouchability. I observe with pain, that the resolution of the A.I.C.C. as at present worded, does not include the whole of what was passed by the committee.

¹ Mr. Andrews once went to the length of defending the Caste system.

The facts are these. I sent the following letter to Mr. Vithalbhai Patel, the then General Secretary on 23rd May 1922, which was also published by the principal dailies of the country.

“My dear Mr. Patel, there was a time (vide *Young India* of 25th May, 1921) when Mahatmaji put the question of untouchability in the forefront of the Congress Programme. I find now that the question of raising the Depressed Classes has been relegated to an obscure corner. While Khadi claims the attention of some of our best workers and liberal sum has been earmarked for it, for the year, while a strong sub-committee has been appointed to look after national education and a special appeal for funds is to be made for the same, the question of the removal of untouchability has been shelved by making small grants to Ahmedabad, Ahmednagar and Madras. I am of opinion that with a majority of 6 crores of our brethren set against us by the beauracracy even the Khadi Scheme cannot succeed completely. The Members of the Working Committee, perhaps, do not know that on this side our suppressed brethren are leaving off Khadi and taking to buying cheap foreign cloth. I want to move the following resolution in the meeting of the A.I.C.C, which comes off on the 7th of June next at Lucknow.

“That a Sub-committee, consisting of three members of the A.I.C.C, be appointed to give effect to the resolution about the so-called Depressed Classes, that a sum of five Lakhs of rupees be placed at their disposal for propaganda work and that in future all applications for grants be referred to the said Sub-committee for disposal.”

My proposal was amended by the Working Committee and ran as follows :

“This Committee hereby appoints a committee consisting of Swami Shradhanand, Mrs. Sarojini Naidu and Messrs. G. B. Deshpande and I. K. Yajnik to formulate a scheme embodying practical measures to be adopted for bettering the condition of the so-called Untouchables throughout the country and to place it for consideration before the next meeting of the Working Committee, the amount to be raised for the scheme to be Rs. 2 lakhs for the present.”

Mr. Patel asked me to accept the Working Committee's proposed resolution in toto. I refused to accept the Working Committee's resolution and in the very first sitting of the All India Congress Committee substituted 5 lakhs for 2 lakhs with the condition that one lakh of the same be allotted by the A.I.C.C, out of the funds in its hands, in cash and an appeal be made for the balance.

Mr. Rajagopalachariar, on behalf of the Working Committee proposed that instead of fixing the amount to be allotted out of the

Congress funds now, it should be provided that when the Scheme was accepted by the Working Committee, that Committee should allot as much cash as it could then spare for this purpose. I do not recollect the exact words but the support of the amendment as given above is, to my knowledge, true.

On this an uproar arose and the query was pressed from all sides that the cash balance in the hands of the A.I.C.C. ought to be announced. The President called me aside and told me in confidence that the Congress possessed very little cash balance and if pressed to disclose the true state of affairs, it would harm the movement as outsiders and even C.I.D. people were also present. On this I accepted the amendment of Mr. Rajgopalchariar in spite of protests from my seconder and supporters. But my surprise was great when I found the resolution in the dailies, as reported by the associated press, shorn of Mr. Rajagopalchariar's amendment.

After the above resolution was passed, some members suggested that a convener of the Sub-committee ought to be appointed, several members proposed me as the convener. On this Mr. Vithalbhai Patel (the then General Secretary) got up and said, "As Swami Shradhanand's name occurs first, naturally he will be the convener and therefore there was no need of moving any fresh resolution at all."

Members from all parts of the country began to give information to me about untouchability in their provinces and pressed me to visit their parts. On this I made some promises. Then, I thought, that without some cash for preliminary expenses no enquiries, on the spot could be made and hence no proper scheme formulated. I also learnt that Rs. 25,000/- had been voted by the Working Committee for "*the Independent*" of Allahabad and that an application for grant of Rs. 10,000/- to the Urdu daily "*Congress*" of Delhi had been placed by Hakim Ajmal Khan and Dr. Ansari before the Working Committee. So, considering, that after all, the Congress might not be so hard pressed for cash, I wrote a letter addressed to the President asking him to give the Untouchability Sub-Committee an advance of Rs. 10,000/- for preliminary expenses.

After all this, the following resolution of the Working Committee forwarded by your letter No. 331 is very interesting reading:

"Read letter from Swami Shradhanand dated 8th June 1922 for an advance for drawing up a scheme for Depressed Class work—Resolved that Mr. Gangadharrao B. Deshpande be appointed convener of the Sub-committee appointed for the purpose and he be requested to convene a meeting at an early date, and that Swami Shradhanand's letter be referred to the Sub-committee."

There is another matter which is inexplicable. After my first letter had been acknowledged I addressed the following letter from Hardwar on 3rd June 1922 :

“My dear Mr. Patel, I shall leave Hardwar the day after tomorrow and reach Lucknow on the morning of June 6th. You know, by now, that I feel the most for the so-called Depressed Classes. Even in the Punjab I find that no attention worth the name has been paid to this item of the constructive programme. In the U.P. of course it will be an uphill work. But there is another very serious difficulty.

The Bardoli programme, in its note under item 4, lays down that where prejudice is still strong, separate wells and separate schools must be maintained out of the Congress funds. This leaves a loophole for those Congress workers who are either prejudiced against the Depressed Classes or are weak, and no work can be done in inducing people to agree to allow the Untouchables to draw water from common wells. In the Bijnoor District, I learn, there was no restriction and the Untouchables drew water freely from common wells. But in some places fresh prejudice is being engendered under the aegis of the Bardoli resolution note. In my recent visits to Ambala Cantt., Ludhiana, Batala, Lahore, Amritsar and Jandiala, I found that the question of the removal of disabilities of the Untouchables is being ignored. In and near Delhi it is the Dalitodhar Sabha, of which I am the President, rather than the Congress which is doing appreciable work. I think that unless item (4) of the Bardoli constructive programme is amended in proper form, the work, which I consider to be the most important plank in the Congress programme, will suffer.

Kindly place the following proposal before the President and if he allows it to be placed before the next meeting of the A.I.C.C. I shall move it there—“Instead of the Note under item (4) of the Bardoli resolution, substitute the following Note : “The following demands of the Depressed Classes ought to be complied with at once namely that (a) they are allowed to sit on the same carpet with citizens of other classes, (b) they get the right to draw water from common wells and (c) their children get admission into National schools and Colleges and are allowed to mix freely with students drawn from the so-called higher castes. I want to impress upon the members of the A.I.C.C. the great importance of this item. I know of cases where the Depressed Classes are in open revolt against tyranny of the so-called upper castes and unless the above demands are conceded to them they will succumb to the machinations of the bureaucracy.” After my first proposals were passed in the A.I.C.C. Meeting on June 7th at Lucknow, I asked Mr. Patel to put my proposed amendmant of Note to item (4) of

Bardoli resolution before the meeting. He told me that the Working Committee would refer it to the Sub-committee and asked me not to press it there. I agreed. But I have not received copy of any resolution of the Working Committee referring my proposal to the Untouchability Sub-committee.

The untouchability question is very acute in and near Delhi and I have to grapple with it at once. But the Sub-committee cannot begin work off-hand because the Working Committee has to take several other political situations in the country into consideration before deciding upon any scheme of practical measures to be adopted for uprooting untouchability on behalf of the Congress. Under these circumstances I cannot be of any use to the Sub-committee and beg to resign from membership.

Delhi, Jan. 30.

Yours sincerely,
Shradhanand Sanyasi.

SECRETARY'S REPLY

Dear Swamiji,

Your letter dated June 1922 received in my office on the 30th of that month has, by a resolution of the Working Committee passed in Bombay on the 18th instant, been referred to me with instructions to explain facts and request you to be good enough to reconsider your resignation from the Depressed Classes Sub-Committee.

As you are aware, I have no personal knowledge of the facts which happened prior to my release from the jail. But I was present at the meeting of the Working Committee which passed the resolution dated 10th June 1922 appointing Mr. Deshpande as the Convener of the Sub-committee. It was not then mentioned that there was any understanding about any particular member acting as the Convener of the Sub-committee and the whole resolution was passed merely to complete the necessary formalities in regard to the payment of money. It was felt that a formal resolution of the Sub-committee was necessary before any expenditure could be sanctioned. Mr. Deshpande was accordingly appointed as the convener and a sum of Rs. 500/- was voted for the expenses of these preliminary steps. By an oversight the resolution as drafted omitted to mention the sanction of Rs. 500/-. You will thus observe that it was not due to the unwillingness of Working Committee to sanction Rs. 10,000/- for untouchability, but the true reason for framing the resolution in the manner it was framed was what I have explained above. Nothing could be farther from the intention of the Working Committee than a desire to understand the

importance of the work your Sub-committee was called upon to do or in any way to ignore the valuable advice tendered by you. On your letter being placed before the last meeting of the Working Committee the omission of the grant of Rs. 500/- was supplied, and I was instructed to communicate with you on the subject. It will be a great pity if the Sub-committee is deprived of the benefit of your experience and special knowledge of the whole question of untouchability and I will ask you therefore in the public interest to reconsider your decision and wire to my office at Allahabad withdrawing your resignation from the Sub-Committee. I need hardly add that any resolutions arrived at by your Sub-Committee will receive all the consideration they deserve at the hands of the Working Committee.

As to the alteration in the Working Committee's resolution in regard to separate wells and schools, the best course would be for your Sub-Committee to recommend the change and for the Working Committee to adopt it.

I am afraid you are under a misapprehension as regards the grant to '*The Independent*', of Allahabad, and "*The Congress*" of Delhi. In reference to the former, all that has been done is to sanction the application of the U. P. Provincial Committee to advance as a loan to the "*nationalist journals*" Ltd., Rs. 25,000 from the funds already granted to that committee and in reference to the latter, the application for a grant of a loan was wholly rejected.

Yours sincerely,
Motilal Nehru.
General Secretary.

Bombay, July 23, 1922.

SWAMIJI'S REJOINDER

Dear Pandit Motilalji,

I received your letter of 23rd July 1922 addressed from Bombay on my resignation from the Untouchability Sub-Committee. I am sorry I am unable to reconsider it because some of the facts brought out by me in my first letter have simply been ignored.

(1) Kindly enquire of Mr. Rajagopalchariar whether I did not first propose that at least one lakh should be given in cash out of the funds in the hands of the A.I.C.C, whether he did not move an amendment substituting words for the above which purported to promise that when the plan of work formulated by the Sub-Committee was accepted by the Working Committee, that Committee would allot as much money for the untouchability department as it could then spare

and whether I did not accept his amendment when the President called me aside and explained the exact financial position at the time. If this is the fact then why did the amendment not appear with the resolution?

(2) Did you enquire of Mr. Vithalbhai J. Patel whether the members of the A.I.C.C. did not propose me as the convener of the Sub-Committee and whether he did not then say — “As Swami Shradhanand’s name occurs first, naturally he will be the convener and therefore there was no need of moving any fresh resolution at all” I enquired about this from Dr. Ansari and he wrote back to me on June 17th, 1922 saying that I was appointed convener. Dr. Ansari is with you and you can verify it from him. I hope Mr. Patel has not forgotten all about it.

(3) Then the immediate work among the Untouchables here is very urgent and I can not delay it for any reason whatever. Kindly have my resignation accepted in the next meeting of the Working Committee, so that I may be free to work out my own plan about the removal of untouchability. This was my position at the end of July last. My experience in the Amritsar and Mianwali jails and the information I gathered there, have confirmed me in the belief that unless sexual purity (Brahmacharya) is revived on the ancient Aryan lines and the curse of untouchability is blotted out of the Indian society, no efforts of the Congress nor of other patriotic organisations out of the Congress will avail in their efforts for the attainment of Swaraj. And as national self realization and virile existence is impossible without Swaraj, I, as a Sanyasi, should devote the rest of my life to this sacred cause—the cause of sexual purity and true national unity.

Delhi, July 23, 1922.

Shradhananda Sanyasi.

This shows what heart Congressmen had in the uplift work of the Untouchables.

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So much for what Congressmen volunteered to do. How much did congressmen or Mr. Gandhi help the Untouchables who were working independently for the uplift of their own people. This was the period when the Untouchables themselves were on the warpath. They too were engaged in offering civil disobedience against the Hindus for the purpose of acquiring their civic and social rights. This was the period during which the Untouchables of Bombay Presidency had launched their Satyagraha at Mahad for establishing their right to take water

from the public tank and at Nasik for establishing their right to enter a Hindu temple. How did Mr. Gandhi look upon this Satyagraha movement started by the Untouchables against the caste Hindus? The attitude of Mr. Gandhi to say the least was extremely queer.

In the first place Mr. Gandhi condemned this Satyagraha by the Untouchables against the caste Hindus. He would not support it. In this controversy the Untouchables were perfectly logical. They argued that if Civil Disobedience was the weapon which, according to Mr. Gandhi, the Hindus could legitimately use against the British for securing their freedom, why were the Untouchables not justified in using the same weapon against the caste Hindus for securing their emancipation. However good this logic Mr. Gandhi would have none of it. He tried to meet their logic by his logic. He argued that Untouchability was the sin of the Hindus. It is the Hindus who must therefore do penance. It is they who must offer Satyagraha for the removal of untouchability. Satyagraha was not the business of the Untouchables because they were not sinners, far from being sinners they were sinned against. This was of course not Aristotelian logic. It is a Mahatmian logic which is another name for casuistry. But it was apparent that this Mahatmian logic was simply nonsense. The Untouchables replied that if that was the view of Mr. Gandhi—namely that Satyagraha is penance which is for the sinner to offer—then why should he call upon the Hindus to offer Satyagraha against the British. British Imperialism was the sin of the British and therefore according to his logic the Satyagraha must be offered by the British and not by the caste Hindus. The Untouchables had destroyed his logic. It was clear that there was either a fallacy or insincerity in this attitude of Mr. Gandhi to Satyagraha by the Untouchables against caste Hindus. But the Untouchables could not dislodge Mr. Gandhi from the position of hostility which he had adopted.

There is another inconsistency in the attitude which Mr. Gandhi showed towards the Satyagraha by the Untouchables against Caste Hindus at Mahad and Nasik and the attitude he showed against similar Satyagraha by the Untouchables at Vaikom. Mr. Gandhi was in favour of the Satyagraha at Vaikom. He blessed it and encouraged it. Why then was Mr. Gandhi opposed to the Satyagraha at Mahad and Nasik? Was there any difference between the two? Yes, there was. The Vaikom Satyagraha was carried on by the Untouchables under the auspices of the Congress. The other two were launched by the Untouchables independently of the Congress. Had the opposition of Mr. Gandhi something to do with this difference? As Mr. Gandhi has given no answer I must leave the reader to make the best guess.

Perhaps Mr. Gandhi was not prepared to protect the lambs who would not accept him as their shepherd. When Mr. Gandhi refused to give his blessings to the Satyagraha by the Untouchables it was a foregone conclusion that no Congressmen would or could come and help the Untouchables in their struggle against the orthodox Hindus. Indeed this attitude of Mr. Gandhi enabled Congress Hindus to join the orthodox Hindus—they are kith and kin and the line that divides the two is very thin—and batter the heads of the Untouchables with a clear conscience. This was not the only mischief Mr. Gandhi did by his most illogical if not perverse attitude. He came out openly against all non-Hindus and prohibited them from helping the Untouchables in their Satyagraha struggle against the caste Hindus. He was not only against Mahomedans, Christians, Parsis and Jews rendering any help, but he went to the length of objecting to the Sikhs—who are no more than militant and protestant Hindus—coming to help the Untouchables. Here again his argument was queer. Untouchability is the sin of the caste Hindus. It is they who must do penance. Help to the Untouchables being a penance and penance being the obligation of the sinner, only the sinner could offer Satyagraha and help it. The Mahomedans, Christians, Parsis, Jews and Sikhs were not sinners in the matter of untouchability and therefore they could not help the Satyagraha for the removal of untouchability. Mr. Gandhi of course would not see it from the point of view of the Untouchables. He would not see that what was sin for the caste Hindus was slavery for the Untouchables. If the sinner was bound to do penance, the slave was entitled to break his bonds and every person who believed in freedom, no matter what his caste or his creed, was bound to help and free to join in the struggle. This is exactly the point of view which Mr. Gandhi had adopted with regard to the Khilafat question. The Musalman wanted Khilafat and the territorial integrity of Turkey. The demand for territorial integrity of Turkey was a most impossible demand because it involved the subjugation of the Arabs by the Turks. Still the Musalmans insisted upon it and Mr. Gandhi brought round the whole of the Congress and the Hindus to support this impossible and impious demand of the Musalmans. Mr. Gandhi then argued that if the Musalmans think it their religious duty to fight for the territorial integrity of Turkey, then it was the obligation of the Hindus to help the Muslims to fulfil their duty.¹

¹ At the special session of the Congress held at Calcutta in 1920 a resolution was passed of which the following is a part :

“In view of the fact that on the Khilafat question both Indian and Imperial Governments have signally failed in their duty towards the Musalmans of India, and the Prime Minister has deliberately broken his pledged word given to them, and that it is the duty of every non-Moslem India in every legitimate manner to assist his Musalman brother in his attempt to remove the religious calamity that has overtaken him.

The benefit of this logic Mr. Gandhi was not prepared to extend to the Untouchables. He was firm. Non-Hindus may help Hindus. Hindus may help non-Hindus. But none should help the Untouchables.¹ Friends of Mr. Gandhi were anxious to soften the rigour of his logic by pointing out that a distinction was necessary to be made on the basis of the nature of the disabilities of the Untouchables. They argued¹ that certain disabilities of the Untouchables were civic, certain were religious and that so far as the civic disabilities were concerned even non-Hindus should be allowed to help the Untouchables to carry on the Satyagraha. Even to this Mr. Gandhi was not prepared to listen. His interdict was applicable to all cases and there was no distinction possible. With this interdict on outside help Mr. Gandhi—the “friend of the Untouchables”—completely cut off the supplies of the Untouchables and left them without any sinews of war.

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So far I have explained how the Congress without any qualm of conscience abandoned the idea of uplifting the Untouchables. It did not even undertake it. Secondly I have explained how Mr. Gandhi failed to support the Untouchables in their Satyagraha against the caste Hindus but by his queer logic found justification for not helping them and for preventing help reaching them. There now remains to record the third and the last event which belongs to this period. Though last in point of time it is undoubtedly the first in point of importance. That incident is the touchstone by which Mr. Gandhi's claim as a friend of the Untouchables must stand or fall.

The incident relates to the demand made by the Representatives of the Depressed Classes at the Indian Round Table Conference for political safeguards being embodied in the new Constitution and the attitude of Mr. Gandhi to these demands. The most important of these demands related to representation of the Depressed Classes in the Legislatures. The demand submitted by the representatives of the Depressed Classes was in the following terms—

Adequate Representation in the Legislatures.

The Depressed Classes must be given sufficient political power to influence legislative and executive action for the purpose of securing their welfare. In view of this they demand that provisions shall be made in the electoral law to give them :

- (1) Right to adequate representation in the Legislatures of the Country, Provincial and Central.

¹ Young India.

- (2) Right to elect their own men as their representatives,
- (a) by adult suffrage and
 - (b) by separate electorates for the first ten years and thereafter by joint electorates and reserved seats, it being understood that joint electorates shall not be forced upon the Depressed Classes against their will unless such joint electorates are accompanied by adult suffrage."

It is this particular demand by the Depressed Classes which raised such a storm and which became so serious an issue that the solution of it almost shook the foundation of Indian politics and of Hindu Society.

This demand of the Depressed Classes was founded on the recommendation of the Simon Commission. After a careful survey of the problem of the Depressed Classes, the Simon Commission had reported to the following effect regarding their place under the new Constitution :

"It is clear that even with a considerable lowering of the franchise there would be no hope of the Depressed Classes getting their own representatives elected in general constituencies without special provision being made to secure it Ultimately we should hope to see them maintaining their ground in joint electorates without special protection..... They will make no headway, however, in this direction as long as they are represented solely by nomination, for nomination provides no opportunities for training them in politics. There are, even with the present restricted franchise, a sufficient number of Depressed Class voters to make methods of election possible

Our object, therefore, is to make a beginning which will bring the Depressed Classes within the circle of elected representation. How is this to be done ? Most of the Depressed Class associations which appeared before us favoured separate electorates, with seats allocated on the basis of population separate electorates would no doubt be the safest method of securing the return of an adequate number of persons who enjoy the confidence of the Depressed Classes; but we are averse from stereotyping the difference between the Depressed Classes and the remainder of the Hindus by such a step, which we consider would introduce a new and serious bar to their ultimate political amalgamation with others

Our proposal, therefore, is that in all the eight Provinces there should be some reservation of seats for the Depressed Classes..... The result of our Scheme would be that spokesmen of the Depressed Classes would be returned as elected members in each of

the Provinces As to the number of seats to be reserved, this should obviously bear some proportion to the total number of the Depressed Classes in the province We propose that the proportion of the number of such reserved seats to the total seats in all the Indian General constituencies should be three quarters of the proportion of the Depressed Classes population to the total population of the electoral area of the province.”¹

As a matter of fact there was nothing new in this demand of the Depressed Classes for separate political representation for themselves by themselves and through themselves and the Simon Commission in conceding it cannot be said to have made a new departure.

This demand was put forth in 1919.

At the time when the reforms which subsequently became embodied in the Act of 1919 were being discussed, the authors of the Montague Chelmsford Report clearly recognized the problem of the Untouchables and the authors pledged themselves to make the best arrangement for their representation in the Legislatures. But the Committee that was appointed under the Chairmanship of Lord Southborough to devise the franchise and the electoral system ignored them altogether. The Government of India did not approve of this attitude and made the following comments :

“They (Untouchables) are one-fifth of the total population and have not been represented at all in the Morley-Minto Councils. The Committee’s report mentions the Untouchables twice, but only to explain that in the absence of satisfactory electorates they have been provided for by nomination. It does not discuss the position of these people, or their capacity for looking after themselves. Nor does it explain the amount of nomination which it suggests for them The measure of representation which they propose suggested that one-fifth of the entire population of British India should be allotted seven seats out of practically eight hundred. It is true that in all the Councils there will be, roughly speaking, a one-sixth proportion of officials who may be expected to bear in mind their interests; but that arrangement is not, in our opinion, what the Report on reforms aims at. The authors stated that the Untouchables also should learn the lesson of self-protection. It is surely fanciful to hope that this result can be expected from including a single member of the community in an assembly where there are sixty or seventy caste Hindus. To make good the principles of the Report we must treat the outcastes more generously.”

¹ Report. Vol. II. pp. 65-66.

The Government recommended that the seats allotted to the Untouchables by the Committee should be doubled. Accordingly in place of seven, they were given fourteen seats.

Again in 1923, the Secretary of State appointed a Committee which is known as the Muddiman Committee. The principal object of the Committee was to find out how far the constitution established by the Act of 1919 could be expanded by alterations in the Rules and without altering the Act. The Committee made certain recommendations and pointed out the necessity of increasing the representation of the Depressed Classes in the Legislatures. This recommendation was accepted by the Secretary of State who increased the number of seats.

Thus the right of the Depressed Classes to special representation in the Legislature had become a principle which was not only accepted but adopted in the Constitution. So well was this principle recognized that it had been extended even to District Local Boards, School Boards and Municipalities.

A claim which had been given legal recognition in 1919 and which had thereby become a right and which had become perfected by use the representatives of the Depressed Classes felt could not be disputed by any body. There was no reason to fear that the Congress would come forward seriously to dispute this right of the Depressed Classes. Because although the Nehru Committee in 1929 in the Swaraj Constitution which it was asked to frame had denied this right to the Depressed Classes, the report of that Committee was not binding on the Congress. The Congress was bound by nothing except its own resolution which was passed in 1920, at its Nagpur Session to allay the fears of the Sikhs, and which had declared its policy to treat all minorities alike in the matter of representation in the Legislature¹.

The representatives of the Depressed Classes were therefore justified in hoping that their demand would go through without any difficulty whatsoever from any quarters.

At the first Round Table Conference things went very smoothly. There was no trouble of any kind and although there was no agreement on the minorities question, the right of the Depressed Classes to special representation was accepted by all sections that were represented at the Round Table Conference. The conclusions reached by the Minorities Sub-Committee were embodied in its report which

¹ The text of the resolution is as follows :

The Sikhs

“In view of the fact that misunderstanding exist among the Sikhs as to the position of their community in the future polity of India, this Congress assures the Sikhs that their interests will receive the same protection in any Scheme of Swaraj for India as is provided for Mahomedan and other minorities in provinces other than the Punjab.”

was presented to the General Conference. The following are the extracts from that report :

“There was general agreement with the recommendation of Sub-Committee No. II (Provincial Constitution) that the representation on the Provincial Executives of important minority communities was a matter of the greatest practical importance for the successful working of the new constitution, and it was also agreed that, on the same grounds, Mohammadans should be represented on the Federal Executive. On behalf of the smaller minorities a claim was put forward for their representation, either individually or collectively, on the Provincial and Federal Executives, or that, if this should be found impossible, in each Cabinet there should be a Minister specially charged with the duty of protecting minority interests. (Dr. Ambedkar and Sardar Ujjal Singh would add the words “and other important minorities” after the word Mohammadans in line 6).

The difficulty of working jointly responsible Executives under such a scheme as this was pointed out.”

“The discussion in the Sub-Committee has enabled the Delegates to face the difficulties involved in the schemes put up, and though no general agreement has been reached, its necessity has become more apparent than ever.”

“It has also been made clear that the British Government cannot, with any chance of agreement, impose upon the communities an electoral principle which, in some feature or other, would be met by their opposition. It was therefore plain, that, failing an agreement, separate electorates, with all their drawbacks and difficulties, would have to be retained as the basis of the electoral arrangements under the new constitution. From this the question of proportions would arise. Under these circumstances, the claims of the Depressed Classes will have to be considered adequately.”

“The Sub-Committee, therefore, recommend that the Conference should register an opinion that it was desirable that an agreement upon the claims made to it should be reached, and that the negotiations should be continued between the representatives concerned, with a request that the result of their efforts should be reported to those engaged in the next stage of these negotiations.”

Mr. Gandhi was not present at the first Round Table Conference because the Congress had boycotted it. He came for the Second Round Table Conference. What attitude did Mr. Gandhi take to this claim of the Depressed Classes ?

Every body expected that Mr. Gandhi would be more interested in seeing that the constitution that was likely to emerge from these deliberations and negotiations was a constitution which gave India *Purna Swaraj* i.e. complete independence and he would not interest himself in so unimportant a subject as the allocation of seats among the different minorities. But events completely falsified these hopes. Mr. Gandhi completely gave up his fight against British Imperialism altogether. He forgot that he had come with a mandate¹ to secure a constitution which contained *Purna Swaraj*. He left that issue and started fighting the minorities and what is so strange he concentrated all his fire upon the representatives of the Untouchables for daring to put forth the claim for special representation. Mr. Gandhi opposed tooth and nail the representatives of the Depressed Classes. He was not even prepared to look at their claim. He was annoyed at their impudence and the whole Conference was astonished by his opposition. They could not understand how a man like Mr. Gandhi who posed himself as the friend of the Untouchables could in fact be so great an enemy of their interests. His friends were completely baffled. Mr. Gandhi was prepared to recognize a similar right claimed by the Musalmans and to the Sikhs and although he was not prepared to recognize a similar claim by Christians, Europeans and Anglo-Indians he was not going to oppose their claim. Mr. Gandhi's friends could not understand how he could deny a similar right to the Untouchables. The Mohamedans, Sikhs, Christians, Europeans and Anglo-Indians were far better off than the Untouchables. The former were economically far better placed. The latter were poorest of the poor. The former were educationally advanced, the latter were educationally most backward. The former were socially well respected, the latter were socially despised. The former enjoyed a position of free citizens. The latter were suffering from certain disabilities. The former were not subjected to social tyranny and social boycott but social tyranny and social boycott were the every day lot of the latter. Having regard to this difference in status there could never be any doubt that if there was any section of the Indian people whose case called forth

¹ The following resolution embodies the mandate which the Congress imposed upon Mr. Gandhi when he was chosen by the Congress as its delegate. (This was a resolution passed at the Karachi Congress).

"This Congress, having considered the provisional settlement between the Working Committee and the Government of India, endorses it, and desires to make it clear that the Congress goal of *Purna Swaraj*, meaning complete independence, remains intact. In the event of a way remaining otherwise open to the Congress to be represented at any conference with the representatives of the British Government, the Congress delegation will work for this goal, and in particular so as to give the nation control over the army, external affairs, finance, fiscal and economic policy, and to have a scrutiny by an impartial tribunal of the financial transactions of the British Government in India, and to examine and assess the obligations to be undertaken by India or England and the right to either party to end the partnership at will; provided, however, that the Congress delegation will be free to accept such adjustments as may be demonstrably necessary in the interests of India."

special protection, they were the Untouchables. When his European friends tried thus to argue with Mr. Gandhi, Mr. Gandhi used to fly into temper and his relations with two of the best of them to my knowledge had become quite strained on this account.

Mr. Gandhi's anger was largely due to the fact he could give no rational answer which could convince his opponents that his opposition to the claim of the Depressed Classes was sincere and was founded upon the best interests of the Depressed Classes. He nowhere gave a consistent explanation of his opposition to the Depressed Classes. Reading his speeches in London while he was there one can see that he was using three arguments in support of his position. Speaking as a member of the Federal Structure Committee of the Round Table Conference Mr. Gandhi said :

"The Congress has from its very commencement taken up the cause of the so-called "untouchables". There was a time when the Congress had at every annual session as its adjunct the Social Conference, to which the late Ranade had dedicated his energies, among his many activities. Headed by him, you will find in the programme of the Social Conference, reform in connection with the Untouchables taking a prominent place. But in 1920, the Congress took a large step, and brought the question of the removal of untouchability as a plank on the political platform, and made it an important item of the political programme. Just as the Congress considered Hindu-Muslim Unity, thereby meaning unity amongst all classes, to be indispensable for the attainment of Swaraj, so also did the Congress consider the removal of the curse of untouchability as an indispensable condition for the attainment of full freedom."

At the minorities Sub-Committee of the Round Table Conference Mr. Gandhi used another argument. He said :

"I can understand the claims advanced by other minorities, but the claims advanced on behalf of the untouchables is to me the "unkindest cut of all". It means the perpetual barsinister. I would not sell the vital interests of the untouchables even for the sake of winning the freedom of India. I claim myself, in my own person, to represent the vast mass of the untouchables. Here I speak not merely on behalf of the Congress, but I speak on my own behalf, and I claim that I would get, if there was a referendum of the untouchables, their vote, and that I would top the poll. And I would work from one end of India to the other to tell the untouchables that separate electorates and separate reservation is not the way to remove this bar-sinister, which is the shame, not of them, but of orthodox Hinduism. Let this committee and let the whole world

know that today there is a body of Hindu reformers who are pledged to remove this blot of untouchability. We do not want on our register and on our census, untouchables classified as a separate class. Sikhs may remain as such in perpetuity, so may Moslems, so may Europeans. Will untouchables remain untouchables in perpetuity? I would far rather than Hinduism died than that untouchability lived. Therefore, with all my regard for Dr. Ambedkar, and for his desire to see the untouchables uplifted, with all my regard for his ability I must say, in all humility, that here is a great wrong under which he has laboured and, perhaps, the bitter experiences he has undergone have for the moment warped his judgment. It hurts me to have to say this but I would be untrue to the cause of untouchables, which is as dear to me as life itself, if I did not say it. I will not bargain away their rights for the kingdom of the whole world. I am speaking with a due sense of responsibility, when I say it is not a proper claim which is registered by Dr. Ambedkar when he seeks to speak for the whole of untouchables in India. It will create a division in Hinduism which I cannot possibly look forward to with any satisfaction whatsoever, I do not mind the untouchables being converted into Islam or Christianity. I should tolerate that but I cannot possibly tolerate what is in store for Hinduism if there are these two divisions set forth in the villages. Those who speak of political rights of untouchables do not know India and do not know how Indian society is today constructed. Therefore, I want to say with all the emphasis that I can command that if I was the only person to resist this thing I will resist it with my life."

At a meeting at the Friends House in London Mr. Gandhi relied upon quite a different argument. He is reported to have said¹:

"I have told you what is agitating my mind. You may take the Congress to be incapable of bartering away the minorities rights. The untouchables, I know, as one can claim to know. It would be equal to killing them if separate electorates were given them. They are at present in the hands of the superior classes. They can suppress them completely and wreck vengeance upon the untouchables who are at their mercy and it is because I want to prevent that thing happening that I would fight the demand for separate electorates for them. Whilst I am saying this, I know, I am opening out my shame to you. But in the existing state of things how could I invite destruction for them? I would not be guilty of that crime."²

¹ Young India—Nov. 19, 1931.

² From this, one is likely to get the impression that Mr. Gandhi was opposed only to separate electorates and that Mr. Gandhi was prepared to give to the untouchables joint electorates AND RESERVED seats being granted to the untouchables was made clear by him at the Round Table Conference. I give below the following extract from his speech in the minorities sub-Committee :

"I would like to repeat what I have said before, that while the Congress will always accept any solution that may be acceptable to the Hindus, the Musalmans and the Sikhs, the Congress will be no party to special reservation or special electorates for any other minorities."

Dr. Ambedkar, as able as he is, has unhappily lost his head over this question. I repudiate his claim to represent them.”

None of his arguments carried any conviction. Indeed they could not. They were all spacious and they had the ring of special pleadings.

His first argument, that the Congress was pledged to look after the untouchables, to remove their untouchability—Was this argument founded in truth? Mr. Gandhi has been telling the world that the whole body of Congress has been pledged to remove untouchability and his friends have been giving him credit for getting the Congress to do what the Congress before him was not prepared to do. I am surprised how so false a view could have been given such a wide currency. I have read and re-read the Resolution passed by the Congress in 1920 at Nagpur which is the basis of such an assertion as is made by Mr. Gandhi and his friends, and I am sure every one who reads that resolution will agree that the text of the resolution gives no warrant for such an assertion. The resolution is a very clever piece of Gandhian tactics. Mr. Gandhi has been very anxious from the very beginning to keep the untouchables a close preserve of the Hindus. He did not want Musalmans or Christians to be interested in them. He wanted that the Untouchables who were attached to the British should be detached from them and attached to the Hindus. The second object could be achieved only if the resolution in favour of the removal of untouchability was passed from the Congress platform. To achieve this it was necessary to confine this duty only to the Hindus. This is what the resolution does. It is a clever move on the part of a cunning politician. The resolution does not put the Congress as a whole behind this resolution. Secondly, in what it does there is nothing that is obligatory in it. There is no pledge, there is no vow. There is only moral exhortation. It only recommends to the Hindus that removal of untouchability is their duty. Once Mr. Gandhi tried to alter the conditions for membership of the Congress. Instead of the payment of four annas per annum being the condition of membership Mr. Gandhi wanted to lay down two conditions : (1) removal of untouchability and (2) spinning yarns. Congressmen were prepared to accept spinning of yarn as a condition of membership. But they were not prepared to accept removal of untouchability as a condition. Congressmen told Mr. Gandhi that if he insisted upon it all Congress Committees will have to be closed down. So strong was the opposition that Mr. Gandhi had to withdraw his proposal. That being the case for Mr. Gandhi to have urged before the Round Table Conference that the Congress was pledged to remove untouchability and that the untouchables could safely be left to the mercy of the Hindus shows that even Mr. Gandhi is capable of economising truth to a vanishing point.

The next argument of Mr. Gandhi that the removal of untouchability was made by the Congress a condition precedent to Swaraj urged to prove the sincerity of the Congress could not be taken at its face value by the obvious insincerity of the Congress and Mr. Gandhi. Untouchability was as it had been, yet the Congress and Mr. Gandhi had come forth to demand independence. This was enough to show that Mr. Gandhi did not believe in what he said on this point. No one in India, at any rate no one from among the Untouchables believed in this declaration of Mr. Gandhi and his Congress that for them removal of untouchability was a condition precedent to Swaraj. Long before the Round Table Conference Mr. Gandhi was questioned to test his sincerity on two occasions and the answers he gave on both left no doubt that even he did not believe this declaration.

In 1920 a correspondent asked Mr. Gandhi the following question¹:

“Should not we the Hindus wash our bloodstained hands before we ask the English to wash theirs?”

To this Mr. Gandhi gave the following reply :

“A correspondent indignantly asks me in a pathetic letter reproduced elsewhere what I am doing for the (untouchables). I have given the letter with the correspondent’s own heading. ‘Should not we the Hindus wash our bloodstained hands before we ask the English to wash theirs?’ This is a proper question reasonably put. And if a member of a slave nation could deliver the suppressed classes from their slavery without freeing myself from my own, I would so do today. But it is an impossible task”

Does this show that Mr. Gandhi and the Congress were sincere when they said that removal of untouchability was a condition precedent to Swaraj? That this is not the argument of a sincere man is shown by the fact that at a later time Mr. Gandhi himself has ridiculed a correspondent who urged upon Mr. Gandhi the desirability of keeping aside the question of the Untouchables until the Hindus had won Swaraj.

The second occasion on which Mr. Gandhi was questioned was when he went to Dandi in March in 1930 to make Salt Satyagraha contrary to law. Some Untouchables went to Dandi and questioned him. They asked him what happened to his declaration that removal of untouchability was condition precedent to Swaraj. Mr. Gandhi’s reply as reported to me was this :

“The Untouchables are a part of a whole. I am working for the whole and I therefore believe that I am therefore working for the Untouchables who are a part of the whole.”

¹ Young India, 27th Oct. 1920.

There is nothing to prove this except what was reported to me by those who had been to see Mr. Gandhi at Dandi. But I have no doubt that Mr. Gandhi must have said something to that effect. For what he is reported to have said tallies with what he has said in his reply in *Young India* referred to above in reply to the same correspondent. This is what Mr. Gandhi then said :

“..... though the *Panchama* Problem is as dear to me as life itself, I rest satisfied with the exclusive attention to non-cooperation. I feel sure that the greater includes the less.”

Are these the answers of a sincere man ? Can a sincere man believe that the untouchables are a part of a whole.

As to his argument that special representation to the untouchables would perpetuate the existing separation between the touchables and the untouchables was an argument which was absolutely hollow. The way to remove untouchability is to introduce intermarriage and interdining. The way to remove the disabilities of the untouchables is to admit them to the use of the common well and common school. It is difficult to understand that special representation can come in the way of intermarriage, interdining and the use of a common well and a common school. On the other hand the introduction of these would be only way of disproving the necessity of special representation. Had Mr. Gandhi and the Congress done anything in this direction ? The explanatory note added to the Bardoli resolution shows how far Gandhi and the Congress were prepared to go in this direction. The note says :

“Whilst therefore where the prejudice against the untouchables is still strong in places, separate schools and separate wells must be maintained out of Congress funds, every effort should be made to draw such children to national schools and to persuade the people to allow the untouchables to use the common wells.”

Can it lie in the mouth of persons who want to maintain separate wells, separate schools to say that they object to separate representation because it will cause separation ? It is only persons who are bent on breaking down barriers who can speak against separate representation and ask to be believed in the sincerity of their argument.

Mr. Gandhi's last argument was a fantastic argument. If the superior classes can suppress the untouchables and wreck vengeance upon them then there is all the greater reason why they should be given special representation so that they may protest themselves against the tyranny of the superior classes. Mr. Gandhi had become desperate and had lost his equanimity and balance to such an extent that he did not know where his arguments would lead him. In using this argument he

evidently forgot that he was arguing for the perpetual enslavement of the Untouchables by the Hindus. Mr. Gandhi's argument in short was "don't ask for freedom, because it will enrage your master and he will illtreat you". If such an argument had been advanced by any one else he would have been told that he was purile and insincere.

Having failed to demolish the justice of the claim of the Untouchables Mr. Gandhi decided to isolate the representatives of the Depressed Classes, to see that they got no support from any other quarter, Gandhi planned to break a possible compact between the Depressed Classes and the Muslims. A part of the plan was to win over the Musalmans to his side and for that purpose he offered to enter into a pact with them. A copy of this pact which was circulated among the Muslim delegates came into my hands and I reproduce the same here. (*This text is reproduced below from Dr. Ambedkar's "What Congress and Gandhi have done to the Untouchables", pp. 72-73 which is not typed in the MS.—Ed.*)

"DRAFT OF GANDHI-MUSLIM PACT"¹

*Muslim Delegation to the Round Table Conference*²

Tel. : VICTORIA 2360

Telegrams "COURTLIKE" LONDON

QUEEN'S HOUSE,

57, ST. JAMES' COURT,

BUCKINGHAM GATE,

LONDON, S. W. 1

6th October 1931.

The following proposals were discussed by Mr. Gandhi and the Muslim Delegation at 10 p.m. last night. They are divided into two parts—The proposals made by the Muslims for safeguarding their rights and the proposals made by Mr. Gandhi regarding the Congress policy. They are given herewith as approved by Mr. Gandhi, and placed for submission to the Muslim Delegation for their opinion.

MUSLIM PROPOSALS

1. In the Punjab and Bengal bare majority of one per cent. of Musalmans but the question of whether it should be by means of joint electorates and reservation of 51 per cent. of the whole house should be referred to the Musalman voters before the new constitution comes into force and their verdict should be accepted.

MR. GANDHI'S PROPOSALS

1. That the Franchise should be on the basis of adult suffrage.

2. *No special reservations to any other community save Sikhs and Hindu Minorities. (Italics are not in the original).*

¹ This document was printed by me in my *Thoughts on Pakistan* as Appendix in 1939. It was the first time it saw the light of the day. Its genuineness has never been questioned. I was able to get a copy from a Hindu Delegate to the Round Table Conference who was privileged by the Muslim League to share the secret.

² 'This shows that the document was typed on the stationery of the Muslim League Delegation.'

MUSLIM PROPOSALS

2. In other provinces where the Musalmans are in a minority the present weightage enjoyed by them to continue, but whether the seats should be reserved to a joint electorate, or whether they should have separate electorates should be determined by the Musalman voters by a referendum under the new constitution, and their verdict should be accepted.

3. That the Musalman representatives to the Central Legislature in both the houses should be 26 per cent. of the total number of the British India representatives, and 7 per cent. at least by convention should be Musalmans, out of the quota that may be assigned to Indian States, that is to say, one-third of the whole house when taken together.

4. That the residuary power should vest in the federating Provinces of British India.

5. That the other points as follows being agreed to :

1. Sindh.¹

2. N.W.F.P.²

3. Services.³

4. Cabinet.⁴

5. Fundamental rights and safeguards for religion and culture.

6. Safeguards against legislation affecting any community.

MR. GANDHI'S PROPOSALS

The Congress demands:

A. Complete Independence.

B. Complete control over the defence immediately.

C. Complete control over external affairs.

D. Complete control over Finance.

E. Investigation of public debts and other obligations by an independent tribunal.

F. As in the case of a partnership, right of either party to terminate it.

¹ Stands for separation of Sindh.

² Stands for Provincial Autonomy and Responsible Government for the N.W.F. Province.

³ Stands for Representation in Services.

⁴ Stands for Representation in the Cabinet.

This is the agreement which Mr. Gandhi was prepared to enter with the Musalmans. By this agreement Mr. Gandhi was prepared to give to the Musalmans the fourteen points they had been demanding. In return Mr. Gandhi wanted the Musalmans among other things to agree to continue the benefit of the principle of special representation to Hindus, Muslims and Sikhs. Some one might ask what is wrong in such an agreement. Has not the Congress said that they will not agree to extend communal representation to others besides these three ? Such a view cannot but be treated as a superficial view. Those who see nothing wrong in it must answer two questions. First is this. Where was the necessity for Mr. Gandhi to get the Musalmans to agree to the Congress policy of not extending the benefit of special representation to other minorities and the untouchables. Mr. Gandhi could have said as the Congress had been saying to the other minorities he was not prepared to agree to their claim. Why did he want the Musalmans to join him in resisting their claim ? And if this was not his object why did he make it a term of the agreement which the Musalmans were to perform in return for what he agreed to do for them.

Secondly why did Mr. Gandhi come forward to give the Musalmans their fourteen demands at this particular juncture. These fourteen political demands of the Musalmans rightly or wrongly were rejected by all. They were rejected by the Hindu Maha-Sabha. They were rejected by the Simon Commission. They were rejected by the Congress. There was no support for these 14 demands of the Musalmans from any quarter whatsoever. Why did Mr. Gandhi become ready to grant them except with the object of buying the Musalmans so that with their help he could more effectively resist the demand of the other minorities and the untouchables ?

In my view Mr. Gandhi was not engaged in making any bona-fide agreement. He was inducing the Musalmans to join in a conspiracy with him to resist the claim of the smaller minorities and the untouchables. It was not an agreement with the Musalmans. It was a plot against the Untouchables. It was worse, it was a stab in the back.

This so-called agreement fell through because among other reasons it was impossible for the Mahomedans to agree to the exclusion of the Untouchables from the benefit of special representation. How could the Muslims agree to such a project ? They were fighting for special representation for Muslims. They were not only fighting for special representation, they were fighting for weightage in representation. They knew that the case for Muslims rested only on the ground that India was once ruled by the Musalmans, that they had political importance to maintain and as Hindus are likely to discriminate

against Muslims in elections to the Legislatures, there may not be sufficient Muslims returned to the Legislature, that the Muslims will sink politically and that to prevent such a calamity they must be given special representation. As against this one ground in favour of Muslims there were a hundred grounds in favour of the claim by the Untouchables. With what face could the Musalmans oppose this demand of the Untouchables ?

The Musalmans had not lost their balance or their sense of shame. They refused to be party to such a deal—a deal which they could not publicly defend. Mr. Gandhi still kept on pestering the Musalmans. When he could not induce them to accept the price he offered—namely the grant of fourteen points—because they felt that the world would not call it price but would call it the wages of sin, Mr. Gandhi sought to appeal to the religious scruples of the Musalmans. The day before the *13th November*¹ 1931 when the *minorities pact*² was presented to the Minorities Sub-Committee of the Round Table Conference Mr. Gandhi took a copy of the Koran and went to the Ritz Hotel in Piccadilly where the Rt. Hon. H. H. Aga Khan was staying to meet the Muslim delegates who had assembled there. To Muslim delegates he asked—“Why are you dividing the Hindu Community which you are doing by recognizing the claim of the Untouchables for separate representation ? Does the Koran sanction such a deed ? Show me where it does ? If you cannot, will you not stop perpetrating such a crime upon your sister Community ?” I do not know how the Muslim delegates answered this question of Mr. Gandhi. It must have been a very difficult question for them to answer. Such a contingency could not have been present to the mind of the Holy Prophet and he could not have provided for it specifically. His followers knew that contingencies would arise for which he had given no directions and they had therefore asked him what they should do, and the Prophet had given them this general direction. He said to them, “in such a case see what the Kaffirs are doing and do just the opposite of it”³. Whether the Muslim delegates relied upon this to answer Mr. Gandhi is more than I can say. What I have stated is what I have heard and my source is the most authentic source. Here again Mr. Gandhi failed because the next day in the open Committee when Mr. Gandhi let loose his fury against the Untouchables, the Mahomedans were silent.

What can one say of this conduct of Mr. Gandhi ? Mr. Bernard Shaw has said that the British do everything on principle.

¹ See Ambedkar, B. R., “What Congress and Gandhi have been done to the Untouchables”, p. 67.—Ed.

² *Ibid.* . Appendix III, pp. 307-11.

³ See Koran.

Similarly Mr. Gandhi says he does everything on the principle of morality and good faith. Can the acts of Mr. Gandhi be justified by tests of justice and good faith? I wonder. Let me state a few facts. Before I left for London for the first Round Table Conference I had met Mr. Gandhi in Bombay. At that meeting I had informed Mr. Gandhi that at the Round Table Conference I would be asking for special representation for the Untouchables. Mr. Gandhi would not consent. But he also told me that he would not oppose. I felt that it was just a case of difference of opinion. At the second Round Table Conference I met Mr. Gandhi twice, once alone and second time along with the representatives of the smaller minorities. At the first meeting Mr. Gandhi was spinning and I was talking. I spoke for an hour during the whole of which he did not utter even a word. At the end he just said this much.

‘I have now heard you. I will think over what you have said.’ At the second interview he again heard me and the representatives of the smaller minorities and he told me that he was not prepared to agree to the claim I was making on behalf of the Untouchables. Thereafter the Minorities Sub-Committee was convened on 28th September 1931. At the meeting of the Sub-Committee on 1st October 1931, the following motion was made by Mr. Gandhi :

“‘Prime Minister, after consultation with His Highness the Aga Khan and other Muslim friends last night, we came to the conclusion that the purpose for which we meet here would be better served if a week’s adjournment was asked for. I have not had the opportunity of consulting my other colleagues, but I have no doubt that they will also agree in the proposal I am making.”

The proposal was seconded by the Aga Khan. I at once got up and objected to the motion and in support of my objection made the following statement*¹ :

“‘*Dr. Ambedkar*: I do not wish to create any difficulty in our making every possible attempt to arrive at some solution of the problem with which this Committee has to deal, and if a solution can be arrived at by the means suggested by Mahatma Gandhi, I, for one, will have no objection to that proposal.

“‘But there is just this one difficulty with which I, as representing the Depressed Classes, am faced. I do not know what sort of committee Mahatma Gandhi proposes to appoint to consider this question during the period of adjournment, but I suppose that the Depressed Classes will be represented on this Committee.

Mr. Gandhi : Without doubt.

*¹ Following extracts up to p. 305 ending with words ‘informal meetings’ are reproduced from “What Congress and Gandhi have done to the Untouchables”. pp. 60-62. not typed in the MS.— Ed.

Dr. Ambedkar : Thank you. But I do not know whether in the position in which I am today it would be of any use for me to work on the proposed Committee. And for this reason. Mahatma Gandhi told us on the first day that he spoke in the Federal Structure Committee that as a representative of the Indian National Congress he was not prepared to give political recognition to any community other than the Muhammadans and the Sikhs. He was not prepared to recognize the Anglo-Indians, the Depressed Classes, and the Indian Christians. I do not think that I am doing any violence to etiquette by stating in this Committee that when I had the pleasure of meeting Mahatma Gandhi a week ago and discussing the question of the Depressed Classes with him, and when we, as members of the other minorities, had the chance of talking with him yesterday, in his office, he told us in quite plain terms that the attitude that he had taken in the Federal Structure Committee was a firm and well considered attitude. What I would like to say is that unless at the outset I know that the Depressed Classes are going to be recognised as a community entitled to political recognition in the future Constitution of India, I do not know whether it will serve any purpose for me to join the committee that is proposed by Mahatma Gandhi to be constituted to go into this matter. Unless, therefore, I have an assurance that this Committee will start with the assumption that all those communities which the Minorities Sub-Committee last year recommended as fit for recognition in the future constitution of India will be included, I do not know that I can wholeheartedly support the proposition for adjournment, or that I can whole-heartedly co-operate with the Committee that is going to be nominated. That is what I wish to be clear about.

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“*Dr. Ambedkar* : I should like to make my position further clear. It seems that there has been a certain misunderstanding regarding what I said. It is not that I object to adjournment; it is not that I object to serving on any Committee that might be appointed to consider the question. What I would like to know before I enter upon this Committee, if they give me the privilege of serving on it, is : What is the thing that this Committee is going to consider ? Is it only going to consider the question of the Muhammadans *vis-a-vis* the Hindus ? Is it going to consider the question of the Muhammadans *vis-a-vis* the Sikhs in the Punjab ? Or is it going to consider the question of the Christians, the Anglo-Indians and the Depressed Classes ?

“If we understand perfectly well before we start that this committee will not merely concern itself with the question of the Hindus and the Muhammadans, of the Hindus and the Sikhs, but will also take upon itself the responsibility of considering the case of the Depressed Classes, the Anglo-Indians and the Christians, I am perfectly willing to allow this adjournment resolution to be passed without any objection. But I do want to say this, that if I am to be left out in the cold and if this interval is going to be utilised for the purposes of solving the Hindu-Muslim question, I would press that the Minorities Committee should itself grapple with the question and consider it, rather than allow the question to be dealt with by some other informal Committee for arriving at a solution of the communal question in respect of some minorities only.”

The Prime Minister as Chairman of the Committee called upon Mr. Gandhi to explain his position and Mr. Gandhi made the following statement in reply¹:

“Prime Minister and friends, I see that there is some kind of misunderstanding with reference to the scope of the work that some of us have set before ourselves. I fear that Dr. Ambedkar, Colonel Gidney and other friends are unnecessarily nervous about what is going to happen. Who am I to deny political status to any single interest or class or even individual in India? As a representative of the Congress I should be unworthy of the trust that has been reposed in me by the Congress if I were guilty of sacrificing a single national interest. I have undoubtedly given expression to my own views on these points. I must confess that I hold to those views also. But there are ways and ways of guaranteeing protection to every single interest. It will be for those of us who will be putting our heads together to try to evolve a scheme. Nobody would be hampered in pressing his own views on the members of this very informal conference or meeting.

“I do not think, therefore, that anybody need be afraid as to being able to express his opinion or carrying his opinion also. Mine will be there equal to that of every one of us; it will carry no greater weight; I have no authority behind me to carry my opinion against the opinion of anybody. I have simply given expression to my views in the national interest, and I shall give expression to these views whenever they are opportune. It will be for you, it is for you to reject or accept these opinions. Therefore please disburse your minds, to everyone of us, of the idea that there is going to be any

¹ See “What Congress and Gandhi have done to the Untouchables”, p. 62.

(both the above extracts are not mentioned in the MS).—Ed.

steam-rolling in the Conference and the informal meetings that I have adumbrated. But if you think that this is one way of coming closer together than by sitting stiffly at this table, you will not carry this adjournment motion but give your whole-hearted co-operation to the proposal that I have made in connection with these informal meetings.”

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I then withdrew my objection.

Now here is a definite word given by Mr. Gandhi in open Conference—namely that if all others agreed to recognize the claim of the Untouchables he would not object. And after having given this word Mr. Gandhi went about inducing the Musalmans not to recognize the claim of the Untouchables and to bribe them to resile and take back their plighted word!! Is this good faith or is this treachery? If this is not treachery I wonder what else could be called treachery.

I was pilloried because I signed what is called the Minorities Pact. I was depicted as a traitor. I have never been ashamed of my signature to the pact. I only pity the ignorance of my critics. They forget that the minorities could have taken the same attitude that Ulster took towards Irish Home Rule. Redmond was prepared to offer any safeguard to Ulstermen. The Ulstermen's reply was, "Damn your safeguards we don't wish to be ruled by you". The Hindus ought to thank the minorities that they did not take any such attitude. All the Pact contained were safeguards and nothing more. Instead of thanking them Mr. Gandhi poured his vials of wrath upon the pact and its authors. He said :

"Coming to this document¹, I accept the thanks that have been given to me by Sir Hubert Carr. Had it not been for the remarks that I made when I shouldered that burden, and had it not been for my utter failure to bring about a solution, Sir Hubert Carr rightly says he would not have found the very admirable solution that he has been able, in common with the other minorities, to present to this Committee for consideration and finally for the consideration and approval of His Majesty's Government."

"I will not deprive Sir Hubert Carr and his associates of the feeling of satisfaction that evidently actuates them, but, in my opinion, what they have done is to sit by the carcass, and they have performed the laudable feat of dissecting that carcass."

¹ Reference is to the Minorities Pact.

Had Mr. Gandhi any right to be indignant ? Had he any right to feel morally offended ? Was he entitled to throw stones at the Minorities ? Mr. Gandhi forgot that he was as much a sinner as the Minorities and worse he was a sinner without a sense of justice. For if the Minorities were dividing the carcass what was Mr. Gandhi himself doing ? He too was busy in dividing the carcass. The only difference between Mr. Gandhi and the Minorities was this—Mr. Gandhi wanted that the carcass should be divided among three only, Hindus, Musalmans and Sikhs. The Minorities wanted that others also should be given a share, and which of these two can claim to have justice on its side, Mr. Gandhi who wanted that the division of the carcass should be to strong sturdy well-nourished wolves or the minorities who pressed that the lean and hungry lambs should also be given a morsel ? Surely in this controversy justice was not on the side of Mr. Gandhi.

Mr. Gandhi was the man who claimed to be the Champion of the Untouchables better than those who belonged to the Untouchables themselves. Claiming to be their champion he refused without any regard to morality, justice and necessity, their claim to representation which could be their only way to protection against social tyranny and social oppression while he was prepared to give to the Musalmans, the Hindus and the Sikhs a goodly share of political power. When others far better placed were claiming for power, Mr. Gandhi wanted the Untouchables to live under his providence and that of the Congress without any means of protection knowing full well that their lives were exposed to danger and humiliation every moment and when he came to know that the Untouchables were seeking outside aid in support of their claim Mr. Gandhi resorted to a terrible act of treachery. Were the Untouchables unjustified in presenting to the world their charge sheet against Mr. Gandhi when he arrived in Bombay from the Round Table Conference ?

CHAPTER 25

GANDHI AND HIS FAST

I. Poona Pact. II. Harijan Sevak Sangh. III. Temples and Untouchables. IV. The Gandhian Way.

I

The Communal question was the rock on which the Indian Round Table Conference suffered a shipwreck. The Conference broke up as there could be no agreement between the majority and minority communities. The minorities in India insisted that their position under Swaraj should be safeguarded by allowing them special representation in the Legislatures. Mr. Gandhi as representative of the Congress was not prepared to recognize such a claim except in the case of the Muslims and the Sikhs. Even in the case of the Muslims and Sikhs, no agreement was reached either on the question of the number of seats or the nature of the electorates.

There was a complete deadlock. As there was no possibility of an agreement, the hope lay in arbitration. On this everybody was agreed except myself and it was left to Mr. Ramsay Macdonald, the Prime Minister to decide upon the issue.

When at the first Round Table Conference, the Indian delegates did not agree upon a solution of the Communal question, followers of Mr. Gandhi said that nothing better could be expected from them. It was said that they were unrepresentative and responsible to nobody and were deliberately creating disunity by playing into the hands of the British whose tools and nominees they were. The world was told to await the arrival of Mr. Gandhi, whose statesmanship it was promised would be quite adequate to settle the dispute. It was therefore a matter of great humiliation for the friends of Mr. Gandhi that he should have acknowledged his bankruptcy and joined in the request to the Prime Minister to arbitrate.

But if the Conference failed the fault is entirely of Mr. Gandhi. A more ignorant and more tactless representative could not have been

sent to a Conference which was convened to forge a constitution which was to reconcile the diverse interests of India. Mr. Gandhi was thoroughly ignorant of Constitutional Law or Finance. He does not believe in intellectual equipment. Indeed he has a supreme contempt for it and his contributions to the solutions of the many difficulties is therefore nil. He was tactless because he annoyed almost all the delegates by constantly telling them that they were nonentities and he was the only man who counted and who could deliver the goods. At the first Round Table Conference the delegates did not agree upon a solution of the communal problem. But it is equally true that they were very near agreeing to it and when they departed they had not given up hope of agreeing. But at the end of the second Round Table Conference, so much bad blood was created by Mr. Gandhi that there was no chance of reconciliation left and there was no way except arbitration.

The Prime Minister's decision on the communal question was announced on 17th August 1932. The terms of the decision in so far as they related to the Untouchables were as follows :¹

COMMUNAL DECISION BY HIS MAJESTY'S GOVERNMENT 1932

In the statement made by the Prime Minister on 1st December last on behalf of His Majesty's Government at the close of the second session of the Round Table Conference, which was immediately afterwards endorsed by both Houses of Parliament, it was made plain that if the communities in India were unable to reach a settlement acceptable to all parties on the communal questions which the Conference had failed to solve, His Majesty's Government were determined that India's constitutional advance should not on that account be frustrated, and that they would remove this obstacle by devising and applying themselves a provisional scheme.

2. On the 19th March last His Majesty's Government, having been informed that the continued failure of the communities to reach agreement was blocking the progress of the plans for the framing of a new Constitution, stated that they were engaged upon a careful re-examination of the difficult and controversial question

The following text of the Communal Award is not typed in the MS. This is reproduced from 'What Congress and Gandhi Have Done to the Untouchables' by the author. (Thacker and Co. Ltd. . 1st Ed. June 1945, pp. 80-82).—Ed.

which arise. They are now satisfied that without a decision of at least some aspects of the problems connected with the position of minorities under the new Constitution, no further progress can be made with the framing of the Constitution.

3. His Majesty's Government have accordingly decided that they will include provisions to give effect to the scheme set out below in the proposals relating to the Indian Constitution to be laid in due course before Parliament. The scope of this scheme is purposely confined to the arrangements to be made for the representation of the British Indian communities in the Provincial Legislatures, consideration of representation in the Legislature at the Centre being deferred for the reason given in paragraph 20 below. The decision to limit the scope of the scheme implies no failure to realize that the framing of the Constitution will necessitate the decision of a number of other problems of great importance to minorities, but has been taken in the hope that once a pronouncement has been made upon the basic questions of method and proportions of representation the communities themselves may find it possible to arrive at *modus vivendi* on other communal problems, which have not received the examination they require.

4. His Majesty's Government wish it to be most clearly understood that they themselves can be no parties to any negotiations which may be initiated with a view to the revision of their decision, and will not be prepared to give consideration to any representation aimed at securing the modification of it which is not supported by all the parties affected. But they are most desirous to close no door to an agreed settlement should such happily be forthcoming. If, therefore, before a new Government of India Act has passed into law, they are satisfied that the communities who are concerned are mutually agreed upon a practicable alternative scheme, either in respect of any one or more of the Governors' Provinces or in respect of the whole of the British India, they will be prepared to recommend to Parliament that that alternative should be substituted for the provisions now outlined.

5.	*	*	*	*	*
6.	*	*	*	*	*
7.	*	*	*	*	*
8.	*	*	*	*	*

9. Members of the "depressed classes" qualified to vote will vote in a general constituency. In view of the fact that for a considerable period these classes would be unlikely, by this means alone, to secure any adequate representation in the Legislature, a number of

special seats will be assigned to them as shown in the table. These seats will be filled by election from special constituencies in which only members of the "depressed classes" electorally qualified will be entitled to vote. Any person voting in such a special constituency will, as stated above, be also entitled to vote in a general constituency. It is intended that these constituencies should be formed in selected areas where the depressed classes are most numerous, and that, except in Madras, they should not cover the whole area of the Province.

In Bengal it seems possible that in some general constituencies a majority of the voters will belong to the Depressed Classes. Accordingly, pending further investigation no number has been fixed for the members to be returned from the special Depressed Class constituencies in that Province. It is intended to secure that the Depressed Classes should obtain not less than 10 seats in the Bengal Legislature.

The precise definition in each Province of those who (if electorally qualified) will be entitled to vote in the special Depressed Class constituencies has not yet been finally determined. It will be based as a rule on the general principles advocated in the Franchise Committee's Report. Modification may, however, be found necessary in some Provinces in Northern India where the application of the general criteria of untouchability might result in a definition unsuitable in some respects to the special conditions of the Province.

His Majesty's Government do not consider that these special Depressed Classes constituencies will be required for more than limited time. They intend that the Constitution shall provide that they shall come to an end after 20 years if they have not previously been abolished under the general powers of electoral revision referred to in paragraph 6.

So far as the other minority communities were concerned the Communal Award was accepted and the sore of disunity and discord was closed. But so far as the Untouchables were concerned it remained open. Mr. Gandhi would not allow it to be healed. On his return to India from the Round Table Conference Mr. Gandhi was put behind the bars by the British Government. But though in the Yeravada gaol Mr. Gandhi had not forgotten that he had to prevent the Untouchables from getting their claim to special representation recognized by the British Government. He feared that the British Government might grant them this right notwithstanding the threat he had held out while at the Round Table Conference to resist it with his

own life. Consequently he took the earliest opportunity to be in communication with the very British Government which had incarcerated him.

On the 11th March 1932 Mr. Gandhi addressed the following letter to Sir Samuel Hoare, the then Secretary of State for India :

Dear Sir Samuel,

You will perhaps recollect that at the end of my speech at the Round Table Conference when the minorities' claim was presented, I had said that I should resist with my life the grant of separate electorates to the Depressed Classes. This was not said in the heat of the moment nor by way of rhetoric. It was meant to be a serious statement. In pursuance of that statement I had hoped on my return to India to mobilize public opinion against separate electorate, at any rate for the Depressed Classes. But it was not to be.

From the newspapers I am permitted to read, I observe that any moment His Majesty's Government may declare their decision. At first I had thought, if the decision was found to create separate electorates for the Depressed Classes, I should take such steps as I might then consider necessary to give effect to my vow. But I feel it would be unfair to the British Government for me to act without giving previous notice. Naturally, they could not attach the significance I give to my statement.

Separate Electorates harmful

I need hardly reiterate all the objections I have to the creation of separate electorates for the Depressed Classes. I feel as if I was one of them. Their case stands on a wholly different footing from that of others. I am not against their representation in the legislatures. I should favour every one of their adults, male and female, being registered as voters irrespective of education or property qualification, even though the franchise test may be stricter for others. But I hold that separate electorates is harmful for them and for Hinduism, whatever it may be from the purely political standpoint. To appreciate the harm that separate electorates would do them one has to know how they are distributed amongst the so-called Caste Hindus and how dependent they are on the latter. So far as Hinduism is concerned, separate electorate would simply vivisect and disrupt it.

For me the question of these classes is predominantly moral and religious. The political aspect, important though it is, dwindles into significance compared to the moral and religious issue.

You will have to appreciate my feelings in this matter by remembering that I have been interested in the condition of these classes from my boyhood and have more than once staked my all for their sake. I say this not to pride myself in any way. For, I feel that no penance that the Hindus may do can in any way compensate for the calculated degradation to which they have consigned the Depressed Classes for centuries.

“Shall fast unto Death”

But I know that separate electorate is neither a penance nor any remedy for the crushing degradation they have groaned under. I, therefore, respectfully inform His Majesty's Government that in the event of their decision creating separate electorate for the Depressed Classes, I must fast unto death.

I am painfully conscious of the fact that such a step whilst I am a prisoner, must cause grave embarrassment to His Majesty's Government, and that it will be regarded by many as highly improper on the part of one holding my position to introduce into the political field methods which they would describe as hysterical if not much worse. All I can urge in defence is that for me the contemplated step is not a method, it is part of my being. It is the call of conscience which I dare not disobey, even though it may cost whatever reputation for sanity I may possess. So far as I can see now, my discharge from imprisonment would not make the duty of fasting any the less imperative. I am hoping, however, all my fears are wholly unjustified and the British Government have no intention whatever of creating separate electorate for the Depressed Classes.

.....

The following reply was sent to Mr. Gandhi by the Secretary of State :

India Office, Whitehall,
April 13, 1932.

Dear Mr. Gandhi,

I write this in answer to your letter of 11th March, and I say at once I realize fully the strength of your feeling upon the question of separate electorates for the Depressed Classes. I can only say that we intend to give any decision that may be necessary solely and only upon the merits of the case. As you are aware, Lord Lothian's Committee has not yet completed its tour and it must be some weeks before we can receive any conclusions at which it may have arrived. When we receive that report we shall have to give most

careful consideration to its recommendations, and we shall not give a decision until we have taken into account, in addition to the view expressed by the Committee, the views that you and those who think with you have so forcibly expressed. I feel sure if you were in our position you would be taking exactly the same action we intend to take. You would await the Committee's report, you would then give it your fullest consideration, and before arriving at a final decision you would take into account the views that have been expressed on both sides of the controversy. More than this I cannot say. Indeed I do not imagine you would expect me to say more.

.....

After giving this warning Mr. Gandhi slept over the matter thinking that a repetition of his threat to fast unto death was sufficient to paralyse the British Government and prevent them from accepting the claim of the untouchables for special representation. When on the 17th August 1932 the terms of the Communal Award were announced Mr. Gandhi found that his threat had failed to have any effect. He first tried to get the terms of the Communal Award revised. Accordingly he addressed the following letter to the Prime Minister :

Yervada Central Prison,
August 18, 1932.

Dear friend,

There can be no doubt that Sir Samuel Hoare has showed you and the Cabinet my letter to him of 11th March on the question of the representation of the Depressed Classes. That letter should be treated as part of this letter and be read together with this.

Decision to fast

I have read the British Government's decision on the representation of Minorities and have slept over it. In pursuance of my letter to Sir Samuel Hoare and my declaration at the meeting of the Minorities Committee of the Round Table Conference on 13th November, 1931, at St. James' Palace, I have to resist your decision with my life. The only way I can do so is by declaring a perpetual fast unto death from food of any kind save water with or without salt and soda. This fast will cease if during its progress the British Government, of its own motion or under pressure of public opinion, revise their decision and withdraw their scheme of communal electorates for the Depressed Classes, whose representatives should be elected by the general electorate under the common franchise no matter how wide it is.

The proposed fast will come into operation in the ordinary course from the noon of 20th September next, unless the said decision is meanwhile revised in the manner suggested above.

I am asking the authorities here to cable the text of this letter to you so as to give you ample notice. But in any case, I am leaving sufficient time for this letter to reach you in time by the slowest route.

I also ask that this letter and my letter to Sir Samuel Hoare already referred to be published at the earliest possible moment. On my part, I have scrupulously observed the rule of the jail and have communicated my desire or the contents of the two letters to no one, save my two companions, Sardar Vallabhbhai Patel and Mr. Mahadev Desai. But I want, if you make it possible, public opinion to be affected by my letters. Hence my request for their early publication.

Not to compass Release

I regret the decision I have taken. But as a man of religion that I hold myself to be, I have no other course left open to me. As I have said in my letter to Sir Samuel Hoare, even if His Majesty's Government decided to release me in order to save themselves from embarrassment, my fast will have to continue. For, I cannot now hope to resist the decision by any other means; And I have no desire whatsoever to compass my release by any means other than honourable.

It may be that my judgment is warped and that I am wholly in error in regarding separate electorates for the Depressed Classes as harmful to them or to Hinduism. If so, I am not likely to be in the right with reference to other parts of my philosophy of life. In that case my death by fasting will be at once a penance for my error and a lifting of a weight from off these numberless men and women who have childlike faith in my wisdom. Whereas if my judgment is right, as I have little doubt it is, the contemplated step is but due to the fulfilment of the scheme of life which I have tried for more than a quarter of a century, apparently not without considerable success.

I remain,
Your faithful friend,
M. K. Gandhi.

The Prime Minister replied as under :

10, Downing Street,
September 8th, 1932

Dear Mr. Gandhi,

I have received your letter with much surprise and, let me add, with very sincere regret. Moreover, I cannot help thinking that you

have written it under a misunderstanding as to what the decision of His Majesty's Government as regards the Depressed Classes really implies. We have always understood you were irrevocably opposed to the permanent segregation of the Depressed Classes from the Hindu community. You made your position very clear on the Minorities Committee of the Round Table Conference and you expressed it again in the letter you wrote to Sir Samuel Hoare on 11th March. We also knew your view was shared by the great body of Hindu opinion, and we, therefore, took it into most careful account when we were considering the question of representation of the Depressed Classes.

Government Decision Explained

Whilst, in view of the numerous appeals we have received from Depressed Class organisations and the generally admitted social disabilities under which they labour and which you have often recognized, we felt it our duty to safeguard what we believed to be the right of the Depressed Classes to a fair proportion of representation in the legislatures, we were equally careful to do nothing that would split off their community from the Hindu world. You yourself stated in your letter of March 11, that you were not against their representation in the legislatures.

Under the Government scheme the Depressed Classes will remain part of the Hindu community and will vote with the Hindu electorate on an equal footing, but for the first twenty years, while still remaining electorally part of the Hindu community, they will receive through a limited number of special constituencies, means of safeguarding their rights and interests that, we are convinced, is necessary under present conditions.

Where these constituencies are created, members of the Depressed Classes will not be deprived of their votes in the general Hindu constituencies, but will have two votes in order that their membership of the Hindu community should remain unimpaired.

We have deliberately decided against the creation of what you describe as a communal electorate for the Depressed Classes and included all Depressed Class voters in the general or Hindu constituencies so that the higher caste candidates should have to solicit their votes or Depressed Class candidates should have to solicit the votes of the higher castes at elections. Thus in every way was the unity of Hindu society preserved.

Safeguard Temporary

We felt, however, that during the early period of responsible government when power in the Provinces would pass to whoever

possessed a majority in the legislatures, it was essential that the Depressed Classes, whom you have yourself described in your letter to Sir Samuel Hoare as having consigned by Caste Hindus to calculated degradation for centuries, should return a certain number of members of their own choosing to legislatures of seven of the nine provinces to voice their grievances and their ideals and prevent decisions going against them without the legislature and the Government listening to their case — in a word, to place them in a position to speak for themselves which every fair-minded person must agree to be necessary. We did not consider the method of electing special representatives by reservation of seats in the existing conditions, under any system of franchise which is practicable, members who could genuinely represent them and be responsible for them, because in practically all cases, such members would be elected by a majority consisting of higher caste Hindus.

The special advantage initially given under our scheme to the Depressed Classes by means of a limited number of special constituencies in addition to their normal electoral rights in the general Hindu constituencies is wholly different in conception and effect from the method of representation adopted for a minority such as the Moslems by means of separate communal electorates. For example, a Moslem cannot vote or be a candidate in a general constituency, whereas any electorally qualified member of the Depressed Classes can vote in and stand for the general constituency.

Reservation Minimum

The number of territorial seats allotted to Moslems is naturally conditioned by the fact that it is impossible for them to gain any further territorial seats and in most provinces they enjoy weightage in excess of their population ratio; the number of special seats to be filled from special Depressed Classes constituencies will be seen to be small and has been fixed not to provide a quota numerically appropriate for the total representation of the whole of the Depressed Class population, but solely to secure a minimum number of spokesmen for the Depressed Classes in the legislature who are chosen exclusively by the Depressed Classes. The proportion of their special seats is everywhere much below the population percentage of the Depressed Classes.

As I understand your attitude, you propose to adopt the extreme course of starving yourself to death not in order to secure that the Depressed Classes should have joint electorates with other Hindus, because that it already provided, nor to maintain the unity of

Hindus, which is also provided, but solely to prevent the Depressed Classes, who admittedly suffer from terrible disabilities today, from being able to secure a limited number of representatives of their own choosing to speak on their behalf in the legislatures which will have a dominating influence over their future.

In the light of these very fair and cautious proposals, I am quite unable to understand the reason of the decision you have taken and can only think you have made it under a misapprehension of the actual facts.

Government Decision Stands

In response to a very general request from Indians after they had failed to produce a settlement themselves the Government much against its will, undertook to give a decision on the minorities question. They have now given it, and they cannot be expected to alter it except on the conditions they have stated. I am afraid, therefore, that my answer to you must be that the Government's decision stands and that only agreement of the communities themselves can substitute other electoral arrangements for those that Government have devised in a sincere endeavour to weigh the conflicting claims on their just merits.

You ask that this correspondence, including your letter to Sir Samuel Hoare of March 11th, should be published. As it would seem to me unfair if your present internment were to deprive you of the opportunity of explaining to the public the reason why you intend to fast, I readily accede to the request if on reconsideration you repeat it. Let me, however, once again urge you to consider the actual details of Government's decision and ask yourself seriously the question whether it really justifies you in taking the action you contemplate.

I am,
Yours very sincerely,
J. Ramsay MacDonald.

Finding that the Prime Minister would not yield he sent him the following letter informing him that he was determined to carry out his threat of fast unto death :

Yeravada Central Prison,
September 9th, 1932.

Dear friend,

I have to thank you for your frank and full letter telegraphed and received this day. I am sorry, however, that you put upon the

contemplated step an interpretation that never crossed my mind. I have claimed to speak on behalf of the very class, to sacrifice whose interests you impute to me a desire to fast myself to death. I had hoped that the extreme step itself would effectively prevent any such selfish interpretation without arguing, I affirm that for me this matter is one of pure religion. The mere fact of the Depressed Classes having double votes does not protect them or Hindu society in general from being disrupted. In the establishment of separate electorate at all for the Depressed Classes I sense the injection of poison that is calculated to destroy Hinduism and do no good whatever to the Depressed Classes. You will please permit me to say that no matter how sympathetic you may be, you cannot come to a correct decision on a matter of such vital and religious importance to the parties concerned.

I should not be against even over-representation of the Depressed Classes. What I am against is their statutory separation even in a limited form, from the Hindu fold, so long as they choose to belong to it. Do you realize that if your decision stands and the constitution comes into being, you arrest the marvellous growth of the work of Hindu reformers who have dedicated themselves to the uplift of their suppressed brethren in every walk of life ?

Decision Unchanged

I have, therefore, been compelled reluctantly to adhere to the decision conveyed to you.

As your letter may give rise to a misunderstanding, I wish to state that the fact of my having isolated for special treatment the Depressed Classes question from other parts of your decision does not in any way mean that I approve of or am reconciled to other parts of the decision. In my opinion, many other parts are open to very grave objection. Only I do not consider them to be any warrant for calling from me such self immolation as my conscience has prompted me to, in the matter of the Depressed Classes.

I remain,
Your faithful friend,
M. K. Gandhi.

Accordingly on the 20th September 1932 Mr. Gandhi commenced his "fast unto death" as a protest against the grant of separate electorates to the Untouchables.

The story of this fast has been told by Mr. Pyarelal in a volume which bears the picturesque and flamboyant title of "The Epic

Fast". In the pages of this *lours Boswelliana* the curious will find all he wants to know about the happenings in India during these mad days and I need say nothing about it here. Suffice it to say that although Mr. Gandhi went on fast unto death he did not want to die. He very much wanted to live.

The fast therefore created a problem and that problem was how to save Mr. Gandhi's life. The only way to save his life was to alter the Communal Award so as not to hurt Mr. Gandhi's conscience. The Prime Minister had made it quite clear that the British Cabinet would not withdraw it or alter it of its own but that they were ready to substitute for it a formula that may be agreed upon by the Caste Hindus and the Untouchables. As I had the privilege of representing the Untouchables at the Round Table Conference it was assumed that the assent of the Untouchables would not be valid unless I was a party to it. At the moment my position as the representative of the Untouchables of India was not only not questioned but was accepted as a fact. All eyes naturally turned to me as the man or rather as the villain of the piece. Mr. Gandhi's life as he himself said was in my hands.

It is no exaggeration to say that no man was placed in a greater and graver dilemma than I was then. It was a baffling situation. I had to make a choice between two different alternatives. There was before me the duty which I owed as a part of common humanity to save Gandhi from sure death. There was before me the problem of saving for the Untouchables the political rights which the Prime Minister had given them. I responded to the call of humanity and saved the life of Mr. Gandhi by agreeing to alter the Communal Award in a manner satisfactory to Mr. Gandhi. This agreement is known as the Poona Pact.

The terms of the Poona Pact were as under :

1. There shall be seats reserved for the Depressed Classes out of general electorates. Seats in Provincial Legislatures shall be as follows :

Madras	..	30
Bombay with Sind	..	15
Punjab	..	8
Bihar and Orissa	..	18
Central Provinces	..	20
Assam	..	7
Bengal	..	30
United Provinces	..	20
Total	..	<u>148</u>

¹ This number of 148 seats was raised to 151 in making adjustments on seats for Bihar and Orissa.

These figures are based on the total strength of the Provincial Councils announced in the Prime Minister's decision.

2. Election to these seats shall be by joint electorates subject, however, to the following procedure :

All members of the Depressed Classes registered in the general electoral roll of a constituency, will form an electoral college which will elect a panel of four candidates belonging to the Depressed Classes, for each of such reserved seats by the method of single vote and four persons getting the highest number of votes in such primary election, shall be the candidates for election by the general electorates.

3. Representation of the Depressed Classes in the Central Legislature shall likewise be on the principle of joint electorates and reserved seats by the method of primary election in the manner provided for in clause 2 above for their representation in Provincial Legislatures.
4. In the Central Legislature 18 per cent of the seats allotted to the general electorate for British India in the said legislature shall be reserved for the Depressed Classes.
5. The system of primary election to panel of candidates for election to the Central and Provincial Legislatures, as hereinbefore mentioned, shall come to an end after the first ten years unless terminated sooner by mutual agreement under the provision of Clause 6 below.
6. The system of representation of the Depressed Classes by reserved seats in the Provincial and Central Legislatures as provided for in clauses 1 and 4 shall continue until determined by mutual agreement between the communities concerned in this settlement.
7. The franchise for the Central and Provincial Legislature for the Depressed Classes shall be as indicated in the Lothian Committee Report.
8. There shall be no disabilities attaching to anyone on the ground of his being a member of the Depressed Classes in regard to any elections to local bodies or appointment to public service.

Every endeavour shall be made to secure a fair representation of the Depressed Classes in these respects subject to such educational qualifications as may be laid down for appointment to public services.

9. In every province out of the educational grant an adequate sum shall be earmarked for providing educational facilities to members of the Depressed Classes.

The terms of the Pact were accepted by Mr. Gandhi and given effect to by Government by embodying them in the Government of India Act.

This fast unto death was a great gamble on the part of Mr. Gandhi. He perhaps felt that the mere threat to fast unto death would make me and other Depressed Classes who were with me just shiver and yield. But he soon found that he was mistaken and that the Untouchables were equally determined to fight to the last for their rights. No one except his own followers was convinced that Mr. Gandhi's fast had any moral basis and if Gandhi got a second lease of life, he owes it entirely to the generosity and goodwill shown towards him by the Untouchables.

Question however is what advantage the Untouchables have got by entering into the Poona Pact. To understand this one must examine the results of the elections to the Legislatures. The Government of India Act came into operation on 1st April 1937. In February 1937 the elections to the new legislatures as defined in the Act took place. So far as the Untouchables are concerned the elections which took place in February 1937 were elections in accordance with the Poona Pact. The following is the analysis of the results of that election to the seats reserved for the Untouchables in the different Provincial Assemblies.

TABLE¹

Province		Total Seats Reserved for the Untouchables	Total Seats Captured by the Congress
United Provinces	..	20	16
Madras	..	30	26
Bengal	..	30	6
Central Provinces	..	20	7
Bombay	..	15	4
Bihar	..	15	11
Punjab	..	8	Nil
Assam	..	7	4
Orissa	..	6	4
Total	..	151	78

¹ This Table is reprinted from Dr. Ambedkar's 'What Congress and Gandhi have done to the Untouchables' at page 94. This table was not typed in the M.S.—Ed.

This analysis reveals certain facts which make one ask whether the Untouchables have got anything of any value by entering into the Poona Pact and saving the life of Mr. Gandhi and whether the Poona Pact has not made the Untouchables the Bondsmen of the Caste Hindus.

This analysis shows that a large majority of them have been elected as Congressmen. It is my firm conviction that for the Untouchables to merge in the Congress or for the matter of that in any large political party cannot but be fatal for them.

The Untouchables need a movement if they are to remain conscious of their wrongs and if the spirit of revolt is kept alive amongst them. They need a movement because the Caste Hindus have to be told that what is tragedy of the Untouchables is their crime. The Congress may not be a red-blooded Hindu body so far as the Musalmans are concerned. But it is certainly a full-blooded and blue-blooded Hindu body inasmuch as it consists of Caste Hindus. A movement of the Untouchables must mean an open war upon the Caste Hindus. A movement of the Untouchables within the Congress is quite impossible. It must mean an *inter necine* within the party. The Congress for its own safety cannot allow it.

The Congress has strictly forbidden the Untouchables who have joined the Congress to carry on any independent movement of the Untouchables not approved of by the High Command. The result is that in those Provinces where the Untouchables have joined the Congress the movement of the Untouchables as such is dead.

The Untouchables must retain their right to freedom of speech and freedom of action on the floor of the Legislature if they are to ventilate their grievances and obtain redress of their wrongs by political action. But this freedom of speech and action has been lost by the representatives of the Untouchables who have joined the Congress. They cannot vote as they like, they cannot speak what they think. They cannot ask a question, they cannot move a resolution and they cannot bring in a Bill. They are completely under the control of the Congress Party Executive. They have only such freedom as the Congress Executive may choose to allow them. The result is that though the tale of woes of the Untouchables is ever-increasing, the untouchable members of the Legislature are unable even to ask a question about them. So pitiable has their condition become that the Congress Party sometimes requires them to vote against a measure that may in the opinion of the Untouchable members of the Legislature be beneficial to the Untouchables. A recent instance of this occurred in Madras. Rao Bahadur Raja a member of the Madras Legislature brought in

a Bill to secure the entry of the Untouchables into Hindu Temples in the Madras Presidency. The Congress Government had promised to support it at first. Subsequently the Congress Government in Madras changed its opinion and opposed the measure. It was a dilemma for the Untouchable members of the Madras Legislature. But they had no choice. The whip was applied and they in a body voted against the measure. The representatives of the Untouchables were supposed to be the watch-dogs of the Untouchables. But by reason of having joined the Congress they are muzzled dogs. Far from biting they are not even able to bark. This loss of freedom of speech and action by these Untouchable members is entirely due to their having joined the Congress and subjected themselves to the discipline of the Congress.

The third disadvantage arising from the Untouchables joining the Congress lies in their being unable to secure any real benefit to the Untouchables. This is due to two reasons. First of all the Congress is not a radical party. The Congress has the reputation of being a revolutionary organization. Its idea of complete independence, the movement of civil disobedience and non-payment of land revenue which the Congress once launched have undoubtedly given that reputation. But many people forget that a revolutionary party is not necessarily a radical party. Whether a revolutionary party is also a radical party must depend upon the social and emotional realities which bring on or induce the revolutionary activity. The Barons of England who under Simon de Mandfort rose against King John in 1215 and compelled him to sign the *Magna Charta* must be classed as revolutionaries along with the Peasants of England who in 1381 rose in rebellion under Wat Tyler against their masters and who were all hanged for their rebellious acts. But who can say that the Barons because they were revolutionaries were also radical? The Barons rebelled because they wanted the rights of their class against the King and the peasants established. The Barons revolt was fed by the social emotion of those who were frustrated of power. The emotions behind the peasants revolt were those who were oppressed and who were hungering for food and freedom and that is why the peasants were both revolutionary as well as radical. The revolt of the Congress is more like the revolt of the Peasants. The Congress under Gandhi is as radical as the Barons were under Simon de Mandfort. Just as the Barons revolt was fed by the social emotions of those who were frustrated of power and not by the emotions of those who were toiling and hungering so was the Congress revolt against the British. It is true that the Congress gathered a large following from the masses but that was by appealing to their anti-British feeling which is natural to all

Indians. It is also true that emotions of these were those who were frustrated of food and freedom. But their emotions were in conflict of those socially advanced and the propertied classes. And the latter had all along been the governing class in the Congress. The masses have been camp followers. It is their emotions which has all along determined the character of the Congress. Their emotions are of those who are frustrated of power. That is why the Congress has been only revolutionary body and has not been a radical party. The truth of this can be seen by any one who cares to examine the record of the Congress Governments. Their achievement since they have taken over are just a miscellaneous collection of trifling trinkets. They have shot down the workers more readily than the British and have released criminals sentenced by the High Courts on no other ground than that they have the authority to do it. It is a surprize to me—it is not me—that the Congress has so soon shown that it is just a counter-part of the Tories in England. The governing class in the Congress has lost all its fervour for revolution, for driving the British out. Having now got a field to exploit the masses they want to stick on the power and authority to do the job thoroughly and do not wish to be disturbed by any thought of anti-imperialism at all.

Not being radical party the Congress cannot be trusted to undertake a radical programme of social and economic reconstruction without which the Untouchables can never succeed in improving their lot. For the Untouchables to join such a party is a futile and senseless thing. The Congress will not do anything for them but will only use them as they have done.

The Congress might do something for the Untouchables if it was compelled to do by force of circumstances. There is only one circumstance in which the Congress would feel such a compulsion—that is when the Congress finds itself dependent upon the representatives of the Untouchables for its majority in the Legislature. Then the Untouchables would be in a position to dictate their terms to the Congress and the Congress would be bound to accept them. In such a contingency it would be worth the while of the Untouchables to join the Congress in a coalition. It would be real bargain. But today the Congress has everywhere such large majorities that in the legislatures it is its own master. It is not dependent on any outside support. The Untouchables who are in it are at the end of the tail and the tail so lengthened that it cannot wag. This is the second reason why joining the Congress can be of no benefit to the Untouchables.

Such are the disadvantages that have arisen from the Untouchables having joined the Congress. They are not merely disadvantages. I call

them dire consequences. All social movement has become dead. All political power has become migratory. It is understatement to say that under the new Constitution the Untouchables are marking time. The fact is that they have been put in chains.

But the question will undoubtedly be asked and it is this—If such are the consequences of joining the Congress why did these Untouchables join it? Why did they not fight their elections independently and in opposition to the Congress? Some of the Untouchables who stood on the Congress ticket were just careerists, men on the make who wanted to climb into the Legislature so as to be within call when the places of office of profit come for distribution. They did not care by whose ladder they climbed. The Congress being the biggest party and its pass the surest way of being admitted into the Legislature these careerists felt that to join the Congress was the easiest way of electoral success. They did not want to take any chance. This however explains their object. It does not explain the cause which forced them to join the Congress. I am sure even these careerists would not have joined the Congress if it was possible for them to have got themselves elected independently of the Congress. They joined the Congress only because they found that that course was impossible. Why were they compelled to join the Congress? The answer is that it was due to the system of joint electorates which caused the mischief which was introduced by the Poona Pact.

A joint electorate for a small minority and a vast majority is bound to result in a disaster to the minority. A candidate put up by the minority cannot be successful even if the whole of the minority were solidly behind him. The fact that a seat is reserved for a minority merely gives a security that the minority candidate will be declared elected. But it cannot guarantee that the minority candidate declared elected will be a person of its choice if the election is to be by a joint electorate. Even if a seat is reserved for a minority, a majority can always pick up a person belonging to the minority and put him up as a candidate for the reserved seat as against a candidate put up by the minority and get him elected by helping its nominee with the superfluous voting strength which is at its command. The result is that the representative of the minority elected to the reserved seat instead of being a champion of the minority is really the slave of the majority.

In the system of electorates now formed for election to the Legislature, the Untouchable voters as against the caste Hindu voters are placed in a hopeless minority. A few instances will show how great is the discrepancy in the relative voting strength of the Untouchables and the caste Hindus in the different constituencies.

The power to do mischief in elections which a joint electorate gives to a majority is increased immensely if the electoral system is based on the principle of a single member constituency.

In a system of joint electorates with reserved seats for a minority a constituency must always be a plural member constituency i.e. there must be one seat for the minority and at least one seat for the majority. In other words it must be what is called a plural member constituency. This plural member constituency must be small one i.e. the majority community may have just two seats as against the one assigned to the minority. It may be a large one i.e. the majority may have a larger number of seats assigned to it. This is an important consideration because the smaller the number of seats the greater the power of mischief which the majority gets. This will be clear if it is borne in mind that when a majority has fewer seats it can release a large portion of its voting strength to get its own nominee from the minority elected to the reserved seats and defeat the nominee of the minority. On the other hand if the majority is assigned a larger number of seats, there a competition among the candidates is greater, the voters of the majority community are for the most part (busy)* in fighting out the election to the seats assigned to the majority and very few at all can be released to help the nominee of the majority for the minority seat. In a joint electorate the safety of the minority lies in the majority having a larger number of seats to contest. Otherwise it is sure to be overwhelmed by the majority.

In the electoral system now framed for the caste Hindus the principle that is adopted is that of the single member constituency. It is true that on the face of it the constituency taken as a whole appear to be a plural member constituency. But, in fact, the constituency so far as the caste Hindus are concerned are single member constituencies. The consequence of this single member constituency system for Caste Hindus is that the Hindus are able to release an enormous lot of their superfluous votes and flood the election for the seats reserved for the Untouchables and keep their nominee for the reserved seat afloat.

The Hindus were anxious to forge further means for nullifying the benefit of the Poona Pact. The Poona Pact having been concluded in a hurry, it left many things undefined. Of the things that were left undefined and about which there arose subsequently a keen controversy were the following : (1) Does the 'panel of four' to be elected at the primary election imply four as a maximum or a minimum ? (2) What was to be the method of voting in the final joint electorate with the Hindus ? The Hammond Committee which had to decide upon these issues found that there were two diametrically

*Inserted by Editors.

opposite views in regard to these two questions, one view held by the Caste Hindus and the other held by the Untouchables. It was contended on behalf of the Caste Hindus that the panel of four was intended to be a minimum. If four candidates are not forthcoming there could be no primary election and therefore there can be no election for the reserved seat, which they said must remain vacant and the Untouchables should go without representation. The Untouchables contended that four was the maximum. Four in the Poona Pact meant "not more than four". It did not mean "not less than four". On the question of voting the caste Hindus contended that the compulsory distributive vote was the most appropriate. The Untouchables on the other hand insisted that the cumulative system of voting was the proper system to be introduced.

The Hammond Committee accepted the view propounded by the Untouchables and rejected those of the Caste Hindus. All the same it is interesting to know why the caste Hindus put forth their contentions.

The reason why the Hindus wanted four in the panel and not less was quite obvious. The object of the Hindus is to get elected in the final election such a representative of the Untouchables as would be most ready and willing to compromise with Hindus and Hinduism. To get him elected in the final election he must first come in the Panel. A most compromising Untouchable can come in the Panel only when the panel is a large panel.

If there is only one candidate in the Panel then he would be the staunchest representative of the Untouchable and worst from the standpoint of the Hindus. If there are two, the second will be less staunch than the first and therefore good from the standpoint of the Hindus. If there are three, the third will be less staunch than the second and therefore better from the standpoint of the Hindus. If there be four, the fourth will be less staunch than the third and therefore best from the point of view of the Hindus. The Panel of four gives the Hindus the best chance of getting into the Panel such representative of the Untouchables as is most compromising in his attitude towards Hindus and Hinduism and that is why they insisted that the Panel should be at least of four.

The object of insisting upon the system of compulsory distributive vote was just supplementary to the idea of having the Panel of not less than four. Under the cumulative vote the elector has as many votes as there are seats, but may plump them all for one candidate or distribute them over two or more candidates as he may desire. Under the distributive system of voting the elector has also as many votes as there are seats, but he can give only one vote to any one candidate.

Although the two look different yet in effect there may be no difference because even under the cumulative vote a voter is not prevented from distributing his votes. He is free to give one vote to one candidate. But the Hindus did not want to take any chance. Their main object was to flood the election to the seat reserved for the Untouchables in the joint electorate by using the surplus votes of the caste Hindus in favour of the Untouchable candidate who happens to be their nominee. The object was to outnumber the Untouchable voters and prevent them from electing their own nominee. This cannot be done unless the surplus votes of the caste Hindu voters were divested from the caste Hindu candidate towards the Untouchable candidates. There is a greater chance of the diversion of these surplus votes under the distributive system than there is under the cumulative system. Under the former the caste Hindu voter can give only one vote to the caste Hindu candidate. The other vote not being of use to the caste Hindu candidate is usable only for an Untouchable candidate. With the distributive system there was more chance of flooding the election to the seat reserved for the Untouchables and this is why they preferred it to the system of cumulative vote. But they want to take a chance. Even the distributive system from their point of view was not foolproof. Under the distributive system there was no compulsion upon the voter to use all his votes. He may use one vote for the caste Hindu candidate and not use the rest of his votes. If this happens the purpose of getting in their untouchable nominee would be defeated. Not to leave things to chance the Hindus wanted that the distributive system of voting should be made compulsory so that a caste Hindu voter whether he wants it or not can have no option but to vote for the untouchable candidate who may be the nominee of the Hindus.

The two proposals were thus a part of a deep conspiracy on the part of the Hindus. They were rejected by the Hammond Committee. But there are enough elements of mischief in the Poona Pact itself that the rejection of these two proposals has in no way weakened the power of the Hindus to render nugatory the right of special representation granted to the Untouchables.

Notwithstanding the political disaster which has overtaken the Untouchables and which is the result of the Poona Pact, there are not wanting friends of Mr. Gandhi who hold out the Poona Pact as a great boon to the Untouchables.

Firstly it is alleged that the Poona Pact gave the Untouchables larger number of seats than was given to them by the Communal Award. It is true that the Poona Pact gave the Untouchables 151 seats while the Award had only given them 78. But to conclude from this that the

Poona Pact gave them more than what was given by the Award is to ignore what the Award had in fact given to the Untouchables.

The Communal Award gave the Untouchables two benefits : (i) a fixed quota of seats to be elected by separate electorates for Untouchables and to be filled by persons belonging to the Untouchables, (ii) Double vote, one to be used through separate electorates and the other to be used in the general electorates.

Now if the Poona Pact increased the fixed quota of seats it also took away the right to the double vote. This increase in seats can never be deemed to be a compensation for the loss of the double vote. The second vote given by the Communal Award was a priceless privilege. Its value as a political weapon was beyond reckoning. The voting strength of the Untouchables in each constituency is one to ten. With this voting strength free to be used in the election of caste Hindu candidates, the Untouchables would have been in a position to determine, if not to dictate, the issue of the General Election. No Caste Hindu candidate could have dared to neglect the Untouchables in his constituency or be hostile to their interest if he was made dependent upon the votes of the Untouchables. Today the Untouchables have a few more seats than were given to them by the Communal Award. But this is all that they have. Every other member is indifferent if not hostile. If the Communal Award with its system of double voting had remained, the Untouchables would have had a few seats less but every other member would have been a member for the Untouchables. The increase in the number of seats for the Untouchables is no increase at all.

Admitting for the sake of argument that the Poona Pact did give to the Untouchables a few more seats, the question still remains of what use are these additional seats. Ordinarily a right to vote is deemed to be sufficient as a means of political protection. But it was felt that in the case of the Untouchables mere right to vote would not be enough. It was feared that a member elected on the votes of the Untouchables, if he is himself not an Untouchable, might play false and might take no interest in them. It was held that the grievances of the Untouchables must be ventilated in the Legislature and that the surest way of ensuring it would be to provide that a certain number of seats shall be reserved for them so that the Untouchables shall be represented by Untouchables in the Legislature. It is now evident that this hope has not been fulfilled. The Communal Award no doubt gave fewer seats. But they would have been all of them freemen. The Poona Pact gave more but they are all filled by bondsmen. If to have a platoon of bondsmen is an advantage then the Poona Pact may be said to be advantage.

The second argument in favour of the Poona Pact is that in abolishing separate electorates it saved the Untouchables from being eternally branded as Untouchables. In one of his speeches delivered in London Mr. Gandhi said :

“Muslims and Sikhs are all well organized. The ‘untouchables’ are not. There is very little political consciousness among them and they are so horribly treated that I want to save them against themselves. If they had separate electorates their lives would be miserable in villages which are the strongholds of Hindu orthodoxy. It is the superior class of Hindus who have to do penance for having neglected the ‘untouchables’ for ages. That penance can be done by active social reform and by making the lot of the ‘untouchables’ more bearable by acts of service, but not by asking for separate electorates for them. By giving them separate electorates you will throw the apple of discord between the ‘untouchables’ and the orthodox. You must understand I can tolerate the proposal for special representation of the Musalmans and the Sikhs only as a necessary evil. It would be a positive danger for the ‘untouchables’. I am certain that the question of separate electorates for the ‘untouchables’ is modern manufacture of Government. The only thing needed is to put them on the voters’ list, and provide for fundamental rights for them in the constitution. In case they are unjustly treated and their representative is deliberately excluded, they would have the right to special election tribunal which would give them complete protection. It should be open to these tribunals to order the unseating of an elected candidate and the election of the excluded man.”

“Separate electorates to the ‘untouchables’ will ensure them bondage in perpetuity. The Musalmans will never cease to be Musalmans by having separate electorates. Do you want the ‘untouchables’ to remain ‘untouchables’ for ever ? Well, the separate electorates would perpetuate the stigma. What is needed is destruction of untouchability, and when you have done it, the bar sinister which has been imposed by an insolent ‘superior’ class upon an ‘inferior’ class will be destroyed. When you have destroyed the bar sinister, to whom will you give the separate electorates ? Look at the history of Europe. Have you got separate electorates for the working classes or women ? With adult franchise, you give the ‘untouchables’ complete security. Even the orthodox would have to approach them for votes.”

“How then, you ask, does Dr. Ambedkar, their representative, insist on separate electorates for them ? I have the highest regard for

Dr. Ambedkar. He has every right to be bitter. That he does not break our heads is an act of self-restraint on his part. He is today so much saturated with suspicion that he cannot see anything else. He sees in every Hindu a determined opponent of the 'untouchables', and it is quite natural. The same thing happened to me in my early days in South Africa, where I was hounded out by the Europeans wherever I went. It is quite natural for him to vent his wrath. But the separate electorates that he seeks will not give him social reform. He may himself mount to power and position but nothing good will accrue to the 'untouchables'. I can say all this with authority, having lived with the 'untouchables' and having shared their joys and sorrows all these years."

His argument it is true derives some support from the Simon Commission which also observed :

(The following extracts are not quoted in the MS. They are reproduced here from Dr. Ambedkar's 'What Congress and Gandhi have done to the Untouchables', Appendix VI, p. 327.—Ed.)

(Extracts from the Report of the Simon Commission, Vol. II)

78. ... In no other province has it been possible to get an estimate of the number of the depressed classes who are qualified to vote. It is clear that even with a considerable lowering of the franchise—which would no doubt increase the proportion of the depressed class voters—there would be no hope of the depressed classes getting their own representatives elected in general constituencies without special provision being made to secure it. In the long run the progress of the depressed classes, so far as it can be secured by the exercise by them of political influence, will depend on their getting a position of sufficient importance for other elements to seek their support and to consider their needs.

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80. ... It will be seen, therefore, that we do not recommend allocating seats to the depressed classes on the basis of their full population ratio. The scale of reserved representation suggested will secure a substantial increase in the number of the M.L.C.s drawn from the depressed classes. The poverty and want of education which so widely prevail amongst them make it extremely doubtful whether a large number of adequately equipped members could be at once provided, and it is far better that they should be represented by qualified spokesmen rather than by a larger number of ineffectives who are only too likely to be subservient to higher castes. The re-distribution of seats which is now being attempted among different kinds of representatives cannot be permanent, and

provision must be made for its revision. But we think that our proposal is adequate for the present, especially as the representation of opinion by reservation of seats does not exclude the possibility of the capture of other seats not so reserved.

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But that this argument is silly there can be no doubt about it. To put a man in a separate category from others is not necessarily an evil. Whether the affixing of a label is good or bad depends upon the underlying purpose. If the object is to deprive him of rights then such a labelling would no doubt be a grievous wrong. But if the purpose is to mark off as a recipient of a privilege then far from being a wrong it would be a most beneficial measure. To enrol an untouchable in a separate electoral roll would be objectionable if the object was to deprive him of the right of franchise. To enrol him in a separate electoral roll for giving him the benefit of special representation would certainly be an advantage to him. Looked at from the point of view of ultimate purpose it is difficult to see how any person who claims to be the friend of the untouchables could object to separate electorates for them. Not only the argument of Gandhi against separate electorate was silly it was also insincere. Gandhi objected to separate electorates because it involved labelling of the Untouchables. But how is this labelling avoided in joint electorates it is difficult to understand. The reservation of a seat for the Untouchables in a joint electorate must and does involve such labelling for the candidate claiming the benefit of the reserved must in law declare that he is an untouchable. To that extent there is certainly a labelling involving in the Joint Electorate and Mr. Gandhi should have objected to joint electorates as violently as he did to separate electorates. Either Mr. Gandhi was insincere or that he did not know what he was talking about.

Friends of Mr. Gandhi do not stop to consider how far under the Poona Pact the Untouchables have been able to send independent men to represent them in the Legislature and whether these representatives have been putting up any fight and how well they are succeeding. If they stopped to do it they would be ashamed to sing the praises of the joint electorates and the Poona Pact. The Congress and the Hindus have shamefully abused their power and their resources as a majority community. Not only have they prevented the Untouchables from electing persons of their choice, not only have they got their own nominees elected by the use of their surplus votes, they have done something for which any decent party in any part of the world ashamed of itself. The selection of the candidates from the

untouchables made by the Congress to fill the seats reserved for the Untouchables was a most cowardly and a blackguardly act.

It was open to the Congress—which is simply a political surname for Hindus—to allow the Untouchables the benefits of more seats than those fixed for them by the Poona Pact. They could have done that by adopting untouchable candidates to contest general seats. There was nothing in law to prevent them from doing so. The Congress did nothing of the kind. This shows that if no seat had been reserved to the Untouchables, the Hindus would never have cared to see that an untouchable was returned to the legislature. On the other hand when seats were reserved, the Hindus came forward to spoil the effect of the reservation by seeing to it that the seats went to such untouchables as agreed to be their slaves.

Thus there has been a tragic end to this fight of the untouchables for political rights. I have no hesitation in saying that Mr. Gandhi is solely responsible for this tragedy.

Mr. Gandhi's cry against the Communal Award on the ground that it prescribed separate electorates was absolutely false and if the Hindus had not become maddened by his fast they would have seen that it was so. The Communal Award had also a provision for joint electorates in addition to separate electorates. The second vote given to the Untouchables was to be exercised in a general electorate in the election of a Caste Hindu candidate. This was undoubtedly a system of joint electorates. The difference between the Communal Award and the Poona Pact does lie in the nature of electorates. Both provide for joint electorates. The difference lies in this, joint electorate of the Communal Award was intended to enable the Untouchables to take part and influence the election of the Caste Hindu candidate while the joint electorate of the Poona Pact is intended to enable the caste Hindus to take part and influence the election of the Untouchable candidates. This is the real difference between the two.

What would a friend of the Untouchables wish? Would he support the joint electorates of the Communal Award or the joint electorates of the Poona Pact ? There can be no doubt that the real salvation of the Untouchables lies in making the Hindus dependent upon the suffrages of the Untouchables. This is what the Communal Award did. To make the Untouchables depend upon the suffrages of the Hindus is to make them the slaves of the Hindus which they already are. This is what the Poona Pact does. The Communal Award was intended to free the Untouchables from the thralldom of the Hindus. The Poona Pact is designed to place them under the domination of the Hindus.

This 'Fast unto Death' of Mr. Gandhi was described in glorious terms by his friends and admirers both in India and outside. It was described as 'second crucifixion', as 'martyrdom' and as 'Triumphal struggle'. An American friend of Mr. Gandhi assured the Americans that in laying down his life Mr. Gandhi was neither a 'trickster' nor a stick demagogue. Another American in his ecstasy went to the length of describing him as the incarnation of '*one against the world*'. Of course I was held out as the villain of the piece. I had of course my own view of Gandhi's fast. I described it as a political stunt. His utterances had to me always the ring of falsity and even of insincerity.

I had always the feeling that what actuated Mr. Gandhi to fast against the Communal Award was not any desire to liberate the Untouchables as to save the Hindus from disruption. He was prepared to do that at any cost, even at the cost of political enslavement of the Untouchables. His disapproval of the Poona Pact was very much like the disapproval of the enfranchisement of the Negro by the Southerners after the civil war. The 'Statesman' and 'Nation' came to the same conclusion. It said: (*Quotation not mentioned in the MS nor could it be traced elsewhere—Ed.*)

At the time there was this one solitary instance of a view agreeing with mine. Even some of the prominent untouchables backed Mr. Gandhi. A curious case was that of Mr. Raja whose grievance was that although he was a member of the Central Assembly nominated to represent the Depressed Classes he was not selected as a delegate for the Round Table Conference. He was fighting for separate electorates. Suddenly he changed sides and took up the cudgels on behalf of Mr. Gandhi and fulminated both against me for demanding and against the British Government for granting separate electorates. He developed such a strong love for Mr. Gandhi and such a strong faith in the Hindus that no one could suspect that he was doing the work of a mere hireling. This is what Mr. Raja said in the course of a speech delivered by him on an adjournment motion moved in the Central Legislature on September 13th, 1932 relating to Gandhi's fast.

"Never in the annals of the history of India has the issue of the Depressed Classes assumed importance as it has today, and for this we of the Depressed Classes must for ever be grateful to Mahatma Gandhi. He has told the world, in words which cannot be mistaken, that our regeneration is the fundamental aim of his life. If world conscience cannot be roused even now to the realization of the position of the Depressed Classes, then we can only conclude that all instincts of humanity are dead in the world today."

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"The question before the House is the situation created by Mahatma Gandhi opposing the grant of communal electorates to

the Depressed Classes. I am sure there is no honourable member in this House who will not regret that circumstances should have forced such a great personality to take a vow to play on his life, but sir, the correspondence shows that Government had enough warning. If they did not attach full importance to our considered views expressed in our conferences and in the Rajah-Moonje Pact I had signed with the President of Hindu Mahasabha, they should have taken at least the grave warning given by Mahatma Gandhi and desisted from the course of creating separate electorates."

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"Indeed this is my chief attack on the Premier's letter to Mahatma Gandhi. He tells us that he has given separate electorates for twenty years to enable us to get the minimum number of seats to place our views before the Government and legislature of the day. I contend that this privilege we have already enjoyed under the Montford reforms which have enabled us to get representation in numerous local bodies and in legislatures both provincial and central. We are sufficiently organized for that purpose and do not need either special pleading or special succour. In future what we do need as real remedy for our uplift is definite power to elect our representatives from the general constituencies and hold them responsible to us for their actions. I do not know why the Prime Minister calls the scheme of joint electorates with reservation of seats as impracticable. It is already in force in local bodies in Madras and some other provinces and has worked very satisfactorily. I contend, sir, that the scheme enunciated in the communal decision involves our segregation and makes us politically untouchables. I am surprised at the argument of the Prime Minister that there is no segregation because we can vote for Caste Hindus who will have to solicit our votes. But, sir, how can we bring about common ideal of citizenship when Depressed Class representatives are not to solicit votes of higher castes?"

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"The sufferings which my community has undergone at the hands of Caste Hindus have been acknowledged by Caste Hindus themselves, and I am prepared to admit that there are a large number of reformers among them who are doing everything possible to improve our status and position. I am convinced that there is a change of heart and a change in the angle of vision of Caste Hindus. We, Depressed Classes, feel ourselves as true Hindus as any Caste Hindu can be, and we feel that the moral conscience of the Hindus has been roused to the extent that our salvation lies in bringing

about a change from within the main body of Hindu society and not segregating ourselves from them. The course adopted by the Government would certainly arrest the progress of this most laudable movement. I must say, sir, that the Prime Minister's letter in its entire conception, and expression has disappointed me."

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"The crisis that faces us today is very grave. There hangs in the balance the life of the greatest Indian of our time, and there hangs in the balance the future of millions of the down-trodden people of this country. Is Government going to take the responsibility for killing the one and reducing the other to perpetual servitude? Let it make its choice well and wisely."

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Mr. Raja not only backed the Poona Pact and fought for distributive vote which as I pointed out was nothing but a part of the design of the Hindus to make the political enslavement of the Untouchables fool-proof and knave-proof. Mr. Raja was so much enamoured of his new faith in Gandhi and Hindus that he was not satisfied by the disposal of the matter by the Hammond Committee. He reopened the matter after election by moving a resolution in the Madras Assembly in favour of the distributive vote¹.

But today after seeing the results of the Poona Pact Mr. Raja seems to have been disillusioned. How long he will remain faithful to the truth he has discovered is more than I can say. But he has declared himself openly as a bitter opponent of the Poona Pact. In a letter to Mr. Gandhi, dated 25th August 1938, Mr. Raja says:

"You remember how, when most of my people were in favour of separate electorates so that they may express themselves faithfully and effectively in the legislatures, you staked your life on bringing them into the Hindu fold not only politically but socially and religiously. And I was in no small measure responsible for my people going in for a joint electorate with Caste Hindus on the express understanding that there was to be no interference with our choosing men who would faithfully represent our grievances and wishes. It was with this object that the panel election was instituted.

"All this you know as well as I do. But my object in recalling the fact is to show that while on our part we faithfully adhered to the Poona Pact, giving up agitating for a separate electorate, the Congress Party men in Madras representing the Caste Hindus deviated from the Pact, so much so, that our community in the Legislative Assembly have to follow the Caste Hindus blindly in

¹ Madras Legislative Assembly Debates.

every measure the Ministry may bring and vote with them even in matters which deeply affect the interests of the community.

“You perhaps remember that at the beginning of the elections I protested against the Congress Committee setting up candidates for the panel election among the Depressed Classes. You were good enough to say that I might allow my community joining the Congress on certain conditions placed before us by Mr. S. Satyamurti. One of these conditions was that in matters affecting their community, the Depressed Class members of the Congress Party need not vote with the Congress members but vote according to their judgment.

“The recent debate on the Temple Entry Bill in the Madras Legislative Assembly has exposed the ugly fact that all Depressed Class Members driven by the discipline of the Congress Party in the Assembly voted solidly against my motion for referring the Bill to a Select Committee. Could anything be more unnatural and more humiliating, proving as it did the subjugation of my community by the Caste Hindus represented by Mr. Rajagopalachariar ?

“You know the provisions of the Bill. It was only a piece of permissive legislation making it possible for a majority of worshippers of a temple to allow Harijans to worship in the temple. There was no element of compulsion or coercion in it. This Bill had your blessing. It was drafted by Mr. Rajagopalachariar himself and approved by you.

“At a previous session of the Assembly I introduced the Bill with the consent of Mr. Rajagopalachariar, who promised his full support to the measure. When I suggested that the Bill might be introduced by him as a Government measure, he wanted me to introduce it. When I met him last, on the 12th July 1938 and informed him that I was giving notice of a motion for referring the Bill to a Select Committee he did not object.

“I do not know what happened in the meantime but two days before my motion for referring the Bill to the Select Committee came up before the house, Mr. Rajagopalachariar sent for me and quietly asked me to withdraw the Bill, which I refused to do. When in due course, I moved for the consideration of the Bill, Mr. Rajagopalachariar stood up and opposed the Bill and requested me to withdraw it, saying that he would introduce a Temple Entry Bill on the same lines, only for Malabar and not for other Districts.

“The effect of Mr. Rajagopalachariar’s speech was to defeat my motion with my own community men registering their votes against the measure, introduced to secure their social and religious

elevation. One effect of Mr. Rajagopalachariar's opposition will be to strengthen the opposition in the country to temple entry as a whole.

"All this makes me uneasy about the wisdom of our having been parties to the Poona Pact in the full belief that the Congress would really help in our attempt to secure social and religious freedom. I am forced to think that our entering the joint electorate with the caste Hindus under the leadership of the Congress, far from helping us, has enabled the Congress, led by Caste Hindu leaders to destroy our independence and to use us to cut our own throats.

"In the course of the debate, I asked Mr. Rajagopalachariar whether he had obtained your approval of the attitude which he so suddenly and unexpectedly assumed and the Speaker said that Mr. Rajagopalachariar will be given an opportunity to answer the question after I had done. Though he was given the privilege of speaking after me, he avoided the question and did not answer it at all.

"I trust that you will give your most serious consideration to this question of the attitude of the Congress Ministry in Madras towards Harijan uplift, especially with regard to temple entry and let me have your view before I answer my community men who are very much exercised over this question and are contemplating a repudiation of the Poona Pact and an agitation for a separate electorate accompanied by direct action of some kind."

Mr. Rajah also wired to Mahatma Gandhi, Wardha on 12th September 1938 as follows:

"Agitation against Ministry rejection my bill growing difficult withstand pressure upon me—Anxiously awaiting reply."

Mr. Gandhi replied to Mr. Rajah on 14th September 1938:

"Dear friend,

I must apologise for the delay in replying to your letter, I have been overwhelmed with work. Now I have your wire.

I wish you would trust C. Rajagopalachariar to do his best. He should be allowed to do the thing in his own way. If you cannot trust, naturally you will take the course which commends itself to you. All I know is that Harijans have no better friend than him. Go to him, reason with him and if you cannot persuade him, bear with him. That is my advice."

Mr. Rajah wrote a letter dated 21st September 1938 to Mr. Gandhi stating:

"I should request you on the other hand to give more serious consideration to the pledges given to my community during the

Yeravada Fast and to the way in which they are carried out by your plenipotentiary in Madras. That fast was undertaken by you in order to change the Communal Award providing separate electorates for my people and to bring them into joint electorate with Caste Hindus by promising to spare no efforts to remove untouchability. And you have more than once said that temple entry is of the very essence of the removal of untouchability.

“So the question of our being in a joint electorate with Caste Hindus and the attitude of the Congress Ministry towards the raising of the social and religious status of the community are mutually and vitally connected.

“If we are not free to enter into Hindu Temples, we are no Hindus, and if we are not Hindus why should we be in a joint electorate with them? Is it for swelling their numbers as against Muslims and other communities?

“If you look at the situation in Madras from this point of view, you will realise that the rejection of the Temple Entry Bill is a gross betrayal of the Depressed Classes by the Congress Government in Madras.

“Any amount of money spent out of public funds or even from private resources for the amelioration of the economic condition of my community will be no substitute for the removal of untouchability through temple entry. As you yourself once said temple entry is the acid test of the sincerity of the caste Hindus in espousing the cause of the Depressed Classes.

“Mr. Rajagopalachariar’s Temple Entry Bill, besides involving the tactical choice of a difficult district makes our community subservient to the will of Caste Hindus, a policy which is given a further effect to, in the appointment of Advisory Boards to assist the Labour Commissioner in which Caste Hindus of the Harijan Sevak Sanghs in this Province are given Government facilities for guiding the destinies of my people. I do not expect you to agree with my views on the measures recently introduced by Mr. Rajagopalachariar after rejecting the Madras Temple Entry Bill; but I expect you to give more serious consideration to the situation in Madras as regards the Depressed Classes in the light of the pledges given to the Depressed Classes during your memorable fast.

“You are morally bound to make this a matter of conscience and not merely one of political strategy. I assure that if you should seek ‘inner light’ on this subject of untouchability and temple entry you will speak out more plainly and make the necessary sacrifice to educate your followers.

“I propose to send this correspondence to the press, but I shall wait for any further word from you till the end of this month.”

Mr. Gandhi replied to the above on 5th October 1938:

“Dear friend,

“I am working under great difficulty. Even this I am writing in the train taking me to Peshawar.

“Of course you will publish the correspondence between us whenever you think it necessary.

“Your last letter shows that you are in the wrong. I am not partial to Rajaji. But I know that he is as firm on untouchability as I am myself. I must, therefore, trust his judgment as to how to do the thing. From this distance, I can’t judge his action. Do you not see that the whole of the movement is one of conversion of the Sanatani heart ? You cannot force the pace except to the extent that reforms immolate themselves. This process is going on vigorously.

“This temple entry question is a mighty-religious reform. I would like you to apply your religious mind to it, If you will, you will give your whole hearted support to Rajaji and make his move a thorough success.”

The Untouchables of U.P. have also expressed their hostility to the Poona Pact. In a Memorandum submitted to Col. Muirhead the Under Secretary of State in India they said: (*Memorandum not typed in the MS.— Ed.*)

All over India the Untouchables have realized that the Poona Pact has been a trap and the change of the British Government’s Communal Award by Gandhi’s Poona Pact is a change which in reality a change from freedom to bondage.

The Poona Pact was signed on the 24th September 1932. On the 25th September 1932 a public meeting of the Hindus was held in Bombay to accord to it their support. At that meeting the following resolution was passed:

“This Conference confirms the Poona agreement arrived at between the leaders of the Caste Hindus and Depressed Classes on September 24, 1932, and trusts that the British Government will withdraw its decision creating separate electorates within the Hindu community and accept the agreement in full. The Conference urges that immediate action be taken by Government so as to enable Mahatma Gandhi to break his fast within the terms of his vow and before it becomes too late. The Conference appeals to the leaders of the communities concerned to realize the implications of the agreement and of this resolution and to make earnest endeavour to fulfil them.

This Conference resolves that henceforth, amongst Hindus, no, one shall be regarded as an untouchable by reason of his birth, and that those who have been so regarded hitherto will have the same right as other Hindus in regard to the use of public wells, public schools, public roads, and all other public institutions. This right shall have statutory recognition at the first opportunity and shall be one of the earliest Acts of the Swaraj Parliament, if it shall not have received such recognition before that time.

It is further agreed that it shall be the duty of all Hindu leaders to secure, by every legitimate and peaceful means, an early removal of all social disabilities now imposed by custom upon the so-called untouchable classes, including the bar in respect of admission to temples."

Mr. Gandhi felt that an organization which will devote itself exclusively to the problem of the Untouchables was necessary. Accordingly there was established on 28th September 1932 the All-India Anti-Untouchability League. The name, Gandhi thought, did not smell well. Therefore in December 1932 it was given a new name—The Servants of the Untouchables Society. That name again was not as sweet as Mr. Gandhi wished it to be. He changed and called it the Harijan Sevak Sangh.

The first change which Mr. Gandhi has brought about is this change in the name. Instead of being called Untouchables they are now called *Harijans*. To call, the Untouchables say that Mr. Gandhi is selfish and has given the name Harijan to the Untouchables to blaster up Vaishnavism. They want the Untouchables to be called Harjans the followers of Shiva. Mr. Gandhi replies that the term is used to mean God and not Vishnu and that Harijan simply means 'children of God'.

The Untouchables simply detest the name Harijan. Various grounds of objection are urged against the name. In the first place it has not bettered their position. It has not elevated them in the eyes of the Hindus. The new name has become completely identified with the subject matter of the old. Every body knows that Harijans are simply no other than the old Untouchables. The new name provides no escape to the Untouchables from the curse of untouchability. With the new name they are damned as much as they were with the old. Secondly the Untouchables say that they prefer to be called Untouchables. They argue that it is better that the wrong should be called by its known name. It is better for the patient to know what he is suffering from. It is better for the wrong doer that the wrong is there still to be redressed. Any concealment will give a false sense of both as to existing facts. The new name in so far as it is a concealment is fraud upon the

Untouchables and a false absolution to the Hindus. Thirdly there is also the feeling that the name Harijan is indicative of pity. If the name meant 'chosen people of God' as the Jews claimed themselves to be it would have been a different matter. But to call them 'children of God' is to invite pity from their tyrants by pointing out their helplessness and their dependent condition. The more manly among the Untouchables resent the degrading implications of this new name. How great is the resentment of the Untouchables against this new name can be seen from the fact that whole body of the representatives of the Untouchables in the Bombay Legislative Assembly walked out of the House in protest when the Congress Government introduced a measure giving to the name Harijan the sanction of law.

This new name Harijan will remain until the downfall of Mr. Gandhi and the overthrow of the Congress Governments which are his creatures. That it was forced upon the Untouchables and that it has done no good are however facts which cannot be disputed.

Having discussed the blessings of this new name I must now proceed to examine the work of the Harijan Sevak Sangh. The Sangh is spoken of as a memorial to Gandhi's labours in the cause of the Untouchables. What are the achievements of the Sangh.

The Sangh is an All-India Organization. It has a Central Board. Then there are Provincial Boards and under the Provincial Boards there are District and Local Committees. The number of Provincial Boards and Local Committees is given below:

	1932-33	1933-34	1934-35
Provincial Boards	26	26	29
District & Local Committees	213	313	372

The financial resources of the Sangh are mainly drawn from the collections made on an All-India tour specially undertaken for the purpose by Mr. Gandhi between November 1933 to July 1934. The total amount collected on this tour came to about 8 lacs of Rupees and is known as the Gandhi Purse Fund and forms the principal reserve for the Sangh to draw upon. The rest of the resources are made up of annual donations.

The total expenditure of the Sangh under all heads from year to year is as follows:

	1932-33	1933-34	1934-35	1935-36
Rs.	2,31,039.00	3,31,791.00	4,48,422.00	3,99,354.00

In his report for 1934-35 the General Secretary reported that “almost the whole of the Gandhi Purse Fund, which stood at over 8 lacs in July 1934, will be spent away by the end of the current year, i.e. by the end of September 1936.” In the fifth Annual Report the Secretary says, “As compared to the expenditure of the previous year, there has been a reduction of more than a lac in the total expenditure. This was partly owing to the gradual exhaustion of the Gandhi Purse Fund, dislocation in the realization of local collections owing to general elections and other contributory causes. The finances of the Central office were far from satisfactory. The total expenditure of the Central office (including grants made to branches) amounted to Rs. 86,610-14-8, as against an income of Rs. 42,485-4-9 thus leaving a deficit of Rs. 44,125-9-11 which was met from the general fund. Donations for general fund amounted to only Rs. 26,173-4.”

It is obvious that the Harijan Sevak Sangh is a small affair and but for the running advertisement it gets from the Press it would not even be heard off. India is a vast continent with something like 6,96,831* villages. The Untouchables are spread out all throughout these 6,96,831 villages. There is no village without its untouchables. How many Untouchables can be reached by 372 Committees. It is a tiny peck in a vast ocean. Not only its capacity to cope with the problem is limited but its resources are too meagre to permit any relief being granted to the Untouchables on an adequate scale. The Sangh has now no permanent fund. What it had it has spent. It has to depend upon annual subscriptions. That source is also drying up leaving the Sangh with heavy deficit. The Sangh is in an exhausted condition. Its affairs in fact would have been wound up on account of its bankruptcy. If the Sangh is still existing, it is not because its endeavours are sustained by Hindu charity directed to the uplift of the Untouchables. It exists because the Congress Governments which are now established in the different Provinces have come to the rescue of the Sangh. They have handed over to the Sangh certain social welfare work which former Governments carried out through Government Departments or Government Officials with the money grants. Thus the Sangh is now living on Government funds. As an institution maintained by the Hindus with the help of Hindu Charity for the Untouchables the Sangh simply does not exist.

The din and noise which was created by Mr. Gandhi's fast was simply deafening. The readiness to make sacrifices to save his life was great and the eagerness shown to befriend the Untouchables was surprizing and overwhelming. All this has vanished leaving the

*Census Report, 1931. (*Inserted, as the figures are not shown in the MS.—Ed.*)

Untouchables high and dry. If the desire to contribute towards the maintenance of the Sangh—which the Hindus founded as an earnest of their acceptance of their obligation towards the Untouchables—is any measure of the reality of the change of heart then it must be admitted that the change has died with the occasion which caused it. Gandhi broke his fast and the Hindu lost his new-born love for the Untouchables.

The premature decay of the Sangh should make it unnecessary for me to consider the work it did. But the Sangh is held out as a great monument to Mr. Gandhi. It is therefore proper that I should examine the work done by the Sangh and the policy underlying that work.

The work of the Sangh follows certain well defined lines.

In the field of education the Sangh has sought to encourage higher education among the Untouchables by instituting scholarships for the Arts, technical and professional courses. The Sangh also gives scholarships to High School students. The Sangh also maintained Hostels for Untouchable students attending colleges and High Schools. The great part of the educational activities of the Sangh is taken up in maintaining separate schools for primary stage children where there were no common schools in the vicinity or where common schools were closed to them.

Next comes the welfare activities of the Sangh. The medical aid which the Sangh undertakes to render to the Untouchables falls under this head. This is done by intendant workers of the Sangh who go in Harijan quarters to give medical aid to the sick and ailing among the Untouchables. The Sangh also maintains a few dispensaries for the use of the untouchables. This is a very small activity of the Sangh.

The more important part of the welfare activity of the Sangh relates to water supply. The Sangh does this by (1) sinking new wells or installing tube wells and pumps for the use of the untouchables, (2) repairing old ones and (3) persuading local Governments and bodies to sink and repair wells for the Untouchables.

The third line of activity undertaken by the Sangh is economic. The Sangh seems to run a few industrial schools and it is claimed that the industrial schools run by the Sangh produced a number of trained artisans who have taken to independent living. But according to the report, more successful and substantial work was done by way of organizing and supervising cooperative societies among the Untouchables.

Such is in brief the record of the work done by the Sangh. It is largely directed by the Caste Hindus. There are very few Untouchables who have any voice in directing the activities of the Sangh. I have had

no connection with the Sangh. But I might mention that when the Sangh was started I was invited to join. I had great desire to cooperate with the Hindus for the removal of untouchability. I had my own views regarding the policy and programme which the Sangh should adopt for accomplishing this task. Immediately after the Sangh was established I had to go to London to attend the Round Table Conference and had no opportunity to talk the matter over with the other members of the Sangh. But I posted a letter to the General Secretary of the Sangh Mr. Thakkar on the 14th November 1932 on Board the Ship *M. V. "Victoria"*. Excepting a short introductory para which I omit, the following is the full text of the letter:

"In my opinion there can be two distinct methods of approaching the task of uplifting the Depressed Classes. There is a school which proceeds on the assumption that the fate of the individual belonging to the Depressed Classes is bound up with his personal conduct. If he is suffering from want and misery it is because he must be vicious and sinful. Starting from this hypothesis, this school of social workers concentrates all its efforts and its resources on fostering personal virtue by adopting a programme which includes items such as temperance, gymnasium, co-operation, libraries, schools etc., which are calculated to make the individual a better and virtuous individual. In my opinion there is also another method of approach to this problem. It starts with the hypothesis that the fate of the individual is governed by his environment and the circumstances he is obliged to live under and if an individual is suffering from want and misery it is because his environment is not propitious.

"I have no doubt that of the two views the latter is the more correct. The former may raise a few stray individuals above the level of the class to which they belong. It cannot lift the class as a whole. My view of the aim of the Anti-Untouchability League is that it has come into existence not for helping a few individuals at random or a few selected boys belonging to the Depressed Classes but for raising the whole class to a higher level. Consequently I would not like the League to dissipate its energies on one programme calculated to foster private virtue. I would like the Board to concentrate all its energies on a programme that will effect a change in the social environment of the Depressed Classes. Having stated in general terms my views I venture to place some concrete proposals for work to be undertaken by the League.

"I think the first thing that the League should undertake is a campaign all over India to secure to the Depressed Classes the enjoyment of their civic rights such as taking water from the village

wells, entry in village schools, admission to village chawdi, use of public conveyance etc.

“Such a programme if carried into village will bring about the necessary social revolution in the Hindu society without which it will never be possible for the Depressed Classes to get equal social status. The Board must however know what difficulties it will have to face if this campaign of civic rights is to be carried through. Here I can speak from experience because I as President know what happened when the Depressed Classes Institute and the Social Equality League launched such a plan in the Kolaba and Nasik Districts of the Bombay Presidency.

“First of all there will be riots between the Depressed Classes and the Caste Hindus which will result in breaking heads and in criminal prosecutions of one side or the other. In this struggle the Depressed Classes will suffer badly. There has not been a single case in the course of the social struggle carried on in these two districts in which the Police and the Magistracy have come to the rescue of the Depressed Classes even when justice was on their side. Secondly the villages will proclaim a complete boycott of the Depressed Classes the moment they see that the latter are trying to reach a status of equality along with them.

“I have mentioned only two of the many obstacles which the League will have to overcome if this campaign of civic rights is to be successful and the League will have to have an army of workers in the rural parts who will encourage the Depressed Classes to fight for their rights and who will help them in any legal proceedings arising therefrom to a successful issue. It is true that this programme involves social disturbances and violent scuffle. But I do not think that it can be avoided. I know the alternative policy of adopting the line of least resistance. I am convinced that it will be ineffective in the matter of uprooting untouchability.

“The silent infiltration of rational ideas among the ignorant mass of Caste Hindus cannot, I am sure, work for the salvation of the Depressed Classes. First of all the Caste Hindu like all human beings follows his customary conduct in observing untouchability towards the Depressed Classes. Ordinarily, people do not give up their customary mode of behaviour because somebody is preaching against it.

“The salvation of the Depressed Classes will come only when the Caste Hindu is made to think and is forced to feel that he must alter his ways. For that you must create a crisis by direct action against his customary code of conduct. The crisis will compel him to think

and once he begins to think he will be more ready to change than he is otherwise likely to be.

“The great defect in the policy of least resistance and silent infiltration of rational ideas lies in this that they do not ‘compel’ for they do not produce crisis. The direct action in respect of the Chowdar tank in Mahad, the Kalaram temple in Nasik and the Guruvayur temple in Malabar have done in a few days what million days of preaching by reformers would never have done.

“The second thing I would like the Anti-Untouchability League to work for is to bring about equality of opportunity for the Depressed Classes. Much of the misery and poverty of the Depressed Classes is due to the absence of equality of opportunity which in its turn is due to Untouchability. I am sure you are aware that the Depressed Classes in villages and even in towns cannot sell vegetables, milk or butter—ways of earning a living which are open to all and sundry. A Caste Hindu, will buy these things from a Non-Hindu, but he will not buy them from the Depressed Classes. In the matter of employment his condition is the worst.

“Like the Negro in America he is the last to be employed in days of prosperity and the first to be fired in days of adversity. And even when he gets a foothold what are his prospects ? In the Cotton Mills in Bombay and Ahmedabad he is confined to the lowest paid department where he can earn only Rs. 25 per month. More paying departments like the weaving department are permanently closed to them. The place of the boss is reserved for the caste Hindu while the Depressed Class worker must slave as his underdog no matter how senior or how efficient.

“Depressed Class women working in the winding or reeling departments have come to me in hundreds complaining that the Naikins, instead of distributing the raw material to all women employees equally or in fair proportion, give all of it to the caste Hindu women and leave them in the cold.”

“I think it would be fit and proper if the Anti-Untouchability League were to take up this question by creating public opinion in condemnation of it and establishing Bureaus to deal with urgent cases of inequality.

“Lastly I think the League should attempt to dissolve that nausea which the touchables feel towards the untouchables and which is the reason why the two sections have remained so much apart as to constitute separate and distinct entities. In my opinion the best way of achieving it is to establish closer contact between the two. Only a common cycle of participation can help people to overcome that

strangeness of feeling which one has when brought into contact with the other. Nothing can do this more effectively in my opinion than the admission of the Depressed Classes to the houses of the caste Hindus as guests or servants.

“The live contact thus established will familiarize both to a common and associated life and will pave the way for that unity which we are all striving after. I am sorry that many caste Hindus who have shown themselves responsive are not prepared for this.

“During those ten days of the Mahatma’s fast that shook the Indian world there were cases in Ville Parle and in Mahad where the caste Hindu servants had struck work because their masters had abrogated the rules of untouchability by fraternizing with the Untouchables. I expected that they would end the strike and teach a lesson to the erring masses by filling the vacancies by employing Depressed Classes in their places. Instead of doing that they capitulated with the forces of orthodoxy and strengthened them. I do not know how far such fair-weather friends of the Depressed Classes would be of help to them.

“People in distress can have very little consolation from the fact that they have sympathisers if those sympathisers will do nothing more than sympathise and I may as well tell the League that the Depressed Classes will never be satisfied of the bonafides of these caste Hindu sympathisers until it is proved that they are prepared to go to the same length of fighting against their own kith and kin in actual warfare if it came to that for the sake of the Depressed Classes as the Whites of the North did against their own kith and kin namely the Whites of the South for the sake of the emancipation of the Negro.

“The League will have to employ a very large army of workers to carry out its programme. The appointment of social workers might perhaps be looked upon as a minor question. Speaking for myself, I attach very great importance to the selection of a proper agency to be employed in this behalf. There can always be found workers to do a particular piece of work or any other for the matter of that if they are paid for it. I am sure such mercenary workers will not serve the purpose of the League. As Tolstoy said “Only those who love can serve”. In my opinion that test is more likely to be fulfilled by workers drawn from the Depressed Classes. I should therefore like the League to bear this aspect of the question in mind in deciding upon whom to appoint and whom not to appoint. I do not suggest that there are hot scoundrels among the Depressed Classes who have not made social service their last refuge. But largely speaking

you can be more sure that a worker drawn from the Depressed Classes will regard the work as love's labour a thing which is so essential to the success of the League.

"Secondly there are agencies which are already engaged in some sort of social service without any confines as to class or purpose and may be prepared to supplement their activity by taking up the work of the Anti-Untouchability League in consideration of a grant-in-aid. I am sure this hire-purchase system of work, if I may use that expression, can produce no lasting good. What is wanted in an agency is a single-minded devotion to one task only. We want bodies and organizations which have deliberately chosen to be narrow-minded in order to be enthusiastic about their cause. The work if it is to be assigned must be assigned to those who would undertake to devote themselves exclusively to the work of the Depressed Classes.

"Before closing this I wish to say just this. It was Balfour, I think, who said that what could hold the British Empire together was love and not law. I think that observation applies equally well to the Hindu society.

"The touchables and the untouchables cannot be held together by law, certainly not by any electoral law substituting joint electorates for separate electorates. The only thing that can hold them together is love.

"Outside the family, justice alone, in my opinion can open the possibility of love, and it should be the duty of the Anti-Untouchability League to see that the touchable does, or failing that, is made to do justice to the untouchable. Nothing else in my opinion can justify the project or the existence of the League."

This letter was not even acknowledged by the Secretary. That not a single suggestion of mine was accepted goes without saying. Even my suggestion that the workers of the Sangh should be drawn largely from the Untouchables themselves was not accepted. Indeed when the attention of Mr. Gandhi was drawn to the fact that the Harijan Sevak Sangh had become the hive of mercenary Hindus, he defended it on the ground which are clever if not honest.

¹ He said to the deputation of the Untouchables;

"The welfare work of the Untouchables is a penance which the Hindus have to do for the sin of Untouchability. The money that has been collected has been contributed by the Hindus. From both points of view the Hindus alone must run the Sangh. Neither ethics

¹ This quotation is taken from Dr. Ambedkar's book 'What Congress & Gandhi have done to the Untouchables', p. 142. (*This extract are not mentioned in the MS.—Ed.*)

nor right would justify Untouchables in claiming a seat on the Board of the Sangh.”

Not only were all my proposals rejected by Mr. Gandhi and his advisers but in framing the constitution of the Sangh, aims and objects were adopted which are quite opposed to those which I had suggested.¹ At the meeting held in Cowasjee Jehangir Hall in Bombay on the 30th September 1932 the aims of the organization were stated to be:

“Carrying propaganda against Untouchability and taking immediate steps ‘to secure as early as practicable that all public wells, dharmashalas, roads, schools, crematoriums, burning ghats and all public temples be declared open to the Depressed Classes, provided that no compulsion or force shall be used and that only peaceful persuasion shall be adopted towards this end’.”

But in the statement issued by Mr. G. D. Birla and Mr. A. V. Thakkar on the 3rd November, two months after its inauguration it was stated:

“The League believes that reasonable persons among the Sanatanists are not much against the removal of Untouchability as such, as they are against inter-caste dinners and marriages. Since it is not the ambition of the League to undertake reforms beyond its own scope, it is desirable to make it clear that while the League will work by persuasion among the caste Hindus to remove every vestige of Untouchability, the main line of work will be constructive, such as the uplift of Depressed Classes educationally, economically and socially, which itself will go a great way to remove untouchability. With such a work even a staunch Sanatanist can have nothing but sympathy. And it is for such work mainly that the League has been established. Social reforms like the abolition of the caste system and inter-dinning are kept outside the scope of the League.”

These aims and objects are described in one of the Annual Reports of the Sangh. It says:²

“According to its constitution the aim and object of the Society is the abolition of untouchability by reason of birth and the acquisition of equal rights of access of public temples, wells, schools and other public institutions for Harijans as enjoyed by other Hindus.

The achievement of this object has led the Society to undertake work of a two-fold kind. First, the Society has to bring about such a radical change in the sentiments and opinions of Caste Hindus that they may willingly, as a matter of course, allow the enjoyment of all civic rights to Harijans. Secondly, the society has to put forth its

¹ *Reprduced from ‘What Congress etc.’ pp. 140-41 as the page in the MS is left blank.—Ed.*

² Report for 1932-33, p. 1.

efforts and devote its funds for the educational, economic and social uplift of Harijans."

The work done and the aims formulated when put side by side raise two questions. Firstly is this record something of which the Sangh can be proud of? Secondly is its work consistent with the aims of the Sangh? The record is very poor. It is much cry and little wool. Certainly as compared with the record of work done by the Christian Missions with which the Sangh competes, it is not a record of which the Sangh can be proud of. But this is a mere matter for sorrow and nothing more. The second question is fundamental and therefore one for anxious consideration. It is well that the Sangh undertakes to labour in the interests of the Untouchables. But its labours must be so planned that out of it will come the destruction of untouchability.

Examined in the light of this consideration what is one to say of the work that is being done by the Sangh? The Sangh is openly and without abashment supporting *separate* schools, *separate* hostels, *separate* dispensaries, and *separate* wells for the Untouchables. I should have thought that that was the surest way of perpetuating untouchability. It is surprising that Mr. Gandhi who threatened to fast unto death against separate electorates on the ground that it involved segregation of the untouchables should himself sanction a line of activity which perpetuates this segregation. In undertaking to render this social service to the Untouchables, Mr. Gandhi and his Sangh should have forgotten what the Untouchables want. What the Untouchables want is not education, but the right to be admitted to common schools. The Untouchables do not want medical aid; what they want is the right to be admitted to the general dispensary on equal terms. The Untouchable does not want water. What he wants is the right to draw water from a common well. The Untouchables do not want their suffering to be relieved. They want their personality to be respected and their stigma removed. Once their stigma is removed their sufferings will go. This the Harijan Sevak Sangh does not seem to have realized. The Sangh is said to be the friend of the Untouchables and the orthodox Hindu the enemy of the Untouchables. One fails to understand what the friend has done which the enemy would not do. The orthodox Hindu insists that the Untouchables shall have *separate* schools, *separate* dispensaries and *separate* wells, the Sangh says—*Thy will shall be done*. Except the fact the orthodox Hindu believes in untouchability and Harijan Sevak Sangh does not, what is the difference in practice between the friend and the foe? Under both, the untouchable is condemned to *separate* schools, *separate* hostels and *separate* wells. If this is so, it is difficult to understand why

Mr. Gandhi and the Harijan Sevak Sangh should pick up a quarrel with the orthodox Hindu if he and his Sangh are not prepared to force the issue. Whether the Hindu Shastras recognize untouchability or not is only an academic quarrel between Mr. Gandhi and the orthodox Hindu. It can do no practical good. On the contrary I am prepared to say that it had done positive harm to the Untouchables. In the first place it has created enmity between the Untouchables and the orthodox Hindus. Before Gandhi picked up this needless quarrel the relations between the Untouchables and the Hindus were non-social. The quarrel has made them anti-social. Secondly if there was no such quarrel, if instead of untouchability being made the issue—which Mr. Gandhi does not intend to fight it out—an appeal was made to the orthodox Hindu to remove the suffering of the Untouchables, many an orthodox Hindu I know would have come forward to help to remove the suffering. Mr. Gandhi has reaped the glory for having established the Sangh. But the Sangh has neither sought to remove untouchability nor has it helped to alleviate the sufferings of the Untouchables.

Why has the Sangh failed ? My answer is quite definite. I say the Sangh has failed because of its wrong politics.

It has often been said that the Harijan Sevak Sangh is a political organization. Mr. Gandhi has always resented such an allegation and repudiated it as being false. The General Secretary of the Sangh has also protested against it. To use his own words “the Sangh, though a sequel of a Political Pact, has no politics”.

I do not see any reason for the resentment of Mr. Gandhi nor for the protests of his Secretary. I wish very much that the Sangh was a political organization. The untouchables have obtained a share of political power. But power which is not conscious of itself is no power. Again power which is not organized is no power. The Harijan Sevak Sangh would have been of great use if it had helped the Untouchables to organize independent political parties to fight the elections and make their political power effective. Nor can I accept the statement of Mr. Gandhi and his Secretary that the Sangh has no politics. On the contrary I insist that not only the Sangh has a definite line of politics and that that line of politics is wrong because it is prejudicial to the cause of the Untouchables.

Since Mr. Gandhi does not admit that the Sangh has politics, one must go to circumstances for proof. Circumstantial proof is always better than oral testimony because as is well said man may lie but circumstances cannot. In this connection I want to rely upon a clause in the constitution of the Sangh as a piece of evidence in support of my contention. The clause relates to the means to be adopted by the Sangh

for removing untouchability and for securing equal rights to the Untouchables along with the Caste Hindus. The clause reads as follows:

“That no compulsion is to be used for securing rights, but that peaceful persuasion is to be adopted as the *only* means.”

This is a basic principle of the Sangh. It has struck me as strange and I am sure it will strike all others as strange. I want to ask the question—Why has the Sangh limited itself to peaceful persuasion of the caste Hindus as the one and the only means of removing Untouchability ?

Most social reformers, whether religious or rational, seem to imagine that men of power will immediately check their pretensions and their exactions as soon as they have been told that their actions and attitudes are anti-social. But as Prof. Neibhur points out¹ what these reformers overlook is an understanding of the brutal character of the behaviour of all human groups and the power of self interest and collective egoism which dominate all group relations. They also forget the fact that races, nations and classes are less moral than individuals which compose them and that justice between groups can therefore not be achieved purely by educational means. If conscience and reason can be insinuated into the resulting struggle they can only qualify, never abolish, the injustice. If injustice is to be abolished it must be resisted and when injustice proceeds from collective power, whether in the form of imperialism or class domination, it must be challenged by power. A class entrenched behind its established power can never be dislodged unless power is raised against it. That is the only way of stopping the exploitation of the weak by strong.

Why has Mr. Gandhi and the Harijan Sevak Sangh limited their means of resistance to the Caste Hindu domination to peaceful persuasion? Why do they not resist the injustice of the Caste Hindus by direct action? I can understand that in organizing resistance to injustice, the problem is to find forms of resistance which will not destroy the meagre resources for rational and moral action which groups do possess. But there can be no difficulty on that account. Satyagraha or passive resistance has been found by Mr. Gandhi as a form of resistance which is morally beyond cavil. Why does not Mr. Gandhi ask the Sangh to launch Satyagraha by the Untouchables against the Caste Hindus for the abolition of the injustice against the Untouchables. He asked the people of India to offer Satyagraha against British Imperialism. Why does he not want to use the same means against the caste Hindus in the interests of the Untouchables ?

¹ Moral Man and Immoral Society/*passim*.

What is the answer of Mr. Gandhi to this question? The only answer I can see is that it comes in the way of *his* politics. Mr. Gandhi must remain at the head of the nation. I wonder if life would be worthwhile to him if for some reason he ceased to be at the head of the nation. He is, I think, the most ambitious politician. I know, he regards as his rivals those whom he calls as friends. To be at the head of the nation means that he must preserve the integrity of the Congress. The Congress is ninety nine per cent composed of Hindus. How can Gandhi succeed in maintaining the integrity of the Congress if he were to direct the Sangh to carry on Satyagraha against the Hindus for the sake of the Untouchables. The Hindus would leave the Congress and the Congress would disrupt. This is detrimental to the interests of Mr. Gandhi. This is the explanation why Mr. Gandhi and the Sangh have adopted peaceful persuasion as the only means of removing untouchability. It is a means which is least likely to hurt the Hindus and the Congress. Not only in big matters but even in small matters the Sangh is careful to see that the Hindus are not hurt or annoyed. I am told that in distributing scholarships for instance the Sangh makes inquiries into the political affiliations of the applicant and if it is found that the applicant belongs to a community which is against the Congress or the Hindus, he gets no aid from the funds of the Sangh.

I wonder if any one will have any doubts left that Mr. Gandhi and the Sangh in limiting themselves to peaceful persuasions were controlled by political considerations of not annoying the Hindus and disrupting the Congress. This is what I meant when I said that the Sangha's politics and that its failure is due to wrong politics. I am sure I am using mild language when I describe it as wrong politics. It is treachery if the surrender of the interests of his ward by his guardian can be described as treachery.

Mr. Gandhi is often compared with Jesus Christ both by his Indian and European friends. What may be the justification for so strange a comparison? In one thing I see a complete contrast between the two. Both Jesus and Gandhi claimed to serve the lowly. This befriending attitude of both was resented by the upper classes. How did the two react? When Jesus was taunted by the Pharisees he retorted by saying—"They that are whole have no need of the physician, but they that are sick". How sharp is the contrast between this attitude of Jesus and that of Mr. Gandhi. Jesus did not worry about those who were 'whole'. Gandhi is devoted to those who are 'whole' and who are sinning at the cost of those who are sick and who are sinned against. Gandhi is no physician to the untouchables. At best a sympathiser and nothing more.

Even as a sympathizer of the Untouchables his sympathy for them is limited by two considerations. It is limited by his social aims. Secondly it is also limited by his politics. Lest this statement should be doubted, I wish to give two instances, one of each which have occurred recently. They have occurred not far from Shegaon in Central provinces where Mr. Gandhi resides.

As an instance of the first I refer to what is known in India as the Khare episode. In 1938 last there was a ministerial crisis in the Central Provinces where the ministry was a Congress Ministry. The Prime Minister Dr. Khare fell out with his colleagues. As Prime Minister he demanded the resignation of other ministers which they were not prepared to give without the consent of the Congress Parliamentary Board. But Dr. Khare forced them to give their resignations which they ultimately did. Thereupon Dr. Khare formed another Congress cabinet and filled the ministerial offices with men of his choice. In his new cabinet Dr. Khare included an untouchable as a minister. Dr. Khare's conduct in dissolving the old cabinet and forming a new one without consulting the Congress Parliamentary Board came up for investigation before the Congress Working Committee. Dr. Khare was found guilty of breach of party discipline and was deposed from his primiership. One of the accusations levelled against Dr. Khare by Mr. Gandhi was that he included an untouchable in his new Ministry. The following is the full text of what Mr. Gandhi said to Dr. Khare on this point and reduced to writing by Dr. Khare for my sake:

“Mahatmaji took me to task for including a Harijan in my second cabinet. I retorted by saying that it was a Congress programme of uplift of Harijans for which Mahatmaji fasted unto death and that I did what I could in furtherance of that programme when opportunity offered itself and I think I have done nothing wrong in doing so. Thereupon Mahatmaji charged me of doing this for my selfish ambition. I repudiated this charge saying that any selfish motive is disproved by my resignation. Then Mahatmaji said that by my action I have thrown an apple of discord among the members of that simple community and have rendered disservice to the Congress cause by throwing this temptation in their way.”¹

That this is true and that Gandhi objected to the untouchable being included in the Cabinet is evidenced by the fact that when a new Congress Ministry was formed in Central Provinces this untouchable who functioned as a minister for a day was excluded. He should have been included as a matter of form, at least to keep up

¹ This statement was repeated by Dr. Khare at a meeting held in Servants of India Society's Hall in Bombay in support of his cause.

appearances. That he was not, shows that Gandhi was opposed to his inclusion on principle.

This is baffling because the Untouchable member of the Central Provinces Assembly who was chosen by Dr. Khare for ministership is a graduate, is a Congressman and is a strong party-man. Why should Mr. Gandhi have any objection to the inclusion of such a person in the Congress Cabinet. As a matter of fact if Mr. Gandhi was genuine in his professions regarding the untouchables he should have instructed all Congress Prime Ministers to include at least one untouchable in their Cabinets, if for nothing else, at least for its psychological effect upon the Untouchables and upon the Hindus. He should have done this irrespective of the party affiliations. Gandhi is not averse to congress making coalitions with other non-congress parties in provinces where it is not in a majority in order to secure offices. In such coalitions he has allowed Congress to include non-congressmen as ministers in their cabinets. If Gandhi can allow the congress to do this without losing its caste and its colour why Gandhi did not instruct the Congress Prime Ministers to include untouchables in the Congress Ministries if he wanted that when he talks about his love for the Untouchables he should be believed. But the case in the Central Provinces stand on a different footing. Here the Untouchable who was taken as a minister was a Congressman and a graduate. There could be no objection on the ground of his want of qualification or want of political faith. Why did Mr. Gandhi object to his inclusion? A crowd of Untouchables went to Shegaon to Mr. Gandhi for an explanation. Anticipating this Mr. Gandhi had started observing silence, so that no explanation could be had. Then the untouchables started Satyagraha against Mr. Gandhi for not including an Untouchable in the Central Provinces Congress Cabinet. To escape that embarrassment Mr. Gandhi left Shegaon and went on a tour to the North Western Frontier Provinces for teaching non-violence to the Pathans. I am sure Gandhi's silence on this occasion was not to commune with God. It was taken on as a convenient excuse for not being driven under the fire of cross examination to disclose his innermost thoughts about the Untouchables. In any case we have no answer to this question from Mr. Gandhi. To my mind there can be only one answer and that even if Gandhi had opened his mouth he could give no better. That answer is that Mr. Gandhi's ideal for the untouchable is a very low ideal and that all that he cares for is that the untouchable should be touched and that if he is touched without anybody taking a bath nothing further need be done about them. If Gandhi had tried and failed he would have been excused. But how can he be excused for entertaining so low an aim? Not failure but low aim is a crime.

As an instance of the second I refer to what is known as the Bachuma incident. If the first instance is baffling this second is gruesome. How gruesome it is can be seen from the brief summary of fact which I am giving. Bachuma, a small girl, 12 years old and belonged to an untouchable family which was living in *Wardha* (*This name is inserted as it was not mentioned in the MS.—Ed.*). One evening she was decoyed into the house of a Mahomedan who was the Sub-Inspector of Police. She was kept in his house and during the night this small child was raped by three Mahomedans, one was the Superintendent of Police himself, second a Sub-Inspector of Education and third a Lawyer. The three Mahomedans were tried in a Court of Law and two of them were sentenced to two years rigorous imprisonment and the lawyer was acquitted as the girl was not able to identify him. The two who were convicted appealed to the High Court but the High Court rejected their appeals and confirmed their convictions and sentences. From gaol they sent to the Governor-in-Council petitions for mercy. But they were also rejected. This happened before the Congress came into office. After the Congress came into office they submitted fresh applications for mercy to the Minister-in-charge. The Minister-in-charge, who was also a Mahomedan thought that there was nothing wrong in a Mahomedan committing rape on an untouchable girl and decided to set the culprits free. He granted the application of one—that of the Inspector of Education who is now a free man and is employed on a big job in the Education Department of a Mahomedan State. He was to release the other culprit also but in the meantime the agitation against him was so great that he had to resign his office. Every body expressed his resentment against the shameless act of the Minister but Mr. Gandhi has kept mum. So far he has not uttered a word of condemnation against this Minister. On the contrary he is even now engaged in the confabulations that are going on over the question of the reinstatement of this dismissed minister in his office which is still kept vacant. One likes to ask if Gandhi would have remained so silent and so unmoved if the little girl Bachuma who was raped by the three Mahomedans instead of being the daughter of an Untouchable had been Mr. Gandhi's own daughter. Why is Gandhi not able to make Bachuma's case his daughter's case? There are two answers. One is that Mr. Gandhi is not an untouchable. One must be born to it. Secondly Mr. Gandhi feels that by condemning the Muslim Minister for the sake of Bachuma he might destroy Hindu-Moslem Unity the maintenance of which is a fundamental creed of Congress politics. Does this now show that Mr. Gandhi's sympathies for the Untouchables are limited by his politics ?

What good is a man who is not even free to sympathize according to his conscience.

III

And now the temple entry. This is advertized as another of Mr. Gandhi's boons to the Untouchables.

This question of temple entry is the outcome of the resolution passed at the public meeting of the Hindus held on 25th September 1932 which also was the originating cause which gave birth to the Harijan Sevak Sangh. This resolution mentioned some of the liabilities of the Hindus towards the Untouchables. This list included the removal of the bar against the Untouchables in respect of admissions to Hindu temples.

Although the promise of temple entry was there in the Resolution the Untouchables did not insist upon its being fulfilled forthwith. The untouchables, at any rate a vast majority of them have not been keen for temple entry. When asked by Mr. Gandhi what I thought about temple entry I gave my opinion on it in the form of a statement which was issued to the Press on February 10*, 1933, and which is reproduced below:

STATEMENT ON TEMPLE ENTRY

Although the controversy regarding the question of temple entry is confined to the Sanatanists and Mahatma Gandhi, the Depressed Classes have undoubtedly a very important part to play in it, in so far as their position is bound to weigh the scales one way or the other, when the issue comes for final settlement. It is, therefore necessary, that their view point should be defined and stated so as to leave no ambiguity about it.

To the Temple Entry Bill of Mr. Ranga Iyer as now drafted, the Depressed Classes cannot possibly give their support. The principle of the Bill is that if a majority of Municipal and Local Board voters in the vicinity of any particular temple on a Referendum decide by a majority that the Depressed Classes shall be allowed to enter the temple, the Trustees or the Manager of that temple shall give effect to that decision. The principle is an ordinary principle of majority rule and there is nothing radical or revolutionary about the Bill and if the Sanatanists were a wise lot, they would accept it without demur.

The reasons why the Depressed Classes cannot support a Bill based upon this principle are two. One reason is that the Bill cannot hasten

**This statement is shown as of 14th February 1933 in Dr. Ambedkar's 'What Congressetc.' at pp. 108-13.-Ed.*

the day of Temple Entry for the Depressed Classes any nearer than would otherwise be the case. It is true that under the Bill the minority will not have the right to obtain an injunction against the Trustee or the Manager who throws open the temple to the Depressed Classes in accordance with the decision of the majority. But before one can draw any satisfaction from this clause and congratulate the author of the Bill, one must first of all feel assured that when the question is put to the vote there will be a majority in favour of the Temple Entry. If one is not suffering from illusions of any kind, one must accept that the hope of a majority voting in favour of Temple Entry will be rarely realised, if at all. Without doubt the majority is definitely opposed to day—a fact which is conceded by the Author of the Bill himself in his correspondence with the Shankaracharya. What is there in the situation as created after the passing of the Bill, which can lead one to hope that the majority will act differently? I find nothing. I shall, no doubt, be reminded of the results of the Referendum with regard to the Guruvayur Temple. But I refuse to accept a referendum so overweighed as it was by the Life of Mahatma Gandhi as the normal result. In any such calculations, the life of the Mahatma must necessarily be deducted. Secondly, the Bill does not regard untouchability in temples as a sinful custom. It regards untouchability merely as a social evil not necessarily worse than social evils of other sorts. For, it does not declare untouchability as such to be illegal. Its binding force is taken away only if a majority decides to do so. Sin and immorality cannot become tolerable because a majority is addicted to them or because the majority chooses to practice them. If untouchability is a sinful and an immoral custom, then in the view of the Depressed Classes it must be destroyed without any hesitation, even if it was acceptable to the majority. This is the way in which all customs are dealt with by Courts of Law, if they find them to be immoral and against public policy. This is exactly what the Bill does not do. The author of the Bill takes no more serious view of the custom of untouchability than does the temperance reformer of the habit of drinking. Indeed, so much is he impressed by the assumed similarity between the two that the method he has adopted is a method which is advocated by temperance reformers to eradicate the evil habit of drinking, namely by local option. One cannot feel much grateful to a friend of the Depressed Classes who holds untouchability to be no worse than drinking. If Mr. Ranga Iyer had not forgotten that only a few months ago Mahatma Gandhi had prepared himself to fast unto death if untouchability was not removed, he would have taken a more serious view of this curse and proposed a most thorough-going reform

to ensure its removal lock, stock and barrel. Whatever its shortcomings may be from the standpoint of efficacy, the least that the Depressed Classes could expect is for the Bill to recognise the principle that untouchability is a sin. I really cannot understand how the Bill satisfies Mahatma Gandhi who has been insisting that untouchability is a sin. It certainly does not satisfy the Depressed Classes. The question whether this particular Bill is good or bad, sufficient or insufficient, is a subsidiary question. The main question is; do the Depressed Classes desire Temple Entry or do they not ? This main question is being viewed by the Depressed Classes by two points of view. One is the materialistic point of view. Starting from it, the Depressed Classes think that the surest way for their elevation lies in higher education, higher employment and better ways of earning a living. Once they become well placed in the scale of social life they would become respectable and once they become respectable the religious outlook of the orthodox towards them is sure to undergo change, and even if this did not happen it can do no injury to their material interest. Proceeding on these lines the Depressed Classes say that they will not spend their resources in such an empty thing as Temple Entry. There is also another reason why they do not care to fight for it. That argument is the argument of 'self respect'. Not very long ago there used to be boards in club doors and other social resorts maintained by Europeans in India, which said "*Dogs and Indians not allowed*". The Temples of the Hindus carry similar boards today, the only difference is that the boards on the Hindu temples practically say "*All Hindus and all animals including dogs are admitted only Untouchables not admitted*". The situation in both cases is on a parity. But the Hindus never begged for admission in those places from which the Europeans in their arrogance had excluded them. Why should an untouchable beg for admission in a place from which he has been excluded by the arrogance of the Hindus ? This is the reasoning of the Depressed Class man who is interested in his material welfare. He is prepared to say to the Hindus, "To open or not to open your temples is a question for you to consider, and not for me to agitate. If you think, it is bad manners not to respect the sacredness of human personality, open your temples and be a gentleman. If you rather be a Hindu than be gentleman, then shut the doors and damn yourself, for I don't care to come."

"I found it necessary to put the argument in this form, because I want to disabuse the minds of men like Pandit Madan Mohan Malaviya of their belief that the Depressed Classes are looking forward expectantly for their patronage. The second point of view is the spiritual one. As religiously minded people, do the Depressed

Classes desire temple entry or do they not? That is the question. From the spiritual point of view, they are not indifferent to temple entry as they would be, if the material point of view alone were to prevail. But their final answer must depend upon the reply which Mahatma Gandhi and the Hindus give to the following question:

What is the drive behind this offer of temple entry? Is temple entry to be the final goal of the advancement in the social status of the Depressed Classes in the Hindu fold ? Or is it only the first step and if it is the first step, what is the ultimate goal? Temple entry as a final goal the Depressed Classes can never support. Indeed they will not only reject it, but they would then regard themselves as rejected by Hindu Society and free to find their own destiny elsewhere. On the other hand, if it is only to be a first step in the direction, they may be inclined to support it. The position would then be analogous to what is happening in the politics of India today. All Indians have claimed Dominion Status for India. The actual constitution will fall short of Dominion Status and many Indians will accept it. Why? The answer is that as the goal is defined, it does not matter much if it is to be reached by steps and not in one jump. But if the British had not accepted the goal of Dominion Status, no one would have accepted the partial reforms which many are now prepared to accept. In the same way if Mahatma Gandhi and the reformers were to proclaim what the goal which they set before themselves is for the advancement of the social status of the Depressed Classes in the Hindu fold, it would be easier for the Depressed Classes to define their attitude towards temple entry. The goal of the Depressed Classes might as well be stated here for the information and consideration of all concerned. What the Depressed Classes want is a religion, which will give them equality of social status. To prevent any misunderstanding, I would like to elaborate the point by drawing a distinction between social evils which are the results of secular causes and social evils which are founded upon the doctrines of religion. Social evils can have no justification whatsoever in a civilised society. But nothing can be more odious and vile than that admitted social evils should be sought to be justified on the ground of religion. The Depressed Classes may not be able to overthrow inequities to which they are being subjected. But they have made up their mind not to tolerate a religion that will lend its support to the continuance of these inequities. If the Hindu religion is to be their religion then it must become a religion of Social Equality. The mere amendment of Hindu religious code by the mere inclusion in it of a provision to permit temple entry for all, cannot make it a religion of

Equality of social status. All that it can do is to recognise them as nationals and not aliens, if I may use these terms which have become so familiar in politics. But that cannot mean that they would thereby reach a position where they would be free and equal without being above or below any one else, for the simple reason that the Hindu religion does not recognise the principle of equality of social status; on the other hand fosters inequality by insisting upon grading people as Brahmins, Kashatriyas, Vaishyas and Shudras which now stand towards one another in an ascending scale of hatred and descending scale of contempt. If the Hindu religion is to be a religion of social equality then an amendment of its code to provide temple entry is not enough. What is required is to purge it of the doctrine of Chaturvarna. That is the root cause of all inequality and also the parent of the caste system and untouchability which are merely forms of inequality. Unless it is done not only will the Depressed Classes reject temple entry, they will also reject the Hindu faith. Chaturvarna and the caste system are incompatible with the self respect of the Depressed Classes. So long it continues to be the cardinal doctrine, the Depressed Classes must continue to be looked upon as low. For the Depressed Classes to say that they are Hindus is to admit their inferiority of status by their own mouth. They can call themselves as Hindus only when the theory of Chaturvarna and caste system is abandoned and expunged from the Shastras. Do the Mahatma and the Hindu reformers accept this as their goal and will they show the courage to work for it ? I shall look forward to their pronouncements on this issue as I have stated it with great concern. But whether Mahatma Gandhi and the Hindus are prepared for this or not, let it be known once for all that nothing short of this will satisfy the Depressed Classes and make them accept temple entry. To accept temple entry and be content with it, is to temporize with evil and barter away the sacredness of human personality that dwells in them.

There is however one argument which Mahatma Gandhi and the reforming Hindus may advance against the position I have taken. They may say, "acceptance by the Depressed Classes of Temple entry now, will not prevent them from agitating hereafter for the abolition of Chaturvarna and caste". If that is their goal, I like to meet this argument right at this stage with a view to clinch the issue and clear the road for future developments. My reply is that it is true that my right to agitate for the abolition of Chaturvarna and caste system will not be lost, if I accept Temple Entry now. But the question is on what side will Mahatma Gandhi be at the time when

the question is put. If he will be in the camp of my opponents I must tell him that I cannot be in his camp now. If he will be in my camp, he ought to be in it now”.

My friend Dewan Bahadur R. Srinivasan expressed himself almost in the same terms on the question of temple entry. He said:

“When a Depressed Classes member is permitted to enter into the Caste Hindu temples he would not be taken into any one of the four castes, but treated as man of fifth or the last or the lowest caste, a stigma worse than the one to be called an untouchable. At the same time he would be subjected to so many caste restrictions and humiliations. The Depressed Classes shun the one who enters like that and exclude him as Casteman. The crores of Depressed Classes would not submit to caste restrictions. They will be divided into sections if they do.

Temple entry cannot be forced by law. The village castemen openly or indirectly defy the law. To the village Depressed Classman it would be like a scrap of paper on which word “sugar” was written and placed in his hands for him to taste.

The above facts are placed before the public in time to save confusion and disturbance in the country.”

But Mr. Gandhi felt otherwise that securing temple entry to the untouchables was a liability of the Hindus which ought to be liquidated first. Accordingly immediately after the Poona Pact he started a campaign among the Hindus for opening the doors of their temples to the Untouchables.

How far has Mr. Gandhi succeeded in this matter is a question that may legitimately be asked. But it is difficult to know the truth. As a result of the fast, many temples were reported to have been thrown open by the Hindus to the Untouchables. How far this was true and how far it is a part of lying propaganda which the Congressman is so good at it is difficult to say. That many of the temples that were opened as a sequel to the fast were purified and closed to the Untouchables is beyond dispute. Again the opening of a temple may be quite a meaningless act. There are hundreds and thousands of temples in which there is no worship. They are occupied by only donkeys. Instances of such temples can be seen at places of pilgrimage such as Nasik and Wai. If such a temple is declared to be open it is not only a meaningless act but it is an insult to the Untouchables. Again a temple may be opened to the Untouchable. But if it is abandoned by the Caste Hindus as a place of worship it cannot be said that it is open in the sense that they are welcomed to it by the Hindus. There is yet another possibility which must be taken into account in arriving at the truth.

A temple may be open to the untouchables in the same sense as the Ritz Hotel in London is open to all. We however know that the Ritz Hotel is not in fact open to all. It is open only to those who can afford. In the same way a temple may be open to the untouchables yet in fact it is open only to those untouchables who can afford to enter. If the cost of temple entry is assault or social boycott then the cost will be prohibitive and the temple though nominally open is really closed. Assault and social boycott are a matter of course with the Hindus and it would not be too much to assume that in some case the Hindus would resort to such means to prohibit the Untouchables who dare to enter a temple which is declared to be open to them. If the case is one like this then it is a fraud.

Which of the two classes of cases are more numerous, it is difficult to say accurately. But a guess may be made on the basis of certain facts. There are two classes of Hindus now in India—the orthodox Hindus who care more for religion than for politics and the Congress Hindus who care more for politics and less for religion. The former who have no political ends to subserve can be honest i.e. true to their convictions however wrong they may be. The latter who have to serve political ends cannot always take an honest view but are prone to adopt dishonest ways. The first method of abandonment though honest brings discredit upon the Hindu community in the eyes of the world and is therefore politically unsuitable. The second method of opening the temple nominally and closing it really by *Hindus* (*This word is inserted by us against the blank space of MS.—Ed.*) is politically highly advantageous. It has the merit of a system which shows to the world that credit is opened and which clandestinely but without the world knowing prevents its being drawn upon by the person in whose favour it is declared to be opened. The Congress Hindus are more numerous than the orthodox Hindus. That being the case I should think that the second classes of cases must be more numerous than the first.

That genuine cases of opening of temples are very few and that most of the published reports of opening of temples is just false propaganda is clear from the fate of the Temple Entry Bill of Mr. Ranga Iyer brought by him in the Central Legislature in 1934. Of that Bill I will speak of at a later occasion.

With this I would have closed this discussion of the subject. But Mr. Gandhi insists that a spiritual awakening has taken place among the Hindus and relies upon the Temple Entry Proclamation of Travancore. I am therefore obliged to deal with this claim.

The success of temple entry cannot be determined by the number of temples opened. It can be determined only by reference to the motive with which it is done. Is the motive spiritual ? That can be the only test.

Now I say that temple entry is not a spiritual act. It is a political manouver.

Is Mr. Gandhi acting from spiritual motive? In appealing to the Hindus Mr. Gandhi said:

“I have adressed this appeal to you, which proceeds out of my soul’s agony. I ask you to share that agony and shame with me and cooperate with me, for I have no other end to serve than to see *Sanatoria Dharma* revived and lived in its reality in the lives of millions who at present seem to me to deny it.”

This soul’s agony was born after the Poona Pact. What did Mr. Gandhi think of the Problem of Temple Entry before the Poona Pact? Before the Poona Pact Mr. Gandhi was of different opinion. That opinion was expressed not very long before the Poona Pact and not long before this appeal was addressed to the Hindus from which I have..... It was expressed in Gandhi Shikshan, Vol. II, p. 132. Mr. Gandhi then held the opinion that separate temples should be built for the use of Untouchables.

Mr. Gandhi said:¹

“How is it possible that the Antyajas (Untouchables) should have the right to enter all the existing temples? As long as the law of caste and ashram has the chief place in Hindu Religion, to say that every Hindu can enter every temple is a thing that is not possible today.”

It is obvious that Temple Entry is not original with him and therefore not spiritual. The agony is caused by the grave and sudden provocation brought about by the demand of the untouchables for separate electorates. Mr. Gandhi was afraid of the principle underlying separate electorates. He felt that this principle may be extended and may ultimately lead to separation and cessation of the Untouchables from the Hindu fold. It was to counter this move that he changed his opinion and started the temple entry move. The motive of Mr. Gandhi is political and there is nothing spiritual about it.

I do not wish this conclusion to rest merely upon this evidence of change of front on the part of Mr. Gandhi. There is abundance of other evidence in support of it.

I will refer first to the Guruvayur Temple Satyagraha which was started by a caste Hindu by name Kellappan to secure entry into the Guruvayur Temple for the Untouchables. A few facts regarding this episode may be interesting.

¹ Quoted from ‘What Congress & Gandhi have done to the Untouchables’, p. 107 (Not in MS).

The point to note is the attitude that Mr. Gandhi finally adopted in this matter when he was challenged by the leaders of the orthodox Hindus. Mr. Gandhi became ready for a compromise with the orthodox. The terms of the compromise were as follows. I give them in Mr. Gandhi's own words as reported in the papers.¹

“During certain hours of the day the Guruvayur Temple should be thrown open to the Harijans and other Hindus, who have no objection to the presence of the Harijans and during certain other hours it should be reserved for those, who have scruples against the entry of the Harijans. There should be no difficulty whatsoever in the acceptance of this suggestion, seeing that in connection with the Krithikai Ekadashi festival in Guruvayur, the Harijans are allowed to enter side by side with the Hindus and then the temple or the idol undergoes purification.”

Asked if his suggestion was that the temple might undergo purification daily after the entry of the Harijans, Mr. Gandhi replied:

“Personally, I am opposed to purification at all. But if that would satisfy the conscience of the objectors I would personally in this case, raise no objection to purification. If purification has any value, then there are so many possibilities of daily defilement from a variety of causes referred to in various texts that there should be a daily purification, whether the Harijans are allowed to enter or not.”

This attitude is not spiritual. It is purely commercial. This is almost admitted by Mr. Gandhi. Asked if the compromise suggested by him did not still maintain a distinction between the Untouchables and the Caste Hindus Mr. Gandhi is reported to have said :

“The Harijans’ attitude should be this, ‘if there is a person who objects to my presence, I would like to respect his objection so long as he (the objector) does not deprive me of the right that belongs to me and so long as I am permitted to have my legitimate share of the days of offering worship side by side with those, who have no objection to my presence, I would be satisfied’.”

I do not know if any self respecting Untouchable would adopt this attitude of Mr. Gandhi. On these terms even dogs and cats are admitted in all temples when there are no human beings present in them. To divide the House of God in time or in space for worship for reconciling the rival claims of two opposing classes is in itself a quaint or grotesque idea. Mr. Gandhi evidently forgot that worshipping in the same temple is quite different from worshipping in common. Temple entry if it is to be spiritual must mean the latter. The former accepts that the presence of one class is repugnant to the other and proceeds to

¹ Times of India, 3rd January 1933.

reconcile the interests of the two. The latter presupposes that there is no repugnance between the two classes and that they accept the common denominator of humanity as being present in both.

This shows that Mr. Gandhi is least motivated by spiritual considerations. He is in a hurry to bring the Untouchables within the Hindu stables so as to prevent their running away.

Another piece of evidence which goes to disprove Mr. Gandhi's claim that he is acting from spiritual consideration is furnished by his conduct with reference to Mr. Ranga Iyer's *'Temple Entry Bill'*. It shows that the soul's agony is only a picturesque phrase and not a fact.

Some history of this Bill is necessary to understand the tragedy which ultimately befell Mr. Ranga Iyer the author of it.

Since the new constitution came into operation two Acts have been passed in two Provinces by the Congress Governments. One in Bombay and another in Madras. There is no substance in the Acts. They do not declare the Temples to be open. They permit the Trustees of the Temples under their management if they desire and as there is nothing to compel the Trustees to do so the Acts are just scraps of paper and nothing more. But the Madras Act has a history which is somewhat puzzling. The Madras Prime Minister who got the Act passed is Mr. Rajagopalachariar. He occupies a very high place in the Congress, so high indeed that he is called Deputy Mahatma. If one can solve the puzzle the solution will reveal the mind of the Author and therefore of Mr. Gandhi who is the living spirit behind all this.

Let me turn to the Travancore Temple Entry. The proclamation of 12th November 1936 issued by the Maharaja opening the Temple open to the Untouchables is a gorgeous document. It reads as follows:

"Profoundly convinced of the truth and validity of our religion, believing that it is based on divine guidance and on all-comprehending toleration, knowing that in its practice it has throughout the centuries adapted itself to the need of the changing times, solicitous that none of our Hindu subjects should, by reason of birth, caste or community, be denied the consolation and solace of the Hindu faith, we have decided and hereby declare, ordain and command that, subject to such rules and conditions as may be laid down and imposed by us for preserving their proper atmosphere and maintaining their rituals and observances, there should henceforth be no restriction placed on any Hindu by birth or religion on entering or worshipping at temples controlled by us and our Government."

What spirituality underlies this proclamation?

The proclamation was issued by the Maharaja of Travancore in his name. But the real active force behind the scene was the Prime Minister Sir C. P. Ramaswami Iyer. It is his motives that we must understand. In 1933 Sir C. P. R. Iyer was also the Prime Minister of Travancore. In 1933 Mr. Gandhi was fighting to get the Guruvayur Temple opened to all Untouchables. Among the many who took part in the controversy over the issue of Temple entry was Sir C. P. Ramaswami Iyer. No body seems now to remember this fact. But it is important to recall it because it helps us to understand the motives which prompted him to press the Maharaja to issue this proclamation. What attitude did Sir C. P. Ramawasmi Iyer have regarding this issue in 1933? It will be clear from the following statement which he issued to the press¹ :

“Personally I do not observe caste rules. I realise there are strong, though not very articulate, feelings in this matter in the minds of men who believe that the present system of temple worship and its details are based on divine ordinances. The problem can be permanently solved only by a process of mutual adjustment and by the awakening of religious and social leaders of Hindu society to the realities of the present situation and to the need for preserving the solidarity of the Hindu community.

“Shock tactics will not answer the purpose and direct action will be even more fatal in this sphere than in the political. I have the misfortune to differ from Mr. Gandhi when he says that the problem of temple entry can be divorced from such topics as interdining and I agree with Dr. Ambedkar that the social and economic uplift of the Depressed Classes should be our immediate and urgent programme.”

This statement shows that in 1933 spiritual considerations did not move Sir C. P. Ramaswami Iyer. Spiritual considerations have become operative after 1933. Is there any particular reason why these spiritual considerations should have been thought of in 1936?

This question can be answered only if one bears in mind the fact that in 1936 there was held in Travancore a Conference of the Yezawa Community to consider the issue of conversion which was raised by me at Yeola in 1935. The Yezawas are an untouchable community spread over Malabar. It is an educated community and economically quite strong. It is also a vocal community and has been carrying on agitation in the state for social, religious and political rights. The Yezawas form a very large community. The cessation of so large a community would

¹ *The statement is reproduced from Dr. Ambedkar's, 'What Congress & Gandhi have done to the Untouchables', p. 318. This was not mentioned in the MS.—Ed.*

be a deathknell to the Hindus and the Conference had made the danger real as well as immediate. It was this which brought about a change in the attitude of Sir C. P. Ramaswami Iyer. The spiritual considerations are just an excuse. They did not form the motives.

How far did this Proclamation change facts and how far it has remained a show? It is not possible to get real facts as they exist in Travancore. In the course of the discussion on the *Malabar Temple Entry Bill* in the Madras Legislative Assembly certain facts relating to Travancore were mentioned by Sir T. Pannirselvam, which if true would show that the whole thing is hollow.

Sir T. Pannirselvam said:

“One of the arguments advanced by the Premier in support of the measure was that temples in Travancore had been thrown open to the “Untouchables”. A Maharaja vested with autocratic powers did so by an order. But how was it working there ? From representations received, he was led to believe that after the first flush of enthusiasm, Harijans had left off going to temples, and people who used to worship previously before Harijans were allowed to enter the temples, had stopped worshipping in temples. He would ask the Government to tell them if the measure was really a success in Travancore.”

On the third reading of the Bill, Sir T. Pannirselvam made a statement which must have come as a surprize to many. He said:

“He wanted to know whether it was a fact that the private temples of the Senior Maharani were excluded from the proclamation. What was the reason for it? Again during the celebration of the marriage of the daughter of the Senior Maharani it was found necessary, so he was told, to perform purificatory ceremony of the temple. If such a purification of temples took place, what happened to the proclamation?”

These facts were not challenged by the Prime Minister. Evidently they cannot be challenged. If they are incontrovertible then the less said about the Malabar Temple Entry proclamation as a spiritual testament the better.

It would not be proper to close this discussion without advertng to the fear which some Untouchables entertain regarding this Temple entry movement. It is just a movement of social reform or is it a strategy ?

The special privileges which the Untouchables have got in the matter of politics, in the matter of education, in the matter of services are founded upon the fact that they are Untouchables. If they cease to be Untouchables their claim to these special privileges could at once be

challenged. If untouchability goes then they would be just poor and backward. But as poor and backward they would not be entitled to any special privileges which they have as untouchables. What is the plan of these protagonists of Temple Entry? Is it just to open temples or aim is ultimately to take away the privileges? This fear is lurking in the minds of many a thinking Untouchables. That the fear is a real fear is clear from what is happening in Travancore itself. A correspondent of mine who represents the All Travancore Pulayar Cheramar Aykia Maha Sangham writes to me as follows in a letter, dated 24th November 1938. I give below the full text of the letter sent by him to me.

To
Dr. Ambedkar,
Bombay.

Camp Mayyanad, 24-11-1938
Quilon.

Respected Sir,

I have unaffected pleasure to draw your attention to the following facts for obtaining the valuable advice from you. Being the leader of a Harijan Community of the Travancore State, I think, it is my paramount duty to suggest you definitely all the grievances that the Harijans of this state are enduring.

1. The Temple Entry Proclamation issued by the H. H. The Maharaja is indeed a boon to Harijans; but the Harijans are enjoying all the other social disabilities except the temple entry. The proclamation is a check to the further concessions to us. The Government do not take any step for the amelioration of the Harijans.
2. Among 15 lakhs of Harijans, there are a few graduates, half a dozen undergraduates and 50 school finals and more than two hundred vernacular certificate holders. Though the Government have appointed a Public Service Commission, appointments of the Harijans are very few. All the appointments are given to Savarnas. If a Harijan is appointed it will be for one week or two weeks. According to the rules of the recruitment in Public Service the applicant is allowed to apply only after a year again, while a Savarna will be appointed for a year or more. When the list of the appointments is brought before the assembly, the number of appointments will be equal to the communal representation; but the duration of the post of all the Harijans will be equal to one Savarna. This kind of fraud is associating with the officials. Thus the public service is a common property of the Savarnas. No Harijan is benefitted by it.

3. There was a proclamation from H. H. the Maharaja, a few years ago that three acres of ground should be given to each Harijan to live in; but the Officials are Savarnas who are always unwilling to carry out the proclamation. Even though the Government is willing to grant large extent of ground for pasturing near Towns not a piece of the ground is given to the Harijans. The Harijans are still living in the compounds of the Savarnas and are undergoing manifold difficulties. Though large extents of ground lay in "Reserve", the applications of the Harijans for granting grounds are not at all regarded with importance or listen to. The most parts of the lands are benefited by the Savarnas.
4. The Government nominates every year of the election of members of the Assembly one member from each Harijan Community. Though they are elected to present the grievances of the Harijans before the Assembly, they are found to be the machinery of the Government viz., the toys of the Savarna officers, who are benefited by them. Thus the grievances of the Harijans cannot be redressed any way.
5. All the Harijans of Travancore are labourers in the fields and compounds. They are the servants of the Savarnas who behave them as beasts—no body to look after or protection—every Harijan gets only 2 chs (one anna) as the wage in the most parts of the State. The social disabilities are the same to them even after the temple entry. The workers in the factories in various parts of the State of Travancore and the Officers of the State are all Savarnas and they are at present agitating for responsible Government. Now the Harijans are demanding jobs in Government and in factories but the agitation in Travancore is a Savarna agitation by which the Savarnas are making arrangements to get rid of Harijans in Public Service and factories. They plead for higher salaries and more privileges. They pay the least care to the Harijan labourers while the people of Travancore are maddened with the agitation of the workers in the factories. The standard of salary of Harijan worker is very low while the standard of a factory worker is thrice the former.
6. Due to starvation and proper means of livelihood the heads of the children of Harijans are heated as a result of which they are likely to fail in school. Before proclamation the duration of concession in high schools was for 6 years, now, it has reduced to three years by which a good number of students stopped their education after their failure.
7. There is a department for the Depressed Classes and the head of which is Mr. C. O. Damodaran (the protector of the Backward Communities). Though every year a big amount is granted

for the expenditure, at the end of the year, 2/3 of the sum is lapsed by its sagacity. He is used to submit reports to the Government that there is no way of spending the amount. 95 per cent of the sum allotted for the Depressed Class is spent as the salary of the officials who are always Savarna and 5 per cent is benefited. Now the Government is going to make some colonies in three parts of Travancore. The officers are Savarnas. This scheme is, in my opinion, not a success for the Government do not pay greater to it. I regret that Travancore Government spends one anna for the Harijan cause, while Cochin State spends a rupee for the same.

The majority of the subjects of Travancore are now agitating strongly for Responsible Government under an organization "The State Congress". The leaders of this popular organization belong to the four major communities of the State namely, the Nair, Mohamedan, Christian and Ezhava community. The President of the State Congress Mr. Thanu Pillai issued a statement in which he stressed that special concessions would be given to the Depressed Class. All the leaders of the Depressed Class have been waiting for a time to see the attitude of the State Congress. Now we come to understand that there is no reality in the promises of these leaders.

Now I am sure that the leaders have neglected the cause of the Depressed Class. The State Congress was started on the principles of nationalism and now it has become an institution of communalism. Communal spirit is now working among the leaders. In every public speech, statement or article, the leaders mention only these four major communities, while they have no thought on us. I fear, if this is the case of the leaders of the political agitation of Travancore, the situation of the Depressed Class will be more deplorable when the Responsible Government is achieved, for the entire possession of the Government will be then within the clutches of the abovementioned communities and the Depressed Classes' rights and privileges will be devoured by the former. In the meetings of the working committee of the State Congress 2/3 of the time had devoted in discussion concerning the strike of the Alleppey Coir Factories; but nothing was mentioned in the meeting about the Harijan workers who are undergoing manifold difficulties. The workers in Factories are Savarnas and the agitation for obtaining Responsible Government is a kind of anti Harijan movement. The motive of every leader of the State Congress is to improve the situation (circumstance) of the Savarna. The leaders of the major communities have some mercenary attitude who are going to sacrifice the Depressed Class for their progress.

These are the conditions of the Depressed Class of the State. What are the ways by which we have to establish our rights in the State ? I humbly request you to be good enough to render me your advice at this occasion. I am awaiting for the reply.

Excuse me for the trouble,

Yours faithfully,
Srinarayanswami.”

If the plan of Temple Entry is ultimately to deprive the Untouchables of their statutory rights then the movement is not only not spiritual but it is positively mischievous and it would be the duty of all honest people to warn the Untouchables, '*Beware of Gandhi*'.

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CHAPTER 26

A WARNING TO THE UNTOUCHABLES

Revolt and rebellion against the Established order is a natural part of the history of the poor in all countries of the world. A student of their history cannot but be struck by the thought entertained by them, of the way victory would come. In the theological age, the poor lived by the hope that spiritual forces would ultimately make the meek inherit the earth. In the secular age, otherwise called modern times, the poor live by the hope that the forces of historical materialism will automatically rob the strong of their strength and make the weak take their place.

In the light of this psychology, when one begins to think of the Untouchables in their role of rebels against the Hindu Social Order one feels like congratulating them on their realization that neither spiritual forces nor historical forces are going to bring the millenium. They know full well that if the Hindu Social Order is to fall to the ground, it can happen only under two conditions. Firstly, the social order must be subjected to constant fire. Secondly, they can't subject it to constant fire unless they are independent of the Hindus in thought and in action. That is why the Untouchables are insistent upon separate electorates and separate settlements.

The Hindus on the other hand are telling the Untouchables to depend upon the Hindus for their emancipation. The Untouchables are told that the general spread of education will make the Hindus act in a rational manner. The Untouchables are told that the constant preaching of reformers against Untouchability is bound to bring about a moral transformation of the Hindus and the quickening of his conscience. The Untouchables should therefore rely on the good will and sense of duty of the Hindus. No Untouchable believes in this facile proposition. If there are any who do, they are hypocrites who are prepared to agree to whatever the Hindus have to say in order that by their grace they may be put in places reserved for the Untouchables. They are a predatory band of Untouchables who are out to feather their nests by any means open to them.

The Untouchables are not deceived by such false propaganda and false hopes. It is therefore unnecessary to comment on it. At the same time, the propaganda is so alluring that it may mislead the unwary Untouchables into being ensnared by it. A warning to the Untouchables is therefore necessary.

Two agencies are generally relied upon by the social idealists for producing social justice. One is reason, the other is religion.

The rationalists who uphold the mission of reason believe that injustice could be eliminated by the increasing power of intelligence. In the mediaeval age social injustice and superstition were intimately related to each other. It was natural for the rationalists to believe that the elimination of superstition must result in the abolition of injustice. This belief was encouraged by the results. Today it has become the creed of the educationists, philosophers, psychologists and social scientists who believe that universal education and the development of printing and press would result in an ideal society, in which every individual would be so enlightened that there would be no place for social injustice.

History, whether Indian or European, gives no unqualified support to this dogma. In Europe, the old traditions and superstitions which seemed to the eighteenth century to be the very root of injustice, have been eliminated. Yet social injustice has been rampant and has been growing ever and anon. In India itself, the whole Brahmin community is educated, man, woman and child. How many Brahmins are free from their belief in untouchability? How many have come forward to undertake a crusade against untouchability? How many are prepared to stand by the side of the Untouchables in their fight against injustice? In short, how many are prepared to make the cause of the Untouchables their own cause? The number will be appallingly small.

Why does reason fail to bring about social justice? The answer is that reason works so long as it does not come into conflict with one's vested interest. Where it comes into conflict with vested interests, it fails. Many Hindus have a vested interest in untouchability. That, vested interest may take the shape of feeling of social superiority or it may take the shape of economic exploitation such as forced labour or cheap labour, the fact remains that Hindus have a vested interest in untouchability. It is only natural that that vested interest should not yield to the dictates of reason. The Untouchables should therefore know that there are limits to what reason can do.

The religious moralists who believe in the efficacy of religion urge that the moral insight which religion plants in man whereby it makes him conscious of the sinfulness of his preoccupation with self and

thereby of the duty to do justice to his fellows. Nobody can deny that this is the function of religion and to some extent religion may succeed in this mission. But here again there are limits to what religion can do. Religion can help to produce justice *within a community*. Religion cannot produce justice *between* communities. At any rate, religion has failed to produce justice between Negroes and Whites, in the United States. It has failed to produce justice between Germans and French and between them and the other nations. The call of nation and the call of community has proved more powerful than the call of religion for justice.

The Untouchables should bear in mind two things. Firstly, that it is futile to expect the Hindu religion to perform the mission of bringing about social justice. Such a task may be performed by Islam, Christianity, or Buddhism. The Hindu religion is itself the embodiment of inequity and injustice to the Untouchables. For it, to preach the gospel of justice is to go against its own being. To hope for this is to hope for a miracle. Secondly, assuming that this was a task which Hinduism was fitted to perform, it would be impossible for it to perform. The social barrier between them and the Hindus is much greater than the barrier between the Hindus and their men. Religion, however efficacious it may be within a community or a nation, is quite powerless to break these barriers and (make)* them one whole.

Apart from these agencies of reason and religion the Untouchables are asked to trust the enlightened self-interests of the Hindu privileged classes and the fraternity of the Hindu proletariat.

As to the privileged classes it be wrong to depend upon for anything more than their agreeing to be benevolent despots. They have their own class interests and they cannot be expected to sacrifice them for general interests or universal values. On the other hand, their constant endeavour is to identify their class interests with general interests and to assume that their privileges are the just payments with which society rewards specially useful and meritorious functions. They are a poor company to the Untouchables as the Untouchables have found in their conflict with the Hindus.

For Untouchables to expect to gain help from the Hindu proletariat is also a vain hope. The appeal of the Indian Communists to the Untouchables for solidarity with the Hindu proletariat is no doubt based on the assumption that the proletariat does not desire advantages for himself which he is not willing to share with others. Is this true ? Even in Europe the proletariat are not a uniform class. It is marked by class composition, the higher and the lower. This is reflected in their attitudes towards social change, the higher are

reformist and the lower are revolutionary. The assumption therefore is not true. So far as India is concerned it is positively false. There is very little for a common front. Socially, there is bound to be antagonism between them. Economically, there cannot be much room for alliance.

What must the Untouchables strive for ? Two things they must strive for is education and spread of knowledge. The power of the privileged classes rests upon lies which are sedulously propagated among the masses. No resistance to power is possible while the sanctioning lies, which justify that power are accepted as valid. While the lie which is the first and the chief line of defence remains unbroken there can be no revolt. Before any injustice, any abuse or oppression can be resisted, the lie upon which it is founded must be unmasked, must be clearly recognized for what it is. This can happen only with education.

The second thing they must strive for is power. It must not be forgotten that there is a real conflict of interests between the Hindus and the Untouchables and that while reason may mitigate the conflict it can never obviate the necessity of such a conflict. What makes one interest dominant over another is power. That being so, power is needed to destroy power. There may be the problem of how to make the use of power ethical, but there can be no question that without power on one side it is not possible to destroy power on the other side. Power is either economic or political. Military power is no power today. Because it is not free power. The economic power of the working class is the power inherent in the strike. The Untouchables as a part of the working class can have no other economic power. As it is, this power is not adequate for the defence of the interests of the working class. It is maimed by legislation and made subject to injunctions, arbitrations, martial law and use of troops. Much more inadequate is the Untouchables' power to strike.

The Untouchable is therefore under an absolute necessity of acquiring political power as much as possible. Having regard to his increasingly inadequate power in social and economic terms the Untouchable can never acquire too much political power. Whatever degree of political power he acquires, it will always be too little having regard to the vast amount of social, economic and political power of the Hindus.

The Untouchable must remember that his political power, no matter how large, will be of no use if he depends for representation in the Legislature on Hindus whose political life is rested in economic and social interests which are directly opposed to those of the Untouchables.

BOOK IV

Religious

One of the schemes of Dr. Ambedkar is “The Conversion of the Untouchables”. This scheme includes the following chapters:

- (1) Hinduism as a Missionary Religion.*
- (2) Christianizing the Untouchables.*
- (3) The Condition of the Convert.*
- (4) The Eternal Verity.*
- (5) The Untouchables and Their Destiny.*

From these essays, Sr. Nos. 2 and 3 have been received from Shri S. S. Rege and Sr. No. 1 has been found in our papers under the title ‘Caste and Conversion’, which was originally published in the Telagu Samachar Special No. of November 1926. One more typed essay entitled “way from the Hindus”, which also deals with religious conversion of the Untouchables, has been found and included in this Book. Rest of the titles mentioned in the above scheme have not been found.—Ed.

CHAPTER 27

AWAY FROM THE HINDUS

A large majority of Untouchables who have reached a capacity to think out their problem believe that one way to solve the problem of the Untouchables is for them to abandon Hinduism and be converted to some other religion. At a Conference of the Mahars held in Bombay on 31st May 1936 a resolution to this effect was unanimously passed. Although the Conference was a Conference of the Mahars¹, the resolution had the support of a very large body of Untouchables throughout India. No resolution had created such a stir. The Hindu community was shaken to its foundation and curses imprecations and threats were uttered against the Untouchables who were behind this move.

Four principal objections have been urged by the opponents against the conversion of the Untouchables:

- (1) What can the Untouchables gain by conversion ? Conversion can make no change in the status of the Untouchables.
- (2) All religions are true, all religions are good. To change religion is a futility.
- (3) The conversion of the Untouchables is political in its nature.
- (4) The conversion of the Untouchables is not genuine as it is not based on faith.

It cannot take much argument to demonstrate that the objections are puerile and inconsequential.

To take the last objection first. History abounds with cases where conversion has taken place without any religious motive. What was the

¹ The Conference was confined to Mahars because the intention was to test the intensity of feeling communitywise and to take soundings from each community.

The typed pages with Sr. Nos. from 279 to 342 have been found in this script which is titled as Chapter XX under the heading 'Away from the Hindus'. The whole script consists of 64 pages.—Ed.

nature of its conversion of Clovis and his subjects to Christianity ? How did Ethelbert and his Kentish subjects become Christians ? Was there a religious motive which led them to accept the new religion ? Speaking on the nature of conversions to Christianity that had taken place during the middle ages Rev. Reichel says:¹

“One after another the nations of Europe are converted to the faith; their conversion is seen always to proceed from above, never from below. Clovis yields to the bishop Remigius and forthwith he is followed by the Baptism of 3,000 Franks. Ethelbert yields to the mission of Augustine and forthwith all Kent follows his example; when his son Eadbald apostatises, the men of Kent apostatise with him. Essex is finally won by the conversion of King Sigebert, who under the influence of another king, Oswy, allows himself to be baptised. Northumberland is temporarily gained by the conversion of its king, Edwin, but falls away as soon as Edwin is dead. It anew accepts the faith, when another king, Oswald, promotes its diffusion. In the conversion of Germany, a bishop, Boniface, plays a prominent part, in close connection with the princes of the country, Charles Martel and Pepin; the latter, in return for his patronage receiving at Soissons the Church’s sanction to a violent act of usurpation. Denmark is gained by the conversion of its kings, Herald Krag, Herald Blastand and Canute, Sweden by that of the two Olofs; and Russian, by the conversion of its sovereign, Vladimir. Everywhere Christianity addresses itself first to kings and princes; everywhere the bishops and abbots appear as its only representatives.

Nor was this all, for where a king had once been gained, no obstacle by the Mediaeval missionaries to the immediate indiscriminate baptism of his subjects. Three thousand warriors of Clovis following the example of their king, were at once admitted to the sacred rite; the subjects of Ethelbert were baptised in numbers after the conversion of their prince, without preparation, and with hardly any instruction. The Germans only were less hasty in following the example of others. In Russia, so great was the number of those who crowded to be baptised after the baptism of Vladimir, that the sacrament had to be administered to hundreds at a time.”

History records cases where conversion has taken place as a result of compulsion or deceit.

Today religion has become a piece of ancestral property. It passes from father to son so does inheritance. What genuineness is there in such cases of conversion ? The conversion of the Untouchables if it did take place would take after full deliberation of the value of religion

¹ The Sea of Rome, pp. 143-45.

and the virtue of the different religions. How can such a conversion be said to be not a genuine conversion? On the other hand, it would be the first case in history of genuine conversion. It is therefore difficult to understand why the genuineness of the conversion of the Untouchables should be doubted by anybody.

The third objection is an ill-considered objection. What political gain will accrue to the Untouchables from their conversion has been defined by nobody. If there is a political gain, nobody has proved that it is a direct inducement to conversion.

The opponents of conversion do not even seem to know that a distinction has to be made between a gain being a direct inducement to conversion and its being only an incidental advantage. This distinction cannot be said to be a distinction without a difference. Conversion may result in a political gain to the Untouchables. It is only where a gain is a direct inducement that conversion could be condemned as immoral or criminal. Unless therefore the opponents of conversion prove that the conversion desired by the Untouchables is for political gain and for nothing else their accusation is baseless. If political gain is only an incidental gain then there is nothing criminal in conversion. The fact, however, is that conversion can bring no new political gain to the Untouchables. Under the constitutional law of India every religious community has got the right to separate political safeguards. The Untouchables in their present condition enjoy political rights similar to those which are enjoyed by the Muslims and the Christians. If they change their faith the change is not to bring into existence political rights which did not exist before. If they do not change they will retain the political rights which they have. Political gain has no connection with conversion. The charge is a wild charge made without understanding.

The second objection rests on the premise that all religions teach the same thing. It is from the premise that a conclusion is drawn that since all religions teach the same thing there is no reason to prefer one religion to other. It may be conceded that all religions agree in holding that the meaning of life is to be found in the pursuit of 'good'. Up to this point the validity of the premise may be conceded. But when the premise goes beyond and asserts that because of this there is no reason to prefer one religion to another it becomes a false premise.

Religions may be alike in that they all teach that the meaning of life is to be found in the pursuit of 'good'. But religions are not alike in their answers to the question 'What is good?' In this they certainly differ. One religion holds that brotherhood is good, another caste and untouchability is good.

There is another respect in which all religions are not alike. Besides being an authority which defines what is good, religion is a motive force for the promotion and spread of the 'good'. Are all religions agreed in the means and methods they advocate for the promotion and spread of good? As pointed out by Prof. Tiele¹, religion is:

“One of the mightiest motors in the history of mankind, which formed as well as tore asunder nations, united as well as divided empires, which sanctioned the most atrocious and barbarous deeds, the most libinous customs, inspired the most admirable acts of heroism, self renunciation, and devotion, which occasioned the most sanguinary wars, rebellions and persecutions, as well as brought about the freedom, happiness and peace of nations—at one time a partisan of tyranny, at another breaking its chains, now calling into existence and fostering a new and brilliant civilization, then the deadly foe to progress, science and art.”

Apart from these oscillations there are permanent differences in the methods of promoting good as they conceive it. Are there not religions which advocate violence? Are there not religions which advocate nonviolence? Given these facts how can it be said that all religions are the same and there is no reason to prefer one to the other.

In raising the second objection the Hindu is merely trying to avoid an examination of Hinduism on its merits. It is an extraordinary thing that in the controversy over conversion not a single Hindu has had the courage to challenge the Untouchables to say what is wrong with Hinduism. The Hindu is merely taking shelter under the attitude generated by the science of comparative religion. The science of comparative religion has broken down the arrogant claims of all revealed religions that they alone are true and all others which are not the results of revelation are false. That revelation was too arbitrary, too capricious test to be accepted for distinguishing a true religion from a false was undoubtedly a great service which the science of comparative religion has rendered to the cause of religion. But it must be said to the discredit of that science that it has created the general impression that all religions are good and there is no use and purpose in discriminating them.

The first objection is the only objection which is worthy of serious consideration. The objection proceeds on the assumption that religion is a purely personal matter between man and God. It is supernatural. It has nothing to do with social. The argument is no doubt sensible. But its foundations are quite false. At any rate, it is a one-sided view of religion and that too based on aspects of religion which are purely historical and not fundamental.

¹ Quoted by Crowley, 'Tree of life', p. 5.

To understand the function and purposes of religion it is necessary to separate religion from theology. The primary things in religion are the usages, practices and observances, rites and rituals. Theology is secondary. Its object is merely to nationalize them. As stated by Prof. Robertson Smith:¹

“Ritual and practical usages were, strictly speaking the sum total of ancient religions. Religion in primitive times was not a system of belief with practical applications; it was a body of fixed traditional practices, to which every member of society conformed as a matter of courage, Men would not be men if they agreed to do certain things without having a reason for their action; but in ancient religion the reason was not first formulated as a doctrine and then expressed in practice, but conversely, practice preceded doctrinal theory.”

Equally necessary it is not to think of religion as though it was super-natural. To overlook the fact that the primary content of religion is social is to make nonsense of religion. The Savage society was concerned with life and the preservation of life and it is these life processes which constitute the substance and source of the religion of the Savage society. So great was the concern of the Savage society for life and the preservation of life that it made them the basis of its religion. So central were the life processes in the religion of the Savage society that every thing which affected them became part of its religion. The ceremonies of the Savage society were not only concerned with the events of birth, attaining of manhood, puberty, marriage, sickness, death and war but they were also concerned with food. Among the pastoral peoples the flocks and herds are sacred. Among agricultural peoples seedtime and harvest are marked by ceremonies performed with some reference to the growth and the preservation of the crops. Likewise drought, pestilence, and other strange irregular phenomena of nature occasion the performance of ceremonials. As pointed out by Prof. Crawley, the religion of the savage begins and ends with the affirmation and consecration of life.

In life and preservation of life therefore consists the religion of the savage. What is true of the religion of the savage is true of all religions wherever they are found for the simple reason that constitutes the essence of religion. It is true that in the present day society with its theological refinements this essence of religion has become hidden from view and is even forgotten. But that life and the preservation of life constitute the essence of religion even in the present day society is beyond question. This is well illustrated by Prof. Crawley, when

¹ The Religion of the Semites, p.

speaking of the religious life of man in the present day society he says how:

“man’s religion does not enter into his professional or social hours, his scientific or artistic moments; practically its chief claims are settled on one day in the week from which ordinary worldly concerns are excluded. In fact, his life is in two parts; but the moiety with which religion is concerned is the elemental. Serious thinking on ultimate questions of life and death is, roughly speaking, the essence of his Sabbath; add to this the habit of prayer, the giving of thanks at meals, and the subconscious feeling that birth and death, continuation and marriage are rightly solemnized by religion, while business and pleasure may possibly be consecrated, but only metaphorically or by an overflow of religious feeling.”

Students of the origin and history of religion when they began their study of the Savage society became so much absorbed in the magic, the tabu and totem and the rites and ceremonies connected therewith they found in the Savage society that they not only overlooked the social processes of the savage as the primary content of religion but they failed even to appreciate the proper function of magic and other supernatural processes. This was a great mistake and has cost all concerned in religion very dearly. For it is responsible for the grave misconception about religion* which prevails today among most people. Nothing can be a greater error than to explain religion as having arisen in magic or being concerned only in magic for magic sake. It is true that Savage society practises magic, believes in tabu and worships the totem. But it is wrong to suppose that these constitute the religion or form the source of religion. To take such a view is to elevate what is incidental to the position of the principal. The principal thing in the religion of the savage are the elemental facts of human existence such as life, death, birth, marriage, etc., magic, tabu and totem are not the ends. They are only the means. The end is life and the preservation of life. Magic, tabu, etc. are resorted to by the Savage society not for their own sake but to conserve life and to exercise evil influence from doing harm to life. Why should such occasions as harvest and famine be accompanied by religious ceremonies? Why are magic, tabu and totem of such importance to the savage? The only answer is that they all affect the preservation of life. The process of life and its preservation form the main purpose. Life and preservation of life is the core and centre of the religion of the Savage society. That today God has taken the place of magic, does not alter the fact that God’s place in religion is only as a means for the

* The word ‘religion’ inserted here is not in the original MS.—Ed.

conservation of life and that the end of religion is the conservation and consecration of social life.

The point to which it is necessary to draw particular attention and to which the foregoing discussion lends full support is that it is an error to look upon religion as a matter which is individual, private and personal. Indeed as will be seen from what follows, religion becomes a source of positive mischief if not danger when it remains individual, private and personal. Equally mistaken is the view that religion is the flowering of special religious instinct inherent in the nature of the individual. The correct view is that religion like language is social for the reason that either is essential for social life and the individual has to have it because without it he cannot participate in the life of the society.

If religion is social in the sense that it primarily concerns society, it would be natural to ask what is the purpose and function of religion. The best statement regarding the purpose of religion which I have come across is that of Prof. Charles A Ellwood¹. According to him:

“religion projects the essential values of human personality and of human society into the universe as a whole. It inevitably arises as soon as man tries to take valuing attitude toward his universe, no matter how small and mean that universe may appear to him. Like all the distinctive things in human, social and mental life, it of course, rests upon the higher intellectual powers of man. Man is the only religious animal, because through his powers of abstract thought and reasoning, he alone is self-conscious in the full sense of that term. Hence he alone is able to project his values into the universe and finds necessity of so doing. Given, in other words, the intellectual powers of man, the mind at once seeks to universalise its values as well as its ideas. Just as rationalizing processes give man a world of universal ideas, so religious processes give man a world of universal values. The religious processes are, indeed, nothing but the rationalizing processes at work upon man’s impulses and emotions rather than upon his precepts. What the reason does for ideas, religion does, then, for the feelings. It universalizes them; and in universalizing them, it brings them into harmony with the whole of reality.”

Religion emphasizes, universalizes social values and brings them to the mind of the individual who is required to recognize them in all his acts in order that he may function as an approved member of the society. But the purpose of religion is more than this. It spiritualizes them. As pointed out by Prof. Ellwood:²

¹ “The Religious Reconstruction”, pp. 39-40.

² *Ibid.*, pp. 45-46.

“Now these mental and social values, with which religion deals, men call ‘spiritual’. It is something which emphasizes as we may say, spiritual values, that is, the values connected especially with the personal and social life. It projects these values, as we have seen, into the universal reality. It gives man a social and moral conception of the universe, rather than a merely mechanical one as a theatre of the play of blind, purposeless forces. While religion is not primarily animistic philosophy, as has often been said, nevertheless it does project mind, spirit, life, into all things. Even the most primitive religion did this; for in ‘primitive dynamism’ there was a feeling of the psychic, in such concepts as *mana* or *manitou*. They were closely connected with persons and proceeded from person, or things which were viewed in an essentially personal way. Religion, therefore, is a belief in the reality of spiritual values, and projects them, as we have said, into the whole universe. All religion—even so-called atheistic religions—emphasizes the spiritual, believes in its dominance, and looks to its ultimate triumph.”

The function of religion in society is equally clear. According to Prof. Ellwood¹ the function of religion:

“is to act as an agency of social control, that is, of the group controlling the life of the individual, for what is believed to be the good of the larger life of the group. Very early, as we have seen, any beliefs and practices which gave expression to personal feelings or values of which the group did not approve were branded as ‘black magic’ or baleful superstitions; and if this had not been done it is evident that the unity of the life of the group might have become seriously impaired. Thus the almost necessarily social character of religion stands revealed. We cannot have such a thing as purely personal or individual religion which is not at the same time social. For we live a social life and the welfare of the group is, after all, the chief matter of concern.”

Dealing with the same question in another place, he says²:

“the function of religion is the same as the function of Law and Government. It is a means by which society exercises its control over the conduct of the individual in order to maintain the social order. It may not be used consciously as a method of social control over the individual. Nonetheless the fact is that religion acts as a means of social control. As compared to religion, Government and Law are relatively inadequate means of social control. The control through law and order does not go deep enough to secure the

¹ “The Religious Reconstruction”, pp. 42-43.

² “Society in its Psychological aspects” (1913), pp. 356-57.

stability of the social order. The religious sanction, on account of its being supernatural has been on the other hand the most effective means of social control, far more effective than law and Government have been or can be. Without the support of religion, law and Government are bound to remain a very inadequate means of social control. Religion is the most powerful force of social gravitation without which it would be impossible to hold the social order in its orbit."

The foregoing discussion, although it was undertaken to show that religion is a social fact, that religion has a specific social purpose and a definite social function it was intended to prove that it was only proper that a person if he was required to accept a religion should have the right to ask how well it has served the purposes which belong to religion. This is the reason why Lord Balfour was justified in putting some very straight-questions to the positivists before he could accept Positivism to be superior to Christianity. He asked in quite trenchant language.

"what has (positivism) to say to the more obscure multitude who are absorbed, and well nigh overwhelmed, in the constant struggle with daily needs and narrow cares; who have but little leisure or inclination to consider the precise role they are called on to play in the great drama of 'humanity' and who might in any case be puzzled to discover its interest or its importance? Can it assure them that there is no human being so insignificant as not to be of infinite worth in the eyes of Him who created the Heavens, or so feeble but that his action may have consequences of infinite moment long after this material system shall have crumbled into nothingness? Does it offer consolation to those who are bereaved, strength to the weak, forgiveness to the sinful, rest to those who are weary and heavy laden?"

The Untouchables can very well ask the protagonists of Hinduism the very questions which Lord Balfour asked the Positivists. Nay the Untouchables can ask many more. They can ask: Does Hinduism recognize their worth as human beings? Does it stand for their equality? Does it extend to them the benefit of liberty? Does it at least help to forge the bond of fraternity between them and the Hindus? Does it teach the Hindus that the Untouchables are their kindred? Does it say to the Hindus it is a sin to treat the Untouchables as being neither man nor beast? Does it tell the Hindus to be righteous to the Untouchables? Does it preach to the Hindus to be just and humane to them? Does it inculcate upon the Hindus the virtue of being friendly to them? Does it tell the Hindus to love them, to respect them and to do

them no wrong. In fine, does Hinduism universalize the value of life without distinction ?

No Hindu can dare to give an affirmative answer to any of these questions ? On the contrary the wrongs to which the Untouchables are subjected by the Hindus are acts which are sanctioned by the Hindu religion. They are done in the name of Hinduism and are justified in the name of Hinduism. The spirit and tradition which makes lawful the lawlessness of the Hindus towards the Untouchables is founded and supported by the teachings of Hinduism. How can the Hindus ask the Untouchables accept Hinduism and stay in Hinduism ? Why should the Untouchables adhere to Hinduism which is solely responsible for their degradation ? How can the Untouchables stay in Hinduism ? Untouchability is the lowest depth to which the degradation of a human being can be carried. To be poor is bad but not so bad as to be an Untouchable. The poor can be proud. The Untouchable cannot be. To be reckoned low is bad but it is not so bad as to be an Untouchable. The low can rise above his status. An Untouchable cannot. To be suffering is bad but not so bad as to be an Untouchable. They shall some day be comforted. An Untouchable cannot hope for this. To have to be meek is bad but it is not so bad as to be an Untouchable. The meek if they do not inherit the earth may at least be strong. The Untouchables cannot hope for that.

In Hinduism there is no hope for the Untouchables. But this is not the only reason why the Untouchables wish to quit Hinduism. There is another reason which makes it imperative for them to quit Hinduism. Untouchability is a part of Hinduism. Even those who for the sake of posing as enlightened reformers deny that untouchability is part of Hinduism are to observe untouchability. For a Hindu to believe in Hinduism does not matter. It enhances his sense of superiority by the reason of this consciousness that there are millions of Untouchables below him. But what does it mean for an Untouchable to say that he believes in Hinduism ? It means that he accepts that he is an Untouchable and that he is an Untouchable is the result of Divine dispensation. For Hinduism is divine dispensation. An Untouchable may not cut the throat of a Hindu. But he cannot be expected to give an admission that he is an Untouchable and rightly so. Which Untouchable is there with soul so dead as to give such an admission by adhering to Hinduism. That Hinduism is inconsistent with the self-respect and honour of the Untouchables is the strongest ground which justifies the conversion of the Untouchables to another and nobler faith.

The opponents of conversion are determined not to be satisfied even if the logic of conversion was irrefutable. They will insist upon asking further questions. There is one question which they are always eager to ask largely because they think it is formidable and unanswerable; what will the Untouchables gain materially by changing their faith? The question is not at all formidable. It is simple to answer. It is not the intention of the Untouchables to make conversion an opportunity for economic gain. The Untouchables it is true will not gain wealth by conversion. This is however no loss because while they remain as Hindus they are doomed to be poor. Politically the Untouchables will lose the political rights that are given to the Untouchables. This is, however, no real loss. Because they will be entitled to the benefit of the political rights reserved for the community which they would join through conversion. Politically there is neither gain nor loss. Socially, the Untouchables will gain absolutely and immensely because by conversion the Untouchables will be members of a community whose religion has universalized and equalized all values of life. Such a blessing is unthinkable for them while they are in the Hindu fold. The answer is complete. But by reason of its brevity it is not likely to give satisfaction to the opponents of conversion. The Untouchables need three things. First thing they need is to end their social isolation. The second thing they need is to end their inferiority complex. Will conversion meet their needs? The opponents of conversion have a feeling that the supporters of conversion have no case. That is why they keep on raising questions. The case in favour of conversion is stronger than the strongest case. Only one does wish to spend long arguments to prove what is so obvious. But since it is necessary to put an end to all doubt, I am prepared to pursue the matter. Let me take each point separately.

How can they end their social isolation? The one and the only way to end their social isolation is for the Untouchables to establish kinship with and get themselves incorporated into another community which is free from the spirit of caste. The answer is quite simple and yet not many will readily accept its validity. The reason is, very few people realize the value and significance of kinship. Nevertheless its value and significance are very great. Kinship and what it implies has been described by Prof. Robertson Smith in the following terms¹:

“A kin was a group of persons whose lives were so bound up together, in what must be called a physical unity, that they could be treated as parts of one common life. The members of one kindred looked on themselves as one living whole, a single animated mass of

¹ “Religion of the Semites”, p. 273.

blood, flesh and bones, of which no member could be touched without all the members suffering.”

The matter can be looked at from the point of view both of the individual as well as from that of the group. From the point of the group, kinship calls for a feeling that one is first and foremost a member of the group and not merely an individual. From the point of view of the individual, the advantages of his kinship with the group are no less and no different than those which accrue to a member of the family by reason of his membership of the family. Family life is characterized by parental tenderness. As pointed out by Prof. McDougall¹:

“From this emotion (parental tenderness) and its impulse to cherish and protect, spring generosity, gratitude, love, pity, true benevolence, and altruistic conduct of every kind; in it they have their main and absolutely essential root, without which they would not be.”

Community as distinguished from society is only an enlarged family. As such it is characterised by all the virtues which are found in a family and which have been so well described by Prof. McDougall. Inside the community there is no discrimination among those who are recognized as kindred bound by kinship. The community recognizes that every one within it is entitled to all the rights equally with others. As Professors Dewey and Tufts have pointed out :

“A State may allow a citizen of another country to own land, to sue in its courts, and will usually give him a certain amount of protection, but the first-named rights are apt to be limited, and it is only a few years since Chief Justice Taney’s dictum stated the existing legal theory of the United States to be that the Negro ‘had no rights which the white man was bound to respect’. Even where legal theory does not recognize race or other distinctions, it is often hard in practice for an alien to get justice. In primitive clan or family groups this principle is in full force. Justice is a privilege which falls to a man as belonging to some group—not otherwise. The member of the clan or the household or the village community has a claim, but the Stranger has nothing standing. It may be treated kindly, as a guest, but he cannot demand ‘justice’ at the hands of any group but his own. In this conception of rights within the group we have the prototype of modern civil law. The dealing of clan with clan is a matter of war or negotiation, not of law; and the clanless man is an ‘outlaw’ in fact as well as in name.”

¹ “Introduction to Social Psychology”, p.

Kinship makes the community take responsibility for vindicating the wrong done to a member. Blood-flood which objectively appears to be a savage method of avenging a wrong done to a member is subjectively speaking a manifestation of sympathetic resentment by the members of the community for a wrong done to their fellow. This sympathetic resentment is a compound of tender emotion and anger such as those which issue out of parental tenderness when it comes face to face with a wrong done to a child. It is kinship which generates, this sympathetic resentment, this compound of tender emotion and anger. This is by no means a small value to an individual. In the words of Prof. McDougall :

“This intimate alliance between tender emotion and anger is of great importance for the social life of man, and the right understanding of it is fundamental for a true theory of the moral sentiments; for the anger evoked in this way is the germ of all moral indignation and on moral indignation justice and the greater part of public law are in the main founded.”

It is kinship which generates generosity and invokes its moral indignation which is necessary to redress a wrong. Kinship is the will to enlist the support of the kindred community to meet the tyrannies and oppressions by the Hindus which today the Untouchables have to bear single-handed and alone. Kinship with another community is the best insurance which the Untouchable can effect against Hindu tyranny and Hindu oppression.

Anyone who takes into account the foregoing exposition of what kinship means and does, should have no difficulty in accepting the proposition that to end their isolation the Untouchables must join another community which does not recognise caste.

Kinship is the antithesis of isolation. For the Untouchables to establish kinship with another community is merely another name for ending their present state of isolation. Their isolation will never end so long as they remain Hindus. As Hindus, their isolation hits them from front as well as from behind. Notwithstanding their being Hindus, they are isolated from the Muslims and the Christians because as Hindus they are aliens to all—Hindus as well as Non-Hindus. This isolation can end only in one way and in no other way. That way is for the Untouchables to join some non-Hindu community and thereby become its kith and kin.

That this is not a meaningless move will be admitted by all those who know the disadvantages of isolation and the advantages of kinship. What are the consequences of isolation? Isolation means social segregation, social humiliation, social discrimination and social

injustice. Isolation means denial of protection, denial of justice, denial of opportunity. Isolation means want of sympathy, want of fellowship and want of consideration. Nay, isolation means positive hatred and antipathy from the Hindus. By having kinship with other community on the other hand, the Untouchables will have within that community equal position, equal protection and equal justice, will be able to draw upon its sympathy, its good-will.

This I venture to say is a complete answer to the question raised by the opponents. It shows what the Untouchables can gain by conversion. It is however desirable to carry the matter further and dispose of another question which has not been raised so far by the opponents of conversion but may be raised. The question is : why is conversion necessary to establish kinship ?

The answer to this question will reveal itself if it is borne in mind that there is a difference between a community and a society and between kinship and citizenship.

A community in the strict sense of the word is a body of kindred. A society is a collection of many communities or of different bodies of kindreds. The bond which holds a community together is called kinship while the bond which holds a society together is called citizenship.

The means of acquiring citizenship in a society are quite different from the means of acquiring kinship in a community. Citizenship is acquired by what is called naturalization. The condition precedent for citizenship is the acceptance of political allegiance to the State. The conditions precedent for acquiring kinship are quite different. At one stage in evolution of man the condition precedent for adoption into the kindred was unity of blood. For the kindred is a body of persons who conceive themselves as spring from one ancestor and as having in their veins one blood. It does not matter whether each group has actually and in fact spring from a single ancestor. As a matter of fact, a group did admit a stranger into the kindred though he did not spring from the same ancestor. It is interesting to note that there was a rule that if a stranger intermarried with a group for seven generations, he became a member of the kindred. The point is that, fiction though it be, admission into the kindred required as a condition precedent unity of blood.

At a later stage of Man's Evolution, common religion in place of unity of blood became a condition precedent to kinship. In this connection it is necessary to bear in mind the important fact pointed out by Prof. Robertson Smith¹ that in a community the social body is

¹ The Religion of the Semites. Lecture II. Prof. Smith makes this distinction as though it was a distinction between ancient society and modern society. It is of wider importance. In reality, it is a distinction which marks off a community from a society.

made not of men only, but of gods and men and therefore any stranger who wants to enter a community and forge the bond of kinship can do so only by accepting the God or Gods of the community. The Statement in the Old Testament such as those of Naomi to Ruth saying: "Thy sister is gone back into her people and unto her gods" and Ruth's reply "Thy people shall be my people, and thy God my God" or the calling of the Mobites the sons and daughters of Chemosh are all evidences which show that the bond of kinship in a community is the consequence of their allegiance to a common religion. Without common religion there can be no kinship.

Where people are waiting to find faults in the argument in favour of conversion it is better to leave no ground for fault-finders to create doubt or misunderstanding. It might therefore be well to explain how and in what manner religion is able to forge the bond of kinship. The answer is simple. It does it through eating and drinking together.¹ The Hindus in defending their caste system ridicule the plea for inter-dining. They ask: What is there in inter-dining? The answer from a sociological point of view is that is everything in it. Kinship is a social covenant of brotherhood. Like all covenants it required to be signed, sealed and delivered before it can become binding. The mode of signing, sealing and delivery is the mode prescribed by religion and that mode is the participation in a sacrificial meal. As said by Prof. Smith²:

"What is the ultimate nature of the fellowship which is constituted or declared when men eat and drink together? In our complicated society fellowship has many types and many degrees; men may be united by bonds of duty and honour for certain purposes, and stand quite apart in all other things. Even in ancient times—for example, in the Old Testament—we find the sacrament of a common meal introduced to seal engagements of various kinds. But in every case the engagement is absolute and inviolable; it constitutes what in the language of ethics is called a duty of perfect obligation. Now in the most primitive society there is only one kind of fellowship which is absolute and inviolable. To the primitive man all other, men fall under two classes, those to whom his life is sacred and those to whom it is not sacred. The former are his fellows; the latter are strangers and potential foemen, with whom it is absurd to think of forming any inviolable tie unless they are first brought into the circle within which each man's life is sacred to all his comrades."

If for the Untouchables mere citizenship is not enough to put an end to their isolation and the troubles which ensue therefrom, if kinship is

¹ On this subject see Smith, *The Religion of the Semites*, pp. 270-71. ² *Ibid.*, pp. 271-72.

the only cure then there is no other way except to embrace the religion of the community whose kinship they seek.

The argument so far advanced was directed to show how conversion can end the problem of the isolation of the Untouchables. There remain two other questions to be considered. One is, will conversion remove their inferiority complex ? One cannot of course dogmatize. But one can have no hesitation in answering the question in the affirmative. The inferiority complex of the Untouchables is the result of their isolation, discrimination and the unfriendliness of the social environment. It is these which have created a feeling of helplessness which are responsible for the inferiority complex which cost him the power of self-assertion.

Can religion alter this psychology of the Untouchables ? The psychologists are of opinion that religion can effect this cure provided it is a religion of the right type; provided that the religion approaches the individual not as a degraded worthless outcastes but as a fellow human being; provided religion gives him an atmosphere in which he will find that there are possibilities for feeling himself the equal of every other human being there is no reason why conversion to such a religion by the Untouchables should not remove their age-long pessimism which is responsible for their inferiority complex. As pointed out by Prof. Ellwood :¹

“Religion is primarily a valuing attitude, universalizing the will and the emotions, rather than the ideas of man. It thus harmonizes men, on the side of will and emotion, with his world. Hence, it is the fee of pessimism and despair. It encourages hope, and gives confidence in the battle of life, to the savage as well as to the civilized man. It does so, as we have said, because it braces vital feeling; and psychologists tell us that the reason why it braces vital feeling is because it is an adaptive process in which all of the lower centres of life are brought to reinforce the higher centres. The universalization of values means, in other words, in psycho-physical terms, that the lower nerve centres pour their energies into the higher nerve centres, thus harmonizing and bringing to a maximum of vital efficiency life on its inner side. It is thus that religion taps new levels of energy, for meeting the crisis of life, while at the same time it brings about a deeper harmony between the inner and the outer.”

Will conversion raise the general social status of the Untouchables ? It is difficult to see how there can be two opinions on this question.

The oft-quoted answer given by Shakespeare to the question what is

¹ The Reconstruction of Religion, pp. 40-41.

in a name hardly shows sufficient understanding of the problem of a name. A rose called by another name would smell as sweet would be true if names served no purpose and if people instead of depending upon names took the trouble of examining each case and formed their opinions and attitudes about it on the basis of their examination. Unfortunately, names serve a very important purpose. They play a great part in social economy. Names are symbols. Each name represents association of certain ideas and notions about a certain object. It is a label. From the label people know what it is. It saves them the trouble of examining each case individually and determine for themselves whether the ideas and notions commonly associated with the object are true. People in society have to deal with so many objects that it would be impossible for them to examine each case. They must go by the name that is why all advertisers are keen in finding a good name. If the name is not attractive the article does not go down with the people.

The name 'Untouchable' is a bad name. It repels, forbids, and stinks. The social attitude of the Hindu towards the Untouchable is determined by the very name 'Untouchable'. There is a fixed attitude towards 'Untouchables' which is determined by the stink which is imbedded in the name 'Untouchable'. People have no mind to go into the individual merits of each Untouchable no matter how meritorious he is. All untouchables realize this. There is a general attempt to call themselves by some name other than the 'Untouchables'. The Chamars call themselves Ravidas or Jatavas. The Doms call themselves Shilpakars. The Pariahs call themselves Adi-Dravidas, the Madigas call themselves Arundhatyas, the Mahars call themselves Chokhamela or Somavamshi and the Bhangis call themselves Balmikis. All of them if away from their localities would call themselves Christians.

The Untouchables know that if they call themselves Untouchables they will at once draw the Hindu out and expose themselves to his wrath and his prejudice. That is why they give themselves other names which may be likened to the process of undergoing protective discolouration.

It is not seldom that this discolouration completely fails to serve its purpose. For to be a Hindu is for Hindus not an ultimate social category. The ultimate social category is caste, nay sub-caste if there is a sub-caste. When the Hindus meet 'May I know who are you' is a question sure to be asked. To this question 'I am a Hindu' will not be a satisfactory answer. It will certainly not be accepted as a final answer. The inquiry is bound to be further pursued. The answer

‘Hindu’ is bound to be followed by another; ‘What caste ?’. The answer to that is bound to be followed by question : “What sub-caste ?” It is only when the questioner reaches the ultimate social category which is either caste or sub-caste that he will stop his questionings.

The Untouchable who adopts the new name is a protective discolouration finds that the new name does not help and that in the course of relentless questionings he is, so to say, run down to earth and made to disclose that he is an Untouchable. The concealment makes him the victim of greater anger than his original voluntary disclosure would have done.

From this discussion two things are clear. One is that the low status of the Untouchables is bound upon with a stinking name. Unless the name is changed there is no possibility of a rise in their social status. The other is that a change of name within Hinduism will not do. The Hindu will not fail to penetrate through such a name and make the Untouchable and confer himself as an Untouchable.

The name matters and matters a great deal. For, the name can make a revolution in the status of the Untouchables. But the name must be the name of a community outside Hinduism and beyond its power of spoliation and degradation. Such name can be the property of the Untouchable only if they undergo religious conversion. A conversion by change of name within Hinduism is a clandestine conversion which can be of no avail.

This discussion on conversion may appear to be somewhat airy. It is bound to be so. It cannot become material unless it is known which religion the Untouchables choose to accept. For what particular advantage would flow from conversion would depend upon the religion selected and the social position of the followers of that religion. One religion may give them all the three benefits, another only two and a third may result in conferring upon them only one of the advantages of conversion. What religion the Untouchables should choose is not the subject matter of this Chapter. The subject matter of this Chapter is whether conversion can solve the problem of untouchability. The answer to that question is emphatically in the affirmative.

The force of the argument, of course, rests on a view of religion which is somewhat different from the ordinary view according to which religion is concerned with man’s relation to God and all that it means. According to this view, religion exists not for the saving of

souls but for the preservation of society and the welfare of the individual. It is only those who accept the former view of religion that find it difficult to understand how conversion can solve the problem of untouchability. Those who accept the view of religion adopted in this Chapter will have no difficulty in accepting the soundness of the conclusion.

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CHAPTER 28

CASTE AND CONVERSION¹

The instinct of self-preservation is responsible for the present upheaval in the Hindu Community. There was a time when the elite of the society had no fear about its preservation. Their argument was that the Hindu community was one of the oldest communities that has withstood the onslaught of many adverse forces and therefore there must be some native strength and stamina in its culture and civilization as to make it survive. They were therefore firm in their belief that their community was destined ever to survive. Recent events seem to have shaken this belief. In the Hindu-Muslim riots that have taken place all over the country in recent times it has been found that a small band of Muslims can beat the Hindus and beat them badly. The elite of the Hindus are therefore reflecting afresh upon the question whether such a kind of survival in the struggle for existence is of any value. The proud Hindu who always harped upon the fact of survival as a proof of his fitness to survive never stopped to think that survival was of many types and not all are of equal value. One can survive by marching against the enemy and conquering him. Or one can survive by beating a retreat and hiding oneself in a position of safety. In either case there would be survival. But certainly the value of the two survivals is measures apart. What is important is not the fact of survival but the plane of survival? Survive the Hindus may, but whether as free men or slaves is the issue. But the matter seems so hopeless that granting that they manage to survive as slaves it does not seem to be altogether certain that they can survive as *Hindus*. For they are not only beaten by the Muslims in the *physical struggle* but they seem also to be beaten in the *cultural struggle*. There is in recent days a regular campaign conducted vigorously by the Muslims for the spread of Islamic culture, and by their conversion movement, it is alleged, they have made vast additions to their numerical strength by winning over members of the Hindu faith. Fortunately for the Muslims there is a large mass of non-descript population numbering about seven crores which is classed as Hindus but which has no particular affinity to the

¹ Originally published in the 'Telugu Samachar Special Number', Nov. 1926.

Hindu faith and whose position is made so intolerable by that faith that they can be easily induced to embrace Islam. Some of these are going over to Islam and yet more may go.

This is sufficient to cause alarm among the elite of the Hindus. If with a superiority of numbers the Hindus are unable to face the Muslims what would be their fate if their following was depleted by conversions to Islam? The Hindus feel that they must save their people from being lost to them and their culture. Herein lies the origin of the *Shudhi Movement* or the movement to reclaim people to the Hindu faith.

Some people of the orthodox type are opposed to this movement on the ground that Hindu religion was never a proselytising religion and that Hindu must be so by birth. There is something to be said in favour of this view. From the commencement of time to which memory or tradition can reach back, proselytism has never been the practising creed of the Hindu faith. Prof. Max Muller, the great German Savant and Oriental Scholar in an address delivered by him in the name of the Westminster Abbey on the 3rd of December 1873 Day of Intercession for Missions, emphatically declared that the Hindu Religion was a non-missionary religion. The orthodoxy which refuses to believe in expediency may therefore feel well grounded in its opposition to Shudhi, as a practice directly opposed to the most fundamental tenets of the Hindu faith. But there are other authorities of equally good repute to support the promoters of the Shudhi movement, for it is their opinion that the Hindu Religion has been and can be a missionary religion. Prof. Jolly in an article '*DIE AUSBREITUNG DER INDISCHEN FULTUR*', gives a graphic description of the means and methods adopted by the ancient Hindu Rulers and Priests to spread the Hindu Religion among the aborigines of the country. The late Sir Alfred Lyall who wrote in reply to Prof. Max Muller also sought to prove that the Hindu religion was a missionary religion. The probability of the case seems to be definitely in favour of Jolly and Lyall. For unless we suppose that the Hindu Religion did in some degree do the work of proselytization, it is not possible to account for its spread over a vast continent and inhabited by diverse races which were in possession of a distinct culture of their own. Besides, the prevalence of certain *YAJNAS* and *YAGAS* cannot be explained except on the hypothesis that there were ceremonies for the Shudhi of the Vratya. We may therefore safely conclude that in ancient times the Hindu religion was a missionary religion. But that owing to some reason it ceased to be so long back in its historical course.

The question that I wish to consider is why did the Hindu religion cease to be a missionary religion. There may be various explanations for this, and I propose to offer my own explanation for what it is worth. Aristotle has said that man is a social being. Whatever be the cogency of the, reasons of Aristotle in support of his statement this much is true that it is impossible for any one to begin life as an individualist in the sense of radically separating himself from his social fellows. The social bond is established and rooted in the very growth of self-consciousness. Each individual's apprehension of his own personal self and its interest involves the recognition of others and their interests; and his pursuit of one type of purposes, generous or selfish, is in so far the pursuit of the other also. The social relation is in all cases intrinsic to the life, interests, and purposes of the individual; he feels and apprehends, the vitality of social relations in all the situations of his life. In short, life without society is no more possible for him than it is for a fish out of water.

Given this fact it follows that before a society can make converts, it must see to it that its constitution provides for aliens being made its members and allowed to participate in its social life. It must be used to make no difference between individuals born in it and individuals brought into it. It must be open to receive him in the one case as in the other and allow him to enter into its life and thus make it possible for him to live and thrive as a member of that society. If there is no such provision on conversion of an alien the question would at once arise where to place the convert. If there is no place for the convert there can be no invitation for conversion nor can there be an acceptance of it.

Is there any place in the Hindu society for a convert to the Hindu faith? Now the organisation of the Hindu society is characterized by the existence of castes. Each caste is endogamous and lives by antogony. In other words it only allows individuals born in it to its membership and does not allow any one from outside being brought into it. The Hindu Society being a federation of castes and each caste being self-enclosed there is no place for the convert for no caste will admit him : The answer to the question why the Hindu Religion ceased to be a missionary religion is to be found in the fact that it developed the caste system. Caste is incompatible with conversion. So long as mass conversion was possible, the Hindu Society could convert for the converts were large enough to form a new caste which could provide the elements of a social life from among themselves. But when mass conversion's were no more and only individual converts could be had, the Hindu Religion had necessarily to cease to be missionary for its social organisation could make no room for the incoming convert.

I have not propounded this question as to why the Hindu Religion ceased to be missionary simply to find an opportunity for obtaining credit for originality of thought by offering a novel explanation. I have propounded the question and given an answer to it because I feel that both have a very important bearing upon the Shudhi movement. Much as I sympathise with the promoters of that movement, I must say that they have not analysed the difficulties in the way of the success of their movement. The motive behind the Shudhi movement is to increase the strength of the Hindu Society by increasing its numbers. Now a society is strong not because its numbers are great but because it is solid in its mass. Instances are not wanting where a solid organised band of fanatics have routed a large army of disorganised crusaders; Even in the Hindu-Muslim riots it has been proved that the Hindus are beaten not only where they are weak in numbers, but they are beaten by the Muslims even where the Hindus preponderate. The case of Moplahs is in point. This alone ought to show that the Hindus suffer not from want of numbers but from want of solidarity. To increase solidarity of the Hindu Society one must tackle the forces which have brought about its disintegration. My fear is that mere Shudhi, instead of integrating the Hindu Society, will cause greater disintegration and will annoy the Muslim Community without any gain to the Hindus. In a society composed of castes, Shudhi brings in a person who can find no home and who is therefore bound to lead an isolated and separate existence with no attachment or loyalty to any one in particular. Even if Shudhi were to bring into the Hindu fold a mass like the Malkana catch of Shradhanand, it will only add one more caste to the existing number. Now the greater the castes the greater the isolation and the greater the weakness of the Hindu society. If the Hindu society desires to survive it must think not of adding to its numbers but increasing its solidarity and that means the abolition of caste. The abolition of castes is the real Sanghatan of the Hindus and when Sanghatan is achieved by the abolishing of castes, Shudhi will be unnecessary and if practised, will be gainful of real strength. With the castes in existence, it is impossible and if practised would be harmful to the real Sanghatan and solidarity of the Hindus. But somehow the most revolutionary and ardent reformer of the Hindu society shies at the idea of abolition of the caste and advocates such puerile measures as the reconversion of the converted Hindu, the changing of the diet and the starting of Akhadas. Some day it will dawn upon the Hindus that they cannot save their society and also preserve their caste. It is to be hoped that that day is not far off.

CHAPTER 29

CHRISTIANIZING THE UNTOUCHABLES

I. Growth of Christianity in India. II. Time and money spent in Missionary effort. III. Reasons for slow growth.

I

How old is Christianity in India ? What progress has it made among the people of India ? These are questions which no one who is interested in the Untouchables can fail to ask. The two questions are so intimately connected that the endeavour for the spread of Christianity would be hopeless if there were not in India that vast body of untouchables who, by their peculiar circumstances, are most ready to respond to the social message of Christianity.

The following figures will give some idea of the population of Indian Christians as compared with other communities in India according to the Census of 1931.

INDIA AND BURMA

Population by Religion	1891 Census	1921 Census	1931 Census	Increase# Decrease—
Hindu		216,734,586	239,195,140	#10.4
Muslims		68,735,233	77,677,545	#13
Buddhist		11,571,268	12,786,806	#10.5
Sikh		3,238,803	4,335,771	#33.9
Primitive Religions		9,774,611	8,280,347	— 15.3
Christian		4,754,064	6,296,763	#32.5
Jain		1,178,596	1,252,105	# 6.2
Zoroastrian		101,778	109,752	# 7.8
Jews		21,778	24,141	#10.9
Unreturned		18,004	2,860,187	
Total	. .	316,128,721	352,818,557	#10.6

It is true that during the 1921 and 1931 Christianity has shown a great increase. From the point of growth Sikhism takes the first place. Christianity comes second and Islam another proselytizing religion comes third. The difference between the first and the second is so small that the second place occupied by Christianity may be taken to be as good as first. Again the difference between the second and the third place occupied by Islam is so enormous that Christians may well be proud of their having greatly outdistanced so serious a rival.

With all this the fact remains that this figure of 6,296,763 is out of a total of 352,818,557. This means that the Christian population in India is about 1.7 p.c. of the total.

II

In how many years and after what expenditure ? As to expenditure it is not possible to give any accurate figures. Mr. George Smith in his book on "The Conversion of India" published in 1893 gives statistics which serve to give some idea of the resources spent by Christian Nations for Missionary work in heathen countries. This is what he says :

"We do not take into account their efforts, vigorous and necessary, especially in the lands of Asia and North Africa occupied by the Eastern Churches for whom Americans do much, nor any labours for Christians by Christians of a purer faith and life. Leaving out of account also the many wives of missionaries who are represented statistically in their husbands, Rev. J. Vahl, President of the Danish Missionary Society, gives us these results. We accept them as the most accurately compiled, and as almost too cautiously estimated where estimate is unavoidable. In Turkey and Egypt only work among the Musalmans is reckoned.

	1890	1891
Income (English Money)	£2,412,938	£2,749,340
Missionaries	4,652	5,094
Missionaries unmarried ladies	2,118	2,445
Native Ministers	3,424	3,730
Other Native helpers	36,405	40,438
Communicants	966,856	1,168,560

We abstain from estimating in detail the results for 1892, as they are about to appear, and still less for the year 1893, but experts can do this for themselves. This only we would say, that the number of

native communicants added in those two years has been very large, especially in India. Allowing for that, we should place them now at 1,300,000 which gives a native Christian community of 5,200,000 gathered out of all non-Catholic lands.

Dean Vahl's statistics are drawn from the reports of 304 mission societies and agencies in 1891, beginning with Cromwell's New England Company, for America, in 1649. On the following page the details are summarised from seventeen lands of Reformed Christendom. The amount raised in 1891 by the 160 Mission Churches and Societies of the British Empire was £ 1,659,830 and by the 57 of the United States of America £786,992. Together the two great English speaking peoples spent £2,446,822 on the evangelisation of the non-Christian world. The balance 302,518 was contributed by Germany and Switzerland, Netherlands, Denmark, France, Norway, Sweden, Finland and in Asia."

It is not possible to give any idea of the resources now utilized in the cause because they are not published. But we have sufficient data to know how many years it has taken to produce these 6 millions of converts.

Of the first missionary to India who came and sowed there the seed of Christianity there is no record. It is believed that Christianity in India is of apostolic origin and it is suggested that the apostle Thomas was the founder of it. The apostolic origin of Christianity is only a legend notwithstanding the existence of what is called St. Thomas's Mount near Madras which is said to be the burial place of the Apostle. There is no credible evidence to show that the Gospel was even preached in India during the first Century. There is some evidence to show that in the second century the Gospel had reached the ears of the dwellers on the Southern Indian Coast, among the pearl fishers of Ceylon and the cultivators on the coasts of Malabar and Coromandel. This news when brought back by the Egyptian Mariners spread among the Christians of Alexandria. Alexandria was the first to send a Christian Missionary to India, whose name is recorded in history. He was Pantoenus, a Greek stoic who had become a Christian and was appointed by Demetrius, the bishop of Alexandria as the principal and sole catechist of the school of the Catechumens, which had been established for the instruction of the heathen in the facts and doctrines of Christianity. At some time between the years 180 and 190 the Bishop of Alexandria received an Appeal from the Christians in India to send them a Missionary and Pantoenus was accordingly sent. How long he was in India, how far inland he travelled and what work he actually did, there is no record to show. All that is known is that he

went back to Alexandria, and took charge of his school and continued to be its principal till 211 A.D.

Little is known of the progress of the Gospel on Indian soil through the third century. But there is this fact worthy of notice. It is this that when the Council of Nicaca was held in 325 A.D. after the conversion of the Emperor Constantine Johannes, one of the Assembled prelates described himself as "Metropolitan of Persian and of the Great India". This fact seems to indicate that there was at that time a Christian Church of some bulk and significance planted on the Indian Coast. On the other hand this probably implied little more than an episcopal claim to what had always, as in the Book of Esther, been considered a province of the Persian Empire.

The scene shifts from Alexandria to Antioch and from the beginning of the third to the end of the fifth century. It is Antioch which took the burden of Christian enterprize upon its own shoulder.

The sixth century was the last peaceful year for Christian propaganda. This seems to mark the end of one epoch. Then followed the rise of the Saracens who carried the Koran and Sword of Mahammad all over Western Asia and Northern Africa, then threatened Europe itself up to Vienna and from Spain into the heart of France. The result was that all the Christian people were distracted and their Missionary effort was held up for several centuries.

The voyage of Vasco de Gama in the year 1497 to India marks the beginning of a new epoch in the history of Christian Missionary effort in India and the most serious and determined effort commenced with the arrival of the great Missionary Francis Xavier in the year 1542. The Portuguese were the first European power in the East and the earliest efforts of modern times in the direction of Christianizing the natives of India were made under their auspices. The conversions effected under the auspices of the Portuguese were of course conversions to the Roman Catholic faith and were carried out by Roman Catholic Missions.

They were not, however, left long without rivals. The Protestants soon came into the field. The earliest Protestant propaganda was that of the Lutherans who established themselves in Tranquebar in 1706 under the patronage of the King of Denmark. The able and devoted Schwartz, who laboured in Trichinopoly and Tanjore throughout the second half of the 18th Century was a member of this mission, which has since, to a great extent, been taken over by the Society for the propagation of the Gospel.

Next came the Baptist Mission under Carey who landed in Calcutta in 1793. Last came the Anglican Church which entered the Missionary

field in 1813 and since then the expansion of Missionary enterprize was rapid and continuous.

Thus Christian propaganda has had therefore a long run in India. It had had four centuries before the rise of the Saracens who caused a break in the Mission Activity. Again after subsidence of the Saracens it has had nearly four centuries. This total of six millions is the fruit gathered in eight centuries. Obviously this is a very depressing result. It depressed Francis Xavier. It even depressed Abbe Dubois who, writing in 1823 some three hundred years after Xavier, declared that to convert Hindus to Christianity was a forlorn hope. He was then criticized by the more optimistic of Christian Missionaries. But the fact remains that at the end of this period there are only about 6 million Christians out of a total population of about 358 millions. This is a very slow growth indeed and the question is, what are the causes of this slow growth.

III

It seems to me that there are three reasons which have impeded the growth of Christianity.

The first of these reasons is the bad morals of the early European settlers in India particularly Englishmen who were sent to India by the East India Company. Of the character of the men who were sent out to India Mr. Kaye, an Appologist of the Company and also of its servants speaks in the following terms in his "Christianity in India":

"Doubtless there were some honest, decent men from the middle classes amongst them But many, it appears from contemporary writers, were Society's hard bargains—youngsters, perhaps, of good family, to which they were a disgrace, and from the bosom of which therefore they were to be cast out, in the hope that there would be no prodigals return from the 'Great Indies'. It was not to be expected that men who had disgraced themselves at home would lead more respectable lives abroad.

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"There were, in truth, no outward motives to preserve morality of conduct, or even decency of demeanour; so from the moment of their landing upon the shore of India, the first settlers cast off all these bonds which had restrained them in their native villages; they regarded themselves as privileged beings—privileged to violate all the obligations of religion and morality and to outrage all the

decencies of life. They who went thither were often desperate adventurers, whom England, in the emphatic language of the Scripture, had spud out; men who sought those golden sands of the East to repair their broken fortunes; to bury in oblivion a sullied name; or to bring, with lawless hand from the weak and unsuspecting, wealth which they had not the character or capacity to obtain by industry at home. They cheated; they gambled; they drank; they revelled in all kinds of debauchery. Associates in vice, linked together by a common bond of rapacity, they still often pursued one another with desperate malice, and, few though they were in numbers, among them there was no fellowship, except a fellowship of crime."

"All this was against the new comer; and so, whilst the depraved met with no inducement to reform the pure but rarely escaped corruption. Whether they were there initiated, or perpetrated in destructive error, equally may they be regarded as the victims of circumstance

How bad were the morals and behaviour of the early Christians can be gathered from the following instances quoted by Mr. Kaye.

"The Deputy-Governor of Bombay was in 1669 charged as under :

That he hath on the Sabbath day hindered the performance of public duty to God Almighty at the accustomed hour, continuing in drinking of health; detaining others with him against their wills; and whilst he drank, in false devotions upon his knees, a health devoted to the Union, in the time appointed for the service belonging to the Lord's day, the unhappy sequel showed it to be but the projection of a further disunion.

"That to the great scandal of the inhabitants of the island, of all the neighbours round about, both popists and others that are idolators, in dishonour of the sobriety of the Protestant religion, he hath made frequent and heavy drinking meetings, continuing some times till two or three of the clock in the morning, to the neglecting of the service of God in the morning prayers, and the service of the Company in the meantime had stood still while he slept, thus perverting and converting to an ill private use, those refreshment intended for the factory in general."

On these charges he was found guilty.

In the factories of the East India Company there was enough of internecine strife and the factors of the Company committed scandalous outrages in general defiance both of the laws of God and the decencies of man. They fought grievously among themselves; blows following words; and the highest persons in the settlement settling an example of pugnacity with their inferiors under the potent influence of drink.

The report of the following incident is extracted from the records of the Company's factory at Surat¹:

"We send your honours our consultation books from the 21st of August 1695 to 31st December 1696, in which does appear a conspiracy against the President's life, and a design to murder the guards, because he would have opposed it. How far Messrs. Vauxe and Upphill were concerned, we leave to your honours to judge by this and depositions before mentioned. There is strong presumption that it was intended first that the President should be stabbed and it was prevented much through the vigilance of Ephraim Bendall; when hopes of that failed by the guards being doubled, it seems poison was agreed on, as by the deposition of Edmund clerk and all bound to secrecy upon an horrid imprecation of damnation to the discoverer, whom the rest were to fall upon and cut off."

In the same document is recorded the complaint of Mr. Charles Peachey against the President of the Council at Surat—

"I have received from you (i.e. the President) two cuts on my head, the one very long and deep, the other a slight thing in comparison to that. Then a great blow on my left arm, which has enflamed the shoulder, and deprived me (at present), of the use of that limb; on my right side a blow on my ribs just beneath the pap, which is a stoppage to my breath, and makes me incapable of helping myself; on my left hip another, nothing inferior to the first; but above all a cut on the brow of my eye."

Such was the state of morality among the early English Settlers who came down to India. It is enough to observe that these settlers managed to work through the first eighty years of the seventeenth century without building a Church. Things did not improve in the 18th Century. Of the state of morality among Englishmen in India during the 18th Century this is what Mr. Kaye has to say—

"Of the state of Anglo Indian Society during the protracted Administration of Warren Hastings, nothing indeed can be said in praise those who ought to have set good example, did grievous wrong to Christianity by the lawlessness of their lives Hastings took another man's wife with his consent; Francis did the same without it It was scarcely to be expected that, with such examples before them, the less prominent members of society would be conspicuous for morality and decorum. In truth, it must be acknowledged that the Christianity of the English in India was, at this time, in a sadly depressed state. Men drank hard and gamed high, concubinage with the women of the country was the rule

¹ Quoted by Kaye, *Christianity in India*, p. 106.

rather than the exception. It was no uncommon thing for English gentlemen to keep populous zenanas. There was no dearth of exciting amusement in those days. Balls, masquerades, races and theatrical entertainments, enlivened the settlements, especially in the cold weather; and the mild excitement of duelling varied the pleasures of the season. Men lived, for the most part, short lives and were resolute that they should be merry ones."

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The drunkenness, indeed, was general and obtrusive. It was one of the besetting infirmities—the fashionable vices—of the period..... At the large Presidency towns—especially at Calcutta—public entertainments were not frequent. Ball suppers, in those days, were little less than orgies. Dancing was impossible after them, and fighting commonly took its place. If a public party went off without a duel or two, it was a circumstance as rare as it was happy. There was a famous club in those days, called Selby's Club, at which the gentlemen of Calcutta were wont to drink as high as they gamed, and which some times saw drunken bets of 1,000 gold mohurs laid about the merest trifles. Card parties often sat all through the night, and if the night chanced to be a Saturday, all through the next day.

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Honourable marriage was the exceptional state The Court of Directors of the East India Company were engaged in the good work of reforming the morals of their settlements; and thinking that the means of forming respectable marriages would be an important auxiliary, they sent out not only a supply of the raw material of soldiers' wives, but some better articles also, in the shape of what they called gentle women, for the use of such of their merchants and factors as might be matrimonially inclined. The venture, however, was not a successful one. The few who married made out indifferent wives, whilst they who did not marry,—and the demand was by no means brisk,—were, to say the least of it, in an equivocal position. For a time they were supported at the public expense, but they received only sufficient to keep them from starving, and so it happened naturally enough that the poor creatures betook themselves to vicious courses, and sold such charms as they had, if only to purchase strong drink, to which they became immoderately addicted, with the wages of their prostitution.

The scandal soon became open and notorious; and the President and Council at Surat wrote to the Deputy Governor and Council at Bombay, saying: "Whereas you give us notice that some of the women are grown scandalous to our native religion and Government, we require you in the Honourable Company's name to give them all fair warning that they do apply themselves to a more sober and Christian conversation: otherwise the sentence is that they shall be deprived totally of their liberty to go abroad, and fed with bread and water, till they are embarked on board ship for England."¹

How bad were the morals and behaviour of the early Christians can be gathered from the three following instances which are taken from contemporary records.

Captain Williamson in his 'Indian Vade Mecum' published about the year 1809 says—

"I have known various instances of two ladies being conjointly domesticated, and one of an elderly military character who solaced himself with no less than *sixteen* of all sorts and sizes. Being interrogated by a friend as to what he did with such a member, "Oh", replied he, 'I give them little rice, and let them run about'. This same gentleman when paying his addresses to an elegant young woman lately arrived from Europe, but who was informed by the lady at whose house she was residing, of the state of affairs, the description closed with 'Pray, my dear, how should you like to share a sixteenth of Major?'"

Such was the disorderliness and immorality among Englishmen in India. No wonder that the Indians marvelled whether the British acknowledged any God and believed in any system of morality. When asked what he thought of Christianity and Christians an Indian is reported to have said in his broken English—"Christian religion, devil religion; Christian much drunk; Christian much do wrong; much beat, much abuse others"—and who can say that this judgment was contrary to facts?

It is true that England herself was not at the relevant time overburdened with morality. The English people at home were but little distinguished for the purity of their lives and there was a small chance of British virtue dwarfed and dwindled at home, expending on foreign soil. As observed by Mr. Kaye² "The courtly licentiousness of the Restoration had polluted the whole land. The stamp of Whitehall was upon the currency of our daily lives; and it went out upon our adventurers in the Company's ships, and was not, we may be sure, to be easily effaced in a heathen land". Whatever be the excuse for this immorality of Englishmen in the 17th and 18th Century the fact

¹ Kaye, Christianity in India, p. 106. ² *Ibid.*, p. 44.

remains that it was enough to bring Christianity into disrepute, and make its spread extremely difficult.

The second impediment in the progress of Christianity in India was the struggle between the Catholic and Non-catholic Missions for supremacy in the field of proselytization.

The entry of the Catholic Church in the field of the spread of Christianity in India began in the year 1541 with the arrival of Francis Xavier. He was the first Missionary of the new Society of Jesus formed to support the authority of the Pope. Before the Catholic Church entered this field there existed in India particularly in the South a large Christian population which belonged to the Syrian Church. These Syrian Christians, long seated on the coast of Malabar, traced their paternity to the Apostle Thomas, who it is said "went through Syria and Cilicia conforming the Churches". They looked to Syria as their spiritual home. They acknowledged the supremacy of the Patriarch of Babylon. Of Rome and the Pope they knew nothing. During the rise of the Papacy, the Mahomedan power, which had overrun the intervening countries, had closed the gates of India against the nations of the West. This had saved the Syrian Churches in India from the Roman Catholic Church. As to the question whether the Christianity of the Catholic Church was the true form of Christianity or whether the Christianity of the Syrian Church was the true form I am not concerned here. But the facts remain that the Portuguese who represented the Catholic Church in India were scandalized at the appearance of the Syrian Churches which they declared to be heathen temples scarcely disguised. The Syrian Christians shrank with dismay from the defiling touch of the Roman Catholics of Portugal and proclaimed themselves Christians and not idolators. The other is that the Malabar Christians had never been subject to Roman supremacy and never subscribed to the Roman doctrine.

The elements of a conflict between the two Churches were thus present and the inquisition only gave an occasion for the conflagration.

The inquisitors of Goa discovered that they were heretics and like a wolf on the fold, down came the delegates of the Pope upon the Syrian Churches. How great was the conflict is told by Mr. Kaye in his volume already referred to.

The first Syrian prelate who was brought into antagonism with Rome, expiated his want of courage and sincerity in the dungeons of the Inquisition. The second shared the same fate. A third, whose sufferings are more worth of commiseration, died after much trial and tribulation in his diocese, denying the Pope's supremacy to the last. The churches were now without a Bishop, at a time when they more

than ever needed prelatical countenance and support; for Rome was about to put forth a mighty hand and a stretched-out arm. Don Alexis de Menezes was appointed Archbishop of Goa. It was his mission less to make new converts than to reduce old ones to subjection; and he flung himself into the work of persecution with an amount of zeal and heroism that must have greatly endeared him to Rome. Impatient of the slow success of his agents, he determined to take the staff into his own hand. Moving down to the South, with an imposing military force, he summoned the Syrian Churches to submit themselves to his authority. The Churches were under an Archdeacon, who, sensible of the danger that impended over them, determined to temporize, but at the same time to show that he was prepared to resist. He waited on the Archbishop. An escort of three thousand resolute men who accompanied him on his visit to Menezes, were with difficulty restrained, on the first slight and delusive sign of violence, from rushing on their opponents and proving their burning zeal in defence of their religion. It was not a time for Menezes to push the claims of the Romish Church. But no fear of resistance could divert him from his purpose; and he openly denounced the Patriarch of Babylon as a pestilent schismatic, and declared it a heresy to acknowledge his supremacy. He then issued a decree forbidding all persons to acknowledge any other supremacy than that of the Roman Pontiff, or to make any mention of the Syrian Patriarch in the services of their Church; and, this done, he publicly excommunicated the acknowledged head of the Syrian Churches, and called upon the startled Archdeacon to sign the writ of excommunication. Frightened and confused, the wretched man put his name to the apostate document; and it was publicly affixed to the gates of the church.

This intolerable insult on the one hand—this wretched compromise on the other—roused the fury of the people against the Archbishop, and against their own ecclesiastical chief. Hard was the task before him, when the latter went forth to appease the excited multitude. They would have made one desperate effort to sweep the Portuguese intruders from their polluted shores; but the Archdeacon pleaded with them for forbearance; apologised for his own weakness; urged that dissimulation would be more serviceable than revenge; promised, in spite of what he had done, to defend their religion; and exhorted them to be firm in their resistance of Papal aggression. With a shout of assent, they swore that they would never bow their necks to the yoke, and prepared themselves for the continuance of the struggle.

But Menezes was a man of too many resources to be worsted in such a conflict. His energy and perseverance were irresistible; his craft was

too deep to fathom. When one weapon of attack failed, he tried another. Fraud took the place of violence; money took the place of arms. He bribed those whom he could not bully, and appealed to the imaginations of men when he could not work upon their fears. And, little by little, he succeeded. First one Church fell, and then another. Dangers and difficulties beset them. Often had he to encounter violent resistance, and often did he beat it down. When the strength of the Syrian Christians was too great for him, he called in the aid of the native princes. The unhappy Archdeacon, weary of resistance and threatened with excommunication, at last made submission to the Roman Prelate. Menezes issued a decree for a synod; and, on the 20th June 1599, the Churches assembled at Diamper. The first session passed quietly over, but not without much secret murmuring. The second, at which the decrees were read, was interrupted at that trying point of the ceremony where, having enunciated the Confession of Faith, the Archbishop renounced and anathematized the Patriarch of Babylon. The discontent of the Syrians here broke out openly; they protested against the necessity of a confession of Faith, and urged that such a confession would imply that they were not Christians before the assembling of the Synod. But Menezes allayed their apprehensions and removed their doubts, by publicly making the confession in the name of himself and the Eastern Churches. One of the Syrian priests, who acted as interpreter, then read the confession in the Malabar language, and the assembled multitude repeated it after him, word for word, on their knees. And so the Syrian Christians bowed their necks to the yoke of Rome.

Resolute to improve the advantages he had gained, Menezes did not suffer himself to subside into inactivity, and to bask in the sunshine of his past triumphs. Whether it was religious zeal or temporal ambition that moved him, he did not relax from his labours; but feeling that it was not enough to place the yoke upon the neck of the Syrian Christians, he endeavoured, by all means, to keep it there. The Churches yielded sullen submission; but there were quick-witted, keen-sighted men among them, who, as the seventeenth century began to dawn upon the world, looked hopefully into the future, feeling assured that they could discern even then unmistakable evidences of the waning glories of the Portuguese in the East. There was hope then for the Syrian churches. The persecutions of Menezes were very grievous—for he separated priests from their wives; excommunicated, on trifling grounds, members of the churches; and destroyed all the old Syriac records which contained proofs of the early purity of their faith.

The irreparable barbarism of this last act was not to be forgotten or forgiven; but, in the midst of all other sufferings, there was consolation in the thought, that this tyranny was but for a time. "Sixty years of servitude and hypocrisy," writes Gibbon, "were patiently endured, but as soon as the Portuguese empire was shaken by the courage and industry of the Dutch, the Nestorians asserted with vigour and effect the religion of their fathers. The Jesuits were incapable of defending the power they had abused. The arms of forty thousand Christians were pointed against their falling tyrants; and the Indian Archdeacon assumed the character of Bishop till a fresh supply of Episcopal gifts and Syriac missionaries could be obtained from the Patriarch of Babylon". Such briefly narrated, were the results of the oppression of Menezes. In the course of six months that ambitious and unscrupulous prelate reduced the Syrian church to bondage, and for sixty years they wore the galling chains of Rome. But Menezes trusted in his own strength; he came as an earthly conqueror, and his reliance was on the arm of temporal authority. "His example," writes Mr. Hough, "should be regarded as a beacon to warn future Christian missionaries from the rock on which he foundered. Without faith and godliness nothing can ensure a church's prosperity. Failing in these, the prelate's designs, magnificent as they were deemed, soon came to nothing; and it deserves special remark, as an instructive interposition of Divine Providence, that the decline of the Portuguese interest in India commenced at the very period when he flattered himself that he had laid the foundation of its permanency."

There was no such open conflict between the Catholic Church and the Protestant Missionaries. There was however sufficient rivalry between them to prevent cooperation and conceited activity the lack of which also prevented a rapid growth of Christianity.

The third reason which is responsible for the slow growth of Christianity was the wrong approach made by the Christian Missionaries in charge of Christian propaganda. The early Christian Missionary started his campaign by inviting public disputations with learned Brahmins on the comparative merits of the Christian and the Hindu religions. This was a strange way of going about his task. But there was a plan behind it. The Christian Missionary felt that his task of converting the masses would be easy of achievement if he succeeded in converting the Brahmin and the higher classes of Hindus. For they and the Brahmins held sway over the masses. And the easiest way of converting the Brahmin was to defeat in disputation and to show him that his religion was an error. The Christian Missionary wanted to get at the Brahmin. Nothing can explain why the Missionaries started so

many schools, colleges, hospitals etc., except this namely the Christian Missionary wanted to establish a contact with the Brahmin. That the Christian Missionary has been deceived is now realized by many. The Brahmin and the higher classes have taken full advantage of the institutions maintained by the Christian Missions. But hardly any one of them has given any thought to the religion which brought these institutions into existence.

There is nothing strange in this. The pursuit of the Brahmin and the higher classes of Hindus by the Christian Missionaries was doomed to fail. There would be no common ground for the disputation between Hinduism and Christianity and where there is a common ground the Hindu could always beat the Christian.

That there could be no common ground for disputation between Hindus and Christians is due to the fact that the two have a totally different attitude to the relations of theology to philosophy. As has been well observed by Mr. Burn,¹

“The Educated Hindu, when he considers religious questions, refuses to separate theology from philosophy and demands what shall appear to him a reasonable cosmogony. It has been shown in dealing with Hinduism that its prevailing tendency is pantheistic, and although for at least two thousand years sects have constantly been forming which asserted the duality of God and Spirit, there has always been a tendency to relapse into pantheism, and to regard the present world as an illusion produced by *Maya*. The average Christian however gets on with very little philosophy and regards that as a rule as more speculative than essential to his religious beliefs. The methods of thought which a man has been brought up to regard, inevitably affect the conclusions at which he arrives, and it appears to me that this forms one of the reasons why to the majority of educated Hindus the idea of accepting Christianity is incredible. To take a single concrete example, the ordinary educated Hindu laughs at the belief that God created the Universe out of nothing. He may believe in a creation, but he also postulates the necessity for both a material cause, *matter* and an efficient cause, the *creator*. Where his belief is purely pantheistic, he also has no regard for historical evidences. A further difficulty on a fundamental point is caused by the belief in transmigration, which is based on the idea that a man must work out his own salvation and thus conflicts entirely with the belief in Divine atonement.”

Thus the Hindu speaks in terms of philosophy and the Christian speaks in terms of theology. There is thus no common ground for evaluation, or commendation or condemnation. In so far as both have

¹ Census of India, 1901 Vol. XVI, N. W. Pandbudh. Report Part I, p. 98.

theology the Christians with their God and Jesus as his son and the Hindus with their God and his Avatars, the superiority of one over the other, depends upon the miracles performed by them. In this the Hindu theology can beat the Christian theology is obvious enough and just as absence of philosophy in Christianity is responsible for its failure to attract the Brahmin and the Educated Hindu. Similarly the abundance of miracles in Hindu theology was enough to make Christian theology pale off in comparison. Father Gregory a Roman Catholic priest seems to have realized this difficulty and as his view is interesting as well as instructive I give below the quotations from Col. Sleeman's book in which it is recorded. Says Col. Sleeman¹.

"Father Gregory, the Roman Catholic priest, dined with us one evening, and Major Godby took occasion to ask him at table, 'What progress our religion was making among the people' ?

"Progress" ? said he, "why, what progress can we ever hope to make among a people who, the moment we begin to talk to them about the miracles performed by Christ, begin to tell us of those infinitely more wonderful performed by Krishna, who lifted a mountain upon his little finger, as an umbrella, to defend his shepherdesses at Govardhan from a shower of rain.

"The Hindoos never doubt any part of the miracles and prophecies of our scripture—they believe every word of them and the only thing that surprises them is that they should be so much less wonderful than those of their own scriptures, in which also they implicitly believe. Men who believe that the histories of the wars and amours of Ram and Krishna, two of the incarnations of Vishnu, were written some fifty thousand years before these wars and amours actually took place upon the earth, would of course easily believe in the fulfilment of any prophecy that might be related to them out of any other book; and, as to miracles, there is absolutely nothing too extraordinary for their belief. If a Christian of respectability were to tell a Hindoo that, to satisfy some scruples of the Corinthians, St. Paul had brought the sun and moon down upon the earth, and made them rebound off again into their places, like tennis balls, without the slightest injury to any of the three planets (sic), I do not think he would feel the slightest doubt of the truth of it; but he would immediately be put in mind of something still more extra-ordinary that Krishna did to amuse the milkmaids, or to satisfy some sceptics of his day, and relate it with all the naivete imaginable."

¹ Rambles and Recollections Vol. 1, Ch. 53. p. 407.

As events in India have shown this was a wrong approach. It was certainly just the opposite to the one adopted by Jesus and his disciples. Gibbon has given a description of the growth of Christianity in Rome which shows from what end Christ and his disciples began. This is what he says—

“From this impartial, though imperfect, survey of the process of Christianity, it may, perhaps seem probable that the number of its proselytes has been excessively magnified by fear on one side and by devotion on the other. According to the irreproachable testimony of Origen, the proportion of the faithful was very inconsiderable when compared with the multitude of an unbelieving world; but, as we are left without any distinct information, it is impossible to determine, and it is difficult even to conjecture, the real numbers of the primitive Christians. The most favourable calculation, however, that can be deduced from the examples of Antioch and of Rome will not permit us to imagine that more than a twentieth part of the subjects of the empire had enlisted themselves under the banner of the cross before the important conversion of Constantine. But their habits of faith, of zeal, and of union seemed to multiply their numbers; and the same causes which contributed to their future increase served to render their actual strength more apparent and more formidable.

“Such is the constitution of civil society that, whilst a few persons are distinguished by riches, by honours, and by knowledge, the body of the people is condemned to obscurity, ignorance and poverty. The Christian religion, which addressed itself to the whole human race, must consequently collect a far greater number of proselytes from the lower than from the superior ranks of life. This innocent and natural circumstance has been improved into a very odious imputation, which seems to be less strenuously denied by the apologists than it is urged by the adversaries of the faith; that the new sect of Christians was almost entirely composed of the dregs of the populace, of peasants and mechanics, of boys and women, of beggars and slaves; the last of whom might sometimes introduce the missionaries into the rich and noble families to which they belonged. These obscure teachers (such was the charge of malice and infidelity) are as mute in public as they are loquacious and dogmatical in private. Whilst they cautiously avoid the dangerous encounter of philosophers, they mingle with the rude and illiterate crowd, and insinuate themselves into those minds, whom their age, their sex, or their education has the best disposed to receive the impression of superstitious terrors.

“This favourable picture, though not devoid of a faint resemblance, betrays, by its dark colouring and distorted features, the pencil of an enemy. As the humble faith of Christ diffused itself through the world, it was embraced by several persons who derived some consequences from the advantages of nature or fortune. Aristides, who presented an eloquent apology to the emperor Hadrian, was an Athenian philosopher. Justin Martyr had sought divine knowledge in the schools of Zeno, or Aristotle, of Pythagoras, and of Plato, before he fortunately was accosted by the old men, or rather the angel, who turned his attention to the study of the Jewish prophets. Clemens of Alexandria had acquired much various reading in the Greek, and Tertullian in the Latin language; Julius Africanus and Origen possessed a very considerable share of the learning of their times; and, although the style of Cyprian is very different from that of Lactantius, we might almost discover that both those writers had been public teachers of rhetoric. Even the study of philosophy was at length introduced among the Christians, but it was not always productive of the most salutary effects; knowledge was as often the parent of heresy as of devotion, and the description which was designed for the followers of Artemon may, with equal propriety, be applied to the various sects that resisted the successors of the apostles. ‘They presume to alter the holy scriptures, to abandon the ancient rule of faith, and to form their opinion according to the subtle precepts of logic. The science of the church is neglected for the study of geometry, and they lose sight of Heaven while they are employed in measuring the earth. Euclid is perpetually in their hands. Aristotle and Theophrastus are the objects of their admiration; and they express an uncommon reverence for the works of Galen. Their errors are derived from the abuse of the arts and sciences of the infidels, and they corrupt the simplicity of the Gospel by the refinements of human reason.’

“Nor can it be affirmed with truth that the advantages of birth and fortune were always separated from the profession of Christianity. Several Roman citizens were brought before the tribunal of Pliny, and he soon discovered that a great number of persons of every order of men in Bithynia had deserted the religion of their ancestors. His unsuspected testimony may, in this instance, obtain more credit than the bold challenge of Tertullian, when he addresses himself to the fears as well as to the humanity of the proconsul of Africa, by assuring him. that, if he persists in his cruel intentions, he must decimate Carthage, and that he will find among the guilty many persons of his own rank, senators and matrons of

noblest extraction, and the friends or relations of his most intimate friends. It appears, however, that about forty years afterwards the emperor Valerian was persuaded of the truth of this assertion, since in one of his rescripts he evidently supposes that senators, Roman knights, and ladies of quality were engaged in the Christian sect. The church still continued to increase its outward splendour as it lost its internal purity; and in the reign of Diocletian the palace, the courts of justice, and even the army concealed a multitude of Christians who endeavoured to reconcile the interests of the present with those of a future life.

And yet these exceptions are either too few in number, or too recent in time, entirely to remove the imputation of ignorance and obscurity which has been so arrogantly cast on the first proselytes of Christianity. Instead of employing in our defence the fictions of later ages, it will be more prudent to convert the occasion of scandal into a subject of edification. Our serious thoughts will suggest to us that the apostles themselves were chosen by providence among the fishermen of Galilee, and that the lower we depress the temporal condition of the first Christians, the more reason we shall find to admire their merit and success. It is incumbent on us diligently to remember that the kingdom of heaven was promised to the poor in spirit, and that minds afflicted by calamity and the contempt of mankind cheerfully listen to the divine promise of future happiness; while, on the contrary, the fortunate are satisfied with the possession of this world; and the wise abuse in doubt and dispute their vain superiority of reason and knowledge."

Similarly Hallam in his 'History of the Middle Ages' speaks of the class from which the early Christians were drawn.

The reason why Christianity became the religion of all citizens of Rome i.e. of the higher classes as well was because of two extraneous reasons. The first reason was the making of Christianity state religion which meant the proscribing every other religion. The second reason was the change in the law of inheritance by the Roman Emperors after they became converts to Christianity a preferential right to inherit the property of the parents over a child which had remained pagan.

This only shows that the people to whom Christianity made a natural appeal were the poorer classes and it is among them that Christianity first spread without the help of law or other extraneous advantage.

The early Christian Missionary began by reversing this natural order of things. I call it natural because it befits human psychology. Prof. Thorndyke¹ a great authority on Psychology says—"That a man

¹ Psychology, Vol. 1.

thinks is a biological fact. But *What* he thinks is a sociological fact". This profound observation, the early Christian Missionary absolutely overlooked. Every kind of thought is not agreeable to every person. This is evident from the fact that capitalism appeals to the rich and does not appeal to the poor. On the contrary socialism appeals to the poor but does not appeal to the rich. This is because there is a very intimate connection between the interests of a man and the thoughts which have an adverse effect on his interests. He will not give them any quarters in his mind. Applying this analysis of the working of the human mind it is clear that the Brahmin and the higher classes could never be receptive to the Christian doctrine. It preaches brotherhood of man and when applied leads to equality of man. Now the interests of the Brahmin and the higher classes is to maintain the system of Chaturvarna—which is a system based upon inequality and which in the scale gives them a higher rank, greater opportunity to dominate and exploit the others. How can they be expected to accept Christianity? It means a surrender of their power and prestige. To have pursued them has been a vain effort and if the pursuit had been continued I am sure there would have been no Christians in India at all. The number of Christians we see in India today is due to the fact that some Christian Missionaries saw the futility of this. If they had not realized this error and started to win over the lower classes, there would have been no Christians in India at all. Even today hundreds and thousands of high caste Hindus take advantage of Christian schools, Christian colleges and Christian hospitals. How many of those who reap these benefits become Christian? Every one of them takes the benefit and runs away and does not even stop to consider what must be the merits of a religion which renders so much service to humanity.

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CHAPTER 30

THE CONDITION OF THE CONVERT

I. Gandhi and his opposition to Christianity.

II. Christianity and social service. III. Christianity and Paganism.

IV. Christianity and the spirit of the Convert.

V. Christian Community and its social standing.

I

In 1928, there was held a meeting of the International Fellowship, a body devoted to promoting fellow feeling among persons of different faiths. It was attended by Christian missionaries as well as by Hindus and Moslems. Mr. Gandhi was also present. At this meeting the question was raised as to how far the fellowship could remain true to its ideal, if those who belonged to it wished to convert others to their own faith. In the debate that followed, Mr. Gandhi spoke. His friend Mr. C. F. Andrews, writes concerning the discussion as follows :¹

“At the back of this question, there was a definite challenge to the whole Christian Missionary position in India. Missionaries of a liberal type of mind had been finding great joy in the Fellowship Then came Mahatma Gandhi’s declaration. He stated that in doing so, or in joining the Fellowship, if there was the slightest wish, or even the slightest thought at the back of the mind, to influence, or convert, any other member of the Fellowship, then the spirit of the movement could be destroyed. Any one who had such a wish ought to leave the Fellowship”.

On being further questioned by Christian Missionaries ‘Whether if they possessed the greatest treasure in the World, they would be wrong in wishing to share it’, Mr. Gandhi was quick to rebuff their presumption. Mr. Andrews says—“he was adamant”. “Even the idea of such a desire was wrong”, he said emphatically; “and he would not move from that position at all”.

¹ “The Basis of Inter-Religious Fellowship” by C. F. Andrews in “The Young Men of India, Burma and Ceylon.” June 1928, Vol. XI, No. 6.

Mr. Gandhi's opposition to Christian conversion is by now quite well known. And since 1936 he has become quite a virulent adversary of all missionary propaganda. He particularly objects to the missionaries spreading the Christian Gospel among the Untouchables. His antagonism to Christian Missions and the conversion of Untouchables to Christianity is based on certain propositions which have been enunciated by him in quite unmistakable terms. I think the following four propositions may be taken to sum up his position. I give them in his own words. He says :

- I. "My position is that all religions are fundamentally equal. We must have the same innate respect for all religions as we have for our own. Mind you, not mutual toleration but equal respect."¹
- II. "All I want them (the Missionaries) to do is to live Christian lives, not to annotate them.² Let your lives speak to us. The blind who do not see the rose, perceive its fragrance. That is the secret of the Gospel of the rose. But the Gospel that Jesus preached is more subtle and fragrant than the Gospel of the rose. If the rose needs no agents, much less does the Gospel of Christ need agents".³

As to the work of the Christian Missions he says :

- III. "The social work of the missions is undertaken not for its own sake, but as an aid to the salvation of those who receive social service.⁴..... While you give medical help, you expect the reward in the shape of your patients becoming Christians."⁵

As to the Untouchables he says—

- IV. "I do maintain that the vast masses of Harijans and for that matter of Indian humanity, cannot understand the presentation of Christianity, and that, generally speaking, conversion, wherever it has taken place, has not been a spiritual act in any sense of the term. They are conversions of convenience.⁶ They (the Harijans) can no more distinguish between the relative merits (words omitted ?) than can a cow. Harijans have no mind, no intelligence, no sense of difference between God and no-God."⁷

Gandhi advises the Christian Missions in the following somewhat offensive terms as to what would be proper for them to do. He says—

"If Christian Missions will sincerely play the game They must withdraw from the indecent competition to convert the Harijans

"Just forget that you have come to a country of heathens and (to) think that they are as much in search of God as you are; just feel that you are not going there to give your spiritual

¹ Harijan, 1936, p. 330. ² Harijan, 1936, p. 353. ³ Harijan, April 1937. p. 86. ⁴ Harijan for 1937, p. 137. ⁵ Harijan, 18th July 1936, p. 178. ⁶ Harijan for 1936, pp. 140-41. ⁷ Harijan for 1936, p. 360.

goods to them, but that you will share worldly goods of which you have a good stock. You will then do your work without mental reservation and thereby you will share your spiritual treasures. The knowledge that you have this mental reservation, i.e. you are expecting a man to be a convert in return for service, creates a barrier between you and me."

"The history of India would have been written differently if the Christians had come to India to live their lives in our midst and permeate ours with their aroma, if there was any."²

This hostility of Mr. Gandhi to Christian Missions and their work is of very recent origin. I do not know if it can be traced beyond the Yeola Decision.

It is as recent as it is strange. I do not know of any declaration made by Mr. Gandhi expressing in such clear and determined manner opposition to the conversion of the Untouchables to Islam. The Muslims have made no secret of their plan to convert the Untouchables. The plan was given out openly from the Congress platform by the late Maulana Mohomed Ali when he presided over the annual session of the Congress held at Coconada in 1923. In his Presidential address the Maulana pointed out in clear terms that :

"The quarrels (between Hindus and Musalmans) about *Alams* and *pipal* trees and musical processions are truly childish; but there is one question which can easily furnish a ground for complaint of unfriendly action if communal activities are not amicably adjusted. This is the question of the conversion of the suppressed classes, if Hindu Society does not speedily absorb them. The Christian missionary is already busy and no one quarrels with him. But the moment some Muslim missionary society is organized for the same purpose there is every likelihood of an outcry in the Hindu press. It has been suggested to me by an influential and wealthy gentleman who is able to organize a (Muslim) missionary society on a large scale for the conversion of the suppressed classes, that it should be possible to reach a settlement with leading Hindu gentlemen and divide the country into separate areas where Hindu and Muslim missionaries could respectively work, each community preparing for each year, or longer unit of time, if necessary, an estimate of the numbers it is prepared to absorb, or convert. These estimates would, of course, be based on the number of workers and funds each had to spare, and tested by the actual figures of the previous period. In this way each community would be free to do the work of absorption and conversion, or rather of reform, without chances of collision with one another".

Nothing can be more explicit than this. Nothing can be more businesslike and nothing can be more materialistic than this pronouncement from the Congress platform. But I am not aware that Mr. Gandhi has ever condemned it in the way in which he now condemns the endeavour of Christian Missions to convert the Untouchables. Nobody from Gandhi's camp protested against this outrageous suggestion. Probably they could not because the Congress Hindus believed that it was their duty to help the Musalmans to fulfil what they regarded as their religious duty, and that conversion is a religious duty with the Musalman nobody can deny. At any rate the Hindu leaders of Congress, as stated by George Joseph in 1920, held "that it was the religious duty of the Hindus to help Muslims in the maintenance of the Turkish Khilafat over the Arabs in the Jazirut-al-Arab because Muslim theologians and political leaders assured us that it was their religious duty. It went against the grain because it meant the maintenance of a foreign Government over Arabs; but Hindus had to stomach it because it was urged on them as part of the religious duty of the Hindus¹. If this is true why should Gandhi not help the Christians to carry on conversion because conversion is also a fulfilment of their religious duty.

Why there should be a different measuring rod today because it is the Christians that are involved is more than one can understand. Mr. George Joseph was well within bounds when he said :

"The only difference is that there are 75 millions of Muslims and there are only 6 millions of Christians. It may be worth-while making peace with Muslims because they can make themselves a thorn in the side of Nationalism : Christians do not count, because they are small in numbers."

That Mr. Gandhi is guided by such factors as the relative strength of the Musalmans and Christians, their relative importance in Indian politics, is evident from the terms he uses in condemning what he calls "propaganda by vilification". When such a propaganda emanates from Christian missionaries he uses the following language to condemn it. (*Quotation is not there in the MS.—Ed.*).

On the other hand when he comes out against a propaganda emanating from the Muslim all that he says :²

"It is tragic to see that religion is dragged down to the low level of crude materialism to lure people into mission which the most cherished sentiments of millions of human beings are trodden under foot.

¹ Harijan, 8th February 1936, p. 415.

² Harijan, August 8, 1936.

"I hope that the pamphlet has no support from thoughtful Musalmans who should read it to realize the mischief such pamphlets can create.

"My correspondent asks me how to deal with the menace. One remedy I have applied, viz, to bring hereby the villifying propaganda to the notice of the responsible Muslim world. He himself can claim the attention of the local Musalman leaders to the publication. The second and the most important thing to do is purification from within. So long as the position of untouchability remains in the Hindu body it will be liable to attacks from outside. It will be proof against such attacks only when a solid and impregnable wall of purification is erected in the shape of complete removal of untouchability."

The ferocity of the former and the timidity and softness of the latter are obvious enough. Surely Gandhi must be regarded as an astute "respector of persons".

But apart from this difference in his attitude towards Muslim and Christian propaganda, have Mr. Gandhi's arguments against Christian Missions, which I have summarized above, any validity? They are just clever. There is nothing profound about them. They are the desperate arguments of a man who is driven to wall. Mr. Gandhi starts out by making a distinction between equal tolerance and equal respect. The phrase "equal respect" is a new phrase. What distinction he wants to make thereby is difficult to recognize. But the new phraseology is not without significance. The old phrase "equal tolerance" indicated the possibility of error. "Equal respect" on the other hand postulates that all religions are equally true and equally valuable. If I have understood him correctly then his premise is utterly fallacious, both logically as well as historically. Assuming the aim of religion is to reach God—which I do not think it is—and religion is the road to reach him, it cannot be said that every road is sure to lead to God. Nor can it be said that every road, though it may ultimately lead to God, is the right road. It may be that (all existing religions are false and) the perfect religion is still to be revealed. But the fact is that religions are not all true and therefore the adherents of one faith have a right, indeed a duty, to tell their erring friends what they conceive to be the truth. That Untouchables are no better than a cow is a statement which only an ignoramus, or an arrogant person, can venture to make. It is arrant nonsense. Mr. Gandhi dares to make it because he has come to regard himself as so great a man that the ignorant masses will not question his declarations and the dishonest intelligentsia will uphold him in whatever he says. Strangest part of his argument lies in wishing to

share the material things the Christian Missions can provide. He is prepared to share their spiritual treasures provided the Missionaries invite him to share their material treasures "without obligation".* (What he minds is an exchange.) It is difficult to understand why Mr. Gandhi argues that services rendered by the Missionaries are baits or temptations, and that the conversions are therefore conversions of convenience. Why is it not possible to believe that these services by Missionaries indicate that service to suffering humanity is for Christians an essential requirement of their religion? Would that be a wrong view of the process by which a person is drawn towards Christianity? Only a prejudiced mind would say, Yes.

All these arguments of Mr. Gandhi are brought forth to prevent Christian Missionaries from converting the Untouchables. No body will deny to Mr. Gandhi the right to save the Untouchables for Hinduism. But in that case he should have frankly told Missions "Stop your work, we want now to save the Untouchables, and ourselves. Give us a chance!" It is a pity that he should not have adopted this honest mode of dealing with the menace of the Missionaries. Whatever anybody may say I have no doubt, all the Untouchables, whether they are converts or not, will agree that Mr. Gandhi has been grossly unjust to Christian Missions. For centuries Christian Missions have provided for them a shelter, if not a refuge.

This attitude of Mr. Gandhi need not deter either the missionaries or the Untouchables. Christianity has come to stay in India and, unless the Hindus in their zeal for nationalism misuse their political, social and economic power to suppress it, will live and grow in numbers and influence for good.

II

What Christianity has achieved in India therefore becomes a proper subject for examination from the points of view both of Christian Missions and of the Untouchables.

That Christian Missions have been endeavouring to provide the *corpus sanum* for the people of India and to create the *Mens Sana* among those who have entered the fold is undeniable. It would be difficult in this place to describe all the activities carried on by Christian Missions in India. The work done by the Missionaries falls under five heads: (1) among children, (2) among young men, (3) among the masses, (4) among women and (5) among the sick.

The work done is vast. The following figures will give an idea of the scale on which the work for education and relieving sickness is being carried on.

I. CHRISTIAN MEDICAL WORK¹

1.	Hospitals	..	256
2.	Dispensaries	..	250
3.	Sanatoriums	..	10
4.	Leper Homes	..	38
5.	Medical Schools	..	3
6.	Number of Hospital Beds	..	12,000
7.	Number of Sanatorium Beds	..	755
8.	Doctors, Foreign	..	350
9.	Doctors, National	..	390
10.	Nurses, Foreign	..	300
11.	Nurses, National	..	900
12.	Student Nurses	..	1,800
13.	Operations, Major	..	44,000
14.	Obstretics, Total	..	32,000
15.	In—Patients	..	285,000
16.	Out—Patients	..	2,600,000

II. CHRISTIAN EDUCATION²

	Institutions	Students
1. Elementary Schools	13,330	611,730
2. Secondary Schools	302	67,229
3. Colleges	31	11,162
4. Theological Colleges and Training Schools	25	556
5. Bible Training Schools	74	2,855
6. Teacher Training Schools	63	3,153

What have the Hindus to show as against this? Historically speaking, service to humanity is quite foreign to Hinduism and to Hindus. The Hindu religion consists primarily, of rituals and observances. It is a religion of temples. Love of man has no place in it. And without love of man how can service to man be inspired? This is well reflected in the purposes and objects for which Hindu charities are given. Very few people, even in India, know the extent to which caste determines the scope and objects of charities provided by the Hindus. It is difficult to get full and precise facts relating to Hindu Charities. However, data collected several years ago, in the City of Bombay, throws a flood of light on the subject. (*Data not typed in the MS.*)

¹ In India, Burma and Ceylon.

² In India.

That caste can influence doctors in the ministration to the sick was a charge made among certain doctors in Bombay in 1918 during the influenza epidemic.

Comparatively speaking, the achievements of Christian Missions in the field of social service are very great. Of that no one except a determined opponent of every thing Christian can have any doubt. Admitting these great services, one may raise two questions. Are these services required for the needs of the Indian Christian Community? Are there any needs of the Indian Christian Community which have not been attended to by Missions?

It is necessary to bear in mind that Indian Christians are drawn chiefly from the Untouchables and, to a much less extent, from low ranking Shudra castes. The Social Services of Missions must, therefore, be judged in the light of the needs of these classes. What are those needs?

The services rendered by the Missions in the fields of education and medical relief are beyond the ken of the Indian Christians. They go mostly to benefit the high caste Hindus. The Indian Christians are either too poor or too devoid of ambition to undertake the pursuit of higher education. High schools, colleges and hostels maintained by the Missions are, therefore, so much misplaced and misapplied expenditure from the point of view of the uplift of Indian Christians. In the same way much of the medical aid provided by the Missions goes to the Caste Hindus. This is especially the case with regard to hospitals.

I know many missionaries realize this. None the less this expenditure is being incurred from year to year. The object of these services is no doubt to provide occasion for contact between Christian Missionaries and high caste Hindus. I think it is time the Missionaries realized that the pursuit of the Caste Hindus in the hope of converting them to Christianity is a vain pursuit which is sure to end in complete failure. Mr. Winslow, I think, is correct when he concludes his survey of the attitude of the intelligentsia of India towards Christianity by saying:

“.... . Whilst the work of Duff and the Serampore Missionaries resulted in some notable conversions and it seemed for a time as though English education were going to lead to many and rapid accessions to the Christian Church from amongst those who received it, a reaction soon set in and the movement died down. Its place was taken by the Theistic Samajes, and in particular by the Brahmo Samaj in Bengal, which enabled those Hindus who through the influence of Western thought had become dissatisfied with idolatry and caste to surrender these without forfeiting entirely their

place within the Hindu system. For many years Christian missionaries hoped and believed that the Brahmo Samaj would prove a half-way house to Christianity and that many of its members would in course of time become dissatisfied with an intermediate position and accept the Christian Faith, but this hope has in the main been disappointed, though a few notable converts have come from the rank of the Samajes.

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What then, does the educated Indian of today, more particularly the Brahman, think of Christ? It is perhaps foolish to try to generalize Yet there are certain broad features in the picture which may be safely described There is a wide-spread acceptance of the main principles of Christ's teaching, particularly of His ethical teaching. It would be generally conceded that the Sermon on the Mount, while not necessarily containing any thing which might not be paralleled from other sources, is unsurpassable as a directory for human conduct Side by side with this widespread acceptance of Christ's teaching goes a very general reverence for His life and character

On the other hand, the claim that Christ was, and is, in a *unique* sense divine is not one which the majority of Hindus, even of those deeply attracted by His life, would be prepared to accept (They) would set Him side by side with (their) own great Prophet, the Buddha. But the Christian claim that He, and He only, is God Incarnate, and that salvation is to be won through faith in Him, and Him alone, (they) reject as exclusive and narrow Thus the Christian claim to possess the one way of salvation arouses in India an almost instinctive repugnance The characteristic religious attitude of the educated Hindu to day (is) still, whilst he greatly reverences Christ, and accepts the main principles of His teaching, he is quite content to remain a Hindu."

I have no doubt that this correctly sums up the position. If this is so then the money and energy spent by the Christian Missions on education and medical relief is misapplied and do not help the Indian Christians.

The Indian Christians need two things. The first thing they want is the safeguarding of their civil liberties. The second thing they want is ways and means for their economic uplift. I cannot stop to discuss these needs in all their details. All I wish to point out is that this is a great desideratum in the social work the Christian Missions are doing in India.

While what has been accomplished by Christian Missionaries in the field of education and medical aid is very notable and praiseworthy there still remains one question to be answered. What has Christianity achieved in the way of changing the mentality of the Convert? Has the Untouchable convert risen to the status of the touchable? Have the touchable and untouchable converts discarded caste? Have they ceased to worship their old pagan gods and to adhere to their old pagan superstitions? These are far-reaching questions. They must be answered and Christianity in India must stand or fall by the answers it can give to these questions.

The following extracts taken from the memorandum submitted by the Christian Depressed Classes of South India to the Simon Commission throw a flood of light on the position of the Untouchables who have gone into the Christian fold so far as the question of caste is concerned.

“We are by religion Christians, both Roman Catholics and Protestants. Of the total population of Indian Christians of the Presidency the converts from the Depressed Classes form about sixty per cent. When the Christian religion was preached in our lands, we, the Pallas, Pariahs, Malas, Madigas, etc., embraced Christianity. But others of our stock and origin were not converted and they are known to be the Hindu Depressed classes, being all Hindus or adherents to the Hindus in religion. In spite, however, of our Christian religion which teaches us fundamental truths the equality of man and man before God, the necessity of charity and love for neighbours and mutual sympathy and forbearance, we, the large number of Depressed class converts remain in the same social condition as the Hindu Depressed Classes. Through the operation of several factors, the more important of them being the strong caste retaining Hindu mentality of the converts to Christianity, and the indifference, powerlessness and apathy of the Missionaries, we remain today what we were before we became Christians—Untouchables—degraded by the laws of social position obtaining in the land, rejected by caste Christians, despised by Caste Hindus and excluded by our own Hindu Depressed Class brethren.

“The small proportion of the Christians of South India, whose representatives are found in the Legislative Council, say, in Madras, are caste Christians, a term which sounds a contradiction, but which, unfortunately, is the correct and accepted description of high caste converts from Hinduism, who retain all the rigour and

exclusiveness of caste. Particularly in the Mofussil parts and the villages, they who ought to be our fellow Christians follow all the orthodox severity and unreason of caste exclusion; they damn us as “Panchamas or Pariahs” and ignore our Christian claims and in the fulness of their affluence, power, prestige and position exclude us poorer Christians from society, Frequent outbursts of anti-Panchama activity are the scandal of the South Indian Christian life, and the least attempt on our part to better our lot, forward our progress and assert our elementary rights call down the wrath and fury of every man—official and non-official—Christian or Hindu, who claims a foolish superiority of birth. Denying the very foundations of Christianity, contrary to all love and charity and brotherhood, our “fellow-Christians” treat us even in the Churches as Untouchables and Unapproachables, and relegate us to separate accommodation removed from their precincts and barricade their portions by means of iron rails and walls and fencings. There are several such churches.

“In the matter of reception of sacraments, a most ridiculous segregation is practised to avoid pollution; our claims to educate our children and train them for life are ruthlessly denied and through sheer prejudice our children are denied access to schools, convents, hostels, boarding houses, or if admitted, are assigned an ignominious separate accommodation. Tracing his descent from high caste Hindu progenitors the caste Christian looks for social status and position and finds favour in the eyes of his fellow caste-men, the Hindus. He treats the Depressed Class Christians in the same way as the Hindu Depressed Classes are treated by the Hindu Caste people”.

What is stated here in general terms may be made concrete by reference to the two following incidents. (*Incidents not mentioned in the MS.—Ed.*).

This is a terrible indictment. It is a relief to know that it does not apply to all parts of India nor does it apply to all denominations of Christians. The picture is more true of the Catholics than of the Protestants. It is more true of Southern India than it is of the Northern or even Central India. But the fact remains that Christianity has not succeeded in dissolving the feeling of caste from among the converts to Christianity. The distinction between touchables and untouchables may be confined to a corner. The Church School may be open to all. Still there is no gainsaying the fact that caste governs the life of the Christians as much as it does the life of the Hindus. There are Brahmin Christians and Non-Brahmin Christians. Among Non-Brahmin Christians there are Maratha Christians, Mahar Christians, Mang Christians and Bhangi Christians. Similarly in the South there are

Pariah Christians, Malla Christians and Madiga Christians. They would not intermarry, they would not inter-dine. They are as much caste ridden as the Hindus are.

There is another thing which shows that Christianity has not been effective in wiping paganism out of the converts. Almost all the converts retain the Hindu forms of worship and believe in Hindu superstition. A convert to Christianity will be found to worship his family Gods and also the Hindu gods such as Rama, Krishna, Shankar, Vishnu, etc. A convert to Christianity will be found to go on a pilgrimage to places which are sacred to the Hindus. He will go to Pandharpur, and make offerings to Vithoba. He will go to Jejuri and sacrifice a goat to the blood-thirsty god, Khandoba. On the Ganesh Chaturthi he will refuse to see the moon, on a day of eclipse he will go to the sea and bathe—superstitions observed by the Hindus. It is notorious that the Christians observe the social practices of the Hindus in the matter of births, deaths and marriages. I say nothing about the prevalence of the Hindu social practices among the Christians. In as much as these social practices have no religious significance it matters very little what they are. But the same cannot be said of religious observances. They are incompatible with Christian belief and Christian way of life. The question is why has Christianity not been able to stamp them out?

The answer is that the Christian Missionaries although they have been eager to convert persons to Christianity have never put up a determined fight to uproot paganism from the Convert. Indeed they have tolerated it.

The retention by the Converts to Christianity of Paganism is primarily the legacy of the Jesuit Missions which were the earliest to enter the field in modern times. The attitude of the Catholic mission towards paganism has come down from the outlook and the ways and means adopted by the Madura Mission. This Mission was founded by an Italian Jesuit Father Robert de Nobili. He came to India in 1608. Having learned of the failure of Francis Xavier he worked out a new plan. He decided to follow the footsteps of the Apostle Paul who observed that he must bring all things to all men that he might save some. Fortified with this belief he went to the Court of Ferumal Naik King of Madura and founded the famous Madura Mission. The way he started is graphically told by Dr. J. N. Ogilvie in his 'Apostles of India' in the following passage:

“Through Madura there ran one day a striking piece of news. It was told how a strange ascetic from some far land had arrived, drawn to the holy city by its great repute, and that he had taken up

his abode in the Brahman quarter of the city. Soon visitors flocked to the house of the holy man to see what they should see, but only to find that the Brahman's servants would not permit their entrance. 'The master,' they said, 'is meditating upon God. He may not be disturbed.' This merely helped to whet the people's desire and increase the fame of the recluse. The privacy was relaxed, and daily audiences were granted to a privileged few.

"Seated cross legged on a settee the Sanyasi was found by his visitors, conforming in every thing to Brahman usage. Over his shoulder hung the sacred cord of five threads, three of gold to symbolise the Trinity, and two of silver representing the body and soul of our Lord, and from the cord was suspended a small cross. Conversation revealed the Sanyasi's learning, and observation and keen inquiry certified to this frugal and holy life. One meal a day, consisting of a little rice and milk and acid vegetables, was all his food. Soon not only ordinary Brahmins came to see him, but nobles also; and a great bound in his reputation took place when, on being invited to the palace by the King, the Sanyasi declined the invitation lest on going forth the purity of his soul should be sullied by his eyes lighting upon a woman! Never was a holier saint seen in Madura. Where the life bore such testimony to his holiness, how could his teaching be other than true! His statement that he was a "Roman Brahman" of the highest caste was accepted, and to remove any possible doubts that might linger, an ancient discoloured parchment was produced, which showed how the "Brahmans of Rome" had sprung direct from the god Brahma, and were the noblest born of all his issues. To the genuineness of the document the Sanyasi solemnly swore, and with open minds the people listened to his teaching.

"Book after book was written by the able and daring writer, in which he grafted a modified Christian doctrine on the Hindu stem. Most notable of all such efforts was the forging of a "Fifth Veda" to complete and crown the four Vedas received by Brahmins as direct revelations from heaven. It was an amazing piece of daring as bold and hazardous as it would be for a Hindu to forge for Christian use a fifth Gospel. Yet the forgery held its place for one hundred and fifty years."

"Brahman disciples were soon freely won; baptisms became fairly numerous, though the identity of the rite with the baptism administered by earlier European Missionaries was disguised; and so far as outward tokens went, the new Missionary method was proving a success. Without a doubt progress was greatly facilitated by the highly significant concessions that were made to Hinduism,

especially in connection with Caste. According to de Nobili, caste had little signification. To him it was in the main a social observance, and so regarding it he saw no reason for compelling his converts to break with their caste fellowship or observances. His converts retained the 'Shendi' or tuft of hair which marked the caste Hindu, they wore a sacred cord indistinguishable from that of their Hindu neighbours, and they bore an oval caste mark on their brow, the paste composing or being made of the ashes of sandalwood instead of as formerly of the ashes of cow dung.

"For forty years de Nobili lived his life: a life of daily hardship, sacrifice and voluntary humiliation, such as has seldom been paralleled. On February 16, 1656, he died, having reached his eightieth year. Nearly one hundred thousand converts have been attributed to him, directly or indirectly, and allowing for much exaggeration their number must have been very great.

"In 1673, John de Britto, belonging to one of the noblest families of Portugal, sailed for India. He is now a saint in the Roman Catholic Church. William Robinson of the London Missionary Society and belonging to our own day said of him, "His eminence as a disciple, intrepid, selfless and enduring in all great qualities that add to the vigour of the Christian life, is assured.

"He and the Christian converts, after the disruption of the Kingdom of Madura and the establishment of petty Kingdoms, were mercilessly persecuted.

"Yet in spite of all that enemies could do, the worker went steadily on with his accepted duty, and wherever he journeyed the same tale of success was told. To the power of the message was added the charm of the messenger, and his converts were numbered by thousands. When by his hands a prince of Marava, Tadia Tevar, was baptized, measures were quickly taken to secure de Britto's death. He was mercilessly done to death on February 4, 1693.

"Father Joseph Beschi, an Italian priest and successor to de Britto, reached India in 1707. Beschi adhered to the policy of the "Roman Brahmans," but in his missionary practice differed considerably from his predecessors. De Nobili, so long as it had been possible, acted the part of a devout recluse, a holy Guru; de Britto had been chiefly the wandering Sanyasi, the holy pilgrim and in their personal life both had practised the greatest asceticism and simplicity. But Father Beschi followed a new line. If Hinduism had its ascetics, it had also its high priests, who lived in luxurious comfort, and whose outward surroundings were marked by pomp and circumstance. This was the line chosen by Beschi by

magnificence he would dazzle the people. When he travelled it was a costly palanquin. In advance went an attendant bearing an umbrella of purple silk, at each side ran servants with gorgeous fans of peacock's feathers, and in the palanquin, upon a splendid tiger skin and clad in rich and picturesque robes, reclined the mighty Guru! But Beschi was no empty headed poseur. His method was adopted with a full understanding of the people and with many it worked well. Nor does his fame rest on these extravagances; it is based upon his wonderful scholarship. A born linguist he attained so complete a mastery over Tamil that he became the ablest Tamil scholar of his time. No native scholar was his equal. "High" Tamil as well as "Low", the Tamil of the scholarly Brahman as well as the colloquial language of the people, were equally familiar to Beschi. Dictionaries, grammars, works of poetry and treatises in prose issued from his busy pen, and they are read and valued to the present day. When first issued they delighted the native world of Southern India. So charmed with his learning was Chanda Sahib, the Nabob of Vellore, that he appointed him to high office in the State, and for his support presented him with four villages in the Trichinopoly district, which brought in a revenue of 12,000 rupees. All this fame and material prosperity Beschi loyally used for the furtherance of the Mission. Its palmiest days were in his time, and its rapid decline, leading to its ultimate collapse, dates from about the period of Father Beschi's death, which occurred in 1742."

These Madura Missionaries, in their anxiety to present Christianity to the convert free from any Western customs that might give offence had tolerated among their converts several Hindu Customs as concessions to the converts. Among these concessions were the retention of the sacred thread and the mark on the forehead; the marrying of children before they attained puberty; the refusal of the sacraments to females at certain times, bathing as a ceremonial purification, and other points; and the refusal to marry and dine outside caste. These were called the "Malbar Rites". They were abrogated on 12th September 1744, by the Bull *Omnium sollicitudinum* issued¹ By Pope Benedict XIV and since then every Roman Catholic Missionary is required to take an oath to obey this Bull. All the same the tradition remained that pagan ways and pagan beliefs were not incompatible with Christian faith.

It is no doubt true that a great obstacle in the way of the Missionaries in the 16th Century was not only the evil example shown by bad Europeans but also the dislike with which European customs

¹Krishna District Manual, p. 282.

were viewed by Hindus and Musalman alike. A wicked European of course caused Scandal, but a devout European, who ate beef and drank spirits, offended against Brahmanical and Mohammadan tenets and shocked native prejudices. Thus Christianity was despised as the religion of the 'Feringis' as Europeans were contemptuously termed. To have cleansed the Christian Missionaries of these impurities and infirmities was very necessary and not only justifiable but commendable. But it was quite shameful and sinful for these Jesuit Missionaries in their zeal for conversion to have gone to the length they did namely, not to mind what the convert thought and did and how he lived so long as he was ready to be baptized, acknowledge Jesus as his saviour and call himself a Christian.

What was the attitude of the Luthern Mission which came into the field soon after the Madura Mission to this great question. Swartz the greatest missionary in India who by his piety became the peace maker between warring kings was not a protagonist of the view adopted by the Madura Mission. But did he believe that Caste and Christianity were two incompatible things and that a true Christian could not believe in Caste much less could he make it a plan of his life ? Whatever was his view of the question he certainly did not carry on a campaign in support of it.

What about the Protestant Missions? What attitude did they take towards this question ? They have first of all an excuse on their side to plead if they wish to. That they came late on the scene. So far as history goes there is truth behind the assertion that they were prevented from joining the field until 1813. This is due entirely to the attitude taken by the East India Company towards Mission work in their territories in India.

The attitude of all the European powers who went to India were in the beginning of their career greatly fired with an enthusiasm for the conversion of the Indians to the Christian Faith.

Speaking of the Portuguese they were of course the most resolute in their propagation for Christianity and suppression of paganism. Albuquerque suppressed Suti within Portuguese India in 1510 and anticipated William Bentick by fully three hundred years. As soon as Francis Xavier called out in despair the aid of John III of Portugal for forcible conversion it was given. In the Dutch East Indies the Dutch Government which was a protestant power, similar enthusiasm was displayed and strong, if not drastic, measures were adopted. The principle of state aid for Christian propaganda was accepted in Ceylon right from 1643 when the Dutch occupied that island. The erection of temples and pagan pilgrimages were forbidden, Government

appointments were reserved for Christians and non-attendance at religious schools treated as state offence. By 1685, 3,20,000 Cinhalese had yielded to these methods. The same religious fervour was shown by the East India Company. In 1614, an young Indian had been brought to London by the Captain of the Company's ship. The Company educated him at its own expense 'to be an instrument in converting some of his nation'. His baptism was performed at Poplar. The Lord Mayor of London and the Directors of the Company attended the baptism. King James I chose for him the name of Peter and the priest who baptised him presented him to the Audience as 'the first fruit of India'. In 1617 there took place in Surat the conversion of a Mahomedan. Thus the career of the Company began with conversions at both ends. In 1657 the Directors applied to the Universities of Cambridge and Oxford for a Chaplain 'the Company having resolved to endeavour the advance and spreading of the Gospel in India'. In 1698 the Company very readily accepted a clause in her Charter which required the Company's Chaplains 'should apply themselves to learn the languages of the countries, the better to enable them to instruct the Gentoos, who should be the servants of the Company or their agents, in the Protestant religion'.

Suddenly after 1698 the attitude of the Company seems to have undergone a significant though gradual change. While the Portugal and the Dutch Governments were going on with top speed the East India Company was slowing down. In the very year the Company seems to have been of two minds on this question. While it accepted an obligation to train its chaplains in vernaculars of India so as to make them potent instruments of propaganda it allowed a prayer to be drawn up for the Company which said 'that, we adorning the Gospel of our Saviour in all things, these Indian natives among whom we dwell, beholding our good works, may be won over'. This prayer continued to be offered, certainly till 1750. A close scrutiny of the wording of the prayer suggests if it does not avow the complete abandonment of the original idea of active proselytising. This attitude of the Company soon became a matter of controversy. Friends of conversion were waiting for an opportunity to force the Company to give up this attitude. The Regulating Act of 1773 and Pitt's East India Act had put an end to a 'State disguised as a Merchant' and brought the Company the chartered agent of Parliament to carry on the Government of the Indian Territories. It was provided under the Act that the charter of the Company should be only for 20 years and should be renewed thereafter. The year 1793 was of immense importance since the revision of the charter of the Company was to fall due in that year.

To those who favoured the diffusion of Christian knowledge the task seemed quite easy. Wilberforce, who was in charge of the matter had secured the support of important persons in Parliament. He had obtained Archbishop Moore's blessing, and still more important he had won a promise of support from the minister in charge of the East India Company's Charter Bill. As a preliminary to the passing of this Bill matters to be incorporated in the charter were put in the form of resolutions to be passed by the House of Commons. One of the resolutions passed ran as follows:

"That it was the peculiar and bounden duty of the British Legislature to promote, by all just and prudent means, the interest and happiness of the inhabitants of the British Dominions in India; and that for these ends such measures ought to be adopted as may generally tend to their advancement in useful knowledge and to their religious and more improvement."

"Be it therefore further enacted, that the said Court of Directors shall be and are hereby empowered and required to appoint and send out, from time to time, a sufficient number of fit and proper persons for carrying into effect the purposes aforesaid, by acting as schoolmasters, missionaries, or otherwise every such person, before he is so appointed or sent out, having produced to the said Court of Directors, a satisfactory testimonial or certificate from the Archbishop of Canterbury, or the Bishop of London for the time being, or from the Society in London for the promotion of Christian Knowledge, or from the Society in Scotland for propagating Christian Knowledge, of his sufficiency for these purposes.

And be it further enacted, that the said Court of Directors are hereby empowered and required to give directions to the governments of the respective presidencies in India, to settle the destination and to provide for the necessary and decent maintenance of the persons to be sent out as aforesaid; and also to direct the said governments to consider of and adopt such other measures according to their discretion, as may appear to them most conducive to the ends aforesaid."

It was largely due to the support of Dundas that the House accepted the resolution without demur. Wilberforce was deeply moved. 'The hand of Providence', he wrote in his journal, 'was never more visible than in his East Indian Affair.' This confidence was premature. Because, on the third reading of the Bill, the clause was struck out with the consent of Dundas. Wilberforce wrote his friend Gisborne "My clauses thrown out, Dundas most false and double....."

This change of front was brought about by the Directors of the East India Company. The East India trade was a monopoly of the Company and no Englishman could enter the territories of the East India Company in India without license from the Directors of the Company and any Englishman found in the territories of the Company without a license was liable to be deported. The Company did not take long to realize what the effect of the new clause would be. It knew that the clause would require them to open the gates of India to the flood of the Missionaries and their propaganda. Should the Missionaries be allowed a free hand, was the question of the hour. As was natural this became a subject of a most interesting, instructive and bitter controversy and those who care to know it in its details may usefully refer to the pages of the Edinburgh Review and theof the day.

There were three parties to this controversy. There were the Directors of the East India Company whose primary interest was to protect its shareholders who were clamouring for dividends. The second party to the controversy was the English Middle Class which was living on the East India trade and whose sons were finding new avenues for lucrative careers in the territories. Thirdly there was the Church Missionary Society formed in the yearfor the purpose of spreading the Christian faith. The interests of the first two coincided. They were for the maintenance of the Empire and therefore wanted peace and tranquility. The third did care for peace but was keen on the substitution of Indian superstition by the Christian faith. The first made a powerful combination and obliged all the forces against the third. The result was that they triumphed and the Church Missionary Society lost. The arguments advanced by the controversialist on the triumphant side are of course the most important and the most instructive part of the controversy.

To the argument that the propaganda in favour of the Christian faith should begin at once, that it was wrong to hold that the truth though sacred should be doled out in such a way and in such bits as to avoid all risk, the reply given by Sydney Smith was a stunning reply. This is what he said :

“When we consider for how many centuries after Christ, Providence allowed the greater part of mankind to live and die without any possibility of their attaining to the knowledge of the sacred truths by any human exertion, we must be satisfied that the rapid and speedy conversion of the whole world forms no part of the scheme of its Almighty Governor, and that it can give no offence in His eyes if we do not desert our domestic duties and expose the

lives and worldly happiness of multitudes of our fellow country men to hazard in our attempt to their conversion.”

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“The Directors would be doing their duty neither to the shareholders nor the British Nation if they allowed ‘itinerant tinkers to preach the natives into insurrection..... The natives must be taught a better religion at a time and in a manner that will not inspire them with a passion for political change.’ Our duties to our families and Country are set before us by God Himself. We are not at liberty to desert them in order to give a remote chance of conferring greater benefits on strangers at a distance.”

It is arguments such as those which prevailed with Parliament and led to the rejection of the Clause in 1793. Wilberforce twitted members of Parliament by reminding them with, their Christianity was not a religion of convenience but it was a religion established by law. But as has been well pointed out, “for the major portion of those ‘counted’ in the eighteenth century the religion accepted by the State and Society as a convenience was something to be used with fact and discretion at home. There was no need to diffuse it recklessly abroad. The general atmosphere, as has often been pointed out, was remarkably like that of Augustan Rome. To the statesman, thinking imperially, all religions were equally useful, each in its proper place.”¹

The attempt to open the door to the Missionaries failed and the Missionary was shut out from India till 1813. Not only was he shut out but the Company’s Government kept a strict vigil upon the activities of such stray missionaries who contrived to go to India without their license.

In 1793 Dr. Carey went as an interloper without license. As he was not allowed to enter Calcutta being without license, he made Serampore, 14 miles away from Calcutta as his base of operation. Serampore was a Danish settlement and the Danes had placed no restrictions on missionaries or mission propaganda. On the contrary the Governor of Serampore actively helped them. Carey and his Mission was always suspect in the eyes of the Company’s Government. In 1798 the Serampore Mission decided to engage four missionaries who arrived in the year 1800. They went to reside in the Danish settlement of Serampore. As a matter of fact the Governor General had nothing to do with them. But the unconcealed residence of those unlicensed enthusiasts was too much for the Company’s Governor General and Lord Wellesley wrote to the Governor of Serampore, “Would His Excellency see to the expulsion of these interlopers who

¹ Mayhew- Christianity and the Government of India, p. 51.

might at any moment violate the territories of the British East India Company", to which the Danish Governor replied that he would do nothing of the kind¹. Similar action was taken in 1806 when Captain Wickes brought two more Missionaries in the '*Crieterion*' which anchored off Calcutta. Sir George Barlow was then the Governor General. He took a most extra-ordinary action to prevent the landing of these two missionaries. He ordered that the Captain be not given his clearance papers unless he agreed to take back the two missionaries. Although they had gone to live in Serampore and were in fact under the protection of the Danish Crown. This was not only a more unreasonable attitude towards missionaries but it was also an attitude which could not but be regarded as hostile².

The Vellore Mutiny among Indian Soldiers which took place in 1806 was quite erroneously attributed to missionary propaganda and Sir George Barlow in a panicky condition proceeded to put the following restrictions on the activities of the Serampore Missionaries:

1. The Missionaries remain at Serampore.
2. They must not preach openly in the bazar.
3. Native converts might preach provided they are not sent forth as emissaries from Serampore.

The vehemence with which the Government of Bengal came down upon the Serampore Mission in 1807 for issuing a tract on Islam in which quite inadvertently the prophet Mahomed was called an imposter also furnishes further evidence of the attitude of hostility which Government of the Company bore towards the Missionaries.

The Government of Bengal refused to be satisfied with the apologies of Dr. Carey and insisted upon the transfer of the Press from Serampore to Calcutta in order that Government may be in a better position to control the literature issued therefrom. The news caused dismay for it meant the disruption of the mission. As usual, the Governor of the Danish settlement came to their rescue and told the frightened Serampore Missionaries that he would fight their battle if the Government of Bengal forcibly removed the Press to Calcutta. Subsequently matters were settled and the order was withdrawn³. But the fact remains that the Government of the Company was not a friend of the Missionaries.

So much for the excuse which they can legitimately plead. But what attitude did they take when they were allowed after 1813 to operate in the field? Did they take the line that caste must go from the thought and life of the Convert? The earliest pronouncement of a Protestant Missionary does not warrant an affirmative answer.

¹J. C. Marshman. Life & Times of Carey, Marshman and word. Vol. 1, p. 307. ² *Ibid.*,

Missionaries intolerating caste : Dr. Heyne in 1814 wrote : Missionaries, in many instances, have fallen into a mistake of a very injurious nature to their rapid or even ultimate success. In converting a Hindu to Christianity, they oblige him to adopt a line of conduct by which he loses his caste; this, in India is considered such a disgrace, that it must present a powerful obstacle to conversion. But the political division of the Hindus is no part of their religious tenets, though it has been so mistaken by the most enlightened. In giving to the Hindus the Christian religion, allow them to retain their caste, and they could be found to embrace it without reluctance, and in considerable numbers.”¹

But I do not wish to judge the attitude of the Protestant Missions to so important a question from so stray a pronouncement of a solitary individual. There is evidence to show that the Protestant Missions were once early in their career called upon to make up their mind on this important issue so that it can be said that the view maintained by the Protestant Mission is a considered view. The time when this issue was discussed seriously was the time when Rev. Heber was appointed the Bishop of Calcutta. He assumed his duties in the year 1823. During his episcopate he toured extensively in the whole of India and in Ceylon. In the course of his tour, he became aware of the sharp conflict of opinion among Protestant Missionaries to the question of toleration of caste among converts. He decided to resolve this difference. How he went about the business is told in the words of Mr. Kaye who has succinctly narrated it:

“There was strife, therefore, among the missionaries, which Heber was anxious to allay. The question had been brought before him, before he quitted Bengal. He had there sought to arm himself with all the information that he could obtain, respecting not only the practice of the earlier Protestant missionaries, but the true nature of the institution of Caste. There was then in Bishop’s College a Christian convert, known as Christian David. He had been a pupil of Schwartz; and was truly a remarkable man. No less distinguished for his intelligence than for his piety, he was regarded by the good Bishop as the one of all others to whom he might most expediently refer for the solution of his doubts. Heber drew up, therefore, a series of questions, which he submitted to the native Christian, and received from him a series of replies, stated not only in excellent English, but with a force and precision which could not be easily surpassed.

¹ Krishna District Manual, p. 282.

“First, with regard to the nature of Caste, it was declared by Christian David, that it was, among the natives of Southern India, “purely a worldly idea”— “not connected in their minds with any notion of true or false religion,” that the native converts, drawn from the higher castes, were disinclined to intercourse With low-caste proselytes, not on religious or superstitious grounds, but simply for social reasons; that there were certain distinctions between high-caste and low-caste persons not by any means ideal, and that these distinctions were not to be gilded over merely by the acquisition of worldly wealth. He specially set forth that low-caste people indulged habitually in an unseemly mode of speech— frequently using coarse or indecent expressions very revolting to the feelings of high-caste men; and that they were altogether less decorous and self respectful in their way of life. Learning, he said, might elevate them; and if a Pariah became learned he was called a pundit, and respected by the Church; and then his brother converts would associate with him, but still they would not “from worldly fear or pride” eat with him from the same dish. From the days of Ziegenbalg downwards they had been wont to sit at Church in two separate divisions, and had communicated separately at the Lord’s table, drinking out of the same cup, but the high-caste converts drinking first. As a proof, however, that these were regarded as merely worldly distinctions, Christian David said that high-caste and low-caste, among the Christian congregations of the South, were buried in a common burial ground, and took part promiscuously in the funeral ceremonies, “as if with the consciousness, contrary to the heathen nations, that death levelled all distinctions.”

“Rather by mild remonstrance and persuasion than by the enactment of any stringent rules, which might have proved great obstructions to Christianity, the elder missionaries had sought to mitigate the evil; and Christian David declared that under the ministration of Schwartz the evil had considerably diminished. But Mr. Rhenius, of the Church Missionary Society, a truly conscientious and devout Christian, had taken other views of the duties of Christian teachers, and had gained over to his opinions the younger missionaries in the South; so that they agreed, as I have said, among themselves, to make the total repudiation of Caste, even in its mere social aspect, an essential condition of admittance to the Christian Church; and they had, moreover, spoken and preached against the elder missionaries—even the most venerated of their predecessors—denouncing them as “corrupters of the Gospel” for having permitted such things to soil the purity of Christianity.

Of all this Christian David spoke with profound regret. His own opinions were naturally inclined towards the doctrine and the practice of his old master Christian Schwartz. The mild interference and affectionate advice of the Bishop might, he thought, dispose the hearts of the younger missionaries towards greater toleration and forbearance.

“Very earnestly and very conscientiously did Heber revolve this important subject in his mind. It is in accordance with all that we know of the character of the man, that he should have inclined towards the more conciliatory practices of the elder missionaries. But he deferred any final decision, until the opportunity should arrive for the collection of further information and the delivery of a sounder and fuller judgment on the spot. When, therefore, he visited the Southern Presidency, he wrote letters of inquiry to some of the principal missionaries and instituted a select committee of the Christian Knowledge Society for the purpose of making further investigation into the subject. From one letter written to the Rev. D. Schrievogel, though little more than a series of questions, the bent of his opinions may be derived. It appeared to him, after much deliberate consideration, that Caste, as represented to exist among the Christian converts on the Coast was in reality an institution differing little in its essential features from the social exclusiveness prevailing in Christian countries. Is there no such thing, he asked himself, as Caste in Europe? Is there no such thing as Caste in America? Do not the high and the low sit apart in our English churches? Do not our well-dressed high-caste folks go up first to the altar to communicate? Do high and low sit down to meat together—do their children attend the same schools? Are there no Pariahs amongst us? In other civilized countries, is there not a prevailing sense of Caste, apart from all associations of worldly distinction? Does not the Spanish hidalgo wear his Caste bravely beneath his threadbare cloak? Is the wealthiest mulatto fit companion for the poorest white? It may be called blood, or anything else in another; but in its essential features the one thing differs but little from the other. It is an intelligible and appreciable Christian principle that all men in the sight of God are equal. But it is equally certain that all are not equal in the sight of Man; and it is a fair presumption that God never intended them to be equal. Social distinctions exist every where; and if, argued the Bishop, the distinctions which exist among the converts on the Southern coast are merely social distinctions, why should we endanger the success of our efforts by endeavouring to enforce a law of equality, which is maintained among no other classes of men?

“In this wise thought Bishop Heber. He had said from the first, that if he could be of any service to the Christian cause in India, it would be as a moderator—that by a conciliatory course, smoothing down the asperities of the over-zealship, he might hope to do much good as the chief missionary; and now he believed that it was his duty to cast in the weight of his authority upon the side of those who had resolved not to. pour too much of new wine into the old bottles.”

This view was more forcefully expressed by another Protestant Missionary Rev. Robert Noble who came out to India in 1841 and was in charge of the Church of England Mission Work in Masulipatam made it a rule to exclude Pariahs, leather workers and scavengers from his school. Defending himself against the charge of introducing caste in the Christian fold he defended himself in the following terms: “The humblest and most pious Christian parents in England would not allow their sons, much less their daughters, to be educated with their footmen, with their cooks and their scullery maids. Perhaps I was punished oftener by my pious father for stealing away to play with the boys of the village than on any other account; while in the best ordered Christian family I have ever seen, the children were not allowed to converse with the servants or to descend the second step of the stairs into the kitchen. My father would not have allowed us to mix with the” cook’s or stable boy’s children; nor can I see it right to require of Brahmins that before we will teach them the Gospel, they must sit down on the same form with the pariah and the sweeper. The requirement is to me unreasonable and unchristian.”

It is true that many wise and devout Christians since Heber’s time believed that he was altogether wrong; and that Bishop Wilson at a later period reversed his decision emphatically pronouncing against all toleration for the inequities of caste on the ground that it was an ingrained part of Hindu religion. But the fact remained not only the official but also the general view of the Protest Missions’ in India regarding the place of caste in Indian Christianity.

Thus all Missionaries agreed that Christianity should be made easy in order that it may spread among India. On this point there seems to be difference of kind among Catholics, Lutherans or Protestants. Such difference as exists is one of degree. If there exists Caste and other forms among Christian converts it is the result of this policy—

¹An exception must however be made in favour of the Protestant Missionaries of America. In July 1847 the American Missionaries passed the following resolution regarding this question—

“That the Mission regards caste as an essential part of heathenism, and its full and practical renunciation, after instruction, as essential to satisfactory evidence of piety: and that renunciation of caste implies at least readiness to eat. under proper circumstances, with Christians of any caste.”,

policy of making Christianity easy. In adopting this policy the Missionaries never thought that some day, somebody would ask them 'What good is Christianity for a Hindu if it does not do away with his Caste'. They misunderstood their mission and thought that making a person Christian was the same thing as making him a follower of Christ.

V

Let us take the second part of the question. Has Christianity been able to save the convert from the sufferings and the ignominy which is the misfortune of every one who is born an untouchable? Can an untouchable after his conversion to Christianity take water from a public well? Are his children admitted to a public school? Can he enter a hotel or tavern which was not open to him? Can he enter a shop and buy things from inside? Will a barber shave him? Will a washerman wash his clothes? Can he travel in a bus? Will he be admitted in Public offices without compunction? Will he be allowed to live in the touchable quarters of the village? Will the Hindus take water from him? Will they dine with him? Will not the Hindu take a bath if he touches him? I am sure the answer to every one of these questions must be in the negative. In other words conversion has not brought about any change in the social status of the untouchable convert. To the general mass of the Hindus the untouchable remains an untouchable even though he becomes a Christian.

The question is, why has Christianity not succeeded in raising the status of the untouchable convert? What are the reasons for this failure? I am not sure that my reasons will be accepted by all those who are interested in the problem. But I will state them for what they are worth. To understand and appreciate what I am going to say I must begin by pointing out that a change in the social status of the convert Can be the result of a two-fold change. There must be a change in the attitude of the Hindus. Secondly there must be a change in the mentality of the convert. Status is a dual matter, a matter *inter se* between two persons and unless both move from their old position there can be no change. What has been done by those who are in charge of Christian endeavour to make the parties move on? A consideration of this question will enable us to understand why Christianity has failed to raise the status of the untouchable convert.

Let us consider the question in parts. What has Christianity done to make the Hindus move on? I find they have done nothing. They seem to be depending upon an idea doing the miracle. The faith in an idea

doing the work has been well expressed by the late Duke of Argyle when he said:

“There is no method of reform so powerful as this. If alongside any false or corrupt belief, or any vicious or cruel system, we place *one incompatible idea*,—then without any noise of controversy or clash of battle, those beliefs and customs will wave an idea. It was thus that Christianity, without one single word of direct attack, killed off one of the greatest and most universal curses of the pagan world,—the ever deepening curse of slavery.”¹

Whatever may be the importance of an idea, I am sure, history does not bear out the conclusion of the Duke of Argyle. It is debatable question whether the end of slavery in the Roman Empire was due to the influence of Christianity. It is beyond doubt that serfdom continued in Europe although Christianity was an established institution for several hundred years. It is an incontrovertible fact that Christianity was not enough to end the slavery of the Negroes in the United States. A civil war was necessary to give the Negro the freedom which was denied to him by the Christians.

The dependence of those in charge of Christian endeavour upon planting of an idea and leaving it to work a miracle is therefore one of the reasons why the untouchable has remained an untouchable notwithstanding his Christian faith.

Let me take the other part of the question. Does Christianity inspire the untouchable to move on? I am constrained to say that (it) does not. So far as I am able to see, Christian preaching to the untouchable is less centered on ‘practical’ reforms and more centered around the development of Christian social attitudes. Christians who desire the conversion of the untouchables insist on regarding Christianity as purely “spiritual”. To teach that Christians have an obligation to love others is no doubt very valuable. But to stop there and argue that spiritual life expressed in a social attitude is quite unrelated to material life and Christians can have nothing to do with it, is in my judgment to preach an empty doctrine. What is the use of a daily exhortation to a wrong doer to be good and just if the exhortation is not followed by action to make the wrong doer just and good. The Christian Missionaries have never thought that it was their duty to *act* and get the injustice that pursues the untouchables even after his conversion to Christianity removed. That Missions should be so inactive in the matter of the social emancipation of the untouchable is of course a very sad thing. But far more painful is the inaction of the untouchable who becomes a convert to Christianity. It is the saddest thing. He

¹ Quoted by C. F. Andrews. *Christ and Labour*, p. 25.

continues to suffer from the Hindus the same disabilities which were his lot before conversion. It is an extraordinary thing that the movement for the redress of wrongs is carried on by the untouchables who have not become converts to Christianity. I have never noticed the untouchable Christians meeting in Conferences for the redress of their social wrongs. That they have grievances is beyond question. That there are many who are educated enough to lead them in their struggle is also well known. Why is it then there has been no movement for the redress of their wrongs?

I see three reasons why the Christian untouchables have failed to raise a movement.

The first reason is to be found in the complete absence of desire on the part of the educated among the Christians to take up the cause of the community and fight for it. This is due in my judgment to the fact that within the Christian Community the educated class and the mass has no kinship. The Christian Community is a composite community. In some places it is divided into touchables and untouchables. In all places it is divided into high class and low class. The educated class is largely drawn from the touchable or the higher class. This educated class being detached from the lower or the untouchable class of Christians is not charged with the wants, the pains, cravings, desires, aspirations of the latter and does not care for their interest. The untouchable Christians are therefore leaderless and therefore unable to mobilize for the redress of their wrongs.

The second reason why there is no movement among the untouchable Christians is due to certain faults in the mental make-up of the convert. The mental make-up of the untouchable Christian is characterized by a complete absence of any urge to break his bonds. What is the reason for this absence of any urge in the untouchable Christian? It seems to me that there are two reasons which account for this. One reason is to be found in the antecedent of the untouchable who becomes a Christian. An untouchable becomes a Christian for some advantage or he becomes a Christian because he *likes* the teaching of the Bible. But the case is very rare of an untouchable becoming a Christian because of a positive discontent or dislike of the Hindu religious teachings. The result is that Christianity becomes only an addendum to his old faith. It does not become a substitute for his old faith. He cherishes both and observes them on occasions appropriate to each.

The second reason for the absence of any urge is due I am afraid to the teachings of the Christian Church. The Christian Church teaches that the fall of man is due to his original Sin and the reason why one

must become Christian is because in Christianity there is promise of forgiveness of sins. Whatever may be the theological and evangelistic basis of this doctrine there is no doubt that from a sociological point of view it is a doctrine which is fraught with disaster. This Christian teaching is a direct challenge to sociology which holds that the fall of man is due to an unpropitious environment and not to the sins of man. There is no question that the sociological view is the correct view and the Christian dogma only misleads man. It sets him on a wrong trail. This is exactly what has happened with the untouchable Christians. Instead of being taught that his fall is due to a wrong social and religious environment and that for his improvement he must attack that environment he is told that his fall is due to his sin.

The consequence is that the untouchable convert instead of being energized to conquer his environment contents himself with the belief that there is no use struggling, for the simple reason that his fall is due to the sin committed not by him but by some remote ancestor of his called Adam. When he was a Hindu his fall was due to his Karma. When he becomes a Christian he learns that his fall is due to the sins of his ancestor. In either case there is no escape for him. One may well ask whether conversion is a birth of a new life and a condemnation to the old.

VI

Does the Indian Christian Community count in India? What importance, what influence does it have in settling the affairs of the country. It ought to have importance and influence both in the country and society. It is undoubtedly the most educated and enlightened community in India. Not only the percentage of literacy among Indian Christians is relatively larger than in many other communities in India but the University Graduate, Doctors, lawyers are far in excess than can be found in communities which are vastly superior to them in number. Not only the men are educated but also women are educated. With all this light and learning the Christians as a community, it must be said, counts for very little—if at all—in the affairs of India. There may be difference of opinion on this. But this is the conclusion I have arrived at after as close and as impartial a study as I have been able to make. My opponent might say that I am mistaken or that I am misrepresenting. But I take comfort in the fact that there are some Indian Christians who share my view and also my regret. Here are two letters which I take from Young India.

The first is from an Indian Christian to Mr. Gandhi and published in the *Young India*, August 25, 1921. This is what he says:

“I am sorry to say that you do not take us Indian Christians as the people of India, as I have seen many times *Young India* mentioning Mussalmans, Hindus, Sikhs, etc., but omitting the Christians.

“I should like you to believe that we Indian Christians are also people of India, and take much interest in India’s own affairs.” The following is the comment made by Mr. Gandhi on this letter. He says:

“I assure the correspondent and other Indian Christians that non-cooperation is no respecter of creeds or races. It invites and admits all to its fold. Many Indian Christians have contributed to the Tilak Swaraj Fund. There are some noted Indian Christians as non-cooperators in the front rank. There is constant mention of Musalmans and Hindus, as they have hitherto regarded one another as enemies. Similarly there always has been some cause when any race has been specially mentioned in these columns.”

Apart from the question whether it is true that many Indian Christians have contributed to the Tilak Swaraj Fund and whether it is true or not that noted Christians were front rank non-cooperators, the answer given by Mr. Gandhi to the main question of the correspondent is incorrect if not misleading. If Musalmans are mentioned only because they regard the Hindus as their enemies why were Sikhs mentioned? Surely they did not regard the Hindus as their enemies. Why were they mentioned? The Sikhs were not only mentioned but were treated as an important party without whose active cooperation it was felt that the struggle for Swaraj could not be carried on. And be it remembered that the cooperation given by the Sikhs was not given unconditionally. As is well known the Sikhs had put down two conditions in return for their cooperation¹. One condition was that in designing a national flag for India the Sikh colour which they said was black should find a place in it. Their second demand was that they should be guaranteed by the Congress representation in the legislature. It is thus clear that Sikhs were not mentioned but placated. But the Christians were not even mentioned. Now there are only two explanations for not mentioning the Indian Christians. Either they were with the Congress in the struggle for Swaraj or that they were not worth mentioning as being too insignificant. That they were not with the Congress in this struggle for Swaraj cannot be gainsaid. The following letter written by an Indian Christian written to the Editor of the *Indian Social Reformer* and reproduced in the *Young India* expresses the attitude of the Indian Christians to Swaraj:

“We have positive evidence to show that as early as the second century of Christian era there were Christian settlements in India. Such

¹ *Young India*. Aug. 4. 1921.

being the case, Christians in India can claim to have existed in India some centuries earlier than the very birth of Islam. How comes it then that the Indian Christian born and bred on the soil of India and of ancestry purely Indian, has not learnt to cherish the ancient history of this country, its culture and to look upon its people, however different in their religious persuasions, as his bone and of his flesh? Whence is it that unlike him Hindu or Mahomedan fellow citizen he has not watched for, aspired to and eagerly welcomed every stage that adds a cubit to the cultural, social or political statute of his motherland. Why is it that *Vande Mataram* is a national outpouring of the Hindus and Mahomedans only and till now ignored by the Indian Christian?

Again how comes it that both Hindus and Mahomedans regard the Indian Christian sentiment towards their aspirations as lukeworm if not positively hostile and conversely why is it that the ever-growing height of the national spirit in India makes the Indian Christian feel dwarfed and helpless and suspicious of his security in the future.”¹

Notwithstanding Mr. George Joseph, K. T. Paul, and Dr. S. K. Datta there is no doubt that the Indian Christian Community far from taking active part in the struggle for Swaraj was really afraid of it and that this letter depicts truly the prevailing attitude of the Indian Christians. The reason why the Indian Christians were not mentioned along with the Musalmans and the Sikhs is therefore clear. The omission to mention them is certainly not due to their being friends of Swaraj. The only conclusion that one can draw for such a omission is that they did not count. It is a sad thing that so enlightened a community should have no importance and no influence in the affairs of the country.

What can be the reasons for such a position? The most obvious reason is of course, the smallness of its numbers. The weight of its numbers is too small to make its existence felt as a force in public life as can be the case with the Musalmans or with the Depressed Classes. But this cannot wholly account for their insignificance. There must be other factors to account for this. I see two.

One is this. The Indian Christians are living in sheltered waters. They are, at any rate, a large majority of them are living in the laps of the missionaries. For their education, for their medical care, for religious ministration and for most of their petty needs they do not look to Government. They look to the Missions. If they were dependent upon Government they would be required to mobilize, to agitate, educate, and organize their masses for effective political action. For without such organization no Government would care to attend to their needs and their requirements. They are not in the current and not being in the current they care not for public life, and therefore no recognized place in the public.

¹ Young India. 21st Dec. 1922.

The second reason is that the Indian Christian is a disjointed—it is a better word than the word disunited—Community. All that it has in common is a common source of inspiration. Barring this one thing which they have in common everything else tends to keep them apart. Indian Christians like all other Indians are divided by race, by language and by caste. Their religion has not been a sufficiently strong unifying force as to make difference of language, race and caste as though they were mere distinctions. On the contrary their religion which is their only cement is infected with denominational differences. The result is that the Indian Christians are too disjointed to have a common aim, to have a common mind and to put a common endeavour. To an Indian Christian from Tamil, a Hindu from Tamil is much nearer than an Indian Christian from the Punjab; An Indian Christian from U.P. feels greater kinship for a Hindu from U.P. than he does for an Indian Christian from say Maharashtra. In short, the term Indian Christian is just a statistical phrase. There is no community feeling behind this phrase. Indian Christians are not bound together by what is consciousness of kind which is the test of the existence of a community.

I do not know what Indian Christians will think of what I have said of the weaknesses which infect their life. One thing I can say. It is this—I am deeply interested in Indian Christians because a large majority of them are drawn from the untouchable classes. My comments are those of a friend. They are not the strictures of an adversary. I have drawn attention to their weaknesses because I want them to be strong and I want them to be strong because I see great dangers for them ahead. They have to reckon with the scarcely veiled hostility of Mr. Gandhi to Christianity taking its roots in the Indian Social structure. But they have also to reckon with militant Hinduism masquerading as Indian Nationalism. What this militant Hinduism will do to Christians and Christianity can be seen from what happened at Brindaban very recently. If newspaper reports are true¹ a crowd of mild Hinduism quietly went and burned down the Mission buildings in Brindaban and warned the missionary that if he rebuilt it they would come and burn it down again?! This may be the solitary instance of misguided patriots or this may be just a piece of what the Hindus are planning to get rid of Christians and Christianity. If it is the shadow of events to come then Indian Christians must be prepared to meet them. How can they do that except by removing the weaknesses I have referred to? Let all Indian Christians ponder.

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¹Indian witness.

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no clarity

(that he minds is an exchange exchange.) ^{It is difficult to} But one has still to understand why Mr. Gandhi argues that services rendered by the Missionaries are baits, ^{to} temptations, and that the conversions are therefore conversions of convenience. Why is it not possible to believe that these services ^{to} rendered by the Missionaries indicate ~~that they indicate that Christianity is~~ ^{for Christians} ~~that Christianity is~~ ^{requirements of their religion!} suffering humanity is an essential thing. Would that be a wrong view of the process by which a person is drawn towards Christianity? Only a prejudiced mind would say, Yes.

All these arguments of Mr. Gandhi are brought forth to prevent the Christian Missionaries from converting the Untouchables. No body will deny to Mr. Gandhi the right to save the Untouchables for Hinduism. But in that case he should have frankly told the Missionaries ^{by writing to them} "Stop your work, we want now to save the Untouchables, and ourselves, Give us a chance!" It is a pity that he should not have adopted this honest mode of dealing with the menace of the Missionaries. Whatever any body may say I have no doubt all the Untouchables, whether they are converts or not, will agree that Mr. Gandhi has been grossly unjust to the Christian Missions. For centuries it is the Christian Missions which ^{provided for them a} have been their shelter, if not their refuge.

Very few seem to have any idea of what the Christian Missionaries are doing to remove ignorance and illness from the mass of Indian humanity. The following ² will give some idea of their effort :-

11

* This paragraph as it stands is too involved and is weak. I suggest that I have written a more effective and incisive comment.

~~the~~ question the value of these
Latin words here.

That the Christian Missions have been endeavouring to provide the corpus sanum for the people of India and to create the Mens Sana among these who have ^{entered} ~~gone into~~ the fold is undeniable. It would be difficult in this place to describe all the activities carried on by the Christian Missions in India.

1) Work among children, 2) Work among young men, 3) Work among the masses, 4) Work among women, 5) Work among the sick.

(Specimen of 2 typed pages corrected in the handwriting of Dr. Ambedkar from an essay entitled, 'The Condition of the Convert.')

ERRATA

Page	Line	Incorrect	..	Correct
117	foot note 1	new-reports 1	..	news-reports
117	do. 2	approved ..	..	appeared
157	29	(un)*essentials	..	essentials
157	foot note	The original accordingly-Ed	..	<i>delete</i>
158	8	to cast fellowship	..	to caste fellowship
194	8	“Brahmanic” Sarasvati	..	“Brahmanic Saraswati,”
337	36	shoud have ..	..	should hve
347	11	office or profit	..	office of profit
363	21	Harjan Sevak Sangh	..	Harijan Sevak Sangh
379	41	now show ..	..	not show
397	8	rationalist who	..	rationalists who
407	4	nationalise ..	..	rationalise
412	28	Hinduism are to observe	..	Hinduism observe
417	19	all covenants	..	all covenants
420	17	and confer himself	..	confer himself
425	26	catch of Shradhanand	..	caste of Shradhanand
431	14	to reform, the pure	..	to reform the pure

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-Dr. B. R. Ambedkar
In 'Annihilation of Caste'

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